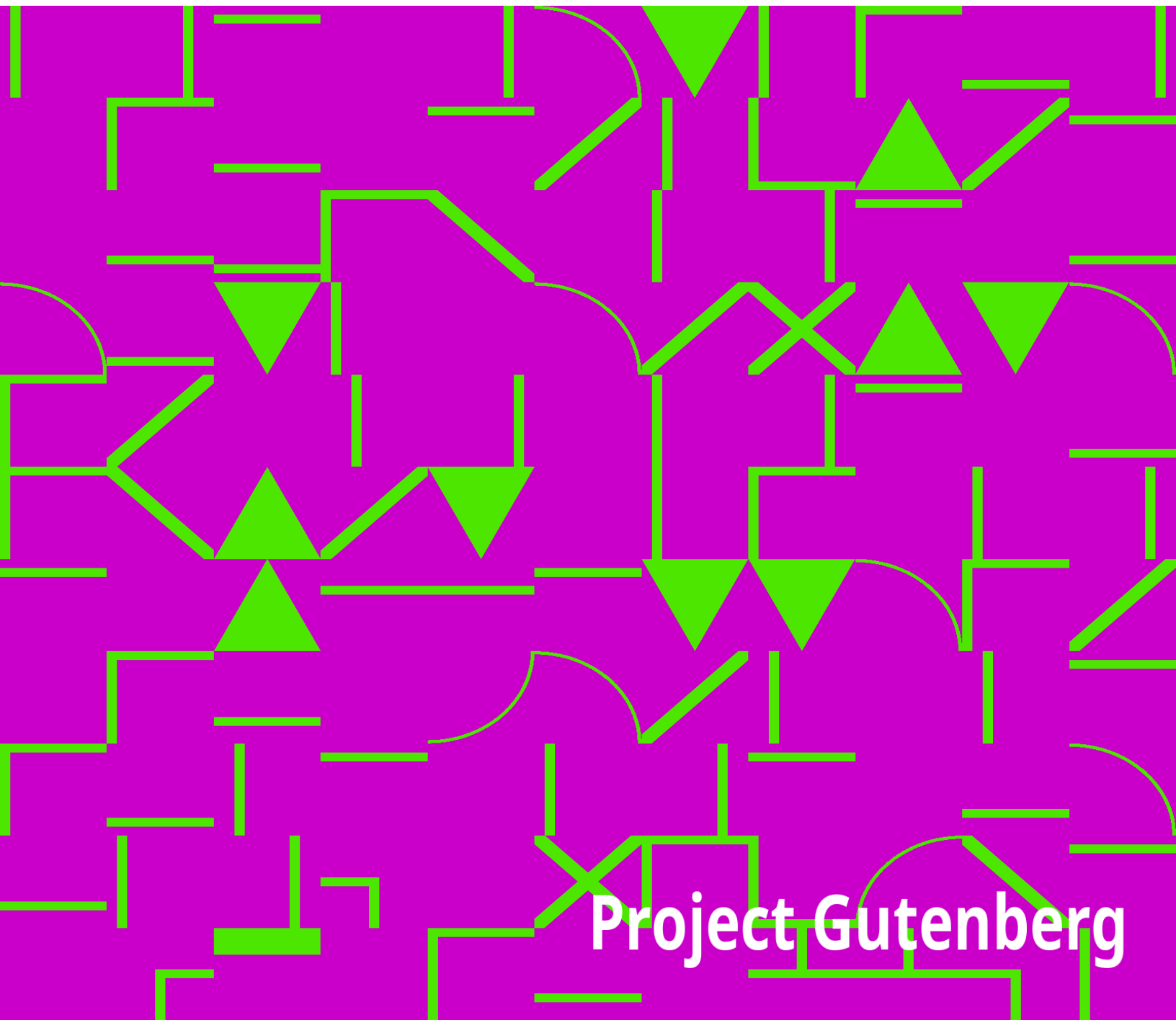


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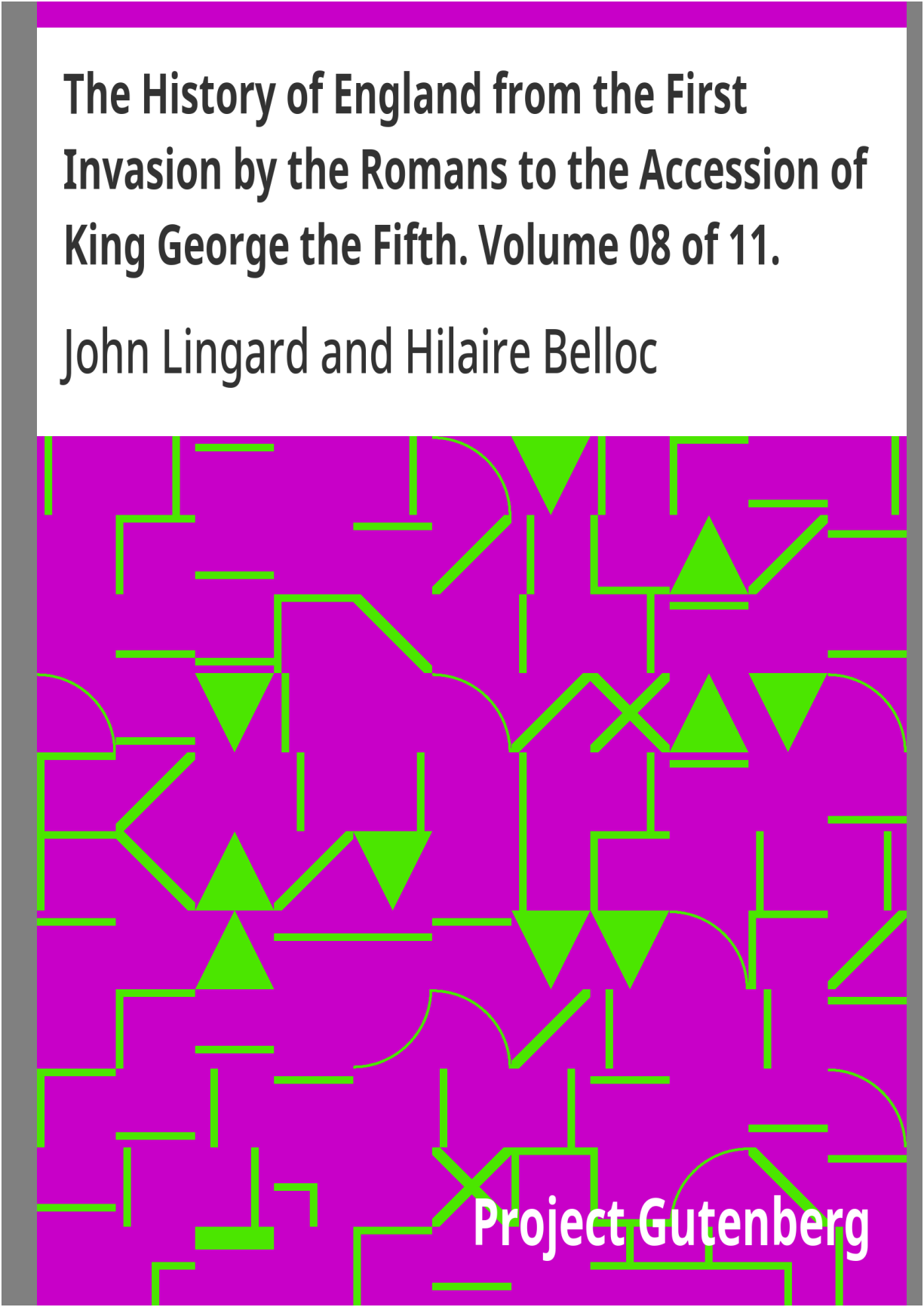
John Lingard and Hilaire Belloc



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Invasion by the Romans to the Accession of
King George the Fifth. Volume 08 of 11.**

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Title: The History of England from the First Invasion by the Romans to the
Accession of King George the Fifth. Volume 08 of 11.

Author: John Lingard
Hilaire Belloc

Release date: January 1, 2004 [eBook #10700]
Most recently updated: October 28, 2024

Language: English

Other information and formats: www.gutenberg.org/ebooks/10700

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OF ENGLAND FROM THE FIRST INVASION BY THE ROMANS TO
THE ACCESSION OF KING GEORGE THE FIFTH. VOLUME 08 OF 11.

The History of England

From The First Invasion By The Romans To The Accession Of King
George The
Fifth

BY

JOHN LINGARD, D.D. AND HILAIRE BELLOC, B.A.

With an Introduction By

HIS EMINENCE JAMES CARDINAL GIBBONS

IN ELEVEN VOLUMES

1912

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NOTES

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HISTORY OF ENGLAND.

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CHARLES I.—(*Continued.*)

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Battle
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It had been suggested to the king that, at the head of an army, he might negotiate with greater dignity and effect. From Nottingham he despatched to London the earl of Southampton, Sir John Colepepper, and William Uvedale, the bearers of a proposal, that commissioners should be appointed on both sides, with full powers to treat of an accommodation.[a] The two houses, assuming a tone of conscious superiority, replied that they could receive no message from a prince who had raised his standard against his parliament, and had pronounced their general a traitor.[b] Charles (and his condescension may be taken as a[c])

[Sidenote a: A.D. 1642. August 25.]

[Sidenote b: A.D. 1642. August 27.]

[Sidenote c: A.D. 1642. Sept. 4]

proof of his wish to avoid hostilities) offered to withdraw his proclamation, provided they on their part would rescind their votes against his adherents.[a] They refused: it was their right and their duty to denounce, and bring to justice, the enemies of the nation.[b] He conjured them to think of the blood that would be shed, and to remember that it would lie at their door; they retorted the charge; he was the aggressor, and his would be the guilt.[c] With this answer vanished every prospect of peace; both parties appealed to the sword; and within a few weeks the flames of civil war were lighted up in every part of the kingdom.[1]

Three-fourths of the nobility and superior gentry, led by feelings of honour and gratitude, or by their attachment to the church, or by a well-grounded suspicion of the designs of the leading patriots, had ranged themselves under the royal banner. Charles felt assured of victory, when he contemplated the birth, and wealth, and influence of those by whom he was surrounded; but he might have discovered much to dissipate the illusion, had he considered their habits, or been acquainted with their real, but unavowed sentiments. They were for the most part men of pleasure, fitter to grace a court than to endure the rigour of military discipline, devoid of mental energy, and likely, by their indolence and debauchery, to offer advantages to a prompt and vigilant enemy. Ambition would induce them to aspire to office, and commands and honours, to form cabals against their competitors, and to distract the attention of the monarch by their importunity or their complaints. They contained among them many who secretly disapproved of the war,

[Footnote 1: Journals, v. 327, 328, 338, 341, 358. Clarendon, ii, 8, 16.]

[Sidenote a: A.D. 1642. Sept. 6.]

[Sidenote b: A.D. 1642. Sept. 11.]

[Sidenote c: A.D. 1642. Sept. 16.]

conceiving that it was undertaken for the sake of episcopacy,—an institution in the fate of which they felt no interest, and others who had already in affection enrolled themselves among the followers of the parliament, though shame deterred them for a time from abandoning the royal colours.[1]

There was another class of men on whose services the king might rely with confidence,—the Catholics,—who, alarmed by the fierce intolerance and the severe menaces of the parliament, saw that their own safety depended on the ascendancy of the sovereign. But Charles hesitated to avail himself of this resource. His adversaries had allured the zealots to their party, by representing the king as the dupe of a popish faction, which laboured to subvert the Protestant, and to establish on its ruins the popish worship. It was in vain that he called on them to name the members of this invisible faction, that he publicly asserted his attachment to the reformed faith, and that, to prove his orthodoxy, he ordered two priests to be put to death at Tyburn, before his departure from the capital, and two others at York, soon after his arrival in that city.[2] The houses still persisted in the charge; and in all their votes and remonstrances attributed the measures adopted by the king to the advice and influence of the papists

[Footnote 1: Thus Sir Edward Varney, the standard-bearer, told Hyde, that he followed the king because honour obliged him; but the object of the war was against his conscience, for he had no reverence for the bishops, whose quarrel it was.—Clarendon's Life, 69. Lord Spencer writes to his lady, "If there could be an expedient found to salve the punctilio of honour, I would not continue here an hour."—Sidney Papers, ii. 667.]

[Footnote 2: Thomas Reynolds and Bartholomew Roe, on Jan. 21; John Lockwood and Edmund Caterick, on April 13.—Challoner, ii. 117, 200.]

and their adherents.[1] Aware of the impression which such reports made on the minds of the people, he at first refused to intrust with a commission, or even to admit into the ranks, any person, who had not taken the oaths of allegiance and supremacy; but necessity soon taught him to accept of the services of all his subjects without distinction of religion, and he not only granted[a] permission to the Catholics to carry arms in their own defence, but incorporated them among his own forces.[2]

While the higher classes repaired with their dependants to the support of the king, the call of the parliament was cheerfully obeyed by the yeomanry in the country, and by the merchants and tradesmen in the towns. All these had felt the oppression of monopolies and ship-money; to the patriots they were indebted for their freedom from such grievances; and, as to them they looked up with gratitude for past benefits,

[Footnote 1: In proof of the existence of such a faction, an appeal has been made to a letter from Lord Spencer to his wife.—Sidney Papers, ii. 667. Whether the cipher 243 is correctly rendered "papists," I know not. It is not unlikely that Lord Spencer may have been in the habit of applying the term to the party supposed to possess the royal confidence, of which party he was the professed adversary. But when it became at last necessary to point out the heads of this popish faction, it appeared that, with one exception, they were Protestants—the earls of Bristol, Cumberland, Newcastle, Carnarvon, and Rivers, secretary Nicholas, Endymion Porter, Edward Hyde, the duke of Richmond, and the viscounts Newark and Falkland.—Rushworth, v. 16. May, 163. Colonel Endymion Porter was a Catholic.—Also Baillie, i. 416, 430; ii. 75.]

[Footnote 2: Rushworth, iv. 772; v. 49, 50, 80. Clarendon, ii. 41. On September 23, 1642, Charles wrote from Shrewsbury, to the earl of Newcastle: "This rebellion is grown to that height, that I must not looke to what opinion men are, who at this tyme are willing and able to serve me. Therefore I doe not only permit, but command you, to make use of all my loving subjects' services, without examining ther contienses (more than there loyalty to me) as you shall fynde most to conduce to the upholding of my just regall power."—Ellis, iii. 291.]

[Sidenote a: A.D. 1642 August 10.]

so they trusted to their wisdom for the present defence of their liberties. Nor was this the only motive; to political must be added religious enthusiasm. The opponents of episcopacy, under the self-given denomination of the godly, sought to distinguish themselves by the real or affected severity of their morals; they looked down with contempt on all others, as men of dissolute or irreligious habits; and many among them, in the belief that the reformed religion was in danger, deemed it a conscientious duty to risk their lives and fortunes in the quarrel.[1] Thus were brought into collision some of the most powerful motives which can agitate the human breast,—loyalty, and liberty, and religion; the conflict elevated the minds of the combatants above their ordinary level, and in many instances produced a spirit of heroism, and self-devoted-ness, and endurance, which demands our admiration and sympathy. Both parties soon distinguished their adversaries by particular appellations. The royalists were denominated Cavaliers; a word which, though applied to them at first in allusion to their quality, soon lost its original acceptation, and was taken to be synonymous with papist, atheist, and voluptuary; and they on their part gave to their enemies the name of Roundheads, because they cropped their hair short, dividing "it into so many little peaks as was something ridiculous to behold." [2]

Each army in its composition resembled the other. Commissions were given, not to persons the most fit to

[Footnote 1: Whitelock, 76.]

[Footnote 2: Life of Colonel Hutchinson, p. 100. "The godly of those days, when the colonel embraced their party, would not allow him to be religious, because his hair was not in their cut, nor his words in their phrase."—Ibid. The names were first given a little before the king left Whitehall.—Clarendon, i. 339.]

command, but to those who were most willing and able to raise men; and the men themselves, who were generally ill paid, and who considered their services as voluntary, often defeated the best-concerted plans, by their refusal to march from their homes, or their repugnance to obey some particular officer, or their disapproval of the projected expedition. To enforce discipline was dangerous; and both the king and the parliament found themselves compelled to entreat or connive, where they ought to have employed authority and punishment. The command of the royal army was intrusted to the earl of Lindsey, of the parliamentary forces to the earl of Essex, each of whom owed the distinction to the experience which he was supposed to have acquired in foreign service. But such experience afforded little benefit. The passions of the combatants despised the cool calculations of military prudence; a new system of warfare was necessarily generated; and men of talents and ambition quickly acquired that knowledge which was best adapted to the quality of the troops and to the nature of the contest.

Charles, having left Nottingham, proceeded to Shrewsbury, collecting reinforcements, and receiving voluntary contributions on his march. Half-way between Stafford and Wellington he halted the army, and placing himself in the centre, solemnly declared in the presence of Almighty God

that he had no other design, that he felt no other wish, than to maintain. the Protestant faith, to govern according to law, and to observe all the statutes enacted in parliament. Should he fail in any one of these particulars, he renounced all claim to assistance from man, or protection from God; but as long as he remained faithful to his promise, he hoped for cheerful aid from his subjects, and was confident of obtaining the blessing of Heaven. This solemn and affecting protestation being circulated through the kingdom, gave a new stimulus to the exertions of his friends; but it was soon opposed by a most extraordinary declaration on the part of[a] the parliament; that it was the real intention of the king to satisfy the demands of the papists by altering the national religion, and the rapacity of the Cavaliers by giving up to them the plunder of the metropolis; and that, to prevent the accomplishment of so wicked a design, the two houses had resolved to enter into a solemn covenant with God, to defend his truth at the hazard of their lives, to associate with the well-affected in London and the rest of the kingdom, and to request the aid of their Scottish brethren, whose liberties and religion were equally at stake.[1]

In the meantime Waller had reduced Portsmouth,[b] while Essex concentrated his force, amounting to fifteen thousand men, in the vicinity of Northampton. He received orders from the houses to rescue, by force[c] if it were necessary, the persons of the king, the prince, and the duke of York, from the hands of those desperate men by whom they were surrounded, to offer a free pardon to all who, within ten days, should return to their duty, and to forward to the king a petition that he would separate himself from his evil counsellors, and rely once more on the loyalty of his parliament. From Northampton Essex hastened to[d] Worcester to oppose the advance of the royal army.

At Nottingham the king could muster no more than six thousand men; he left Shrewsbury at the head of[e] thrice that number. By a succession of

skilful manoeuvres

[Footnote 1: Clarendon, ii. 16. Rushworth, v. 20, 21. Journals, v. 376,418.]

[Sidenote b: A.D. 1642. Oct. 22.]

[Sidenote c: A.D. 1642. Sept. 9.]

[Sidenote d: A.D. 1642. Sept. 16.]

[Sidenote e: A.D. 1642. Sept. 23.]

[Sidenote f: A.D. 1642. Oct. 12.]

he contrived to elude the vigilance of the enemy; and had advanced two days' march on the road to the metropolis before Essex became aware of his object. In London the news was received with terror. Little reliance could be placed on the courage, less on the fidelity of the trained bands; and peremptory orders were despatched to Essex, to hasten with his whole force to the protection of the capital and the parliament. That general had seen his error; he was following the king with expedition; and his vanguard entered the village of Keynton on the same evening on which the royalists halted on Edgehill, only a few miles in advance. At midnight[a] Charles held a council of war, in which it was resolved to turn upon the pursuers, and to offer them battle. Early in the morning the royal army was seen in position[b] on the summit of a range of hills, which gave them a decided superiority in case of attack; but Essex, whose artillery, with one-fourth of his men, was several miles in the rear, satisfied with having arrested the march of the enemy, quietly posted the different corps, as they arrived, on a rising ground in the Vale of the Red Horse, about half a mile in front of the village. About noon the Cavaliers grew weary of inaction; their importunity at last prevailed; and about two the king discharged a cannon with his own hand as the signal of battle. The royalists descended in good order to the foot of the hill, where their hopes were raised by the treachery of Sir

Faithful Fortescue, a parliamentary officer, who, firing his pistol into the ground, ranged himself with two troops of horse under the royal banner. Soon afterwards Prince Rupert, who commanded the cavalry on the right, charged twenty-two troops of parliamentary horse led by Sir James

[Sidenote a: A.D. 1642. Oct. 22.]

[Sidenote b: A.D. 1642. Oct. 23.]

Ramsay; broke them at the very onset; urged the pursuit two miles beyond Keynton, and finding the baggage of the enemy in the village, indulged his men for the space of an hour in the work of plunder. Had it not been for this fatal imprudence, the royalists would probably have gained a decisive victory.

During his absence the main bodies of infantry were engaged under their respective leaders, the earls of Lindsey and Essex, both of whom, dismounting, led their men into action on foot. The cool and determined courage of the Roundheads undeceived and disconcerted the Cavaliers. The royal horse on the left, a weak body under lord Wilmot, had sought protection behind a regiment of pikemen; and Sir William Balfour, the parliamentary commander, leaving a few squadrons to keep them at bay, wheeled round on the flank of the royal infantry, broke through two divisions, and made himself master of a battery of cannon. In another part of the field the king's guards, with his standard, bore down every corps that opposed them, till Essex ordered two regiments of infantry and a squadron of horse to charge them in front and flank, whilst Balfour, abandoning the guns which he had taken, burst on them from the rear. They now broke; Sir Edward Varner was slain, and the standard which he bore was taken; the earl of Lindsey received a mortal wound; and his son, the lord Willoughby, was made prisoner in the attempt to rescue his father[1]. Charles, who,

attended by his troop of pensioners, watched the fortune of the field, beheld with dismay the slaughter of his guards;

[Footnote 1: The standard was nevertheless recovered by the daring or the address of a Captain Smith, whom the king made a banneret in the field.]

and ordering the reserve to advance, placed himself at their head; but at the moment Rupert and the cavalry reappeared; and, though they had withdrawn from Keynton to avoid, the approach of Hampden with the rear of the parliamentary army, their presence restored the hopes of the royalists and damped the ardour of their opponents. A breathing-time succeeded; the firing ceased on both sides, and the adverse armies stood gazing at each other till the darkness induced them to withdraw,—the royalists to their first position on the hills, and the parliamentarians to the village of Keynton. From the conflicting statements of the parties, it is impossible to estimate their respective losses. Most writers make the number of the slain to amount to five thousand; but the clergyman of the place, who superintended the burial of the dead, reduces it to about one thousand two hundred men.[1]

Both armies claimed the honour, neither reaped the benefit, of victory. Essex, leaving the king to pursue his march, withdrew to Warwick, and thence to Coventry; Charles, having compelled the garrison[a] of Banbury to surrender, turned aside to the city of Oxford. Each commander wished for leisure to

[Footnote 1: This is the most consistent account of the battle, which I can form out of the numerous narratives in Clarendon, May, Ludlow, Heath, &c. Lord Wharton, to silence the alarm in London, on his arrival from the army, assured the two houses that the loss did not exceed three hundred men.—Journ. v. 423. The prince of Wales, about twelve years old, who was on horseback in a field under the care of Sir John Hinton, had a narrow escape,

"One of the troopers observing you," says Hinton, "came in full career towards your highness. I received his charge, and, having spent a pistol or two on each other, I dismounted him in the closing, but being armed cap-a-pie I could do no execution on him with my sword: at which instant one Mr. Matthews, a gentleman pensioner, rides in, and with a pole-axe decides the business."—MS. in my possession.]

[Sidenote a: A.D. 1642. Oct. 27.]

reorganize his army after the late battle. The two houses, though they assumed the laurels of victory, felt alarm at the proximity of the royalists, and at occasional visits from parties of cavalry. They ordered Essex to come to their protection; they[a] wrote for assistance from Scotland; they formed a new army under the earl of Warwick; they voted an address to the king; they even submitted to his refusal of receiving as one of their deputies Sir John Evelyn, whom he had previously pronounced a traitor.[1] In the meanwhile the royal army, leaving Oxford, loitered-for what reason is unknown-in the vicinity of Reading, and permitted Essex to march without molestation by the more eastern road to the capital. Kingston, Acton, and Windsor were already garrisoned[b] for the parliament; and the only open passage to London lay through the town of Brentford. Charles had reached Colnbrook in this direction, when he was[c] met by the commissioners, who prevailed on him to suspend his march. The conference lasted two days; on the second of which Essex threw a brigade,[d] consisting of three of his best regiments, into that town. Charles felt indignant at this proceeding. It was in his opinion a breach of faith; and two days[e] later, after an obstinate resistance on the part of the enemy, he gained possession of Brentford, having driven part of the garrison into the river, and taken fifteen pieces of cannon and five hundred men. The latter he ordered to be discharged, leaving it to their option either to enter among his followers or to

[Footnote 1: Journals, 431-466. On Nov. 7 the house voted the king's refusal to receive Evelyn a refusal to treat; but on the 9th ingeniously evaded the difficulty, by leaving it to the discretion of Evelyn, whether he would act or not. Of course he declined.—Ibid. 437, 439.]

[Sidenote a: A.D. 1642. Nov. 2.]

[Sidenote b: A.D. 1642. Nov. 7.]

[Sidenote c: A.D. 1642. Nov. 10.]

[Sidenote d: A.D. 1642. Nov. 11.]

[Sidenote e: A.D. 1642. Nov. 13.]

promise on oath never more to bear arms against him.[1]

This action put an end to the projected treaty. The parliament reproached the king that, while he professed the strongest repugnance to shed the blood of Englishmen, he had surprised and murdered their adherents at Brentford, unsuspecting as they were, and relying on the security of a pretended negotiation. Charles indignantly retorted the charge on his accusers. They were the real deceivers, who sought to keep him inactive in his position, till they had surrounded him with the multitude of their adherents. In effect his situation daily became more critical. His opponents had summoned forces from every quarter to London, and Essex found himself at the head of twenty-four thousand men. The two armies faced[a] each other a whole day on Turnham Green; but neither ventured to charge, and the king, understanding that the corps which, defended the bridge at Kingston had been withdrawn, retreated first to Beading, and then to Oxford. Probably he found himself too weak to cope with the superior number of his adversaries; publicly he alleged his unwillingness to oppose by a battle any further obstacle to a renewal of the treaty.[2]

The whole kingdom at this period exhibited a most melancholy spectacle. No man was suffered to remain neuter. Each county, town, and hamlet was

divided into factions, seeking the ruin. of each other. All stood upon their guard, while the most active of either

[Footnote 1: Each party published contradictory accounts. I have adhered to the documents entered in the Journals, which in my opinion show that, if there was any breach of faith in these transactions, it was on the part of the parliament, and act of the king.]

[Footnote 2: May, 179. Whitelock, 65, 66. Clarendon, ii. 76.]

[Sidenote a: A.D. 1642. Nov. 14.]

party eagerly sought the opportunity of despoiling the lands and surprising the persons of their adversaries. The two great armies, in defiance of the prohibitions of their leaders, plundered wherever they came, and their example was faithfully copied by the smaller bodies of armed men in other districts. The intercourse between distant parts of the country was interrupted; the operations of commerce were suspended; and every person possessed of property was compelled to contribute after a certain rate to the support of that cause which obtained the superiority in his neighbourhood. In Oxford and its vicinity, in the four northern counties, in Wales, Shropshire, and Worcestershire, the royalists triumphed without opposition; in the metropolis, and the adjoining counties, on the southern and eastern coast, the superiority of the parliament was equally decisive. But in many parts the adherents of both were intermixed in such different proportions, and their power and exertions were so variously affected by the occurrences of each succeeding day, that it became difficult to decide which of the two parties held the preponderance. But there were four counties, those of York, Chester, Devon, and Cornwall, in which the leaders had[a] already learned to abhor the evils of civil dissension. They met on both sides, and entered into engagements to suspend their political animosities, to aid each other in putting down the disturbers of the public peace, and to oppose the

introduction, of any armed force, without the joint consent both of the king and the parliament. Had the other counties followed the example, the war would have been ended almost as soon as it began. But this was a consummation which the patriots deprecated. They pronounced such engagements

[Sidenote a: A.D. 1642. Dec. 23.]

derogatory from the authority of parliament; they absolved their partisans from the obligations into which they had entered; and they commanded them once more to unsheath the sword in the cause of their[a] God and their country.[1]

But it soon became evident that this pacific feeling was not confined to the more distant counties. It spread rapidly through the whole kingdom; it manifested itself without disguise even in the metropolis. Men were anxious to free themselves from the forced contribution of one-twentieth part of their estates for the support of the parliamentary army[2] and the citizens could not forget the alarm which had been created by the late approach of the royal forces. Petitions for peace, though they were ungraciously received, continued to load the tables of both houses; and, as the king himself had proposed a cessation of hostilities, prudence taught the most sanguine advocates for war to accede to the wishes of the people. A negotiation was opened at Oxford. The demands of[b] the parliament amounted to fourteen articles; those of Charles were confined to six. But two only, the[c] first in each class, came into discussion. No argument[d] could induce the houses to consent that the king should name to the government of the forts and castles without their previous approbation of the persons to be appointed; and he demurred to their proposal that both armies should be disbanded, until he knew on what conditions he was to

return to his capital. They had limited the duration of the conference to twenty days; he proposed a prolongation of[e]

[Footnote 1: Journals, 535. Rushworth, v. 100. Clarendon, ii, 136, 139.]

[Footnote 2: Journals, 463, 491, 594, Commons' Journals, Dec. 13. It was imposed Nov. 29, 1642.]

[Sidenote a: A.D. 1643. Jan. 7.]

[Sidenote b: A.D. 1643. Jan. 30.]

[Sidenote c: A.D. 1643. Feb. 3.]

[Sidenote d: A.D. 1643. March 20.]

[Sidenote e: A.D. 1643. March 30.]

the term; they refused; and he offered, as his ultimatum, that, whenever he should be reinstated in the possession of his revenues, magazines, ships, and[a] forts, according to law; when all the members of parliament, with the exception of the bishops, should be restored to their seats, as they held them on the 1st of January, 1641; and when the two houses should be secure from the influence of tumultuary assemblies, which could only be effected by an adjournment to some place twenty miles distant from London, he would consent to the immediate disbanding of both armies, and would meet his parliament in person. The Commons instantly passed a vote to recall the[b] commissioners from Oxford; the Lords, though at first they dissented, were compelled to signify their concurrence; and an end was put to the treaty, and to[c] the hopes which it had inspired.[1]

During this negotiation the houses left nothing to the discretion of their commissioners, the earl of Northumberland, Pierrepont, Armin, Holland, and Whitelock. They were permitted to propose and argue; they had no power to concede.[2] Yet, while they acted in public according to the tenour of their instructions, they privately gave the king to understand that he

might probably purchase the preservation, of the church by surrendering the command of the militia,—a concession which his opponents deemed

[Footnote 1: See the whole proceedings relative to the treaty in the king's works, 325-397; the Journals of the Lords, v. 659-718; and Rushworth, v. 164-261.]

[Footnote 2: This was a most dilatory and inconvenient arrangement. Every proposal, or demand, or suggestion front the king was sent to the parliament, and its expediency debated. The houses generally disagreed. Conferences were therefore held, and amendments proposed; new discussions followed, and a week was perhaps consumed before a point of small importance could be settled.]

[Sidenote a: A.D. 1643. April 12.]

[Sidenote b: A.D. 1643. April 14.]

[Sidenote c: A.D. 1643. April 17.]

essential to their own security. At one period they indulged a strong hope of success. At parting, Charles had promised to give them satisfaction, on the following day; but during the night he was dissuaded from his purpose; and his answer in the morning proved little short of an absolute denial. Northumberland also made a secret offer of his influence to mollify the obstinacy of the patriots; but Charles, who called that nobleman the most ungrateful of men, received the proposal with displeasure, and to the importunity of his advisers coldly replied, that the service must come first and the reward might follow afterwards. Whether the parliament began to suspect the fidelity of the commissioners, and on that account recalled them, is unknown. Hyde maintains that the king protracted the negotiation to give time for the arrival of the queen, without whom he would come to no determination; but of this not a vestige appears in the private correspondence between Charles and his consort; and a sufficient reason for

the failure of the treaty may be found in the high pretensions of each party, neither of whom had been sufficiently humbled to purchase peace with the sacrifice of honour or safety.[1]

It was owing to the indefatigable exertions of Henrietta, that the king had been enabled to meet his opponents in the field. During her residence in

[Footnote 1: See Clarendon's Life, 76-80; Whitelock, 68; and the letters in the king's works, 138-140. Before Henrietta left England, he had promised her to give away no office without her consent, and not to make peace but through her mediation. Charles, however, maintained that the first regarded not offices of state, but offices of the royal household; and the second seems to have been misunderstood. As far as I can judge, it only meant that whenever he made peace, he would put her forward as mediatrix, to the end that, since she had been calumniated as being the cause of the rupture between him and his people, she might also have in the eyes of the public the merit of effecting the reconciliation.—Clarendon's Life, *ibid.*] [a]Holland she had repeatedly sent him supplies of arms and ammunition, and, what he equally wanted, of veteran officers to train and discipline his forces.[b] In February, leaving the Hague, and trusting to her good fortune, she had eluded the vigilance of Batten, the parliamentary admiral, and landed in safety in the port of Burlington, on the coast of Yorkshire.[c] Batten, enraged at his disappointment, anchored on the second night, with four ships and a pinnace, in the road, and discharged above one hundred shot at the houses on the quay, in one of which the queen was lodged.[d] Alarmed at the danger, she quitted her bed, and, "bare foot and bare leg," sought shelter till daylight behind the nearest hill. No action of the war was more bitterly condemned by the gallantry of the Cavaliers than this unmanly attack on a defenceless female, the wife of the sovereign. The earl of Newcastle hastened to Burlington, and escorted her with his army to York. To have pursued her journey to Oxford would have been to throw

herself into the arms of her opponents. She remained four months in Yorkshire, winning the hearts of the inhabitants by her affability, and quickening their loyalty by her words and example.[1]

During the late treaty every effort had been made to recruit the parliamentary army; at its expiration, Hampden, who commanded a regiment, proposed to besiege the king within the city of Oxford. But the ardour of the patriots was constantly checked by the caution of the officers who formed the council of war. Essex invested Reading; at the expiration of ten days[e]

[Footnote 1: Mercurius Belgic. Feb. 24. Michrochronicon, Feb. 24, 1642-3. Clarendon, ii. 143. According to Rushworth, Batten fired at boats which were landing ammunition on the quay.]

[Sidenote a: CHAP.I.A.D. 1643]

[Sidenote b: 1643 Feb. 16.]

[Sidenote c: 1643 Feb. 22.]

[Sidenote d: 1643 Feb. 24.]

[Sidenote e: 1643 April 27.]

it capitulated; and Hampden renewed his proposal. But the hardships of the siege had already broken the health of the soldiers; and mortality and desertion daily thinned their numbers, Essex found himself compelled to remain six weeks in his new quarters at Reading.

If the fall of that town impaired the reputation of the royalists, it added to their strength by the arrival of the four thousand men who had formed the garrison. But the want of ammunition condemned the king to the same inactivity to which sickness had reduced his adversaries. Henrietta endeavoured to supply this deficiency. In May a plentiful convoy [a] arrived from York; and Charles, before he put his forces in motion, made another

offer of accommodation. By the Lords it was received with respect; the Commons imprisoned the messenger; and Pym, in their name, impeached the queen of high treason against the parliament and kingdom.[b] The charge was met by the royalists with sneers of derision. The Lords declined the ungracious task of sitting in judgment on the wife of their sovereign; and the Commons themselves, but it was not till after the lapse of eight months, yielded to their reluctances and silently dropped the prosecution.[1]

In the lower house no man had more distinguished himself of late, by the boldness of his language, and his fearless advocacy of peace, than Edmund Waller, the poet. In conversation with his intimate friends he had frequently suggested the formation of a third party, of moderate men, who should "stand in the gap, and unite the king and the parliament." In

[Footnote 1: Journals, 104, 111, 118, 121, 362. Commons' Journals, May 23, June 21, July 3, 6, 1644, Jan. 10.]

[Sidenote a: A.D. 1643. May 20]

[Sidenote b: A.D. 1643. May 23]

this work they calculated on the co-operation of all the Lords excepting three, of a considerable number of the lower house, and of the most able among the advisers of the king at Oxford; and that they might ascertain the real opinion of the city, they agreed to portion it into districts, to make lists of the inhabitants, and to divide them into three classes,—of moderate men, of royalists, and of parliamentarians. The design had been communicated to Lord Falkland, the king's secretary; but it remained in this imperfect state, when it was revealed to Pym by the perfidy or patriotism of a servant, who had overheard the discourse of his master.[a] Waller, Tomkins his brother-in-law, and half-a-dozen others, were immediately secured; and an

annunciation was made to the two houses of "the discovery of a horrid plot to seize the city, force the parliament, and join with the royal army." [1]

The leaders of the patriots eagerly improved this opportunity to quell that spirit of pacification which had recently insinuated itself among their partisans. While the public mind was agitated by rumours respecting the bloody designs of the conspirators, while every moderate man feared that the expression of his sentiments might be taken as an evidence of his participation in the plot, they proposed a new oath and covenant to the House of Commons.[b] No one dared to object; and the members unanimously swore "never to consent to the laying down of arms, so long as the papists, in open war against the parliament, should be protected from the justice thereof, but according to their power and vocation, to assist the forces raised by the parliament against the forces

[Footnote 1: Journals, June 6.]

[Sidenote a: A.D. 1643. May 31]

[Sidenote b: A.D. 1643. June 6]

raised by the king." The Lords, the citizens, the army followed their example; and an ordinance was published that every man in his parish church should make the same vow and covenant.[1][a] As for the prisoners, instead of being sent before a court of law, they were tried by a court-martial.[b] Six were condemned to die: two suffered.[c] Waller saved his life by the most abject submission. "He seemed much smitten in conscience: he desired the help of godly ministers," and by his entreaties induced the Commons to commute his punishment into a fine of ten thousand pounds and an order to travel on the continent. To the question why the principal should be spared, when his assistants suffered, it was answered by some that a promise of life had been made to induce him to confess, by others that too much

[Footnote 1: Journals, May 31; June 6, 14, 21, 27, 29. Rushworth, v. 322-333. Whitelock, 67, 70, 105. The preamble began thus: "Whereas there hath been and now is in this kingdom a popish and traitorous plot for the subversion of the true Protestant religion, and liberty of the subject, in pursuance whereof a popish army hath been raised and is now on foot in divers parts of the kingdom," &c.—Journals, June 6. Lords' Journals, vi. 87. I am loath to charge the framers and supporters of this preamble with publishing a deliberate falsehood, for the purpose of exciting odium against the king; but I think it impossible to view their conduct in any other light. The popish plot and popish army were fictions of their own to madden the passions of their adherents. Charles, to refute the calumny, as he was about to receive the sacrament from the hands of Archbishop Ussher, suddenly rose and addressed him thus, in the hearing of the whole congregation: "My Lord, I have to the utmost of my soul prepared to become a worthy receiver; and may I so receive comfort by the blessed sacrament, as I do intend the establishment of the true reformed Protestant religion, as it stood in its beauty in the happy days of Queen Elizabeth, without any connivance at popery. I bless God that in the midst of these publick distractions I have still liberty to communicate; and may this sacrament be my damnation, if my heart do not joyn with my lipps in this protestation."—Rush. v. 346. *Connivance* was an ambiguous and therefore an ill-chosen word. He was probably sincere in the sense which *he* attached to it, but certainly forsworn in the sense in which it would be taken by his opponents.]

[Sidenote a: A.D. 1643. June 27]

[Sidenote b: A.D. 1643. June 30]

[Sidenote c: A.D. 1643. July 5]

blood had already been shed in expiation of an imaginary plot.[1]

In the meanwhile Essex, after several messages from the parliament, had removed from Reading, and fixed his head-quarters at Tame. One night Prince Rupert, making a long circuit, surprised Chinnor in the rear of the army, and killed or captured the greater part of two regiments that lay in the town.[a] In his retreat to Oxford, he was compelled to turn on his pursuers at Chalgrove; they charged with more courage than prudence, and were repulsed with considerable loss. It was in this action that the celebrated Hampden received the wound of which he died. The reputation which he had earned by his resistance to the payment of the ship-money had deservedly placed him at the head of the popular leaders. His insinuating manner, the modesty of his pretensions, and the belief of his integrity, gave to his opinions an irresistible weight in the lower house; and the courage and activity which he displayed in the army led many to lament that he did not occupy the place held by the more tardy or more cautious earl of Essex. The royalists exulted at his death as equal to a victory; the patriots lamented it as a loss which could not be repaired. Both were deceived. Revolutions are the seed-plots of talents and energy. One great leader had been withdrawn; there was no dearth of others to supply his place.[2]

[Footnote 1: After a minute investigation, I cannot persuade myself that Waller and his friends proceeded farther than I have mentioned. What they might have done, had they not been interrupted, is matter of mere conjecture. The commission of array, which their enemies sought to couple with their design, had plainly no relation to it.]

[Footnote 2: Rushworth, v. 265, 274. Whitelock, 69, 70. Clarendon, ii. 237, 261.]

[Sidenote a: A.D. 1643. June 18]

To the Root-and-branch men the rank, no less than the inactivity of Essex, afforded a legitimate ground of suspicion. In proportion as he sank in

their esteem, they were careful to extol the merits and flatter the ambition of Sir William Waller. Waller had formerly enjoyed a lucrative office under the crown, but he had been fined in the Star-chamber, and his wife was a "godly woman;" *her* zeal and his own resentment made him a patriot; he raised a troop of horse for the service, and was quickly advanced to a command. The rapidity of his movements, his daring spirit, and his contempt of military rules, were advantageously contrasted with the slow and cautious experience of Essex; and his success at Portsmouth, Winchester, Chichester, Malmesbury, and Hereford, all of which he reduced in a short time, entitled him, in the estimation of his admirers, to the quaint appellation of William the Conqueror. While the forces under Essex were suffered to languish in a state of destitution,[1] an army of eight thousand men, well clothed and appointed, was prepared for Waller. But the event proved that his abilities had been overrated. In the course of a week he fought two battles, one near Bath, with Prince Maurice,[a] the other with Lord Wilmot, near Devizes[b]: the first was obstinate but indecisive, the second bloody and disastrous. Waller hastened from the field to the capital, attributing the loss of his army, not to his own errors, but to the jealousy of Essex. His patrons did not abandon their favourite. Emulating the example of the Romans,

[Footnote 1: His army was reduced to "four thousand or five thousand men, and these much malcontented that their general and they should be misprised, and Waller immediately prized."—Baillie, i. 391. He had three thousand marching men, and three hundred sick.—Journals, vi. 160.]

[Sidenote a: A.D. 1643. July 5]

[Sidenote b: A.D. 1643. July 13]

they met the unfortunate general in triumphal procession, and the speaker of the Commons officially returned him thanks for his services to his country.[1][a]

This tone of defiance did not impose on the advocates of peace. Waller's force was annihilated; the grand army, lately removed to Kingston, had been so reduced by want and neglect, that Essex refused to give to it the name of an army; the queen had marched without opposition from Yorkshire to Oxford, bringing to her husband, who met her on Edge-hill, a powerful reinforcement of men, artillery, and stores[b]; and Prince Rupert, in the course of three days, had won the city and castle of Bristol, through the cowardice or incapacity of Nathaniel Fiennes, the governor.[2][c] The cause of the parliament seemed to totter on the brink of ruin; and the Lords, profiting of this moment of alarm, sent to the Commons six resolutions to form the basis of a new treaty. They were favourably received; and after a debate, which lasted till ten at night, it was resolved by a majority of twenty-nine to take them into consideration.[3][d]

But the pacific party had to contend with men of

[Footnote 1: Rushworth, v. 284, 285. Clarendon, ii. 278, 290. Journals, July 27. May, 201—205. His first successes were attributed to Colonel Hurry, a Scotsman, though Waller held the nominal command—Baillie, i. 351.

But Hurry, in discontent, passed over to the king, and was the planner of the expedition which led to the death of Hampden.—Clarendon, ii. 264. Baillie, i. 371.]

[Footnote 2: Fiennes, to clear himself from the imputation of cowardice, demanded a court-martial, and Prynne and Walker, who had accused him in their publications, became the prosecutors. He was found guilty, and condemned to lose his head, but obtained a pardon from Essex, the commander-in-chief.—Howell, State Trials, iv. 186-293.]

[Footnote 3: Clarendon Papers, ii. 149. The Lords had in the last month declared their readiness to treat; but the proceedings had been suspended in

consequence of a royal declaration that the houses were not free, nor their votes to be considered as the votes of parliament.—Journals, vi. 97, 103, 108.]

[Sidenote a: A.D. 1643. July 27]

[Sidenote b: A.D. 1643. July 13]

[Sidenote c: A.D. 1643. July 27]

[Sidenote d: A.D. 1643. August 5]

the most determined energy, whom no dangers could appal, no difficulties subdue. The next day was Sunday, and it was spent by them in arranging a new plan of opposition.[a] The preachers from their pulpits described peace as the infallible ruin of the city; the common council voted a petition, urging, in the most forcible terms, the continuation of the war; and placards were affixed in the streets, calling on the inhabitants to rise as one man, and prevent the triumph of the malignants.[b] The next morning Alderman Atkins carried the petition to Westminster, accompanied by thousands calling out for war, and utterings threats of vengeance against the traitors. Their cries resounded through both the houses. The Lords resolved to abstain from all public business till tranquillity was restored, but the Commons thanked the petitioners for their attachment to the cause of the country. The consideration of the resolutions was then resumed; terror had driven the more pusillanimous from the house; and on the second division the war party obtained a majority of seven.[1]

Their opponents, however, might yet have triumphed, had they, as was originally suggested, repaired to the army, and claimed the protection of the earl of Essex. But the lord Saye and Mr. Pym hastened to that nobleman and appeased his discontent with

[Footnote 1: Clarendon, ii. 320. Journals, Aug. 5, 7, Lords', vi, 171, 172. Baillie, i. 390. On the Saturday, the numbers were 94 and 65; on the

Monday 81 and 79; but the report of the tellers was disputed, and on the second division it gave 81 and 89. Two days later, between two thousand and three thousand women (the men dared not appear) presented a petition for peace, and received a civil answer; but as they did not depart, and some of them used menacing language, they were charged and dispersed by the military, with the loss of several lives.—Journals, June 9. Clarendon, iii. 321 Baillie. i. 390.]

[Sidenote a: A.D. 1643. August 6]

[Sidenote b: A.D. 1643. August 7]

excuses and promises. They offered to punish those who had libelled his character; they professed an unbounded reliance on his honour; they assured him that money, clothing, and recruits were already prepared to re-establish his army. Essex was won; and he informed his friends, that he could not conscientiously act against the parliament from which he held his commission. Seven of the lords, almost half of the upper house, immediately retired from Westminster.[1]

The victorious party proceeded with new vigour in their military preparations. Measures were taken to recruit to its full complement the grand army under Essex; and an ordinance was passed to raise a separate force of ten thousand horse for the protection of the metropolis. Kimbolton, who on the death of his father had succeeded to the title of earl of Manchester, received a commission to levy an army in the associated counties of Norfolk, Suffolk, Essex, Cambridge, Ely, and Hertford.[2] Committees were appointed to raise men and money in numerous other districts, and were invested with almost unlimited powers; for the exercise of which in the service of the parliament,

[Footnote 1: Clarendon, 323-333. Northumberland repaired to his house at Petworth; the earls of Bedford, Holland, Portland, and Clare, and the

lords Lovelace and Conway, to the king at Oxford. They were ungraciously received, and most of them returned to the parliament.]

[Footnote 2: The first association was made in the northern counties by the earl of Newcastle in favour of the king, and was afterwards imitated by the counties of Devon and Cornwall. The patriots saw the advantage to be derived from such unions, and formed several among their partisans. The members bound themselves to preserve the peace of the associated counties; if they were royalists, "against the malevolent and ambitious persons who, in the name of the two houses, had embroiled the kingdom in a civil war;" if they were parliamentarians, "against the papists and other ill-affected persons who surrounded the king." In each, regulations were adopted, fixing the number of men to be levied, armed, and trained, and the money which for that purpose was to be raised in each township.—Rushworth, v. 66, 94-97, 119, 381.]

they were made responsible to no one but the parliament itself. Sir Henry Vane, with three colleagues from the lower house, hastened to Scotland to solicit the aid of a Scottish army; and, that London might be secure from insult, a line of military communication was ordered to be drawn round the city. Every morning thousands of the inhabitants, without distinction of rank, were summoned to the task in rotation; with drums beating and colours flying they proceeded to the appointed place, and their wives and daughters attended to aid and encourage them during the term of their labour.[a] In a few days this great work, extending twelve miles in circuit, was completed, and the defence of the line, with the command of ten thousand men, was intrusted to Sir William Waller. Essex, at the repeated request of the parliament, reluctantly signed the commission, but still refused to insert in it the name of his rival. The blank was filled up by order of the House of Commons.[1]

Here, however, it is time to call the attention of the reader to the opening career of that extraordinary man, who, in the course of the next ten years, raised himself from the ignoble pursuits of a grazier to the high dignity of lord protector of the three kingdoms. Oliver Cromwell was sprung from a younger branch of the Cromwells, a family of note and antiquity in Huntingdonshire, and widely spread through that county and the whole of the Fenn district. In the more early part of his life he fell into a state of profound and prolonged melancholy; and it is plain from the few and disjointed documents which have come down to us, that his mental faculties were

[Footnote 1: May, 214. Journals, July 18, 19, 27; Aug. 3, 7, 9, 15, 26. Lords', vi. 149, 158, 175, 184.]

[Sidenote a: A.D. 1643. August.]

impaired, that he tormented himself with groundless apprehensions of impending death, on which account he was accustomed to require the attendance of his physician at the hour of midnight, and that his imagination conjured up strange fancies about the cross in the market-place at Huntingdon,[1] hallucinations which seem to have originated in the intensity of his religious feelings, for we are assured that "he had spent the days of his manhood in a dissolute course of life in good fellowship and gaming;"[2] or, as he expresses it himself, he had been "a chief, the chief of sinners, and a hater of godliness." However, it pleased "God the light to enlighten the darkness" of his spirit, and to convince him of the error and the wickedness of his ways; and from the terrors which such conviction engendered, seems to have originated that aberration of intellect, of which he was the victim during great part of two years. On his recovery he had passed from one extreme to the other, from the misgivings of despair to the joyful assurance of salvation. He now felt that he was accepted by God, a

vessel of election to work the work of God, and bound through gratitude "to put himself forth in the cause of the Lord." [3] This flattering belief, the

[Footnote 1: Warwick's Memoirs, 249. Warwick had his information from Dr. Simcott, Cromwell's physician, who pronounced him *splenetic*. Sir Theodore Mayerne was also consulted, who, in his manuscript journal for 1628, describes his patient as *valde melancholicus*.—Eliis, Orig. Letters, 2nd series, iii. 248.]

[Footnote 2: Warwick, 249.]

[Footnote 3: In 1638 he thus writes of himself to a female saint, one of his cousins: "I find that God giveth springs in a dry barren wilderness, where no water is. I live, you know where, in Meshec, which they say signifies prolonging,—in Kedar, which signifies blackness. Yet the Lord forsaketh me not, though he do prolong. Yet he will, I trust, bring me to his tabernacle, his resting place." If the reader wish to understand this Cromwellian effusion, let him consult the Psalm cxix. in the Vulgate., or cxx. in the English translation. He says to the same correspondent, "You know what my manner of life hath been. Oh! I lived in and loved darkness, and hated light. I was a chief, the chief of sinners. This is true. I hated godliness. Yet God had mercy on me. Oh, the riches of his mercy!"—Cromwell's Letters and Speeches by Carlyle, i. 121. Warwick bears testimony to the sincerity of his conversion; "for he declared he was ready to make restitution to any man who would accuse him, or whom he could accuse himself to, to have wronged."—Warwick, 249.]

fruit of his malady at Huntingdon, or of his recovery from it, accompanied him to the close of his career: it gave in his eyes the sanction of Heaven to the more questionable events in his life, and enabled him to persevere in habits of the most fervent devotion, even when he was plainly following the unholy suggestions of cruelty, and duplicity, and ambition.

It was probably to withdraw him from scenes likely to cause the prolongation or recurrence of his malady, that he was advised to direct his attention to the pursuits of agriculture. He disposed by sale of his patrimonial property in Huntingdon, and took a large grazing farm in the neighbourhood of the little town of St. Ives.[a] This was an obscure, but tranquil and soothing occupation, which he did not quit till five years later, when he migrated to Ely, on the death of his maternal uncle, who had left to him by will the lucrative situation of farmer of the tithes and of churchlands belonging to the cathedral of that city. Those stirring events followed, which led to the first civil war; Cromwell's enthusiasm rekindled, the time was come "to put himself forth in the cause of the Lord," and that cause he identified in his own mind with the cause of the country party in opposition to the sovereign and the church. The energy with which he entered into the controversies of the time attracted public notice, and the burgesses of Cambridge chose him for their representative in both the parliaments called by the king in 1640. He carried with him to the house the simplicity of dress, and the awkwardness of manner, which bespoke the country farmer; occasionally he rose to speak, and then, though his voice was harsh, his utterance confused, and his matter unpremeditated, yet he seldom failed to command respect and attention by the originality and boldness of his views, the fervour with which he maintained them, and the well-known energy and inflexibility of his character.[1] It was not, however, before the year 1642 that he took his place among the leaders of the party. Having been appointed one of the committees for the county of Cambridge and the isle of Ely, he hastened down to Cambridge, took possession of the magazine, distributed the arms among the burgesses, and prevented the colleges from sending their plate to the king at Oxford.[a] From the town he transferred his services to the district committed to his charge. No individual of suspicious or dangerous principles, no secret plan or association of the royalists, could elude his vigilance and activity. At the head of a military

force he was everywhere present, making inquiries, inflicting punishments, levying weekly the weekly assessments, impressing men, horses, and stores, and exercising with relentless severity all those repressive and vindictive powers with which the recent ordinances had armed the committees. His exertions were duly appreciated. When the parliament selected officers to command the seventy-five troops of horse, of sixty men each, in the new army under the earl of Essex,[b] farmer Cromwell received the

[Footnote 1: Warwick, 247]

[Sidenote a: A.D. 1642. August. 15.]

[Sidenote b: A.D. 1642. Sept. 14.]

commission of captain; within six months afterwards, he was raised to the higher rank of colonel, with permission to levy for himself a regiment of one thousand horse out of the trained bands in the Eastern association.[a] To the sentiment of honour, which animated the Cavaliers in the field, he resolved to oppose the energy which is inspired by religious enthusiasm. Into the ranks of his *Ironsides*—their usual designation—he admitted no one who was not a freeholder, or the son of a freeholder, and at the same time a man fearing God, a known professor of godliness, and one who would make it his duty and his pride to execute justice on the enemies of God.[1] Nor was he disappointed. The soldiers of the Lord of Hosts proved themselves a match for the soldiers of the earthly monarch. At their head the colonel, by his activity and daring, added new laurels to those which he had previously won; and parliament, as a proof of confidence, appointed him military governor of a very important post, the isle of Ely.[b] Lord Grey of Werke held at that time the command of the army in the Eastern association; but Grey was superseded by the earl of Manchester, and Colonel Cromwell speedily received the commission of lieutenant-general under that commander.[2][c]

But to return to the general narrative, which has been interrupted to introduce Cromwell to the reader,

[Footnote 1: Cromwell tells us of one of them, Walton, the son of Colonel Walton, that in life he was a precious young man fit for God, and at his death, which was caused by a wound received in battle, became a glorious saint in heaven. To die in such a cause was to the saint a "comfort great above his pain. Yet one thing hung upon his spirit. I asked him what that was. He told me, that God had not suffered him to be any more the executioner of His enemies."—Ellis, first series, iii. 299.]

[Footnote 2: See Cromwelliana, 1—7; May, 206, reprint of 1812; Lords' Journ. iv. 149; Commons', iii. 186.]

[Sidenote a: A.D. 1643. March 2.]

[Sidenote b: A.D. 1643. July 28.]

[Sidenote c: A.D. 1643. August 8.]

London was preserved from danger, not by the new lines of circumvallation, or the prowess of Waller, but through the insubordination which prevailed among the royalists. The earl, now marquess, of Newcastle, who had associated the northern counties in favour of the king, had defeated the lord Fairfax, the parliamentary general, at Atherton Moor, in Yorkshire, and retaken Gainsborough, in Lincolnshire, from the army under Cromwell. Here, however, his followers refused to accompany him any further. It was in vain that he called upon them to join the grand army in the south, and put an end at once to the war by the reduction of the capital. They had been embodied for the defence of the northern counties, and could not be induced to extend the limits of that service for which they had been originally enrolled. Hence the king, deprived of one half of his expected force, was compelled to adopt a new plan of operations. Turning his back on London, he hastened towards the Severn, and invested Gloucester, the only place of

note in the midland counties which admitted the authority of the parliament.
[a] That city was defended by Colonel Massey, a brave and determined officer, with an obstinacy equal to its importance; and Essex, at the head of twelve thousand men, undertook to raise the siege. The design was believed impracticable; but all the attempts of the royalists to impede his progress were defeated;[b] and on the twenty-sixth day the discharge of four pieces of cannon from Presbury Hills announced his arrival to the inhabitants.[c] The besiegers burnt their huts and retired;[d] and Essex, having spent a few days to recruit his men and provision the place, resumed his march in the direction of London.[e] On his approach to Newbury,

[Sidenote a: A.D. 1643. August 10.]

[Sidenote b: A.D. 1643. August 26.]

[Sidenote c: A.D. 1643. Sept. 5.]

[Sidenote d: A.D. 1643. Sept. 6.]

[Sidenote e: A.D. 1643. Sept. 19.]

he found the royal army in possession of the road before him. I shall not attempt to describe a conflict which has been rendered unintelligible by the confused and discordant narratives of different writers. The king's cavalry appears to have been more than a match for that of the enemy; but it could make no impression on the forest of pikes presented by the infantry, the greater part of which consisted of the trained bands from the capital. The battle raged till late in the evening, and both armies passed the night in the field, but in the morning the king allowed Essex to march through Newbury; and having ordered Prince Rupert to annoy the rear, retired with his infantry to Oxford. The parliamentarians claimed, and seem to have been justified in claiming, the victory; but their commander, having made his triumphal entry into the capital, solicited permission to resign his command and travel on the continent. To those who sought to dissuade him, he objected the distrust with which he had been treated, and the insult

which had been offered to him by the authority intrusted to Waller. Several expedients were suggested; but the lord general was aware of his advantage; his jealousy could not be removed by adulation or submission; and Waller, after a long struggle, was compelled to resign the command of the army intrusted with the defence of the capital.[1][a]

As soon as the parliament had recovered from the alarm occasioned by the loss of Bristol, it had found leisure to devote a part of its attention to the civil government of the kingdom. I. Serious inconveniences

[Footnote 1: Rushworth, v. 286, 290, 293. May, 220-228. Clarendon, iii, 347. Journals, Sept. 26, 28; Oct. 7, 9. Lords', vi. 218, 242, 246, 247, 347, 356.]

[Sidenote a: A.D. 1643. Oct. 9.]

had been experienced from the absence of the great seal, the application of which was held by the lawyers necessary to give validity to several descriptions of writs. Of this benefit the two houses and their adherents were deprived, while the king on his part was able to issue patents and commissions in the accustomed form. To remedy the evil, the Commons had voted a new seal;[a] the Lords demurred; but at last their consent was extorted:[b] commissioners were appointed to execute the office of lord keeper, and no fewer than five hundred writs were sealed in one day. 2. The public administration of justice had been suspended for twelve months. The king constantly adjourned the terms from Westminster to Oxford, and the two houses as constantly forbade the judges to go their circuits during the vacations. Now, however, under the authority of the new seal, the courts were opened. The commissioners sat in Chancery, and three judges, all that remained with the parliament, Bacon, Reeve, and Trevor, in those of the King's Bench, the Common Pleas, and the Exchequer. 3. The prosecution of the judges on account of their opinions in the case of the ship-money was

resumed. Of those who had been impeached, two remained, Berkeley and Trevor. The first was fined in twenty, the second in six, thousand pounds. Berkeley obtained the remission of a moiety of the fine, and both were released from the imprisonment to which they were adjudged.[1]

Ever since the beginning of the troubles, a thorough understanding had existed between the chief of the Scottish Covenanters, and the principal of the English

[Footnote 1: Lords' Journals, vi. 214, 252, 264, 301, 318. Commons' Journals, May 15; July 5; Sept. 28. Rushworth, v. 144, 145, 339, 342, 361.]

[Sidenote a: A.D. 1643. July 15.]

[Sidenote b: A.D. 1643. Oct. 11.]

reformers. Their views were similar; their object the same. The Scots had, indeed, fought and won; but they held the fruit of their victory by a doubtful tenure, as long as the fate of their "English brethren" depended on the uncertain chances of war. Both policy and religion prompted them to interfere. The triumph of the parliament would secure their own liberties; it might serve to propagate the pure worship of their kirk. This had been foreseen by the Scottish royalists, and Montrose, who by the act against the plotters was debarred from all access to the king, took advantage of the queen's debarkation at Burlington to visit her at York. He pointed out to her the probability of the Scottish Covenanters sending their army to the aid of the parliament, and offered to prevent the danger by levying in Scotland an army of ten thousand royalists. But he was opposed by his enemy the marquess of Hamilton, who deprecated the arming of Scot against Scot, and engaged on his own responsibility to preserve the peace between the Scottish people and their sovereign. His advice, prevailed; the royalists in Scotland were ordered to follow him as their leader; and, to keep him true to the royal interest, the higher title of duke was conferred upon him.[1]

If Hamilton was sincere, he had formed a false notion of his own importance. The Scottish leaders, acting as if they were independent of the sovereign, summoned a convention of estates. The estates met[a] in defiance of the king's prohibition; but, to their surprise and mortification, no commissioner had arrived from the English parliament. National jealousy, the known intolerance of the Scottish kirk, the exorbitant

[Footnote 1: Clarendon, iv. 624. Guthrie, 127.]

[Sidenote a: A.D. 1643. June 22.]

claims set up by the Scottish leaders in the late invasion, contributed to deter many from accepting their new offers of assistance;[1] and more than two months were suffered to elapse before the commissioners, Vane, Armyn, Hatcher, and Darley, with Marshall, a Presbyterian, and Nye, an Independent divine, were despatched[a] with full powers to Scotland.[2] Both the convention of the estates and the assembly of the kirk had long waited to receive them; their arrival[b] was celebrated as a day of national triumph; and the letters which they delivered from the English parliament were read with shouts of exultation and tears of joy.[3]

In the very outset of the negotiation two important difficulties occurred. The Scots professed a willingness to take up arms, but sought at the same time to assume the character of mediators and umpires, to dictate the terms of reconciliation, and to place themselves in a condition to extort the consent of the opposite parties. From these lofty pretensions they were induced to descend by the obstinacy of Vane and the persuasions of Johnston of Wariston, one of their subtlest statesmen; they submitted to act as the allies of the parliament; but required as an indispensable

[Footnote 1: "The jealousy the English have of our nation, beyond all reason, is not well taken. If Mr. Meldrum bring no satisfaction to us quickly

as to conformity of church government, it will be a great impediment in their affairs here."—Baillie, July 26, i. 372. See also Dalrymple, ii. 144.]

[Footnote 2: The Scots did not approve of this mission of the Independent ministers. "Mr. Marshall will be most welcome; but if Mr. Nye, the head of the Independents, be his fellow, we cannot take it well."—Baillie, i. 372. They both preached before the Assembly. "We heard Mr. Marshall with great contentment. Mr. Nye did not please. He touched neither in prayer or preaching the common business. All his sermon was on the common head of spiritual life, wherein he ran out above all our understandings."—Id. 388.]

[Footnote 3: Baillie, i. 379, 380. Rushworth, v. 467, 470.]

[Sidenote a: A.D. 1643. July 20.]

[Sidenote b: A.D. 1643. August 27.]

preliminary, the sanction of the kirk. It was useless to reply that this was a civil, and not a religious treaty. The Scots rejoined, that the two houses had always announced the reformation of religion as the chief of their objects; that they had repeatedly expressed their wish of "a nearer union of both churches;" and that, in their last letters to the Assembly, they had requested the members to aid them with their prayers and influence, to consult with their commissioners, and to send some Scottish ministers to join the English divines assembled at Westminster.[1] Under these circumstances, Vane and his colleagues could not refuse to admit a deputation from the Assembly, with Henderson the moderator at its head. He submitted to their consideration the form of a "solemn league and covenant" which should bind the two nations to prosecute the public incendiaries, to preserve the king's life and authority in defence of the true religion and the liberties of both kingdoms, to extirpate popery, prelacy, heresy, schism, and profaneness, and to establish a conformity of doctrine,

discipline, and church government throughout the island. This last clause alarmed the commissioners. They knew that, though the majority of the parliamentarians inclined to the Presbyterian tenets, there existed among them a numerous and most active party (and of these Vane himself was among the most distinguished) who deemed all ecclesiastical authority an invasion of the rights of conscience; and they saw that, to introduce an obligation so repugnant to the principles of the latter, would be to provoke an open rupture, and to marshal the two sects in hostile array against each other. But the zeal of the

[Footnote 1: Journals, vi. 140.]

Scottish theologians was inexorable; they refused to admit any opening to the toleration of the Independents; and it was with difficulty that they were at last persuaded to intrust the working of the article to two or three individuals of known and approved orthodoxy. By these it was presented in a new and less objectionable form, clothed in such happy ambiguity of language, as to suit the principles and views of all parties. It provided that the kirk should be preserved in its existing purity, and the church of England "be reformed according to the word of God" (which the Independents would interpret in their own sense), and "after the example of the best reformed churches," among which the Scots could not doubt that theirs was entitled to the first place. In this shape, Henderson, with an appropriate preface, laid[a] the league and covenant before the Assembly; several speakers, admitted into the secret, commended it in terms of the highest praise, and it was immediately approved, without one dissentient voice.[1]

As soon as the covenant, in its amended shape, had received the sanction of the estates, the most eloquent pens were employed to quicken the flame of enthusiasm. The people were informed,[b] in the cant language of the

time, 1. that the controversy in England was between the Lord Jesus, and the antichrist with his followers; the call was clear; the curse of Meroz would light on all who would not come to help the Lord against the mighty: 2. that both kirks and kingdoms were in imminent danger; they sailed in one bottom, dwelt in one house, and were members of one body; if either were ruined, the other could not subsist; Judah could not long continue in liberty, if

[Footnote 1: Baillie, i. 381. Clarendon, iii. 368-384.]

[Sidenote a: A.D. 1643. August 17.]

[Sidenote b: A.D. 1643. August 24.]

Israel were led away captive: and 3. that they had now a fair opportunity of advancing uniformity in discipline and worship; the English had already laid the foundation of a good building by casting out that great idol, prelacy; and it remained for the Scots to rear the edifice and in God's good time to put on the cap-stone. The clergy called on their hearers "to turn to God by fasting and prayer;" a proclamation was issued summoning all the lieges between the ages of sixteen and sixty to appear in arms; and the chief command of the forces was, at the request of the parliament, accepted by Leslie, the veteran general of the Covenanters in the last war. He had, indeed, made a solemn promise to the king, when he was created earl of Leven, never more to bear arms against him; but he now recollected that it was with the reservation, if not expressed, at least understood, of all cases in which liberty or religion might be at stake.[1]

In England the covenant, with some amendments was approved by the two houses, and ordered to be taken and subscribed by all persons in office, and generally by the whole nation. The Commons set[a] the example; the Lords, with an affectation of dignity which exposed them to some sarcastic remarks, waited till it had previously been taken by the Scots. At the same

time a league of "brotherly assistance" was negotiated, stipulating that the estates should aid the parliament with an army of twenty-one thousand men; that they should place a Scottish garrison in Berwick, and dismantle the town at the conclusion of the war;[b]

[Footnote 1: Rushworth, v. 472, 482, 492. Journals, 139, 312. Baillie, i. 390, 391. "The chief aim of it was for the propagation of our church discipline in England and Ireland."—Id. 3.]

[Sidenote a: A.D. 1643. Sept. 25.]

[Sidenote b: A.D. 1643. Nov. 29.]

and that their forces should be paid by England at the rate of thirty-one thousand pounds per month, should receive for their outfit an advance of one hundred thousand pounds, besides a reasonable recompense at the establishment of peace, and should have assigned to them as security the estates of the papists, prelates, and malignants in Nottinghamshire and the five northern counties. On the arrival of sixty thousand pounds the levies began; in a few weeks they were completed; and before the end of the year Leslie mustered his forces at Hairlaw, the appointed place of rendezvous.[1]

This formidable league, this union, cemented by interest and fanaticism, struck alarm into the breasts of the royalists. They had found it difficult to maintain their ground against the parliament alone; they felt unequal to the contest with a new and powerful enemy. But Charles stood undismayed; of a sanguine disposition, and confident in the justice of his cause, he saw no reason to despond; and, as he had long anticipated, so had he prepared to meet, this additional evil. With this view he had laboured to secure the obedience of the English army in Ireland against the adherents and emissaries of the parliament. Suspecting the fidelity of Leicester, the lord lieutenant, he contrived to detain him in England; gave to the commander-

in-chief, the earl of Ormond, who was raised to the higher rank of marquess, full authority to

[Footnote 1: Journals, Sept. 14, 21, 25; Oct. 3; Dec. 8. Lords' Journals, vi. 220-224, 243, 281, 289, 364. The amendments were the insertion of "the church of Ireland" after that of England, an explanation of the word prelacy, and the addition of a marginal note, stating, that by the expression "according to the word of God," was meant "so far as we do or shall in our consciences conceive the same according to the word of God."—Journals, Sept. 1, 2.]

dispose of commissions in the army; and appointed Sir Henry Tichborne lord justice in the place of Parsons. The commissioners sent by the two houses were compelled[a] to leave the island; and four of the counsellors, the most hostile to his designs, were imprisoned[b] under a charge of high treason.[1]

So many reinforcements had successively been poured into Ireland, both from Scotland and England, that the army which opposed the insurgents was at length raised to fifty thousand men;[2] but of these the Scots seemed to attend to their private interests more than the advancement of the common cause; and the English were gradually reduced in number by want, and desertion, and the casualties of war. They won, indeed, several battles; they burnt and demolished many villages and towns; but the evil of devastation recoiled upon themselves, and they began to feel the horrors of famine in the midst of the desert which they had made. Their applications for relief were neglected by the parliament, which had converted to its own use a great part of the money raised for the service of Ireland, and felt little inclination to support an army attached to the royal cause. The officers remonstrated in free though respectful language, and the failure of their

hopes embittered their discontent, and attached them more closely to the sovereign.[3]

In the meanwhile, the Catholics, by the establishment of a federative government, had consolidated their power, and given an uniform direction to their efforts. It was the care of their leaders to copy the example given by the Scots during the successful war

[Footnote 1: Carte's Ormond, i. 421, 441; iii. 76, 125, 135.]

[Footnote 2: Journals, v. 226.]

[Footnote 3: Clarendon, iii. 415-418, 424. Carte's Ormond, iii. 155, 162, 164.]

[Sidenote a: A.D. 1643. April 3.]

[Sidenote b: A.D. 1643. August 1.]

of the Covenant. Like them they professed a sincere attachment to the person, a profound respect for the legitimate authority of the monarch; but like them they claimed the right of resisting oppression, and of employing force in defence of their religion and liberties. At their request, and in imitation of the general assembly of the Scottish kirk, a synod of Catholic prelates and divines was convened at Kilkenny; a statement[a] of the grievances which led the insurgents to take up arms was placed before them; and they decided that the grounds were sufficient, and the war was lawful, provided it were not conducted through motives of personal interest or hatred, nor disgraced by acts of unnecessary cruelty. An oath and covenant was ordered to be taken, binding the subscribers to protect, at the risk of their lives and fortunes, the freedom of the Catholic worship, the person, heirs, and rights of the sovereign, and the lawful immunities and liberties of the kingdom of Ireland, against all usurpers and invaders

whomsoever; and excommunication was pronounced against all Catholics who should abandon the covenant or assist their enemies, against all who should forcibly detain in their possession the goods of English or Irish Catholics, or of Irish Protestants not adversaries to the cause, and against all who should take advantage of the war, to murder, wound, rob, or despoil others. By common consent a supreme council of twenty-four members was chosen, with Lord Mountgarret as president; and a day was appointed for a national assembly, which, without the name, should assume the form and exercise the rights of a parliament.[1]

[Footnote 1: Rushworth, v. 516. *Vindiciae Cath. Hib.* 4-7. This work has often been attributed to Sir Rich. Belling, but Walsh (Pref. to *Hist. of Remonstrance*, 45) says that the real author was Dr. Callaghan, presented by the supreme council to the see of Waterford.]

[Sidenote a: A.D. 1642. May 10.]

This assembly gave stability to the plan of government devised by the leaders. The authority of the statute law was acknowledged, and for its administration a council was established[a] in each county. From the judgment of this tribunal there lay an appeal to the council of the province, which in its turn acknowledged the superior jurisdiction of "the supreme council of the confederated Catholics in Ireland." For the conduct of the war four generals were appointed, one to lead the forces of each province, Owen O'Neil in Ulster, Preston in Leinster, Barry Garret in Munster, and John Burke in Connaught, all of them officers of experience and merit, who had relinquished their commands in the armies of foreign princes, to offer their services to their countrymen. Aware that these regulations amounted to an assumption of the sovereign authority, they were careful to convey to the king new assurances of their devotion to his person, and to state to him reasons in justification of their conduct. Their former messengers, though

Protestants of rank and acknowledged loyalty, had been arrested, imprisoned, and, in one instance at least, tortured by order of their enemies. They now adopted a more secure channel of communication, and transmitted their petitions through the hands of the commander-in-chief. In these the supreme council detailed a long list of grievances which they prayed might be redressed. They repelled with warmth the imputation of disloyalty or rebellion. If they had taken up arms, they had been compelled by a succession of injuries beyond human endurance, of injuries in their religion, in their

[Sidenote a: A.D. 1642. Oct. 1.]

honour and estates, and in the liberties of their country. *Their* enemies were the enemies of the king.

The men who had sworn to extirpate them from their native soil were the same who sought to deprive *him* of his crown. They therefore conjured him to summon a new parliament in Ireland, to allow them the free exercise of that religion which they had inherited from their fathers, and to confirm to Irishmen their national rights, as he had already done to his subjects of England and Scotland.[1]

The very first of these petitions, praying for a cessation of arms, had suggested a new line of policy to the king.[2] He privately informed the marquess of Ormond of his wish to bring over a portion of his Irish army that it might be employed in his service in England; required him for that purpose to conclude[a] an armistice with the insurgents, and sent to him instructions for the regulation of his conduct. This despatch was secret; it was followed by a public warrant; and that was succeeded by a peremptory command. But much occurred to retard the object, and irritate the impatience of the monarch. Ormond, for his own security, and the service of his sovereign, deemed it politic to assume a tone of superiority, and to reject

most of the demands of the confederates, who, he saw, were already divided into parties, and influenced by opposite counsels. The ancient Irish and the clergy, whose efforts were directed by Scaramp, a papal envoy, warmly opposed the project. Their enemies, they observed, had been reduced to extreme distress; their victorious army under Preston made daily inroads to the very gates of the capital. Why should they descend from the vantage-ground which they had

[Footnote 1: Carte, iii. 110, 111, 136.]

[Footnote 2: Carte, iii. 90.]

[Sidenote a: A.D. 1643. April 23.]

gained? why, without a motive, resign the prize when it was brought within their reach? It was not easy to answer their arguments; but the lords of the pale, attached through habit to the English government, anxiously longed for an armistice as the preparatory step to a peace. Their exertions prevailed. A cessation of arms was concluded[a] for twelve months; and the confederates, to the surprise of their enemies, consented to contribute towards the support of the royal army the sum of fifteen thousand pounds in money, and the value of fifteen thousand pounds in provisions.[1]

At the same time Charles had recourse to other expedients, from two of which he promised himself considerable benefit, 1. It had been the policy of the cardinal Richelieu to foment the troubles in England as he had previously done in Scotland; and his intention was faithfully fulfilled by the French ambassador Senneterre. But in the course of the last year both Richelieu and Louis XIII. died; the regency, during the minority of the young king, devolved on Anne of Austria, the queen-mother; and that princess had always professed a warm attachment for her sister-in-law, Henrietta Maria. Senneterre was superseded

[Footnote 1: Rushworth, v. 548. Carte, ii. App. 1; iii. 117, 131, 159, 160, 166, 168, 172, 174. No one, I think, who has perused all the documents, can doubt that the armistice was necessary for the preservation of the army in Ireland. But its real object did not escape the notice of the two houses, who voted it "destructive to the Protestant religion, dishonourable to the English nation, and prejudicial to the interests of the three kingdoms;" and, to inflame the passions of their partisans, published a declaration, in which, with their usual adherence to truth, they assert that the cessation was made at a time when "the famine among the Irish had made them, unnatural and cannibal-like, eat and feed one upon another;" that it had been devised and carried on by popish instruments, and was designed for the better introduction of popery, and the extirpation of the Protestant religion.—Journals, vi. 238, 289.]

[Sidenote a: A.D. 1643. Sept. 15.]

by the count of Harcourt, a prince of the house of Lorrain, with the title of ambassador extraordinary. The parliament received him with respect in London, and permitted him to proceed to Oxford. Charles, whose circumstances would not allow him to spend his time in diplomatic finesse, immediately[a] demanded a loan of money, an auxiliary army, and a declaration against his rebellious subjects. But these were things which the ambassador had no power to grant. He escaped[b] with difficulty from the importunity of the king, and returned to the capital to negotiate with the parliament. There, offering himself in quality of mediator, he requested[c] to know the real grounds of the existing war; but his hope of success was damped by this cold and laconic answer, that, when he had any proposal to submit in the name of the French king, the houses would be ready to vindicate their conduct. Soon afterwards[d] the despatches from his court were intercepted and opened; among them was discovered a letter from Lord Goring to the queen; and its contents disclosed that Harcourt had been

selected on her nomination; that he was ordered to receive his instructions from her and the king; and that Goring was soliciting succour from the French court. This information, with an account of the manner in which it had been obtained, was communicated to the ambassador, who immediately[e] demanded passports and left the kingdom.[1]

2. Experience had proved to Charles that the very name of parliament possessed a powerful influence over the minds of the lower classes in favour of his adversaries.

[Footnote 1: Clarendon, iii. 398-403. Journals, vi. 245, 302, 305, 309, 375, 379, 416. Commons, Sept. 14; Oct. 11; Nov. 15, 22; Jan. 10, 12; Feb. 12.]

[Sidenote a: A.D. 1643 Oct. 18.]

[Sidenote b: A.D. 1643 Nov. 15.]

[Sidenote c: A.D. 1643 Nov. 22.]

[Sidenote d: A.D. 1644 Jan. 10.]

[Sidenote e: A.D. 1644 Feb. 12.]

To dispel the charm, he resolved to oppose the loyal members to those who remained at Westminster, and summoned by proclamation both houses to meet him at Oxford on the twenty-second of January in the[a] succeeding year. Forty-three peers and one hundred and eighteen commoners obeyed; [1] the usual forms of parliament were observed, and the king opened the session with a gracious speech, in which he deplored[b] the calamities of the kingdom, desired them to bear witness to his pacific disposition, and promised them all the freedom and privileges belonging to such assemblies. Their first measure was a letter subscribed by all the members of both houses, and directed to the earl of Essex, requesting him to convey to those "by whom he was trusted," their earnest desire that commissioners might be appointed[c] on both sides to treat of an accommodation. Essex, having

received instructions, replied that he could not deliver a letter which, neither in its address nor in its contents, acknowledged the authority of the parliament. Charles himself was next brought forward.[d] He directed his letter to "the lords and commons of parliament assembled at Westminster," and requested, "by the advice of the lords and commons of parliament assembled at Oxford," the appointment

[Footnote 1: If we may believe Whitelock (80), when the two houses at Westminster were called over (Jan. 30), there were two hundred and eighty members present, and one hundred employed on different services. But I suspect some error in the numbers, as the list of those who took the covenant amounts only to two hundred and twenty names, even including such as took it after that day. (Compare Rushworth, v. 480, with the Journals.) The lords were twenty-two present, seventy-four absent, of whom eleven were excused.—Journals, vi. 387. The two houses at Oxford published also their lists of the members, making the commons amount to one hundred and seventy-five, the lords to eighty-three. But of the latter several had been created since the commencement of the war.]

[Sidenote a: A.D. 1644. Jan. 22.]

[Sidenote b: A.D. 1644. Jan. 29.]

[Sidenote c: A.D. 1644. Jan. 30.]

[Sidenote d: A.D. 1644. March. 3.]

of commissioners to settle the distractions of the kingdom, and particularly the manner "how all the members of both houses might meet in full and free convention of parliament, to consult and treat upon such things as might conduce to the maintenance of the true Protestant religion, with due consideration to the just ease of tender consciences, to the settling of the rights of the crown and of parliament, the laws of the land, and the liberties and property of the subject." This message the two houses

considered an insult,[a] because it implied that they were not a full and free convention of parliament. In their answer they called on the king to join them at Westminster; and in a public declaration denounced the proceeding as "a popish and Jesuitical practice to allure them by the specious pretence of peace to disavow their own authority, and resign themselves, their religion, laws, and liberties, to the power of idolatry, superstition, and slavery." [1] In opposition, the houses at Oxford declared that the Scots had broken the act of pacification, that all English subjects who aided them should be deemed traitors and enemies of the state, and that the lords and commons

[Footnote 1: Journals, vi. 451, 459. The reader will notice in the king's letter an allusion to religious toleration ("with due consideration to the ease of tender consciences"), the first which had yet been made by authority, and which a few years before would have scandalized the members of the church of England as much as it did now the Presbyterians and Scots. But policy had taught that which reason could not. It was now thrown out as a bait to the Independents, whose apprehensions of persecution were aggravated by the intolerance of their Scottish allies, and who were on that account suspected of having already made some secret overtures to the court. "Bristol, under his hand, gives them a full assurance of so full a liberty of their conscience as they could wish, inveighing withal against the Scots' cruel invasion, and the tyranny of our presbytery, equal to the Spanish inquisition."—Baillie, i. 428.]

[Sidenote a: A.D. 1644. March 9.]

remaining at Westminster, who had given their consent to the coming in of the Scots, or the raising of forces under the earl of Essex, or the making and using of a new great seal, had committed high treason, and ought to be proceeded against as traitors to the king and kingdom.[1] Thus again

vanished the prospect of peace; and both parties, with additional exasperation of mind, and keener desires of revenge, resolved once more to stake their hope of safety on the uncertain fortune of war.

But the leaders at Westminster found it necessary to silence the murmurs of many among their own adherents, whose anxiety for the restoration of peace led them to attribute interested motives to the advocates of war. On the first appearance of a rupture, a committee of safety had been appointed, consisting of five lords and ten commoners, whose office it was to perform the duties of the executive authority, subject to the approbation and authority of the houses; now that the Scots had agreed to join in the war, this committee, after a long resistance on the part of the Lords, was dissolved,[a] and another established in its place, under the name of the committee of the two kingdoms, composed of a few members from each house, and of certain commissioners from the estates of Scotland.[2] On this new body the Peers looked with an eye of jealousy, and, when the Commons, in consequence of unfavourable reports, referred to it the task of "preparing some grounds for settling a just and safe peace in all the king's dominions," they objected not

[Footnote 1: Clarendon, iii. 440-454. Journals, 399, 404, 451, 459, 484, 485; Dec. 30; Jan. 16, 30; March 6, 11. Rushworth, v. 559-575, 582-602.]

[Footnote 2: Journals of Commons, Jan. 30; Feb. 7, 10, 12, 16; of Lords, Feb. 12, 16.]

[Sidenote a: A.D. 1644. Feb. 16.]

to the thing, but to the persons, and appointed for the same purpose a different committee. The struggle lasted six weeks: but the influence of the upper house had diminished with the number of its members, and the Lords were compelled to submit,[a] under the cover of an unimportant amendment

to maintain their own honour. The propositions now[b] brought forward as the basis of a reconciliation were in substance the following: that the covenant with the obligation of taking it, the reformation of religion according to its provisions, and the utter abolition of episcopacy, should be confirmed by act of parliament; that the cessation of war in Ireland should be declared void by the same authority; that a new oath should be framed for the discovery of Catholics; that the penalties of recusancy should be strictly enforced; that the children of Catholics should be educated Protestants; that certain English Protestants by name, all papists, who had borne arms against the parliament, and all Irish rebels, whether Catholics or Protestants, who had brought aid to the royal army, should be excepted from the general pardon; that the debts contracted by the parliament should be paid out of the estates of delinquents; and that the commanders of the forces by land and sea, the great officers of state, the deputy of Ireland and the judges, should be named by the parliament, or the commissioners of parliament, to hold their places during their good behaviour. From the tone of these propositions it was evident that the differences between the parties had become wider than before, and that peace depended on the subjugation of the one by the superior force or the better fortune of the other.[1]

[Footnote 1: Journals, March 15, 20, 23, 29, 30; April 3, 5, 13, 16. On the question whether they should treat in union with the Scots, the Commons divided sixty-four against sixty-four: but the noes obtained the casting vote of the speaker.—Baillie, i. 446. See also the Journals of the Lords, vi. 473, 483, 491, 501, 514, 519, 527, 531. Such, indeed, was the dissension among them, that Baillie says they would have accepted the first proposal from the houses at Oxford, had not the news that the Scots had passed the Tweed arrived a few hours before. This gave the ascendancy to the friends of war.—Baillie, i. 429, 430.]

[Sidenote a: A.D. 1644. April 25.]

[Sidenote b: A.D. 1644. April 29.]

Here the reader may pause, and, before he proceeds to the events of the next campaign, may take a view of the different financial expedients adopted by the contending parties. Want of money was an evil which pressed equally on both; but it was more easily borne by the patriots, who possessed an abundant resource in the riches of the capital, and were less restrained in their demands by considerations of delicacy or justice. 1. They were able on sudden emergencies to raise considerable supplies by loan from the merchants of the city, who seldom dared to refuse, or, if they did, were compelled to yield by menaces of dstraint and imprisonment. For all such advances interest was promised at the usual rate of eight per cent., and "the public faith was pledged for the repayment of the capital." 2. When the parliament ordered their first levy of soldiers, many of their partisans subscribed considerable sums in money, or plate, or arms, or provisions. But it was soon asked, why the burthen should fall exclusively on the well-affected; and the houses improved the hint to ordain that all non-subscribers, both in the city and in the country, should be compelled to contribute the twentieth part of their estates towards the support of the common cause. 3. Still the wants of the army daily increased, and, as a temporary resource, an order was made that each county should provide for the subsistence of the men whom it had furnished; 4. and this was followed by a more permanent expedient, a weekly assessment of ten thousand pounds on the city of London, and of twenty-four thousand pounds on the rest of the kingdom, to be levied by county-rates after the manner of subsidies. 5. In addition, the estates both real and personal of all delinquents, that is, of all individuals who had borne arms for the king, or supplied him with money, or in any manner, or under any pretence, had opposed the parliament, were sequestrated from the owners, and placed under the management of certain commissioners empowered to receive the

rents, to seize the moneys and goods, to sue for debts, and to pay the proceeds into the treasury. 6. In the next place came the excise, a branch of taxation of exotic origin, and hitherto unknown in the kingdom. To it many objections were made; but the ample and constant supply which it promised insured its adoption; and after a succession of debates and conferences, which occupied the houses during three months, the new duties, which were in most instances to be paid by the first purchaser, were imposed both on the articles already subject to the customs, and on a numerous class of commodities of indigenous growth or manufacture.[1] Lastly, in aid of these several sources of revenue, the houses did not refuse another of a more singular description. It was customary for many of the patriots to observe a weekly fast for the success of their cause; and, that their purses might not profit by the exercise of their piety,

[Footnote 1: It should be observed that the excise in its very infancy extended to strong beer, ale, cider, perry, wine, oil, figs, sugar, raisins, pepper, salt, silk, tobacco, soap, strong waters, and even flesh meat, whether it were exposed for sale in the market, or killed by private families for their own consumption.—Journals, vi. 372.] they were careful to pay into the treasury the price of the meal from which they had abstained. If others would not fast, it was at least possible to make them pay; and commissioners were appointed by ordinance to go through the city, to rate every housekeeper at the price of one meal for his family, and to collect the money on every Tuesday during the next six months. By these expedients the two houses contrived to carry on the war, though their pecuniary embarrassments were continually multiplied by the growing accumulation of their debts, and the unavoidable increase of their expenditure.[1] With respect to the king, his first resource was in the sale of his plate and jewels, his next in the generous devotion of his adherents, many of whom served him during the whole war at their own cost, and, rather than become a burthen to their sovereign, mortgaged their last acre, and left themselves

and their families without the means of future subsistence. As soon as he had set up his standard, he solicited loans from his friends, pledging his word to requite their promptitude, and allotting certain portions of the crown lands for their repayment—a very precarious security as long as the issue of the contest should remain uncertain. But the appeal was not made in vain. Many advanced considerable sums without reserving to themselves any claim to remuneration, and others lent so freely and abundantly, that this resource was productive beyond his most sanguine expectations. Yet, before the commencement of the third campaign,

[Footnote 1: Journals, v. 460, 466, 482; vi. 108, 196, 209, 224, 248, 250, 272. Commons' Journals, Nov. 26, Dec. 8, 1642; Feb. 23, Sept. 1643; March 26, 1644. Rushworth, v. 71, 150, 209, 313, 748. It should be recollected that, according to the devotion of the time, "a fast required a total abstinence from all food, till the fast was ended."—Directory for the Publique Worship, p. 32.]

he was compelled to consult his parliament at Oxford. By its advice he issued privy seals, which raised one hundred thousand pounds, and, in imitation of his adversaries, established the excise, which brought him in a constant, though not very copious supply. In addition, his garrisons supported themselves by weekly contributions from the neighbouring townships, and the counties which had associated in his favour willingly furnished pay and subsistence to their own forces. Yet, after all, it was manifest that he possessed not the same facilities of raising money with his adversaries, and that he must ultimately succumb through poverty alone, unless he could bring the struggle to a speedy termination.[1]

For this purpose both parties had made every exertion, and both Irishmen and Scotsmen had been called into England to fight the battles of the king and the parliament. The severity of the winter afforded no respite from the

operations of war. Five Irish regiments, the first fruits of the cessation in Ireland, arrived[a] at Mostyn in Flintshire; their reputation, more than their number, unnerved the prowess of their enemies; no force ventured to oppose them in the field; and, as they advanced, every post was abandoned or surrendered. At length the garrison of Nantwich arrested[b] their progress; and whilst they were occupied with the siege, Sir Thomas Fairfax approached with a superior force from Yorkshire. For two hours[c] the Anglo-Irish, under Lord Byron, maintained an obstinate resistance against the assailants from without, and the garrison from within the town; but in a moment of despair one thousand six hundred men in the works threw down their arms,

[Footnote: 1 Rushworth, v. 580, 601. Clarendon, ii. 87, 453.]

[Sidenote a: A.D. 1643. November.]

[Sidenote b: A.D. 1644. Jan. 15.]

[Sidenote c: A.D. 1644. Jan. 25.]

and, with a few exceptions, entered the ranks of their adversaries. Among the names of the officers taken, occurs that of the celebrated Colonel Monk, who was afterwards released from the Tower to act a more brilliant part, first in the service of the Commonwealth, and then in the re-establishment of the throne.[1]

A few days before this victory, the Scots had passed the Tweed.[a] The notion that they were engaged in a holy crusade for the reformation of religion made them despise every difficulty; and, though the weather was tempestuous, though the snow lay deep on the ground, their enthusiasm carried them forward in a mass which the royalists dared not oppose. Their leader sought to surprise Newcastle; he was disappointed by the promptitude of the marquess of Newcastle, who, on the preceding day,[b] had thrown himself into the town; and famine compelled the enemy, after a

siege of three weeks, to abandon the attempt.[c] Marching up the left bank of the Tyne,[d] they crossed the river at Bywell,[e] and hastening by Ebchester to Sunderland, took possession of that port to open a communication by sea with their own country. The marquess, having assembled his army, offered them battle, and, when they refused to fight, confined them for five weeks within their own quarters. In proportion as their advance into England had elevated the hopes of their friends in the capital, their subsequent inactivity provoked surprise and complaints. But Lord Fairfax, having been joined by his victorious son from Cheshire, dispersed the royalists at Leeds,[f] under Colonel Bellasis, the son of Lord Falconberg; and the danger of being enclosed between two armies induced the marquess of Newcastle to retire[g] from Durham

[Footnote 1: Rush. v. 299, 303. Fairfax, 434, ed. of Maseres.]

[Sidenote a: A.D. 1644. Jan. 16.]

[Sidenote b: A.D. 1644. Feb. 2.]

[Sidenote c: A.D. 1644. Feb. 28.]

[Sidenote d: A.D. 1644. March 2.]

[Sidenote e: A.D. 1644. March 4.]

[Sidenote f: A.D. 1644. April 11.]

[Sidenote g: A.D. 1644. April 23.]

to York. He was quickly followed by the Scots; they were joined by Fairfax, and the combined army sat down before the city. Newcastle at first despised their attempts; but the arrival[a] of fourteen thousand parliamentarians, under the earl of Manchester, convinced him of his danger, and he earnestly solicited[b] succour from the king.[1]

But, instead of proceeding with the military transactions in the north, it will here be necessary to advert to those which had taken place in other parts of the kingdom. In the counties on the southern coast several actions

had been fought, of which, the success was various, and the result unimportant. Every eye fixed itself on the two grand armies in the vicinity of Oxford and London. The parliament had professed a resolution to stake the fortune of the cause on one great and decisive battle; and, with this view, every effort had been made to raise the forces of Essex and Waller to the amount of twenty thousand men. These generals marched in two separate corps, with the hope of enclosing the king, or of besieging him in Oxford.[2] Aware of his inferiority, Charles, by a skilful manoeuvre,

[Footnote 1: Rushworth, v. 222. Baillie, ii. 1, 6, 10, 28, 32. Journals, 522.]

[Footnote 2: When Essex left London he requested the assembly of divines to keep a fast for his success. The reader may learn from Baillie how it was celebrated. "We spent from nine to five graciously. After Dr. Twisse had begun with a brief prayer, Mr. Marshall prayed large two hours, most divinely confessing the sins of the members of the assembly in a wonderful, pathetick, and prudent way. After Mr. Arrowsmith preached an hour, then a psalm; thereafter Mr. Vines prayed near two hours, and Mr. Palmer preached an hour, and Mr. Seaman prayed near two hours, then a psalm; after Mr. Henderson brought them to a sweet conference of the heat confessed in the assembly, and other seen faults to be remedied, and the conveniency to preach against all sects, especially Anabaptists and Antinomians. Dr. Twisse closed with a short prayer and blessing. God was so evidently in all this exercise, that we expect certainly a blessing."—Baillie, ii. 18, 19.]

[Sidenote a: A.D. 1644. April 20.]

[Sidenote b: A.D. 1644. June 3.]

passed with seven thousand men between the hostile divisions, and arrived in safety at Worcester.[a] The jealousy of the commanders did not

allow them to act in concert. Essex directed his march into Dorsetshire;^[b] Waller took on himself the task of pursuing the fugitive monarch. Charles again deceived him. He pretended to advance along the right bank of the Severn from Worcester to Shrewsbury;^[c] and when Waller, to prevent him, hastened from Broomsgrove to take possession of that town, the king turned at Bewdley, retraced his steps to Oxford,^[d] and, recruiting his army, beat up the enemy's quarters in Buckinghamshire. In two days Waller had returned to the Charwell, which separated the two armies; but an unsuccessful action at Copredy Bridge^[e] checked his impetuosity, and Charles, improving the advantage to repass the river, marched to Evesham in pursuit of Essex. Waller did not follow; his forces, by fatigue, desertion, and his late loss, had been reduced from eight thousand to four thousand men, and the committee of the two kingdoms recalled their favourite general from his tedious and unavailing pursuit.^[1]

During these marches and counter-marches, in which the king had no other object than to escape from his pursuers, in the hope that some fortunate occurrence might turn the scale in his favour, he received the despatch already mentioned from the marquess of Newcastle. The ill-fated prince instantly saw the danger which threatened him. The fall of York would deprive him of the northern counties, and the subsequent junction of the besieging army with his opponents in the south would constitute a force

[Footnote 1: Rushworth, v. 670-676. Clarendon, iv. 487-493, 497-502. Baillie, ii. 38.]

[Sidenote a: A.D. 1644. June 3.]

[Sidenote b: A.D. 1644. June 6.]

[Sidenote c: A.D. 1644. June 15.]

[Sidenote d: A.D. 1644. June 20.]

[Sidenote e: A.D. 1644. June 29.]

against which it would be useless to struggle. His only resource was in the courage and activity of Prince Rupert. He ordered[a] that commander to collect all the force in his power, to hasten into Yorkshire, to fight the enemy, and to keep in mind that two things were necessary for the preservation of the crown,—both the relief of the city, and the defeat of the combined army.[1]

Rupert, early in the spring, had marched from his quarters at Shrewsbury, surprised the parliamentary army before Newark,[b] and after a sharp action, compelled it[c] to capitulate. He was now employed in Cheshire and Lancashire, where he had taken Stockport, Bolton, and Liverpool, and had raised[d] the siege of Latham House, after it had been gallantly defended during eighteen weeks by the resolution of the countess of Derby. On the receipt of the royal command, he took with him a portion of his own men, and some regiments lately arrived from Ireland; reinforcements poured in on his march, and on his approach the combined army deemed it prudent to abandon the works before the city. He was received[e] with acclamations of joy; but left York the next day[f] to fight the bloody and decisive battle of Marston Moor.[2] Both armies, in accordance with the military tactics of the age, were drawn up in line, the infantry in three divisions, with strong bodies of cavalry on each flank. In force they were nearly equal, amounting to twenty-three or twenty-five thousand men; but there was this peculiarity in the arrangement of the parliamentarians, that in each division the

[Footnote 1: See his letter in Evelyn's *Memoirs*, ii. App. 88. It completely exculpates Rupert from the charges of obstinacy and rashness in having fought the subsequent battle of Marston Moor.]

[Footnote 2: Rushworth, v. 307, 623, 631.]

[Sidenote a: A.D. 1644. June 14.]

[Sidenote b: A.D. 1644. March 21.]

[Sidenote c: A.D. 1644. May 25.]

[Sidenote d: A.D. 1644. June 11.]

[Sidenote e: A.D. 1644. July 1.]

[Sidenote f: A.D. 1644. July 2.]

English and the Scots were intermixed, to preclude all occasion of jealousy or dispute. It was now five in the afternoon, and for two hours a solemn pause ensued, each eyeing the other in the silence of suspense, with nothing to separate them but a narrow ditch or rivulet. At seven the signal was given, and Rupert, at the head of the royal cavalry on the right, charged with his usual impetuosity, and with the usual result. He bore down all before him, but continued the chase for some miles, and thus, by his absence from the field, suffered the victory to slip out of his hands.[1]

At the same time the royal infantry, under Goring, Lucas, and Porter, had charged their opponents with equal intrepidity and equal success. The line of the confederates was pierced in several points; and their generals, Manchester, Leven, and Fairfax, convinced that the day was lost, fled in different directions. By their flight the chief command devolved upon Cromwell, who improved the opportunity to win for himself the laurels of victory. With "his ironsides" and the Scottish horse he had driven the royal cavalry, under the earl of Newcastle, from their position on the left. Ordering a few squadrons to observe and harass the fugitives, he wheeled round on the flank of the royal infantry, and found them in separate bodies, and in disorder, indulging in the confidence and license of victory. Regiment after regiment was attacked and dispersed; but the "white coats," a body of veterans raised by Lord Newcastle, formed in a circle; and, whilst their pikemen kept the cavalry at bay, their

[Footnote 1: Sir Thomas Fairfax says that at first he put to flight part of the loyal cavalry, and pursued them on the road to York. On his return he

found that the rest of his wing had been routed by the prince.—Fairfax, 438.]

musqueteers poured repeated volleys into the ranks of the enemy. Had these brave men been supported by any other corps, the battle might have been restored; but, as soon as their ammunition was spent, an opening was made, and the white coats perished, every man falling on the spot on which he had fought.

Thus ended the battle of Marston Moor. It was not long, indeed, before the royal cavalry, amounting to three thousand men, made their appearance returning from the pursuit. But the aspect of the field struck dismay into the heart of Rupert. His thoughtless impetuosity was now exchanged for an excess of caution; and after a few skirmishes he withdrew. Cromwell spent the night on the spot; but it was to him a night of suspense and anxiety. His troopers were exhausted with the fatigue of the day; the infantry was dispersed, and without orders; and he expected every moment a nocturnal attack from Rupert, who had it in his power to collect a sufficient force from the several corps of royalists which had suffered little in the battle. But the morning brought him the pleasing intelligence that the prince had hastened by a circuitous route to York. The immediate fruit of the victory were fifteen hundred prisoners and the whole train of artillery. The several loss of the two parties is unknown; those who buried the slain numbered the dead bodies at four thousand one hundred and fifty.[1]

This disastrous battle extinguished the power of the

[Footnote 1: For this battle see Rushworth, v. 632; Thurloe, i. 39; Clarendon, iv. 503; Baillie, II, 36, 40; Whitelock, 89; *Memorie of the Somervilles*, Edin. 1815. Cromwell sent messengers from the field to recall the three generals who had fled. Leven was found in bed at Leeds about

noon; and having read the despatch, struck his breast, exclaiming, "I would to God I had died upon the place."—Ibid.; also Turner, *Memoirs*, 38.]

royalists in the northern counties. The prince and the marquess had long cherished a deeply-rooted antipathy to each other. It had displayed itself in a consultation respecting the expediency of fighting; it was not probable that it would be appeased by their defeat. They separated the next morning; Rupert, hastening to quit a place where he had lost so gallant an army, returned to his former command in the western counties; Newcastle, whether he despaired of the royal cause, or was actuated by a sense of injurious treatment, taking with him the lords Falconberg and Widington, sought an asylum on the continent. York, abandoned to its fate, opened its gates to the enemy, on condition that the citizens should not be molested, and that the garrison should retire to Skipton. The combined army immediately separated by order of the committee of both kingdoms. Manchester returned into Nottinghamshire, Fairfax remained in York, and the Scots under Leven retracing their steps, closed the campaign with the reduction of Newcastle. *They* had no objection to pass the winter in the neighbourhood of their own country; the parliament felt no wish to see them nearer to the English capital.[1]

In the mean time Essex, impatient of the control exercised by that committee, ventured to act in opposition to its orders; and the two houses, though they reprimanded him for his disobedience, allowed him to pursue the plan which he had formed of dissolving with his army the association of royalists in Somersetshire, Devonshire, and Cornwall.[a] He relieved Lime, which had long been besieged by Prince Maurice, one[a] of the king's nephews, and advanced in the direction

[Footnote 1: Clarendon, ii. 504.]

[Sidenote a: A.D.. 1644. June 25.]

of Exeter, where the queen a few days before[a] had been delivered of a daughter. That princess, weary of the dangers to which she was exposed in England, repaired to Falmouth, put to sea[b] with a squadron of ten Dutch or Flemish vessels, and, escaping the keen pursuit of the English fleet from Torbay, reached[c] in safety the harbour of Brest.[1]

Essex, regardless of the royalists who assembled in the rear of his army, pursued[d] his march into Cornwall. To most men his conduct was inexplicable. Many suspected that he sought to revenge himself on the parliament by betraying his forces into the hands of the enemy. At Lestwithiel he received[e] two letters, one, in which he was solicited by the king to unite with him in compelling his enemies to consent to a peace, which while it ascertained the legal rights of the throne, might secure the religion and liberties of the people; another from eighty-four of the principal officers in the royal army, who pledged themselves to draw the sword against the sovereign himself, if he should ever swerve from the principles which he had avowed in his letter. Both were disappointed. Essex sent the letters to the two houses, and coldly replied that his business was to fight, that of the parliament to negotiate.

[Footnote 1: I doubt whether Essex had any claim to that generosity of character which is attributed to him by historians. The queen had been delivered of a princess, Henrietta Maria, at Exeter, and sent to him for a passport to go to Bath or Bristol for the recovery of her health. He refused, but insultingly offered to attend her himself, if she would go to London, where she had been already impeached of high treason.—Rushworth, v. 684. I observe that even before the war, when the king had written to the queen to intimate his wish to Essex, as lord chamberlain, to prepare the palace for his reception, she desired Nicholas to do it adding, "their lordships are to great princes to receive any direction from me."—Evelyn's Mem. ii. App. 78.]

[Sidenote a: A.D. 1644. June 16.]

[Sidenote b: A.D. 1644. July 14.]

[Sidenote c: A.D. 1644. July 15.]

[Sidenote d: A.D. 1644. June 26.]

[Sidenote e: A.D. 1644. August 6.]

But he now found himself in a most critical situation, cut off from all intercourse with London, and enclosed between the sea and the combined forces of the king, Prince Maurice, and Sir Richard Grenville.[a] His cavalry, unable to obtain subsistence, burst in the night, though not without loss, through the lines of the enemy. But each day the royalists won some of his posts; their artillery commanded the small haven of Foy, through which, alone he could obtain provisions; and his men, dismayed by a succession of disasters, refused to stand to their colours. In this emergency Essex, with two other officers, escaped from the beach in a boat to Plymouth; and Major-General Skippon offered to capitulate for the rest of the army.[b] On the surrender of their arms, ammunition, and artillery, the men were allowed to march to Pool and Wareham, and thence were conveyed in transports to Portsmouth, where commissioners from the parliament met them with a supply of clothes and money. The lord general repaired to his own house, calling for an investigation both into his own conduct and into that of the committee, who had neglected to disperse the royalists in the rear of his army, and had betrayed the cause of the people, to gratify their own jealousy by the disgrace of an opponent. To soothe his wounded mind, the houses ordered a joint deputation to wait on him, to thank him for his fidelity to the cause, and to express their estimation of the many and eminent services which he had rendered to his country.

This success elevated the hopes of the king, who, assuming a tone of conscious superiority, invited all his

[Footnote 1: Rushworth, v. 683, 684, 690-693, 699-711. Clarend. iv. 511-518-527.]

[Sidenote a: A.D. 1644. Aug 30.]

[Sidenote b: A.D. 1644. Sept. 1.]

subjects to accompany him to London, and aid him in compelling the parliament to accept of peace.[a]But the energies of his opponents were not exhausted. They quickly recruited their diminished forces; the several corps under Essex, Waller, and Manchester were united; and, while the royalists marched through Whitechurch to Newbury, a more numerous army moved in a parallel direction through Basingstoke to Reading.[b]There the leaders (the lord general was absent under the pretence of indisposition), hearing of reinforcements pouring into Oxford, resolved to avail themselves of their present superiority, and to attack, at the same moment, the royalist positions at Show on the eastern, and at Speen on the western side of the town. The action in both places was obstinate, the result, as late as ten at night, doubtful; but the king, fearing to be surrounded the next day, assembled his men under the protection of Donnington Castle, and[c] marched towards Wallingford, a movement which was executed without opposition by the light of the moon, and in full view of the enemy.[d]In a few days he returned with a more numerous force, and, receiving the artillery and ammunition, which for security he had left in Donnington Castle, conveyed it without molestation to Wallingford. As he passed and repassed, the parliamentarians kept within their lines, and even refused the battle which he offered. This backwardness, whether it arose from internal dissension, or from inferiority of numbers, provoked loud complaints, not only in the capital, where the conflict at Newbury had been celebrated as a victory, but in the two houses, who had ordered the army to follow up its success. The generals, having dispersed their troops in winter quarters, hastened to vindicate their

[Sidenote a: A.D. 1644. Sept. 30.]

[Sidenote b: A.D. 1644. Oct. 27.]

[Sidenote c: A.D. 1644. Nov. 6.]

[Sidenote d: A.D. 1644. Nov. 9.]

own conduct. Charges of cowardice, or disaffection, or incapacity, were made and retorted by one against the other; and that cause which had nearly triumphed over the king seemed now on the point of being lost through the personal jealousies and contending passions of its leaders.[1]

The greater part of these quarrels had originated in the rivalry of ambition; but those in the army of the earl of Manchester were produced by religious jealousy, and on that account were followed by more important results. When the king attempted to arrest the five members, Manchester, at that time Lord Kymbolton, was the only peer whom he impeached. This circumstance endeared Kymbolton to the party; his own safety bound him more closely to its interests. On the formation of the army of the seven associated counties, he accepted, though with reluctance, the chief command; for his temper and education had formed him to shine in the senate rather than the camp; and, aware of his own inexperience, he devolved on his council the chief direction of military operations, reserving to himself the delicate and important charge of harmonizing and keeping together the discordant elements of which his force was composed. The second in command, as the reader is aware, was Cromwell, with the rank of lieutenant-general. In the parade of sanctity both Manchester and Cromwell seemed equal proficient; in belief and practice they followed two opposite parties. The first sought the exclusive establishment of the presbyterian system; the other contended for the common right of mankind to worship God according to the dictates of conscience. But this difference of opinion

[Footnote 1: Rushworth, v. 715-732. Clarendon, 546-552.]

provoked no dissension between them. The more gentle and accommodating temper of Manchester was awed by the superior genius of Cromwell, who gradually acquired the chief control of the army, and offered his protection to the Independents under his command. In other quarters these religionists suffered restraint and persecution from the zeal of the Presbyterians; the indulgence which they enjoyed under Cromwell scandalized and alarmed the orthodoxy of the Scottish commissioners, who obtained, as a counterpoise to the influence of that officer, the post of major-general for Crawford, their countryman, and a rigid Presbyterian. Cromwell and Crawford instantly became rivals and enemies. The merit of the victory at Marston Moor had been claimed by the Independents, who magnified the services of their favourite commander, and ridiculed the flight and cowardice of the Scots. Crawford retorted the charge, and deposed that Cromwell, having received a slight wound in the neck at the commencement of the action, immediately retired and did not afterwards appear in the field.[a]The lieutenant-general in revenge exhibited articles against Crawford before the committee of war, and the colonels threatened to resign their commissions unless he were removed; while on the other hand Manchester and the chaplains of the army gave testimony in his favour, and the Scottish commissioners, assuming the defence of their countryman, represented him as a martyr in the cause of religion.[1]

But before this quarrel was terminated a second of greater importance arose. The indecisive action at Newbury, and the refusal of battle at Donnington, had

[Footnote 1: Baillie, ii. 40, 41, 42, 49, 57, 60, 66, 69. Hollis, 15.]

[Sidenote a: A.D. 1644. Sept. 5.]

excited the discontent of the public;[a]the lower house ordered an inquiry into the conduct of the generals and the state of the armies; and the report

made by the committee of both kingdoms led to a vote that a plan for the organization of the national force, in a new and more efficient form, should be immediately prepared. Waller and Cromwell, who were both members of the house, felt dissatisfied with the report. At the next meeting each related his share in the transactions which had excited such loud complaints; and the latter embraced the opportunity to prefer a charge of disaffection against the earl of Manchester, who, he pretended, was unwilling that the royal power should suffer additional humiliation, and on that account would never permit his army to engage, unless it were evidently to its disadvantage. Manchester in the House of Lords repelled the imputation with warmth, vindicated his own conduct, and retorted on his accuser, that he had yet to learn in what place Lieutenant General Cromwell with his cavalry had posted himself on the day of battle.[1]

It is worthy of remark, that, even at this early period, Essex, Manchester, and the Scottish commissioners suspected Cromwell with his friends of a design to obtain the command of the army, to abolish the House of Lords, divide the House of Commons, dissolve the covenant between the two nations, and erect a new government according to his own principles. To defeat this project it was at first proposed that the chancellor of Scotland should denounce him as an incendiary, and demand his punishment according to the late treaty; but, on the reply of the

[Footnote 1: Rushworth, v. 732. Journals, Nov. 22, 23, 25. Lords' Journals, vii. 67, 78, 80, 141. Whitelock, 116.]

[Sidenote a: A.D. 1644. Nov. 25.]

lawyers whom they consulted, that their proofs were insufficient to sustain the charge, it was resolved that Manchester should accuse him before the Lords of having expressed a wish to reduce the peers to the state of private gentlemen; of having declared his readiness to fight against the

Scots, whose chief object was to establish religious despotism; and of having threatened to compel, with the aid of the Independents, both king and parliament to accept such conditions as he should dictate.[a]This charge, with a written statement by Manchester in his own vindication, was communicated to the Commons; and they, after some objections in point of form and privilege, referred it to a committee, where its consideration was postponed from time to time, till at last it was permitted to sleep in silence. [1]

Cromwell did not hesitate to wreak his revenge on Essex and Manchester, though the blow would probably recoil upon himself.[b]He proposed in the Commons what was afterwards called the "self-denying ordinance," that the members of both houses should be excluded from all offices, whether civil or military. He would not, he said, reflect on what was passed, but suggest a remedy for the future. The nation was weary of the war; and he spoke the language both of friends and foes, when he said that the blame of its continuance rested with the two houses, who could not be expected to bring it to a speedy termination as long as so many of their members derived from military commands wealth and authority, and consideration. His real object was open to every eye; still the motion met with the concurrence of his own party,

[Footnote 1: Baillie, ii. 76, 77. Journals, Dec. 2, 4; Jan. 18. Lords' Journals, 79, 80. Whitelock, 116, 117. Hollis, 18.]

[Sidenote a: A.D. 1644. Dec. 2.]

[Sidenote b: A.D. 1644. Dec. 9.]

and of all whose patience had been exhausted by the quarrels among the commanders; and, when an exemption was suggested in favour of the lord-general, it was lost on a division by seven voices, in a house of one hundred and ninety-three members.[a] However, the strength of the opposition

encouraged the peers to speak with more than their usual freedom.[b] They contended, that the ordinance was unnecessary, since the committee was employed in framing a new model for the army; that it was unjust, since it would operate to the exclusion of the whole peerage from office, while the Commons remained equally eligible to sit in parliament, or to fill civil or military employments. It was in vain that the lower house remonstrated.[c] The Lords replied that they had thrown out the bill, but would consent to another of similar import, provided it did not extend to commands in the army.

But by this time the committee of both kingdoms had completed their plan of military reform, which, in its immediate operation, tended to produce the same effect as the rejected ordinance.[d] It obtained the sanction of the Scottish commissioners, who consented, though with reluctance, to sacrifice their friends in the upper house, for the benefit of a measure which promised to put an end to the feuds and delays of the former system, and to remove from the army Cromwell, their most dangerous enemy. If it deprived them of the talents of Essex and Manchester, which they seem never to have prized, it gave them in exchange a commander-in-chief, whose merit they had learned to appreciate during his service in conjunction[e]

[Transcriber's Note: Footnote 1 not found in the text]

[Footnote 1: Journals, Dec. 9, 17; Jan. 7, 10, 13. Lords' Journals, 129, 131, 134, 135. Rushworth, vi. 3-7.]

[Sidenote a: A.D. 1644. Dec. 17.]

[Sidenote b: A.D. 1644. Dec. 21.]

[Sidenote c: A.D. 1645. Jan. 15.]

[Sidenote d: A.D. 1645. Jan. 9.]

[Sidenote e: A.D. 1645. Jan. 21.]

with their forces at the siege of York. By the "new model" it was proposed that the army should consist of one thousand dragoons, six thousand six hundred cavalry in six, and fourteen thousand four hundred infantry in twelve regiments, under Sir Thomas Fairfax as the first, and Major-General Skippon as the second, in command. The Lords hesitated;[a] but after several conferences and debates they returned it with a few amendments to the Commons, and it was published by sound of drum in London and Westminster.[1]

This victory was followed by another. Many of the peers still clung to the notion that it was intended to abolish their privileges, and therefore resolved not to sink without a struggle. They insisted that the new army should take the covenant, and subscribe the directory for public worship; they refused their approbation to more than one half of the officers named by Sir Thomas Fairfax; and they objected to the additional powers offered by the Commons to that general. On these subjects the divisions in the house were nearly equal, and whenever the opposite party obtained the majority, it was by the aid of a single proxy, or of the clamours of the mob. At length a declaration was made by the Commons, that "they held themselves obliged to preserve the peerage with the rights and privileges belonging to the House of Peers equally as their own, and would really perform the same." [b] Relieved from their fears, the Lords yielded to a power which they knew not how to control; the different bills were passed, and among them a new self-denying ordinance, by which every member of either house was discharged from all[c]

[Footnote 1: Journals, Jan. 9, 13, 25, 27; Feb. 11, 15; of Lords, 159, 175, 169, 193, 195, 204. Clarendon, ii. 569.]

[Sidenote a: A.D. 1645. Feb. 15.]

[Sidenote b: A.D. 1645. March 25.]

[Sidenote c: A.D. 1645. April 3.]

civil and military offices, conferred by authority of parliament after the expiration of forty days.[1]

Hitherto I have endeavoured to preserve unbroken the chain of military and political events: it is now time to call the attention of the reader to the ecclesiastical occurrences of the two last years.

I. As religion was acknowledged to be the first of duties, to put down popery and idolatry, and to purge the church from superstition and corruption, had always been held out by the parliament as its grand and most important object. It was this which, in the estimation of many of the combatants, gave the chief interest to the quarrel; this which made it, according to the language of the time, "a wrestle between Christ and antichrist," 1. Every good Protestant had been educated in the deepest horror of popery; there was a magic in the very word which awakened the prejudices and inflamed the passions of men; and the reader must have observed with what art and perseverance the patriot leaders employed it to confirm the attachment, and quicken the efforts of their followers. Scarcely a day occurred in which some order or ordinance, local or general, was not issued by the two houses; and very few of these, even on the most indifferent subjects, were permitted to pass without the assertion that the war had been originally provoked, and was still continued by the papists, for the sole purpose of the establishment of popery on the ruins of Protestantism. The constant repetition acted on the minds of the people as a sufficient proof of the charge; and the denials, the protestations, the appeals to heaven made by the king, were disregarded and condemned as unworthy artifices, adopted to deceive

[Footnote 1: Journals, Feb. 25, March 21; of Lords, 287, 303.]

the credulous and unwary. Under such circumstances, the Catholics found themselves exposed to insult and persecution wherever the influence of the parliament extended: for protection they were compelled to flee to the quarters of the royalists, and to fight under their banners; and this again confirmed the prejudice against them, and exposed them to additional obloquy and punishment.

But the chiefs of the patriots, while for political purposes they pointed the hatred of their followers against the Catholics, appear not to have delighted unnecessarily in blood. They ordered, indeed, searches to be made for Catholic clergymen; they offered and paid rewards for their apprehension, and they occasionally gratified the zealots with the spectacle of an execution. The priests who suffered death in the course of the war amounted on an average to three for each year, a small number, if we consider the agitated state of the public mind during that period.[1] But it was the property of the lay Catholics which they chiefly sought, pretending that, as the war had been caused by their intrigues, its expenses ought to be defrayed by their forfeitures. It was ordained that two-thirds of the whole estate, both real and personal, of every papist, should be seized and sold for

[Footnote 1: Journals, vi. 133, 254. See their Memoirs in Challoner, ii. 209-319. In 1643, after a solemn fast, the five chaplains of the queen were apprehended and sent to France, their native country, and the furniture of her chapel at Somerset House was publicly burnt. The citizens were so edified with the sight that they requested and obtained permission to destroy the gilt cross in Cheapside. The lord mayor and aldermen graced the ceremony with their presence, and "antichrist" was thrown into the flames, while the bells of St. Peter's rang a merry peal, the city waits played melodious tunes on the leads of the church, the train bands discharged volleys of musketry, and the spectators celebrated the triumph with acclamations of joy.—Parl. Chron. 294, 327.]

the benefit of the nation; and that by the name of papist should be understood all persons who, within a certain period, had harboured any priest, or had been convicted of recusancy, or had attended at the celebration of mass, or had suffered their children to be educated in the Catholic worship, or had refused to take the oath of abjuration; an oath lately devised, by which all the distinguishing tenets of the Catholic religion were specifically renounced.[1]

II. A still more important object was the destruction of the episcopal establishment, a consummation most devoutly wished by the saints, by all who objected to the ceremonies in the liturgy, or had been scandalized by the pomp of the prelates, or had smarted under the inflictions of their zeal for the preservation of orthodoxy. It must be confessed that these prelates, in the season of prosperity, had not borne their facilities with meekness; that the frequency of prosecutions in the ecclesiastical courts had produced irritation and hatred; and that punishments had been often awarded by those courts rigorous beyond the measure of the offence. But the day of retribution arrived. Episcopacy was abolished; an impeachment suspended over the heads of most of the bishops, kept them in a state of constant apprehension; and the inferior clergy, wherever the parliamentary arms prevailed, suffered all those severities which they had formerly inflicted on their dissenting brethren. Their enemies accused them of immorality or malignancy; and the two houses invariably sequestered their livings, and assigned the profits to other ministers, whose sentiments accorded better with the new

[Footnote 1: Journals, Aug. 17, 1643. Collections of Ordinances, 22.]

standard of orthodoxy and patriotism admitted at Westminster.

The same was the fate of the ecclesiastics in the two universities, which had early become objects of jealousy and vengeance to the patriots. They

had for more than a century inculcated the doctrine of passive obedience, and since the commencement of the war had more than once advanced considerable sums to the king. Oxford, indeed, enjoyed a temporary exemption from their control; but Cambridge was already in their power, and a succession of feuds between the students and the townsmen afforded a decent pretext for their interference. Soldiers were quartered in the colleges; the painted windows and ornaments of the churches were demolished; and the persons of the inmates were subjected to insults and injuries. In January, 1644, an ordinance passed for the reform of the university;^[a] and it was perhaps fortunate that the ungracious task devolved in the first instance on the military commander, the earl of Manchester, who to a taste for literature added a gentleness of disposition adverse from acts of severity. Under his superintendence the university was "purified;" and ten heads of houses, with sixty-five fellows, were expelled. Manchester confined himself to those who, by their hostility to the parliament, had rendered themselves conspicuous, or through fear had already abandoned their stations; but after his departure, the meritorious undertaking was resumed by a committee, and the number of expulsions was carried to two hundred.^[1] Thus the clerical establishment gradually crumbled

[Footnote 1: Journals of Lords, vi. 389; of Commons, Jan. 20, 1644. Neal, 1, iii. c. 3. Walker, i. 112. Querela Cantab. in Merc. Rust. 178-210.]

[Sidenote a: A.D. 1645. Jan. 22.]

away; part after part was detached from the edifice; and the reformers hastened to raise what they deemed a more scriptural fabric on the ruins. In the month of June, 1643, one hundred and twenty individuals selected by the Lords and Commons, under the denomination of pious, godly, and judicious divines, were summoned to meet at Westminster; and, that their

union might bear a more correct resemblance to the assembly of the Scottish kirk, thirty laymen, ten lords, and twenty commoners were voted additional members. The two houses prescribed the form of the meetings, and the subject of the debates: they enjoined an oath to be taken on admission, and the obligation of secrecy till each question should be determined; and they ordained that every decision should be laid before themselves, and considered of no force until it had been confirmed by their approbation.[1] Of the divines summoned, a portion was composed of Episcopalians; and these, through motives of conscience or loyalty, refused to attend: the majority consisted of Puritan ministers, anxious to establish the Calvinistic discipline and doctrine of the foreign reformed churches; and to these was opposed a small but formidable band of Independent clergymen, who, under the persecution of Archbishop Laud, had formed congregations in Holland, but had taken the present opportunity to return from exile, and preach the gospel in their native country. The point at issue between these two parties was one of the first importance, involving in its result the great question of liberty of conscience. The Presbyterians sought to introduce a

[Footnote 1: Journals, vi. 114, 254. Commons, 1643, May 13, June 16, July 6, Sept. 14. Rush. v. 337, 339.]

gradation of spiritual authorities in presbyteries, classes, synods, and assemblies, giving to these several judicatories the power of the keys, that is, of censuring, suspending, depriving, and excommunicating delinquents. They maintained that such a power was essential to the church; that to deny it was to rend into fragments the seamless coat of Christ, to encourage disunion and schism, and to open the door to every species of theological war. On the other hand, their adversaries contended that all congregations of worshippers were co-ordinate and independent; that synods might advise, but could not command; that multiplicity of sects must necessarily result

from the variableness of the human judgment, and the obligation of worshipping God according to the dictates of conscience; and that religious toleration was the birthright of every human being, whatever were his speculative creed or the form of worship which he preferred.[1]

The weight of number and influence was in favour of the Presbyterians. They possessed an overwhelming majority in the assembly, the senate, the city, and the army; the solemn league and covenant had enlisted the whole Scottish nation in their cause; and the zeal of the commissioners from the kirk, who had also seats in the assembly, gave a new stimulus to the efforts of their English brethren. The Independents, on the contrary, were few, but their deficiency in point of number was supplied by the energy and talents of their leaders. They never exceeded a dozen in the assembly; but these were veteran disputants, eager, fearless, and persevering, whose attachment to their favourite doctrines had been riveted by persecution and exile, and who had not escaped from the intolerance

[Footnote 1: Baillie, i. 420, 431; ii. 15, 24, 37, 43, 61.]

of one church to submit tamely to the control of another. In the House of Commons they could command the aid of several among the master spirits of the age,—of Cromwell, Selden, St. John, Vane, and Whitelock; in the capital some of the most wealthy citizens professed themselves their disciples, and in the army their power rapidly increased by the daily accession of the most godly and fanatic of the soldiers. The very nature of the contest between the king and the parliament was calculated to predispose the mind in favour of their principles. It taught men to distrust the claims of authority, to exercise their own judgment on matters of the highest interest, and to spurn the fetters of intellectual as well as of political thralldom. In a short time the Independents were joined by the Antinomians, Anabaptists, Millenarians, Erastians, and the members of many ephemeral

sects, whose very names are now forgotten. All had one common interest; freedom of conscience formed the chain which bound them together.[1]

In the assembly each party watched with jealousy, and opposed with warmth, the proceedings of the other. On a few questions they proved unanimous. The appointment of days of humiliation and prayer, the suppression of public and scandalous sins, the prohibition of copes and surplices, the removal of organs from the churches, and the mutilation or demolition of monuments deemed superstitious or idolatrous, were matters equally congenial to their feelings, and equally gratifying to their zeal or fanaticism.[2] But when they

[Footnote 1: Baillie, 398, 408; ii. 3, 19, 43. Whitelock, 169, 170.]

[Footnote 2: Journals, 1643, July 5; 1644, Jan. 16, 29, May 9. Journals of Lords, vi. 200, 507, 546. Baillie, i. 421, 422, 471. Rush. v. 358, 749.]

came to the more important subject of church government, the opposition between them grew fierce and obstinate; and day after day, week after week, was consumed in unavailing debates. The kirk of Scotland remonstrated, the House of Commons admonished in vain. For more than a year the perseverance of the Independents held in check the ardour and influence of their more numerous adversaries. Overpowered at last by open force, they had recourse to stratagem; and, to distract the attention of the Presbyterians, tendered to the assembly a plea for indulgence to tender consciences; while their associate, Cromwell, obtained from the lower house an order that the same subject should be referred to a committee formed of lords and commoners, and Scottish commissioners and deputies from the assembly. Thus a new apple of discord was thrown among the combatants. The lords Say and Wharton, Sir Henry Vane, and Mr. St. John, contended warmly in favour of toleration; they were as warmly opposed by the "divine eloquence of the chancellor" of Scotland, the commissioners

from the kirk, and several eminent members of the English parliament. The passions and artifices of the contending parties interposed additional delays, and the year 1644 closed before this interesting controversy could be brought to a conclusion.[1] Eighteen months had elapsed since the assembly was first convened, and yet it had accomplished nothing of importance except the composition of a directory for the public worship, which regulated the order of the service, the administration of the sacraments, the ceremony of marriage, the visitation of the sick, and the burial of the dead.

[Footnote 1: Baillie, ii. 57, 61, 62, 66-68. Journals, Sept. 13, Jan. 24; of Lords, 70.]

On all these subjects the Scots endeavoured to introduce the practice of their own kirk; but the pride of the English demanded alterations; and both parties consented to a sort of compromise, which carefully avoided every approach to the form of a liturgy, and, while it suggested heads for the sermon and prayer, left much of the matter, and the whole of the manner, to the talents or the inspiration of the minister. In England the Book of Common Prayer was abolished, and the Directory substituted in its place by an ordinance of the two houses; in Scotland the latter was commanded to be observed in all churches by the joint authority of the assembly and the parliament.[1]

To the downfall of the liturgy succeeded a new spectacle,—the decapitation of an archbishop. The name of Laud, during the first fifteen months after his impeachment, had scarcely been mentioned; and his friends began to cherish a hope that, amidst the din of arms, the old man might be forgotten, or suffered to descend peaceably into the grave. But his death was unintentionally occasioned by the indiscretion of the very man whose wish and whose duty it was to preserve the life of the prelate. The Lords had ordered Laud to collate the vacant benefices in his gift on

persons nominated by themselves, the king forbade him to obey. The death[a] of the rector of Chartham, in Kent, brought his constancy to the test. The Lords named one person to the living, Charles another; and the archbishop, to extricate himself from the dilemma, sought to defer his decision till the right should have

[Footnote 1: Baillie, i. 408, 413, 440; ii. 27, 31, 33, 36, 73, 74, 75.

Rush. v. 785. Journals, Sept. 24, Nov. 26, Jan. 1, 4, March 5. Journals of Lords, 119, 121. See "Confessions of Faith, &c. in the Church of Scotland," 159-194.]

[Sidenote a: A.D. 1643 Feb. 3.] lapsed to the crown; but the Lords made a peremptory order, and when he attempted to excuse his disobedience, sent a message[a] to the Commons to expedite his trial. Perhaps they meant only to intimidate; but his enemies seized the opportunity; a committee was appointed; and the task of collecting and preparing evidence was committed to Prynne, whose tiger-like revenge still thirsted for the blood of his former persecutor.[1] He carried off[b] from the cell of the prisoner his papers, his diary, and even his written defence; he sought in every quarter for those who had formerly been prosecuted or punished at the instance of the archbishop, and he called on all men to discharge their duty to God and their country, by deposing to the crimes of him who was the common enemy of both.

At the termination of six months[c] the committee had been able to add ten new articles of impeachment to the fourteen already presented; four months later,[d] both parties were ready to proceed to trial, and on the 12th of March, 1644, more than three years after his commitment, the archbishop confronted his prosecutors at the bar of the House of Lords.

I shall not attempt to conduct the reader through, the mazes of this long and wearisome process, which occupied twenty-one days in the course of

six months. The many articles presented by the Commons might be reduced to three,—that Laud had endeavoured to subvert the rights of parliament, the laws and the religion of the nation. In support of these, every instance that could be raked together by the industry and ingenuity of Prynne, was brought forward. The familiar discourse, and the secret writings of the

[Footnote 1: Laud's History written by himself in the Tower, 200-206.]

[Sidenote a: A.D. 1643. April 21.]

[Sidenote b: A.D. 1643. May 31.]

[Sidenote c: A.D. 1643. Oct. 23.]

[Sidenote d: A.D. 1644. March 4.]

prelate, had been scrutinized; and his conduct both private and public, as a bishop and a counsellor, in the Star-chamber and the High Commission court, had been subjected to the most severe investigation. Under every disadvantage, he defended himself with spirit, and often with success. He showed that many of the witnesses were his personal enemies, or undeserving of credit; that his words and writings would bear a less offensive and more probable interpretation; and that most of the facts objected to him were either the acts of his officers, who alone ought to be responsible, or the common decision of those boards of which he was only a single member.[1] Thus far[a] he had conducted his defence without legal aid. To speak to matters of law, he was allowed the aid of counsel, who contended that not one of the offences alleged against him amounted to high treason; that their number could not change their quality; that an endeavour to subvert the law, or religion, or the rights of parliament, was not treason by any statute; and that the description of an offence, so vague and indeterminate ought never to be admitted;: otherwise the slightest transgression might, under that denomination, be converted into the highest crime known to the law.[2]

But the Commons, whether they distrusted the patriotism of the Lords, or doubted the legal guilt of the prisoner, had already resolved to proceed by attainder. After the second reading^[b] of the ordinance, they sent for the venerable prisoner to their bar, and ordered Brown, one of the managers, to recapitulate in his

[Footnote 1: Compare his own daily account of his trial in *History*, 220-421, with that part published by Prynne, under the title of *Canterburies Doome*, 1646; and Rushworth, v. 772.]

[Footnote 2: See it in Laud's *History*, 423.]

[Sidenote a: A.D. 1644. March 11.]

[Sidenote b: A.D. 1644. Nov. 2.]

hearing the evidence against him, together with his answers. Some days later^[a] he was recalled, and suffered to speak in his own defence. After his departure, Brown made a long reply; and the house, without further consideration, passed^[b] the bill of attainder, and adjudged him to suffer the penalties of treason.^[1] The reader will not fail to observe this flagrant perversion of the forms of justice. It was not as in the case of the earl of Strafford. The commons had not been present at the trial of Laud; they had not heard the evidence, they had not even read the depositions of the witnesses; they pronounced judgment on the credit of the unsworn and partial statement made by their own advocate. Such a proceeding, so subversive of right and equity, would have been highly reprehensible in any court or class of men; it deserved the severest reprobation in that house, the members of which professed themselves the champions of freedom, and were actually in arms against the sovereign, to preserve, as they maintained, the laws, the rights, and the liberties of the nation.

To quicken the tardy proceedings of the Peers, the enemies of the archbishop had recourse to their usual expedients. Their emissaries lamented the delay in the punishment of delinquents, and the want of unanimity between the two houses. It was artfully suggested as a remedy, that both the Lords and Commons ought to sit and vote together in one assembly; and a petition, embodying these different subjects, was prepared and circulated for signatures through the city. Such manoeuvres aroused the spirit of the Peers. They threatened[c] to punish all disturbers

[Footnote 1: Journals, Oct. 31, Nov. 2, 11, 16. Laud's History, 432-440. Rushworth, v. 780.]

[Sidenote a: A.D. 1644. Nov. 11.]

[Sidenote b: A.D. 1644. Nov. 13.]

[Sidenote c: A.D. 1644. Nov. 28.]

of the peace; they replied with dignity to an insulting message from the Commons; and, regardless of the clamours of the populace, they spent several days in comparing the proofs of the managers with the defence of the archbishop. At last,[a] in a house of fourteen members, the majority pronounced him guilty of certain acts, but called upon the judges to determine the quality of the offence; who warily replied, that nothing of which he had been convicted was treason by the statute law; what it might be by the law of parliament, the house alone was the proper judge. In these circumstances the Lords informed the Commons, that till their consciences were satisfied, they should "scruple" to pass the bill of attainder.[1]

It was the eve of Christmas,[b] and to prove that the nation had thrown off the yoke of superstition, the festival was converted, by ordinance of the two houses, into a day of "fasting and public humiliation." [2] There was much policy in the frequent repetition of these devotional observances. The ministers having previously received instructions from the leading patriots,

adapted their prayers and sermons to the circumstances of the time, and never failed to add a new stimulus to the fanaticism of their hearers. On the present occasion[c] the crimes of the archbishop offered a tempting theme to their eloquence; and the next morning the Commons, taking into consideration the last message, intrusted[d] to a committee the task of enlightening the ignorance of the Lords. In a conference

[Footnote 1: Journals, vii. 76, 100, 111.]

[Footnote 2: Ibid. 106. In the preceding year, the Scottish commissioners had "preached stoutly against the superstition of Christmas;" but only succeeded in prevailing on the two houses "to profane that holyday by sitting on it, to their great joy, and some of the assembly's shame."—Baillie, i. 411.]

[Sidenote a: A.D. 1644 Dec. 17.]

[Sidenote b: A.D. 1644 Dec. 23.]

[Sidenote c: A.D. 1644 Dec. 26.]

[Sidenote d: A.D. 1645 Jan. 2.]

the latter were told that treasons are of two kinds: treasons against the king, created by statute, and cognizable by the inferior courts; and treasons against the realm, held so at common law, and subject only to the judgment of parliament; there could not be a doubt that the offence of Laud was treason of the second class; nor would the two houses perform their duty, if they did not visit it with the punishment which it deserved. When the question was resumed, several of the Lords withdrew; most of the others were willing to be persuaded by the reasoning of the Commons; and the ordinance of attainder was passed[a] by the majority, consisting only, if the report be correct, of six members.[1]

The archbishop submitted with resignation to his fate, and appeared[b] on the scaffold with a serenity of countenance and dignity of behaviour, which did honour to the cause for which he suffered. The cruel punishment of treason had been, after some objections, commuted for decapitation, and the dead body was delivered for interment to his friends.[2] On Charles the melancholy intelligence made a deep impression;

[Footnote 1: Journals, 125, 126. Commons, Dec. 26. Laud's Troubles, 452, Rushworth, v. 781-785. Cyprianus Aug. 528. From the journals it appears that twenty lords were in the house during the day: but we are told in the "Brief Relation" printed in the second collection of Somers's Tracts, ii. 287, that the majority consisted of the earls of Kent, Pembroke, Salisbury, and Bolingbroke, and the lords North, Gray de Warke, and Bruce. Bruce afterwards denied that he had voted. According to Sabran, the French ambassador, the majority amounted to five out of nine.—Raumer, ii. 332.]

[Footnote 2: Several executions had preceded that of the archbishop. Macmahon, concerned in the design to surprise the castle of Dublin, suffered Nov. 22; Sir Alexander Carew, who had engaged to surrender Plymouth to the king, on Dec. 23, and Sir John Hotham and his son, who, conceiving themselves ill-treated by the parliament, had entered into a treaty for the surrender of Hull, on the 1st and 2nd of January; Lord Macguire followed on Feb. 20.]

[Sidenote a: A.D. 1645. Jan. 4.]

[Sidenote b: A.D. 1645. Jan. 10.]

yet he contrived to draw from it a new source of consolation. He had sinned equally with his opponents in consenting to the death of Strafford, and had experienced equally with them the just vengeance of heaven. But he was innocent of the blood of Laud; the whole guilt was exclusively

theirs; nor could he doubt that the punishment would speedily follow in the depression of their party, and the exaltation of the throne.[1]

The very enemies of the unfortunate archbishop admitted that he was learned and pious, attentive to his duties, and unexceptionable in his morals; on the other hand, his friends could not deny that he was hasty and vindictive, positive in his opinions, and inexorable in his enmities. To excuse his participation in the arbitrary measures of the council, and his concurrence in the severe decrees of the Star-chamber, he alleged, that he was only one among many; and that it was cruel to visit on the head of a single victim the common faults of the whole board. But it was replied, with great appearance of truth, that though only one, he was the chief; that his authority and influence swayed the opinions both of his sovereign and his colleagues; and that he must not expect to escape the just reward of his crimes, because he had possessed the ingenuity to make others his associates in guilt. Yet I am of opinion that it was religious, and not political rancour, which led him to the block; and that, if the zealots could have forgiven his conduct as archbishop, he might have lingered out the remainder of his life in the Tower. There was, however, but little difference in that respect between

[Footnote 1: See his letter to the queen, Jan. 14th, in his Works, 145.]

them and their victim. Both were equally obstinate, equally infallible, equally intolerant. As long as Laud ruled in the zenith of his power, deprivation awaited the non-conforming minister, and imprisonment, fine, and the pillory were the certain lot of the writer who dared to lash the real or imaginary vices of the prelacy. His opponents were now lords of the ascendant, and they exercised their sway with similar severity on the orthodox clergy of the establishment, and on all who dared to arraign before the public the new reformation of religion. Surely the consciousness of the

like intolerance might have taught them to look with a more indulgent eye on the past errors of their fallen adversary, and to spare the life of a feeble old man bending under the weight of seventy-two years, and disabled by his misfortunes from offering opposition to their will, or affording aid to their enemies.[1]

[Footnote 1: I have not noticed the charge of endeavouring to introduce popery, because it appears to me fully disproved by the whole tenor of his conduct and writings, as long as he was in authority. There is, however, some reason to believe that, in the solitude of his cell, and with the prospect of the block before his eyes, he began to think more favourably of the Catholic church. At least, I find Rosetti inquiring of Cardinal Barberini whether, if Laud should escape from the Tower, the pope would afford him an asylum and a pension in Rome. He would be content with one thousand crowns—"il quale, quando avesse potuto liberarsi dalle carceri, sarebbe ito volentieri a vivere e morire in Roma, contendandosi di mille scudi annui."—Barberini answered, that Laud was in such bad repute in Rome, being looked upon as the cause of all the troubles in England, that it would previously be necessary that he should give good proof of his repentance; in which case he should receive assistance, though such assistance would give a colour to the imputation that there had always been an understanding between him and Rome. "Era sì cattivo il concetto, che di lui avevasi in Roma, cioè che fosse stato autore di tutte le torbolenze d'Inghilterra, che era necessario dasse primo segni ben grandi del suo pentimento. Ed in tal caso sarebbe stato ajutato; sebene saria paruto che nelle sue passate risoluzioni se la fosse sempre intesa con Roma."—From the MS. abstract of the Barberini papers made by the canon Nicoletti soon after the death of the cardinal.]

CHAPTER II.

Treaty At Uxbridge—Victories Of Montrose In Scotland—Defeat Of The King

At Naseby—Surrender Of Bristol—Charles Shut Up Within Oxford—Mission Of

Glamorgan To Ireland—He Is Disavowed By Charles, But Concludes A Peace

With The Irish—The King Intrigues With The Parliament, The Scots, And The

Independents—He Escapes To The Scottish Army—Refuses The Concessions

Required—Is Delivered Up By The Scots.

Whenever men spontaneously risk their lives and fortunes in the support of a particular cause, they are wont to set a high value on their services, and generally assume the right of expressing their opinions, and of interfering with their advice. Hence it happened that the dissensions and animosities in the court and army of the unfortunate monarch were scarcely less violent or less dangerous than those which divided the parliamentary leaders. All thought themselves entitled to offices and honours from the gratitude of the sovereign; no appointment could be made which did not deceive the expectations, and excite the murmurs, of numerous competitors; and complaints were everywhere heard, cabals were formed, and the wisest

plans were frequently controlled and defeated, by men who thought themselves neglected or aggrieved. When Charles, as one obvious remedy, removed the lord Wilmot from the command of the cavalry, and the lord Percy from that of the ordnance, he found that he had only aggravated the evil; and the dissatisfaction of the army was further increased by the substitution of his nephew Prince Rupert, whose severe and imperious temper had earned him the general hatred, in the place of Ruthen, who, on account of his infirmities, had been advised to retire.[1]

Another source of most acrimonious controversy was furnished by the important question of peace or war, which formed a daily subject of debate in every company, and divided the royalists into contending parties. Some there were (few, indeed, in number, and chiefly those whom the two houses by their votes had excluded from all hopes of pardon) who contended that the king ought never to lay down his arms till victory should enable him to give the law to his enemies; but the rest, wearied out with the fatigues and dangers of war, and alarmed by the present sequestration of their estates, and the ruin which menaced their families, most anxiously longed for the restoration of peace. These, however, split into two parties; one which left the conditions to the wisdom of the monarch; the other which not only advised, but occasionally talked of compelling a reconciliation, on almost any terms, pretending that, if once the king were resealed on his throne, he must quickly recover every prerogative which he might have lost. As for Charles himself, he had already suffered too much by the war, and saw too gloomy a prospect before him, to be indifferent to the subject; but, though he was now prepared to make sacrifices, from which but two years before he would have recoiled with horror, he had still resolved never to subscribe to conditions irreconcilable with his honour and conscience; and in this temper of

[Footnote 1: Clarendon, ii. 482, 513, 554.]

mind he was confirmed by the frequent letters of Henrietta from Paris, who reminded him of the infamy which he would entail on himself, were he, as he was daily advised, to betray to the vengeance of the parliament the Protestant bishops and Catholic royalists, who, trusting to his word, had ventured their all for his interest.[1] He had now assembled *his* parliament for the second time; but the attendance of the members was scarce, and the inconvenience greater than the benefit. Motions were made ungrateful to the feelings, and opposed to the real views of the king, who, to free himself from the more obtrusive and importunate of these advisers, sent them

[Footnote 1: This is the inference which I have drawn from a careful perusal of the correspondence between Charles and the queen in his Works, p. 142-150. Some writers have come to a different conclusion: that he was insincere, and under the pretence of seeking peace, was in reality determined to continue the war. That he prepared for the resumption of hostilities is indeed true, but the reason which he gives to the queen is satisfactory, "the improbability that this present treaty should produce a peace, considering the great strange difference (if not contrariety) of grounds that are betwixt the rebels' propositions and mine, and that I cannot alter mine, nor will they ever theirs, until they be out of the hope to prevail by force" (p. 146). Nor do I see any proof that Charles was governed, as is pretended, by the queen. He certainly took his resolutions without consulting her, and, if she sometimes expressed her opinion respecting them, it was no more than any other woman in a similar situation would have done. "I have nothing to say, but that you have a care of your honour; and that, if you have a peace, it may be such as may hold; and if it fall out otherwise, that you do not abandon those who have served you, for fear they do forsake you in your need. Also I do not see how you can be in safety without a regiment of guard; for myself, I think I cannot be, seeing the malice which they have against me and my religion, of which I hope you will have a care of both. But in my opinion, religion should be the last

thing upon which you should treat; for if you do agree upon strictness against the Catholics, it would discourage them to serve you; and if afterwards there should be no peace, you could never expect succours either from Ireland, or any other Catholic prince, for they would believe you would abandon them after you have served yourself" (p. 142, 143).]

into honourable exile, by appointing them[a] to give their attendance on his queen during her residence in France.[1]

In the last summer the first use which he had made of each successive advantage, was to renew[b] the offer of opening a negotiation for peace. It convinced the army of the pacific disposition of their sovereign, and it threw on the parliament, even among their own adherents, the blame of continuing the war. At length,[c] after the third message, the houses gave a tardy and reluctant consent; but it was not before they had received from Scotland the propositions formerly voted as the only basis of a lasting reconciliation, had approved of the amendments suggested by their allies, and had filled up the blanks with the specification of the acts of parliament to be passed, and with the names of the royalists to be excepted from the amnesty. It was plain to every intelligent man in either army that to lay such a foundation of peace was in reality to proclaim perpetual hostilities.[2] But the king, by the advice of his council, consented to make it the subject of a treaty, for two ends; to discover whether it was the resolution of the houses to adhere without any modification to these high pretensions; and to make the experiment, whether it were not possible to gain one of the two factions, the Presbyterians or the Independents, or at least to widen

[Footnote 1: See the letters in Charles's Works, 142-148. "I may fairly expect to be chidden by thee for having suffered thee to be vexed by them (Wilmot being already there, Percy on his way, and Sussex within a few

days of taking his journey), but that I know thou carest not for a little trouble to free me from great inconvenience."—*Ibid.* 150.]

[Footnote 2: Journals, vii. 53. The very authors of the propositions did not expect that the king would ever submit to them.—*Baillie*, ii. 8, 43, 73.]

[Sidenote a: A.D. 1644. July 4.]

[Sidenote b: A.D. 1644. Sept. 5.]

[Sidenote c: A.D. 1644. Nov. 23.] the breach between them by furnishing new causes of dissension.[1]

At Uxbridge, within the parliamentary quarters, the commissioners from the two parties met each other.[a] Those from the parliament had been commanded to admit of no deviation from the substance of the propositions already voted; to confine themselves to the task of showing that their demands were conformable to reason, and therefore not to be refused; and to insist that the questions of religion, the militia, and Ireland, should each be successively debated during the term of three days, and continued in rotation till twenty days had expired, when, if no agreement were made, the treaty should terminate. They demanded that episcopacy should be abolished, and the Directory be substituted in place of the Book of Common Prayer; that the command of the army and navy should be vested in the two houses, and intrusted by them to certain commissioners of their own appointment; and that the cessation in Ireland should be broken, and hostilities should be immediately renewed. The king's commissioners replied, that his conscience would not allow him to consent to the proposed change of religious worship, but that he was willing to consent to a law restricting the jurisdiction of the bishops within the narrowest bounds, granting every reasonable indulgence to tender consciences, and raising on the church property the sum of one hundred thousand

[Footnote 1: Charles was now persuaded even to address the two houses by the style of "the Lords and Commons assembled in the parliament of England at Westminster," instead of "the Lords and Commons of parliament assembled at Westminster," which he had formerly used.—Journals, vii. 91. He says he would not have done it, if he could have found two in the council to support him.—Works, 144, Evelyn's Mem. ii. App. 90. This has been alleged, but I see not with what reason, as a proof of his insincerity in the treaty.]

[Sidenote: A.D. 1645. Jan. 30.]

pounds, towards the liquidation of the public debt; that on the subject of the army and navy he was prepared to make considerable concessions, provided the power of the sword were, after a certain period, to revert unimpaired to him and his successors; and that he could not, consistently with his honour, break the Irish treaty, which he had, after mature deliberation, subscribed and ratified. Much of the time was spent in debates respecting the comparative merits of the episcopal and presbyterian forms of church government, and in charges and recriminations as to the real authors of the distress and necessity which had led to the cessation in Ireland. On the twentieth day nothing had been concluded. A proposal to prolong the negotiation was rejected by the two houses, and the commissioners returned to London and Oxford.[a] The royalists had, however, discovered that Vane, St. John, and Prideaux had come to Uxbridge not so much to treat, as to act the part of spies on the conduct of their colleagues; and that there existed an irreconcilable difference of opinion between the two parties, the Presbyterians seeking the restoration of royalty, provided it could be accomplished with perfect safety to themselves, and with the legal establishment of their religious worship, while the Independents sought nothing less than the total downfall of the throne, and the extinction of the privileges of the nobility.[1]

Both parties again appealed to the sword, but with very different prospects before them; on the side of the royalists all was lowering and gloomy, on that of the parliament bright and cheering. The king had

[Footnote 1: See Journals, vii. 163, 166, 169, 174, 181, 195, 211, 231, 239, 242-254; Clarendon, ii. 578-600.]

[Sidenote a: A.D. 1645. Feb. 22.]

derived but little of that benefit which he expected from the cessation in Ireland. He dared not withdraw the bulk of his army before he had concluded a peace with the insurgents; and they, aware of his difficulties, combined their demands, which he knew not how to grant, with an offer of aid which he was unwilling to refuse. They demanded freedom of religion, the repeal of Poyning's law, a parliamentary settlement of their estates, and a general amnesty, with this exception, that an inquiry should be instituted into all acts of violence and bloodshed not consistent with the acknowledged usages of war, and that the perpetrators should be punished according to their deserts, without distinction of party or religion. It was the first article which presented the chief difficulty. The Irish urged the precedent of Scotland; they asked no more than had been conceded to the Covenanters; they had certainly as just a claim to the free exercise of that worship, which had been the national worship for ages, as the Scots could have, to the exclusive establishment of a form of religion which had not existed during an entire century. But Charles, in addition to his own scruples, feared to irritate the prejudices of his Protestant subjects. He knew that many of his own adherents would deem such a concession an act of apostasy; and he conjured the Irish deputies not to solicit that which must prove prejudicial to him, and therefore to themselves: let them previously enable him to master their common enemies; let them place him in a condition "to make them happy," and he assured them on the word of a

king, that he would not "disappoint their just expectations." [1] They were not, however, to be satisfied

[Footnote 1: Clarendon, *Irish Rebellion*, 25.]

with vague promises, which might afterwards be interpreted as it suited the royal convenience; and Charles, to throw the odium of the measure from himself on his Irish counsellors, transferred the negotiation to Dublin, to be continued by the new lord lieutenant, the marquess of Ormond. That nobleman was at first left to his own discretion. He was then authorized to promise the non-execution of the penal laws for the present, and their repeal on the restoration of tranquillity; and, lastly, to stipulate for their immediate repeal, if he could not otherwise subdue the obstinacy, or remove the jealousy of the insurgents. The treaty at Uxbridge had disclosed to the eyes of the monarch the abyss which yawned before him; he saw "that the aim of his adversaries was a total subversion of religion and regal power;" and he commanded Ormond to conclude the peace whatever it might cost, provided it should secure the persons and properties of the Irish Protestants, and the full exercise of the royal authority in the island.[1]

[Footnote 1: Carte's *Ormond*, ii. App. xii. xiv. xv. xviii. iii. cccxxxi. He thus states his reasons to the lord lieutenant:—"It being now manifest that the English rebels have, as far as in them lies, given the command of Ireland to the Scots" (they had made Leslie, earl of Leven, commander-in-chief of all the English as well as Scottish forces in Ireland), "that their aim is the total subversion of religion and regal power, and that nothing less will content them, or purchase peace here; I think myself bound in conscience not to let slip the means of settling that kingdom (if it may be) fully under my obedience, nor lose that assistance which I may hope from my Irish subjects, for such scruples as in a less pressing condition might reasonably be stuck at by me.... If the suspension of Poining's act for such bills as shall

be agreed upon between you there, and the present taking away of the penal laws against papists by a law, will do it, I shall not think it a hard bargain, so that freely and vigorously they engage themselves in my assistance against my rebels of England and Scotland, for which no conditions can be too hard, not being against conscience or honour."—Charles's Works, 149, 150.]

In Scotland an unexpected but transient diversion had been made in favour of the royal cause. The earls, afterwards marquesses, of Antrim and Montrose had met in the court at Oxford. In abilities Montrose was inferior to few, in ambition to none. The reader is aware that he had originally fought in the ranks of the Covenanters, but afterwards transferred his services to Charles, and narrowly escaped the vengeance of his enemies. Now, that he was again at liberty, he aspired to the glory of restoring the ascendancy of the royal cause in Scotland. At first all his plans were defeated by the jealousy or wisdom of Hamilton; but Hamilton gradually sunk, whilst his rival rose in the esteem of the sovereign.[1] Antrim, his associate, was weak and capricious, but proud of his imaginary consequence, and eager to engage in undertakings to which neither his means nor his talents were equal. He had failed in his original attempt to surprise the castle of Dublin; and had twice fallen into the hands of the Scots in Ulster, and twice made his escape; still his loyalty or presumption was unsubdued, and he had come to Oxford to make a third tender of his services.

[Footnote 1: When Hamilton arrived at Oxford, Dec. 16, 1643, several charges were brought against him by the Scottish royalists, which with his answers may be seen in Burnet, *Memoirs*, 250-269. Charles pronounced no opinion; but his suspicions were greatly excited by the deception practised by Hamilton on the lords of the royal party at the convention, and his concealment from them of the king's real intentions. On this account

Hamilton was arrested, and conveyed to Pendennis Castle, in Cornwall, where he remained a prisoner till the place was taken by the parliamentary forces. Hamilton's brother Lanark was also forbidden to appear at court; and, having received advice that he would be sent to the castle of Ludlow, made his escape from Oxford to his countrymen in London, and thence returned to Edinburgh. His offence was, that he, as secretary, had affixed the royal signet to the proclamation of August 24, calling on all Scotsmen to arm in support of the new league and covenant.—See p. 36.]

Both Antrim and Montrose professed themselves the personal enemies of the earl of Argyle, appointed by the Scottish estates lieutenant of the kingdom; and they speedily arranged a plan, which possessed the double merit of combining the interest of the king with the gratification of private revenge. Having obtained the royal commission,[1] Antrim proceeded to Ulster, raised eleven or fifteen hundred men among his dependants, and despatched them to the opposite coast of Scotland under the command of his kinsman Alaster Macdonald, surnamed Colkitto.[2] They landed at Knoydart: the destruction of their ships in Loch Eishord, by a hostile fleet, deprived them of the means of returning to Ireland; and Argyle with a superior force cautiously watched their motions.[a] From the Scottish royalists they received no aid; yet Macdonald marched as far as Badenoch, inflicting severe injuries on the Covenanters, but exposed to destruction from the increasing multitude of his foes. In the mean time, Montrose, with the rank of lieutenant-general, had unfurled the royal standard at Dumfries; [b] but with so little success, that he hastily retraced his steps to Carlisle, where by several daring actions he rendered such services to the royal cause, that he received the title of marquess from the gratitude of the king. But the fatal battle of Marston Moor induced him to turn his thoughts once more towards Scotland;[c] and having ordered his followers to proceed to Oxford, on

[Footnote 1: He was authorized to treat with the confederate Catholics for ten thousand men; if their demands were too high, to raise as many men as he could and send them to the king; to procure the loan of two thousand men to be landed in Scotland; and to offer Monroe, the Scottish commander, the rank of earl and a pension of two thousand pounds per annum, if with his army he would join the royalists. Jan. 20, 1644.—Clarendon Papers, ii. 165.]

[Footnote 2: MacColl Keitache, son of Coll, the left-handed.]

[Sidenote a: A.D. 1644. July 8.]

[Sidenote b: A.D. 1644. April 13.]

[Sidenote c: A.D. 1644. May 6.]

the third day he silently withdrew with only two companions, and soon afterwards reached in the disguise of a groom the foot of the Grampian Hills. There he received intelligence of the proceedings of Macdonald, and appointed to join him in Athole.[a] At the castle of Blair, which had surrendered to the strangers, the two chieftains met: Montrose assumed the command, published the royal commission, and called on the neighbouring clans to join the standard of their sovereign. The Scots, who had scorned to serve under a foreigner, cheerfully obeyed, and to the astonishment of the Covenanters an army appeared to rise out of the earth in a quarter the most remote from danger; but it was an army better adapted to the purpose of predatory invasion than of permanent warfare. Occasionally it swelled to the amount of several thousands: as often it dwindled to the original band of Irishmen under Macdonald. These, having no other resource than their courage, faithfully clung to their gallant commander in all the vicissitudes of his fortune; the Highlanders, that they might secure their plunder, frequently left him to flee before the superior multitude of his foes.

The first who dared to meet the royalists in the field, was the lord Elcho, whose defeat at Tippermuir gave to the victors the town of Perth, with a plentiful supply of military stores and provisions.[b] From Perth they marched towards Aberdeen; the Lord Burley with his army fled at the first charge; and the pursuers entered the gates with the fugitives.[c] The sack of the town lasted three days: by the fourth many of the Highlanders had disappeared with the spoil; and Argyle approached with a superior force.[d] Montrose, to avoid the enemy, led his followers into Banff, proceeded

[Sidenote a: A.D. 1644. August 1.]

[Sidenote b: A.D. 1644. Sept. 1.]

[Sidenote c: A.D. 1644. Sept. 12.]

[Sidenote d: A.D. 1644. Sept. 19.]

along the right bank of the Spey, crossed the mountains of Badenoch, passed through Athole into Angus, and after a circuitous march of some hundred miles, reached and took the castle of Fyvie. There he was overtaken by the Covenanters, whom he had so long baffled by the rapidity and perplexity of his movements.[a] But every attempt to force his position on the summit of a hill was repelled; and on the retirement of the enemy, he announced to his followers his intention of seeking a safer asylum in the Highlands. Winter had already set in with severity; and his Lowland associates shrunk from the dreary prospect before them; but Montrose himself, accompanied by his more faithful adherents, gained without opposition the braes of Athole.

To Argyle the disappearance of the royalists was a subject of joy. Disbanding the army, he repaired, after a short visit to Edinburgh, to his castle of Inverary, where he reposed in security, aware, indeed, of the hostile projects of Montrose, but trusting to the wide barrier of snows and mountains which separated him from his enemy. But the royal leader

penetrated through this Alpine wilderness,[b] compelled Argyle to save himself in an open boat on Loch Tyne, and during six weeks wreaked his revenge on the domains and the clansmen of the fugitive. At the approach of Argyle with eleven hundred regular troops, he retired; but suddenly turning to the left, crossed the mountains, and issuing from Glennevis, surprised his pursuers at Inverlochy in Lochabar.[c] From his galley in the Frith Argyle beheld the assault of the enemy, the shock of the combatants, and the slaughter of at least one half of his whole force.[d] This victory placed the north of Scotland at the mercy of the conquerors.

[Sidenote a: A.D. 1644. Oct. 28.]

[Sidenote b: A.D. 1644. Dec. 13.]

[Sidenote c: A.D. 1645. Jan. 28.]

[Sidenote d: A.D. 1645. Feb. 2.]

From Inverlochy they marched to Elgin, and from Elgin to Aberdeen, ravaging, as they passed, the lands, and burning the houses of the Covenanters. But at Brechin, Baillie opposed their progress with a[a] numerous and regular force. Montrose turned in the direction of Dunkeld; Baillie marched to Perth. The former surprised the opulent town of Dundee; the latter arrived in time to expel the plunderers. But[b] he pursued in vain. They regained the Grampian hills, where in security they once more bade defiance to the whole power of the enemy. Such was the short and eventful campaign of Montrose. His victories, exaggerated by report, and embellished by the fancy of the hearers, cast a faint and deceitful lustre over the declining cause of royalty. But they rendered no other service. His passage was that of a meteor, scorching every thing in its course. Wherever he appeared, he inflicted the severest injuries; but he made no permanent conquest; he taught the Covenanters to tremble at his name, but he did nothing to arrest that ruin which menaced the throne and its adherents.[1]

England, however, was the real arena on which the conflict was to be decided, and in England the king soon found himself unable to cope with his enemies. He still possessed about one-third of the kingdom. From Oxford he extended his sway almost without interruption to the extremity of Cornwall: North and South Wales, with the exception of the castles of Pembroke and Montgomery, acknowledged his authority; and the royal standard was still unfurled in several

[Footnote 1: See Rushworth, v. 928-932; vi. 228; Guthrie, 162-183; Baillie, ii. 64, 65, 92-95; Clarendon, ii. 606, 618; Wishart, 67, 110; Journals, vii. 566; Spalding, ii. 237.]

[Sidenote a: A.D. 1645. March 25.]

[Sidenote b: A.D. 1645. April 4.]

towns in the midland comities.[1] But his army, under the nominal command of the prince of Wales, and the real command of Prince Rupert, was frittered away in a multitude of petty garrisons, and languished in a state of the most alarming insubordination. The generals, divided into factions, presumed to disobey the royal orders, and refused to serve under an adversary or a rival; the officers indulged in every kind of debauchery; the privates lived at free quarters; and the royal forces made themselves more terrible to their friends by their licentiousness than to their enemies by their valour.[2] Their excesses provoked new associations in the counties of Wilts, Dorset, Devon, Somerset, and Worcester, known by the denomination of Clubmen, whose primary object was the protection of private property, and the infliction of summary vengeance on the depredators belonging to either army. These associations were encouraged and organized by the neighbouring gentlemen; arms of every description were collected for their use; and they were known to assemble in numbers of four, six, and even ten thousand men. Confidence in their own strength,

and the suggestions of their leaders, taught them to extend their views; they invited the adjoining counties to follow their example, and talked of putting an end by force to the unnatural war which depopulated the country. But though they professed to observe the strictest neutrality between the contending parties, their meetings excited a well-founded jealousy

[Footnote 1: Rushworth, vi. 18-22.]

[Footnote 2: Clarendon, ii. 604, 633, 636, 642, 661, 668. "Good men are so scandalized at the horrid impiety of our armies, that they will not believe that God can bless any cause in such hands."—Lord Culpeper to Lord Digby. Clarendon Papers, ii. 189. Carte's Ormond, iii. 396, 399.]

on the part of the parliamentary leaders; who, the moment it could be done without danger, pronounced such associations illegal, and ordered them to be suppressed by military force.[1]

On the other side, the army of the parliament had been reformed according to the ordinance. The members of both houses had resigned their commissions, with the exception of a single individual, the very man with whom the measure had originated,—Lieutenant-General Cromwell. This by some writers has been alleged as a proof of the consummate art of that adventurer, who sought to remove out of his way the men that stood between him and the object of his ambition; but the truth is, that his continuation in the command was effected by a succession of events which he could not possibly have foreseen. He had been sent with Waller to oppose the progress of the royalists in the west; on his return he was ordered to prevent the junction of the royal cavalry with the forces under the king; and he then received a commission to protect the associated counties from insult.

[Footnote 1: Clarendon, ii. 665. Whitelock, March, 4, 11, 15. Rushw. vi. 52, 53, 61, 62. But the best account of the Clubmen is to be found in a letter from Fairfax to the committee of both kingdoms, preserved in the Journals of the Lords, vii. 184. They wore white ribbons for a distinction, prevented, as much as they were able, all hostilities between the soldiers of the opposite parties, and drew up two petitions in the same words, one to be presented to the king, the other to the parliament, praying them to conclude a peace, and in the meantime to withdraw their respective garrisons out of the country, and pledging themselves to keep possession of the several forts and castles, and not to surrender them without a joint commission from both king and parliament. Fairfax observes, that "their heads had either been in actual service in the king's army, or were known favourers of the party. In these two counties, Wilts and Dorset, they are abundantly more affected to the enemy than to the parliament. I know not what they may attempt."—Ibid. At length the two houses declared all persons associating in arms without authority, traitors to the commonwealth.—Journals, vii. 549.]

While he was employed in this service, the term appointed by the ordinance approached; but Fairfax expressed his unwillingness to part with so experienced an officer at such a crisis, and the two houses consented that he should remain forty days longer with the army. Before they expired, the great battle of Naseby had been fought: in consequence of the victory the ordinance was suspended three months in his favour; and afterwards the same indulgence was reiterated as often as it became necessary.[1]

It was evident that the army had lost nothing by the exclusion of members of parliament and the change in its organization. The commanders were selected from those who had already distinguished themselves by the splendour of their services and their devotion to the cause; the new regiments were formed of privates, who had served under Essex, Manchester, and Waller, and care was taken that the majority of both should

consist of that class of religionists denominated Independents. These men were animated with an enthusiasm of which at the present day we cannot form an adequate conception. They divided their time between military duties and prayer; they sang psalms as they advanced to the charge; they called on the name of the Lord, while they were slaying their enemies. The result showed that fanaticism furnished a more powerful stimulus than loyalty; the soldiers of God proved more than a match for the soldiers of the monarch.[2]

[Footnote 1: Journals, Feb. 27, May 10, June 16, Aug. 8. Lords' Journ. vii. 420, 535.]

[Footnote 2: Essex, Manchester, and Denbigh reluctantly tendered their resignations the day before the ordinance passed. The first died in the course of the next year (Sept. 14); and the houses, to express their respect for his memory, attended the funeral, and defrayed the expense out of the public purse.—Lords' Journals, viii. 508, 533.]

Charles was the first to take the field. He marched from Oxford at the head of ten thousand men, of whom more than one-half were cavalry; the siege of Chester[a] was raised at the sole report of his approach; and Leicester, an important post in possession of the parliament,[b] was taken by storm on the first assault. Fairfax[c] had appeared with his army before Oxford, where he expected to be admitted by a party within the walls; but the intrigue failed, and he received orders to proceed[d] in search of the king.[1] On the evening of the[e] seventh day his van overtook the rear of the royalists between Daventry and Harborough. Fairfax and his officers hailed with joy the prospect of a battle. They longed to refute the bitter taunts and sinister predictions of their opponents in the two houses; to prove that want of experience might be supplied by the union of zeal and talent; and to establish, by a victory over the king, the superiority of the

Independent over the Presbyterian party. Charles, on the contrary, had sufficient reason to decline an engagement.[2] His numbers had been diminished by the necessity of leaving a strong garrison in Leicester, and several reinforcements were still on their march to join the royal standard. But in the presence of the Roundheads the Cavaliers never listened to the suggestions of prudence. Early[f] in the morning the royal army formed in line about a mile south of Harborough. Till eight they awaited with patience the expected charge of the enemy; but

[Footnote 1: Lords' Journals, vii. 429, 431.]

[Footnote 2: So little did Charles anticipate the approach of the enemy, that On the 12th he amused himself with hunting, and on the 13th at supper time wrote to secretary Nicholas that he should march the next morning, and proceed through Landabay and Melton to Belvoir, but no further. Before midnight he had resolved to fight.—See his letter in Evelyn's Memoirs, ii. App. 97.]

[Sidenote a: A.D. 1645. May 7.]

[Sidenote b: A.D. 1645. May 15.]

[Sidenote c: A.D. 1645. May 31.]

[Sidenote d: A.D. 1645. June 6.]

[Sidenote e: A.D. 1645. June 13.]

[Sidenote f: A.D. 1645. June 14.]

Fairfax refused to move from his strong position near Naseby, and the king, yielding to the importunity of his officers, gave the word to advance. Prince Rupert commanded on the right. The enemy fled before him; six pieces of cannon were taken, and Ireton, the general of the parliamentary horse, was wounded, and for some time a prisoner in the hands of the victors.[1] But the lessons of experience had been thrown away upon Rupert. He urged the pursuit with his characteristic impetuosity, and, as at

Marston Moor, by wandering from the field suffered the victory to be won by the masterly conduct of Oliver Cromwell.

That commander found himself opposed to a weak body of cavalry under Sir Marmaduke Langdale. By both the fight was maintained with obstinate valour; but superiority of numbers enabled the former to press on the flanks of the royalists, who began to waver, and at last turned their backs and fled. Cromwell prudently checked the pursuit, and leaving three squadrons to watch the fugitives, directed the remainder of his force against the rear of the royal infantry. That body of men, only three thousand five hundred in number, had hitherto fought with the most heroic valour, and had driven the enemy's line, with the exception of one regiment, back on the reserve; but this unexpected charge broke their spirit; they threw down their arms and asked for quarter. Charles, who had witnessed their efforts and their danger, made every exertion to support them; he collected several

[Footnote 1: Ireton was of an ancient family in Nottinghamshire, and bred to the law. He raised a troop of horse for the parliament at the beginning of the war, and accepted a captain's commission in the new-modelled army. At the request of the officers, Cromwell had been lately appointed general of the horse, and, at Cromwell's request, Ireton was made commissary-general under him.—Journals, vii. 421. Rushworth, vi. 42.]

bodies of horse; he put himself at their head; he called on them to follow him; he assured them that one more effort would secure the victory. But the appeal was made in vain. Instead of attending to his prayers and commands, they fled, and forced him to accompany them. The pursuit was continued with great slaughter almost to the walls of Leicester; and one hundred females, some of them ladies of distinguished rank, were put to the sword under the pretence that they were Irish Catholics. In this fatal battle, fought near the village of Naseby, the king lost more than three thousand men, nine

thousand stand of arms, his park of artillery, the baggage of the army, and with it his own cabinet, containing private papers of the first importance. Out of these the parliament made a collection, which was published, with remarks, to prove to the nation the falsehoods of Charles, and the justice of the war.[1]

[Footnote 1: For this battle see Clarendon, ii. 655; Rushworth, vi. 42; and the Journals, vii. 433-436. May asserts that not more than three hundred men were killed on the part of the king, and only one hundred on that of the parliament. The prisoners amounted to five thousand.—May, 77. The publication of the king's papers has been severely censured by his friends, and as warmly defended by the advocates of the parliament. If their contents were of a nature to justify the conduct of the latter, I see not on what ground it could be expected that they should be suppressed. The only complaint which can reasonably be made, and which seems founded in fact, is that the selection of the papers for the press was made unfairly. The contents of the cabinet were several days in possession of the officers, and then submitted to the examination of a committee of the lower house; by whose advice certain papers were selected and sent to the Lords, with a suggestion that they should be communicated to the citizens in a common hall. But the Lords required to see the remainder; twenty-two additional papers were accordingly produced; but it was at the same time acknowledged that others were still kept back, because they had not yet been deciphered. By an order of the Commons the papers were afterwards printed with a preface contrasting certain passages in them with the king's former protestations.—Journals, June 23, 26, 30, July 3, 7; Lords', vii. 467, 469. Charles himself acknowledges that the publication, as far as it went, was genuine (Evelyn's Memoirs, App. 101); but he also maintains that other papers, which would have served to explain doubtful passages, had been purposely suppressed.—Clarendon Papers, ii. 187. See Baillie, ii. 136.]

After this disastrous battle, the campaign presented little more than the last and feeble struggles of an expiring party. Among the royalists hardly a man could be found who did not pronounce the cause to be desperate; and, if any made a show of resistance, it was more through the hope of procuring conditions for themselves, than of benefiting the interests of their sovereign. Charles himself bore his misfortunes with an air of magnanimity, which was characterized as obstinacy by the desponding minds of his followers. As a statesman he acknowledged the hopelessness of his cause; as a Christian he professed to believe that God would never allow rebellion to prosper; but, let whatever happen, he at least would act as honour and conscience called on him to act; his name should not descend to posterity as the name of a king who had abandoned the cause of God, injured the rights of his successors, and sacrificed the interests of his faithful and devoted adherents. From Leicester he retreated[a] to Hereford; from Hereford to Ragland Castle, the seat of the loyal marquess of Worcester; and thence to Cardiff, that he might more readily communicate with Prince Rupert at Bristol. Each day brought him a repetition of the most melancholy intelligence. Leicester had surrendered almost at the[b] first summons; the forces under Goring, the only body of royalists deserving the name of an army, were defeated by Fairfax at Lamport; Bridgewater, hitherto[c] deemed an impregnable fortress, capitulated after a[d]

[Transcriber's Note: No footnote 1 in the text]

[Footnote 1: Rushworth vi. 132. Clarendon, ii. 630.]

[Sidenote a: A.D. 1645 July 3.]

[Sidenote b: A.D. 1645 June 17.]

[Sidenote c: A.D. 1645 July 10.]

[Sidenote d: A.D. 1645 July 23.]

short siege; a chain of posts extending from that town to Lime, on the southern coast, cut off Devonshire and Cornwall, his principal resources, from all communication with the rest of the kingdom; and, what was still worse, the dissensions which raged among his officers and partisans in those counties could not be appeased either by the necessity of providing for the common safety, or by the presence and authority of the prince of Wales.[1] To add to his embarrassments, his three[a] fortresses in the north, Carlisle, Pontefract, and Scarborough,[b] which for eighteen months had defied all the efforts of the enemy, had now fallen, the first into the[c] hands of the Scots, the other two into those of the parliament. Under this accumulation of misfortunes many of his friends, and among them Rupert himself, hitherto the declared advocate of war, importuned him to yield to necessity, and to accept the conditions offered by the parliament. He replied that they viewed[d] the question with the eyes of mere soldiers and statesmen; but he was a king, and had duties to perform, from which no change of circumstances, no human power could absolve him,—to preserve the church, protect his friends, and transmit to his successors the lawful rights of the crown. God was bound to support his own cause: he might for a time permit rebels and traitors to prosper, but he would ultimately humble them before the throne of their sovereign.[2] Under

[Footnote 1: Clarendon, ii. 663, et seq. Rushw. vi. 50, 55, 57. Carte's Ormond, iii. 423.]

[Footnote 2: Clarendon, ii. 679. Lords' Journals, vii. 667. Only three days before his arrival at Oxford, he wrote (August 25) a letter to secretary Nicholas, with an order to publish its contents, that it was his fixed determination, by the grace of God, never, in any possible circumstances, to yield up the government of the church to papists, Presbyterians, or Independents, nor to injure his successors by lessening the ecclesiastical or military power bequeathed to him by his predecessors, nor to forsake the

defence of his friends, who had risked their lives and fortunes in his quarrel.
—Evelyn's Memoirs, ii. App. 104.]

[Sidenote a: A.D. 1645. June 28.]

[Sidenote b: A.D. 1645. July 21.]

[Sidenote c: A.D. 1645. July 25.]

[Sidenote d: A.D. 1645. July 31.]

this persuasion, he pictured to himself the wonderful things to be achieved by the gallantry of Montrose in Scotland, and looked forward with daily impatience to the arrival of an imaginary army of twenty thousand men from Ireland. But from such dreams he was soon awakened by the rapid increase of disaffection in the population around him, and by the rumoured advance of the Scots to besiege the city of Hereford. From Cardiff he hastily crossed the kingdom to Newark. Learning that the Scottish cavalry were in pursuit, he[a] left Newark, burst into the associated counties, ravaged the lands of his enemies, took the town of Huntingdon,[b] and at last reached in safety his court at Oxford.[c] It was not that in this expedition he had in view any particular object. His utmost ambition was, by wandering from place to place, to preserve himself from falling into the hands of his enemies before the winter. In that season the severity of the weather would afford him sufficient protection, and he doubted not, that against the spring the victories of Montrose, the pacification of Ireland, and the compassion of his foreign allies, would enable him to resume hostilities with a powerful army, and with more flattering prospects of success.[1]

At Oxford Charles heard of the victory gained at Kilsyth, in the neighbourhood of Stirling, by Montrose, who, if he had been compelled to retreat from Dundee, was still able to maintain the superiority in the Highlands. The first who ventured to measure[d] swords with the Scottish hero was the veteran general

[Footnote 1: Clarendon, ii. 677. Rushw. vi. 131. Carte's Ormond, iii. 415, 416, 418, 420, 423, 427. Baillie, ii, 152.]

[Sidenote a: A.D. 1645. August 21.]

[Sidenote b: A.D. 1645. August 24.]

[Sidenote c: A.D. 1645. August 28.]

[Sidenote d: A.D. 1645. May 5.]

Hurry: but the assailant fled from the conflict at Auldearn, and saved himself, with the small remnant of his force, within the walls of Inverness. To Hurry[a] succeeded with similar fortune Baillie, the commander-in-chief. The battle was fought at Alford, in the shire of Aberdeen; and few, besides the principal officers and the cavalry, escaped from the slaughter. A new army of ten thousand men was collected: four days were spent in fasting and prayer; and the host of God marched to trample under foot the host of the king. But the experience of their leader was controlled by the presumption of the committee of estates; and he, in submission to their orders, marshalled his men in a position near Kilsyth: his cavalry was broken by the[b] royalists at the first charge; the infantry fled without a blow, and about five thousand of the fugitives are said to have perished in the pursuit, which was continued for fourteen or twenty miles.[1] This victory placed the Lowlands at the mercy of the conqueror. Glasgow and the neighbouring shires solicited his clemency; the citizens of Edinburgh sent to him the prisoners who had been condemned for their adherence to the royal cause; and many of the nobility, hastening to his standard, accepted commissions to raise forces in the name of the sovereign. At this news the[c] Scottish cavalry, which, in accordance with the treaty of "brotherly assistance," had already advanced to Nottingham, marched back to the Tweed to protect their own country; and the king on the third day left Oxford with five thousand men, to drive the infantry

[Footnote 1: It was probably on account of the heat of the season that Montrose ordered his men to throw aside their plaids—*vestes molestiores*—and fight in their shirts; an order which has given occasion to several fanciful conjectures and exaggerations;—See Carte, iv. 538.]

[Sidenote a: A.D. 1645. July 2.]

[Sidenote b: A.D. 1645. August 15.]

[Sidenote c: A.D. 1645. August 26.]

from the siege of Hereford. They did not wait his arrival, and he entered the city amidst the joyful acclamations of the inhabitants.[1]

But Charles was not long suffered to enjoy his[a] triumph. Full of confidence, he had marched from Hereford to the relief of Bristol; but at Ragland Castle learned that it was already in possession of the enemy. This unexpected stroke quite unnerved him. That a prince of his family, an officer whose reputation for courage and fidelity was unblemished, should surrender in the third week of the siege an important city, which he had promised to maintain for four months, appeared to him incredible. His mind was agitated with suspicion and jealousy. He knew not whether to attribute the conduct of his nephew to cowardice, or despondency, or disaffection; but he foresaw and lamented its baneful influence on the small remnant of his followers. In the anguish of his mind[b] he revoked the commission of the prince, and commanded him to quit the kingdom; he instructed the council to watch his conduct, and on the first sign of disobedience to take him into custody; and he ordered the arrest of his friend Colonel Legge, and appointed Sir Thomas Glenham to succeed Legge, as governor of Oxford. "Tell my sone," he says in a letter to Nicholas, "that I shall lesse grieve to hear that he is knoked in the head, than that he should doe so meane an act as is the rendering of Bristoll castell and fort upon the termes it was." [2]

[Footnote 1: Rushworth, vi. 230. May. Guthrie, 194. Baillie, ii. 156, 157, 273. This defeat perplexed the theology of that learned man. I confess I am amazed, and cannot see to my mind's satisfaction, the reasons of the Lord's dealing with that land.... What means the Lord, so far against the expectation of the most clear-sighted, to humble us so low, and by his own immediate hand, I confess I know not."—Ibid.]

[Footnote 2: Clarendon, ii. 693. Rushworth, vi. 66-82. Journals, vi. 584. Ellis, iii. 311. Evelyn's Memoirs, ii. App, 108. The suspicion of Legge's fidelity was infused into the royal mind by Digby. Charles wished him to be secured, but refused to believe him guilty without better proof.—Ibid, 111.]

[Sidenote a: A.D. 1645. Sept. 10.]

[Sidenote b: A.D. 1645. Sept. 14.]

Whilst the king thus mourned over the loss of Bristol, he received still more disastrous intelligence from Scotland. The victory of Kilsyth had dissolved the royal army. The Gordons with their followers had returned to their homes; Colkitto. had led back the Highlanders to their mountains; and with the remnants not more than six hundred repaired to the borders to await the arrival of an English force which had been promised, but not provided, by Charles. In the mean while David Leslie had been detached with four thousand cavalry from the Scottish army in England. He crossed the Tweed,[a] proceeded northward, as if he meant to interpose himself between the enemy and the Highlands; and then returned suddenly to surprise them in their encampment at Philiphaugh. Montrose spent the night at Selkirk in preparing despatches for the king; Leslie, who was concealed at no great distance, crossing the Etrick at dawn, under cover of a dense fog, charged[b] unexpectedly into the camp of the royalists, who lay in heedless security on the Haugh. Their leader, with his guard of horse, flew to their succour; but, after a chivalrous but fruitless effort was compelled to retire

and abandon them to their fate. The greater part had formed themselves into a compact body, and kept the enemy at bay till their offer of surrender upon terms had been accepted. But then the ministers loudly demanded their lives; they pronounced the capitulation sinful, and therefore void; and had the satisfaction to behold the whole body of captives massacred in

[Sidenote a: A.D. 1645. Sept. 6.]

[Sidenote b: A.D. 1645. Sept. 13.]

cold blood, not the men only, but also every woman and child found upon the Haugh. Nor was this sacrifice sufficient. Forty females, who had made their escape, and had been secured by the country people, were a few days later delivered up to the victors, who, in obedience to the decision of the kirk, put them to death by throwing them from the bridge near Linlithgow into the river Avon. Afterwards the Scottish parliament approved of their barbarities, on the pretence that the victims were papists from Ireland; and passed an ordinance that the "Irische prisoners taken at and after Philiphaughe, in all the prisons in the kingdom, should be *execut* without any assaye or processes conform to the treaty betwixt both kingdoms." [1] Of the noblemen and gentlemen who fled with Montrose, many were also taken; and of these few escaped the hands of the executioner: Montrose himself threaded back his way to the Highlands, where he once more raised the royal standard, and, with a small force and diminished reputation, continued to bid defiance to his enemies. At length, in obedience to repeated messages from the king, he dismissed his followers, and reluctantly withdrew to the continent. [2] With the defeat of Montrose at Philiphaugh vanished those brilliant hopes with which the king had consoled himself for his former losses; but the activity of his enemies allowed him no leisure to indulge his grief; they had already formed a lodgment within the

[Footnote 1: Balfour, iii. 341. Thurloe, i. 72. The next year the garrison of Dunavertie, three hundred men, surrendered to David Leslie "at the kingdom's mercie." "They put to the sword," says Turner, "everie mother's sonne except one young man, Machoul, whose life I begged."—Turner's Memoirs, 46, also 48.]

[Footnote 2: Rush. vi. 237. Guthrie, 301. Journals, vi. 584. Wishart, 203. Baillie, ii. 164.]

[Sidenote a: A.D. 1645. Dec. 23.]

[Sidenote b: A.D. 1645. Sept. 3.]

suburbs of Chester, and threatened to deprive him of that, the only port by which he could maintain a communication with Ireland. He hastened to its relief, and was followed at the distance of a day's journey by Pointz, a parliamentary officer. It was the king's intention[a] that two attacks, one from the city, the other from the country, should be simultaneously made on the camp of the besiegers; and with this view he left the greater part of the royal cavalry at Boutenheath, under Sir Marmaduke Langdale, while he entered Chester himself with the remainder in the dusk of the evening. It chanced that Pointz meditated a similar attempt with the aid of the besiegers, on the force under Langdale; and the singular position of the armies marked the following day with the most singular vicissitudes of fortune. Early in the morning[b] the royalists repelled the troops under Pointz; but a detachment from the camp restored the battle, and forced them to retire under the walls of the city. Here, with the help of the king's guards, they recovered the ascendancy, but suffered themselves in the pursuit to be entangled among lanes and hedges lined with infantry, by whom they were thrown into irremediable disorder. Six hundred troopers fell in the action, more than a thousand obtained quarter, and the rest were scattered in every direction. The next night Charles repaired to Denbigh, collected the

fugitives around him, and, skilfully avoiding Pointz, hastened[c] to Bridgenorth, where he was met by his nephew Maurice from the garrison of Worcester.[1]

The only confidential counsellor who attended the king in this expedition was Lord Digby. That nobleman,

[Footnote 1: Clarendon, ii. 712. Thurloe, i. 3. Rush. vi. 117. Journals, vi. 608.]

[Sidenote a: A.D. 1645. Sept. 23.]

[Sidenote b: A.D. 1645. Sept. 23.]

[Sidenote c: A.D. 1645. Sept. 30.]

unfortunately for the interests of his sovereign, had incurred the hatred of his party: of some, on account of his enmity to prince Rupert; of the general officers, because he was supposed to sway the royal mind, even in military matters; and of all who desired peace, because to his advice was attributed the obstinacy of Charles in continuing the war. It was the common opinion that the king ought to fix his winter quarters at Worcester; but Digby, unwilling to be shut up during four months in a city of which the brother of Rupert was governor, persuaded him to proceed[a] to his usual asylum at Newark. There, observing that the discontent among the officers increased, he parted[b] from his sovereign, but on an important and honourable mission. The northern horse, still amounting to fifteen hundred men, were persuaded by Langdale to attempt a junction with the Scottish hero, Montrose, and to accept of Digby as commander-in-chief. The first achievement of the new general was the complete dispersion of the parliamentary infantry in the neighbourhood of Doncaster; but in a few days his own followers were dispersed by Colonel Copley at Sherburne. They rallied[c] at Skipton, forced their way through Westmoreland and Cumberland, and penetrated as far as Dumfries, but could nowhere meet

with intelligence of their Scottish friends. Returning to the borders, they disbanded near Carlisle, the privates retiring to their homes, the officers transporting themselves to the Isle of Man. Langdale remained at Douglas; Digby proceeded to the marquess of Ormond in Ireland.

Charles, during his stay at Newark, was made to

[Transcriber's Note: Footnote 1 not found in the text]

[Footnote 1: Clarendon, Hist. ii. 714. Clarendon Papers, ii. 199. Rushworth, vi. 131.]

[Sidenote a: A.D. 1645. Oct. 4.]

[Sidenote b: A.D. 1645. Oct. 12.]

[Sidenote c: A.D. 1645. Oct. 15.]

feel that with his good fortune he had lost his authority. His two nephews, the Lord Gerard, and about twenty other officers, entered his chamber, and, in rude and insulting language, charged him with ingratitude for their services, and undue partiality for the traitor Digby. The king lost the command of his temper, and, with more warmth than he was known to have betrayed on any other occasion, bade them quit his presence for ever. They retired, and the next morning received passports to go where they pleased. But it was now[a] time for the king himself to depart. The enemy's forces multiplied around Newark, and the Scots were advancing to join the blockade. In the dead of the night[b] he stole, with five hundred men, to Belvoir Castle; thence, with the aid of experienced guides, he threaded the numerous posts of the enemy; and on the second day reached, for the last time,[c] the walls of Oxford. Yet if he were there in safety, it was owing to the policy of the parliament, who deemed it more prudent to reduce the counties of Devon and Cornwall, the chief asylum of his adherents. For this purpose Fairfax, with the grand army, sat down before Exeter: Cromwell

had long ago swept away the royal garrisons between that city and the metropolis.[1]

The reader will have frequently remarked the king's impatience for the arrival of military aid from Ireland. It is now time to notice the intrigue on which he founded his hopes, and the causes which led to his disappointment. All his efforts to conclude a peace with the insurgents had failed through the obstinacy of the ancient Irish, who required as an indispensable

[Footnote 1: Clarendon, ii. 719-723. Rushworth, vi. 80-95. Journals, 671, 672.]

[Sidenote a: A.D. 1645. Oct. 29.]

[Sidenote b: A.D. 1645. Nov. 3.]

[Sidenote c: A.D. 1645. Nov. 5.]

condition the legal establishment of their religion.[1] The Catholics, they alleged, were the people of Ireland; they had now regained many of the churches, which, not a century before, had been taken from their fathers; and they could not in honour or conscience resign them to the professors of another religion. Charles had indulged a hope that the lord lieutenant would devise some means of satisfying their demand without compromising the character of his sovereign;[2] but the scruples or caution of Ormond compelled him to look out for a minister of less timid and more accommodating disposition, and he soon found one in the Lord Herbert, a Catholic, and son to the marquess of Worcester. Herbert felt the most devoted attachment to his sovereign. He had lived with him for twenty years in habits of intimacy: in conjunction with his father, he had spent above two hundred thousand pounds in support of the royal cause; and both had repeatedly and publicly avowed their determination to stand or fall with the throne. To him, therefore, the king explained his difficulties, his views,

and his wishes. Low as he was sunk, he had yet a sufficient resource left in the two armies in Ireland. With them he might make head against his enemies, and re-establish his authority. But unfortunately this powerful and necessary aid was withheld from him by the obstinacy of the Irish Catholics, whose demands were such, that, to grant them publicly would be to forfeit the affection and support of all the Protestants in his dominions. He knew but of one way to elude the difficulty,—the employment of a secret and

[Footnote 1: Rinuccini's MS. Narrative.]

[Footnote 2: See the correspondence in Carte's Ormond, ii. App. xv. xviii. xx. xxii.; iii. 372, 387, 401; Charles's Works, 155.]

confidential minister, whose credit with the Catholics would give weight to his assurances, and whose loyalty would not refuse to incur danger or disgrace for the benefit of his sovereign. Herbert cheerfully tendered his services. It was agreed that he should negotiate with the confederates for the immediate aid of an army of ten thousand men; that, as the reward of their willingness to serve the king, he should make to them certain concessions on the point of religion; that these should be kept secret, as long as the disclosure might be likely to prejudice the royal interests; and that Charles, in the case of discovery, should be at liberty to disavow the proceedings of Herbert, till he might find himself in a situation to despise the complaints and the malice of his enemies.[1]

For this purpose Herbert (now[a] created earl of Glamorgan) was furnished, 1. with a commission to levy men, to coin money, and to employ the revenues of the crown for their support; 2. with a warrant[b] to grant on certain conditions to the Catholics of Ireland such concessions as it was not prudent for the king or the lieutenant openly to make; 3. with a promise on the part of Charles to ratify whatever engagements his envoy might

conclude, even if they were contrary to law; 4. and with different letters for the pope, the nuncio, and the several princes from whom subsidies might be expected. But care was taken that none of these documents should come to the knowledge of the council. The commission was not sealed in the usual manner; the names of the persons to whom the letters were to be addressed were not inserted; and all the papers were in several respects informal; for this purpose, that the king might have a plausible pretext to

[Footnote 1: Clarendon Papers, ii. 201.]

[Sidenote a: A.D. 1645. Jan. 2.]

[Sidenote b: A.D. 1645. March 12.]

deny their authenticity in the event of a premature disclosure.[1]

Glamorgan proceeded on his chivalrous mission, and after many adventures and escapes, landed in safety in Ireland. That he communicated the substance of his instructions to Ormond, cannot be doubted; and, if there were aught in his subsequent proceedings of which the lord lieutenant remained ignorant, that ignorance was affected and voluntary on the part of Ormond.[2] At Dublin both joined in the negotiation with the Catholic deputies: from Dublin Glamorgan proceeded to Kilkenny, where the supreme council, satisfied with his authority, and encouraged by the advice of Ormond, concluded with him a treaty,[a] by which it was stipulated that the Catholics should enjoy the public exercise of their religion, and retain all churches, and the revenues of churches, which were not actually in possession of the Protestant clergy; and that in return they should, against a certain day, supply the king with a body of ten thousand armed men, and should devote two-thirds of the ecclesiastical revenues to his service during the war.[3]

[Footnote 1: See the authorities in Note (A).]

[Footnote 2: See the same.]

[Footnote 3: Dr. Leyburn, who was sent by the queen to Ireland in 1647, tells us, on the authority of the nuncio and the bishop of Clogher, "that my lord of Worcester (Glamorgan) was ready to justify that he had exactly followed his instructions, and particularly that concerning the lord lieutenant, whom he had made acquainted with all that he had transacted with the Irish, of which he could produce proof."—Birch, Inquiry, 322. Nor will any one doubt it, who attends, to the letter of Ormond to Lord Muskerry on the 11th of August, just after the arrival of Glamorgan at Kilkenny, in which, speaking of Glamorgan, he assured him, and through him the council of the confederates, that he knew "no subject in England upon whose favour and authority with his majesty they can better rely than upon his lordship's, nor ... with whom he (Ormond) would sooner agree for the benefit of this kingdom."—Birch, 62. And another to Glamorgan himself on Feb. 11th, in which he says, "Your lordship may securely go on in the way you have proposed to yourself, to serve the king, without fear of interruption from me, or so much as inquiring into the means you work by."—Ibid. 163. See also another letter, of April 6th, in Leland, iii. 283.]

[Sidenote a: A.D. 1645. August 25.]

To the surprise of all who were not in the secret, the public treaty now proceeded with unexpected facility. The only point in debate between the lord lieutenant and the deputies, respected their demand to be relieved by act of parliament from all penalties for the performance of the divine service and the administration of the sacraments, after any other form than that of the established church. Ormond was aware of their ulterior object: he became alarmed, and insisted on a proviso, that such article should not be construed to extend to any service performed, or sacraments administered, in cathedral or parochial churches. After repeated discussions, two

expedients were suggested; one, that in place of the disputed article should be substituted another, providing that any concession with respect to religion which the king might afterwards grant should be considered as making part of the present treaty; the other, that no mention should be made of religion at all, but that the lieutenant should sign a private engagement, not to molest the Catholics in the possession of those churches which they now held, but leave the question to the decision of a free parliament. To this both parties assented;^[a] and the deputies returned to Kilkenny to submit the result of the conferences to the judgment of the general assembly.^[1]

But before this, the secret treaty with Glamorgan, which had been concealed from all but the leading members of the council, had by accident come to the

[Footnote 1: Compare Carte, i. 548, with *Vindiciae Cath.* Hib. 11, 13.]

[Sidenote a: A.D. 1645. Nov. 11.]

knowledge of the parliament. About the middle of October, the titular archbishop of Tuam was slain in a skirmish^[a] between two parties of Scots and Irish near Sligo; and in the carriage of the prelate were found duplicates of the whole negotiation. The discovery was kept secret; but at Christmas Ormond received a copy of these important papers from a friend, with an intimation that the originals had been for some weeks in possession of the committee of both nations in London. It was evident that to save the royal reputation some decisive measure must be immediately taken. A council was called. Digby, who looked upon himself as the king's confidential minister, but had been kept in ignorance of the whole transaction, commented on it with extreme severity. Glamorgan had been guilty of unpardonable presumption. Without the permission of the king, or the privity of the lord lieutenant, he had concluded a treaty with the rebels, and pledged the king's name to the observance of conditions pregnant with the

most disastrous consequences. It was an usurpation of the royal authority; an offence little short of high treason. The accused, faithful to his trust, made but a feeble defence, and was committed to close custody. In the despatches from the council to Charles, Digby showed that he looked on the concealment which had been practised towards him as a personal affront, and expressed his sentiments with a warmth and freedom not the most grateful to the royal feelings.[1]

[Footnote 1: Rushworth, vi. 239, 240. Carte's Ormond, iii. 436-440. "You do not believe," writes Hyde to secretary Nicholas, "that my lord Digby knew of my lord Glamorgan's commission and negotiation in Ireland. I am confident he did not; for he shewed me the copies of letters which he had written to the king upon it, which ought not in good manners to have been written; and I believe will not be forgiven to him, by those for whose service they were written."—Clarendon Papers, ii. 346.]

[Sidenote a: A.D. 1645. Oct. 17.]

The unfortunate monarch was still at Oxford devising new plans and indulging new hopes. The dissensions among his adversaries had assumed a character of violence and importance which they had never before borne. The Scots, irritated by the systematic opposition of the Independents, and affected delays of the parliament, and founding the justice of their claim on the solemn league and covenant confirmed by the oaths of the two nations, insisted on the legal establishment of Presbyterianism, and the exclusive prohibition of every other form of worship. They still ruled in the synod of divines; they were seconded by the great body of ministers in the capital, and by a numerous party among the citizens; and they confidently called for the aid of the majority in the two houses, as of their brethren of the same religious persuasion. But their opponents, men of powerful intellect and invincible spirit, were supported by the swords and the merits of a

conquering army. Cromwell, from the field of Naseby, had written to express his hope, that the men who had achieved so glorious a victory might be allowed to serve God according to the dictates of their consciences. Fairfax, in his despatches, continually pleaded in favour of toleration. Seldon and Whitelock warned their colleagues to beware how they erected among them the tyranny of a Presbyterian kirk; and many in the two houses began to maintain that Christ had established no particular form of church government, but had left it to be settled under convenient limitations by the authority of the state.[1] Nor were their

[Footnote 1: Baillie, ii. 111, 161, 169, 183. Rushw. vi. 46, 85. Whitelock, 69, 172. Journals, vii. 434, 476, 620.]

altercations confined to religious matters. The decline of the royal cause had elevated the hopes of the English leaders. They no longer disguised their jealousy of the projects of their Scottish allies; they accused them of invading the sovereignty of England by placing garrisons in Belfast, Newcastle, and Carlisle; and complained that their army served to no other purpose than to plunder the defenceless inhabitants. The Scots haughtily replied, that the occupation of the fortresses was necessary for their own safety; and that, if disorders had occasionally been committed by the soldiers, the blame ought to attach to the negligence or parsimony of those who had failed in supplying the subsidies to which they were bound by treaty. The English commissioners remonstrated with the parliament of Scotland, the Scottish with that of England; the charges were reciprocally made and repelled in tones of asperity and defiance; and the occurrences of each day seemed to announce a speedy rupture between the two nations. Hitherto their ancient animosities had been lulled asleep by the conviction of their mutual dependence: the removal of the common danger called them again into activity.[1]

To a mind like that of Charles, eager to multiply experiments, and prone to believe improbabilities, the hostile position of these parties opened a new field for intrigue. He persuaded himself that by gaining either, he should be enabled to destroy both.[2] He therefore tempted the Independents with promises of ample

[Footnote 1: Journals, vii. 573, 619, 640-643, 653, 668, 689, 697, 703, viii. 27, 97. Baillie, ii. 161, 162, 166, 171, 185, 188.]

[Footnote 2: "I am not without hope that I shall be able to draw either the Presbyterians or Independents to side with me for extirpating the one the other, that I shall be really king again."—Carte's Ormond, iii. 452.]

rewards and unlimited toleration; and at the same time sought to win the Scots by professions of his willingness to accede to any terms compatible with his honour and conscience. Their commissioners in London had already made overtures for an accommodation to Queen Henrietta in Paris; and the French monarch, at her suggestion, had intrusted[a] Montreuil with the delicate office of negotiating secretly between them and their sovereign. From Montreuil Charles understood that the Scots would afford him an asylum in their army, and declare in his favour, if he would assent to the three demands made of him during the treaty at Uxbridge; a proposal which both Henrietta and the queen regent of France thought so moderate in existing circumstances, that he would accept it with eagerness and gratitude. But the king, in his own judgment, gave the preference to a project of accommodation with the Independents, because they asked only for toleration, while the Scots sought to force their own creed on the consciences of others; nor did he seem to comprehend the important fact, that the latter were willing at least to accept him for their king, while the former aimed at nothing less than the entire subversion of his throne.[1]

From Oxford he had sent several messages[b][c][d][e][f][g] to the parliament, by one of which he demanded passports for commissioners, or free and safe access for himself. To all a refusal was returned, on the ground that he had employed the opportunity afforded him by former treaties to tempt the fidelity of the commissioners, and that it was unsafe to indulge him with more facilities for conducting similar intrigues. Decency, however,

[Footnote 1: Clarendon Papers, ii. 209-211. Baillie, ii. 188. Thurloe, i. 72, 73, 85.]

[Sidenote a: A.D. 1645. August.]

[Sidenote b: A.D. 1645. Dec. 5.]

[Sidenote c: A.D. 1645. Dec. 15.]

[Sidenote d: A.D. 1645. Dec. 26.]

[Sidenote e: A.D. 1645. Dec. 29.]

[Sidenote f: A.D. 1646. Jan. 15.]

[Sidenote g: A.D. 1646. Jan. 17.]

required that in return the two houses should make their proposals; and it was resolved to submit to him certain articles for his immediate and unqualified approval or rejection. The Scots contended in favour of the three original propositions; but their opponents introduced several important alterations, for the twofold purpose, first of spinning out the debates, till the king should be surrounded in Oxford, and secondly of making such additions to the severity of the terms as might insure their rejection.[1]

Under these circumstances Montreuil admonished him that he had not a day to spare; that the Independents sought to deceive him to his own ruin; that his only resource was to accept of the conditions offered by the Scots; and that, whatever might be his persuasion respecting the origin of

episcopacy, he might, in his present distress, conscientiously assent to the demand respecting Presbyterianism; because it did not require him to introduce a form of worship which was not already established, but merely to allow that to remain which he had not the power to remove. Such, according to his instructions, was the opinion of the queen regent of France, and such was the prayer of his own consort, Henrietta Maria. But no argument could shake the royal resolution.[2] He returned[a] a firm but temperate refusal, and renewed his request for a personal conference at Westminster. The message was conveyed in terms as energetic as language could supply, but it arrived at a most unpropitious

[Footnote 1: Charles's Works, 548-550. Journals, viii. 31, 45, 53, 72. Baillie, ii. 144, 173, 177, 184, 190.]

[Footnote 2: Clarendon Papers, ii. 211-214. "Let not my enemies flatter themselves so with their good successes. Without pretending to prophesy, I will foretel their ruin, except they agree with me, however it shall please God to dispose of me."]

[Sidenote a: A.D. 1646. Jan. 20.]

moment, the very day on which the committee of both kingdoms thought proper to communicate to the two houses the papers respecting the treaty between Glamorgan and the Catholics of Ireland. Amidst the ferment and exasperation produced by the disclosure, the king's letter was suffered to remain unnoticed.[1]

The publication of these important documents imposed[a] on Charles the necessity of vindicating his conduct to his Protestant subjects; a task of no very easy execution, had he not availed himself of the permission which he had formerly extorted from the attachment of Glamorgan. In an additional message to the two houses, he protested that he had never given to that

nobleman any other commission than to enlist soldiers, nor authorized him to treat on any subject without the privity of the lord lieutenant; that he disavowed all his proceedings and engagements with the Catholics of Ireland; and that he had ordered the privy council in Dublin to proceed against him for his presumption according to law.[2] That council, however, [b] or at least the lord lieutenant, was in possession of a document unknown to the parliament, a copy of the warrant by which Charles had engaged to confirm whatever Glamorgan should promise in the royal name. On this account, in his answer to Ormond, he was compelled to shift his ground, and to assert that he had no recollection of any such warrant; that it was indeed possible he might have furnished the earl with some credential to the Irish Catholics; but that if he did, it was only with an understanding that it should not be employed without the knowledge and the approbation

[Footnote 1: Clarendon Papers, ii. 213. Journals, viii. 103, 125. Commons' iv. Jan. 16, 26. Charles's works, 551. Baillie, ii. 185.]

[Footnote 2: Journals, viii. 132. Charles's Works, 555.]

[Sidenote a: A.D. 1646. Jan. 29.]

[Sidenote b: A.D. 1646. Jan. 31.]

of the lord lieutenant. Whoever considers the evasive tendency of these answers, will find in them abundant proof of Glamorgan's pretensions.[1]

That nobleman had already recovered his liberty. To prepare against subsequent contingencies, and to leave the king what he termed "a starting-hole," he had been careful to subjoin to his treaty a secret article called a defeasance, stipulating that the sovereign should be no further bound than he himself might think proper, after he had witnessed the efforts of the Catholics in his favour; but that Glamorgan should conceal this release from the royal knowledge till he had made every exertion in his power to procure

the execution of the treaty.[2] This extraordinary instrument he now produced in his own vindication: the council ordered him to be discharged upon bail for his appearance when it might be required; and he[a] hastened under the approbation of the lord lieutenant, to resume his negotiation with the Catholics at Kilkenny. He found the general assembly divided into two parties. The clergy, with their adherents, opposed the adoption of any peace in which the establishment of the Catholic worship was not openly recognized; and their arguments were strengthened by the recent imprisonment of Glamorgan, and the secret influence of the papal nuncio Rinuccini, archbishop and prince of Fermo, who had lately landed in Ireland. On the other hand, the members of the council and the lords and gentlemen of the pale strenuously recommended the adoption of one of the two expedients which have

[Footnote 1: Carte, iii. 445-448.]

[Footnote 2: Compare Carte, i. 551, with the *Vindiciae*, 17. Neither of these writers gives us a full copy of the defeasance. In the *Vindiciae* we are told that it was this which procured Glamorgan's discharge from prison.]

[Sidenote a: A.D. 1646. Jan. 22.]

been previously mentioned, as offering sufficient security for the church, and the only means of uniting the Protestant royalists in the same cause with the Catholics. At the suggestion of the nuncio, the decision was postponed to the month of May; but Glamorgan did not forget the necessities of his sovereign; he obtained an immediate aid of six thousand men, and the promise of a considerable reinforcement, and proceeded to Waterford for the purpose of attempting to raise the siege of Chester. There, while he waited the arrival of transports, he received the news of the public disavowal of his authority by the king. But this gave him little uneasiness; he attributed it to the real cause, the danger with which Charles was

threatened; and he had been already instructed "to make no other account of such declarations, than to put himself in a condition to help his master and set him free." [1] In a short time the more distressing intelligence arrived that Chester had surrendered: the fall of Chester was followed by the dissolution of the royal army in Cornwall, under the command of Lord Hopton; and the prince of Wales, unable to remain there with safety, fled first to Scilly and thence to Jersey. There remained not a spot on the English coast where the Irish auxiliaries could be landed with any prospect of success. Glamorgan dispersed his army. Three hundred men accompanied the Lord Digby to form a guard for the prince; a more considerable body proceeded to Scotland in aid of Montrose; and the remainder returned to their former quarters. [2]

[Footnote 1: Birch, 189.]

[Footnote 2: Had Glamorgan's intended army of 10,000 men landed in England, the war would probably have assumed a most sanguinary character. An ordinance had passed the houses, that no quarter should be given to any Irishman, or any papist born in Ireland; that they should be excepted out of all capitulations; and that whenever they were taken, they should forthwith be put to death.—Rushworth, v. 729. Oct. 24, 1644. By the navy this was vigorously executed. The Irish sailors were invariably bound back to back, and thrown into the sea. At land we read of twelve Irish soldiers being hanged by the parliamentarians, for whom Prince Rupert hanged twelve of his prisoners.—Clarendon, ii. 623. After the victory of Naseby, Fairfax referred the task to the two houses. He had not, he wrote, time to inquire who were Irish and who were not, but had sent all the prisoners to London, to be disposed of according to law—Journals, vii. 433.]

In the mean while the king continued to consume his time in unavailing negotiations with the parliament, the Scots, and the Independents. 1. He had been persuaded that there were many individuals of considerable influence both in the city and the two houses, who anxiously wished for such an accommodation as might heal the wounds of the country: that the terror inspired by the ruling party imposed silence on them for the present; but that, were he in London, they would joyfully rally around him, and by their number and union compel his adversaries to lower their pretensions. This it was that induced him to solicit a personal conference at Westminster. He[a] now repeated the proposal, and, to make it worth acceptance, offered to grant full toleration to every class of Protestant dissenters, to yield to the parliament the command of the army during seven years, and to make over to them the next nomination of the lord admiral, the judges, and the officers of state. The insulting[b] silence with which this message was treated did not deter him from a third attempt. He asked whether, if he were to disband his forces, dismantle his garrisons, and return to his usual residence in the vicinity of the parliament, they, on their part, would pass their

[Sidenote a: A.D. 1646. Jan. 29.] [Sidenote b: A.D. 1646. March 23.]

word for the preservation of his honour, person, and estate, and allow his adherents to live without molestation on their own property. Even this proposal could not provoke an answer. It was plain that his enemies dare not trust their adherents in the royal presence; and, fearing that he might privately make his way into the city, they published an ordinance, that if the king came within the lines of communication, the officer of the guard should conduct him to St. James's, imprison his followers, and allow of no access to his person[a]; and at the same time they gave notice by proclamation that all Catholics, and all persons who had borne arms in the king's service, should depart within six days, under the penalty of being proceeded against as spies according to martial law.[1]

2. In the negotiation still pending between Montreuil and the Scottish commissioners, other matters were easily adjusted; but the question of religion presented an insurmountable difficulty, the Scots insisting that the presbyterian form of church government should be established in all the three kingdoms; the king consenting that it should retain the supremacy in Scotland, but refusing to consent to the abolition of episcopacy in England and Ireland.[2] To give a colour to the agency of Montreuil, Louis had appointed him the French resident in Scotland, and in that capacity he applied for permission to pass through Oxford on his way, that he might deliver to the king letters from his sovereign and the queen regent.[b] Objections were made; delays were created; but after the lapse of a fortnight, he obtained a passport[c]

[Footnote 1: Charles's Works, 556, 557. Rushworth, vi. 249. Journals, March 31, 1646. Carte's Ormond, iii. 452.]

[Footnote 2: Clarendon Papers, ii. 209-215.]

[Sidenote a: A.D. 1646. March 31.] [Sidenote b: A.D. 1646. Feb. 16.]
[Sidenote c: A.D. 1646. March 7.]

from the committee of the two kingdoms,[1] and employed his time at Oxford in persuading Charles of the necessity of concession, and in soliciting from the Scottish commissioners authority to assure their sovereign of safety as to person and conscience in the Scottish army. On the first of April he received from[a] Charles a written engagement, that he would take with him to their quarters before Newark "no man excepted by parliament, but only his nephews and Ashburnham," and that he would then listen to instruction in the matter of religion, and concede as far as his conscience would permit.[2] In return, Montreuil pledged to him the word of his sovereign and the queen regent of France,[3] that the Scots should receive him as their natural king, should offer no violence to his person or

conscience, his servants or followers, and should join their forces and endeavours with his to procure "a happy and well-grounded peace." On this understanding it was agreed that the king should attempt on the night of the following Tuesday to break through the parliamentary force lying round Oxford, and that at the same time a body of three hundred Scottish cavalry should advance as far as Harborough to receive him, and escort him in safety to their own army.[4]

[Footnote 1: Lords' Journ. viii. 171. Commons', Feb. 16, 28, March 4, 5, 7.]

[Footnote 2: Of this paper there were two copies, one to be kept secret, containing a protestation that none of the king's followers should be ruined or dishonoured; the other to be shown, containing no such protestation. "En l'un desquels, qui m'a esté donné pour faire voir, la protestation n'estoit point. Faite à Oxford ce premier Avril, 1646."—Clarend. Papers ii. 220.]

[Footnote 3: Why so? It had been so settled in Paris, because the negotiation was opened under their auspices, and conducted by their agent.—Clarend. Hist. ii. 750. Papers, ii. 209.]

[Footnote 4: Ibid. 220-222. It had been asked whether Montreuil had any authority from the Scottish commissioners to make such an engagement. I see no reason to doubt it. Both Charles and Montreuil must have been aware that an unauthorized engagement could have offered no security to the king in the hazardous attempt which he meditated. We find him twice, before the date of the engagement, requiring the commissioners to send *powers* to Montreuil to assure him of safety in person and conscience in their army (Clarendon Pap. ii. 218), and immediately afterwards informing Ormond that he was going to the Scottish army because he had lately received "very good security" that he and his friends should be safe in

person, honour, and conscience. See the letter in Lords' Journals, viii. 366, and account of a letter from the king to Lord Belasyse in pys, ii. 246.]

[Sidenote a: A.D. 1646. April 1.]

Two days later Montreuil resumed his pretended journey to Scotland, and repaired to Southwell, within the quarters assigned to the Scots. That they might without inconvenience spare a large escort to meet the[a] king, he had brought with him a royal order to Lord Belasyse to surrender Newark into their hands; but, to his surprise and dismay, he found that the commissioners to the army affected to be ignorant of the authority exercised by him at Oxford, and refused to take upon themselves the responsibility of meeting and receiving the king. They objected that it would be an act of hostility towards the parliament, a breach of the solemn league and covenant between the nations: nor would they even allow him to inform Charles of their refusal, till they should have a personal conference with their commissioners in London. In these circumstances he burnt the order for the surrender of Newark; and the king, alarmed at his unaccountable silence, made no attempt to escape from Oxford. A fortnight was passed in painful suspense. At last the two bodies of commissioners met[b] at Royston; and the result of a long debate was a sort of compromise between the opposite parties that the king should be received, but in such manner that all appearance of previous treaty or concert might be

[Sidenote a: A.D. 1646. April 3.]

[Sidenote b: A.D. 1646. April 11.]

avoided; that he should be requested to give satisfaction on the question of religion as speedily as possible, and that no co-operation of the royal forces with the Scots should be permitted. At first Montreuil, in the anguish of disappointment, was of opinion that no faith was to be put in the word of

a Scotsman: now he thought that he discovered a gleam of[a] hope in the resolution taken at Royston, and advised[b] the king to accept the proposal, if no better expedient[c] could be devised. It held out a prospect of safety, though it promised nothing more.[1]

3. During this negotiation the unfortunate monarch, though warned that, by treating at the same time with two opposite parties, he ran the risk of forfeiting the confidence of both, had employed Ashburnham to make proposals to the Independents through Sir Henry Vane. What the king asked from them was to facilitate his access to parliament. Ample rewards were held out to Vane, "to the gentleman, who was quartered[d] with him,"[2] and to the personal friends of both; and an assurance was given, that if the establishment of Presbyterianism were still made an indispensable condition of peace, the king would join his efforts with theirs "to root out of the kingdom that tyrannical government." From the remains of the correspondence it appears that to the first communication Vane had replied in terms which, though not altogether satisfactory, did not exclude the hope of his compliance; and Charles wrote to him a second time,

[Footnote 1: These particulars appear in the correspondence in Clarendon Papers, 221-226. Montreuil left Oxford on Friday; therefore on the 3rd.]

[Footnote 2: This gentleman might be Fairfax or Cromwell; but from a letter of Baillie (ii. 199, App. 3), I should think that he was an "Independent minister," probably Peters.]

[Sidenote a: A.D. 1646. April.]

[Sidenote b: A.D. 1646. April 18.]

[Sidenote c: A.D. 1646. April 20.]

[Sidenote d: A.D. 1646. March 2.]

repeating his offers, describing his distress, and stating that, unless he received a favourable answer within four days, he must have recourse to some other expedient.[1] The negotiation, however, continued for weeks; it was even discovered by the opposite party, who considered it as an artful scheme on the part of[a] the Independents to detain the king in Oxford, till Fairfax and Cromwell should bring up the army from Cornwall; to amuse the royal bird, till the fowlers had enclosed him in their toils.[2]

Oxford during the war had been rendered one of the strongest fortresses in the kingdom. On three sides the waters of the Isis and the Charwell, spreading over the adjoining country, kept the enemy at a considerable distance, and on the north the city was covered with a succession of works, erected by the most skilful engineers. With a garrison of five thousand men, and a plentiful supply of stores and provisions, Charles might have protracted his fate for several months; yet the result of a siege must have been his captivity. He possessed no army; he had no prospect of assistance from without; and within, famine would in the end compel him to surrender. But where was he to seek an asylum?

[Footnote 1: See two letters, one of March 2, from Ashburnham, beginning,

"Sir, you cannot suppose the work is done," and another without date from Charles, beginning, "Sir, I shall only add this word to what was said in my last." They were first published from the papers of secretary Nicholas, by Birch, in 1764, in the preface to a collection of "Letters between Colonel Hammond and the committee at Derby House, &c.," and afterwards in the Clarendon Papers, ii. 226, 227.]

[Footnote 2: See Baillie, App. 3, App. 23, ii. 199, 203. "Their daily treaties with Ashburnham to keep the king still, till they deliver him to Sir Thomas Fairfax, and to be disposed upon as Cromwell and his friend think

it fittest for their affairs."—Ibid. A different account is given in the continuation of Macintosh, vi. 21.]

[Sidenote a: A.D. 1646. April 23.]

Indignant at what he deemed a breach of faith in the Scots, he spurned the idea of throwing himself on[a] their mercy; and the march of Fairfax with the advanced guard of his army towards Andover admonished him that it was time to quit the city of Oxford. First he inquired by two officers the opinion of Ireton, who[b] was quartered at Waterstock, whether, if he were to disband his forces, and to repair to the general, the parliament would suffer him to retain the title and authority of king. Then, receiving no answer[c] from Ireton, he authorized the earl of Southampton to state to Colonel Rainborowe, that the king was ready to deliver himself up to the army, on receiving a pledge that his personal safety should be respected.[1] But Rainborowe referred him to the parliament; and the unhappy monarch, having exhausted every expedient which he could devise, left Oxford at midnight,[d] disguised as a servant, following his supposed master[e] Ashburnham, who rode before in company with Hudson, a clergyman, well acquainted with the country. They passed through Henley and Brentford to Harrow; but the time which was spent on the road proved either that Charles had hitherto formed no plan in his own mind, or that he lingered with the hope of some communication from his partisans in the metropolis. At last he turned in the direction of St. Alban's; and, avoiding that town, hastened through bye-ways to Harborough. If he expected to find there a body of[f] Scottish horse, or a messenger from Montreuil, he was disappointed. Crossing by Stamford, he rested at Downham,[g] and spent two or three days in fruitless inquiries for a ship which might convey him to Newcastle or Scotland, whilst Hudson repaired to the French agent

[Footnote 1: Hearne's Dunstable, ii. 787-790.]

[Sidenote a: A.D. 1646. April 22.]

[Sidenote b: A.D. 1646. April 25.]

[Sidenote c: A.D. 1646. April 26.]

[Sidenote d: A.D. 1646. April 27.]

[Sidenote e: A.D. 1646. April 28.]

[Sidenote f: A.D. 1646. April 30.]

at Southwell, and returned the bearer of a short note sent by Montreuil, from whom the messenger understood that the Scots had pledged their word—they would give no written document—to fulfill on their part the original engagement made in their name at Oxford.[1] On this slender security—for he had no[a] alternative—he repaired to the lodgings of Montreuil early in the morning, and about noon was conducted by a troop of horse to the head quarters at Kelham. Leslie and his officers, though they affected the utmost surprise, treated him with the respect due to their sovereign; and London in the name of the commissioners required that he should take the covenant, should order Lord Belasyse to surrender Newark, and should despatch a messenger with the royal command to Montrose to lay down his arms. Charles soon discovered that he was a prisoner, and when, to make the experiment, he undertook to give the word to the guard, he was interrupted by Leven, who said: "I am the older soldier, sir: your majesty had better leave that office to me."

For ten days the public mind in the capital had been

[Footnote 1: The Scots had made three offers or promises to the king. The first and most important was the engagement of the 1st of April. But the Scottish commissioners with the army shrunk from the responsibility of carrying it into execution; and, as it appears to me, with some reason, for they had not been parties to the contract. The second was the modified offer agreed upon by both bodies of commissioners at Royston. But this offer

was never accepted by the king, and consequently ceased to be binding upon them. The third was the verbal promise mentioned above. If it was made—and of a promise of safety there can be no doubt, though we have only the testimony of Hudson—the Scots were certainly bound by it, and must plead guilty to the charge of breach of faith, by subsequently delivering up the fugitive monarch to the English parliament.]

[Footnote 2: Peck, *Desid. Curios.* I. x. No. 8. Ashburnham, ii. 76. Rushworth, vi. 266, 267, 276. Clarendon, *Hist.* iii. 22; *Papers*, ii. 228. Turner, *Mem.* 41.]

[Sidenote a: A.D. 1646. May 5.]

agitated by the most contradictory rumours: the moment the place of the king's retreat was ascertained, both Presbyterians and Independents united in condemning the perfidy of their northern allies. Menaces of immediate hostilities were heard. Poyntz received orders to watch the motions of the Scots with five thousand horse; and it was resolved that Fairfax should follow with the remainder of the army. But the Scottish leaders, anxious to avoid a rupture, and yet unwilling to surrender the royal prize, broke up their camp before Newark, and retired with precipitation to Newcastle. Thence by dint of protestations and denials they gradually succeeded in allaying the ferment.[1] Charles contributed his share, by repeating his desire of an accommodation, and requesting the two houses to send to him the propositions of peace; and, as an earnest of his sincerity, he despatched a circular order[a] to his officers to surrender the few fortresses which still maintained his cause. The war was at an end; Oxford, Worcester, Pendennis, and Ragland opened[b] their gates; and to the praise of the conquerors it must be recorded, that they did not stain their laurels with blood. The last remnants of the royal army obtained honourable terms from the generosity

of Fairfax; easy compositions for the redemption of their estates were held out to the great majority of the

[Footnote 1: See their messages in the Lords' Journals, viii. 307, 308, 311, 364; Hearne's *Dunstable*, ii. 790-800. They protest that they were astonished at the king's coming to their army; that they believed he must mean to give satisfaction, or he would never have come to them; that his presence would never induce them to act in opposition to the solemn league and covenant; that they should leave the settlement of all questions to the parliaments of the two nations; that there had been no treaty between the king and them; and that the assertion in the letter published by Ormond was "a damnable untruth."]

[Sidenote a: A.D. 1646. June 10.]

[Sidenote b: A.D. 1646. August 20.]

royalists; and the policy of the measure was proved by the number of those who hastened to profit by the indulgence, and thus extinguished the hopes of the few who still thought it possible to conjure up another army in defence of the captive monarch.[1]

While the two houses, secure of victory, debated at their leisure the propositions to be submitted for acceptance to the king, the Scots employed the interval in attempts to convert him to the Presbyterian creed. For this purpose, Henderson, the most celebrated of their ministers, repaired from London to Newcastle. The king, according to his promise, listened to the arguments of his new instructor; and an interesting controversy respecting the divine institution of episcopacy and presbyteracy was maintained with no contemptible display of skill between the two polemics. Whether Charles composed without the help of a theological monitor the papers, which on this occasion he produced, may perhaps be doubted; but the

author whoever he were, proved himself a match, if not more than a match, for his veteran opponent.[2] The Scottish

[Footnote 1: Journals, viii. 309, 329, 360, 374, 475. Baillie, ii. 207, 209. Rush. vi. 280-297. The last who submitted to take down the royal standard was the marquess of Worcester. He was compelled to travel, at the age of eighty, from Ragland Castle to London, but died immediately after his arrival. As his estate was under sequestration, the Lords ordered a sum to be advanced for the expenses of his funeral.—Journals, viii. 498, 616. See Note (B) at the end of the volume.]

[Footnote 2: The following was the chief point in dispute. Each had alleged texts of Scripture in support of his favourite opinion, and each explained those texts in an opposite meaning. It was certainly as unreasonable that Charles should submit his judgment to Henderson, as that Henderson should submit his to that of Charles. The king, therefore, asked who was to be judge between them. The divine replied, that Scripture could only be explained by Scripture, which, in the opinion of the monarch, was leaving the matter undecided. He maintained that antiquity was the judge. The church government established by the apostles must have been consonant to the meaning of the Scripture. Now, as far as we can go back in history, we find episcopacy established: whence it is fair to infer that episcopacy was the form established by the apostles. Henderson did not allow the inference. The church of the Jews had fallen into idolatry during the short absence of Moses on the mount, the church of Christ might have fallen into error in a short time after the death of the apostles. Here the controversy ended with the sickness and death of the divine.—See Charles's Works, 75-90.]

leaders, however, came with political arguments to the aid of their champion. They assured[a] the king that his restoration to the royal

authority, or his perpetual exclusion from the throne, depended on his present choice. Let him take the covenant, and concur in the establishment of the Directory, and the Scottish nation to a man, the English, with the sole exception of the Independents, would declare in his favour. His conformity in that point alone could induce them to mitigate the severity of their other demands, to replace him on the throne of his ancestors, and to compel the opposite faction to submit. Should he refuse, he must attribute the consequences to himself. He had received sufficient warning: they had taken the covenant, and must discharge their duty to God and their country.

It was believed then, it has often been repeated since, that the king's refusal originated in the wilfulness and obstinacy of his temper; and that his repeated appeals to his conscience were mere pretexts to disguise his design of replunging the nation into the horrors from which it had so recently emerged. But this supposition is completely refuted by the whole tenour of his secret correspondence with his queen and her council in France. He appears to have divided his objections into two classes, political and religious. 1. It was, he alleged, an age in which mankind were governed from the pulpit: whence it became an object

[Sidenote a: A.D. 1646. July 13.]

of the first importance to a sovereign to determine to whose care that powerful engine should be intrusted. The principles of Presbyterianism were anti-monarchical; its ministers openly advocated the lawfulness of rebellion; and, if they were made the sole dispensers of public instruction, he and his successors might be kings in name, but would be slaves in effect. The wisest of those who had swayed the sceptre since the days of Solomon had given his sanction to the maxim "no bishop no king;" and his own history furnished a melancholy confirmation of the sagacity of his father. 2. The origin of episcopacy was a theological question, which he had made it

his business to study. He was convinced that the institution was derived from Christ, and that he could not in conscience commute it for another form of church government devised by man. He had found episcopacy in the church at his accession; he had sworn to maintain it in all its rights; and he was bound to leave it in existence at his death. Once, indeed, to please the two houses, he had betrayed his conscience by assenting to the death of Strafford: the punishment of that transgression still lay heavy on his head; but should he, to please them again, betray it once more, he would prove himself a most incorrigible sinner, and deserve the curse both of God and man.[1]

The king had reached Newark in May: it was the end of July before the propositions of peace were submitted[a] to his consideration. The same in substance with those of the preceding year, they had yet been aggravated by new restraints, and a more numerous

[Footnote 1: For all these particulars, see the Clarendon Papers, ii. 243, 248, 256, 260, 263, 265, 274, 277, 295; Baillie, ii. 208, 209, 214, 218, 219, 236, 241, 242, 243, 249.]

[Sidenote a: A.D. 1646. July 24.]

list of proscriptions. On the tenth day,[a] the utmost limit of the time allotted to the commissioners, Charles replied that it was impossible for him to return an unqualified assent to proposals of such immense importance; that without explanation he could not comprehend how much of the ancient constitution it was meant to preserve, how much to take away; that a personal conference was necessary for both parties, in order to remove doubts, weigh reasons, and come to a perfect understanding; and that for this purpose it was his intention to repair to Westminster whenever the two houses and the Scottish commissioners would assure him that he might reside there with freedom, honour, and safety.[1]

This message, which was deemed evasive, and therefore unsatisfactory, filled the Independents with joy, the Presbyterians with sorrow. The former disguised no longer their wish to dethrone the king, and either to set up in his place his son the duke of York, whom the surrender of Oxford had delivered into their hands, or, which to many seemed preferable, to substitute a republican for a monarchical form of government. The Scottish commissioners sought to allay the ferment, by diverting the attention of the houses. They expressed[b] their readiness not only to concur in such measures as the obstinacy of the king should make necessary, but on the receipt of a compensation for their past services, to withdraw their army into their own country. The offer was cheerfully accepted; a committee assembled to balance the accounts between

[Footnote 1: Journals, viii. 423, 447, 460. The king now wished to escape from the Scots. Ashburnham was instructed to sound Pierpoint, one of the parliamentary commissioners, but Pierpoint refused to confer with him.—Ashburn. ii. 78.]

[Sidenote a: A.D. 1646. August 2.]

[Sidenote b: A.D. 1646. August 11.]

the nations; many charges on both sides were disputed and disallowed; and at last the Scots agreed[a] to accept four hundred thousand pounds in lieu of all demands, of which one half should be paid before they left England, the other after their arrival in Scotland.[1]

At this moment an unexpected vote[b] of the two houses gave birth to a controversy unprecedented in history. It was resolved that the right of disposing of the king belonged to the parliament of England. The Scots hastened to remonstrate. To dispose of the king was an ambiguous term; they would assume that it meant to determine where he should reside until harmony was restored between him and his people. But it ought to be

remembered that he was king of Scotland as well as of England; that each nation had an interest in the royal person; both had been parties in the war; both had a right to be consulted respecting the result. The English, on the contrary, contended that the Scots were not parties, but auxiliaries, and that it was their duty to execute the orders of those whose bread they ate, and whose money they received. Scotland was certainly an independent kingdom. But its rights were confined within its own

[Footnote 1: Journals, viii. 461, 485. Baillie, ii. 222, 223, 225, 267. Rush. vi. 322-326. To procure the money, a new loan was raised in the following manner. Every subscriber to former loans on the faith of parliament, who had yet received neither principal nor interest, was allowed to subscribe the same sum to the present loan, and, in return, both sums with interest were to be secured to him on the grand excise and the sale of the bishops' lands. For the latter purpose, three ordinances were passed; one disabling all persons from holding the place, assuming the name, and exercising the jurisdiction of archbishops or bishops within the realm, and vesting all the lands belonging to archbishops and bishops in certain trustees, for the use of the nation (Journals, 515); another securing the debts of subscribers on these lands (ibid. 520); and a third appointing persons to make contracts of sale, and receive the money.—Journals of Commons, Nov. 16.]

[Sidenote a: A.D. 1646. Sept. 5.]

[Sidenote b: A.D. 1646. Sept. 21.]

limits; it could not claim, it should not exercise, any authority within the boundaries of England. This altercation threatened to dissolve the union between the kingdoms. Conferences were repeatedly[a][b] held. The Scots published their speeches; the Commons ordered the books to be seized, and the printers to be imprisoned; and each party obstinately refused either to admit the pretensions of its opponents, or even to yield to a compromise.

But that which most strongly marked the sense of the parliament, was a vote[c] providing money for the payment of the army during the next six months; a very intelligible hint of their determination to maintain their claim by force of arms, if it were invaded by the presumption of their allies.
[1]

This extraordinary dispute, the difficulty of raising an immediate loan, and the previous arrangements for the departure of the Scots, occupied the attention of the two houses during the remainder of the year. Charles had sufficient leisure to reflect on the fate which threatened him. His constancy seemed to relax; he consulted[d] the bishops of London and Salisbury: and successively proposed several unsatisfactory expedients, of which the object was to combine the toleration of episcopacy with the temporary or partial establishment of Presbyterianism. The lords voted[e] that he should be allowed to reside at Newmarket; but the Commons refused[f] their consent; and ultimately both houses fixed on Holmby, in the vicinity of Northampton.[2] No notice was taken of the security

[Footnote 1: Journals, 498, 534. Commons', Oct. 7, 13, 14, 16. Rush. vi. 329-373. Baillie, ii. 246.]

[Footnote 2: "Holdenby or Holmby, a very stately house, built by the lord chancellor Hatton, and in King James's reign purchased by Q. Anne for her second son."—Herbert, 13. It was, therefore, the king's own property.]

[Sidenote a: A.D. 1646. Oct. 1.]

[Sidenote b: A.D. 1646. Oct. 7.]

[Sidenote c: A.D. 1646. Oct. 13.]

[Sidenote d: A.D. 1646. Sept. 30.]

[Sidenote e: A.D. 1646. Dec. 16.]

[Sidenote f: A.D. 1646. Dec. 31.]

which he had demanded for his honour and freedom, but a promise was given that respect should be had to the safety of his person in the defence of the true[a] religion and the liberties of the two kingdoms, according to the solemn league and covenant. This vote was communicated to the Scottish commissioners at Newcastle, who replied that they awaited the commands[b] of their own parliament.[1]

In Scotland the situation of the king had been the subject of many keen and animated debates. In the parliament his friends were active and persevering; and their efforts elicited a resolution that the commissioners[c] in London should urge with all their influence his request of a personal conference. Cheered by this partial success, they proposed a vote expressive of their determination to support, under all circumstances, his right to the English throne. But at this moment arrived the votes of the two houses for his removal to Holmby: the current of Scottish loyalty was instantly checked; and the fear of a rupture between the nations induced the estates to observe a solemn fast, that they might deserve the blessing of Heaven, and to consult the commissioners of the kirk, that they might proceed with a safe conscience. The answer was such as might have been expected from the bigotry of the age: that it was unlawful to assist in the restoration of a prince, who had been excluded from the government of his kingdom, for his refusal of the propositions respecting religion and the covenant. No man ventured to oppose the decision of the kirk. In a house of two hundred

[Footnote 1: Clarendon Papers, ii. 265, 268, 276. Journals, 622, 635, 648, 681. Commons' Journals, Dec. 24. His letter to the bishop of London is in Ellis, iii. 326, 2nd ser.]

[Sidenote a: A.D. 1647. Jan. 6.]

[Sidenote b: A.D. 1647. Jan. 12.]

[Sidenote c: A.D. 1646. Dec. 16.]

members, not more than seven or eight were found to speak in favour of their sovereign. A resolution was voted that he should be sent to Holmby, or some other of his houses near London, to remain there till he had assented to the propositions of peace; and all that his friends could obtain was an amendment more expressive of their fears than of their hopes, that no injury[a] or violence should be offered to his person, no obstacle be opposed to the legitimate succession of his children, and no alteration made in the existing government of the kingdoms. This addition was cheerfully adopted by the English House of Lords; but the Commons did not vouchsafe to honour it with their notice. The first[b] payment of one hundred thousand pounds had already been made at Northallerton: the Scots, according to[c] agreement, evacuated Newcastle; and the parliamentary commissioners, without any other ceremony, took charge of the royal person. Four days later the Scots[d] received the second sum of one hundred thousand pounds; their army repassed the border-line between the two kingdoms; and the captive monarch, under a[e] strong guard, but with every demonstration of respect, was conducted to his new prison at Holmby.[1]

The royalists, ever since the king's visit to Newark, had viewed with anxiety and terror the cool calculating policy of the Scots. The result converted their suspicions into certitude: they hesitated not to accuse them of falsehood and perfidy, and to charge them with having allured the king to their army by deceitful promises, that, Judas-like, they might barter him for money with his enemies. Insinuations so injurious

[Footnote 1: Journals, viii. 686, 689, 695, 699, 713. Commons', Jan. 25, 26, 27. Baillie, ii. 253. Rush. vi. 390-398. Whitelock, 233. Thurloe, i. 73, 74.]

[Sidenote a: A.D. 1647. Jan. 25.]

[Sidenote b: A.D. 1647. Jan. 21.]

[Sidenote c: A.D. 1647. Jan. 30.]

[Sidenote d: A.D. 1647. Feb. 3.]

[Sidenote e: A.D. 1647. Feb. 16.]

to the character of the nation ought not to be lightly admitted. It is, indeed, true that fanaticism and self-interest had steeled the breasts of the Covenanters against the more generous impulses of loyalty and compassion; and that, by the delivery of the king to his enemies, they violated their previous pledge of personal safety, which, if once given, though by word only, ought to have been sacredly fulfilled. But there is no ground for the statement, that they held out promises to delude the unfortunate prince. It was with reluctance that they consented to receive him at all; and, when at last he sought an asylum in their army, he came thither, not allured by invitation from them, but driven by necessity and despair. 2. If the delivery of the royal person, connected as it was with the receipt of £200,000, bore the appearance of a sale, it ought to be remembered, that the accounts between the two nations had been adjusted in the beginning of September; that for four months afterwards the Scots never ceased to negotiate in favour of Charles; nor did they resign the care of his person, till the votes of the English parliament compelled them to make the choice between compliance or war. It may be, that in forming their decision their personal interest was not forgotten; but there was another consideration which had no small weight even with the friends of the monarch. It was urged that by suffering the king to reside at Holmby, they would do away with the last pretext for keeping on foot the army under the command of Fairfax; the dissolution of that army would annihilate the influence of the Independents, and give an undisputed ascendancy to the Presbyterians; the first the declared enemies, the others the avowed advocates of Scotland, of the kirk, and of the king; and the necessary

consequence must be, that the two parliaments would be left at liberty to arrange, in conformity with the covenant, both the establishment of religion and the restoration of the throne.[1]

Charles was not yet weaned from the expectation of succour from Ireland. At Newcastle he had consoled the hours of his captivity with dreams of the mighty efforts for his deliverance, which would be made by Ormond, and Glamorgan, and the council at Kilkenny. To the first of these he forwarded two messages, one openly through Lanark, the Scottish secretary, the other clandestinely through Lord Digby, who proceeded to Dublin from France. By the first Ormond received a positive command to break off the treaty with the Catholics; by the second he was told to adhere to his former instructions, and to obey no order which was not transmitted to him by the queen or the prince.[a] The letter to Glamorgan proves more clearly the distress to which he was reduced, and the confidence which he reposed in the exertions of that nobleman. "If," he writes, "you can raise a large sum of money by pawning my kingdoms for that purpose, I am content you should do it; and if I recover them, I will fully repay that money. And tell the nuncio, that if once I can come into his and your hands, which ought to be extremely wish'd"

[Footnote 1: See the declarations of Argyle in Laing, iii. 560; and of the Scottish commissioners, to the English parliament, Journals, ix. 594, 598. "Stapleton and Hollis, and some others of the eleven members, had been the main persuaders of us to remove out of England, and leave the king to them, upon assurance, which was most likely, that this was the only means to get that evil army disbanded, the king and peace settled according to our minds; but their bent execution of this real intention has undone them, and all, till God provide a remedy."—Baillie, ii. 257.]

[Sidenote a: A.D. 1646. July 20.]

for by you, both, as well for the sake of England as Ireland, since all the rest, as I see, despise me, I will do it. And if I do not say this from my heart, or if in any future time I fail you in this, may God never restore me to my kingdoms in this world, nor give me eternal happiness in the next, to which I hope this tribulation will conduct me at last, after I have satisfied my obligations to my friends, to none of whom am I so much obliged as to yourself, whose merits towards me exceed all expressions that can be used by

Your constant friend,

CHARLES R."[1]

But religion was still the rock on which the royal hopes were destined[a] to split. The perseverance of the supreme council at Kilkenny prevailed in appearance over the intrigues of the nuncio and the opposition of the clergy. The peace was reciprocally signed; it was published with more than usual parade in the cities of Dublin and Kilkenny; but at the same time a national synod at Waterford not only condemned it[b] as contrary to the oath of association, but on that ground excommunicated its authors, fautors, and abettors as guilty of perjury. The struggle between the advocates and opponents of the peace was soon terminated. The men of Ulster under Owen O'Neil, proud of their recent victory (they had almost annihilated

[Footnote 1: Birch, Inquiry, 245. I may here mention that Glamorgan, when he was marquess of Worcester, published "A Century of the "Names and Scantlings of such Inventions," &c., which Hume pronounces "a ridiculous compound of lies, chimeras, and impossibilities, enough to show what might be expected from such a man." If the reader peruse Mr. Partington's recent edition of this treatise, he will probably conclude that the historian had never seen it, or that he was unable to comprehend it.]

[Sidenote a: A.D. 1646. July 29.]

[Sidenote b: A.D. 1646. August 6.]

the Scottish army in the sanguinary battle of Benburb), espoused the cause of the clergy; Preston, who commanded the forces of Leinster, after some hesitation, declared also in their favour; the members of the old council who had subscribed the treaty were imprisoned, and a new council was established, consisting of eight laymen and four clergymen, with the nuncio at their head. Under their direction, the two armies marched to besiege Dublin: it was saved by the prudence of Ormond, who had wasted the neighbouring country, and by the habits of jealousy and dissension which prevented any cordial co-operation between O'Neil and Preston, the one of Irish, the other of English descent. Ormond, however, despaired of preserving the capital against their repeated attempts; and the important question for his decision was, whether he should surrender it to them or to the parliament. The one savoured of perfidy to his religion, the other[a] of treachery to his sovereign. He preferred the latter. The first answer to his offer he was induced to reject as derogatory from his honour: a second negotiation followed; and he at last consented to resign to the parliament the sword, the emblem of his office, the[b] castle of Dublin, and all the fortresses held by his troops, on the payment of a certain sum of money, a grant of security for his person, and the restoration of his lands, which had been sequestrated. This agreement was performed. Ormond came to England, and the king's hope of assistance from Ireland was once more disappointed.[1]

Before the conclusion of this chapter, it will be

[Footnote 1: Journals, viii. 519, 522; ix. 29, 32, 35. The reader will find an accurate account of the numerous and complicated negotiations respecting Ireland in Birch, Inquiry, &c., p. 142-261.]

[Sidenote a: A.D. 1646. Oct. 14.]

[Sidenote b: A.D. 1647. Feb. 22.]

proper to notice the progress which had been made in the reformation of religion. From the directory for public worship, the synod and the houses proceeded to the government of the church. They divided the kingdom into provinces, the provinces into classes, and the classes into presbyteries or elderships; and established by successive votes a regular gradation of authority among these new judicatories, which amounted, if we may believe the ordinance, to no fewer than ten thousand. But neither of the great religious parties was satisfied. 1. The Independents strongly objected to the intolerance of the Presbyterian scheme;^[1] and though willing that it should be protected and countenanced by the state, they claimed a right to form, according to the dictates of their consciences, separate congregations for themselves. Their complaints were received with a willing ear by the two houses, the members of which (so we are told by a Scottish divine who attended the assembly at Westminster) might be divided into four classes: the Presbyterians, who, in number and influence, surpassed any one of the other three; the Independents, who, if few in number, were yet distinguished by the superior talents and industry of their leaders; the lawyers, who looked with jealousy on any attempt to erect an ecclesiastical power independent of the legislature; and the men of irreligious habits, who dreaded the stern and scrutinizing discipline of a Presbyterian kirk. The two last occasionally

[Footnote 1: Under the general name of Independents, I include, for convenience, all the different sects enumerated at the time by Edwards in his *Gangraena*,—Independents, Brownists, Millenaries, Antinomians, Anabaptists, Arminians, Libertines, Familists, Enthusiasts, Seekers, Perfectists, Socinians, Arianists, Anti-Trinitarians, Anti-Scripturists, and Sceptics.—Neal's *Puritans*, ii. 251. I observe that some of them maintained

that toleration was due even to Catholics. Baillie repeatedly notices it with feelings of horror (ii. 17, 18, 43, 61).]

served to restore the balance between the two others, and by joining with the Independents, to arrest the zeal, and neutralize the votes of the Presbyterians.[a] With their aid, Cromwell, as the organ of the discontented religionists, had obtained the appointment of a "grand committee for accommodation," which sat four months, and concluded nothing. Its professed object was to reconcile the two parties, by inducing the Presbyterians to recede from their lofty pretensions, and the Independents to relax something of their sectarian obstinacy. Both were equally inflexible. The former would admit of no innovation in the powers which Christ, according to their creed, had bestowed on the presbytery; the latter, rather than conform, expressed their readiness to suffer the penalties of the law, or to seek some other clime, where the enjoyment of civil, was combined with that of religious, freedom.[1]

2. The discontent of the Presbyterians arose from a very different source. They complained that the parliament sacrilegiously usurped that jurisdiction which Christ had vested exclusively in his church. The assembly contended, that "the keys of the kingdom of heaven were committed to the officers of the church, by virtue whereof, they have power respectively to retain and remit sins, to shut the kingdom of heaven against the impenitent by censures, and to open it to the penitent by absolution." These claims of the divines were zealously supported by their brethren in parliament, and as fiercely opposed by all who were not of their communion. The divines claimed for the presbyteries the right of inquiring into the private lives of individuals, and of suspending the unworthy[b]

[Footnote 1: Baillie, i. 408, 420, 431; ii. 11, 33, 37, 42, 57, 63, 66, 71.]

[Sidenote a: A.D. 1644. Sept. 13.]

[Sidenote b: A.D. 1645. March 5.]

from the sacrament of the Lord's supper; but the parliament refused the first, and confined the second to cases of public scandal. *They* arrogated to themselves the power of judging what offences should be deemed scandalous; the parliament defined the particular offences, and appointed civil commissioners in each province, to whom the presbyteries should refer every case not previously enumerated. *They* allowed of no appeal from the ecclesiastical tribunals to the civil magistrate; the parliament empowered all who thought themselves aggrieved to apply for redress to either of the two houses.[1] This profane mutilation of the divine right of the presbyteries excited the alarm and execration of every orthodox believer. When the ordinance for carrying the new plan into execution was in progress through the Commons, the ministers generally determined not to act under its provisions. The citizens of London, who petitioned against it, were indeed silenced by a vote[a] that they had violated the privileges of the house; but the Scottish commissioners came to their aid with a demand that religion should be regulated to the satisfaction of the church; and the assembly of divines ventured to remonstrate, that they could not in conscience submit to an imperfect and anti-scriptural form of ecclesiastical government. To the Scots a civil but unmeaning answer was returned:[b] to alarm the assembly, it was resolved that the remonstrance was a breach of privilege, and that nine questions should be proposed to the divines, respecting the nature and object of the divine right to which they pretended. These questions had been prepared by the ingenuity of Selden and Whitelock,

[Footnote 1: Journals, vii. 469. Commons', Sept. 25, Oct. 10, March 5.]

[Sidenote a: A.D. 1646. March 26.]

[Sidenote b: A.D. 1646. April 22.]

ostensibly for the sake of information, in reality to breed dissension and to procure delay.[1]

When the votes of the house were announced to the assembly, the members anticipated nothing less than the infliction of those severe penalties with which breaches of privilege were usually visited. They observed a day of fasting and humiliation, to invoke the protection of God in favour of his persecuted church; required the immediate attendance of their absent colleagues; and then reluctantly entered on the consideration of the questions sent to them from the Commons. In a few days, however, the king took refuge in the Scottish army, and a new ray of hope cheered their afflicted spirits. Additional petitions were presented; the answer of the two houses became more accommodating; and the petitioners received thanks for their zeal, with an assurance in conciliatory language that attention should be paid to their requests. The immediate consequence was the abolition of the provincial commissioners; and the ministers, softened by this condescension, engaged to execute the ordinance in London and Lancashire.[2] At the same time the assembly undertook the composition of a catechism and confession of faith; but their progress was daily retarded by the debates respecting the nine questions; and the influence of their party was greatly diminished by the sudden death of the earl of Essex.[3][a]

[Footnote 1: Journals, viii. 232. Commons', March 23, April 22. Baillie, ii. 194. "The pope and king," he exclaims, "were never more earnest for the headship of the church, than the plurality of this parliament" (196, 198, 199, 201, 216).]

[Footnote 2: These were the only places in which the Presbyterian government was established according to law.]

[Footnote 3: Baillie says, "He was the head of our party here, kept altogether who now are like, by that alone, to fall to pieces. The House of

Lords absolutely, the city very much, and many of the shires depended on him" (ii. 234).]

[Sidenote a: A.D. 1644. .Sept. 14.]

It was, however, restored by the delivery of the king into the hands of the parliament: petitions were immediately presented, complaining of the growth of[a] error and schism; and the impatience of the citizens[b] induced them to appoint a committee to wait daily at the door of the House of Commons, till they should receive a favourable answer. But another revolution, to be related in the next chapter, followed; the custody of the royal person passed from the parliament to the army: and the hopes of the orthodox were utterly extinguished.[1]

[Footnote 1: Baillie, ii. 207, 215, 216, 226, 234, 236, 250. Journals, viii. 332, 509; ix. 18, 72, 82. Commons', May 26, Nov. 27, Dec. 7, March 25, 30.]

[Sidenote a: A.D. 1647. Feb. 18.]

[Sidenote b: A.D. 1647. March 17.]

CHAPTER III.

Opposite Projects Of The Presbyterians And Independents—The King Is Brought From Holmby To The Army—Independents Driven From Parliament—Restored By The Army—Origin Of The Levellers—King Escapes From Hampton Court, And Is Secured In The Isle Of Wight—Mutiny In The Army—Public Opinion In Favour Of The King—Scots Arm In His Defence—The Royalists Renew The War—The Presbyterians Assume The Ascendancy—Defeat Of The Scots—Suppression Of The Royalists—Treaty Of Newport—The King Is Again Brought To The Army—The House Of Commons Is Purified—The King's Trial—Judgment—And Execution—Reflections.

The king during his captivity at Holmby divided his time between his studies and amusements. A considerable part of the day he spent in his closet, the rest in playing at bowls, or riding in the neighbourhood.[1] He was strictly watched; and without an order from the parliament no access could be obtained to the royal presence. The crowds who came to be touched for the evil were sent back by the guards; the servants who waited

on his person received their appointment from the commissioners; and, when he refused[a] the spiritual services of the two Presbyterian ministers sent to him from London, his request[b] for the attendance of any of his twelve chaplains was equally refused.[c]

[Footnote 1: "He frequently went to Harrowden, a house of the Lord Vaux's, where there was a good bowling-green with gardens, groves, and walks, and to Althorp, a fair house, two or three miles from Holmby, belonging to the Lord Spenser, where there was a green well kept."—Herbert, 18.]

[Sidenote a: A.D. 1647. Feb. 17.]

[Sidenote b: A.D. 1647. March 6.]

[Sidenote c: A.D. 1647. March 8.]

Thus three months passed away without any official communication from the two houses. The king's patience was exhausted; and he addressed them in a[a] letter, which, as it must have been the production of his own pen, furnishes an undoubted and favourable specimen of his abilities. In it he observed that the want of advisers might, in the estimation of any reasonable man, excuse him from noticing the important propositions presented to him at Newcastle; but his wish to restore a good understanding between himself and his houses of parliament had induced him to make them the subjects of his daily study; and, if he could not return an answer satisfactory in every particular, it must be attributed not to want of will, but to the prohibition of his conscience. Many things he would cheerfully concede: with respect to the others he was ready to receive information, and that in person, if such were the pleasure of the Lords and Commons. Individuals in his situation might persuade themselves that promises extorted from a prisoner are not binding. If such were his opinion, he would not hesitate a moment to grant whatever had been asked. His very

reluctance proved beyond dispute, that with him at least the words of a king were sacred.

After this preamble he proceeds to signify his assent to most of the propositions; but to the three principal points in debate, he answers: 1. That he is ready to confirm the Presbyterian government for the space of three years, on condition that liberty of worship be allowed to himself and his household; that twenty divines of his nomination be added to the assembly at Westminster; and that the final settlement of religion at the expiration of that period be made in the regular way by himself and the two houses: 2. he is willing

[Sidenote a: A.D. 1647. May 12.]

that the command of the army and navy be vested in persons to be named by them, on condition that after ten years it may revert to the crown; and 3. if these things be accorded, he pledges himself to give full satisfaction with respect to the war in Ireland. By[a] the Lords the royal answer was favourably received, and they resolved by a majority of thirteen to nine that the king should be removed from Holmby to Oatlands; but the Commons neglected to notice the subject, and their attention was soon occupied by a question of more immediate, and therefore in their estimation of superior importance.[1]

The reader is aware that the Presbyterians had long viewed the army under Fairfax with peculiar jealousy. It offered a secure refuge to their religious, and proved the strongest bulwark of their political, opponents. Under its protection, men were beyond the reach of intolerance. They prayed and preached as they pleased; the fanaticism of one served to countenance the fanaticism of another; and all, however they might differ in spiritual gifts and theological notions, were bound together by the common profession of godliness, and the common dread of persecution. Fairfax,

though called a Presbyterian, had nothing of that stern, unaccommodating character which then marked the leaders of the party. In the field he was distinguished by his activity and daring; but the moment his military duties were performed, he relapsed into habits of ease and indolence; and, with the good-nature and the credulity of a child, suffered himself to be guided by the advice or the wishes of

[Footnote 1: These particulars appear in the correspondence in Clar. Pap. 221-226; Journals, 19, 69, 193, 199; Commons', Feb. 25; March 2, 9; May 21.]

[Sidenote a: A.D. 1647. May 20.]

those around him—by his wife, by his companions, and particularly by Cromwell. That adventurer had equally obtained the confidence of the commander-in-chief and of the common soldier. Dark, artful, and designing, he governed Fairfax by his suggestions, while he pretended only to second the projects of that general. Among the privates he appeared as the advocate of liberty and toleration, joined with them in their conventicles, equalled them in the cant of fanaticism, and affected to resent their wrongs as religionists and their privations as soldiers. To his fellow-officers he lamented the ingratitude and jealousy of the parliament, a court in which experience showed that no man, not even the most meritorious patriot, was secure. To-day he might be in high favour; tomorrow, at the insidious suggestion of some obscure lawyer or narrow-minded bigot, he might find himself under arrest, and be consigned to the Tower. That Cromwell already aspired to the eminence to which he afterwards soared, is hardly credible; but that his ambition was awakened, and that he laboured to bring the army into collision with the parliament, was evident to the most careless observer.[1]

To disband that army was now become the main object of the Presbyterian leaders; but they disguised their real motives under the pretence of the national benefit. The royalists were humbled in the dust; the Scots had departed; and it was time to relieve the country from the charge of supporting a multitude of

[Footnote 1: As early as Aug. 2, 1648, Huntingdon, the major in his regiment, in his account of Cromwell's conduct, noticed, that in his chamber at Kingston he said, "What a sway Stapleton and Hollis had heretofore in the kingdom, and he knew nothing to the contrary but that he was as well able to govern the kingdom as either of them."—Journals, x. 411.]

men in arms without any ostensible purpose. They carried, but with considerable opposition, the following resolutions: to take from the army three regiments of horse and eight regiments of foot, for the service in Ireland; to retain in England no greater number of infantry than might be required to do the garrison duty, with six thousand cavalry for the more speedy suppression of tumults and riots; and to admit of no officer of higher rank than colonel, with the exception of Fairfax, the commander-in-chief. In addition it was voted that no commission should be granted to any member of the lower house, or to any individual who refused to take the solemn league and covenant, or to any one whose conscience forbade him to conform to the Presbyterian scheme of church government.[1]

The object of these votes could not be concealed from the Independents. They resolved to oppose their adversaries with their own weapons, and to intimidate those whom they were unable to convince. Suddenly, at their secret instigation, the army, rising from its cantonments in the neighbourhood of Nottingham, approached the metropolis, and selected quarters in the county of Essex. This movement was regarded and resented as a menace: Fairfax, to excuse it, alleged the difficulty of procuring

subsistence in an exhausted and impoverished district.[a] At Saffron Walden he was met by the parliamentary commissioners, who called a council of officers, and submitted to their consideration proposals for the service of

[Footnote 1: Journals of Commons, iv., Feb. 15, 19, 20, 23, 25, 26, 27; March 1, 2, 3, 4, 5. On several divisions, the Presbyterian majority was reduced to ten; on one, to two members. They laboured to exclude Fairfax, but were left in a minority of 147 to 159.—Ibid. March 5. "Some," says Whitelock, "wondered it should admit debate and question" (p. 239).]

[Sidenote a: A.D. 1647. March 21.]

Ireland; but instead of a positive answer, inquiries were made and explanations demanded, while a remonstrance against the treatment of the army was circulated for signatures through the several regiments. In it the soldiers required an ordinance of indemnity to screen them from actions in the civil courts for their past conduct, the payment of their arrears, which amounted to forty-three weeks for the horse, and to eighteen for the infantry; exemption from impressment for foreign service; compensation for the maimed; pensions for the widows and families of those who had fallen during the war, and a weekly provision of money, that they might no longer be compelled to live at free quarters on the inhabitants. This remonstrance was presented to Fairfax to be forwarded by him to the two houses. The ruling party became alarmed: they dreaded to oppose petitioners with swords in their hands; and, that the project might be suppressed in its birth, both houses sent instructions to the general, ordered all members of parliament holding commands to repair to the army, and issued a declaration,[a] in which, after a promise to take no notice of what was past, they admonished the subscribers that to persist in their illegal course would subject them to punishment "as enemies to the state and disturbers of the public peace."[1]

The framers of this declaration knew little of the temper of the military. They sought to prevail by intimidation, and they only inflamed the general discontent. Was it to be borne, the soldiers asked each other, that the city of London and the county of Essex should be allowed to petition against the army,

[Footnote 1: Journals, ix. 66, 72, 82, 89, 95, 112-115. Commons', v. March 11, 25, 26, 27, 29.]

[Sidenote a: A.D. 1647 March 29.]

and that they, who had fought, and bled, and conquered in the cause of their country, should be forbidden either to state their grievances or to vindicate their characters? Hitherto the army had been guided, in appearance at least, by the council of officers; now, whether it was a contrivance of the officers themselves to shift the odium to the whole body of the military, or was suggested by the common men, who began to distrust the integrity of their commanders, two deliberating bodies, in imitation of the houses at Westminster, were formed; one consisting of the officers holding commissions, the other of two representatives from every troop and company, calling themselves adjutators or helpers; a name which, by the ingenuity of their enemies, was changed into that of agitators or disturbers. [1] Guided by their resolves, the whole army seemed to be animated with one soul; scarcely a man could be tempted to desert the common cause by accepting of the service in Ireland; each corps added supernumeraries to its original complement; [2] and language was held, and projects were suggested, most alarming to the Presbyterian party. Confident, however, in their own power, the majority in the house[a]

[Footnote 1: Hobbes, Behemoth, 587. Berkeley, 359. This, however, was not the first appearance of the agitators. "The first time," says Fairfax, "I took notice of them was at Nottingham (end of February), by the soldiers

meeting to frame a petition to the parliament about their arrears. The thing seemed just; but not liking the way, I spoke with some officers who were principally engaged in it, and got it suppressed for that time."—Short Memorials of Thomas Lord Fairfax, written by himself. Somers's Tracts, v. 392. Maseres, 446.]

[Footnote 2: Several bodies of troops in the distant counties had been disbanded; but the army under Fairfax, by enlisting volunteers from both parties, royalists as well as parliamentarians, was gradually increased by several thousand men, and the burthen of supporting it was doubled.—See Journals, ix. 559-583.]

[Sidebar a: A.D. 1647. April 27.]

resolved that the several regiments should be disbanded on the receipt of a small portion of their arrears. This vote was scarcely past, when a deputation from the agitators presented to the Commons a defence of the remonstrance. They maintained that by becoming soldiers they had not lost the rights of subjects; that by purchasing the freedom of others, they had not forfeited their own; that what had been granted to the adversaries of the commonwealth, and to the officers in the armies of Essex and Waller, could not in justice be refused to them; and that, as without the liberty of petitioning, grievances are without remedy, they ought to be allowed to petition now in what regarded them as soldiers, no less than afterwards in what might regard them as citizens. At the same time the agitators addressed to Fairfax and the other general officers a letter complaining of their wrongs, stating their resolution to obtain redress, and describing the expedition to Ireland as a mere pretext to separate the soldiers from those officers to whom they were attached, "a cloak to the ambition of men who having lately tasted of sovereignty, and been lifted beyond their ordinary sphere of servants, sought to become masters, and degenerate into tyrants."

The tone of these papers excited alarm; and Cromwell, Skippon, Ireton, and Fleetwood were[a] ordered to repair to their regiments, and assure them that ordinances of indemnity should be passed, that their arrears should be audited, and that a considerable payment should be made previous to their dismissal from the service.[b] When these officers announced, in the words of the parliamentary order, that they were come to quiet "the distempers in the army," the councils replied, that they knew of no[b]

[Sidenote a: A.D. 1647. April 30.]

[Sidenote b: A.D. 1647. May 8.]

distempers, but of many grievances, and that of these they demanded immediate redress.[1]

Whitelock, with his friends, earnestly deprecated a course of proceeding which he foresaw must end in defeat; but his efforts were frustrated by the inflexibility or violence of Holles, Stapleton, and Glyn, the leaders of the ruling party, who, though they condescended to pass[a] the ordinance of indemnity, and to issue[b] money for the payment of the arrears of eight weeks, procured[c] instructions for the lord general to collect the several regiments in their respective quarters, and to disband them without delay. Instead of obeying, he called together the council of officers, who resolved, in answer to a petition to them from the agitators, that the votes of parliament were not satisfactory; that the arrears of payment for eight weeks formed but a portion of their just claim, and that no security had been given for the discharge of the remainder; that the bill of indemnity was a delusion, as long as the vote declaring them enemies of the state was unrepealed; and that, instead of suffering themselves to be disbanded in their separate quarters, the whole army ought to be drawn together, that they might consult in common for the security of their persons and the reparation of their characters. Orders were despatched at the same time to secure the park

of artillery at Oxford, and to seize the sum of four thousand pounds destined for the garrison in that city. These measures opened the eyes of their adversaries. A proposal was made in parliament to expunge the offensive declaration from the journals, a more comprehensive bill of indemnity was introduced, and other

[Footnote 1: Journals, ix. 164. Commons', Ap. 27, 30. Whitelock, 245, 246.

Rushworth, vi. 447, 451, 457, 469, 480, 485.]

[Sidenote a: A.D. 1647. May 21.]

[Sidenote b: A.D. 1647. May 25.]

[Sidenote c: A.D. 1647. May 29.]

votes were suggested calculated to remove the objections of the army, when the alarm of the Presbyterian leaders was raised to the highest pitch by the arrival of unexpected tidings from Holmby.[1]

Soon after the appointment of the agitators, an officer had delivered to the king a petition from the army, that he would suffer himself to be conducted to the quarters of their general, by whom he should be restored to his honour, crown, and dignity.[a] Charles replied, that he hoped one day to reward them for the loyalty of their intention, but that he could not give his consent to a measure which, must, in all probability, replunge the nation into the horrors of a civil war. He believed that this answer had induced the army to abandon the design; but six weeks later, on Wednesday the 2nd of June, while he was playing at bowls at Althorp, Joyce, a cornet in the general's lifeguard, was observed standing among the spectators; and late in the evening of the same day, the commissioners in attendance upon him understood that a numerous party of horse had assembled on Harleston Heath, at the distance of two miles from Holmby.[b] Their object could not be doubted; it was soon ascertained that the military under their orders

would offer no resistance; and Colonel Greaves, their commander, deemed it expedient to withdraw to a place of safety. About two in the morning a body of troopers appeared before the gates, and were instantly admitted.[c] To the questions of the commissioners, who was their commander, and what was their purpose, Joyce replied, that they were all commanders, and that they had

[Footnote 1: Whitelock, 248, 250. Holles, 92. Journals, 207, 222, 226-228. Commons', May 14, 21, 25, 28, June 1, 4, 5. Rushworth, vi. 489, 493, 497-500, 505.]

[Transcriber's Note: Footnote 2 not found in the text.]

[Footnote 2: Clarendon Papers, ii. 365.]

[Sidenote a: A.D. 1647. April 21]

[Sidenote b: A.D. 1647. June 2]

[Sidenote c: A.D. 1647. June 3]

come to arrest Colonel Greaves, and to secure the person of the king, that he might not be carried away by their enemies. With a pistol in his hand he then demanded admission to Charles; but the grooms of the bedchamber interposed; and, after a violent altercation, he was induced to withdraw. During the day the parliamentary guards were replaced by these strangers; about ten at night Joyce again demanded admission to the royal bedchamber, and informed the king that his comrades were apprehensive of a rescue, and wished to conduct him to a place of greater security. Charles signified his assent, on the condition that what then passed between them in private should be repeated in public; and at six the next morning, took his station on the steps at the door, while the troopers drew up before him, with Joyce a little in advance of the line. This dialogue ensued:—

KING.—Mr. Joyce, I desire to ask you, what authority you have to take charge of my person and convey me away?

JOYCE.—I am sent by authority of the army, to prevent the design of their enemies, who seek to involve the kingdom a second time in blood.

KING.—That is no lawful authority. I know of none in England but my own, and, after mine, that of the parliament. Have you any written commission from Sir Thomas Fairfax?

JOYCE.—I have the authority of the army, and the general is included in the army.

KING.—That is no answer. The general is the head of the army. Have you any written commission?

JOYCE.—I beseech your majesty to ask me no more questions. There is my commission, pointing to the troopers behind him.

KING, with a smile—I never before read such a commission; but it is written in characters fair and legible enough; a company of as handsome proper gentlemen as I have seen a long while. But to remove me hence, you must use absolute force, unless you give me satisfaction as to these reasonable and just demands which I make: that I may be used with honour and respect, and that I may not be forced in any thing against my conscience or honour, though I hope that my resolution is so fixed that no force can cause me to do a base thing. You are masters of my body, my soul is above your reach.

The troopers signified their assent by acclamation; and Joyce rejoined, that their principle was not to force any man's conscience, much less that of their sovereign. Charles proceeded to demand the attendance of his own

servants, and, when this had been granted, asked whither they meant to conduct him. Some mentioned Oxford, others Cambridge, but, at his own request, Newmarket was preferred. As soon as he had retired, the commissioners protested against the removal of the royal person, and called on the troopers present to come over to them, and maintain the authority of parliament. But they replied with one voice "None, none;" and the king, trusting himself to Joyce and his companions, rode that day as far as Hinchinbrook House, and afterwards proceeded to Childersley, not far from Cambridge.[1]

[Footnote 1: Compare the narrative published by the army (Rushw. vi. 53), with the letters sent by the commissioners to the House of Lords, Journals, 237, 240, 248, 250, 273, and Herbert's Memoirs, 26-33. Fairfax met the king at Childersley, near Cambridge, and advised him to return to Holmby. "The next day I waited on his majesty, it being also my business to persuade his return to Holmby; but he was otherwise resolved.... So having spent the whole day about this business, I returned to my quarters; and as I took leave of the king, he said to me, Sir, I have as good interest in the army as you.... I called for a council of war to proceed against Joyce for this high offence, and breach of the articles of war; but the officers, whether for fear of the distempered soldiers, or rather (as I suspected) a secret allowance of what was done, made all my endeavours in this ineffectual." Somers's Tracts, v. 394. Holles asserts that the removal of the king had been planned at the house of Cromwell, on the 30th of May (Holles, 96); Huntingdon, that it was advised by Cromwell and Ireton.—Lords' Journals, x. 409.]

This design of seizing the person of the king was openly avowed by the council of the agitators, though the general belief attributed it to the secret contrivance of Cromwell. It had been carefully concealed from the knowledge of Fairfax, who, if he was not duped by the hypocrisy of the

lieutenant-general and his friends, carefully suppressed his suspicions, and acted as if he believed his brother officers to be animated with the same sentiments as himself, an earnest desire to satisfy the complaints of the military, and at the same time to prevent a rupture between them and the parliament. But Cromwell appears to have had in view a very different object, the humiliation of his political opponents; and his hopes were encouraged not only by the ardour of the army, but also by the general wishes of the people.

1. The day after the abduction of the king[a] from Holmby, the army rendezvoused at Newmarket, and entered into a solemn engagement, stating that, whereas several officers had been called in question for advocating the cause of the military, they had chosen certain men out of each company, who then chose two or more out of themselves, to act in the name and behalf of the whole soldiery of their respective regiments; and that they did now unanimously declare and promise that the army should not disband, nor volunteer for the service in Ireland, till

[Sidenote a: A.D. 1647. June 5.]

their grievances had been so far redressed, and their subsequent safety so far secured, as to give satisfaction to a council composed of the general officers, and of two commissioned officers, and two privates, or agitators, chosen from each regiment.[1]

2. The forcible removal of the king had warned the Presbyterian leaders of the bold and unscrupulous spirit which animated the soldiery; yet they entertained no doubt of obtaining the victory in this menacing and formidable contest. So much apparent reverence was still paid to the authority of the parliament, so powerful was the Presbyterian interest in the city and among the military, that they believed it would require only a few concessions, and some judicious management on their part, to break that

bond of union which formed the chief element of strength possessed by their adversaries. But when it became known that a friendly understanding already existed between the officers and the king, they saw that no time was to be lost. In their alarm the measures, which they had hitherto discussed very leisurely, were turned through the two houses; the obnoxious declaration was erased from the journals; a most extensive bill of indemnity was passed; several ordinances were added securing more plentiful pay to the disbanded soldiers, and still more plentiful to those who should volunteer for the service in Ireland. Six commissioners—the earl of Nottingham and Lord Delaware from the House of Lords, and Field-Marshal General Skippon,[2] Sir Henry Vane the younger, and two

[Footnote 1: Parl. Hist. iii. 64.]

[Footnote 2: Skippon had been appointed commander-in-chief of the forces in Ireland, with the title of field-marshal, and six pounds per day for his entertainment.—Journals, ix. 122, Ap. 6. He also received the sum of one thousand pounds for his outfit—Holles, p. 250.]

others, from the House of Commons—were appointed to superintend the disbandment of the forces; and peremptory orders were despatched to the lord general, to collect all the regiments under his immediate command on Newmarket Heath on Wednesday the 9th of June, and to second to the utmost of his power the proceedings on the part of the six deputies. He professed obedience; but of his own authority changed the place of rendezvous to Triploe Heath, between Cambridge and Royston, and the day also from Wednesday to Thursday, apparently with a view to the convenience of the two houses.[1]

It was only on the morning of Wednesday that the earl of Nottingham, with his five companions, was able to set out from London on their important mission; and, while they were on the road, their colleagues at

Westminster sought to interest Heaven in their favour by spending the day, as one of fasting and humiliation, in religious exercises, according to the fashion of the time.[a] Late in the evening the commissioners reached Cambridge, and immediately offered the votes and ordinances, of which they were the bearers, to the acceptance of Fairfax and his council. The whole, however, of the next morning was wasted (artfully, it would seem, on the part of the officers) in trifling controversies on mere matters of form, till at last the lord general deigned to return an answer which was tantamount to a refusal.[b] To the proposals of parliament he preferred the solemn engagement already entered into by the army on Newmarket Heath, because

[Footnote 1: The orders of the parliament with respect to the time and place are in the Lords' Journals, ix. 241. Yet the debates on the concessions did not close before Tuesday, nor did the negotiation between the commissioners and the military council conclude till afternoon on Thursday. —Ibid. 247, 353.]

[Sidenote a: A.D. 1647. June 9.]

[Sidenote b: A.D. 1647. June 10.]

the latter presented a more effectual way of disbanding the forces under his command without danger, and of extinguishing satisfactorily the discontent which pervaded the whole nation. If, however, the commissioners wished to ascertain in person the real sentiments of the soldiery, he was ready with his officers to attend upon them, whilst they made the inquiry.[1] It was now one in the afternoon; every corps had long since occupied its position on the heath; and there is reason to believe, that the opportunity afforded by this delay had been improved to prepare each regiment separately, and particular agents in each regiment, against the arrival and proposals of the commissioners. The latter dared not act on their

own discretion, but resolved to obey their instructions to the very letter. Proceeding, therefore, to the heath, they rode at once to the regiment of infantry of which Fairfax was colonel. The votes of the two houses were then read to the men, and Skippon, having made a long harangue in commendation of the votes, concluded by asking whether, with these concessions, they were not all satisfied. "To that no answer can be returned," exclaimed a voice from the ranks, "till your proposals have been submitted to, and approved by, the council of officers and agitators." The speaker was a subaltern, who immediately, having asked and obtained permission from his colonel to address the whole corps, called aloud, "Is not that the opinion of you all?" They shouted, "It is, of all, of all." "But are there not," he pursued, "some among you who think otherwise?" "No," was the general response, "no, not one." Disconcerted and abashed, the commissioners turned aside, and, as they withdrew, were

[Footnote 1: The correspondence is in the Journals, *ibid.*]

greeted with continual cries of "Justice, justice, we demand justice." [1]

From this regiment they proceeded to each of the others. In every instance the same ceremony was repeated, and always with the same result. No one now could doubt that both officers and men were joined in one common league; and that the link which bound them together was the "solemn engagement." [2] Both looked upon that engagement as the charter of their rights and liberties. No concession or intrigue, no partiality of friendship or religion, could seduce them from the faith which they had sworn to it. There were, indeed, a few seceders, particularly the captains, and several of the lord general's life-guard; but after all, the men who yielded to temptation amounted to a very inconsiderable number, in comparison with the immense majority of those who with inviolable fidelity adhered to the engagement, and, by their resolution and perseverance,

enabled their leaders to win for them a complete, and at the same time a bloodless victory.

3. On the next day a deputation of freeholders from the county of Norfolk, and soon afterwards similar deputations from the counties of Suffolk, Essex, Herts, and Buckingham, waited with written addresses upon Fairfax. They lamented that now, when the war with the king was concluded, peace had not brought with it the blessings, the promise of which by the parliament had induced them to submit to the evils and privations of war; a disappointment that could be attributed only to the obstinacy with which certain individuals clung to the emoluments of office

[Footnote 1: Rushworth, vi. 518. Whitelock, 251. Holles, 252.]

[Footnote 2: Nottingham's Letter in the Lords' Journals, ix. 253.]

and the monopoly of power. To Fairfax, therefore, under God, they appealed to become the saviour of his country, to be the mediator between it and the two houses. With this view, let him keep his army together, till he had brought the incendiaries to condign punishment, and extorted full redress of the grievances so severely felt both by the army and the people.
[1]

The chiefs, however, who now ruled at Westminster, were not the men to surrender without a struggle. They submitted, indeed, to pass a few ordinances calculated to give satisfaction, but these were combined with others which displayed a fixed determination not to succumb to the dictates of a mutinous soldiery. A committee was established with power to raise forces for the defence of the nation: the favourite general Skippon was appointed to provide for the safety of the capital; and the most positive orders were sent to Fairfax not to suffer any one of the corps under his command to approach within forty miles of London. Every day the contest

assumed a more threatening aspect. A succession of petitions, remonstrances, and declarations issued from the pens of Ireton and Lambert, guided, it was believed, by the hand of Cromwell. In addition to their former demands, it was required that all capitulations granted by military commanders during the war should be observed; that a time[a] should be fixed for the termination of the present parliament; that the House of Commons should be purged of every individual disqualified by preceding ordinances;

[Footnote 1: Lords' Journals, 260, 263, 277. Holles says that these petitions were drawn by Cromwell, and sent into the counties for subscriptions.—Holles, 256.]

[Sidenote a: A.D. 1647. June 14.]

and, in particular, that eleven of its members, comprising Holles, Glyn, Stapleton, Clotworthy, and Waller, the chief leaders of the Presbyterian party, and members of the committee at Derby House, should be excluded, till they had been tried by due course of law for the offence of endeavouring to commit the army with the parliament. To give weight to these demands, Fairfax, who seems to have acted as the mere organ of the council of officers,[1] marched successively to St. Alban's, to Watford, and to Uxbridge.[a] His approach revealed the weakness of his opponents, and the cowardice, perhaps hypocrisy, of many, who foresaw the probable issue of the contest, and deemed it not their interest to provoke by a useless resistance the military chiefs, who might in a few hours be their masters.[b] Hence it happened that men, who had so clamorously and successfully appealed to the privileges of parliament, when the king demanded the five members, now submitted tamely to a similar demand, when it was made by twelve thousand men in arms. Skippon, their oracle, was one of the first deserters. He resigned the several commands which he held, and exhorted

the Presbyterians to fast and pray, and submit to the will of God.[c] From that time it became their chief solicitude to propitiate the army. They granted very ingeniously leave of absence to the eleven accused members; they ordered the new levies for the defence of the city to be disbanded, and the

[Footnote 1: "From the time they declared their usurped authority at Triploe Heath (June 10th), I never gave my free consent to any thing they did; but being yet undischarged of my place, they set my name in way of course to all their papers, whether I consented or not."—Somers's Tracts, v. 396. This can only mean that he reluctantly allowed them to make use of his name; for he was certainly at liberty to resign his command, or to protest against the measures which he disapproved.]

[Sidenote a: A.D. 1647. June 12.]

[Sidenote b: A.D. 1647. June 25.]

[Sidenote c: A.D. 1647. June 21.]

new lines of communication to be demolished; they sent a month's pay to the forces under Fairfax, with a vote declaring them the army of the parliament, and appointed commissioners to treat with commissioners from the military council, as if the latter were the representatives of an independent and coequal authority.[1]

This struggle and its consequences were viewed with intense interest by the royalists, who persuaded themselves that it must end in the restoration of the king; but the opportunities furnished by the passions of his adversaries were as often forfeited by the irresolution of the monarch. While both factions courted his assistance, he, partly through distrust of their sincerity, partly through the hope of more favourable terms, balanced between their offers, till the contest was decided without his interference. Ever since his departure from Holmby, though he was still a captive, and

compelled to follow the marches of the army, the officers had treated him with the most profound respect; attention was paid to all his wants; the general interposed to procure for him occasionally the company of his younger children; his servants, Legge, Berkeley, and Ashburnham, though known to have come from France with a message from the queen,[2] were permitted to attend him; and free access was

[Footnote 1: Rushworth, vi. 518-596. Whitelock, 251-256. Holles, 104. Journals, 249, 257, 260, 263, 275, 277, 284, 289, 291, 298. Commons', June 7, 11, 12, 15, 18, 25, 26, 28. On divisions in general, the Presbyterians had a majority of forty; but on the 28th, the first day after the departure of their leaders, they were left in a minority of eighty-five to one hundred and twenty-one.—Ibid.]

[Footnote 2: "I returned with instructions to endeavour by the best means imaginable such a compliance between his majesty and the army, as might have influence, and beget a right understanding between his majesty and the parliament"—Ashburnham's Letter, in 1648, p. 5.]

given to some of his chaplains, who read the service in his presence publicly and without molestation. Several of the officers openly professed to admire his piety, and to compassionate his misfortunes; even Cromwell, though at first he affected the distance and reserve of an enemy, sent him secret assurances of his attachment; and successive addresses were made to him in the name of the military, expressive of the general wish to effect an accommodation, which should reconcile the rights of the throne with those of the people. A secret negotiation followed through the agency of Berkeley and Ashburnham; and Fairfax, to[a] prepare the public for the result, in a letter to the two houses, spurned the imputation cast upon the army, as if it were hostile to monarchical government, justified the respect and indulgence with which he had treated the royal captive, and maintained that

"tender, equitable, and moderate dealing towards him, his family, and his former adherents," was the most hopeful course to lull asleep the feuds which divided the nation. Never had the king so fair a prospect of recovering his authority.[1]

In the treaty between the commissioners of the parliament and those of the army, the latter proceeded with considerable caution. The redress of military grievances was but the least of their cares; their great object was the settlement of the national tranquillity on what *they* deemed a solid and permanent basis. Of this intention they had suffered some hints to transpire; but before the open announcement of their plan, they resolved to bring the city, as they had brought the parliament, under subjection. London,

[Footnote 1: Journals, ix. 323, 324. Ashburn. ii. 91. Also Huntingdon's Narrative, x. 409.]

[Sidenote a: A.D. 1647. July 2.]

with its dependencies, had hitherto been the chief support of the contrary faction; it abounded with discharged officers and soldiers who had served under Essex and Waller, and who were ready at the first summons to draw the sword in defence of the covenant; and the supreme authority over the military within the lines of communication had been, by an ordinance of the last year, vested in a committee, all the members of which were strongly attached to the Presbyterian interest. To wrest this formidable weapon from the hands of their adversaries, they forwarded a request to the two houses, that the command of the London militia might be transferred from disaffected persons to men distinguished by their devotion to the cause of the country. The Presbyterians in the city were alarmed; they suspected a coalition between the king and the Independents; they saw that the covenant itself was at stake, and that the propositions of peace so often voted in parliament might in a few days be set aside. A petition was presented[a] in

opposition to the demand of the army; but the houses, now under the influence of the Independents, passed[b] the ordinance; and the city, on its part, determined[c] to resist both the army and the parliament. Lord Lauderdale, the chief of the Scottish commissioners, hastened to the king to obtain his concurrence; a new covenant, devised in his favour, was exposed at Skinners' Hall, and the citizens and soldiers, and probably the concealed royalists, hastened in crowds to subscribe their names. By it they bound themselves, in the presence of God, and at the risk of their lives and fortunes, to bring the sovereign to Westminster, that he might confirm the concessions which he had made in his letter from Holmby, and

[Sidenote a: A.D. 1647. July 14.]

[Sidenote b: A.D. 1647. July 23.]

[Sidenote c: A.D. 1647. July 24.]

might confer with his parliament on the remaining propositions. But the recent converts to the cause of the army hastened to prove the sincerity of their conversion. Both Lords and Commons voted this engagement an act of treason against the kingdom; and the publication of the vote, instead of damping the zeal, inflamed the passions of the people. The citizens petitioned a second time, and received a second refusal. The moment the petitioners departed, a multitude of apprentices, supported by a crowd of military men, besieged the doors of the two houses; for eight hours they continued, by shouts and messages, to call for the repeal of the ordinance respecting the militia, and of the vote condemning the covenant; and the members, after a long resistance, worn out with fatigue, and overcome with terror, submitted to their demands. Even after they had been suffered to retire, the multitude suddenly compelled the Commons to return, and, with the speaker in the chair, to pass a vote[a] that the king should be conducted without delay to his palace at Westminster. Both houses adjourned for three days, and the two speakers, with most of the Independent party and their

proselytes, amounting to eight peers and fifty-eight commoners, availed themselves of the opportunity to withdraw from the insults of the populace, and to seek an asylum in the army.[1]

In the mean while the council of officers had completed their plan "for the settlement of the nation," which they submitted first to the consideration of Charles, and afterwards to that of the parliamentary commissioners. In many points it was similar to the

[Footnote 1: Whitelock, 260, 261. Journals, ix. 377, 393. Holles, 145. Leicester's Journal in the Sydney Papers, edited by Mr. Blencowe, p. 25.]

[Sidenote a: A.D. 1647. July 25.]

celebrated "propositions of peace;" but contained in addition several provisions respecting the manner of election, and the duration of parliament and the composition of the magistracy, which may not be uninteresting to the reader even at the present day. It proposed that a parliament should meet every year, to sit not less than a certain number of days, nor more than another certain number, each of which should be fixed by law; that if at the close of a session any parliamentary business remained unfinished, a committee should be appointed with power to sit and bring it to a conclusion; that a new parliament should be summoned every two years, unless the former parliament had been previously dissolved with its own consent; that decayed and inconsiderable boroughs should be disfranchised, and the number of county members increased, such increase being proportionate to the rates of each county in the common charges of the kingdom; that every regulation respecting the reform of the representation and the election of members should emanate from the House of Commons alone, whose decision on such matters should have the force of law, independently of the other branches of the legislature; that the names of the persons to be appointed sheriffs annually, and of those to be appointed

magistrates at any time, should be recommended to the king by the grand jury at the assizes; and that the grand jury itself should be selected, not by the partiality of the sheriff, but equally by the several divisions of the county; that the excise should be taken off all articles of necessity without delay, and off all others within a limited time; that the land-tax should be equally apportioned; that a remedy should be applied to the "unequal, troublesome, and contentious way of ministers' maintenance by tithes;" that suits at law should be rendered less tedious and expensive; that the estates of all men should be made liable for their debts; that insolvent debtors, who had surrendered all that they had to their creditors, should be discharged; and that no corporation should exact from their members oaths trenching on freedom of conscience.[1] To these innovations, great and important as they were, it was not the interest, if it had been the inclination, of Charles to make any serious objection: but on three other questions he felt much more deeply,—the church, the army, and the fate of the royalists: yet there existed a disposition to spare his feelings on all three; and after long and frequent discussion, such modifications of the original proposals were adopted, as in the opinion of his agents, Berkeley and Ashburnham, would insure his assent. 1. Instead of the abolition of the hierarchy, it was agreed to deprive it only of the power of coercion, to place the liturgy and the covenant on an equal footing, by taking away the penalties for absence from the one, and for refusal of the other; and to substitute in place of the oppressive and sanguinary laws still in force, some other provision for the discovery of popish recusants, and the restraint of popish priests and Jesuits, seeking to disturb the state. 2. To restore to the crown the command of the army and navy at the expiration of ten years. 3. And to reduce the number of delinquents among the English royalists to be excluded from pardon, to five individuals. Had the king accepted these terms, he would most probably have been replaced on the throne; for his agents, who had the best means of forming a judgment, though

[Footnote 1: Charles's Works, 579. Parl. History, ii. 738.]

they differed on other points, agreed in this, that the officers acted uprightly and sincerely; but he had unfortunately persuaded himself—and in that persuasion he was confirmed both by the advice of several faithful royalists and by the interested representations of the Scottish commissioners—that the growing struggle between the Presbyterians and Independents would enable him to give the law to both parties; and hence, when "the settlement" was submitted to him for his final approbation, he returned an unqualified refusal. The astonishment of his agents was not less than that of the officers. Had he dissembled, or had he changed his mind? In either case both had been deceived. *They* might suppress their feelings; but the agitators complained aloud, and a party of soldiers, attributing the disappointment to the intrigues of Lord Lauderdale, burst at night into the bedchamber of that nobleman, and ordered him to rise and depart without delay. It was in vain, that he pleaded his duty as commissioner from the estates of Scotland, or that he solicited the favour of a short interview with the king: he was compelled to leave his bed and hasten back to the capital.

[1]

Before this, information of the proceedings in London had induced Fairfax to collect his forces and march towards the city. On the way he was joined by the speakers of both houses, eight lords and fifty-eight commoners, who in a council held at Sion House solemnly bound themselves "to live and die with the army." Here it was understood that many royalists

[Footnote 1: Compare the narratives of Berkeley, 364, Ashburnham, ii. 92, Ludlow, i. 174, and Huntingdon (Journals, x. 410) with the proposals of the

army in Charles's Works, 578. The insult to Lauderdale is mentioned in the Lords' Journals, ix. 367.]

[Sidenote a: A.D. 1647. July 30.]

had joined the Presbyterians, and that a declaration had been circulated in the name of the king, condemning all attempts to make war on the parliament. The officers, fearing the effect of this intelligence on the minds of the military, already exasperated by the refusal of their proposals, conjured Charles to write a conciliatory letter to the general, in which he should disavow any design of assisting the enemy, should thank the army for its attention to his comfort, and should commend the moderation of their plan of settlement in many points, though he could not consent to it in all. The ill-fated monarch hesitated; the grace of the measure was lost by a delay of twenty-four hours; and though the letter was at last[a] sent, it did not arrive before the city had[b] made an offer of submission. In such circumstances it could serve no useful purpose. It was interpreted as an artifice to cover the king's intrigues with the Presbyterians, instead of a demonstration of his good will to the army.[1]

To return to the city, Holles and his colleagues had resumed the ascendancy during the secession of the Independents. The eleven members returned to the house; the command of the militia was restored to the former committee; and a vote was passed that the king should be invited to Westminster. At the same time the common council resolved to raise by subscription a loan of ten thousand pounds, and to add auxilairies to the trained bands to the amount of eighteen regiments. Ten thousand men were already in arms; four hundred barrels of gunpowder, with other military stores,

[Footnote 1: Journals, 359, 375. Heath, 140. Ludlow, i. 181. Charles afterwards disavowed the declaration, and demanded that the author and

publisher should be punished.—Whitelock, 267. There are two copies of his letter, one in the Clarendon Papers, ii. 373; another and shorter in the Parliamentary History, xv. 205.]

[Sidenote a: A.D. 1647. August 3.]

[Sidenote b: A.D. 1647. August 4.]

were drawn from the magazine in the Tower; and the Presbyterian generals, Massey, Waller, and Poyntz, gladly accepted the command.[1] But the event proved that these were empty menaces. In proportion as it was known that Fairfax had begun his march, that he had reviewed the army on Hounslow Heath, and that he had fixed his head-quarters at Hammersmith, the sense of danger cooled the fervour of enthusiasm, and the boast of resistance was insensibly exchanged for offers of submission.[a] The militia of Southwark openly fraternized with the army; the works on the line of communication were abandoned; and the lord mayor, on a promise that no violence should be offered to the inhabitants, ordered the gates to be thrown open. The next morning was celebrated the triumph of the Independents.[b] A regiment of infantry, followed by one of cavalry, entered the city; then came Fairfax on horseback, surrounded by his body-guards and a crowd of gentlemen; a long train of carriages, in which were the speakers and the fugitive members, succeeded; and another regiment of cavalry closed the procession. In this manner, receiving as they passed the forced congratulations of the mayor and the common council, the conquerors marched to Westminster, where each speaker was placed in his chair by the hand of the general.[2] Of the lords who had remained in London after the secession, one only, the earl of Pembroke, ventured to appear; and he was suffered to make his peace by a declaration that he considered all the proceedings during the absence of

[Footnote 1: Journals, x. 13, 16, 17.]

[Footnote 2: Whitelock, 261-264. Leicester's Journal, 27. Baillie calls this surrender of the city "an example rarely paralleled, if not of treachery, yet at least of childish improvidence and base cowardice" (ii. 259). The eleven members instantly fled.—Leicester, *ibid.*]

[Sidenote a: A.D. 1647. August 5.]

[Sidenote b: A.D. 1647. August 6.]

the members compulsory, and therefore null. But in the lower house the Presbyterians and their adherents composed a more formidable body; and by their spirit and perseverance, though they could not always defeat, frequently embarrassed the designs of their opponents. To many things they gave their assent; they suffered Maynard and Glyn, two members, to be expelled, the lord mayor, one of the sheriffs, and four of the aldermen, to be sent to the Tower, and the seven peers who sat during the secession of their colleagues, to be impeached. But a sense of danger induced them to oppose a resolution sent from the Lords, to annul all the votes passed from the 20th of July to the 6th of August. Four times,[a] contrary to the practice of the house, the resolution was brought forward, and as often, to the surprise of the Independents, was rejected. Fairfax hastened to the aid of his friends. In a letter to the speaker, he condemned the conduct of the Commons as equivalent to an approval of popular violence, and hinted the necessity of removing from the house the enemies of the public tranquillity. The next morning[b] the subject was resumed: the Presbyterians made the trial of their strength on an amendment, and finding themselves outnumbered, suffered the resolution to pass without a division.[1]

The submission of the citizens made a considerable change in the prospects of the captive monarch. Had any opposition been offered, it was the intention of the officers (so we are told by Ashburnham) to have unfurled the royal standard, and to have placed Charles at their head. The

ease with which they had subdued their opponents convinced them of their own superiority

[Footnote 1: Journals, 375, 385, 388, 391-398. Commons', iv. Aug. 9, 10, 17, 19, 20.]

[Sidenote a: A.D. 1647. August 9, 10, 17, 19.]

[Sidenote b: A.D. 1647. August 20.]

and rendered the policy of restoring the King a more doubtful question. Still they continued to treat him with respect and indulgence. From Oatlands he was transferred[a] to the palace of Hampton Court. There he was suffered to enjoy the company of his children, whenever he pleased to command their attendance, and the pleasure of hunting, on his promise not to attempt an escape; all persons whom he was content to see found ready admission to his presence; and, what he prized above all other concessions, he was furnished with the opportunity of corresponding freely and safely with the queen at Paris.[1] At the same time the two houses, at the requisition of the Scottish commissioners, submitted[b] "the propositions" once more to the royal consideration; but Charles replied,[c] that the plan suggested by the army was better calculated to form the basis of a lasting peace, and professed his readiness to treat respecting that plan with commissioners appointed by the parliament, and others by the army.[2] The officers applauded this answer; Cromwell in the Commons spoke in its favour with a vehemence which excited suspicion; and, though it was ultimately voted[d] equivalent to a refusal, a grand committee was appointed[e] "to take the whole matter respecting the king into consideration." It had been calculated that this attempt to amalgamate the plan of the parliament with that of the army might be accomplished in the space of

[Footnote 1: Clarendon Papers, ii. 381, Appendix, xli. Rushw. vii. 795. Memoirs of Hamiltons, 316. Herbert, 48. Ashburn. ii. 93, 95.]

[Footnote 2: Of this answer, Charles himself says to the Scottish commissioners. "Be not startled at my answer which I gave yesterday to the two houses; for if you truly understand it, I have put you in a right way, where before you were wrong."—Memoirs of Hamiltons, 323.]

[Sidenote a: A.D. 1647. August 24.]

[Sidenote b: A.D. 1647. Sept. 8.]

[Sidenote c: A.D. 1647. Sept. 9.]

[Sidenote d: A.D. 1647. Sept. 21.]

[Sidenote e: A.D. 1647. Sept. 22.]

twenty days; but it occupied more than two months; for there was now a third house to consult, the council of war, which debated every clause, and notified its resolves to the Lords and Commons, under the modest, but expressive, name of the desires of the army.[1]

While the king sought thus to flatter the officers, he was, according to his custom, employed in treating with the opposite party.[2] The marquess of Ormond, and the lord Capel,[3] with the Scottish commissioners, waited on him from London; and a resolution was[a] formed that in the next spring, the Scots should enter England with a numerous army, and call on the Presbyterians for their aid; that Charles, if he were at liberty, otherwise the prince of Wales, should sanction the enterprise by his presence; and that Ormond should resume the government of Ireland, while Capel summoned to the royal standard the remains of the king's party in England. Such was the outline of the plan; the minor details had not been arranged, when Cromwell, either informed by his spies, or prompted by his suspicions, complained to Ashburnham of the incurable duplicity of his master, who was

[Footnote 1: Ludlow, i. 184. Whitelock, 269. Huntingdon in Journals, x. 410. Journals, v. Sept. 22. On the division, Cromwell was one of the tellers for the Yea, and Colonel Rainsborough, the chief of the Levellers, for the No. It was carried by a majority of 84 to 34.—Ibid.]

[Footnote 2: In vindication of Charles it has been suggested that he was only playing at the same game as his opponents, amusing them as they sought to amuse him. This, however, is very doubtful as far as it regards the superior officers, who appear to me to have treated with him in good earnest, till they were induced to break off the negotiation by repeated proofs of his duplicity, and the rapid growth of distrust and disaffection in the army. I do not, however, give credit to Morrice's tale of a letter from Charles to Henrietta intercepted by Cromwell and Ireton.]

[Footnote 3: Capel was one of the most distinguished of the royal commanders, and had lately returned from beyond the sea with the permission of parliament.]

[Sidenote a: A.D. 1647. October.]

at the same time soliciting the aid, and plotting the destruction of the army.[1]

But by this time a new party had risen, equally formidable to royalists, Presbyterians, and Independents. Its founders were a few fanatics in the ranks, who enjoyed the reputation of superior godliness. They pretended not to knowledge or abilities; they were but humble individuals, to whom God had given reason for their guide, and whose duty it was to act as that reason dictated. Hence they called themselves Rationalists, a name which was soon exchanged for the more expressive appellation of Levellers. In religion they rejected all coercive authority; men might establish a public worship at their pleasure, but, if it were compulsory, it became unlawful by forcing

conscience, and leading to wilful sin: in politics they taught that it was the duty of the people to vindicate their own rights and do justice to their own claims. Hitherto the public good had been sacrificed to private interest; by the king, whose sole object was the recovery of arbitrary power; by the officers, who looked forward to commands, and titles, and emoluments; and by the parliament, which sought chiefly the permanence of its own authority. It was now time for the oppressed to arise, to take the cause into their own hands, and to resolve "to part with their lives, before they would part with their freedom." [2] These doctrines

[Footnote 1: Clarendon, iii. 70-72-75. Ashburnham, ii. 94. Of the disposition of the Scottish parliament, we have this account from Baillie: "If the king be willing to ratify our covenant, we are all as one man to restore him to all his rights, or die by the way; if he continue resolute to reject our covenant, and only to give us some parts of the matter of it, many here will be for him, even on these terms; but divers of the best and wisest are irresolute, and wait till God give more light."—Baillie, ii. 260.]

[Footnote 2: Clarendon Papers, ii. App. xl. Walker, History of Independents, 194. Rushworth, vii. 845. Hutchinson, 287. Secretary Nicholas, after mentioning the Rationalists, adds, "There are a sect of women lately come from foreign parts, and lodged in Southwark, called Quakers, who swell, shiver, and shake; and when they come to themselves (for in all the time of their fits Mahomet's holy ghost converses with them) they begin to preach what hath been delivered to them by the spirit"—Clarendon Papers, ii. 383.]

were rapidly diffused: they made willing converts of the dissolute, the adventurous, and the discontented; and a new spirit, the fruitful parent of new projects, began to agitate the great mass of the army. The king was seldom mentioned but in terms of abhorrence and contempt; he was an

Ahab or Coloquintida, the everlasting obstacle to peace, the cause of dissension and bloodshed. A paper[a] entitled "The Case of the Army," accompanied with another under the name of "The Agreement of the People," was presented to the general by the agitators of eleven regiments. They offered,[b] besides a statement of grievances, a new constitution for the kingdom. It made no mention of king or lords. The sovereignty was said to reside in the people, its exercise to be delegated to their representatives, but with the reservation of equality of law, freedom of conscience, and freedom from forced service in the time of war; three privileges of which the nation would never divest itself; parliaments were to be biennial, and to sit during six months; the elective franchise to be extended, and the representation to be more equally distributed. These demands of the Levellers were strenuously supported by the colonels Pride and Rainsborough, and as fiercely opposed by Cromwell and Ireton. The council of officers yielded so far as to require that no more addresses should be made to the king; but the two houses voted the papers destructive

[Sidenote a: A.D. 1647. Oct. 18.]

[Sidenote b: A.D. 1647. Nov. 1.]

of the government, and ordered the authors to be prosecuted; though at the same time, to afford some satisfaction to the soldiery, they resolved[a] that the king was bound to give the royal assent to all laws for the public good, which had been passed and presented to him by the Lords and Commons.[1]

It was now some time since the king had begun to tremble for his safety. He saw that the violence of the Levellers daily increased; that the officers, who professed to be his friends, were become objects of suspicion; that Ireton had been driven from the council, and Cromwell threatened with impeachment; that several regiments were in a state of complete

insubordination; and that Fairfax himself doubted of his power to restore the discipline of the army. Charles had formerly given his word of honour to the governor, Colonel Whalley, not to attempt an escape: he now withdrew it under the pretence that of late he had been as narrowly watched as if no credit were due to his promise. His guards were immediately doubled; his servants, with the exception of Legge, were dismissed; and the gates were closed against the admission of strangers. Yet it may be doubted whether these precautions were taken with any other view than to lull the suspicion of the Levellers; for he still possessed the means of conferring personally with Ashburnham and Berkeley, and received from Whalley repeated hints of the dangerous designs of his enemies. But where was he to seek an asylum? Jersey, Berwick, the Isle of Wight, and the residence of the Scottish commissioners in London were proposed. At first the commissioners expressed a willingness to

[Footnote 1: Claren. Papers, ii, App. xl. xli. Journ. Nov. 5, 6. Rush. vii. 849 857, 860, 863. Whitelock, 274-277.]

[Sidenote a: A.D. 1647. Nov. 6.]

receive him; the next day they withdrew their consent, and he fixed, as a last resource, on the Isle of Wight. On November 10th his apprehensions were wound up to the highest pitch, by some additional and most alarming intelligence; the next evening[a] he was missing. At supper-time Whalley entered his apartment, but, instead of the king, found on his table several written papers, of which one was an anonymous letter, warning him of danger to his person, and another, a message from himself to the two houses, promising, that though he had sought a more secure asylum, he should be always ready to come forth, "whenever he might be heard with honour, freedom, and safety." [1]

This unexpected escape drew from the parliament threats of vengeance against all persons who should presume to harbour the royal fugitive; but in the course of three days the intelligence arrived, that he was again a prisoner in the custody of Colonel Hammond, who had very recently been appointed governor of the Isle of Wight. The king, accompanied by Legge, groom of the chamber, had on the evening of his departure descended the back stairs into the garden, and repaired to a spot where Berkeley and Ashburnham waited^[b] his arrival. The night was dark and stormy, which facilitated their escape; but, when they had crossed the river at Thames Ditton, they lost their way, and it was daybreak before they reached Sutton, where they mounted their horses. The unfortunate

[Footnote 1: See Ashburnham's letter to the speaker on Nov. 26, p. 2; his memoir, 101-112; Berkeley, 373-375; Journals, ix. 520; Rush. vii. 871; Clarendon, iii. 77; Mem. of Hamiltons, 324; Whitelock, 278. That a letter from Cromwell was received or read by the king, is certain (see Journals, x. 411; Berkeley, 377); that it was written for the purpose of inducing him to escape, and thus fall into the hands of the Levellers, is a gratuitous surmise of Cromwell's enemies.]

[Sidenote a: A.D. 1647. Nov. 11.]

[Sidenote b: A.D. 1647. Nov. 12.]

monarch had still no fixed plan. As they proceeded in a southerly direction, he consulted his companions; and after some debate resolved to seek a temporary asylum at Tichfield House, the residence of the countess of Southampton, whilst Ashburnham and Berkeley should cross over to the Isle of Wight, and sound the disposition of Hammond the governor, of whom little more was known than that he was nephew to one of the royal chaplains. When Hammond first learned^[a] the object of the messengers, he betrayed considerable alarm, under the impression that the king was

actually on the island; but, having recovered his self-possession, he reminded them that he was but a servant bound to obey the orders of his employers, and refused to give any other pledge than that he would prove himself an honest man. How they could satisfy themselves with this ambiguous promise, is a mystery which was never explained—each subsequently shifting the blame to the other—but they suffered him to accompany them to the king's retreat, and even to take with him a brother officer, the captain of Cowes Castle.

During their absence Charles had formed a new plan of attempting to escape by sea, and had despatched a trusty messenger to look out for a ship in the harbour of Southampton. He was still meditating on this project when Ashburnham returned, and announced that Hammond with his companion was already in the town, awaiting his majesty's commands. The unfortunate monarch exclaimed, "What! have you brought him hither? Then I am undone." Ashburnham instantly saw his error. It was not, he replied, too late. *They* were but two, and might be easily despatched. Charles paced the room a few minutes, and then rejected the sanguinary hint. Still he clung to

[Sidenote a: A.D. 1647. Nov. 13.]

the vain hope that a ship might be procured; but at the end of two hours, Hammond became impatient; and the king, having nerved his mind for the interview, ordered him to be introduced, received him most graciously, and, mingling promises with flattery, threw himself on his honour. Hammond, however, was careful not to commit himself; he replied in language dutiful, yet ambiguous; and the king, unable to extricate himself from the danger, with a cheerful countenance, but misboding heart, consented to accompany him to the island. The governor ordered every demonstration of respect to be paid to the royal guest, and lodged him in Carisbrook Castle.[1]

The increasing violence of the Levellers, and the mutinous disposition of the army, had awakened the most serious apprehensions in the superior officers; and Fairfax, by the advice of the council, dismissed the agitators to their respective regiments,[a] and ordered the several corps to assemble in three brigades on three different days. Against the time a remonstrance was prepared in his name, in which he complained of the calumnies circulated among the soldiers, stated the objects which he had laboured to obtain, and offered to persist in his endeavours, provided the men would return to their ancient habits of military obedience. All looked forward with anxiety to the result; but no one with more apprehension than Cromwell. His life was at stake. The Levellers had threatened to make him pay with his head the forfeit of his intrigues with Charles; and the flight of that prince, by disconcerting their plans, had irritated their former animosity. On the appointed day the first

[Footnote 1: Journals, ix. 525. Rushworth, vii. 874. Ashburnham, ii. Berkeley, 377-382. Herbert, 52. Ludlow, i. 187-191.]

[Sidenote a: A.D. 1647. Nov. 8.]

brigade, that on which the officers could rely, mustered in a field between Hertford and Ware; and the remonstrance was read by order of Fairfax to each regiment in succession. It was answered with acclamations; the men hastened to subscribe an engagement to obey the commands of the general; and the sowers of discord, the distributors of seditious pamphlets, were pointed out, and taken into custody. From this corps Fairfax proceeded to two regiments, which had presumed to come on the ground without orders. The first, after some debate, submitted; the second was more obstinate. The privates had expelled the majority of the officers, and wore round their hats this motto: "The people's freedom, and the soldiers' rights." Cromwell darted into the ranks to seize the ringleaders; his intrepidity daunted the

mutineers; one man was immediately shot, two more were tried and condemned on the spot, and several others were reserved as pledges for the submission of their comrades.[1] By this act of vigour it was thought that subordination had been restored; but Cromwell soon discovered that the Levellers constituted two-thirds of the military force, and that it was necessary for him to retrace his steps, if he wished to retain his former influence. With that view he made a public acknowledgment of his error, and a solemn promise to stand or fall with the army. The conversion of the sinner was hailed with acclamations of joy, a solemn fast was kept to celebrate the event; and Cromwell in the assembly of officers confessed, weeping as he spoke,

[Footnote 1: Whitelock, 278. Journals, ix. 527. Ludlow, i. 192. It was reported among the soldiers that the king had promised to Cromwell the title of earl with a blue ribbon, to his son the office of gentleman of the bedchamber to the prince, and to Ireton the command of the forces in Ireland.—Holles, 127.]

that "his eyes, dazzled by the glory of the world, had not clearly discerned the work of the Lord; and therefore he humbled himself before them, and desired the prayers of the saints that God would forgive his self-seeking." His fellow-delinquent Ireton followed in the same repentant strain; both poured forth their souls before God in fervent and extemporary prayer; and "never," so we are assured, "did more harmonious music ascend to the ear of the Almighty." [1]

The king had yet no reason to repent of his confidence in Hammond; but that governor, while he granted every indulgence to his captive, had no intention of separating his own lot from that of the army. He consulted the officers at the head-quarters, and secretly resolved to adhere to their instructions. Charles recommenced his former intrigues. Through the

agency of Dr. Gough, one of the queen's chaplains, he sought to prevail on the Scottish commissioners to recede from their demand that he should confirm the covenant: he sent Sir John Berkeley to Cromwell and his friends, to remind them of their promises, and to solicit their aid towards a personal treaty; and by a message[a] to the parliament he proposed, in addition to his former offers, to surrender the command of the army during his life, to exchange the profits of the Court of Wards for a yearly income, and to provide funds for the discharge of the moneys due to the military and to the public creditors. The neglect with which this message was received, and the discouraging answer[b] returned by the officers, awakened his apprehensions; they were confirmed by the Scottish

[Footnote 1: Clarendon Papers, ii. App. xlv. Berkeley, 385. Whitelock, 284.]

[Sidenote a: A.D. 1647. Nov. 16.]

[Sidenote b: A.D. 1647. Dec. 8.]

commissioners, who while they complained of his late offer as a violation of his previous engagement, assured him that many of his enemies sought to make him a close prisoner, and that others openly talked of removing him either by a legal trial, or by assassination. These warnings induced him to arrange a plan of escape: application was made to the queen for a ship[a] of war to convey him from the island; and Berwick was selected as the place of his retreat.[1] He had, however, but little time to spare. As their ultimatum, and the only condition on which they would consent to a personal treaty, the houses demanded the royal assent to four bills which they had prepared. The first of these, after vesting the command of the army in the parliament for twenty years, enacted, that after that period it might be restored to the crown, but not without the previous consent of the Lords and Commons; and that still, whenever they should declare the safety of the

kingdom to be concerned, all bills passed by them respecting the forces by sea or land should be deemed acts of parliament, even though the king for the time being should refuse his assent; the second declared all oaths, proclamations, and proceedings against the parliament during the war, void and of no effect: the third annulled all titles of honour granted since the 20th of May, 1642, and deprived all peers to be created hereafter of the right of sitting in parliament, without the consent of the two houses; and the fourth gave to the houses themselves the power of adjourning from place to place at their discretion.[2][b] The Scots, to delay the proceedings, asked

[Footnote 1: *Memoirs of Hamiltons*, 325-333. *Ludlow*, i. 195-201. *Berkeley*, 383.]

[Footnote 2: *Journals*, ix. 575. *Charles's Works*, 590-593. Now let the reader turn to *Clarendon, History*, iii. 88. He tells us, that by one, the king was to have confessed himself the author of the war, and guilty of all the blood which had been spilt; by another, he was to dissolve the government of the church, and grant all lands belonging to the church to other uses; by a third, to settle the militia, without reserving so much power to himself as any subject was capable of; and in the last place, he was in effect to sacrifice all those who had served him, or adhered to him, to the mercy of the parliament. When this statement is compared with the real bills, it may be judged how little credit is due to the assertions of *Clarendon*, unless they are supported by other authorities.]

[Sidenote a: A.D. 1647. Dec. 14.]

[Sidenote b: A.D. 1647. Dec. 15.]

for a copy of the bills, and remonstrated against the alterations which had been made in the propositions of peace. Their language was bold and irritating; they characterized the conduct of the parliament as a violation of the league and covenant; and they openly charged the houses with suffering

themselves to be controlled by a body, which owed its origin and its subsistence to their authority. But the Independents were not to be awed by the clamour of men whom they knew to be enemies under the name of allies; they voted[a] the interference of any foreign nation in acts of parliament a denial of the independence of the kingdom, and ordered[b] the four bills to be laid before the king for his assent without further delay. The Scots hastened to Carisbrook, in appearance to protest against them, but with a more important object in view. They now relaxed from their former obstinacy; they no longer insisted on the positive confirmation of the covenant, but were content with a promise that Charles should make every concession in point of religion which his conscience would allow. The treaty which had been so long in agitation between them was privately signed; and the king returned[c] this answer to the two houses, that neither his present sufferings, nor the apprehension of worse treatment, should ever induce him to give his assent to any bills

[Sidenote a: A.D. 1647. Dec. 18.]

[Sidenote b: A.D. 1647. Dec. 24.]

[Sidenote c: A.D. 1647. Dec. 28.]

as a part of the agreement, before the whole was concluded.[1]

Aware of the consequences of his refusal, Charles had resolved to anticipate the vengeance of the parliament by making his escape the same evening to a ship which had been sent by the queen, and had been waiting for him several days in Southampton Water; but he was prevented by the vigilance of Hammond, who closed the gates on the departure of the commissioners, doubled the guards, confined the royal captive to his chamber, and dismissed Ashburnham, Berkeley, Legge, and the greater part of his attendants.[2] An attempt to raise in his favour the inhabitants of the island was instantly suppressed, and its author, Burley, formerly a captain in

the royal army, suffered the punishment of a traitor. The houses resolved[a] (and the army promised to live and die with them in defence of the resolution)[3] that they would receive no additional message from the king; that they would send no address or application to him; that if any other person did so without leave, he should be subject to the penalties of high treason; and that the committee of public safety should be renewed to sit and act alone, without the aid of foreign coadjutors. This last hint was understood by the Scots: they made a demand[b] of the hundred thousand pounds due to them by the

[Footnote 1: Journals, ix. 575, 578, 582, 591, 604, 615, 621. Charles's Works, 594. Memoirs of Hamiltons, 334.]

[Footnote 2: Ashburnham, ii. 121. Berkeley, 387, 393.]

[Footnote 3: On Jan 11, before the vote passed, an address was presented from the general and the council of war by seven colonels and other officers to the House of Commons, expressive of the resolution of the army to stand by the parliament: and another to the House of Lords, expressive of their intention to preserve inviolate the rights of the peerage. Of the latter no notice is taken in the journals of the house.—Journ. v. Jan. 11. Parl. Hist. vi. 835.]

[Sidenote a: A.D. 1648. Jan. 3 and Jan. 15.]

[Sidenote b: A.D. 1648. Jan. 17.]

treaty of evacuation, and announced their intention of returning immediately to their own parliament.[1]

The king appeared to submit with patience to the[a] new restraints imposed on his freedom; and even affected an air of cheerfulness, to disguise the design which he still cherished of making his escape. The

immediate charge of his person had been intrusted to four warders of approved fidelity, who, two at a time, undertook the task in rotation. They accompanied the captive wherever he was, at his meals, at his public devotions, during his recreation on the bowling-green, and during his walks round the walls of the castle. He was never permitted to be alone, unless it were in the retirement of his bedchamber; and then one of the two warders was continually stationed at each of the doors which led from that apartment. Yet in defiance of these precautions (such was the ingenuity of the king, so generous the devotion of those who sought to serve him) he found the means of maintaining a correspondence with his friends on the coast of Hampshire, and through them with the English royalists, the Scottish commissioners in Edinburgh, the queen at Paris, and the duke of York at St. James's, who soon afterwards, in obedience to the command of[b] his father, escaped in the disguise of a female to Holland.[2]

[Footnote 1: The vote of non-addresses passed by a majority of 141 to 92. Journals, v. Jan. 3. See also Jan. 11, 15, 1648; Lords' Journals, ix. 640, 662; Rushworth, vii. 953, 961, 965; Leicester's Journal, 30.]

[Footnote 2: Journals, x. 35, 76, 220. Rushworth, vii. 984, 1002, 1067, 1109. Clarendon, iii. 129. One of those through whom Charles corresponded with his friends was Firebrace, who tells us that he was occasionally employed by one of the warders to watch for him at the door of the king's bedchamber, and on such occasions gave and received papers through a small crevice in the boards. See his account in the additions to Herbert's Memoirs, p. 187. The manner of the duke's escape is related in his Life, i. 33, and Ellis, 2nd series, iii. 329.]

[Sidenote a: A.D. 1648. Feb. 2.]

[Sidenote b: A.D. 1648. April. 17.]

In the mean while an extraordinary ferment seemed to agitate the whole mass of the population. With the exception of the army, every class of men was dissatisfied. Though the war had ceased twelve months before, the nation enjoyed few of the benefits of peace. Those forms and institutions, the safeguards of liberty and property, which had been suspended during the contest, had not been restored; the committees in every county continued to exercise the most oppressive tyranny; and a monthly tax was still levied for the support of the forces, exceeding in amount the sums which had been exacted for the same purpose during the war. No man could be ignorant that the parliament, nominally the supreme authority, was under the control of the council of officers; and the continued captivity of the king, the known sentiments of the agitators, and, above all, the vote of non-addresses, provoked a general suspicion that it was in contemplation to abolish the monarchical government, and to introduce in its place a military despotism. Four-fifths of the nation began to wish for the re-establishment of the throne. Much diversity of opinion prevailed with respect to the conditions; but all agreed that what Charles had so often demanded, a personal treaty, ought to be granted, as the most likely means to reconcile opposite interests and to lead to a satisfactory arrangement.

Soon after the passing of the vote of non-addresses,[a] the king had appealed to the good sense of the people through the agency of the press. He put it to them to judge between him and his opponents, whether by his answer to the four bills he had given any reasonable

[Sidenote a: A.D. 1648 Jan. 18.]

cause for their violent and unconstitutional vote; and whether they, by the obstinate refusal of a personal conference, had not betrayed their resolve not to come to any accommodation.[1] The impression made by this paper called for an answer: a long and laboured vindication of the proceedings of

the House of Commons was prepared, and after many erasures and amendments approved; copies of it were allotted to the members to be circulated among their constituents, and others were sent to the curates to be read by them to their parishioners.[2] It contained a tedious enumeration of all the charges, founded or unfounded, which had ever been made against the king from the commencement of his reign; and thence deduced the inference that, to treat with a prince so hostile to popular rights, so often convicted of fraud and dissimulation, would be nothing less than to betray the trust reposed in the two houses by the country. But the framers of the vindication marred their own object. They had introduced much questionable matter, and made numerous statements open to refutation: the advantage was eagerly seized by the royalists; and, notwithstanding the penalties recently enacted on account of unlicensed publications, several answers, eloquently and convincingly written, were circulated in many parts of the country. Of these the most celebrated came from the pens of Hyde the chancellor, and of Dr. Bates, the king's physician.[3]

But, whilst the royal cause made rapid progress among the people, in the army itself the principles of the Levellers had been embraced by the majority of

[Footnote 1: King's Works, 130. Parl. Hist. iii. 863.]

[Footnote 2: Journals, v. Feb. 10, 11. Parl. Hist. iii. 847. Perrinchief, 44.]

[Footnote 3: Ibid. Parl. Hist. iii. 866. King's Works, 132.]

the privates, and had made several converts among the officers. These fanatics had discovered in the Bible, that the government of kings was odious in the sight of God,[1] and contended that in fact Charles had now no claim to the sceptre. Protection and allegiance were reciprocal. At his accession he had bound himself by oath to protect the liberties of his

subjects, and by the violation of that oath he had released the people from the obligation of allegiance to him. For the decision of the question he had appealed to the God of battles, who, by the result, had decided against his pretensions. He therefore was answerable for the blood which had been shed; and it was the duty of the representatives of the nation to call him to justice for the crimes and, in order to prevent the recurrence of similar mischiefs, to provide for the liberties of all, by founding an equal commonwealth on the general consent. Cromwell invited the patrons of this doctrine to meet at his house the *grandees* (so they were called) of the parliament and army. The question was argued; but both he and his colleagues were careful to conceal their real sentiments. They did not openly contradict the principles laid down by the Levellers, but they affected to doubt the possibility of reducing them to practice. The truth was, that they wished not to commit themselves by too explicit an avowal before they could see their way plainly before them.[2]

In this feverish state of the public mind in England, every eye was turned towards the proceedings in Scotland. For some time a notion had been cherished by the Scottish clergy, that the king at Carisbrook had not only subscribed the covenant, but had solemnly

[Footnote 1: 1 Kings, viii. 8.]

[Footnote 2: Ludlow, i. 206. Whitelock, 317.]

engaged to enforce it throughout his dominions; and the prospect of a speedy triumph over the Independents induced them to preach a crusade from the pulpit in favour of the kirk and the throne. But the return of the commissioners, and the publication of "the agreement" with the king, bitterly disappointed their hopes. It was found that Charles had indeed consented to the establishment of Presbyterianism in England, but only as an experiment for three years, and with the liberty of dissent both for

himself, and for those who might choose to follow his example. Their invectives were no longer pointed against the Independents; "the agreement" and its advocates became the objects of their fiercest attacks. Its provisions were said to be unwarranted by the powers of the commissioners, and its purpose was pronounced an act of apostasy from the covenant, an impious attempt to erect the throne of the king in preference to the throne of Christ. Their vehemence intimidated the Scottish parliament, and admonished the duke of Hamilton to proceed with caution. That nobleman, whose imprisonment ended with the surrender of Pendennis, had waited on the king in Newcastle; a reconciliation followed; and he was now become the avowed leader of the royalists and moderate Presbyterians. That he might not irritate the religious prejudices of his countrymen, he sought to mask his real object, the restoration of the monarch, under the pretence of suppressing heresy and schism; he professed the deepest veneration for the covenant, and the most implicit deference to the authority of the kirk; he listened with apparent respect to the remonstrances of the clerical commission, and openly solicited its members to aid the parliament with their wisdom, and to state their desires. But these were mere words intended to lull suspicion. By dint of numbers (for his party comprised two-thirds of the convention), he obtained the appointment of a committee of danger; this was followed by a vote to place the kingdom in a posture of defence; and the consequence of that vote was the immediate levy of reinforcements for the army. But his opponents under the earl of Argyle threw every obstacle in his way. They protested in parliament against the war; the commissioners of the kirk demanded that their objections should be previously removed; the women cursed the duke as he passed, and pelted him with stones from their windows; and the ministers from their pulpits denounced the curse of God on all who should take a share in the unholy enterprise. Forty thousand men had been voted; but though force was frequently employed, and blood

occasionally shed, the levy proceeded so slowly, that even in the month of July the grand army hardly exceeded one-fourth of that number.[1]

By the original plan devised at Hampton Court, it had been arranged that the entrance of the Scots into England should be the signal for a simultaneous rising of the royalists in every quarter of the kingdom. But the former did not keep their time, and the zeal of the latter could not brook delay.[a] The first who proclaimed the king, was a parliamentary officer, Colonel Poyer, mayor of the town, and governor of the castle, of Pembroke. He refused to resign his military appointment at the command of Fairfax, and, to justify

[Footnote 1: Memoirs of the Hamiltons, 339, 347, 353. Thurloe, i. 94. Rushworth, vii. 1031, 48, 52, 67, 114, 132. Two circumstantial and interesting letters from Baillie, ii. 280-297. Whitelock, 305. Turner, 52.]

[Sidenote a: A.D. 1648. March 3.]

his refusal, unfurled the royal standard. Poyer was joined by Langherne and Powel, two officers whose forces had lately been disbanded. Several of the men hastened to the aid of their former leaders; the Cavaliers ran to arms in both divisions of the principality; a force of eight thousand men was formed; Chepstow was surprised, Carnarvon besieged, and Colonel Fleming defeated.[a] By these petty successes the unfortunate men were lured on to their ruin. Horton checked their progress; Cromwell followed with five regiments to punish their presumption. The tide immediately changed. Langherne was defeated; Chepstow was recovered; the besiegers of Carnarvon were cut to pieces.[b] On the refusal of Poyer to surrender, the lieutenant-general assembled his corps after sunset, and the fanatical Hugh Peters foretold that the ramparts of Pembroke, like those of Jericho, would fall before the army of the living God. From prayer and sermon the men hastened to the assault; the ditch was passed, the walls were scaled; but they

found the garrison at its post, and, after a short but sanguinary contest, Cromwell ordered a retreat. A regular siege was now formed; and the Independent general, notwithstanding his impatience to proceed to the north, was detained more than six weeks before this insignificant fortress.
[1]

Scarcely a day passed, which was not marked by some new occurrence indicative of the approaching contest.[c] An alarming tumult in the city, in which the apprentices forced the guard, and ventured to engage the military under the command of the general, was quickly followed by similar disturbances in

[Footnote 1: Lords' Journals, x. 88, 253. Rushworth, vii. 1016, 38, 66, 97, 129. Heath, 171. Whitelock, 303, 305. May, 116.]

[Sidenote a: A.D. 1648. May 1.]

[Sidenote b: A.D. 1648. May 20.]

[Sidenote c: A.D. 1648. April 9.]

Norwich, Thetford, Canterbury, Exeter, and several towns.[a] They were, indeed, suppressed by the vigilance of Fairfax and the county committees; but the cry of "God and the king," echoed and re-echoed by the rioters on these occasions, sufficiently proved that the popular feeling was setting fast in favour of royalty. At the same time petitions from different public bodies poured into the two houses, all concurring in the same prayer, that the army should be disbanded, and the king brought back to his capital.[1] The Independent leaders, aware that it would not be in their power to control the city while their forces were employed in the field, sought a reconciliation. [b] The parliament was suffered to vote that no change should be made in the fundamental government of the realm by king, lords, and commons; and the citizens in return engaged themselves to live and die with the parliament. Though the promises on both sides were known to be insincere,

it was the interest of each to dissemble. Fairfax withdrew his troops from Whitehall and the Mews; the charge of the militia was once more intrusted to the lord mayor and the aldermen; and the chief command was conferred on Skippon, who, if he did not on every subject agree with the Independents, was yet distinguished by his marked opposition to the policy of their opponents.[c]

The inhabitants of Surrey and Essex felt dissatisfied with the answers given to their petitions; those of Kent repeatedly assembled to consider their grievances, and to consult on the means of redress. These meetings, which originated with a private gentleman of the name of Hales, soon assumed the character of

[Footnote 1: Journals, 243, 260, 267, 272. Commons', April 13, 27, May 16.

Whitelock, 299, 302, 303, 305, 306.]

[Sidenote a: A.D. 1648. April 28.]

[Sidenote b: A.D. 1648. May 2.]

loyalty and defiance. Associations were formed, arms were collected, and on an appointed day[a] a general rising took place. The inhabitants of Deal distinguished themselves on this occasion; and Rainsborowe, the parliamentary admiral, prepared to chastise their presumption. Leaving orders for the fleet to follow, he proceeded[b] in his barge to reconnoitre the town; but the men, several of whom had families and relatives in it, began to murmur, and Lindale, a boatswain in the admiral's ship, proposed to declare for the king. He was answered with acclamations; the officers were instantly arrested; the crews of the other ships followed the example; the arguments and entreaties of Rainsborowe himself, and of the earl of Warwick, who addressed them in the character of lord high admiral, were disregarded, and the whole fleet, consisting of six men-of-war fully

equipped for the summer service, sailed under the royal colours to Helvoetsluys, in search of the young duke of York, whom they chose for their commander-in-chief.[1] But the alarm excited by this revolt at sea was quieted by the success of Fairfax against the insurgents on land. The Cavaliers had ventured to oppose him[c] in the town of Maidstone, and for six hours, aided by the advantage of their position, they resisted the efforts of the enemy; but their loss was proportionate to their valour, and two hundred fell in the streets, four hundred were made prisoners. Many of the countrymen, discouraged by this defeat, hastened to their homes. Goring, earl of Newport, putting himself at the head of a different body, advanced[d] to Blackheath, and solicited admission into the city. It was a moment big with the most important consequences. The king's friends formed a

[Footnote 1: Life of James II. i. 41.]

[Sidenote a: A.D. 1648. May 23.]

[Sidenote b: A.D. 1648. May 27.]

[Sidenote c: A.D. 1648. June 1.]

[Sidenote d: A.D. 1648. June 2.]

numerous party; the common council wavered; and the parliament possessed no armed force to support its authority. The leaders saw that they had but one resource, to win by conciliation. The aldermen imprisoned at the request of the army were set[a] at liberty; the impeachment against the six lords was discharged; and the excluded members were permitted to resume their seats. These concessions, aided by the terror which the victory at Maidstone inspired, and by the vigilance of Skippon, who intercepted all communication between the royalists, and the party at Blackheath, defeated the project of Goring. That commander, having received a refusal, crossed[b] the river, with five thousand horse, was joined by Lord Capel

with the royalists from Hertfordshire, and by Sir Charles Lucas with a body of horse from Chelmsford, and assuming the command of the whole, fixed his head-quarters in Colchester. The town had no other fortification than a low rampart of earth; but, relying on his own resources and the constancy of his followers, he resolved to defend it against the enemy, that he might detain Fairfax and his army in the south, and keep the north open to the advance of the Scots. This plan succeeded; Colchester was assailed and defended with equal resolution; nor was its fate decided till the failure of the Scottish invasion had proved the utter hopelessness of the royal cause. [1]

It soon appeared that the restoration of the impeached and excluded members, combined with the departure of the officers to their commands in the army, had imparted a new tone to the proceedings in

[Footnote 1: Journals, x. 276, 278, 279, 283, 289, 297, 301, 304. Commons, May 24, 25, June 4, 8. Whitelock, 307, 308, 309, 310. Clarendon, iii. 133, 151, 154.]

[Sidenote a: A.D. 1648. June 3.]

[Sidenote b: A.D. 1648. June 4.]

parliament. Holles resumed not only his seat, but his preponderance in the lower house. The measures which his party had formerly approved were again adopted; and a vote was passed to open a new treaty with the king, on condition that he should previously engage to give the royal assent to three bills, revoking all declarations against the parliament, establishing the Presbyterian discipline for the term of three, and vesting the command of the army and navy in certain persons during that of ten years. But among the lords a more liberal spirit prevailed. The imprisonment of the six peers had taught them a salutary lesson. Aware that their own privileges would infallibly fall with the throne, they rejected the three bills of the Commons,

voted a personal treaty without any previous conditions, and received from the common council an assurance that, if the king were suffered to come to London, the city would guarantee both the royal person and the two houses from insult and danger. But Holles and his adherents refused to yield; conference after conference was held; and the two parties continued for more than a month to debate the subject without interruption from the Independents. These had no leisure to attend to such disputes. Their object was to fight and conquer, under the persuasion that victory in the field would restore to them the ascendancy in the senate.[1]

It was now the month of July, and the English royalists had almost abandoned themselves to despair, when they received the cheering intelligence that the duke of Hamilton had at last redeemed his promise, and entered[a] England at the head of a numerous army.[a]

[Footnote 1: Journals, 308, 349, 351, 362, 364, 367. Commons, July 5. Whitelock, 315, 316, 318, 319. Ludlow, i. 251.]

[Sidenote a: A.D. 1648. April 28.]

The king's adherents in the northern counties had already surprised Berwick and Carlisle; and, to facilitate his entry, had for two months awaited with impatience his arrival on the borders. The approach of Lambeth, the parliamentary general, compelled them to seek shelter within the walls of Carlisle, and the necessity of saving that important place compelled the duke to despatch a part of his army to its relief. Soon afterwards[a] he arrived himself. Report exaggerated his force to thirty thousand men, though it did not in fact amount to more than half that number; but he was closely followed by Monroe, who led three thousand veterans from the Scottish army in Ireland, and was accompanied or preceded by Sir Marmaduke Langdale, the commander of four thousand

Cavaliers, men of approved valour, who had staked their all on the result. With such an army a general of talent and enterprise might have replaced the king on his throne; but Hamilton, though possessed of personal courage, was diffident of his own powers, and resigned himself to the guidance of men who sacrificed the interests of the service to their private jealousies and feuds. Forty days were consumed in a short march of eighty miles; and when the decisive battle was fought, though the main body had reached the left bank of the Ribble near Preston, the rear-guard, under Monroe, slept in security at Kirkby Lonsdale. Lambert had retired slowly before the advance of the Scots, closely followed by Langdale and his Cavaliers; but in Otley Park he was joined by Cromwell, with several regiments which had been employed in the reduction of Pembroke. Their united force did not exceed nine thousand men; but the impetuosity of the general despised inequality of numbers; and the

[Sidenote a: A.D. 1648. July 8.]

ardour of his men induced him to lead them without delay against the enemy. From Clithero, Langdale fell back on the Scottish army near Preston, and warned the duke to prepare for battle on the following day.[a] Of the disasters which followed, it is impossible to form any consistent notion from the discordant statements of the Scottish officers, each of whom, anxious to exculpate himself, laid the chief blame on some of his colleagues. This only is certain, that the Cavaliers fought with the obstinacy of despair; that for six hours they bore the whole brunt of the battle; that as they retired from hedge to hedge they solicited from the Scots a reinforcement of men and a supply of ammunition; and that, unable to obtain either, they retreated into the town, where they discovered that their allies had crossed to the opposite bank, and were contending with the enemy for the possession of the bridge. Langdale, in this extremity, ordered his infantry to disperse, and, with the cavalry and the duke, who had refused

to abandon his English friends, swam across the Ribble. Cromwell won the bridge, and the royalists fled in the night toward Wigan. Of the Scottish forces, none but the regiments under Monroe and the stragglers who rejoined him returned to their native country. Two-thirds of the infantry, in their eagerness to escape, fell into the hands of the neighbouring inhabitants; nor did Baillie, their general, when he surrendered at Warrington, number more than three thousand men under their colours. The duke wandered as far as Uttoxeter with the cavalry; there his followers mutinied,[b] and he yielded himself a prisoner to General Lambert and the Lord Grey of Groby. The Cavaliers disbanded[c] themselves in Derbyshire; their gallant leader, who travelled in

[Sidenote: A.D. 1648. Aug. 17.]

[Sidenote: A.D. 1648. Aug. 20.]

[Sidenote: A.D. 1648. Aug. 25.]

the disguise of a female, was discovered and taken in the vicinity of Nottingham: but Lady Savile bribed his keeper: dressed in a clergyman's cassock he escaped to the capital; and remained there in safety with Dr. Barwick, being taken for an Irish minister driven from his cure by the Irish Catholics.[1]

On the very day on which the Scots began their march, a feeble attempt had been made to assist their advance by raising the city of London. Its author was one who by his inconstancy had deservedly earned the contempt of every party,—the earl of Holland. He had during the contest passed from the king to the parliament, and from the parliament to the king. His ungracious reception by the royalists induced him to return to their opponents, by whom he was at first treated with severity, afterwards with neglect. Whether it were resentment or policy, he now professed himself a true penitent, offered to redeem his past errors by future services, and

obtained from the prince of Wales a commission to raise forces. As it had been concerted between him and Hamilton, on the 5th of July, he marched[a] at the head of five hundred

[Footnote 1: Lords' Journals, x. 455-458. Rushworth, vii. 1227, 1242. Barwicci Vita, 66. The narrative in Burnet's *Memoirs of the Hamiltons* (355-365) should be checked by that in Clarendon (iii. 150, 160). The first was derived from Sir James Turner (*Turner's Memoirs*, 63), who held a command in the Scottish army; the second from Sir Marmaduke Langdale. According to Turner, Langdale was ignorant, or kept the Scots in ignorance, of the arrival of Cromwell and his army; according to Langdale, he repeatedly informed them of it, but they refused to give credit to the information. Langdale's statement is confirmed by Dachmont, who affirmed to Burnet, that "on fryday before Preston the duke read to Douchel and him a letter he had from Langdale, telling how the enemy had rendesvoused at Oatley and Oatley Park, wher Cromwell was,"—See a letter from Burnet to Turner in *App. to Turner's Memoirs*, 251. Monroe also informed the duke, probably by Dachmont, of Cromwell's arrival at Skipton.—*Ibid*, 249.]

[Sidenote a: A.D. 1648. July 5.]

horse, in warlike array from his house in the city, and having fixed his quarters in the vicinity of Kingston, sent messages to the parliament and the common council, calling on them to join with him in putting an end to the calamities of the nation. On the second day,[a] through the negligence, it was said, of Dalbier, his military confidant, he was surprised, and after a short conflict, fled with a few attendants to St. Neots; there a second action followed,[b] and the earl surrendered at discretion to his pursuers. His misfortune excited little interest; but every heart felt compassion for two young noblemen whom he had persuaded to engage in this rash enterprise, the duke of Buckingham and his brother the Lord Francis Villiers. The latter

was slain at Kingston; the former, after many hair-breadth escapes, found an asylum on the continent.[1]

The discomfiture of the Scottish army was followed by the surrender of Colchester. While there was an object to fight for, Goring and his companions had cheerfully submitted to every privation; now that not a hope remained, they offered to capitulate, and received for answer that quarter would be granted to the privates, but that the officers had been declared traitors by the parliament, and must surrender at discretion. These terms were accepted;[c] the council deliberated on the fate of the captives; Goring, Capel, and Hastings, brother to the earl of Huntingdon, were reserved for the judgment of the parliament; but two, Sir George Lisle and Sir Charles Lucas, because they were not men of family, but soldiers of fortune,[2] were

[Footnote 1: Clarendon, iii. 121, 176. Whitelock, 317, 318, 320. Lords' Journals, 367. Commons, July 7, 12. Leicester's Journal, 35.]

[Footnote 2: This is the reason assigned by Fairfax himself. Memoirs, 50.]

[Sidenote a: A.D. 1648. July 7.]

[Sidenote b: A.D. 1648. July 10.]

[Sidenote c: A.D. 1648. August 29.]

selected for immediate execution. Both had been distinguished by their bravery, and were reckoned among the first commanders in the royal service. Lucas, tearing open his doublet, exclaimed, "Fire, rebels!" and instantly fell. Lisle ran to him, kissed his dead body, and turning to the soldiers, desired them to advance nearer. One replied, "Fear not, sir, we shall hit you." "My friends," he answered, "I have been nearer when you have missed me." The blood of these brave men impressed a deep stain on

the character of Fairfax, nor was it wiped away by the efforts of his friends, who attributed their death to the revengeful counsels of Ireton.[1]

At this time the prince of Wales had been more than six weeks in the Downs. As soon as he heard of the revolt of the fleet, he repaired to the Hague, and taking upon himself the command, hastened with nineteen sail to the English coast. Had he appeared before the Isle of Wight, there can be little doubt that Charles would have recovered his liberty; but the council with the prince decided[a] that it was more for the royal interest to sail to the mouth of the river, where they long continued to solicit by letters the wavering disposition of the parliament and the city. While Hamilton advanced, there seemed a prospect of success; the destruction of his army extinguished their hopes. The king, by a private message, suggested that before their departure from the coast, they should free him from his captivity. But the mariners proved that they were the masters. They demanded to fight the hostile fleet under the earl of

[Footnote 1: Journals, x. 477. Rushworth, vii. 1242, 1244. Clarendon, iii, 177. Fairfax says in his vindication that they surrendered "at *mercy*, which means that some are to suffer, some to be spared."—Memoirs, p. 540.]

[Sidenote a: A.D. 1648. July 20.]

Warwick, who studiously avoided an engagement, that he might be joined by a squadron from Portsmouth. During two days the royalists offered[a] him battle; by different manoeuvres he eluded their attempts; and on the third day the want of provisions compelled the prince to steer for the coast of Holland, without paying attention to the request of his royal father. Warwick, who had received his reinforcements, followed at a considerable distance; but, though he defended his conduct on motives of prudence, he did not escape the severe censure of the Independents and Levellers, who

maintained that the cause had always been betrayed when it was intrusted to the cowardice or disaffection of noble commanders.[1]

It is now time to revert to the contest between the two houses respecting the proposed treaty with the king. Towards the end of July the Commons had yielded[b] to the obstinacy of the Lords; the preliminary conditions on which they had insisted were abandoned,[c] and the vote of non-addresses was repealed. Hitherto these proceedings had been marked with the characteristic slowness of every parliamentary measure; but the victory of Cromwell over Hamilton, and the danger of interference on the part of the army, alarmed the Presbyterian leaders; and fifteen commissioners, five lords and ten commoners, were appointed[d] to conduct the negotiation.[2] At length they arrived;[e] Charles repaired[f] from his prison in Carisbrook Castle to the neighbouring town of Newport;

[Footnote 1: Lords' Journals, x. 399, 414, 417, 426, 444, 483, 488, 494. Clarendon Papers, ii. 412, 414.]

[Footnote 2: They were the earls of Northumberland, Salisbury, Pembroke, and Middlesex, the lords Say and Seale, Lord Wenman, Sir Henry Vane, junior, Sir Harbottle Grimstone, and Holles, Pierrepont, Brown, Crew, Glyn, Potts, and Bulkely.]

[Sidenote a: A.D. 1648. August 30.]

[Sidenote b: A.D. 1648. July 28.]

[Sidenote c: A.D. 1648. August 3.]

[Sidenote d: A.D. 1648. Sept. 1.]

[Sidenote e: A.D. 1648. Sept. 15.]

[Sidenote f: A.D. 1648. Sept. 18.]

he was suffered to call around him his servants, his chaplains, and such of his counsellors as had taken no part in the war; and, as far as outward

appearances might be trusted, he had at length obtained the free and honourable treaty which he had so often solicited. Still he felt that he was a captive, under promise not to leave the island till twenty days after the conclusion of the treaty, and he soon found, in addition, that he was not expected to treat, but merely to submit. How far the two houses might have yielded in other circumstances is uncertain; but, under the present superiority of the army, they dared not descend from the lofty pretensions which they had previously put forth. The commissioners were permitted to argue, to advise, to entreat; but they had no power to concede; their instructions bound them to insist on the king's assent to every proposition which had been submitted to his consideration at Hampton Court. To many of these demands Charles made no objection; in lieu of those which he refused, he substituted proposals of his own, which were forwarded to the parliament, and voted unsatisfactory. He offered new expedients and modifications; but the same answer was invariably returned, till the necessity of his situation wrung from the unfortunate prince his unqualified assent to most of the articles in debate. On four points only he remained inflexible. Though he agreed to suspend for three years, he refused to abolish entirely, the functions of the bishops; he objected to the perpetual alienation of the episcopal lands, but proposed to grant leases of them for lives, or for ninety-nine years, in favour of the present purchasers; he contended that all his followers, without any exception, should be admitted to compound for their delinquency; and he protested that, till his conscience were satisfied of the lawfulness of the covenant, he would neither swear to it himself, nor impose it upon others. Such was the state of the negotiation, when the time allotted by the parliament expired;^[a] and a prolongation for twenty days was voted.^[1]

The Independents from the very beginning had disapproved of the treaty. In a petition presented^[b] by "thousands of well-affected persons in and near London," they enumerated the objects for which they had fought, and

which they now claimed as the fruit of their victory. Of these the principal were, that the supremacy of the people should be established against the negative voice of the king and of the lords; that to prevent civil wars, the office of the king and the privileges of the peers should be clearly defined; that a new parliament, to be elected of course and without writs, should assemble every year, but never for a longer time than forty or fifty days; that religious belief and worship should be free from restraint

[Footnote 1: The papers given in during this treaty may be seen in the Lords' Journals, x. 474-618. The best account is that composed by order of the king himself, for the use of the prince of Wales.—Clarendon Papers, ii. 425-449. I should add, that a new subject of discussion arose incidentally during the conferences. The lord Inchiquin had abandoned the cause of the parliament in Ireland, and, at his request, Ormond had been sent from Paris by the queen and the prince, to resume the government, with a commission to make peace with the Catholic party. Charles wrote to him two letters (Oct. 10, 28.—Carte, ii. App. xxxi. xxxii.), ordering him to follow the queen's instructions, to obey no commands from himself as long as he should be under restraint, and not to be startled at his concessions respecting Ireland, for they would come to nothing. Of these letters the houses were ignorant; but they got possession of one from Ormond to the Irish Catholics, and insisted that Charles should order the lord lieutenant to desist. This he eluded for some time, alleging that if the treaty took effect, their desire was already granted by his previous concessions; if it did not, no order of his would be obeyed. At last he consented, and wrote the letter required.—Journals, x. 576-578, 597, 618. Clarendon Papers, ii. 441, 445, 452.]

[Sidenote a: A.D. 1648. Nov. 5.]

[Sidenote b: A.D. 1648. Sept. 11.]

or compulsion; that the proceedings in law should be shortened, and the charges ascertained; that tithes for the support of the clergy, and perpetual imprisonment for debt, should be abolished; and that the parliament "should lay to heart the blood spilt, and the rapine perpetrated by commission from the king, and consider whether the justice of God could be satisfied, or his wrath be appeased, by an act of oblivion." This instrument is the more deserving of attention, because it points out the political views which actuated the leaders of the party.[1]

In the army, flushed as it was with victory, and longing for revenge, maxims began to prevail of the most dangerous tendency in respect of the royal captive. The politicians maintained that no treaty could be safely made with the king, because if he were under restraint, he could not be bound by his consent; if he were restored to liberty, he could not be expected to make any concessions. The fanatics went still further. They had read in the book of Numbers that "blood defileth the land, and the land cannot be cleansed of the blood that is shed therein, but by the blood of him that shed it;" and hence they inferred that it was a duty, imposed on them by the God who had given them the victory, to call the king to a strict account for all the blood which had been shed during the civil war. Among these, one of the most eminent was Colonel Ludlow, a member of parliament, who, having persuaded himself that the anger of God could be appeased only by the death of Charles, laboured, though in vain, to make Fairfax a convert to his opinion. He proved more successful with Ireton, whose regiment petitioned[a] the commander-in-chief,

[Footnote 1: Whitelock, 335.]

[Sidenote a: A.D. 1648. Oct. 18.]

that crime might be impartially punished without any distinction of high or low, rich or poor; that all who had contrived or abetted the late war might

receive their just deserts; and that whosoever should speak or act in favour of Charles, before that prince had been acquitted of shedding innocent blood, should incur the penalties of treason. The immediate object of this paper was to try the general disposition of the army. Though it did not openly express, it evidently contemplated the future trial of the king, and was followed by another petition[a] from the regiment of Colonel Ingoldsby, which, in plainer and bolder terms, demanded that the monarch and his adherents should be brought to justice; condemned the treaty between him and the parliament as dangerous and unjust; and required the appointment of a council of war to discover an adequate remedy for the national evils. Fairfax had not the courage to oppose what, in his own judgment, he disapproved; the petitions were laid before an assembly of officers; and the result of their deliberation was a remonstrance[b] of enormous length, which, in a tone of menace and asperity, proclaimed the whole plan of the reformers. It required that "the capital and grand author of all the troubles and woes which the kingdom had endured, should be speedily brought to justice for the treason, blood, and mischief of which he had been guilty;" that a period should be fixed for the dissolution of the parliament; that a more equal representation of the people should be devised; that the representative body should possess the supreme power, and elect every future king; and that the prince so elected should be bound to disclaim all pretensions to a negative voice in the passing of laws, and to subscribe to that form of government which he

[Sidenote a: A.D. 1648. Oct. 30.]

[Sidenote b: A.D. 1648. Nov. 16.]

should find established by the present parliament. This remonstrance was addressed to the lower house alone, for the reformers declared themselves[a] unable to understand on what ground the lords could claim co-equal power with the representatives of the people, in whom alone the

sovereignty resided.[1] It provoked a long and animated debate; but the Presbyterians met its advocates without fear, and silenced them[b] by an overwhelming majority. They felt that they were supported by the general wish of the nation, and trusted that if peace were once established by agreement with the king, the officers would act dare to urge their pretensions. With this view they appointed a distant day for the consideration of the remonstrance, and instructed the commissioners at Newport to hasten the treaty to a speedy conclusion.[2]

The king now found himself driven to the last extremity. The threats of the army resounded in his ears; his friends conjured him to recede from his former answers; and the commissioners declared their conviction, that without full satisfaction, the two houses could not save him from the vengeance of his enemies. To add to his alarm, Hammond, the governor of the island, had received a message from Fairfax to repair without delay to the head-quarters at Windsor. This was followed by the arrival[c] of Colonel Eure, with orders to seize the king, and confine[d] him again in Carisbrook Castle, or, if he met with opposition, "to act as God should direct him." Hammond replied with firmness, that in military matters he would obey his general; but as to the royal person, he had received

[Footnote 1: Whitelock, 343, 346, 355. Rushworth, vii. 1298, 1311, 1331.]

[Footnote 2: Journals of Commons, Nov. 20, 24, 30. There were two divisions relating to this question; in the first the majority was 94 to 60, in the second 125 to 58.]

[Sidenote a: A.D. 1648. Nov. 18.]

[Sidenote b: A.D. 1648. Nov. 20.]

[Sidenote c: A.D. 1648. Nov. 25.]

[Sidenote d: A.D. 1648. Nov. 26.]

the charge from the parliament, and would not suffer the interference of any other authority. Eure departed; but Charles could no longer conceal from himself the danger which stared him in the face; his constancy or obstinacy relented; and he agreed,[a] after a most painful struggle, and when the time was run to the last minute, to remit the compositions of his followers to the mercy of parliament; to consent to the trial of the seven individuals excepted from pardon, provided they were allowed the benefit of the ancient laws; and to suspend the functions and vest in the crown the lands of the bishops, till religion should be settled, and the support of its ministers determined by common consent of the king and the two houses. By this last expedient it was hoped that both parties would be satisfied; the monarch, because the order was not abolished, nor its lands alienated *for ever*; the parliament, because neither one nor the other could be restored without its previous consent.[1]

[Footnote 1: Clarendon Papers, 449-454. Journals, x. 620-622. The royalists excepted from mercy were the marquess of Newcastle, Sir Marmaduke Langdale, Lord Digby, Sir Richard Grenville, Mr. Justice Jenkins, Sir Francis Dorrington, and Lord Byron. It appears to me difficult to read the letters written by Charles during the treaty to his son the prince of Wales (Clarendon Papers, ii. 425-454), and yet believe that he acted with insincerity. But how then, asks Mr. Laing (Hist. of Scotland, iii. 411), are we to account for his assertion to Ormond, that the treaty would come to nothing, and for his anxiety to escape manifested by his correspondence with Hopkins?—Wagstaff's Vindication of the Royal Martyr, 142-161. 1. Charles knew that, besides the parliament, there was the army, which had both the will and the power to set aside any agreement which might be made between him and the parliament; and hence arose his conviction that "the treaty would come to nothing." 2. He was acquainted with all that passed in the private councils of his enemies; with their design to bring him to trial and to the scaffold; and he had also received a letter, informing him

of an intention to assassinate him during the treaty.—Herbert, 134. Can we be surprised, if, under such circumstances, he sought to escape? Nor was his parole an objection. He conceived himself released from it by misconduct on the part of Hammond, who, at last, aware of that persuasion, prevailed on him, though with considerable difficulty, to renew his pledge.—Journals, x. 598. After this renewal he refused to escape even when every facility was offered him.—Rushworth, vii. 1344.]

[Sidenote a: A.D. 1648. Nov. 27.]

In the morning, when the commissioners took their leave,[a] Charles addressed them with a sadness of countenance and in a tone of voice which drew tears from all his attendants. "My lords," said he, "I believe we shall scarce ever see each other again. But God's will be done! I have made my peace with him, and shall undergo without fear whatever he may suffer men to do to me. My lords, you cannot but know that in my fall and ruin you see your own, and that also near you. I pray God send you better friends than I have found. I am fully informed of the carriage of them who plot against me and mine; but nothing affects me so much as the feeling I have of the sufferings of my subjects, and the mischief that hangs over my three kingdoms, drawn upon them by those who, upon pretences of good, violently pursue their own interests and ends." Hammond departed at the same time with the commissioners, and the command at Carisbrook devolved on Boreman, an officer of the militia, at Newport on Rolfe, a major in the army. To both he gave a copy of his instructions from the parliament for the safety of the royal person; but the character of Rolfe was known; he had been charged with a design to take the king's life six months before, and had escaped a trial by the indulgence of the grand jury, who ignored the bill, because the main fact was attested by the oath of only one witness.[2]

The next morning[b] a person in disguise ordered one

[Footnote 1: Appendix to Eveyln's Memoirs, ii. 128.]

[Footnote 2: Journals, x. 615, 345, 349, 358, 370, 390. Clarendon, iii. 234.]

[Sidenote a: A.D. 1648. Nov. 28.]

[Sidenote b: A.D. 1648. Nov. 29.]

of the royal attendants to inform the king that a military force was on its way to make him prisoner. Charles immediately consulted the duke of Richmond, the earl of Lindsey, and Colonel Coke, who joined in conjuring him to save his life by an immediate escape. The night was dark and stormy; they were acquainted with the watchword; and Coke offered him horses and a boat. But the king objected, that he was bound in honour to remain twenty days after the treaty, nor would he admit of the distinction which they suggested, that his parole was given not to the army, but to the parliament. It was in vain that they argued and entreated: Charles, with his characteristic obstinacy,[a] retired to rest about midnight; and in a short time Lieutenant-Colonel Cobbett arrived with a troop of horse and a company of foot. Boreman refused to admit him into Carisbrook. But Rolfe offered him aid at Newport; at five the king was awakened by a message that he must prepare to depart; and about noon he was safely lodged in Hurst Castle, situate on a solitary rock, and connected by a narrow causeway, two miles in length, with the opposite coast of Hampshire.[1]

The same day the council of officers published a menacing declaration against the House of Commons. It charged the majority with apostasy from their former principles, and appealed from their authority to "the extraordinary judgment of God and of all good people;" called on the faithful members to protest against the past conduct of their colleagues, and

to place themselves under the protection of the army; and asserted that since God had given to the officers the power, he had also made it their duty, to

[Footnote 1: Rushworth, vii. 1344-1348, 1351. Herbert, 113, 124.]

[Sidenote a: A.D. 1648. Nov. 30.]

provide for the settlement of the kingdom and the punishment of the guilty.[a] In the pursuit of these objects, Fairfax marched several regiments to London, and quartered them at Whitehall, York House, the Mews, and in the skirts of the city.[1]

The reader will recollect the pusillanimous conduct of the Presbyterian members on the approach of the army in the year 1646.[b] On the present occasion they resolved to redeem their character. They betrayed no symptom of fear, no disposition to retire, or to submit. Amidst the din of arms and the menaces of the soldiers, they daily attended their duty in parliament, declared that the seizure of the royal person had been, made without their knowledge or consent, and proceeded to consider the tendency of the concessions made by Charles in the treaty of Newport. This produced the longest and most animated debate hitherto known in the history of parliament. Vane drew a most unfavourable portrait of the king, and represented all his promises and professions as hollow and insincere; Fiennes became for the first time the royal apologist, and refuted the charges brought by his fellow commissioner; and Prynne, the celebrated adversary of Laud, seemed to forget his antipathy to the court, that he might lash the presumption and perfidy of the army. The debate continued by successive adjournments three days and a whole night; and on the last division in the morning a resolution was carried by a majority of thirty-six, that the offers of the sovereign furnished a sufficient ground for the future settlement of the kingdom.[2][c]

[Footnote 1: Rushworth, vii. 1341, 1350. Whitelock, 358.]

[Footnote 2: Journals, Dec. 1, 2, 3, 5. Clarendon Papers, ii. App, xlvi. Cobbett, Parl. Hist. 1152. In some of the previous divisions, the house consisted of two hundred and forty members; but several seem to have

retired during the night; at the conclusion there were only two hundred and twelve.]

[Sidenote a: A.D. 1648. Dec. 2.]

[Sidenote b: A.D. 1648. Dec. 5]

But the victors were not suffered to enjoy their triumph. The next day Skippon discharged the guards of the two houses, and their place was supplied by a regiment of horse and another of foot from the[a] army. Colonel Pride, while Fairfax, the commander-in-chief, was purposely employed in a conference with some of the members, stationed himself in the lobby: in his hand he held a list of names, while the Lord Grey stood by his side to point out the persons of the members; and two-and-fifty Presbyterians, the most distinguished of the party by their talents or influence, were taken into custody and conducted to different places of confinement. Many of those who passed the ordeal on this, met with a similar treatment on the following day; numbers embraced the opportunity to retire into the country; and the house was found, after repeated purifications, to consist of about fifty individuals, who, in the quaint language of the time, were afterwards dignified with the honourable appellation of the "Rump." [1]

Whether it were through policy or accident, Cromwell was not present to take any share in these extraordinary proceedings. After his victory at Preston he had marched in pursuit of Monroe, and had besieged the important town of Berwick. But his real views were not confined to England. The defeat of the Scottish royalists had raised the hopes of their opponents in their own country. In the western shires the curse of Meroz had been denounced from

[Footnote 1: Whitelock, 358, 359. Commons' Journals, Dec. 6, 7. This was called Pride's purge. Forty-seven members were imprisoned, and ninety-six excluded.—Parl. Hist. iii. 1248.]

[Sidenote a: A.D. 1648. Dec. 6.]

the pulpit against all who refused to arm in defence of the covenant; the fanatical peasants marshalled themselves under their respective ministers; and Loudon and Eglington, assuming the command, led them to Edinburgh. [1] This tumultuary mass, though joined by Argyle and his Highlanders, and by Cassilis with the people of Carrick and Galloway, was no match for the disciplined army under Lanark and Monroe; but Cromwell offered to advance to their support, and the[a] two parties hastened to reconcile their differences by a treaty, which secured to the royalists their lives and[b] property, on condition that they should disband their forces. Argyle with his associates assumed the name and the office of the committee of the estates; Berwick and Carlisle were delivered to the English[c] general; and he himself with his army was invited to the capital. Amidst the public rejoicing, private conferences of which the subject never transpired, were repeatedly held; and Cromwell returning to[d] England, left Lambeth with two regiments of horse, to support the government of his friends till they could raise a sufficient force among their own party.[2] His progress through the northern counties was slow;[e] nor did he reach the capital till the day after the exclusion of the Presbyterian members. His late victory had rendered him the idol of the soldiers: he was conducted with acclamations of joy to the

[Footnote 1: This was called the inroad of the Whiggamores; a name given to these peasants either from whiggam, a word employed by them in driving their horses, or from whig (Anglicè whey), a beverage of sour milk, which formed one of the principal articles of their meals.—Burnet's History

of his Own Times, i. 43. It soon came to designate an enemy of the king, and in the next reign was transferred, under the abbreviated form of whig, to the opponents of the court.]

[Footnote 2: Memoirs of the Hamiltons, 367-377. Guthrie, 283-299. Rushworth, vii. 1273, 1282, 1286, 1296, 1325.]

[Sidenote a: A.D. 1648. Sept. 26.]

[Sidenote b: A.D. 1648. Sept. 30.]

[Sidenote c: A.D. 1648. Oct. 4.]

[Sidenote d: A.D. 1648. Oct. 11.]

[Sidenote e: A.D. 1648. Dec. 7.]

royal apartments in Whitehall, and received the next day the thanks of the House of Commons for his distinguished services to the two kingdoms. Of his sentiments with respect to the late proceedings no doubt was entertained. If he had not suggested, he had at least been careful to applaud the conduct of the officers, and in a letter to Fairfax he blasphemously attributed it to the inspiration of the Almighty.[1]

The government of the kingdom had now devolved in reality on the army. There were two military councils, the one select, consisting of the grandees, or principal commanders, the other general, to which the inferior officers, most of them men of levelling principles, were admitted. A suspicion existed that the former aimed at the establishment of an oligarchy: whence their advice was frequently received with jealousy and distrust, and their resolutions were sometimes negatived by the greater number of their inferiors. When any measure had received the approbation of the general council, it was carried to the House of Commons, who were expected to impart to it the sanction of their authority. With ready obedience[a] they renewed the vote of non-addresses, resolved that the re-admission of the eleven expelled members was dangerous in its consequences, and contrary

to the usages of the house, and declared that the treaty in the Isle of Wight, and the approbation given to the[b] royal concessions, were dishonourable to parliament, destructive of the common good, and a breach of the public faith.[2] But these were only preparatory measures:

[Footnote 1: Journals, Dec. 8. Whitelock, 362. Rushworth, vii. 1339.]

[Footnote 2: Journals, Dec. 3, 13, 14, 20. Whitelock, 362, 363. Clarendon Papers, ii. App. xlix.]

[Sidenote a: A.D. 1648. Dec. 12.]

[Sidenote b: A.D. 1648. Dec. 13.]

they were soon called upon to pass a vote, the very mention of which a few years before would have struck the boldest among them with astonishment and terror.

It had long been the conviction of the officers that the life of the king was incompatible with their safety. If he were restored, they would become the objects of royal vengeance; if he were detained in prison, the public tranquillity would be disturbed by a succession of plots in his favour. In private assassination there was something base and cowardly from which the majority revolted; but to bring him to public justice, was to act openly and boldly; it was to proclaim their confidence in the goodness of their cause; to give to the world a splendid proof of the sovereignty of the people and of the responsibility of kings.[1][a] When the motion was made in the Commons, a few ventured to oppose it, not so much with the hope of saving the life of Charles, as for the purpose of transferring the odium of his death on its real authors. They suggested that the person of the king was sacred; that history afforded no precedent of a sovereign compelled to plead before a court of judicature composed of his own subjects; that measures of vengeance could only serve to widen the bleeding wounds of the country;

that it was idle to fear any re-action in favour of the monarch, and it was now time to settle on a permanent basis the liberties of the country. But their opponents were clamorous, obstinate, and menacing. The king, they maintained, was the capital delinquent; justice required that he should suffer as well as the minor offenders. He had been guilty of treason against the people, it remained for *their* representatives to bring

[Footnote 1: Clarendon, Hist. iii. 249.]

[Sidenote a: A.D. 1648. Dec. 29.]

him to punishment; he had shed the blood of man, God made it a duty to demand his blood in return. The opposition was silenced; and a committee of thirty-eight members was appointed to receive information and to devise the most eligible manner of proceeding. Among the more influential names were those of Widdrington and Whitelock, Scot and Marten. But the first two declined to attend; and, when the clerk brought them a summons, retired into the country.[1]

[a]At the recommendation of this committee, the house passed a vote declaratory of the law, that it was high treason in the king of England, for the time being, to levy war against the parliament and kingdom of England; and this was followed up with an ordinance erecting a high court of justice to try the question of fact, whether Charles Stuart, king of England, had or had not been guilty of the treason described in the preceding vote. But the subserviency of the Commons was not imitated by the Lords. They saw the approaching ruin of their own order in the fall of the sovereign; and when the vote and ordinance were transmitted to their house, they rejected both without a dissentient voice, and then adjourned for a week.[b] This unexpected effort surprised, but did not disconcert, the Independents.[c] They prevailed on the Commons to vote that the people are the origin of all just power, and from this theoretical truth proceeded to deduce two practical

falsehoods. As if no portion of that power had been delegated to the king and the lords, they determined that "the Commons of England assembled in parliament, being chosen by and representing the people, have the supreme authority:" and thence inferred

[Footnote 1: Journals, Dec. 23. Whitelock, 363.]

[Sidenote a: A.D. 1649. Jan. 1.]

[Sidenote b: A.D. 1649. Jan. 2.]

[Sidenote c: A.D. 1649. Jan. 4.]

that "whatsoever is enacted and declared for law by the Commons in parliament hath force of law, and concludes all the people of the nation, although the consent and concurrence of the king and the House of Peers be not had thereunto." But even in that hypothesis, how could the house, constituted as it then was, claim to be the representative of the people? It was in fact the representative of the army only, and not a free but an enslaved representative, bound to speak with the voice, and to enregister the decrees of its masters.[1] Two days later an act for the trial of the king was passed by the authority of the Commons only.

In the mean while Cromwell continued to act his accustomed part. Whenever he rose in the house, it was to recommend moderation, to express the doubts which agitated his mind, to protest that, if he assented to harsh and ungracious measures, he did it with reluctance, and solely in obedience to the will of the Almighty. Of his conduct during the debate on the king's trial we have no account; but when it was suggested to dissolve the upper house, and transfer its members to that of the Commons, he characterized the proposal as originating in revolutionary phrensy; and, on the introduction of a bill to alter the form of the great seal, adopted a language which strongly marks the hypocrisy of the man, though it was calculated to make impression on the fanatical minds of his hearers.[a] "Sir," said he,

addressing the speaker, "if any man whatsoever have carried on this design of deposing the king, and disinheriting his posterity, or if any man have still such a design, he must be the greatest

[Footnote 1: Journals, x. 641. Commons, Jan. 1, 2, 4, 6. Hitherto the Lords had seldom exceeded seven in number; but on this occasion they amounted to fourteen—Leicester's Journal, 47.]

[Sidenote a: A.D. 1649. Jan. 9.]

traitor and rebel in the world; but since the providence of God has cast this upon us, I cannot but submit to Providence, though I am not yet prepared to give you my advice."[1]

The lord general, on the contrary, began to assume a more open and a bolder tone. Hitherto, instead of leading, he had been led. That he disapproved of much that had been done, we may readily believe; but he only records his own weakness, where he alleges in excuse of his conduct that his name had been subscribed to the resolves of the council, whether he consented or not. He had lately shed the blood of two gallant officers at Colchester, but no solicitations could induce him to concur in shedding the blood of the king. His name stood at the head of the commissioners: he attended at the first meeting, in which no business was transacted, but he constantly refused to be present at their subsequent sittings, or to subscribe his name to their resolutions.[A] This conduct surprised and mortified the Independents: it probably arose from the influence of his wife, whose desperate

[Footnote 1: For Cromwell's conduct see the letters in the Appendix to the second volume of the Clarendon Papers, 1. li. The authenticity of this speech has been questioned, as resting solely on the treacherous credit of Perrinchiefe; but it occurs in a letter written on the 11th of January, which

describes the proceedings of the 9th, and therefore cannot, I think, be questioned. By turning to the Journals, it will be found that on that day the house had divided on a question whether any more messages should be received from the Lords, which was carried, in opposition to Ludlow and Marten. "Then," says the letter, "they fell on the business of the king's trial." On this head nothing is mentioned in the Journals; but a motion which would cause frequent allusions to it, was made and carried. It was for a new great seal, on which should be engraven the House of Commons, with this inscription:—"In the first year of freedom, by God's blessing restored, 1648." Such a motion would naturally introduce Cromwell's speech respecting the deposition of the king and the disherison of his posterity.]

[Sidenote a: A.D. 1649. Jan. 3.]

loyalty will soon challenge the attention of the reader.[1]

Before this the king, in anticipation of his subsequent trial, had been removed to the palace of St.[a] James's. In the third week of his confinement in Hurst Castle, he was suddenly roused out of his sleep at midnight by the fall of the drawbridge and the trampling of horses. A thousand frightful ideas rushed on his mind, and at an early hour in the morning, he desired his servant Herbert to ascertain the cause; but every mouth was closed, and Herbert returned with the scanty information that a Colonel Harrison had arrived. At the name the king turned pale, hastened into the closet, and sought to relieve his terrors by private devotion. In a letter which he had received at Newport, Harrison had been pointed out to him as a man engaged to take his life. His alarm, however, was unfounded. Harrison was a fanatic, but no murderer: he sought, indeed, the blood of the king, but it was his wish that it should be shed by the axe of the executioner, not by the dagger of the assassin. He had been appointed to superintend the removal of the royal captive, and had come to arrange matters with the

governor, of whose fidelity some suspicion existed. Keeping himself private during the days he departed in the night; and two days later Charles was conducted with a numerous[b] escort to the royal palace of Windsor.[2]

Hitherto, notwithstanding his confinement, the king had always been served with the usual state; but at Windsor his meat was brought to table uncovered and[c] by the hands of the soldiers; no say was given; no

[Footnote 1: Nalson, Trial of Charles I. Clarendon Papers, ii. App. ii.]

[Footnote 2: Herbert, 131-136, Rushworth, vii. 1375.]

[Sidenote a: A.D. 1648. Dec. 18.]

[Sidenote b: A.D. 1648. Dec. 23.]

[Sidenote c: A.D. 1648. Dec. 27.]

cup presented on the knee. This absence of ceremony made on the unfortunate monarch a deeper impression than could have been expected. It was, he said, the denial of that to him, which by ancient custom was due to many of his subjects; and rather than submit to the humiliation, he chose to diminish the number of the dishes, and to take his meals in private. Of the proceedings against him he received no official intelligence; but he gleaned the chief particulars through the inquiries of Herbert, and in casual conversation with Witchcott the governor. The information was sufficient to appal the stoutest heart; but Charles was of a most sanguine temperament, and though he sought to fortify his mind against the worst, he still cherished a hope that these menacing preparations were only intended to extort from him the resignation of his crown. He relied on the interposition of the Scots, the intercession of foreign powers, and the attachment of many of his English subjects. He persuaded himself that his very enemies would blush to shed the blood of their sovereign; and that their revenge would be

appeased, and their ambition sufficiently gratified, by the substitution in his place of one of his younger children on the throne.[1]

But these were the dreams of a man who sought to allay his fears by voluntary delusions. The princes of Europe looked with cold indifference on his fate. The king of Spain during the whole contest had maintained a friendly correspondence with the parliament. Frederic III. king of Denmark, though he was his

[Footnote 1: Herbert, 155, 157. Whitelock, 365. Sir John Temple attributed his tranquillity "to a strange conceit of Ormond's working for him in Ireland. He still hangs upon that twigg; and by the enquireys he made after his and Inchiquin's conjunction, I see he will not be beaten off it."—In Leicester's Journal, 48.]

cousin-german, made no effort to save his life; and Henrietta could obtain for him no interposition from France, where the infant king had been driven from his capital by civil dissension, and she herself depended for subsistence on the charity of the Cardinal de Retz, the leader of the Fronde. [1] The Scottish parliament, indeed, made a feeble effort in his favour. The commissioners subscribed a protest against the proceedings of the Commons, by whom it was never answered; and argued the case with Cromwell, who referred them to the covenant, and maintained, that if it was their duty to punish the malignants in general, it was still more so to punish him who was the chief of the malignants.[2]

As the day of trial approached, Charles resigned the hopes which he had hitherto indulged; and his removal to Whitehall admonished him to prepare for that important scene on which he was soon to appear. Without information or advice, he could only resolve to maintain the port and dignity of a king, to refuse the authority of his judges, and to commit no act unworthy of his exalted rank and that of his ancestors.[a] On the 20th of

January the commissioners appointed by the act assembled in the painted chamber, and proceeded in state to the upper end of Westminster Hall.[b] A chair of crimson velvet had been placed for the lord president, John Bradshaw, serjeant-at-law; the others, to the number of sixty-six, ranged themselves on either side, on benches covered with scarlet; at the feet of the president sat two clerks at a table on which lay the sword and the mace; and directly opposite stood a chair intended for the king. After the preliminary

[Footnote 1: Memoirs of Retz, i. 261.]

[Footnote 2: Journals, Jan. 6, 22, 23. Parl. Hist. iii. 1277. Burnett's Own Times, i. 42.]

[Sidenote a: A.D. 1649. Jan 19]

[Sidenote b: A.D. 1649. Jan 20]

formalities of reading the commission, and calling over the members, Bradshaw ordered the prisoner to be introduced.[1]

Charles was received at the door by the serjeant-at-arms, and conducted by him within the bar. His step was firm, his countenance erect and unmoved. He did not uncover; but first seated himself, then rose, and surveyed the court with an air of superiority, which abashed and irritated his enemies. While the clerk read the charge, he appeared to listen with indifference; but a smile of contempt was seen to quiver on his lips at the passage which described him as a "tyrant, traitor, murderer, and public and implacable enemy to the commonwealth of England." At the conclusion Bradshaw called on him to answer; but he demanded by what lawful authority he had been brought thither. He was king of England; he acknowledged no superior upon earth; and the crown, which he had received from his ancestors, he would transmit unimpaired by any act of his to his posterity. His case, moreover, was the case of all the people of

England; for if force without law could alter the fundamental laws of the kingdom, there was no man who could be secure of his life or liberty for an hour. He was told that the court sat by the authority of the House of

[Footnote 1: The commissioners according to the act (for bills passed by the Commons alone were now denominated acts), were in number 133, chosen out of the lower house, the inns of court, the city, and the army. In one of their first meetings they chose Bradshaw for their president. He was a native of Cheshire, bred to the bar, had long practised in the Guildhall, and had lately before been made serjeant. In the first list of commissioners his name did not occur; but on the rejection of the ordinance by the upper house, the names of six lords were erased, and his name with those of five others was substituted. He obtained for the reward of his services the estate of Lord Cottington, the chancellorship of the duchy of Lancaster, and the office of president of the council.]

Commons. But where, he asked, were the Lords? Were the Commons the whole legislature? Were they free? Were they a court of judicature? Could they confer on others a jurisdiction which they did not possess themselves? He would never acknowledge an usurped authority. It was a duty imposed upon him by the Almighty to disown every lawless power, that invaded either the rights of the crown or the liberties of the subject. Such was the substance of his discourse, delivered on three different days, and amidst innumerable interruptions from the president, who would not suffer the jurisdiction of the court to be questioned, and at last ordered the "default and contempt of the prisoner" to be recorded.

The two following days the court sat in private, to receive evidence that the king had commanded in several engagements, and to deliberate on the form of judgment to be pronounced.[a] On the third Bradshaw took his seat, dressed in scarlet; and Charles immediately demanded to be heard. He did

not mean, he said, on this occasion either to acknowledge or deny the authority of the court; his object was to ask a favour, which would spare them the commission of a great crime, and restore the blessing of tranquillity to his people. He asked permission to confer with a joint committee of the Lords and Commons. The president replied that the proposal was not altogether new, though it was now made for the first time by the king himself; that it pre-supposed the existence of an authority co-ordinate with that of the Commons, which could not be admitted; that its object could only be to delay the proceedings of the court, now that judgment was to be pronounced. Here he was interrupted by the earnest expostulation of Colonel Downes, one of the members. The king was immediately

[Sidenote a: A.D. 1649. Jan. 27.]

removed; the commissioners adjourned into a neighbouring apartment, and almost an hour was spent in private and animated debate. Had the conference been granted, Charles would have proposed (so at least it was understood) to resign the crown in favour of the prince of Wales.

When the court resumed, Bradshaw announced to him the refusal of his request, and proceeded to animadvert in harsh and unfeeling language on the principal events of his reign. The meek spirit of the prisoner was roused; he made an attempt to speak, but was immediately silenced with the remark, that the time for his defence was past; that he had spurned the numerous opportunities offered to him by the indulgence of the court; and that nothing remained for his judges but to pronounce sentence; for they had learned from holy writ that "to acquit the guilty was of equal abomination as to condemn the innocent." The charge was again read, and was followed by the judgment, "that the court, being satisfied in conscience that he, the said Charles Stuart, was guilty of the crimes of which he had

been accused, did adjudge him as a tyrant, traitor, murderer, and public enemy to the good people of the nation, to be put to death by severing his head from his body." The king heard it in silence, sometimes smiling with contempt, sometimes raising his eyes to heaven, as if he appealed from the malice of men to the justice of the Almighty. At the conclusion the commissioners rose in a body to testify their assent, and Charles made a last and more earnest effort to speak; but Bradshaw ordered him to be removed, and the guards hurried him out of the hall.[1]

[Footnote 1: See the Trial of Charles Stuart, with additions by Nalson, folio, London, 1735.]

During this trial a strong military force had been kept under arms to suppress any demonstration of popular feeling in favour of the king. On the first day, when the name of Fairfax, as one of the commissioners, was called, a female voice cried from the gallery, "He has more wit than to be here." On another occasion, when Bradshaw attributed the charge against the king to the consentient voice of the people of England, the same female voice exclaimed, "No, not one-tenth of the people." A faint murmur of approbation followed, but was instantly suppressed by the military. The speaker was recognised to be Lady Fairfax, the wife of the commander-in-chief; and these affronts, probably on that account, were suffered to pass unnoticed.[1]

When Coke, the solicitor-general, opened the pleadings, the king gently tapped him on the shoulder with his cane, crying, "Hold, hold." At the same moment the silver head of the cane fell off, and rolled on the floor. It was an accident which might have happened at any time; but in this superstitious age it could not fail to be taken for an omen. Both his friends and enemies interpreted it as a presage of his approaching decapitation.[2]

On one day, as the king entered the court, he heard behind him the cry of "Justice, justice;" on another, as he passed between two lines of soldiers, the word "execution" was repeatedly sounded in his ears. He bore these affronts with patience, and on

[Footnote 1: Nalson's Trial. Clarendon, iii. 254. State Trials, 366, 367, 368, folio, 1730.]

[Footnote 2: Nalson. Herbert, 165. "He seemed unconcerned; yet told the bishop, it really made a great impression on him; and to this hour, says he, I know not possibly how it should come."—Warwick, 340.]

his return said to Herbert, "I am well assured that the soldiers bear me no malice. The cry was suggested by their officers, for whom they would do the like if there were occasion."[1]

On his return from the hall, men and women crowded behind the guards, and called aloud, "God preserve your majesty." But one of the soldiers venturing to say, "God bless you, Sir," received a stroke on the head from an officer with his cane. "Truly," observed the king, "I think the punishment exceeded the offence."[2]

By his conduct during these proceedings, Charles had exalted his character even in the estimation of his enemies: he had now to prepare himself for a still more trying scene, to nerve his mind against the terrors of a public and ignominious death. But he was no longer the man he had been before the civil war. Affliction had chastened his mind; he had learned from experience to submit to the visitations of Providence; and he sought and found strength and relief in the consolations of religion. The next day, the Sunday, was spent by him at St. James's, by the commissioners at Whitehall.[a] *They* observed a fast, preached on the judgments of God, and prayed for a blessing on the commonwealth. *He* devoted his time to

devotional exercises in the company of Herbert and of Dr. Juxon, bishop of London, who at the request of Hugh Peters (and it should be recorded to the honour of that fanatical preacher) had been permitted to attend the monarch. His nephew the prince elector, the duke of Richmond, the marquess of Hertford, and several other noblemen, came to the door of his bedchamber, to pay their last respects to

[Footnote 1: Herbert, 163, 164.]

[Footnote 2: Ibid. 163, 165.]

[Sidenote a: A.D. 1649. Jan. 28.]

their sovereign; but they were told in his name that he thanked them for their attachment, and desired their prayers; that the shortness of his time admonished him to think of another world; and that the only moments which he could spare must be given to his children. These were two, the Princess Elizabeth and the duke of Gloucester, the former wept for her father's fate; the latter, too young to understand the cause, joined his tears through sympathy. Charles placed them on his knees, gave them such advice as was adapted to their years, and seemed to derive pleasure from the pertinency of their answers. In conclusion, he divided a few jewels between them, kissed them, gave them his blessings and hastily retired to his devotions.[1]

On the last night of his life he slept soundly about four hours, and early in the morning[a] awakened Herbert, who lay on a pallet by his bed-side. "This," he said, "is my second marriage-day. I would be as trim as may be; for before night I hope to be espoused to my blessed Jesus." He then pointed out the clothes which he meant to wear, and ordered two shirts, on account of the severity of the weather; "For," he observed, "were I to shake through cold, my enemies would attribute it to fear, I would have no such

imputation. I fear not death. Death is not terrible to me. I bless my God I am prepared."[2]

[Footnote 1: Herbert, 169-180. State Trials, 357-360.]

[Footnote 2: Herbert, 183-185, I may here insert an anecdote, which seems to prove that Charles attributed his misfortunes in a great measure to the counsels of Archbishop Laud. On the last night of his life, he had observed that Herbert was restless during his sleep, and in the morning insisted on knowing the cause. Herbert answered that he was dreaming. He saw Laud enter the room; the king took him aside, and spoke to him with a pensive countenance; the archbishop sighed, retired, and fell prostrate on the ground. Charles replied, "It is very remarkable; but he is dead. Yet had we conferred together during life, 'tis very likely (albeit I loved him well) I should have said something to him, might have occasioned his sigh."—Herbert's Letter to Dr. Samways, published at the end of his Memoirs, p. 220.]

[Sidenote a: A.D. 1649. Jan. 30.]

The king spent an hour in privacy with the bishop; Herbert was afterwards admitted; and about ten o'clock Colonel Hacker announced that it was time to proceed to Whitehall. He obeyed, was conducted on foot, between two detachments of military, across the park, and received permission to repose himself in his former bedchamber. Dinner had been prepared for him; but he refused to eat, though afterwards, at the solicitation of the bishop, he took the half of a manchet and a glass of wine. Here he remained almost two hours, in constant expectation of the last summons, spending his time partly in prayer and partly in discourse with Dr. Juxon. There might have been nothing mysterious in the delay; if there was, it may perhaps be explained from the following circumstances.

Four days had now elapsed since the arrival of ambassadors from the Hague to intercede in his favour. It was only on the preceding evening that they had obtained audiences of the two houses, and hitherto no answer had been returned. In their company came Seymour, the bearer of two letters from the prince of Wales, one addressed to the king, the other to the Lord Fairfax. He had already delivered the letter, and with it a sheet of blank paper subscribed with the name and sealed with the arms of the prince. It was the price which he offered to the grandees of the army for the life of his father. Let them fill it up with the conditions: whatever they might be, they were already granted; his seal and signature were affixed.[1] It is not improbable that this offer may have induced the leaders to pause. That Fairfax laboured to postpone the execution, was always asserted by his friends; and we have evidence to prove that, though he was at Whitehall, he knew not, or at least pretend not to know, what was passing.[2]

In the mean while Charles enjoyed the consolation of learning that his son had not forgotten him in his distress. By the indulgence of Colonel Tomlinson, Seymour was admitted, delivered the letter, and received the royal instructions for the prince. He was hardly gone, when Hacker arrived with the fatal summons. About two o'clock the king proceeded through the long gallery, lined on each side with soldiers, who, far from insulting the fallen monarch, appeared by their sorrowful looks to sympathize with his fate. At the end an aperture had been made in the wall, through which he stepped at once upon the scaffold. It was hung with black; at the farther end were seen the two executioners, the block, and the axe; below

[Footnote 1: For the arrival of the ambassadors see the Journals of the House of Commons on the 26th. A fac-simile of the carte-blanche, with the signature of the prince, graces the title-page of the third volume of the Original Letters, published by Mr. Ellis.]

[Footnote 2: "Mean time they went into the long gallery, where, chancing to meet the general, he ask'd Mr. Herbert how the king did? Which he thought strange.... His question being answered, the general seem'd much surprised."—Herbert, 194. It is difficult to believe that Herbert could have mistaken or fabricated such a question, or that Fairfax would have asked it, had he known what had taken place. To his assertion that Fairfax was with the officers in Harrison's room, employed in "prayer or discourse," it has been objected that his name does not occur among the names of those who were proved to have been there at the trial of the regicides. But that is no contradiction. The witnesses speak of what happened before, Herbert of what happened during, the execution. See also Ellis, 2nd series, iii. 345.]

appeared in arms several regiments of horse and foot; and beyond, as far as the eye was permitted to reach, waved a dense and countless crowd of spectators. The king stood collected and undismayed amidst the apparatus of death. There was in his countenance that cheerful intrepidity, in his demeanour that dignified calmness, which had characterized, in the hall of Fotheringay, his royal grandmother, Mary Stuart. It was his wish to address the people; but they were kept beyond the reach of his voice by the swords of the military; and therefore confining his discourse to the few persons standing with him on the scaffold, he took, he said, that opportunity of denying in the presence of his God the crimes of which he had been accused. It was not to him, but to the houses of parliament, that the war and all its evils should be charged. The parliament had first invaded the rights of the crown by claiming the command of the army; and had provoked hostilities by issuing commissions for the levy of forces, before he had raised a single man. But he had forgiven all, even those, whoever they were (for he did not desire to know their names), who had brought him to his death. He did more than forgive them, he prayed that they might repent. But for that purpose they must do three things; they must render to God his due, by settling the church according to the Scripture; they must restore to the

crown those rights which belonged to it by law; and they must teach the people the distinction between the sovereign and the subject; those persons could not be governors who were to be governed, *they* could not rule, whose duty it was to obey. Then, in allusion to the offers formerly made to him by the army, he concluded with, these words:—"Sirs, it was for the liberties of the people that I am come here. If I would have assented to an arbitrary sway, to have all things changed according to the power of the sword, I needed not to have come hither; and therefore, I tell you (and I pray God it be not laid to your charge), that I am the martyr of the people."

Having added, at the suggestion of Dr. Juxon, "I die a Christian according to the profession of the church of England, as I found it left me by my father," he said, addressing himself to the prelate, "I have on my side a good cause, and a gracious God."

BISHOP.—There is but one stage more; it is turbulent and troublesome, but a short one. It will carry you from earth to heaven, and there you will find joy and comfort.

KING.—I go from a corruptible to an incorruptible Crown.

BISHOP.—You exchange an earthly for an eternal crown—a good exchange.

Being ready, he bent his neck on the block, and after a short pause, stretched out his hand as a signal. At that instant the axe descended; the head rolled from the body; and a deep groan burst from the multitude of the spectators. But they had no leisure to testify their feelings; two troops of horse dispersed them in different directions.[1]

[Footnote 1: Herbert, 189-194. Warwick, 344. Nalson, Trial of Charles Stuart. The royal corpse, having been embalmed, was after some days

delivered to the earl of Richmond for private interment at Windsor. That nobleman, accompanied by the marquess of Hertford, the earls of Southampton and Lindsey, Dr. Juxon, and a few of the king's attendants, deposited it in a vault in the choir of St. George's chapel, which already contained the remains of Henry VIII. and of his third queen, Jane Seymour.—Herbert, 203. Blencowe, Sydney Papers, 64. Notwithstanding such authority, the assertion of Clarendon that the place could not be discovered threw some doubt upon the subject. But in 1813 it chanced that the workmen made an aperture in a vault corresponding in situation, and occupied by three coffins; and the prince-regent ordered an investigation to ascertain the truth. One of the coffins, in conformity with the account of Herbert, was of lead, with a leaden scroll in which were cut the words "King Charles." In the upper lid of this an opening was made; and when the cerecloth and unctuous matter were removed, the features of the face, as far as they could be distinguished, bore a strong resemblance to the portraits of Charles I. To complete the proof, the head was found to have been separated from the trunk by some sharp instrument, which had cut through the fourth, vertebra of the neck.—See "An Account of what appeared on opening the coffin of King Charles I. by Sir Henry Halford, bart." 1813. It was observed at the same time, that "the lead coffin of Henry VIII. had been beaten in about the middle, and a considerable opening in that part exposed a mere skeleton of the king." This may, perhaps, be accounted for from a passage in Herbert, who tells us that while the workmen were employed about the inscription, the chapel was cleared, but a soldier contrived to conceal himself, descended into the vault, cut off some of the velvet pall, and "wimbled a hole into the largest coffin." He was caught, and "a bone was found about him, which, he said, he would haft a knife with."—Herbert 204. See note (C).]

Such was the end of the unfortunate Charles Stuart; an awful lesson to the possessors of royalty, to watch the growth of public opinion, and to moderate their pretensions in conformity with the reasonable desires of their subjects. Had he lived at a more early period, when the sense of wrong was quickly subdued by the habit of submission, his reign would probably have been marked with fewer violations of the national liberties. It was resistance that made him a tyrant. The spirit of the people refused to yield to the encroachments of authority; and one act of oppression placed him under the necessity of committing another, till he had revived and enforced all those odious prerogatives, which, though usually claimed, were but sparingly exercised, by his predecessors. For some years his efforts seemed successful; but the Scottish insurrection revealed the delusion; he had parted with the real authority of a king, when he forfeited the confidence and affection of his subjects.

But while we blame the illegal measures of Charles, we ought not to screen from censure the subsequent conduct of his principal opponents. From the moment that war seemed inevitable, they acted as if they thought themselves absolved from all obligations of honour and honesty. They never ceased to inflame the passions of the people by misrepresentation and calumny; they exercised a power far more arbitrary and formidable than had ever been claimed by the king; they punished summarily, on mere suspicion, and without attention to the forms of law; and by their committees they established in every county a knot of petty tyrants, who disposed at will of the liberty and property of the inhabitants. Such anomalies may, perhaps, be inseparable from the jealousies, the resentments, and the heart-burnings, which are engendered in civil commotions; but certain it is that right and justice had seldom been more wantonly outraged, than they were by those who professed to have drawn the sword in the defence of right and justice.

Neither should the death of Charles be attributed to the vengeance of the people. They, for the most part, declared themselves satisfied with their victory; they sought not the blood of the captive monarch; they were even, willing to replace him on the throne, under those limitations which they deemed necessary for the preservation of their rights. The men who hurried him to the scaffold were a small faction of bold and ambitious spirits, who had the address to guide the passions and fanaticism of their followers, and were enabled through them to control the real sentiments of the nation. Even of the commissioners appointed to sit in judgment on the king, scarcely one-half could be induced to attend at his trial; and many of those who concurred in his condemnation subscribed the sentence with feelings of shame and remorse. But so it always happens in revolutions: the most violent put themselves forward; their vigilance and activity seem to multiply their number; and the daring of the few wins the ascendancy over the indolence or the pusillanimity of the many.

CHAPTER IV.

THE COMMONWEALTH.

Establishment Of The Commonwealth—Punishment Of The Royalists—
Mutiny And
Suppression Of The Levellers—Charles Ii Proclaimed In Scotland—
Ascendancy
Of His Adherents In Ireland—Their Defeat At Rathmines—Success Of
Cromwell
In Ireland—Defeat Of Montrose, And Landing Of Charles In Scotland—
Cromwell
Is Sent Against Him—He Gains A Victory At Dunbar—The King Marches
Into
England—Loses The Battle Of Worcester—His Subsequent Adventures
And
Escape.

When the two houses first placed themselves in opposition to the sovereign, their demands were limited to the redress of existing grievances; now that the struggle was over, the triumphant party refused to be content with anything less than the abolition of the old, and the establishment of a new and more popular form of government. Some, indeed, still ventured to raise their voices in favour of monarchy, on the plea that it was an

institution the most congenial to the habits and feelings of Englishmen. By these it was proposed that the two elder sons of Charles should be passed by, because their notions were already formed, and their resentments already kindled; that the young duke of Gloucester, or his sister Elizabeth, should be placed on the throne; and that, under the infant sovereign, the royal prerogative should be circumscribed by law, so as to secure from future encroachment the just liberties of the people. But the majority warmly contended for the establishment of a commonwealth. Why, they asked, should they spontaneously set up again the idol which it had cost them so much blood and treasure to pull down? Laws would prove but feeble restraints on the passions of a proud and powerful monarch. If they sought an insuperable barrier to the restoration of despotism, it could be found only in some of those institutions which lodge the supreme power with the representatives of the people. That they spoke their real sentiments is not improbable, though we are assured, by one who was present at their meetings, that personal interest had no small influence in their final determination. They had sinned too deeply against royalty to trust themselves to the mercy, or the moderation, of a king. A republic was their choice, because it promised to shelter them from the vengeance of their enemies, and offered to them the additional advantage of sharing among themselves all the power, the patronage, and the emoluments of office.[1]

In accordance with this decision, the moment the head of the royal victim fell[a] on the scaffold at Whitehall, a proclamation was read in Cheapside, declaring it treason to give to any person the title of king without the authority of parliament; and at the same time was published the vote of the 4th of January, that the supreme authority in the nation resided in the representatives of the people. The peers, though aware of their approaching fate, continued to sit; but, after a pause of a few days, the Commons resolved: first,[b] that the House of Lords, and, next,[c] that the office of king, ought to be abolished. These votes, though the acts

[Footnote 1: Whitelock, 391.]

[Sidenote a: A.D. 1649. Jan. 30.]

[Sidenote b: A.D. 1649. Feb. 6.]

[Sidenote c: A.D. 1649. Feb. 7.]

to be ingrafted on them were postponed, proved sufficient; from that hour the kingship (the word by which the royal dignity was now designated), with the legislative and judicial authority of the peers, was considered extinct, and the lower house, under the name of the parliament of England, concentrated within itself all the powers of government.[1]

The next measure was the appointment, by the Commons, of a council of state, to consist of forty-one members, with powers limited in duration to twelve months. They were charged[a] with the preservation of domestic tranquillity, the care and disposal of the military and naval force, the superintendence of internal and external trade, and the negotiation of treaties with foreign powers. Of the persons selected[b] for this office, three-fourths possessed seats in the house; and they reckoned among them the heads of the law, the chief officers in the army, and five peers, the earls of Denbigh, Mulgrave, Pembroke, and Salisbury, with the Lord Grey of Werke, who condescended to accept the appointment, either through attachment to the cause, or as a compensation for the loss of their hereditary rights.[2] But at the very outset a schism appeared among the new counsellors. The oath required of them by the parliament contained an approval of the king's trial, of the vote against the Scots and their English associates, and of the abolition of monarchy and of the House of Lords. By Cromwell and

[Footnote 1: Journals, 1649, Jan. 30, Feb. 6, 7. Cromwell voted in favour of the House of Lords.—Ludlow, i. 246. Could he be sincere? I think not.]

[Footnote 2: The earl of Pembroke had the meanness to solicit and accept the place of representative for Berkshire; and his example was imitated by two other peers, the earl of Salisbury and Lord Howard of Escrick, who sat for Lynn and Carlisle.—Journals, April 16, May 5 Sept. 18. Leicester's Journal, 72.]

[Sidenote a: A.D. 1649. Feb. 13.]

[Sidenote b: A.D. 1649. Feb. 14.]

eighteen others, it was taken cheerfully, and without comment; by the remaining twenty-two, with Fairfax at their head, it was firmly but respectfully refused.[a] The peers alleged that it stood not with their honour to approve upon oath of that which had been done in opposition to their vote; the commoners, that it was not for them to pronounce an opinion on judicial proceedings of which they had no official information. But their doubts respecting transactions that were past formed no objection to the authority of the existing government. The House of Commons was in actual possession of the supreme power. From that house they derived protection, to it they owed obedience, and with it they were ready to live and die. Cromwell and his friends had the wisdom to yield; the retrospective clauses were expunged,[b] and in their place was substituted a general promise of adhesion to the parliament, both with respect to the existing form of public liberty, and the future government of the nation, "by way of a republic without king or house of peers."[1]

This important revolution drew with it several other alterations. A representation of the House of Commons superseded the royal effigy on the great seal, which was intrusted to three lords-commissioners, Lysle, Keble, and Whitelock; the writs no longer ran in the name of the king, but of "the keepers of the liberty of England by authority of parliament;" new commissions were issued to the judges, sheriffs, and magistrates; and in lieu

of the oaths of allegiance and supremacy, was required an engagement to be true to the commonwealth of England. Of the

[Footnote 1: Journals, Feb. 7, 13, 14, 15, 19, 22. Whitelock, 378, 382, 383. The amended oath is in Walker, part ii. 130.]

[Sidenote a: A.D. 1649. Feb. 17.]

[Sidenote b: A.D. 1649. Feb. 22.]

judges, six resigned; the other six consented to retain their situations, if parliament would issue a proclamation declaratory of its intention to maintain the fundamental laws of the kingdom. The condition was accepted and fulfilled;[1] the courts proceeded to hear and determine causes after the ancient manner; and the great body of the people scarcely felt the important change which had been made in the government of the country. For several years past the supreme authority had been administered in the name of the king by the two houses at Westminster, with the aid of the committee at Derby House; now the same authority was equally administered in the name of the people by one house only, and with the advice of a council of state.

The merit or demerit of thus erecting a commonwealth on the ruins of the monarchy chiefly belongs to Cromwell, Ireton, Bradshaw, and Marten, who by their superior influence guided and controlled the opinions and passions of their associates in the senate and the army. After the king's death they derived much valuable aid from the talents of Vane,[2] Whitelock, and St. John; and a feeble lustre was shed on their cause by the accession of the five peers

[Footnote 1: Journals, Feb. 8. Yet neither this declaration nor the frequent remonstrances of the lawyers could prevent the house from usurping the office of the judges, or from inflicting illegal punishments. Thus, for example, on the report of a committee, detailing the discovery of a

conspiracy to extort money by a false charge of delinquency, the house, without hearing the accused, or sending them before a court of justice, proceeded to inflict on some the penalties of the pillory, fine, and imprisonment, and adjudged Mrs. Samford, as the principal, to be whipped the next day from Newgate to the Old Exchange, and to be kept to hard labour for three months.—Journals, 1650, Feb. 2, Aug. 13.]

[Footnote 2: Immediately after Pride's purge, Vane, disgusted at the intolerance of his own party, left London, and retired to Raby Castle; he was now induced to rejoin them, and resumed his seat on Feb. 26.]

from the abolished House of Lords. But, after all, what right could this handful of men have to impose a new constitution on the kingdom? Ought they not, in consistency with their own principles, to have ascertained the sense of the nation by calling a new parliament? The question was raised, but the leaders, aware that their power was based on the sword of the military, shrunk from the experiment; and, to elude the demands of their opponents, appointed a committee to regulate the succession of parliaments and the election of members; a committee, which repeatedly met and deliberated, but never brought the question to any definitive conclusion. Still, when the new authorities looked around the house, and observed the empty benches, they were admonished of their own insignificance, and of the hollowness of their pretensions. They claimed the sovereign authority, as the representatives of the people; but the majority of those representatives had been excluded by successive acts of military violence; and the house had been reduced from more than five hundred members, to less than one-seventh of that number. For the credit and security of the government it was necessary both to supply the deficiency, and, at the same time, to oppose a bar to the introduction of men of opposite principles. With this view, they resolved[a] to continue the exclusion of those who had on the 5th of December assented to the vote, that the king's "concessions were

a sufficient ground to proceed to a settlement;" but to open the house to all others who should previously enter on the journals their dissent from that resolution.[1] By this expedient, and by occasional writs for elections in those places where

[Footnote 1: Journ. Feb. 1. Walker, part ii. 115. Whitelock, 376.]

[Sidenote a: A.D. 1649. Feb. 1.]

the influence of the party was irresistible, the number of members gradually rose to one hundred and fifty, though it was seldom that the attendance of one-half, or even of one-third, could be procured.

During the war, the dread of retaliation had taught the two parties to temper with moderation the license of victory. Little blood had been shed except in the field of battle. But now that check was removed. The fanatics, not satisfied with the death of the king, demanded, with the Bible in their hands, additional victims; and the politicians deemed it prudent by the display of punishment to restrain the machinations of their enemies. Among the royalists in custody were the duke of Hamilton (who was also earl of Cambridge in England), the earl of Holland, Goring, earl of Norwich, the Lord Capel, and Sir John Owen, all engaged in the last attempt for the restoration of Charles to the throne. By a resolution of the House of Commons in November, Hamilton had been adjudged to pay a fine of one hundred thousand pounds, and the other four to remain in perpetual imprisonment; but after the triumph of the Independents, this vote had been rescinded,[a] and a high court of justice was now established to try the same persons on a charge of high treason. It was in vain that Hamilton pleaded[b] the order of the Scottish parliament under which he had acted; that Capel demanded to be brought before his peers, or a jury of his countrymen, according to those fundamental laws which the parliament had promised to maintain; that all invoked the national faith in favour of that quarter which

they had obtained at the time of their surrender. Bradshaw, the president, delivered the opinions of the court. To Hamilton, he replied,

[Sidenote a: A.D. 1649. Feb. 1.]

[Sidenote b: A.D. 1649. Feb. 10.]

that, as an English earl, he was amenable to the justice of the country; to Capel, that the court had been established by the parliament, the supreme authority to which all must submit; to each, that quarter given on the field of battle insured protection from the sword of the conqueror, but not from the vengeance of the law. All five were condemned[a] to lose their heads; but the rigour of the judgment was softened[b] by a reference to the mercy of parliament. The next day the wives of Holland and Capel, accompanied by a long train of females in mourning, appeared at the bar, to solicit the pardon of the condemned. Though their petitions were rejected, a respite for two days was granted. This favour awakened new hopes; recourse was had to flattery and entreaty; bribes were offered and accepted; and the following morning[c] new petitions were presented. The fate of Holland occupied a debate of considerable interest. Among the Independents he had many personal friends, and the Presbyterians exerted all their influence in his favour. But the saints expatiated on his repeated apostasy from the cause; and, after a sharp contest, Cromwell and Ireton obtained a majority of a single voice for his death. The case of Goring was next considered. No man during the war had treated his opponents with more bitter contumely, no one had inflicted on them deeper injuries; and yet, on an equal division, his life was saved by the casting voice of the speaker. The sentences of Hamilton and Capel were affirmed by the unanimous vote of the house; but, to the surprise of all men, Owen, a stranger, without friends or interest, had the good fortune to escape. His forlorn condition moved the pity of Colonel Hutchinson; the efforts of Hutchinson

[Sidenote a: A.D. 1649. March 6.]

[Sidenote b: A.D. 1649. March 7.]

[Sidenote c: A.D. 1649. March 8.]

were seconded by Ireton; and so powerful was their united influence, that they obtained a majority of five in his favour. Hamilton, Holland, and Capel died[a] on the scaffold, the first martyrs of loyalty after the establishment of the commonwealth.[1]

But, though the avowed enemies of the cause crouched before their conquerors, there was much in the internal state of the country to awaken apprehension in the breasts of Cromwell and his friends. There could be no doubt that the ancient royalists longed for the opportunity of avenging the blood of the king; or that the new royalists, the Presbyterians, who sought to re-establish the throne on the conditions stipulated by the treaty in the Isle of Wight, bore with impatience the superiority of their rivals. Throughout the kingdom the lower classes loudly complained of the burthen of taxation; in several parts they suffered under the pressure of penury and famine. In Lancashire and Westmoreland numbers perished through want; and it was certified by the magistrates of Cumberland that thirty thousand families in that county "had neither seed nor bread corn, nor the means of procuring either." [2] But that which chiefly created alarm was the progress made among the military by the "Levellers," men of consistent principles and uncompromising conduct under the guidance of Colonel John Lilburne, an officer distinguished by his talents, his eloquence, and

[Footnote 1: If the reader compares the detailed narrative of these proceedings by Clarendon (iii. 265-270), with the official account in the Journals (March 7, 8), he will be surprised at the numerous inaccuracies of the historian. See also the State Trials; England's Bloody Tribunal;

Whitelock, 386; Burnet's Hamiltons, 385; Leicester's Journal, 70; Ludlow, i. 247; and Hutchinson, 310.]

[Footnote 2: Whitelock, 398, 399.]

[Sidenote a: A.D. 1649. Mar. 9.]

his courage.[1] Lilburne, with his friends, had long cherished a suspicion that Cromwell, Ireton, and Harrison sought only their private aggrandizement under the mantle of patriotism; and the recent changes had converted this suspicion into conviction. They observed that the same men ruled without control in the general council of officers, in the parliament, and in the council of state. They contended that every question was first debated and settled in the council of officers, and that, if their determination was afterwards adopted by the house, it was only that it might go forth to the public under the pretended sanction of the representatives of the nation; that the council of state had been vested with powers more absolute and oppressive than had ever been exercised by the late king; and that the High Court of Justice had been established by the party for the purpose of depriving their victims of those remedies which would be afforded by the ordinary courts of law. In some of their publications they went further. They maintained that the council of state was employed as an experiment on the patience of the nation; that it was intended to pass from the tyranny of a few to the tyranny of one; and that Oliver Cromwell was the man who aspired to that high but dangerous pre-eminence.[2]

A plan of the intended constitution, entitled "the

[Footnote 1: Lilburne in his youth had been a partisan of Bastwick, and had printed one of his tracts in Holland. Before the Star-chamber he refused to take the oath *ex officio*, or to answer interrogatories, and in consequence was condemned to stand in the pillory, was whipped from the Fleet-prison

to Westminster, receiving five hundred lashes with knotted cords, and was imprisoned with double irons on his hands and legs. Three years later (1641), the House of Commons voted the punishment illegal, bloody, barbarous, and tyrannical.—Burton's Diary, iii. 503, note.]

[Footnote 2: See England's New Chains Discovered, and the Hunting of the

Foxes, passim; the King's Pamphlets, No. 411, xxi.; 414, xii. xvi.]

agreement of the people," had been sanctioned by the council of officers, and presented[a] by Fairfax to the House of Commons, that it might be transmitted to the several counties, and there receive the approbation of the inhabitants. As a sop to shut the mouth of Cerberus, the sum of three thousand pounds, to be raised from the estates of delinquents in the county of Durham, had been voted[b] to Lilburne; but the moment he returned from the north, he appeared at the bar of the house, and petitioned against "the agreement," objecting in particular to one of the provisions by which the parliament was to sit but six months, every two years, and the government of the nation during the other eighteen months was to be intrusted to the council of state. His example was quickly followed; and the table was covered with a succession of petitions from officers and soldiers, and "the well-affected" in different counties, who demanded that a new parliament should be holden every year; that during the intervals the supreme power should be exercised by a committee of the house; that no member of the last should sit in the succeeding parliament; that the self-denying ordinance should be enforced; that no officer should retain his command in the army for more than a certain period; that the High Court of Justice should be abolished as contrary to law, and the council of state, as likely to become an engine of tyranny; that the proceedings in the courts should be in the English language, the number of lawyers diminished, and their fees reduced; that the excise and customs should be taken away, and

the lands of delinquents sold for compensation to the well-affected; that religion should be "reformed according to the mind of God;" that no one should be molested or incapacitated

[Sidenote a: A.D. 1649. Jan. 20.]

[Sidenote b: A.D. 1649. Feb. 26.]

on account of conscience; that tithes should be abolished; and that the income of each minister should be fixed at one hundred pounds per annum, to be raised by a rate on his parishioners.[1]

Aware of the necessity of crushing the spirit of opposition in the military, general orders were issued[a] by Fairfax, prohibiting private meetings of officers or soldiers "to the disturbance of the army;" and on the receipt[b] of a letter of remonstrance from several regiments, four of the five troopers by whom it was signed were condemned[c] by a court-martial to ride the wooden horse with their faces to the tail, to have their swords broken over their heads, and to be afterwards cashiered. Lilburne, on the other hand, laboured to inflame the general discontent by a succession of pamphlets, entitled, "England's New Chains Discovered," "The Hunting of the Foxes from Newmarket and Triploe Heath to Whitehall by five small Beagles" (in allusion to the five troopers), and the second part of "England's New Chains." The last he read[d] to a numerous assembly at Winchester House; by the parliament it was voted[e] a seditious and traitorous libel, and the author, with his associates, Walwyn, Prince, and Overton; was committed, [f] by order of the council, to close custody in the Tower.[2]

It had been determined to send to Ireland a division of twelve thousand men; and the regiments to be employed were selected by ballot, apparently in the fairest manner. The men, however, avowed a resolution not to march. It was not, they said, that they

[Footnote 1: Walker, 133. Whitelock, 388, 393, 396, 398, 399. Carte, Letters, i. 229.]

[Footnote 2: Whitelock, 385, 386, 392. Council Book in the State-paper Office, March 27, No. 17; March 29, No. 27. Carte, Letters, i. 273, 276.]

[Sidenote a: A.D. 1649. Feb. 22.]

[Sidenote b: A.D. 1649. March 1.]

[Sidenote c: A.D. 1649. March 3.]

[Sidenote d: A.D. 1649. March 25.]

[Sidenote e: A.D. 1649. March 27.]

[Sidenote f: A.D. 1649. March 29.]

refused the service; but they believed the expedition to be a mere artifice to send the discontented out of the kingdom; and they asserted that by their engagement on Triploe Heath they could not conscientiously move a step till the liberties of the nation were settled on a permanent basis. The first act of mutiny occurred in Bishopsgate. A troop of horse refused to obey their colonel; and, instead of marching out of the city, took possession of the colours. Of these, five were condemned to be shot; but one only, by name Lockyer, suffered. At his burial a thousand men, in files, preceded the corpse, which was adorned with bunches of rosemary dipped in blood; on each side rode three trumpeters, and behind was led the trooper's horse, covered with mourning; some thousands of men and women followed with black and green ribbons on their heads and breasts, and were received at the grave by a numerous crowd of the inhabitants of London and Westminster. This extraordinary funeral convinced the leaders how widely the discontent was spread, and urged them to the immediate adoption of the most decisive measures.[1]

The regiments of Scrope, Ireton, Harrison, Ingoldsby, Skippon, Reynolds, and Horton, though quartered in different places, had already[a]

elected their agents, and published their resolution to adhere to each other, when the house commissioned Fairfax to reduce the mutineers, ordered Skippon to secure the capital from surprise, and declared it treason for soldiers to conspire the death of the general or lieutenant-general, or for any person to endeavour to alter the government, or to affirm that the parliament or council of state was either tyrannical or unlawful.[2]

[Footnote 1: Walker, 161. Whitelock, 399.]

[Footnote 2: Journals, May 1, 14. Whitelock, 399.]

[Sidenote a: A.D. 1649. May 7.]

At Banbury, in Oxfordshire, a Captain Thompson, at the head of two hundred men, published a manifesto, entitled "England's Standard Advanced," in which he declared that, if Lilburne, or his fellow-prisoners, were ill-treated, their sufferings should be avenged seventy times seven-fold upon their persecutors. His object was to unite some of the discontented regiments; but Colonel Reynolds surprised him at Banbury, and prevailed on his followers to surrender without loss of blood.[1] Another party, consisting of ten troops of horse, and more than a thousand strong, proceeded from Salisbury to Burford, augmenting their numbers as they advanced. Fairfax and Cromwell, after a march of more than forty miles during the day, arrived soon afterwards,[a] and ordered their followers to take refreshment. White had been sent to the insurgents with an offer of pardon on their submission; whether he meant to deceive them or not, is uncertain; he represented the pause on the part of the general as time allowed them to consult and frame their demands; and at the hour of midnight, while they slept in security, Cromwell forced his way into the town, with two thousand men, at one entrance, while Colonel Reynolds, with a strong body, opposed their exit by the other. Four hundred of the

mutineers were made prisoners, and the arms and horses of double that number were taken. One cornet and two corporals suffered death; the others, after a short imprisonment, were restored to their former regiments.
[2]

This decisive advantage disconcerted all the plans of the mutineers. Some partial risings in the

[Footnote 1: Walker, ii. 168. Whitelock, 401.]

[Footnote 2: King's Pamphlets, No. 421, xxii.; 422, i. Whitelock, 402.]

[Sidenote a: A.D. 1649. May 14.]

counties of Hants, Devon, and Somerset were quickly suppressed; and Thompson, who had escaped[a] from Banbury and retired to Wellingborough, being deserted by his followers, refused quarter, and fell[b] fighting singly against a host of enemies.[1] To express the national gratitude for this signal deliverance, a day of thanksgiving was appointed; the parliament, the council of State, and the council of the army assembled[c] at Christ-church; and, after the religious service of the day, consisting of two long sermons and appropriate prayers, proceeded to Grocer's Hall, where they dined by invitation from the city. The speaker Lenthall, the organ of the supreme authority, like former kings, received the sword of state from the mayor, and delivered it to him again. At table, he was seated at the head, supported on his right hand by the lord general, and on the left by Bradshaw, the president of the council; thus exhibiting to the guests the representatives of the three bodies by which the nation was actually governed. At the conclusion of the dinner, the lord mayor presented one thousand pounds in gold to Fairfax in a basin and ewer of the same metal, and five hundred pounds, with a complete service of plate, to Cromwell.[2]

The suppression of the mutiny afforded leisure to the council to direct its attention to the proceedings in Scotland and Ireland. In the first of these kingdoms, after the departure of Cromwell, the supreme authority had been exercised by Argyle and his party, who were supported, and at the same time controlled, by the paramount influence of the kirk. The forfeiture

[Footnote 1: Whitelock, 403.]

[Footnote 2: Leicester's Journal, 74. Whitelock (406) places the guests in a different order.]

[Sidenote a: A.D. 1649. May 20.]

[Sidenote b: A.D. 1649. May 31.]

[Sidenote c: A.D. 1649. June 7.]

and excommunication of the "Engagers" left to their opponents the undisputed superiority in the parliament and all the great offices of the state. From the part which Argyle had formerly taken in the surrender of the king, his recent connection with Cromwell, and his hostility to the engagement, it was generally believed that he had acted in concert with the English Independents. But he was wary, and subtle, and flexible. At the approach of danger he could dissemble; and, whenever it suited his views, could change his measures without changing his object. At the beginning of January the fate with which Charles was menaced revived the languid affection of the Scots. A cry of indignation burst from every part of the country: he was their native king—would they suffer him to be arraigned as a criminal before a foreign tribunal? By delivering him to his enemies, they had sullied the fair fame of the nation—would they confirm this disgrace by tamely acquiescing in his death? Argyle deemed it prudent to go with the current of national feeling;^[1] he suffered a committee to be appointed in parliament, and the commissioners in London received instructions to protest against the trial and condemnation of the king. But these instructions disclose the

timid fluctuating policy of the man by whom they were dictated. It is vain to look in them for those warm and generous sentiments which the case demanded. They are framed with hesitation and caution; they betray a

[Footnote 1: Wariston had proposed (and Argyle had seconded him) to postpone the motion for interference in the King's behalf till the Lord had been sought by a solemn fast, but "Argyle, after he saw that it was carried by wottes in his contrarey, changed his first opinione with a faire appology, and willed them then presently to enter on the business."—Balfour, iii. 386.]

consciousness of weakness, a fear of provoking enmity, and an attention to private interest; and they show that the protestors, if they really sought to save the life of the monarch, were yet more anxious to avoid every act or word which might give offence to his adversaries.[1]

The commissioners delivered the paper, and the Scottish parliament, instead of an answer, received the news of the king's execution. The next day the chancellor, attended by the members, proceeded to the cross in Edinburgh, and proclaimed Charles, the son of the deceased prince, king of Scotland, England, France, and Ireland.[a] But to this proclamation was appended a provision, that the young prince, before he could enter on the exercise of the royal authority, should satisfy the parliament of his adhesion both to the national covenant of Scotland, and to the solemn league and covenant between the two kingdoms.[2]

At length, three weeks after the death of the king, whose life it was intended to save, the English parliament condescended to answer the protestation of the Scots, but in a tone of contemptuous indifference, both as to the justice of their claim and the consequences of their anger.[b] Scotland, it was replied, might perhaps have no right to bring her sovereign to a public trial, but that circumstance could not affect the right of England.

As the English parliament did not intend to trench on the liberties of others, it would not permit others to trench upon its own. The recollection of the evils inflicted on the nation by the misconduct of the king, and the consciousness that they

[Footnote 1: See the instructions in Balfour, iii. 383; and Clarendon, iii. 280.]

[Footnote 2: Balfour, iii. 387. Clarendon, iii. 284.]

[Sidenote a: A.D. 1649. Feb. 3.]

[Sidenote b: A.D. 1649. Feb. 17.]

had deserved the anger of God by their neglect to punish his offences, had induced them to bring him to justice, a course which they doubted not God had already approved, and would subsequently reward by the establishment of their liberties. The Scots had now the option of being freemen or slaves; the aid of England was offered for the vindication of their rights; if it were refused, let them beware how they entailed on themselves and their posterity the miseries of continual war with their nearest neighbour, and of slavery under the issue of a tyrant.[1]

The Scottish commissioners, in reply,[a] hinted that the present was not a full parliament; objected to any alteration in the government by king, lords, and commons; desired that no impediment should be opposed to the lawful succession of Charles II.; and ended by protesting that, if such things were done, the Scots were free before God and man from the guilt, the blood, the calamities, which it might cost the two kingdoms. Having delivered this paper, they hastened to Gravesend. Their object was to proceed to the United Provinces, and offer the Scottish crown on certain conditions to the young king. But the English leaders resolved to interrupt their mission. The answer which they had given was voted[b] a scandalous libel, framed for

the purpose of exciting sedition; the commissioners were apprehended[c] at Gravesend as national offenders, and Captain Dolphin received orders to conduct them under a guard to the frontiers of Scotland.[2]

[Footnote 1: Journals, Feb. 17, 20. Clarendon, iii. 282.]

[Footnote 2: Journals, Feb. 26, 28. Whitelock, 384. Balfour, iii. 388, 389. Carte, Letters, i. 233. Dolphin received a secret instruction not to dismiss Sir John Chiesley, but to keep him as a hostage, till he knew that Mr. Rowe, the English agent in Edinburgh, was not detained.—Council Book, March 2.]

[Sidenote a: A.D. 1649. Feb. 24.]

[Sidenote b: A.D. 1649. Feb. 26.]

[Sidenote c: A.D. 1649. March 2.]

This insult, which, though keenly felt, was tamely borne, might retard, it could not prevent, the purposes of the Scottish parliament. The earl of Cassilis, with four new commissioners, was appointed[a] to proceed to Holland, where Charles, under the protection of his brother-in-law, the prince of Orange, had resided since the death of his father.[1] His court consisted at first of the few individuals whom that monarch had placed around him, and whom he now swore of his privy council. It was soon augmented by the earl of Lanark, who, on the death of his brother, became duke of Hamilton, the earl of Lauderdale, and the earl of Callendar, the chiefs of the Scottish Engagers; these were followed by the ancient Scottish royalists, Montrose, Kinnoul, and Seaforth, and in a few days appeared Cassilis, with his colleagues, and three deputies from the church of Scotland, who brought with them news not likely to insure them a gracious reception, that the parliament, at the petition of the kirk, had sent to the

scaffold[b] the old marquess of Huntley, forfeited for his adhesion to the royal cause in the year 1645. All professed to have in view the same object—the restoration of the young king; but all were divided and alienated from each other by civil and religious bigotry. By the commissioners, the Engagers, and by both, Montrose and his friends, were shunned as traitors to their country, and sinners excommunicated by the kirk. Charles was perplexed by the conflicting opinions of these several advisers. Both the commissioners and Engagers, hostile as they were to each

[Footnote 1: Whatever may have been the policy of Argyle, he most certainly promoted this mission, and "overswayed the opposition to it by his reason, authority, and diligence,"—Baillie, ii. 353.]

[Sidenote a: A.D. 1649. March 17.]

[Sidenote a: A.D. 1649. March 26.]

other, represented his taking of the covenant as an essential condition; while Montrose and his English counsellors contended that it would exasperate the Independents, offend the friends of episcopacy, and cut off all hope of aid from the Catholics, who could not be expected to hazard their lives in support of a prince sworn to extirpate their religion.[1]

While the question was yet in debate, an event happened to hasten the departure of Charles from the Hague. Dr. Dorislaus, a native of Holland, but formerly a professor of Gresham College, and recently employed to draw the charge against the king, arrived as envoy from the parliament to the States.[a] That very evening, while he sat at supper in the inn, six gentlemen with drawn swords entered the room, dragged him from his chair, and murdered him on the floor.[2] Though the assassins were suffered to escape, it was soon known that they were Scotsmen, most of them followers of Montrose; and Charles, anticipating the demand of justice from the English parliament, gave his final answer to the commissioners, that he was, and

always had been, ready to provide for the security of their religion, the union between the kingdoms, and the internal peace and prosperity of Scotland; but that their other demands were irreconcilable with his conscience, his liberty, and his honour.[b] They

[Footnote 1: Clar. iii. 287-292. Baillie, ii. 333. Carte, Letters, i. 238-263. In addition to the covenant, the commissioners required the banishment of Montrose, from which they were induced to recede, and the limitation of the king's followers to one hundred persons.—Carte, Letters, i. 264, 265, 266, 268, 271.]

[Footnote 2: Clarendon, iii. 293. Whitelock, 401. Journals, May 10. The parliament settled two hundred pounds per annum on the son, and gave five hundred pounds to each of the daughters of Dorislaus.—Ib. May 16. Two hundred and fifty pounds was given towards his funeral.—Council Book, May 11.]

[Sidenote a: A.D. 1649. May 3.]

[Sidenote b: A.D. 1649. May 19.]

acknowledged that he was their king; it was, therefore, their duty to obey, maintain, and defend him; and the performance of this duty he should expect from the committee of estates, the assembly of the kirk, and the whole nation of Scotland. They departed with this unsatisfactory answer; and Charles, leaving the United Provinces, hastened to St. Germain in France, to visit the queen his mother, with the intention of repairing, after a short stay, to the army of the royalists in Ireland.[1]

That the reader may understand the state of Ireland, he must look back to the period when the despair or patriotism of Ormond surrendered to the parliament the capital of that kingdom.[a] The nuncio, Rinuccini, had then seated himself in the chair of the president of the supreme council at

Kilkenny; but his administration was soon marked by disasters, which enabled his rivals to undermine and subvert his authority.[b] The Catholic army of Leinster, under Preston, was defeated on Dungan Hill by Jones, the governor of Dublin, and that of Munster, under the Viscount Taafe, at Clontarf, by the Lord Inchiquin.[2][c] To Rinuccini

[Footnote 1: Balfour, iii. 405; and the Proceedings of the Commissioners of the Church and Kingdoms of Scotland with his Majestie at the Hague. Edinburgh, printed by Evan Tyler, 1649.]

[Footnote 2: Rushworth, 833, 916. In the battle of Dungan Hill, at the first charge the Commander of the Irish cavalry was slain: his men immediately fled; the infantry repelled several charges, and retired into a bog, where they offered to capitulate. Colonel Flower said he had no authority to grant quarter, but at the same time ordered his men to stand to their arms, and preserved the lives of the earl of Westmeath, Lieutenant-General Bryne, and several officers and soldiers who repaired to his colours. "In the mean time the Scotch colonel Tichburn, and Colonel Moor, of Bankhall's regiments, without mercy put the rest to the sword." They amounted to between three and four thousand men.—Belling's History of the late Warre in Ireland, MS. ii. 95. I mention this instance to show that Cromwell did not introduce the practice of massacre. He followed his predecessors, whose avowed object it was to exterminate the natives.]]

[Sidenote a: A.D. 1649. July.]

[Sidenote b: A.D. 1649. August 2.]

[Sidenote c: A.D. 1649. Nov. 13.]

himself these misfortunes appeared as benefits, for he distrusted Preston and Taafe on account of their attachment to Ormond; and their depression served to exalt his friend and protector, Owen Roe O'Neil, the leader of the

men of Ulster. But from such beginnings the nation at large anticipated a succession of similar calamities; his adversaries obtained a majority in the general assembly; and the nuncio, after a declaration that he advanced no claim to temporal authority, prudently avoided a forced abdication, by offering to resign his office.[a] A new council, consisting, in equal number, of men chosen out of the two parties, was appointed; and the marquess of Antrim, the Lord Muskerry, and Geoffrey Brown, were despatched to the queen mother, and her son Charles, to solicit assistance in money and arms, and to request that the prince would either come and reside in Ireland, or appoint a Catholic lieutenant in his place.[b] Antrim hoped to obtain this high office for himself; but his colleagues were instructed to oppose his pretensions and to acquiesce in the re-appointment of the marquess of Ormond.[1]

During the absence of these envoys, the Lord Inchiquin unexpectedly declared, with his army, in favour of the king against the parliament, and instantly proposed an armistice to the confederate Catholics, as friends to the royal cause. By some the overture was indignantly rejected. Inchiquin, they said, had been their most bitter enemy; he had made it his delight to shed the blood of Irishmen, and to pollute and destroy their altars. Besides, what pledge could be

[Footnote 1: Philopater Irenaeus, 50-60. Castlehaven, Memoirs, 83.]

[Sidenote a: A.D. 1648. Jan. 4]

[Sidenote b: A.D. 1648. Feb. 27]

given for the fidelity of a man who, by repeatedly changing sides, had already shown that he would always accommodate his conscience to his interest? It were better to march against him now that he was without allies; and, when he should be subdued, Jones with the parliamentary army would necessarily fall. To this reasoning it was replied, that the expedition would

require time and money; that provision for the free exercise of religion might be made in the articles; and that, at a moment when the Catholics solicited a reconciliation with the king, they could not in honour destroy those who drew the sword in his favour. In defiance of the remonstrances made by Rinuccini and eight of the bishops, the treaty proceeded;[a] and the nuncio believing, or pretending to believe, that he was a prisoner in Kilkenny, escaped in the night over the wall of the city, and was received at Maryborough with open arms by his friend O'Neil.[b] The council of the Catholics agreed to the armistice, and sought by repeated messages to remove the objections of the nuncio.[c] But zeal or resentment urged him to exceed his powers.[d] He condemned the treaty, excommunicated its abettors, and placed under an interdict the towns in which it should be admitted. But his spiritual weapons were of little avail. The council, with fourteen bishops, appealed from his censures; the forces under Taafe, Clanricard, and Preston, sent back his messengers;[e] and, on the departure of O'Neil, he repaired to the town of Galway, where he was sure of the support of the people, though in opposition to the sense of the mayor and the merchants. As a last effort, he summoned a national synod at Galway;[f] but the council protested against it; Clanricard surrounded the town with his army; and

[Sidenote a: A.D. 1648. April 27.]

[Sidenote b: A.D. 1648. May 9.]

[Sidenote c: A.D. 1648. May 22.]

[Sidenote d: A.D. 1648. May 27.]

[Sidenote e: A.D. 1648. May 31.]

[Sidenote f: A.D. 1648. Sept. 1.]

the inhabitants, opening the gates, made their submission.[1]

War was now openly declared between the two parties. On the one hand, Jones in Dublin, and Monk in Ulster, concluded truces with O'Neil, that he might be in a better condition to oppose the common enemy; on the other, Inchiquin joined with Preston to support the authority of the council against O'Neil. Inroads were reciprocally made; towns were taken and retaken; and large armies were repeatedly brought in face of each other. The council, however, began to assume a bolder tone:[a] they proclaimed O'Neil a rebel and traitor; and, on the tardy arrival of Ormond with the commission of lord-lieutenant, sent to Rinuccini himself an order to quit the kingdom,[b] with the information that they had accused him to the pope of certain high crimes and misdemeanors.[2]

[Footnote 1: See *Desiderata Cur. Hib.* ii. 511; Carte, ii. 20, 31-36; Belling, in his MS. *History of the late War in Ireland*, part iv. 1-40. He has inserted most of the papers which passed between the parties in this work. See also *Philopater Irenaeus*, i. 60, 86; ii. 90, 94; Walsh, *History and Vindication*, App. 33-40; Ponce, 90.]

[Footnote 2: The charge may be seen in *Philopater Iren.* i. 150-160; Clarendon, viii. 68. Oxford, 1726. It is evident that the conduct of Rinuccini in breaking the first peace was not only reprehensible in itself, but productive of the most calamitous consequences both to the cause of royalty and the civil and religious interests of the Irish Catholics. The following is the ground on which he attempts to justify himself. Laying it down as an undeniable truth that the Irish people had as good a right to the establishment of their religion in their native country, as the Covenanters in Scotland, or the Presbyterians in England, he maintains that it was his duty to make this the great object of his proceedings. When the peace was concluded, Charles was a prisoner in the hands of the Scots, who had solemnly sworn to abolish the Catholic religion; and the English royalists had been subdued by the parliament, which by repeated votes and

declarations had bound itself to extirpate the Irish race, and parcel out the island among foreign adventurers. Now there was no human probability that Charles would ever be restored to his throne, but on such conditions as the parliament and the Scots should prescribe; and that, on their demand, he would, after some struggle, sacrifice the Irish Catholics, was plain from what had passed in his different negotiations with the parliament, from his disavowal of Glamorgan's commission, and from the obstinacy with which his lieutenant, Ormond, had opposed the claims of the confederates. Hence he inferred that a peace, which left the establishment of religion to the subsequent determination of the king, afforded no security, but, on the contrary, was an abandonment of the cause for which the Catholics had associated; and that it therefore became him, holding the situation which he did, to oppose it by every means in his power.—MS. narrative of Rinuccini's proceedings, written to be delivered to the pope; and Ponce, 271.]

[Sidenote a: A.D. 1648. Sept. 3.]

[Sidenote b: A.D. 1648. Oct. 19.]

But he continued to issue his mandates in defiance of their orders and threats; nor was it till after the new pacification between Charles and the confederates had been published, and the execution of the king had fixed the public opinion on the pernicious result of his counsels,[a] that shame and apprehension drove him from Ireland to France,[b] whence, after a few months, he was recalled to Rome.

The negotiation between Ormond and the Catholics had continued for three months;[c] in January the danger which threatened the royal person induced the latter to recede from their claims, and trust to the future gratitude and honour of their sovereign. They engaged to maintain at their own expense an army of seventeen thousand five hundred men, to be

employed against the common enemy; and the king, on his part, consented that the free exercise of the Catholic worship should be permitted; that twelve commissioners of trust appointed by the assembly should aid the lord-lieutenant in the internal administration; that the Court of Wards and several other grievances should be abolished; that a parliament should be called as soon as the majority of commissioners might deem it expedient, and in that parliament the persecuting laws on the subject of religion, with others injurious to the trade and commerce

[Sidenote a: A.D. 1649. Jan. 17.]

[Sidenote b: A.D. 1649. Jan. 30.]

[Sidenote c: A.D. 1649. Feb. 23.]

of Ireland, should be repealed, and the independence of the Irish on the English parliament should be established.[1]

The royal interest was now predominant in Ireland. The fleet under Prince Rupert rode triumphant off the coast; the parliamentary commanders, Jones in Dublin, Monk in Belfast, and Coote in Londonderry, were almost confined within the limits of their respective garrisons; and Inchiquin in Munster, the Scottish regiments in Ulster, and the great body of the Catholics adhering to the supreme council, had proclaimed the king, and acknowledged the authority of his lieutenant. It was during this favourable state of things that Charles received and accepted the invitation of Ormond; [a] but his voyage was necessarily delayed through want of money, and his ardour was repeatedly checked by the artful insinuation of some among his counsellors, who secretly feared that, if he were once at the head of a Catholic army, he would listen to the demands of the Catholics for the establishment of their religion.[2] On the contrary, to the leaders in London, the danger of losing Ireland became a source of the most perplexing solicitude. The office of lord lieutenant was offered to Cromwell.[b] He

affected to hesitate; at his request two officers from each corps received orders to meet him at Whitehall, and seek the Lord in prayer;[c] and, after a delay of two weeks, he condescended to submit his shoulders to the burthen, because he had now learned that it was the will of Heaven.[3][d] Hi demands,

[Footnote 1: Phil. Iren. i. 166. Walsh, App. 43-64. Whitelock, 391. Charles approved and promised to observe this peace.—Carte's Letters, ii. 367.]

[Footnote 2: Carte, Letters, i. 258, 262.]

[Footnote 3: Journals, March 30. Whitelock, 389, 391, 392.]

[Sidenote a: A.D. 1649. March 29.]

[Sidenote b: A.D. 1649. March 15.]

[Sidenote c: A.D. 1649. March 23.]

[Sidenote d: A.D. 1649. March 29.]

however, were so numerous, the preparations to be made so extensive, that it was necessary to have recourse in the interval to other expedients for the preservation of the forces and places which still admitted the authority of the parliament. One of these was to allure to the cause of the Independents the Catholics of the two kingdoms; for which purpose, the sentiments of Sir Kenelm Digby and Sir John Winter were sounded,[a] and conferences were held, through the agency of the Spanish ambassador, with O'Reilly and Quin, two Irish ecclesiastics.[b] It was proposed that toleration should be granted for the exercise of the Catholic worship, without any penal disqualifications, and that the Catholics in return should disclaim the temporal pretensions of the pope, and maintain ten thousand men for the service of the commonwealth.

In aid of this project, Digby, Winter, and the Abbé Montague were suffered to come to England under the pretence of compounding for their estates; and the celebrated Thomas White, a secular clergyman, published a work entitled "The Grounds of Obedience and Government," to show that the people may be released from their obedience to the civil magistrate by his misconduct; and that, when he is once deposed (whether justly or unjustly makes no difference), it may be for the common interest to acquiesce in his removal, rather than attempt his restoration.

That this doctrine was satisfactory to the men in power, cannot be doubted; but they had so often reproached the late king with a coalition with the papists, that they dared not to make the experiment, and after some time, to blind perhaps the eyes of the people, severe votes were passed against

[Sidenote a: A.D. 1649. March.]

[Sidenote b: A.D. 1649. April.]

Digby, Montague, and Winter, and orders were given for the apprehension of priests and Jesuits.[1]

In Ireland an attempt was made to fortify the parliamentary party with the friendly aid of O'Neil.[a] That chieftain had received proposals from Ormond, but his jealousy of the commissioners of trusts, his former adversaries, provoked him to break off the treaty with the lord lieutenant,[b] and to send a messenger of his own with a tender of his services to Charles. [c] Immediately the earl of Castlehaven, by order of Ormond, attacked and reduced his garrisons of Maryborough and Athy;[d] and O'Neil, in revenge, listened to the suggestions of Monk, who had retired before the superior force of the Scottish royalists from Belfast to Dundalk.[e] A cessation of hostilities was concluded for three months;[f] and the proposals of the Irish chieftain, modified by Monk, were transmitted to England for the

ratification of parliament. By the "grandeess" it was thought imprudent to submit them to an examination, which would make them public; but the answer returned satisfied the contracting parties:[g] Monk supplied O'Neil with ammunition, and O'Neil undertook to intercept the communication between the Scottish regiments of the north and the grand army under Ormond in the heart of the kingdom.[2]

[Footnote 1: On this obscure subject may be consulted Walker, ii. 150; Carte's Collection of Letters, i. 216, 219, 221, 222, 224, 267, 272, 297; ii. 363, 364; and the Journals, Aug. 31.]

[Footnote 2: O'Neil demanded liberty of conscience for himself, his followers, and their posterity; the undisturbed possession of their lands, as long as they remained faithful to the parliament; and, in return for his services, the restoration of his ancestor's estate, or an equivalent. (See both his draft, and the corrected copy by Monk, in *Philop. Iren.* i. 191, and in Walker, ii. 233-238.) His agent, on his arrival in London, was asked by the grandeess why he applied to them, and refused to treat with Ormond. He replied, because the late king had always made them fair promises; but, when they had done him service, and he could make better terms with their enemies, had always been ready to sacrifice them. Why then did not O'Neil apply to the parliament sooner? Because the men in power then had sworn to extirpate them; but those in power now professed toleration and liberty of conscience.—Ludlow, i. 255. The agreement made with him by Monk was rejected (Aug. 10), because, if we believe Ludlow, the Ulster men had been the chief actors in the murder of the English, and liberty of religion would prove dangerous to public peace. But this rejection happened much later. It is plain that Jones, Monk, Coote, and O'Neil understood that the agreement would be ratified, though it was delayed.—Walker, ii 198, 231, 245. See King's Pamphlets, 428, 435, 437.]

[Sidenote a: A.D. 1649. August 31.]

[Sidenote b: A.D. 1649. Feb. 20.]

[Sidenote c: A.D. 1649. March 16.]

[Sidenote d: A.D. 1649. March 21.]

[Sidenote e: A.D. 1649. April 25.]

[Sidenote f: A.D. 1649. May 8.]

[Sidenote g: A.D. 1649. May 22.]

Though the parliament had appointed Cromwell lord lieutenant of Ireland, and vested the supreme authority, both civil and military, in his person for three years, he was still unwilling to hazard his reputation, and his prospects in a dangerous expedition without the adequate means of success.[a] Out of the standing army of forty-five thousand men, with whose aid England was now governed, he demanded a force of twelve thousand veterans, with a plentiful supply of provisions and military stores, and the round sum of one hundred thousand pounds in ready money.[1] On the day of his departure, his friends assembled at Whitehall; three ministers solemnly invoked the blessing of God on the arms of his saints; and three officers, Goff, Harrison and the lord lieutenant himself, expounded the scriptures "excellently well, and pertinently to the occasion." [b] After these outpourings of the spirit, Cromwell mounted his carriage, drawn by six horses. He was accompanied by the great officers of state and of the army; his life-guard, eighty young men, all of quality, and several holding

[Footnote 1: Cromwell received three thousand pounds for his outfit, ten pounds per day as *general* while he remained in England, and two thousand pounds per quarter in Ireland, besides his salary as lord lieutenant.—Council Book, July 12, No, 10.]

[Sidenote a: A.D. 1649. June 22.]

[Sidenote b: A.D. 1649. July 10.]

commissions as majors and colonels, delighted the spectators with their splendid uniforms and gallant bearing; and the streets of the metropolis resounded, as he drove towards Windsor, with the acclamations of the populace and the clangour of military music.[1] It had been fixed that the expedition should sail from Milford Haven; but the impatience of the general was checked by the reluctance and desertion of his men. The recent transaction between Monk and O'Neil had diffused a spirit of distrust through the army. It was pronounced an apostasy from the principles on which they had fought. The exaggerated horrors of the massacre in 1641 were recalled to mind; the repeated resolutions of parliament to extirpate the native Irish, and the solemn engagement of the army to revenge the blood which had been shed, were warmly discussed; and the invectives of the leaders against the late king, when he concluded a peace with the confederate Catholics, were contrasted with their present backsliding, when they had taken the men of Ulster for their associates and for their brethren in arms. To appease the growing discontent, parliament annulled the agreement. Monk, who had returned to England, was publicly assured that, if he escaped the punishment of his indiscretion, it was on account of his past services and good intentions. Peters from the pulpit employed his eloquence to remove the blame from the grandees; and, if we may judge from the sequel, promises were made, not only that the good cause should be supported, but that the duty of revenge should be amply discharged.[2]

While the army was thus detained in the neighbourhood

[Footnote 1: Whitelock, 413. Leicester's Journal, 76.]

[Footnote 2: Walker, ii. 230, 243. Whitelock, 416. Leicester's Journal, 82.]

of Milford Haven, Jones, in Dublin, reaped the laurels which Cromwell had destined for himself. The royal army advanced on both banks of the

Liffy to the siege of that capital;^[a] and Ormond, from his quarters at Finglass, ordered certain works to be thrown up at a place called Bogatrath. His object was to exclude the horse of the garrison from the only pasturage in their possession; but by some mishap, the working party did not reach the spot till an hour before sunrise; and Jones, sallying from the walls, overpowered the guard, and raised an alarm in the camp.^[b] The confusion of the royalists encouraged him to follow up his success. Regiment after regiment was beaten: it was in vain that Ormond, aroused from his sleep, flew from post to post; the different corps acted without concert; a general panic ensued, and the whole army on the right bank fled in every direction. The artillery, tents, baggage, and ammunition fell into the hands of the conquerors, with two thousand prisoners, three hundred of whom were massacred in cold blood at the gate of the city. This was called the battle of Rathmines, a battle which destroyed the hopes of the Irish royalists, and taught men to doubt the abilities of Ormond. At court, his enemies ventured to hint suspicions of treason; but Charles, to silence their murmurs and assure him of the royal favour, sent him the order of the garter.^{[1][c]}

The news of this important victory^[d] hastened the

[Footnote 1: King's Pamphlets, No. 434, xxi. Whitelock, 410, 1, 2, 4, 5, 7, 9. Clarendon, viii. 92, 93. Carte, Letters, ii. 394, 402, 408. Baillie, ii. 346. Ludlow, i. 257, 258. Ormond, before his defeat, confidently predicted the fall of Dublin (Carte, letters, ii. 383, 389, 391); after it, he repeatedly asserts that Jones, to magnify his own services, makes the royalists amount to eighteen, whereas, in reality, they were only eight, thousand men.—Ibid. 402, 413.]

[Sidenote a: A.D. 1649. August 1.]

[Sidenote b: A.D. 1649. August 2.]

[Sidenote c: A.D. 1649. August 13.]

[Sidenote d: A.D. 1649. August 18.]

departure of Cromwell. He sailed from Milford with a single division; his son-in-law, Ireton, followed with the remainder of the army, and a fortnight was allowed to the soldiers to refresh themselves after their voyage. The campaign was opened with the siege of Drogheda.[a] Ormond had thrown into the town a garrison of two thousand five hundred chosen men, under the command of Sir Arthur Aston, an officer who had earned a brilliant reputation by his services to the royal cause in England during the civil war. On the eighth day a sufficient breach had been effected in the wall:[b] the assailants on the first attempt were driven back with immense loss. They returned a second, perhaps a third, time to the assault, and their perseverance was at last crowned with success. But strong works with ramparts and pallisades had been constructed within the breach, from which the royalists might have long maintained a sanguinary and perhaps doubtful conflict. These entrenchments, however, whether the men were disheartened by a sudden panic, or deceived by offers of quarter—for both causes have been assigned—the enemy was suffered to occupy without resistance. Cromwell (at what particular moment is uncertain) gave orders that no one belonging to the garrison should be spared; and Aston, his officers and men, having been previously disarmed, were put to the sword. From thence the conquerors, stimulated by revenge and fanaticism, directed their fury against the townsmen, and on the next morning one thousand unresisting victims were immolated together within the walls of the great church, whither they had fled for protection.[1][c]

[Footnote 1: See Carte's Ormond, ii. 84; Carte, Letters, iv. 412; Philop. Iren. i. 120; Whitelock, 428; Ludlow, i. 261; Lynch, Cambrensis Eversos, in fine; King's Pamph. 441, 447; Ormond in Carte's Letters, ii. 412; and Cromwell in Carlyle's Letters and Speeches, i. 457.]

[Sidenote a: A.D. 1649. Sept. 3.]

[Sidenote b: A.D. 1649. Sept. 11.]

[Sidenote c: A.D. 1649. Sept. 12.]

From Drogheda the conqueror led his men, flushed with slaughter, to the seige of Wexford. The mayor and governor offered to capitulate; but whilst their commissioners were treating with Cromwell, an officer perfidiously opened the castle to the enemy; the adjacent wall was immediately scaled; [a] and, after a stubborn but unavailing resistance in the market-place, Wexford was abandoned to the mercy of the assailants. The tragedy, so recently acted at Drogheda, was renewed. No distinction was made between the defenceless inhabitant and the armed soldier; nor could the shrieks and prayers of three hundred females, who had gathered round the great cross, preserve them from the swords of these ruthless barbarians. By Cromwell himself, the number of the slain is reduced to two, by some writers it has been swelled to five, thousand.[1]

Ormond, unable to interrupt the bloody career of his adversary, waited with impatience for the determination of O'Neil. Hitherto that chieftain had faithfully performed his engagements with the parliamentary commanders. He had thrown impediments in the way of the royalists; he had compelled Montgomery to raise the siege of Londonderry, and had rescued Coote and his small army, the last hope of the parliament in Ulster, from the fate which seemed to await them. At first the leaders in London had hesitated, now after the victory of Rathmines they publicly refused, to ratify the treaties made with him by their officers.[2] Stung

[Footnote 1: See note (D).]

[Footnote 2: Council Book, Aug. 6, No. 67, 68, 69, 70. Journals, Aug. 10, 24. Walker, ii. 245-248. King's Pamphlets, No. 435, xi.; 437, xxxiii. The

reader must not confound this Owen Roe O'Neil with another of the same name, one of the regicides, who claimed a debt of five thousand and sixty-five pounds seventeen shillings and sixpence of the parliament, and obtained an order for it to be paid out of the forfeited lands in Ireland.—
Journ. 1653, Sept. 9.]

[Sidenote a: A.D. 1649. Oct 12.]

with indignation, O'Neil accepted the offers of Ormond, and marched from Londonderry to join the royal army; but his progress was retarded by sickness, and he died at Clocknacter in Cavan. His officers, however, fulfilled his intentions; the arrival of the men of Ulster revived the courage of their associates; and the English general was successively foiled in his attempts upon Duncannon and Waterford. His forces already began to suffer from the inclemency of the season, when Lord Broghill, who had lately returned from England, debauched the fidelity of the regiments under Lord Inchiquin. The garrisons of Cork, Youghal, Bandon, and Kinsale declared for the parliament, and Cromwell seized the opportunity to close the campaign and place his followers in winter quarters.[1]

But inactivity suited not his policy or inclination. After seven weeks of repose he again summoned them into the field;[a] and at the head of twenty thousand men, well appointed and disciplined, confidently anticipated the entire conquest of Ireland. The royalists were destitute of money, arms, and ammunition; a pestilential disease, introduced with the cargo of a ship from Spain, ravaged their quarters; in the north, Charlemont alone acknowledged the royal authority; in Leinster and Munster, almost every place of importance had been wrested from them by force or perfidy; and even in Connaught, their last refuge, internal dissension prevented that union which alone could save them from utter destruction. Their misfortunes called into

[Footnote 1: Phil. Iren. i. 231. Carte's Ormond, ii. 102. Desid. Curios. Hib. ii. 521.]

[Sidenote a: A.D. 1650. Jan. 29.]

action the factions which had lain dormant since the departure of the nuncio. The recent treachery of Inchiquin's forces had engendered feelings of jealousy and suspicion; and many contended that it was better to submit at once to the conqueror than to depend on the doubtful fidelity of the lord lieutenant. Cromwell met with little resistance: wherever he came, he held out the promise of life and liberty of conscience;^[1] but the rejection of the offer, though it were afterwards accepted, was punished with the blood of the officers; and, if the place were taken by force, with indiscriminate slaughter.^[2] Proceeding on this plan, one day granting quarter, another putting the leaders only to the sword, and on the next immolating the whole garrison, hundreds of human beings at a time, he quickly reduced most of the towns and castles in the three counties of Limerick, Tipperary, and Kilkenny. But this bloody policy at length recoiled upon its author. Men, with no alternative but victory or death, learned to fight with the energy of despair. At the siege of Kilkenny the assailants, though twice repulsed from the breach, were, by the timidity of some of the inhabitants,

[Footnote 1: Liberty of conscience he explained to mean liberty of internal belief, not of external worship.—See his letter in Phil. Iren. i. 270.]

[Footnote 2: The Irish commanders disdained to imitate the cruelty of their enemies. "I took," says Lord Castlehaven, "Athy by storm, with all the garrison (seven hundred men) prisoners. I made a present of them to Cromwell, desiring him by letter that he would do the like with me, as any of mine should fall in his power. But he little valued my civility. For, in a few days after, he besieged Gouvan; and the soldiers mutinying, and giving up the place with their officers, he caused the governor, Hammond, and

some other officers, to be put to death."—Castlehaven, 107. Ormond also says, in one of his letters, "the next day Rathfarnham was taken by storm, and all that were in it made prisoners; and though five hundred soldiers entered the castle before any officer of note, yet not one creature was killed; which I tell you by the way, to observe the difference betwixt our and the rebels making use of a victory."—Carte, Letters, ii. 408.]

admitted within the walls; yet, so obstinate was the resistance of the garrison, that, to spare his own men, the general consented to grant them honourable terms. From Kilkenny he proceeded to the town of Clonmel,[a] where Hugh, the son of the deceased O'Neil, commanded with one thousand two hundred of the best troops of Ulster. The duration of the siege exhausted his patience; the breach was stormed a second time; and, after a conflict of four hours, the English were driven back with considerable loss. [b] The garrison, however, had expended their ammunition; they took advantage of the confusion of the enemy to depart during the darkness of the night; and the townsmen the next morning, keeping the secret, obtained from Cromwell a favourable capitulation.[1][c] This was his last exploit in Ireland. From Clonmel he was recalled to England to undertake a service of greater importance and difficulty, to which the reader must now direct his attention.

The young king, it will be remembered, had left the Hague on his circuitous route to Ireland, whither he had been called by the advice of Ormond and the wishes of the royalists.[d] He was detained three months at St. Germain by the charms of a mistress or the intrigues of his courtiers, nor did he reach the island of Jersey till long after the disastrous battle of Rathmines.[e] That event made his further progress a matter of serious discussion; and the difficulty was increased by the arrival of Wynram of Libertoun, with addresses from the parliament and the kirk of Scotland.[f]

The first offered, on his acknowledgment of their authority as a parliament, to treat with him respecting the

[Footnote 1: Whitelock, 449, 456. Castlehaven, 108. Ludlow, i. 265. Perfect Politician, 70.]

[Sidenote a: A.D. 1650. March 28.]

[Sidenote b: A.D. 1650. May 8.]

[Sidenote c: A.D. 1650. May 10.]

[Sidenote d: A.D. 1649. June.]

[Sidenote e: A.D. 1649. September.]

[Sidenote f: A.D. 1649. October.]

conditions proposed by their former commissioners; but the latter, in language unceremonious and insulting, laid before him the sins of his youth; his refusal to allow the Son of God to reign over him in the pure ordinances of church government and worship; his cleaving to counsellors who never had the glory of God or the good of his people before their eyes; his admission to his person of that "fugacious man and excommunicate rebel, James Graham" and, above all, "his giving the royal power and strength to the beast," by concluding a peace "with the Irish papists, the murderers of so many Protestants." They bade him remember the iniquities of his father's house, and be assured that, unless he laid aside the "service-book, so stuffed with Romish corruptions, for the reformation of doctrine and worship agreed upon by the divines at Westminster," and approved of the covenant in his three kingdoms, without which the people could have no security for their religion or liberty, he would find that the Lord's anger was not turned away, but that his hand was still stretched against the royal person and his family.[1]

This coarse and intemperate lecture was not calculated to make a convert of a young and spirited prince. Instead of giving an answer, he waited to ascertain the opinion of Ormond; and at last, though inclination prompted him to throw himself into the arms of his Irish adherents, he reluctantly submitted to the authority of that officer, who declared, that the only way to preserve Ireland was by provoking a war between England and Scotland[2]. Charles now condescended[a]

[Footnote 1: Clar. State Papers, iii. App. 89-92. Carte's Letters, i. 323. Whitelock, 439. The address of the kirk was composed by Mr. Wood, and disapproved by the more moderate.—Baillie, ii. 339, 345.]

[Footnote 2: Carte's Letters, i. 333, 340.]

[Sidenote a: A.D. 1650. Jan. 11.]

to give to the convention the title of estates of parliament, appointed Breda, a small town, the private patrimony of the prince of Orange, for the place of treaty; and met[a] there the new commissioners, the earls of Cassilis and Lothian, with two barons, two burgesses, and three ministers. Their present scarcely differed from their former demands; nor were they less unpalatable to the king. To consent to them appeared to him an apostasy from the principles for which his father fought and died; an abandonment of the Scottish friends of his family to the mercy of his and their enemies. On the other hand, the prince of Orange importuned him to acquiesce; many of his counsellors suggested that, if he were once on the throne, he might soften or subdue the obstinacy of the Scottish parliament; and his mother, by her letters, exhorted him not to sacrifice to his feelings this his last resource, the only remaining expedient for the recovery of his three kingdoms. But the king had still another resource; he sought delays; his eyes were fixed on the efforts of his friends in the north of Scotland; and

he continued to indulge a hope of being replaced without conditions on the ancient throne of his ancestors.[1]

Before the king left St. Germain[s] he had given to Montrose a commission to raise the royal standard in Scotland. The fame of that nobleman secured to him a gracious reception from the northern sovereigns; he visited each court in succession; and in all obtained permission to levy men, and received aid either in money or in military stores. In autumn he despatched the first expedition of twelve thousand men from

[Footnote 1: Carte's Letters, i. 338, 355. Whitelock, 430. Clarendon, iii. 343.]

[Sidenote a: A.D. 1650. March 15.]

[Sidenote b: A.D. 1649. August.]

Gottenburg under the Lord Kinnoul; but the winds and waves fought against the royalists; several sail were lost among the rocks; and, when Kinnoul landed[a] at Kirkwall in the Orkneys, he could muster only eighty officers and one hundred common soldiers out of the whole number. But Montrose was not to be appalled by ordinary difficulties. Having received[b] from the new king the order of the garter, he followed with five hundred men, mostly foreigners; added them to the wreck of the first expedition, and to the new levies, and then found himself at the head of a force of more than one thousand men. His banners on which was painted a representation of the late king decapitated, with this motto, "Judge and avenge my cause, O Lord," was intrusted to young Menzies of Pitfoddels, and a declaration was circulated through the Highlands, calling upon all true Scotsmen to aid in establishing their king upon the throne, and in saving him from the treachery of those, who, if they had him in their power, would sell him as they had sold his father to English rebels. Having transported[c] his whole force from Holm Sound to the Northern extremity

of Caithness, he traversed that and the neighbouring county of Sutherland, calling on the natives to join the standard of their sovereign. But his name had now lost that magic influence which success had once thrown around it; and the several clans shunned his approach through fear, or watched his progress as foes. In the mean time his declaration had been solemnly burnt[d] by the hangman in the capital; the pulpits had poured out denunciations against the "rebel and apostate Montrose, the viperous brood of Satan, and the accursed of God and the kirk;" and a force of four thousand regulars had been collected

[Sidenote a: A.D. 1644. October.]

[Sidenote b: A.D. 1650. Jan. 12.]

[Sidenote c: A.D. 1650. March.]

[Sidenote d: A.D. 1650. Feb. 9.]

on Brechin Moor under the command of General Leslie, who was careful to cut off every source of information from the royalists. Montrose had reached[a] the borders of Ross-shire, when Colonel Strachan, who had been sent forward to watch his motions, learned[b] in Corbiesdale that the royalists, unsuspecting of danger, lay at the short distance of only two miles.

Calling his men around him under the cover of the long broom on the moor, he prayed, sang a psalm, and declared that he had consulted the Almighty, and knew as assuredly as there was a God in heaven, that the enemies of Christ were delivered into their hands. Then dividing his small force of about four hundred men into several bodies, he showed at first a single troop of horse, whom the royalists prepared to receive with their cavalry; but after a short interval, appeared a second, then a third, then a fourth; and Montrose believing that Leslie's entire army was advancing, ordered the infantry to take shelter among the brushwood and stunted trees

on a neighbouring eminence. But before this movement could be executed, his horse were broken, and his whole force lay at the mercy of the enemy. The standard-bearer with several officers and most of the natives were slain; the mercenaries made a show of resistance, and obtained quarter; and Montrose, whose horse had been killed under him, accompanied by Kinnoul, wandered on foot, without a guide, up the valley of the Kyle, and over the mountains of Sutherland. Kinnoul, unable to bear the hunger and fatigue, was left and perished; Montrose, on the third day,[c] obtained refreshment at the hut of a shepherd; and, being afterwards discovered, claimed the protection of Macleod of Assynt, who had formerly served under him in the royal army. But the

[Sidenote a: A.D. 1650. April 25.]

[Sidenote b: A.D. 1650. April 27.]

[Sidenote c: A.D. 1650. April 30.]

fidelity of the laird was not proof against temptation; he sold[a] the king's lieutenant for four hundred bolls of meal; and Argyle and his associates, almost frantic with joy, passed an act to regulate the ignominious treatment to which their captive should be subjected, the form of the judgment to be pronounced, and the manner of his subsequent execution. When Montrose reached[b] the capital, he found the magistrates in their robes waiting to receive him. First the royal officers, twenty-three in number, were ranged in two files, and ordered to walk forward manacled and bareheaded; next came the hangman with his bonnet on his head, dressed in the livery of his office, and mounted on his horse that drew a vehicle of new form devised for the occasion; and then on this vehicle was seen Montrose himself, seated on a lofty form, and pinioned, and uncovered. The procession paraded slowly through the city from the Watergate to the common jail, whilst the streets resounded with shouts of triumph, and with every expression of hatred which religious or political fanaticism could inspire.[1]

From his enemies Montrose could expect no mercy; but his death was hastened, that the king might not have time to intercede in his favour. The following day, a Sunday, was indeed given to prayer; but on the next the work of vengeance was resumed, and the captive was summoned[c] before the parliament. His features, pale and haggard, showed the fatigue and privations which he had endured; but his dress was

[Footnote 1: Carte's Letters, i. 345. Balfour, iii. 432, 439; iv. 8-13. Whitelock, 435, 452, 453, 454, 455. Clarendon, iii. 348-353. Laing, iii. 443. The neighbouring clans ravaged the lands of Assynt to revenge the fate of Montrose, and the parliament granted in return to Macleod twenty thousand pounds Scots out of the fines to be levied on the royalists in Caithness and Orkney.—Balf. iv. 52, 56.]

[Sidenote a: A.D. 1650. May 17.]

[Sidenote b: A.D. 1650. May 18.]

[Sidenote c: A.D. 1650. May 20.]

splendid, his mien fearless, his language calm, firm, and dignified. To the chancellor, who, in a tone of bitterness and reprobation, enumerated the offences with which he was charged, he replied, that since the king had condescended to treat with them as estates, it became not a subject to dispute their authority; but that the apostasy and rebellion with which they reproached him were, in his estimation, acts of duty. Whatever he had done, either in the last or present reign, had been done with the sanction of the sovereign. If he had formerly taken up arms, it had been to divert his countrymen from the impious war which they waged against the royal authority in England; if now, his object was to accelerate the existing negotiation between them and their new king. As a Christian, he had always supported that cause which his conscience approved; as a subject, he always fought in support of his prince; and as a neighbour, he had frequently

preserved the lives of those who had forfeited them against him in battle. The chancellor, in return, declared him a murderer of his fellow-subjects, an enemy to the covenant and the peace of the kingdom, and an agitator, whose ambition had helped to destroy the father, and was now employed for the destruction of the son. Judgment, which had been passed in parliament some days before, was then pronounced, by the dempster, that James Graham should be hanged for the space of three hours on a gibbet thirty feet high, that his head should be fixed on a spike in Edinburgh, his arms on the gates of Perth or Stirling, his legs on those of Glasgow and Aberdeen, and his body be interred by the hangman on the burrowmuir, unless he were previously released from excommunication by the kirk. During this trying scene, his enemies eagerly watched his demeanour. Twice, if we may believe report, he was heard to sigh, and his eyes occasionally wandered along the cornice of the hall. But he stood before them cool and collected; no symptom of perturbation marked his countenance, no expression of complaint or impatience escaped his lips; he showed himself superior to insult, and unscarred at the menaces of death.

The same high tone of feeling supported the unfortunate victim to the last gasp. When the ministers admonished[a] him that his punishment in this world was but a shadow of that which awaited him in the next, he indignantly replied, that he gloried in his fate, and only lamented that he had not limbs sufficient to furnish every city in Christendom with proofs of his loyalty. On the scaffold, he maintained the uprightness of his conduct, praised the character of the present king, and appealed from the censures of the kirk to the justice of Heaven. As a last disgrace, the executioner hung round his neck his late declaration, with the history of his former exploits. He smiled at the malice of his enemies, and said that they had given him a more brilliant decoration than the garter with which he had been honoured by his sovereign. Montrose, by his death, won more proselytes to the royal

cause than he had ever made by his victories. He was in his thirty-eighth year.[1]

[Footnote 1: Balfour, iv. 13, 15, 16, 19-22. Wishart, 389. Clar. iii. 353-356. Whitelock, 456. Colonel Hurry, whom the reader has seen successively serving under the king and the parliament in the civil war; Spotiswood, the grandson of the archbishop of that name; Sir W. Hay, who had been forefaulted as a Catholic in 1647; Sibbald, the confidential envoy of Montrose, and several others, were beheaded. Of the common soldiers, some were given to different lords to be fishermen or miners, and the rest enrolled in regiments in the French service.—Balfour, iv. 18, 27, 28, 32, 33, 44.]

[Sidenote a: A.D. 1650. May 21.]

Long before this the commissioners from both parties had met at Breda; and, on the very day of the opening of the conferences, Charles had despatched[a] an order to Montrose to proceed according to his instructions, and to bear in mind that the success of the negotiation at Breda depended on the success of his arms in Scotland. A month afterwards[b] he commended in strong terms the loyalty of Lord Napier, and urged him to repair without delay to the aid of his lieutenant. It is impossible after this to doubt of his approbation of the attempt; but, when the news arrived of the action at Corbiesdale, his eyes were opened to the danger which threatened him; the estates, in the insolence of victory, might pass an act to exclude him at once from the succession to the Scottish throne. Acting, therefore, after the unworthy precedent set by his father respecting the powers given to Glamorgan, he wrote[c] to the parliament, protesting that the invasion made by Montrose had been expressly forbidden by him, and begging that they "would do him the justice to believe that he had not been accessory to it in the least degree;" in confirmation of which the secretary at the same time

assured Argyle that the king felt no regret for the defeat of a man who had presumed to draw the sword "without and contrary to the royal command." These letters arrived[d] too late

[Footnote 1: Carte, iv. 626.]

[Footnote 2: Napier's Montrose, ii. 528. Yet on May 5th the king signed an article, stipulating that Montrose should lay down his arms, receiving a full indemnity for all that was past.—Carte, iv. 630. This article reached Edinburgh before the execution of Montrose, and was kept secret. I see not, however, what benefit he could claim from it. He had not laid down arms in obedience to it; for he had been defeated a week before it was signed.]

[Footnote 3: Balfour, iv. 24, 25. Yet on May 15th Charles wrote to Montrose to act according to the article in the last note.—Ibid.]

[Sidenote a: A.D. 1650. March 15.]

[Sidenote b: A.D. 1650. April 15.]

[Sidenote c: A.D. 1650. May 12.]

[Sidenote d: A.D. 1650. May 25.]

to be of injury to the unfortunate victim, whose limbs were already bleaching on the gates of the principal towns in Scotland; but the falsehood so confidently put forth must cover with infamy the prince who could thus, to screen himself from the anger of his enemies, calumniate the most devoted of his followers, one who had so often perilled, and at length forfeited, his life in defence of the throne.

Charles had now no resource but to submit with the best grace to the demands of the Scots. He signed the treaty,[a] binding himself to take the Scottish covenant and the solemn league and covenant; to disavow and declare null the peace with the Irish, and never to permit the free exercise of

the Catholic religion in Ireland, or any other part of his dominions; to acknowledge the authority of all parliaments held since the commencement of the late war; and to govern, in civil matters, by advice of the parliament, in religious, by that of the kirk.[1] These preliminaries being settled,[b] he embarked on board a small squadron furnished by the prince of Orange, and, after a perilous navigation of three weeks, during which he had to contend with the stormy weather, and to elude the pursuit of the parliamentary cruisers, he arrived in safety in the Frith of Cromartie.[c] The king was received with the honours due to his dignity; a court with proper officers was prepared for him at Falkland, and the sum of one hundred thousand pounds Scots, or nine thousand pounds English, was voted for the monthly expense of his household. But the parliament had previously[d] passed an act banishing from Scotland several of the royal favourites by name, and excluding the "engagers" from the verge of the court, and all employment

[Footnote 1: Thurloe, i. 147.]

[Sidenote a: A.D. 1650. May 13.]

[Sidenote b: A.D. 1650. June 2.]

[Sidenote c: A.D. 1650. June 23.]

[Sidenote d: A.D. 1650. June 4.]

in the state. After repeated applications, the duke of Buckingham, the Lord Wilmot, and a few English servants, who took the covenant, obtained permission to remain with the king; many of the Scottish exiles embraced the opportunity to withdraw from notice into the western isles, or the more distant parts of the country.[1]

It was the negotiation between the Scots and their nominal king that arrested Cromwell in the career of victory, and called him away from the completion of his conquest. The rulers of the commonwealth were aware of

the intimate connection which the solemn league and covenant had produced between the English Presbyterians and the kirk of Scotland, whence they naturally inferred that, if the pretender to the English were once seated on the Scottish throne, their own power would be placed on a very precarious footing. From the first they had watched with jealousy the unfriendly proceedings of the Scottish parliament. Advice and persuasion had been tried, and had failed. There remained the resource of war; and war, it was hoped, would either compel the Scots to abandon the claims of Charles, or reduce Scotland to a province of the commonwealth. Fairfax, indeed (he was supposed to be under the influence of a Presbyterian wife and of the Presbyterian ministers), disapproved of the design;^[2] but his disapprobation, though lamented in public, was privately hailed as a benefit by those who were acquainted with the aspiring designs of Cromwell, and built on his elevation the flattering hope of their own greatness. By their means, as soon as the

[Footnote 1: Balfour, iv. 41, 60, 61, 64, 65, 67, 73, 77, 78. Whitelock, 462. Clarendon, iii. 346, 356, 357.]

[Footnote 2: Whitelock, 438.]

lord lieutenant had put his troops into winter quarters, an order was obtained from parliament for him to attend his duty in the house; but he resumed his military operations,^[a] and two months were suffered to elapse before he noticed the command of the supreme authority, and condescended to make an unmeaning apology for his disobedience.^[b] On the renewal of the order,^[c] he left the command in Ireland to Ireton, and, returning to England, appeared in his seat.^[d] He was received with acclamations; the palace of St. James's was allotted for his residence, and a valuable grant of lands was voted^[e] as a reward for his eminent services. In a few days followed the appointment of Fairfax to the office of commander-in-chief,^[f]

and of Cromwell to that of lieutenant-general of the army designed to be employed in Scotland. Each signified his "readiness to observe the orders of the house;" but Fairfax at the same time revealed his secret and conscientious objections to the council of state. A deputation of five members, Cromwell, Lambert, Harrison, Whitelock, and St. John, waited on him at his house;[g] the conference was opened by a solemn invocation of the Holy Spirit, and the three officers prayed in succession with the most edifying fervour. Then Fairfax said that, to his mind, the invasion of Scotland appeared a violation of the solemn league and covenant which he had sworn to observe. It was replied that the Scots themselves had broken the league by the invasion of England under the duke of Hamilton; and that it was always lawful to prevent the hostile designs of another power. But he answered that the Scottish parliament had given satisfaction by the punishment of the guilty; that the probability of hostile designs ought indeed to lead to measures of precaution, but that certainty was

[Sidenote a: A.D. 1650. Jan. 8.]

[Sidenote b: A.D. 1650. April 2.]

[Sidenote c: A.D. 1650. May 30.]

[Sidenote d: A.D. 1650. June 4.]

[Sidenote e: A.D. 1650. June 12.]

[Sidenote f: A.D. 1650. June 14.]

[Sidenote g: A.D. 1650. June 24.]

required to justify actual invasion. No impression was made on his mind; and, though Cromwell and his brother officers earnestly solicited him to comply, "there was cause enough," says one of the deputation, "to believe that they did not overmuch desire it." [1] The next day[a] another attempt ended with as little success; the lord general alleging the plea of infirm health and misboding conscience, sent back the last commission, and at the request of the house, the former also; and the chief command of all the

forces raised, or to be raised by order of parliament, was conferred on Oliver Cromwell.[b] Thus this adventurer obtained at the same time the praise of moderation and the object of his ambition. Immediately he left the capital for Scotland;[c] and Fairfax retired to his estate in Yorkshire, where he lived with the privacy of a country gentleman, till he once more drew the sword, not in support of the commonwealth, but in favour of the king.[2]

To a spectator who considered the preparations of the two kingdoms, there could be little doubt of the result. Cromwell passed the Tweed[d] at the head of sixteen thousand men, most of them veterans, all habituated to military discipline, before the raw levies of the Scots had quitted their respective shires. By order of the Scottish parliament, the army had been fixed at thirty thousand men; the nominal command had been given to the earl of Leven, the real, on account of the age and infirmities of that officer, to his relative, David Leslie, and instructions had been

[Footnote 1: Whitelock, 460, 462. Ludlow says, "he acted his part so to the life, that I really thought him in earnest; but the consequence made it sufficiently evident that he had no such intention" (i. 272). Hutchinson, who was present on one of these occasions, thought him sincere.—Hutchinson, 315.]

[Footnote 2: Whitelock, 438, 450, 457. Journals, Jan. 8, Feb. 25, March 30, April 15, May 2, 7, 30, June 4, 12, 14, 25, 26.]

[Sidenote a: A.D. 1650. June 25.]

[Sidenote b: A.D. 1650. June 26.]

[Sidenote c: A.D. 1650. June 29.]

[Sidenote d: A.D. 1650. July 16.]

issued that the country between Berwick and the capital should be laid waste, that the cattle and provisions should be removed or destroyed, and that the inhabitants should abandon their homes under the penalties of infamy, confiscation, and death. In aid of this measure, reports were industriously circulated of the cruelties exercised by Cromwell in Ireland; that, wherever he came, he gave orders to put all the males between sixteen and sixty to death, to deprive all the boys between six and sixteen of their right hands, and to bore the breasts of the females with red-hot irons. The English were surprised at the silence and desolation which reigned around them; for the only human beings whom they met on their march through this wilderness, were a few old women and children who on their knees solicited mercy. But Cromwell conducted them by the sea coast; the fleet daily supplied them with provisions, and their good conduct gradually dispelled the apprehensions of the natives.[1] They found[a] the Scottish levies posted behind a deep intrenchment, running from Edinburgh to Leith, fortified with numerous batteries, and flanked by the cannon of the castle at one extremity, and of the harbour at the other. Cromwell employed all his art to provoke Leslie to avoid an engagement. It was in vain that for more than a month the former marched and countermarched; that he threatened general, and made partial, attacks. Leslie remained fixed within his lines; or, if he occasionally moved,

[Footnote 1: Whitelock, 465, 466, 468. Perfect Diurnal, No. 324. See the three declarations: that of the parliament on the marching of the army; of the army itself, addressed "to all that are saints and partakers of the faith of God's elect in Scotland;" and, the third, from Cromwell, dated at Berwick, in the Parliamentary History, xix. 276, 298, 310; King's Pamphlets, 473.]

[Sidenote a: A.D. 1650. July 28.]

watched the motions of the enemy from the nearest mountains, or interposed a river or morass between the two armies. The English began to be exhausted with fatigue; sickness thinned their ranks; the arrival of provisions depended on the winds and waves; and Cromwell was taught to fear, not the valour of the enemy, but the prudence of their general.[1]

The reader will already have observed how much at this period the exercises of religion were mixed up with the concerns of state and even the operations of war. Both parties equally believed that the result of the expedition depended on the will of the Almighty, and that it was, therefore, their duty to propitiate his anger by fasting and humiliation. In the English army the officers prayed and preached: they "sanctified the camp," and exhorted the men to unity of mind and godliness of life. Among the Scots this duty was discharged by the ministers; and so fervent was their piety, so merciless their zeal, that, in addition to their prayers, they occasionally compelled the young king to listen to six long sermons on the same day, during which he assumed an air of gravity, and displayed feelings of devotion, which ill-accorded with his real disposition. But the English had no national crime to deplore; by punishing the late king, *they* had atoned for the evils of the civil war; the Scots, on the contrary, had adopted his son without any real proof of his conversion, and therefore feared that they might draw down on the country the punishment due to his sins and those of his family. It happened[a] that Charles, by the advice of the earl of Eglington, presumed to visit the army on the Links of

[Footnote 1: Balfour, iv. 87, 88, 90. Whitelock, 467, 468.]

[Sidenote a: A.D. 1650. July 29.]

Leith. He was received with shouts of enthusiasm by the soldiers, who, on their knees, pledged the health of their young sovereign; but the committee of the kirk complained[a] that his presence led to ebriety and

profaneness, and he received a request,[b] equivalent to a command, to quit the camp. The next day a declaration was made, that the company of malignants, engagers, and enemies to the covenant, could not fail of multiplying the judgments of God upon the land; an inquiry was instituted into the characters of numerous individuals; and eighty officers, with many of their men, were cashiered,[c] that they might not contaminate by their presence the army of the saints.[1] Still it was for Charles Stuart, the chief of the malignants, that they were to fight, and therefore from him, to appease the anger of the Almighty, an expiatory declaration was required[d] in the name of the parliament and the kirk.

In this instrument he was called upon to lament, in the language of penitence and self-abasement, his father's opposition to the work of God and to the solemn league and covenant, which had caused the blood of the Lord's people to be shed, and the idolatry of his mother, the toleration of which in the king's house could not fail to be a high provocation against him who is a jealous God, visiting the sins of the fathers upon the children; to declare that he had subscribed the covenant with sincerity of heart, and would have no friends nor enemies but those who were friends or enemies to it; to acknowledge the sinfulness of the treaty with the bloody rebels in Ireland, which he was made to pronounce null and void; to detest popery and prelacy, idolatry and heresy, schism

[Footnote 1: Balfour, iv. 86, 89.]

[Sidenote a: A.D. 1650. August 2.]

[Sidenote b: A.D. 1650. August 3.]

[Sidenote c: A.D. 1650. August 5.]

[Sidenote d: A.D. 1650. August 9.]

and profaneness; and to promise that he would accord to a free parliament in England the propositions of the two kingdoms, and reform the

church of England according to the plan devised by the assembly of divines at Westminster.[1]

When first this declaration, so humbling to his pride, so offensive to his feelings, was presented[a] to Charles for his signature, he returned[b] an indignant refusal; a little reflection induced him to solicit the advice of the council, and the opinion of the principal ministers. But the godly refused to wait; the two committees of the kirk and kingdom protested[c] that they disowned the quarrel and interest of every malignant party, disclaimed the guilt of the king and his house, and would never prosecute his interest without his acknowledgment of the sins of his family and of his former ways, and his promise of giving satisfaction to God's people in both kingdoms. This protestation was printed and furtively sent to the English camp; the officers of the army presented[d] to the committee of estates a remonstrance and supplication expressive of their adhesion; and the ministers maintained from their pulpits that the king was the root of malignancy, and a hypocrite, who had taken the covenant without an intention of keeping it. Charles, yielding to his own fears and the advice of his friends; at the end of three days subscribed,[e] with tears, the obnoxious instrument. If it were folly in the Scots to propose to the young prince a declaration so repugnant to his feelings and opinions, it was greater folly still to believe that professions of repentance extorted

[Footnote 1: Balfour, iv. 92. Whitelock, 469. "A declaration by the king's majesty to his subjects of the kingdoms of Scotland, England, and Ireland." Printed 1650.]

[Sidenote a: A.D. 1650. August 10.]

[Sidenote b: A.D. 1650. August 13.]

[Sidenote c: A.D. 1650. August 14.]

[Sidenote d: A.D. 1650. August 15.]

[Sidenote e: A.D. 1650. August 16.]

with so much violence could be sincere or satisfactory; yet his subscription was received with expressions of joy and gratitude; both the army and the city observed a solemn fast for the sins of the two kings, the father and the son; and the ministers, now that the anger of Heaven had been appeased, assured their hearers of an easy victory over a "blaspheming general and a sectarian army."^[1]

If their predictions were not verified, the fault was undoubtedly their own. The caution and vigilance of Leslie had triumphed over the skill and activity of "the blasphemer." Cromwell saw no alternative but victory or retreat: of the first he had no doubt, if he could come in contact with the enemy; the second was a perilous attempt, when the passes before him were pre-occupied, and a more numerous force was hanging on his rear. At Musselburg, having sent the sick on board the fleet (they suffered both from the "disease of the country," and from fevers caused by exposure on the Pentland hills), he ordered^[a] the army to march the next morning to Haddington, and thence to Dunbar; and the same night a meteor, which the imagination of the beholders likened to a sword of fire, was seen to pass over Edinburgh in a south-easterly direction, an evident presages in the opinion of the Scots, that the flames of war would be transferred

[Footnote 1: Balfour, iv. 91, 92, 95. The English parliament in their answer exclaim: "What a blessed and hopeful change is wrought in a moment in this young king! How hearty is he become to the cause of God and the work of reformation. How readily doth he swallow down these bitter pills, which are prepared for and urged upon him, as necessary to effect that desperate care under which his affairs lie! But who sees not the crass hypocrisy of this whole transaction, and the sandy and rotten

foundation of all the resolutions flowing hereupon?"—See Parliamentary History, xix. 359-386.]

[Sidenote a: A.D. 1650. August 30.]

to the remotest extremity of England.[1] At Dunbar, Cromwell posted his men in the vicinity of Broxmouth House; Leslie with the Scots moving along the heights of Lammermuir, occupied[a] a position on the Doon Hill, about two miles to the south of the invaders; and the advanced posts of the armies were separated only by a ravine of the depth and breadth of about thirty feet. Cromwell was not ignorant of the danger of his situation; he had even thought of putting the infantry on board the fleet, and of attempting to escape with the cavalry by the only outlet, the high road to Berwick; but the next moment he condemned the thought as "a weakness of the flesh, a distrust in the power of the Almighty;" and ordered the army "to seek the Lord, who would assuredly find a way of deliverance for his faithful servants." On the other side the committees of the kirk and estates exulted in the prospect of executing the vengeance of God upon "the sectaries;" and afraid that the enemy should escape, compelled their general to depart from his usual caution, and to make preparation for battle. Cromwell, with his officers, had spent part of the day in calling upon the Lord; while he prayed, the enthusiast felt an enlargement of the heart, a buoyancy of spirit, which he took for an infallible presage of victory; and, beholding through his glass the motion in the Scottish camp, he exclaimed, "They are coming down; the Lord hath delivered them into our hands." [2] During the

[Footnote 1: Balfour, iv. 94.]

[Footnote 2: Sagredo, the Venetian ambassador, in his relation to the senate, says that Cromwell pretended to have been assured of the victory by a supernatural voice. *Prima che venisse alla battaglia, diede cuore ai soldati*

con assicurargli la vittoria predettagli da Dio, con una voce, che lo aveva a mezza notte riscosso dal sonno. MS. copy in my possession.]

[Sidenote a: A.D. 1650. August 31.]

night, he advanced the army to the edge of the ravine; and at an early hour in the morning[a] the Scots attempted to seize the pass on the road from Dunbar to Berwick. After a sharp contest, the Scottish lancers, aided by their artillery, charged down the hill, drove the brigade of English cavalry from its position, and broke through the infantry, which had advanced to the support of the horse. At that moment the sun made its appearance above the horizon; and Cromwell, turning to his own regiment of foot, exclaimed, "Let the Lord arise, and scatter his enemies." They instantly moved forward with their pikes levelled; the horse rallied; and the enemy's lancers hesitated, broke, and fled. At that moment the mist dispersed, and the first spectacle which struck the eyes of the Scots, was the route of their cavalry. A sudden panic instantly spread from the right to the left of their line; at the approach of the English they threw down their arms and ran. Cromwell's regiment halted to sing the 117th Psalm; but the pursuit was continued for more than eight miles; the dead bodies of three thousand Scots strewed their native soil; and ten thousand prisoners, with the artillery, ammunition, and baggage, became the reward of the conquerors. [1]

Cromwell now thought no more of his retreat. He marched back to the capital; the hope of resistance was abandoned; Edinburgh and Leith opened their gates, and the whole country to the Forth submitted

[Footnote 1: Carte's Letters, i. 381. Whitelock, 470, 471. Ludlow, i. 283. Balfour, iv. 97. Several proceedings, No. 50. Parl. Hist. xix. 343-352, 478. Cromwelliana, 89. Of the prisoners, five thousand one hundred, something more than one-half, being wounded, were dismissed to their homes, the

other half were driven "like turkies" into England. Of these, one thousand six hundred died of a pestilential disease, and five hundred were actually sick on Oct 31.—Whitelock, 471. Old Parl. Hist. xix. 417.]

[Sidenote a: A.D. 1650. Sept. 3.]

to the will of the English general. Still the presumption of the six ministers who formed the committee of the kirk was not humbled. Though their predictions had been falsified, they were still the depositaries of the secrets of the Deity; and, in a "Short Declaration and Warning," they announced[a] to their countrymen the thirteen causes of this national calamity, the reasons why "God had veiled for a time his face from the sons of Jacob." It was by the general profaneness of the land, by the manifest provocations of the king and the king's house, by the crooked and precipitant ways of statesmen in the treaty of Breda, by the toleration of malignants in the king's household, by suffering his guard to join in the battle without a previous purgation, by the diffidence of some officers who refused to profit by advantages furnished to them by God, by the presumption of others who promised victory to themselves without eyeing of God, by the rapacity and oppression exercised by the soldiery, and by the carnal self-seeking of men in power, that God had been provoked to visit his people with so direful and yet so merited a chastisement.[1]

To the young king the defeat at Dunbar was a subject of real and ill-dissembled joy. Hitherto he had been a mere puppet in the hands of Argyle and his party; now their power was broken, and it was not impossible for him to gain the ascendancy. He entered into a negotiation with Murray, Huntley, Athol, and the numerous royalists in the Highlands; but the secret, without the particulars, was betrayed to Argyle,[b] probably by Buckingham, who disapproved of the project; and all the cavaliers but three received an order to leave the court in twenty-four hours—the

[Footnote 1: Balfour, iv. 98-107.]

[Sidenote a: A.D. 1650. Sept. 12.]

[Sidenote b: A.D. 1650. Sept. 27.]

kingdom in twenty days. The vigilance of the guards prevented the execution of the plan which had been laid; but one afternoon, under pretence of hawking, Charles escaped[a] from Perth, and riding forty-two miles, passed the night in a miserable hovel, called Clova, la the braes of Angus. At break of day he was overtaken by Colonel Montgomery, who advised him[b] to return, while the Viscount Dudhope urged him to proceed to the mountains, where he would be joined by seven thousand armed men. Charles wavered; but Montgomery directed his attention to two regiments of horse that waited at a distance to intercept his progress, and the royal fugitive consented[c] to return to his former residence in Perth.[1]

The Start (so this adventure was called) proved, however, a warning to the committee of estates. They prudently admitted the apology of the king, who attributed[d] his flight to information that he was that day to have been delivered to Cromwell; they allowed[e] him, for the first time, to preside at their deliberations; and they employed his authority to pacify the royalists in the Highlands, who had taken arms[f] in his name under Huntley, Athol, Seaforth, and Middleton. These, after a long negotiation, accepted an act of indemnity, and disbanded their forces.[2]

[Footnote 1: Balfour, iv. 109, 113, 114. Baillie, ii. 356. Whitelock, 476. *Miscellanea Aulica*, 152. It seems probable from some letters published in the correspondence of Mr. Secretary Nicholas, that Charles had planned his escape from the "villany and hypocrisy" of the party, as early as the day of the battle of Dunbar.—Evelyn's *Mem.* v. 181-186, octavo.]

[Footnote 2: Balfour, iv. 118, 123, 129-135, 160. Baillie, ii. 356. A minister, James Guthrie, in defiance of the committee of estates, excommunicated Middleton; and such was the power of the kirk, that even when the king's party was superior, Middleton was compelled to do penance in sackcloth in the church of Dundee, before he could obtain absolution preparatory to his taking a command in the army.—Baillie, 357. Balfour, 240.]

[Sidenote a: A.D. 1650. Oct. 4.]

[Sidenote b: A.D. 1650. Oct. 5.]

[Sidenote c: A.D. 1650. Oct. 6.]

[Sidenote d: A.D. 1650. Oct. 10.]

[Sidenote e: A.D. 1650. Oct. 12.]

[Sidenote f: A.D. 1650. Nov. 4.]

In the mean while Cromwell in his quarters at Edinburgh laboured to unite the character of the saint with that of the conqueror; and, surrounded as he was with the splendour of victory, to surprise the world by a display of modesty and self-abasement. To his friends and flatterers, who fed his vanity by warning him to be on his guard against its suggestions, he replied, that he "had been a dry bone, and was still an unprofitable servant," a mere instrument in the hands of Almighty power; if God had risen in his wrath, if he had bared his arm and avenged his cause, to him, and to him alone, belonged the glory.[1] Assuming the office of a missionary, he exhorted his officers in daily sermons to love one another, to repent from dead works, and to pray and mourn for the blindness of their Scottish adversaries; and, pretending to avail himself of his present leisure, he provoked a theological controversy with the ministers in the castle of Edinburgh, reproaching them with pride in arrogating to themselves the right of expounding the true sense of the solemn league and covenant; vindicating the claim of laymen

to preach the gospel and exhibit their spiritual gifts for the edification of their brethren; and maintaining that, after the solemn fasts observed by both nations, after their many and earnest appeals to the God of armies, the victory gained at Dunbar must be admitted an evident manifestation of the divine will in favour of the English commonwealth. Finding that he made no proselytes of his opponents, he published his arguments for the instruction of the Scottish people; but his zeal did not

[Footnote 1: See a number of letters in Milton's State Papers, 18-35.]

escape suspicion; and the more discerning believed that, under the cover of a religious controversy, he was in reality tampering with the fidelity of the governor.[1]

In a short time his attention was withdrawn to a more important controversy, which ultimately spread the flames of religious discord throughout the nation. There had all along existed a number of Scots who approved of the execution of the late king, and condemned even the nominal authority given to his son. Of these men, formidable by their talents, still more formidable by their fanaticism, the leaders were Wariston, the clerk register in the parliament, and Gillespie and Guthrie, two ministers in the kirk. In parliament the party, though too weak to control, was sufficiently strong to embarrass, and occasionally to influence, the proceedings; in the kirk it formed indeed the minority, but a minority too bold and too numerous to be rashly irritated or incautiously despised.[2] After the defeat at Dunbar, permission was cheerfully granted by the committee of estates for a levy of troops in the associated counties of Renfrew, Air, Galloway, Wigton, and Dumfries, that part of Scotland where fanaticism had long fermented, and the most rigid notions prevailed. The crusade was preached by Gillespie; his efforts were successfully seconded by the other ministers, and in a short time four regiments of horse,

amounting almost to five thousand men, were raised under Strachan, Kerr, and two other colonels. The real design now began to unfold itself. First, the officers refused to serve under Leslie; and the parliament consented to exempt them from his authority. Next, they hinted doubts of the

[Footnote 1: Thurloe, i. 158-163.]

[Footnote 2: Baillie, ii. 353.]

lawfulness of the war in which they were engaged; and Cromwell, in whose army Strachan had fought at Preston, immediately[a] opened a correspondence with him.[1] Then came the accident of "the start," which embittered and emboldened the zeal of the fanatics; and in a long remonstrance, subscribed by ministers and elders, by officers and soldiers, and presented[b] in their name to Charles and the committee of estates, they pronounced[c] the treaty with the king unlawful and sinful, disowned his interest in the quarrel with the enemy, and charged the leading men in the nation with the guilt of the war, which they had provoked by their intention of invading England. The intemperate tone and disloyal tendency of this paper, whilst it provoked irritation and alarm at Perth, induced Cromwell to advance with his army from Edinburgh to Glasgow, and Hamilton. But the western forces (so they were called) withdrew to Dumfries, where a meeting was held with Wariston, and a new draught of the remonstrance, in language still more energetic and vituperative, was adopted. On the return[d] of Cromwell to the capital, his negotiation with the officers was resumed, while Argyle and his friends laboured on the opposite side to mollify the obstinacy of the fanatics. But reasoning was found useless; the parliament condemned[e] the remonstrance as a scandalous and seditious libel; and, since Strachan had resigned[f] his commission, ordered Montgomery with three new regiments to take the command of the whole

force. Kerr, however, before his arrival, had led[g] the western levy to attack Lambert in his

[Footnote 1: Baillie, ii. 350-352. Strachan was willing to give assurance not to molest England in the king's quarrel. Cromwell insisted that Charles should be banished by act of parliament, or imprisoned for life.—Ib. 352.]

[Sidenote a: A.D. 1650. Oct. 4.]

[Sidenote b: A.D. 1650. Oct. 17.]

[Sidenote c: A.D. 1650. Oct. 22.]

[Sidenote d: A.D. 1650. Oct. 30.]

[Sidenote e: A.D. 1650. Nov. 25.]

[Sidenote f: A.D. 1650. Nov. 28.]

[Sidenote g: A.D. 1650. Dec. 1.]

quarters at Hamilton; he was taken prisoner, designedly if we may believe report, and his whole army was dispersed. Soon afterwards Strachan, with sixty troopers, passed over to Lambert, and the associated counties, left without defence, submitted to the enemy. Still the framers and advocates of the remonstrance, though they knew that it had been condemned by the state and the kirk, though they had no longer an army to draw the sword in its support, adhered pertinaciously to its principles; the unity of the Scottish church was rent in twain, and the separation was afterwards widened by a resolution of the assembly,[a] that in such a crisis all Scotsmen might be employed in the service of the country.[1] Even their common misfortunes failed to reconcile these exasperated spirits; and after the subjugation of their country, and under the yoke of civil servitude, the two parties still continued to persecute each other with all the obstinacy and bitterness of religious warfare. The royalists obtained the name of public resolutioners; their opponents, of protestors or remonstrants.[2]

Though it cost the young prince many an internal struggle, yet experience had taught him that he must soothe the religious prejudices of the kirk, if he hoped ever to acquire the preponderance in the state. On the first day of the new year,[b] he rode in procession to the church of Scone, where his ancestors had been accustomed to receive the Scottish crown: there on his knees, with his arm upraised, he swore by the Eternal

[Footnote 1: With the exception of persons "excommunicated, notoriously profane, or flagitious, and professed enemies and opposers of the covenant and cause of God."—Wodrow, Introd. iii.]

[Footnote 2: Baillie, ii. 348, 354-364. Balfour, iv. 136, 141-160, 173-178, 187, 189. Whitelock, 475, 476, 477, 484. Sydney Papers, ii. 679. Burnet's Hamiltons, 425.]

[Sidenote a: A.D. 1650. Dec. 14.]

[Sidenote b: A.D. 1651. Jan. 1.]

and Almighty God to observe the two covenants; to establish the presbyterial government in Scotland and in his family; to give his assent to acts for establishing it in his other dominions; to rule according to the law of God and the lovable laws of the land; to abolish and withstand all false religions; and to root out all heretics and enemies of the true worship of God, convicted by the true church of God. Argyle then placed the crown upon his head, and seated him on the throne, and both nobility and people swore allegiance to him "according to the national covenant, and the solemn league and covenant." At the commencement, during the ceremony, and after the conclusion, Douglas, the minister, addressed the king, reminding him that he was king by compact with his people; that his authority was limited by the law of God, the laws of the people, and the association of the estates with him in the government; that, though every breach did not dissolve the compact, yet every abuse of power to the subversion of

religion, law, or liberty, justified opposition in the people; that it was for him, by his observance of the covenant, to silence those who doubted his sincerity; that the evils which had afflicted his family arose out of the apostasy of his father and grandfather; and that, if he imitated them, he would find that the controversy between him and God was not ended, but would be productive of additional calamities. The reader may imagine what were the feelings of Charles while he listened to the admonitions of the preacher, and when he swore to perform conditions which his soul abhorred, and which he knew that on the first opportunity he should break or elude.[1] But he passed with credit through the

[Footnote 1: See "The forme and order of the Coronation of Charles II., as it was acted and done at Scoune, the first day of January, 1651." Aberdene, 1651.]

ceremony; the coronation exalted him in the eyes of the people; and each day brought to him fresh accessions of influence and authority. The kirk delivered Strachan as a traitor and apostate to the devil; and the parliament forefaulted his associates, of whom several hastened to make their peace by a solemn recantation. Deprived of their support, the Campbells gradually yielded to the superior influence of the Hamiltons. Vexation, indeed, urged them to reproach the king with inconstancy and ingratitude; but Charles, while he employed every art to lull the jealousy of Argyle, steadily pursued his purpose; his friends, by submitting to the humbling ceremony of public penance, satisfied the severity of the kirk; and by the repeal[a] of the act of classes, they were released from all previous forfeitures and disqualifications. In April the king, with Leslie and Middleton as his lieutenants, took the command of the army, which had been raised by new levies to twenty thousand men, and, having fortified the passages of the Forth, awaited on the left bank the motions of the enemy.[1]

In the mean while Cromwell had obtained[b] possession of the castle of Edinburgh through the perfidy or the timidity of the governor. Tantallon had been taken by storm, and Dumbarton had been attempted, but its defences were too strong to be carried by force,

[Footnote 1: Carte, Letters, ii. 26, 27. Balfour, iv. 240, 268, 281, 301. It appears from this writer that a great number of the colonels of regiments were royalists or engagers (p. 210, 213). The six brigades of horse seem to have been divided equally between old Covenanters and royalists. The seventh was not given to any general, but would be commanded by Hamilton, as the eldest colonel.—Ib. 299-301. It is therefore plain that with the king for commander-in-chief the royalists had the complete ascendancy.]

[Sidenote a: A.D. 1651. May 21.]

[Sidenote b: A.D. 1650. Dec. 19.]

and its garrison too honest to be corrupted with money.[1] In February the lord general was afflicted[a] with an ague, so ruinous to his health, and so obstinate in its duration, that in May he obtained permission to return to England, with the power of disposing, according to his judgment, of the chief command.[2] A rapid and unexpected improvement[b] induced him to remain; and in July he marched with his army towards Stirling. The Scots faced him in their intrenched camp at Torwood; he turned aside to Glasgow; they took[c] a position at Kilsyth; he marched[d] back to Falkirk; and they resumed their position at Torwood. While by these movements the English general occupied the attention of his opponents, a fleet of boats had been silently prepared and brought to the Queensferry; a body of men crossed the frith, and fortified a hill near Inverkeithing; and Lambert immediately followed[e] with a more numerous division. The Scots despatched Holburn with orders to drive the enemy into the sea; he was himself charged[f] by

Lambert with a superior force, and the flight of his men gave to the English possession of the fertile and populous county of Fife. Cromwell hastened to transport his army to the left bank of the river, and advance on the rear of the Scots. They retired: Perth, the seat of government, was besieged; and in a few days[g] the colours of the commonwealth floated on its walls.[3]

[Footnote 1: Balfour, iv. 229, 249, 296. Baillie, ii. 368.]

[Footnote 2: The council had sent two physicians to attend him. His answer to Bradshaw of March 24th runs in his usual style. "Indeed, my lord, your service needs not me. I am a poor creature, and have been a dry bone, and am still an unprofitable servant to my master and to you."—New Parl. Hist. iii. 1363.]

[Footnote 3: Balfour, 313. Journals, May 27. Leicester's Journal, 109. Whitelock, 490, 494, 497, 498, 499. Heath, 392, 393. According to Balfour, the loss on each side was "almost alyke," about eight hundred men killed; according to Lambert, the Scots lost two thousand killed, and fourteen hundred taken prisoners; the English had only eight men slain; "so easy did the Lord grant them that mercy."—Whitelock, 501. I observe that in all the despatches of the commanders for the commonwealth their loss is miraculously trifling.]

[Sidenote a: A.D. 1651. Feb. 21.]

[Sidenote b: A.D. 1651. May 27.]

[Sidenote c: A.D. 1651. July 3.]

[Sidenote d: A.D. 1651. July 13.]

[Sidenote e: A.D. 1651. July 17.]

[Sidenote f: A.D. 1651. July 21.]

[Sidenote g: A.D. 1651. August.]

In the Scottish leaders the progress of the English excited the most fearful anticipations; to Charles it suggested the execution of what had long been his favourite object. The country to the south was clear of the enemy; and a proclamation[a] to the army announced his resolve of marching into England, accompanied by such of his Scottish subjects as were willing to share the fortunes and the perils of their sovereign. The boldness of the attempt dazzled the judgment of some; and the confidence of the young king dispelled the apprehensions of others. Their knowledge that, in case of failure, he must expect to meet with the same fate as his father, justified a persuasion that he possessed secret assurances of a powerful co-operation from the royalists and the Presbyterians of England. Argyle (nor was it surprising after the decline of his influence at court) solicited and obtained permission to retire to his own home; a few other chieftains followed his example; the rest expressed their readiness to stake their lives on the issue of the attempt, and the next morning eleven, some say fourteen, thousand men began[b] their march from Stirling, in the direction of Carlisle.[1]

Cromwell was surprised and embarrassed. The Scots had gained three days' march in advance, and his army was unprepared to follow them at a moment's notice. He wrote[c] to the parliament to rely on his industry and despatch; he sent[d] Lambert from Fifeshire with three thousand cavalry to hang on the rear, and ordered[e]

[Footnote 1: Leicester's Journal, 110. Whitelock, 501. Clarendon, iii. 397.]

[Sidenote a: A.D. 1651. July 30.]

[Sidenote b: A.D. 1651. July 31.]

[Sidenote c: A.D. 1651. August 4.]

[Sidenote d: A.D. 1651. August 5.]

[Sidenote e: A.D. 1651. August 7.]

Harrison with an equal number from Newcastle, to press on the flank of the enemy; and on the seventh day led his army of ten thousand men by the eastern coast, in the direction of York. The reduction of Scotland, a more easy task after the departure of the royal forces, was left to the activity of Monk, who had five thousand infantry and cavalry under his command.

So rapid was the advance of Charles, that he traversed the Lowlands of Scotland, and the northern counties in England, without meeting a single foe. Lambert had joined Harrison near Warrington; their united forces amounted to nine thousand men; and their object was to prevent the passage of the Mersey. But they arrived[a] too late to break down the bridge; and, after a few charges, formed in battle array on Knutsford Heath. The king, leaving them on the left, pushed forward till he reached[b] Worcester, where he was solemnly proclaimed by the mayor, amidst the loud acclamations of the gentlemen of the county, who, under a suspicion of their loyalty, had been confined in that city by order of the council.[2]

At the first news of the royal march, the leaders at Westminster abandoned themselves to despair. They believed that Cromwell had come to a private understanding with the king; that the Scots would meet with no opposition in their progress; and that the Cavaliers would rise simultaneously in every part of the kingdom.[3] From these terrors they were relieved by the arrival of despatches from the general, and by the indecision of the royalists, who, unprepared for the event, had hitherto made no movement; and with the

[Transcriber's Note: Footnote 1 not found in the text]

[Footnote 1: Leicester's Journal, iii. 117.
Balfour, iv. 314.]

[Footnote 2: Leicester's Journal, 113, 114. Whitelock, 502, 503. Clarendon, iii. 402.]

[Footnote 3: Hutchinson, 336.]

[Sidenote a: A.D. 1651. August 16.]

[Sidenote b: A.D. 1651. August 22.]

revival of their hopes the council assumed a tone of defiance, which was supported by measures the most active and energetic. The declaration of Charles,[a] containing a general pardon to all his subjects, with the exception of Cromwell, Bradshaw, and Cook, was burnt in London by the hands of the hangman; and a counter proclamation was published,[b] pronouncing Charles Stuart, his aiders and abettors, guilty of high treason. All correspondence with him was forbidden under the penalty of death; it was ordered that all persons known or suspected of attachment to his cause should be placed in custody, or confined to their own houses; and the militia of several counties, "tried and godly people," were called forth, and marched towards the expected scene of action.[1] But Charles had to contend not only with the activity of his enemies, but with the fanaticism of his followers. The Presbyterians of Lancashire had promised to rise, and Massey, a distinguished officer of that persuasion, was sent before to organize the levy; but the committee of the kirk forbade him to employ any man who had not taken the covenant; and, though Charles annulled their order, the English ministers insisted that it should be obeyed. Massey remained after the army had passed, and was joined by the earl of Derby, with sixty horse and two hundred and sixty foot, from the Isle of Man. A conference was held at Wigan; but reasoning and entreaty were employed in vain; the ministers insisted that all the Catholics who had been enrolled should be dismissed; and that the salvation of the kingdom should be

entrusted to the elect of God, who had taken the covenant. In the mean while Cromwell had despatched Colonel Lilburne, with his

[Footnote 1: Journals, Aug. 12.]

[Sidenote a: A.D. 1651. August 11.]

[Sidenote b: A.D. 1651. August 25.]

regiment of horse, into the county, and ordered reinforcements to join him from Yorkshire and Cheshire. Derby, with the concurrence of the royalists in Manchester, undertook to surprise Lilburne in his quarters near that town, but was himself surprised by Lilburne, who marched on the same day[a] to observe the earl's motions. They met unexpectedly in the lane leading from Chorley to Wigan. The heads of the opposite columns repeatedly charged each other; but the desperate courage of the Cavaliers was foiled by the steadiness and discipline of their opponents; the Lord Widrington, Sir Thomas Tildesly, Colonel Throckmorton, Boynton, Trollop, and about sixty of their followers were slain, and above three hundred privates made prisoners. The earl himself, who had received several slight wounds on the arms and shoulders, fled to Wigan with the enemy at his heels. Observing a house open, he flung himself from his horse, and sprung into the passage. A female barred the door behind him; the pursuers were checked for an instant; and when they began to search the house, he had already escaped through the garden. Weak with fatigue and the loss of blood, he wandered in a southerly direction, concealing himself by day, and travelling by night, till he found[b] a secure asylum, in a retired mansion, called Boscobel House, situate between Brewood and Tong Castle, and the property of Mrs. Cotton, a Catholic recusant and royalist. There he was received and secreted by William Penderell and his wife, the servants entrusted with the care of the mansion; and having recovered his strength, was conducted by the former to the royal army at Worcester.[1]

[Footnote 1: Whitelock, 503, 504. Clarendon, iii. 399, 403. Memoirs of the Stanleys, 112-114. Journals, Aug. 29. Leicester's Journal, 116. Boscobel, 6-8. Boscobel afterwards belonged to Bas. Fitzherbert, Mrs. Cotton's son-in-law.]

[Sidenote a: A.D. 1651. August 25.]

[Sidenote b: A.D. 1651. August 29.]

The occurrences of each day added to the disappointment of Charles and the confidence of his enemies. He had summoned[a] by proclamation all his male subjects between the age of sixteen and sixty to join his standard at the general muster[b] of his forces, on the 26th of August, in the Pitchcroft, the meadows between the city and the river. A few of the neighbouring gentlemen with their tenants, not two hundred in number, obeyed the call; [1] and it was found that the whole amount of his force did not exceed twelve (or according to Cromwell, sixteen)[2] thousand men, of whom one-sixth part only was composed of Englishmen. But while a few straggling royalists thus stole into his quarters, as if it were to display by their paucity the hopelessness of his cause, the daily arrival of hostile reinforcements swelled the army in the neighbourhood to more than thirty thousand men. At length Cromwell arrived,[c] and was received with enthusiasm. The royalists had broken down an arch of the bridge over the Severn at Upton; but a few soldiers passed on a beam in the night; the breach was repaired, and Lambert crossed with ten thousand men to the right bank. A succession of partial but obstinate actions alternately raised and depressed the hopes of the two parties; the grand attempt was reserved by the lord general for his

[Footnote 1: They were lord Talbot, son to the earl of Shrewsbury, "with about sixty horse; Mr. Mervin Touchet, Sir John Packington, Sir Walter Blount, Sir Ralph Clare, Mr. Ralph Sheldon, of Beoly, Mr. John Washbourn, of Wichinford, with forty horse; Mr. Thomas Hornyhold, of Blackmore-

park, with forty horse; Mr. Thomas Acton, Mr. Robert Blount, of Kenswick, Mr. Robert Wigmore, of Lucton, Mr. F. Knotsford, Mr. Peter Blount, and divers others."—Boscobel, 10.]

[Footnote 2: Cary's Memorials, ii. 361.]

[Sidenote a: A.D. 1651. August 23.]

[Sidenote b: A.D. 1651. August 26.]

[Sidenote c: A.D. 1651. August 28.]

auspicious day, the 3rd of September, on which twelve months before he had defeated the Scots at Dunbar. On that morning Fleetwood, who had advanced from Upton to Powick,[a] was ordered to force the passage of the Team, while Cromwell, to preserve the communication, should throw a bridge of boats across the Severn at Bunshill, near the confluence of the two rivers. About one in the afternoon, while Charles with his staff observed from the tower of the cathedral the positions of the enemy, his attention was drawn by a discharge of musketry near Powick. He descended immediately, rode to the scene of action, and ordered Montgomery with a brigade of horse and foot to defend the line of the Team and oppose the formation of the bridge. After a long and sanguinary struggle, Fleetwood effected a passage just at the moment when Cromwell, having completed the work, moved four regiments to his assistance. The Scots, though urged by superior numbers, maintained the most obstinate resistance; they disputed every field and hedge, repeatedly charged with the pike to check the advance of the enemy, and, animated by the shouts of the combatants on the opposite bank, sought to protract the contest with the vain hope that, by occupying the forces of Fleetwood, they might insure the victory to their friends, who were engaged with Cromwell.

That commander, as soon as he had secured the communication across the river, ordered a battery of heavy guns to play upon Fort Royal, a work

lately raised to cover the Sidbury gate of the city, and led his troops in two divisions to Perrywood and Red-hill. To Charles this seemed a favourable opportunity of defeating one half of the hostile force, while the other

[Sidenote a: A.D. 1651. Sept. 3.]

half was separated from it by the Severn. Leading out the whole of his disposable infantry, with the duke of Hamilton's troop of horse, and the English volunteers, he marched to attack the enemy in their position, and fought at the head of the Highlanders with a spirit worthy of a prince who staked his life for the acquisition of a crown. Fortune favoured his first efforts. The militia regiments shrunk from the shock, and the guns of the enemy became the prize of the assailants. But Cromwell had placed some veteran battalions in reserve. They restored the battle; and the royalists, in their turn, began to retreat. Still they remained unbroken, availing themselves of every advantage of the ground to check the enemy, and anxiously expecting the aid of their cavalry, which, under the command of Leslie, had remained in the city. From what cause it happened is unknown; but that officer did not appear on the field till the battle was lost, and the infantry, unable to resist the superior pressure of the enemy, was fleeing in confusion to the gate under the shelter of the fort. The fugitives rallied in Friar-street, and Charles, riding among them, endeavoured by his words and gestures to re-animate their courage. Instead of a reply, they hung down their heads, or threw away their arms. "Then shoot me dead," exclaimed the distressed prince, "rather than let me live to see the sad consequences of this day." But his despair was as unavailing as had been his entreaties; and his friends admonished him to provide for his safety, for the enemy had already penetrated within the walls.

We left Fleetwood on the right bank pushing the Scots slowly before him. At length they resigned the hope of resistance; their flight opened to him the

way to St. John's, and its timid commander yielded at the first summons. On the other bank, Cromwell stormed the Fort Royal, put its defenders, fifteen hundred men, to the sword, and turned the guns upon the city. Within the walls irremediable confusion prevailed, and the enemy began to pour in by the quay, the castle hill, and the Sidbury gate. Charles had not a moment to spare. Placing himself in the midst of the Scottish cavalry, he took the northern road by the gate of St. Martin's, while a few devoted spirits, with such troopers as dared to follow them, charged down Sidbury-street in the contrary direction.[1] They accomplished their purpose. The royal party cleared the walls, while *they* arrested the advance, and distracted the attention of the enemy. It was past the hour of sunset; and before dark all resistance ceased. Colonel Drummond surrendered the castle hill on conditions; the infantry in the street were killed or led prisoners to the cathedral; and the city was abandoned during the obscurity of the night to the licentious passions of the victors.[2]

In this disastrous battle the slain on the part of the royalists amounted to three thousand men, the taken to a still greater number. The cavalry escaped in separate bodies; but so depressed was their courage, so bewildered were their counsels, that they successively surrendered to smaller parties of their pursuers. Many officers of distinction attempted, single and disguised,

[Footnote 1: These were the earl of Cleveland, Sir James Hamilton, Colonel Careless, and captains Hornyhold, Giffard, and Kemble.—Boscobel, 20.]

[Footnote 2: See Blount, Boscobel, 14-22; Whitelock, 507, 508; Bates, part ii. 221; Parl. Hist. xx. 40, 44-55; Ludlow, i. 314. Nothing can be more incorrect than Clarendon's account of this battle, iii. 409. Even Cromwell owns that "it was as stiff a contest for four or five hours as ever he had seen."—Cary's Memorials, ii. 356.]

to steal their way through the country; but of these the Scots were universally betrayed by their accent, whilst the English, for the most part, effected their escape.[1] The duke of Hamilton had been mortally wounded on the field of battle; the earls of Derby, Rothes, Cleveland, Kelly, and Lauderdale; the lords Sinclair, Kenmure, and Grandison; and the generals Leslie, Massey, Middleton, and Montgomery, were made prisoners, at different times and in separate places. But the most interesting inquiry regarded the fortune of the young king. Though the parliament offered[a] a reward of one thousand pounds for his person, and denounced the penalties of treason against those who should afford him shelter; though parties of horse and foot scoured the adjacent counties in search of so valuable a prize; though the magistrates received orders to arrest every unknown person, and to keep a strict watch on the sea-ports in their neighbourhood, yet no trace of his flight, no clue to his retreat, could be discovered. Week after week passed

[Footnote 1: Thus the duke of Buckingham was conducted by one Mathews, a carpenter, to Bilstrop, and thence to Brooksby, the seat of Lady Villiers, in Leicestershire; Lord Talbot reached his father's house at Longford in time to conceal himself in a close place in one of the out-houses. His pursuers found his horse yet saddled, and searched for him during four or five days in vain. May was hidden twenty-one days in a hay-mow, belonging to Bold, a husbandman, at Chessardine, during all which time a party of soldiers was quartered in the house.—Boscobel, 35-37. Of the prisoners, eight suffered death, by judgment of a court-martial sitting at Chester. One of these was the gallant earl of Derby, who pleaded that quarter had been granted to him by Captain Edge, and quarter ought to be respected by a court-martial. It was answered that quarter could be granted to enemies only, not to traitors. He offered to surrender his Isle of Man in exchange for his life, and petitioned for "his grace the lord general's, and the parliament's mercy." But his petition was not delivered by Lenthall

before it was too late. It was read in the house on the eve of his execution, which took place at Bolton, in Lancashire, Oct. 15, 1651.—State Trials, v. 294. Heath 302. Leicester's Journal, 121. Journals, Oct. 14.]

[Sidenote a: A.D. 1651. Sept. 10.]

away; of almost every other individual of note the fate was ascertained; that of Charles Stuart remained an impenetrable mystery. At last, when a belief prevailed, both among his friends and foes, that he had met with death from the peasantry, ignorant of his person and quality, the intelligence arrived, that on the 17th of October, forty-four days after the battle, he had landed in safety at Fécamp, on the coast of Normandy.

The narrative of his adventures during this period of suspense and distress exhibits striking instances of hair-breadth escapes on the part of the king, and of unshaken fidelity on that of his adherents. During the night after the battle he found himself in the midst of the Scottish cavalry, a body of men too numerous to elude pursuit, and too dispirited to repel an enemy. Under cover of the darkness, he separated from them with about sixty horse; the earl of Derby recommended to him, from his own experience, the house of Boscobel as a secure retreat; and Charles Giffard undertook, with the aid of his servant Yates, to conduct him to Whiteladies, another house belonging to Mrs. Cotton, and not far distant from Boscobel. At an early hour in the morning, after a ride of five-and-twenty miles, they reached Whiteladies;^[a] and while the others enjoyed a short repose from their fatigue, the king withdrew to an inner apartment, to prepare himself for the character which he had been advised to assume. His hair was cut close to the head, his hands and face were discoloured, his clothes were exchanged for the coarse and threadbare garments of a labourer, and a heavy wood-bill in his hand announced his pretended employment. At sunrise the few admitted to the secret took their leave of

[Sidenote a: A.D. 1651. Sept.]

him with tears, and, summoning their companions to horseback, rode away, they scarcely knew whither but with the cheering hope that they should draw the attention of the enemy from the retreat of the king to the pursuit of themselves. In less than an hour a troop of horse from Cotsal, under the command of Colonel Ashenhurst, arrived at Whiteladies; but the king was already gone; a fruitless search only provoked their impatience, and they hastily followed the track of the other fugitives.

Charles was now in the hands, and entirely at the mercy, of four brothers (John, the fifth, had taken charge of the Lord Wilmot), labouring men, of the name of Penderell, and of Yates, his former guide, who had married a sister of the Penderells. He could not conceal from himself that their poverty might make them more accessible to temptation; but Derby and Giffard had conjured him to dismiss such thoughts; they were men of tried fidelity, who, born in the domain, and bred in the principles of a loyal and Catholic family, had long been successfully employed in screening priests and Cavaliers from the searches of the civil magistrates and military officers.[1] By one of them, surnamed the trusty Richard, he was led into

[Footnote 1: The Penderells, whom this event has introduced to the notice of the reader, were originally six brothers, born at Hobbal Grange, in the parish of Tong. John, George, and Thomas served in the armies of Charles I. Thomas was killed at Stowe; the other two survived the war, and were employed as woodwards at Boscobel. Of the remaining three, William took care of the house; Humphrey worked at the mill, and Richard rented part of Hobbal Grange. After the Restoration, the five brothers waited on the king at Whitehall on the 13th of June, 1660, and were graciously received, and dismissed with a princely reward. A pension was also granted to them and their posterity. In virtue of which grant two of their descendants, Calvin

Beaumont Winstanley, and John Lloyd, were placed on the pension list on the 6th of July, 1846, for the sum of twenty-five pounds to each.]

the thickest part of the adjoining wood, while the others posted themselves at convenient stations, to descry and announce the approach of the enemy. The day was wet and stormy; and Richard, attentive to the accommodation of his charge, who appeared sinking under the fatigue, caused by his efforts in the battle and the anxiety of his flight, spread a blanket for him under one of the largest trees, and ordered the wife of Yates to bring him the best refreshment which her house could afford. Charles was alarmed at the sight of this unexpected visitant. Recovering himself, he said, "Good woman, can you be faithful to a distressed Cavalier?"—"Yes, sir," she replied, "and I will die sooner than betray you." He was afterwards visited by Jane, the mother of the Penderells. The old woman kissed his hands, fell on her knees, and blessed God that he had chosen *her* sons to preserve, as she was confident they would, the life of their sovereign.

It had been agreed between the king and Wilmot, that each should make the best of his way to London, and inquire for the other by the name of Ashburnham, at the Three Cranes in the Vintry. By conversation with his guardian, Charles was induced to adopt a different plan, and to seek an asylum among the Cavaliers in Wales, till a ship could be procured for his transportation to France. About nine in the evening they left the wood together for the house of Mr. Wolf, a Catholic recusant at Madeley, not far from the Severn; but an accidental alarm lengthened their road, and added to the fatigue of the royal wanderer.[1]

[Footnote 1: The mill at Evelyn was filled with fugitives from the battle: the miller, espying Charles and his guide, and afraid of a discovery, called out "rogues;" and they, supposing him an enemy, turned up a miry lane,

running at their utmost speed,—Boscobel, 47. Account from the Pepys MS. p. 16.]

They reached Madeley at midnight; Wolf was roused from his bed, and the strangers obtained admission. But their host felt no small alarm for their safety. Troops were frequently quartered upon him; two companies of militia actually kept watch in the village and the places of concealment in his house had been recently discovered. As the approach of daylight[a] made it equally dangerous to proceed or turn back he secreted them behind the hay in an adjoining barn, and despatched messengers to examine the passages of the river. Their report that all the bridges were guarded, and all the boats secured, compelled the unfortunate prince to abandon his design. On the return of darkness he placed himself again under the care of his trusty guide, and with a heavy and misboding heart, retraced his steps towards his original destination, the house at Boscobel.

At Boscobel he found Colonel Careless, one of those devoted adherents who, to aid his escape from Worcester, had charged the enemy at the opposite gate. Careless had often provoked, and as often eluded, the resentment of the Roundheads; and experience had made him acquainted with every loyal man, and every place of concealment, in the country. By his persuasion Charles consented to pass the day[b] with him amidst the branches of an old and lofty oak.[1] This

[Footnote 1: This day Humphrey Penderell, the miller, went to Skefnal to pay taxes, but in reality to learn news. He was taken before a military officer, who knew that Charles had been at Whiteladies, and tempted, with threats and promises, to discover where the king was; but nothing could be extracted from him, and he was allowed to return.—Boscobel, 55. This, I suspect, to be the true story; but Charles himself, when he mentions the

proposal made to Humphrey attributes it to a man, at whose house he had changed his clothes.—Account from the Pepys MS. p. 9.]

[Sidenote a: A.D. 1651. Sept. 5.]

[Sidenote b: A.D. 1651. Sept. 6.]

celebrated tree, which was afterwards destroyed to satisfy the veneration of the Cavaliers, grew near to the common path in a meadow-field, which lay in the centre of the wood. It had been partially lopped a few years before, and the new shoots had thrown round it a thick and luxuriant foliage. Within this cover the king and his companion passed the day. Invisible themselves, they occasionally caught a glimpse of the red-coats (so the soldiers were called) passing among the trees, and sometimes saw them looking into the meadow. Their friends, William Penderell and his wife, whom Charles called my dame Joan, stationed themselves near, to give warning of danger; he pretending to be employed in his duty as woodward, and she in the labour of gathering sticks for fuel. But there arose no cause of immediate alarm; the darkness of the night relieved them from their tedious and irksome confinement; and Charles, having on his return to the house examined the hiding-place, resolved to trust to it for his future security.[1]

The next day, Sunday,[a] he spent within doors or in the garden. But his thoughts brooded over his forlorn and desperate condition; and the gloom on his countenance betrayed the uneasiness of his mind. Fortunately in the afternoon he received by John Penderell a welcome message from Lord Wilmot, to meet him that night at the house of Mr. Whitgrave, a recusant, at Moseley. The king's feet were so swollen and blistered by his recent walk to and from Madeley,

[Footnote 1: Careless found means to reach London, and cross the sea to Holland, where he carried the first news of the king's escape to the princess

of Orange. Charles gave him for his coat of arms, by the name of Carlos, an oak in a field, or, with a fesse, gules, charged with three royal crowns, and for his crest a crown of oak leaves, with a sword and sceptre, crossed saltierwise.—Boscobel, 85.]

[Sidenote: A.D. 1651. Sept. 7.]

that he gladly accepted the offer of Humphrey's horse from the mill; nor did the appearance of the monarch disgrace that of the steed. He wore a coat and breeches of coarse green cloth, both so threadbare that in many places they appeared white, and the latter "so long that they came down to the garter;" his doublet was of leather, old and soiled; his shoes were heavy and slashed for the ease of his feet; his stockings of green yarn had been much worn, were darned at the knees, and without feet; and an old grey steeple-crowned hat, without band or lining, with a crooked thorn stick, completed the royal habiliments. The six brothers attended him with arms; two kept in advance, two followed behind, and one walked on each side. He had not gone far before he complained to Humphrey of the heavy jolting pace of the horse. "My liege," replied the miller, "you do not recollect that he carries the weight of three kingdoms on his back."

At Moseley, cheered by the company of Wilmot, and the attention of Whitgrave and his chaplain, Mr. Hudlestone,[1] he recovered his spirits, fought the battle of Worcester over again, and declared that, if he could find a few thousand men who had the courage to stand by him, he would not hesitate to meet his enemies a second time in the field. A new plan of escape was now submitted to his approbation. The daughter of Colonel Lane, of Bentley, had obtained from the governor of Stafford a pass to visit Mrs.

[Footnote 1: Mr. Whitgrave had served as lieutenant, Hudlestone as gentleman volunteer in the armies of Charles I. The latter was of the family

at Hutton John, in Cumberland. Leaving the service, he took orders, and was at this time a secular priest, living with Mr. Whitgrave. He afterwards became a Benedictine monk, and was appointed one of the queen's chaplains.]

Norton, a relation near Bristol. Charles consented to assume the character of her servant, and Wilmot departed on the following night to make arrangements for his reception. In the mean time, to guard against a surprise, Hudlestone constantly attended the king; Whitgrave occasionally left the house to observe what passed in the street; and Sir John Preston, and two other boys, the pupils of Hudlestone, were stationed as sentinels at the garret windows.[1] But the danger of discovery increased every hour. The confession of a cornet, who had accompanied him, and was afterwards made prisoner, divulged the fact that Charles had been left at Whiteladies; and the hope of reward stimulated the parliamentary officers to new and more active exertions. The house of Boscobel, on the day after the king's departure,[a] was successively visited by two parties of the enemy; the next morning a second and more rigorous search was made at Whiteladies; and in the afternoon the arrival of a troop of horse alarmed the inhabitants of Moseley. As Charles, Whitgrave, and Hudlestone were standing near a window, they observed a neighbour run hastily into the house, and in an instant heard the shout of "Soldiers, soldiers!" from the foot of the staircase. The king was immediately shut up in the secret place; all the other doors were thrown open; and Whitgrave descending, met the troopers in front of his house. They seized him as a fugitive Cavalier from Worcester; but he convinced them by the testimony of his neighbours, that for several weeks he had not quitted Moseley, and with much difficulty prevailed on them to depart without searching the house.

[Footnote 1: Though ignorant of the quality of the stranger, the boys amused the king by calling themselves his life-guard.—Boscobel, 78.]

[Sidenote a: A.D. 1651. Sept. 9.]

That night[a] Charles proceeded to Bentley. It took but little time to transform the woodcutter into a domestic servant, and to exchange his dress of green jump for a more decent suit of grey cloth. He departed on horseback with his supposed mistress behind him, accompanied by her cousin, Mr. Lassells; and, after a journey of three days, reached[b] Abbotsleigh, Mr. Norton's house, without interruption or danger. Wilmot stopped at Sir John Winter's, a place in the neighbourhood. On the road, he had occasionally joined the royal party, as it were by accident; more generally he preceded or followed them at a short distance. He rode with a hawk on his fist, and dogs by his side; and the boldness of his manner as effectually screened him from discovery as the most skilful disguise.

The king, on his arrival,[c] was indulged with a separate chamber, under pretense of indisposition; but the next morning he found himself in the company of two persons, of whom one had been a private in his regiment of guards at Worcester, the other a servant in the palace at Richmond, when Charles lived there several years before. The first did not recognise him, though he pretended to give a description of his person; the other, the moment the king uncovered, recollected the features of the prince, and communicated his suspicions to Lassells. Charles, with great judgment, sent for him, discovered himself to him as an old acquaintance, and required his assistance. The man (he was butler to the family) felt himself honoured by the royal confidence, and endeavoured to repay it by his services. He removed to a distance from the king two individuals in the house of known republican principles; he inquired, though without success, for a

[Sidenote a: A.D. 1651. Sept. 11.]

[Sidenote b: A.D. 1651. Sept. 14.]

[Sidenote c: A.D. 1651. Sept. 15.]

ship at Bristol to carry him to France or Spain; and he introduced Lord Wilmot to his chamber at the hour of midnight. There they sat in council, and resolved[a] that the king should remove the next day to the house of Colonel Windham, a Cavalier whom he knew, at Trent, near Sherburn; that a messenger should be despatched to prepare the family for his arrival; and that to account for the sudden departure of Miss Lane, a counterfeit letter should be delivered to her, stating that her father was lying at the point of death. The plan succeeded; she was suffered[b] to depart, and in two days the prince reached[c] his destination. The following morning[d] Miss Lane took her leave, and hastened back with Lassells to Bentley.[1]

In his retirement at Trent, Charles began to indulge the hope of a speedy liberation from danger. A ship was hired at Lyme to convey a nobleman and his servant (Wilmot and the king) to the coast of France; the hour and the place of embarkation were fixed; and a widow, who kept a small inn at Charmouth, consented to furnish a temporary asylum to a gentleman in disguise, and a young female who had just escaped from the custody of a harsh and unfeeling guardian. The next evening[e] Charles appeared in a servant's dress, with Juliana Coningsby riding behind him, and accompanied by Wilmot and Windham. The hostess received the supposed lovers with a hearty welcome; but their patience was soon put to the severest trial; the night[f] passed away, no boat entered the creek, no ship could be descried in the offing; and the disappointment gave birth to a thousand jealousies

[Footnote 1: This lady received a reward of one thousand pounds for her services, by order of the two houses.—C. Journals, 1660, December 19, 21.]

[Sidenote a: A.D. 1651. Sept. 17.]

[Sidenote b: A.D. 1651. Sept. 18.]

[Sidenote c: A.D. 1651. Sept. 19.]

[Sidenote d: A.D. 1651. Sept. 20.]

[Sidenote e: A.D. 1651. Sept. 23.]

[Sidenote f: A.D. 1651. Sept. 24.]

and apprehensions. At dawn of day the whole party separated; Wilmot, with a servant, going to Lyme to inquire after the master of the vessel; Charles, with his companions, proceeding to Bridport to wait the return of Wilmot. In Bridport he found fifteen hundred soldiers preparing to embark on an expedition against Jersey; but, unwilling to create a real, by seeking to eschew an imaginary, danger, he boldly pushed forward to the inn, and led the horses through the crowd with a rudeness which provoked complaint. But a new danger awaited him at the stable. The hostler challenged him as an old acquaintance, pretending to have known him in the service of Mr. Potter, at Exeter. The fact was that, during the civil war, Charles had lodged at that gentleman's house. He turned aside to conceal his alarm; but had sufficient presence of mind to avail himself of the partial mistake of the hostler, and to reply, "True, I once lived a servant with Mr. Potter; but as I have no leisure now, we will renew our acquaintance on my return to London over a pot of beer."

After dinner, the royal party joined Wilmot out of the town. The master of the ship had been detained at home by the fears and remonstrances of his wife, and no promises could induce him to renew his engagement. Confounded and dispirited, Charles retraced his steps to Trent; new plans were followed by new disappointments; a second ship, provided by Colonel Philips at Southampton, was seized[a] for the transportation of troops to Jersey; and mysterious rumours in the neighbourhood rendered[b] unsafe the king's continuance at Colonel Windham's.[1] At Heale, the residence

[Footnote 1: A reward of one thousand pounds was afterwards given to Windham.—C. Journals, Dec. 17, 1660.]

[Sidenote a: A.D. 1651. Sept. 25.]

[Sidenote a: A.D. 1651. Oct. 8.]

of the widow Hyde, near Salisbury, he found a more secure retreat in a hiding-place for five days, during which Colonel Gunter, through the agency of Mansel, a loyal merchant, engaged[a] a collier, lying at New Shoreham. Charles hastened[b] through Hambleton to Brighton, where he sat down to supper with Philips, Gunter, Mansel, and Tattershall the master of the vessel. At table, Tattershall kept his eyes fixed on the king; after supper, he called Mansel aside and complained of fraud. The person in grey was the king; he knew him well, having been detained by him in the river, when, as prince of Wales, he commanded the royal fleet in 1648. This information was speedily communicated to Charles, who took no notice of it to Tattershall; but, to make sure of his man, contrived to keep the party drinking and smoking round the table during the rest of the night.

Before his departure, while he was standing alone in a room, the landlord entered, and, going behind him, kissed his hand, which rested on the back of a chair, saying at the same time, "I have no doubt that, if I live, I shall be a lord, and my wife a lady." Charles laughed, to show that he understood his meaning, and joined the company in the other apartment. At four in the morning they all proceeded[c] to Shoreham; on the beach his other attendants took their leave, Wilmot accompanied him into the bark. There Tattershall, falling on his knee, solemnly assured him, that whatever might be the consequence, he would put him safely on the coast of France. The ship floated with the tide, and stood with easy sail towards the Isle of Wight, as if she were on her way to Deal, to which port she was bound. But

at five in the afternoon, Charles, as he had previously concerted with Tattershall,

[Sidenote a: A.D. 1651. Oct. 14.]

[Sidenote b: A.D. 1651. Oct. 15.]

[Sidenote c: A.D. 1651. Oct. 16.]

addressed the crew. He told them that he and his companion were merchants in distress, flying from their creditors; desired them to join him in requesting the master to run for the French coast; and, as a further argument, gave them twenty shillings to drink. Tattershall made many objections; but, at last, with apparent reluctance, took the helm, and steered across the Channel. At daybreak[a] they saw before them the small town of Fécamp, at the distance of two miles; but the tide ebbing, they cast anchor, and soon afterwards descried to leeward a suspicious sail, which, by her manner of working, the king feared, and the master believed, to be a privateer from Ostend. She afterwards proved to be a French hoy; but Charles waited not to ascertain the fact; the boat was instantly lowered, and the two adventurers were rowed safely into the harbour.[1]

The king's deliverance was a subject of joy to the nations of Europe, among whom the horror excited by the death of the father had given popularity to the exertions of the son. In his expedition into England they had followed him with wishes for his success;

[Footnote 1: For the history of the king's escape, see Blount's *Boscobel*, with *Clastrum Regale reseratum*; the Whitgrave manuscript, printed in the *Retrospective Review*, xiv. 26. *Father Hudleston's Relation*; the *True Narrative and Relation* in the *Harleian Miscellany*, iv. 441, an account of his majesty's escape from Worcester, dictated to Mr. Pepys by the king himself, and the narrative given by Bates in the second part of his *Elenchus*. In addition to these, we have a narrative by Clarendon, who professes to have

derived his information from Charles and the other actors in the transaction, and asserts that "it is exactly true; that there is nothing in it, the verity whereof can justly be suspected" (Car. Hist. iii. 427, 428); yet, whoever will compare it with the other accounts will see that much of great interest has been omitted, and much so disfigured as to bear little resemblance to the truth. It must be that the historian, writing in banishment, and at a great distance of time, trusted to his imagination to supply the defect of his memory.—See note (E). See also Gunter's narrative in Cary, ii. 430.]

[Sidenote a: A.D. 1651. Oct. 17.]

after his defeat at Worcester they were agitated with apprehensions for his safety. He had now eluded the hunters of his life; he appeared before them with fresh claims on their sympathy, from the spirit which he had displayed in the field, and the address with which he had extricated himself from danger. His adventures were listened to with interest; and his conduct was made the theme of general praise. That he should be the heir to the British crowns, was the mere accident of birth; that he was worthy to wear them, he owed to the resources and energies of his own mind. In a few months, however, the delusion vanished. Charles had borne the blossoms of promise; they were blasted under the withering influence of pleasure and dissipation.

But from the fugitive prince we must now turn back to the victorious general who proceeded from the field of battle in triumph to London. The parliament seemed at a loss to express its gratitude to the man to whose splendid services the commonwealth owed its preservation. At Ailesbury Cromwell was met by a deputation of the two commissioners of the great seal, the lord chief justice, and Sir Gilbert Pickering; to each of whom, in token of his satisfaction, he made a present of a horse and of two Scotsmen selected from his prisoners. At Acton he was received by the speaker and

the lord president, attended by members of parliament and of the council, and by the lord mayor with the aldermen and sheriffs; and heard from the recorder, in an address of congratulation, that he was destined "to bind kings in chains, and their nobles in fetters of iron." He entered[a] the capital in the state carriage, was greeted with the acclamations of the people as the procession passed through the city, and

[Sidenote a: A.D. 1651. Oct. 12.]

repaired to the palace of Hampton Court, where apartments had been fitted up for him and his family at the public expense. In parliament it was proposed that the 3rd of September should be kept a holiday for ever in memory of his victory; a day was appointed for a general thanksgiving; and in addition to a former grant of lands to the amount of two thousand five hundred pounds per annum, other lands of the value of four thousand pounds were settled on him in proof of the national gratitude. Cromwell received these honours with an air of profound humility. He was aware of the necessity of covering the workings of ambition within his breast with the veil of exterior self-abasement; and therefore professed to take no merit to himself, and to see nothing in what he had done, but the hand of the Almighty, fighting in behalf of his faithful servants.[1]

[Footnote 1: Whitelock, 509. Ludlow, i. 372. Heath, 301. Journals, Sept. 6, 9, 11, 19. "Next day, 13th, the common prisoners were brought through Westminster to Tuthill fields—a sadder spectacle was never seen except the miserable place of their defeat—and there *sold* to several merchants, and sent to the Barbadoes."—Heath, 301. Fifteen hundred were granted as slaves to the Guinea merchants, and transported to the Gold Coast in Africa. —Parl. Hist. iii. 1374.]

CHAPTER V.

Vigilance Of The Government—Subjugation Of Ireland—Of Scotland—Negotiation With Portugal—With Spain—With The United Provinces—Naval War—Ambition Of Cromwell—Expulsion Of Parliament—Character Of Its Leading Members—Some Of Its Enactments.

In the preceding chapter we have followed the fortunes of Charles Stuart, from his landing in Scotland to his defeat at Worcester and his escape to the continent; we may now look back and direct our attention to some of the more important events which occurred during the same period, in England and Ireland.

1. The reader is aware that the form of government established in England was an oligarchy. A few individuals, under the cover of a nominal parliament, ruled the kingdom with the power of the sword. Could the sense of the nation have been collected, there cannot be a doubt that the old royalists of the Cavalier, and the new royalists of the Presbyterian party, would have formed a decided majority; but they were awed into silence and submission by the presence of a standing army of forty-five thousand men; and the maxim that "power gives right" was held out as a sufficient reason why they should swear fidelity to the commonwealth.[1] This numerous army,

[Footnote 1: See Marchamont Nedham's "Case of the Commonwealth Stated." 4to. London, 1650.]

the real source of their security, proved, however, a cause of constant solicitude to the leaders. The pay of the officers and men was always in arrear; the debentures which they received could be seldom exchanged for money without a loss of fifty, sixty, or seventy per cent.; and the plea of necessity was accepted as an excuse for the illegal claim of free quarters which they frequently exercised. To supply their wants, recourse was therefore had to additional taxation, with occasional grants from the excise, and large sales of forfeited property;^[1] and, to appease the discontent of the people, promises were repeatedly made, that a considerable portion of the armed force should be disbanded, and the practice of free quarter be abolished. But of these promises, the first proved a mere delusion; for, though some partial reductions were made, on the whole the amount of the army continued to increase; the second was fulfilled; but in return, the burthen of taxation was augmented; for the monthly assessment on the counties gradually swelled from sixty to ninety, to one hundred and twenty, and in conclusion, to one hundred and sixty thousand pounds.^[2]

Another subject of disquietude sprung out of those principles of liberty which, even after the suppression of the late mutiny, were secretly cherished and occasionally avowed, by the soldiery. Many, indeed, confided in the patriotism, and submitted to the judgment, of their officers; but there were also many who condemned the existing government as a desertion of the

[Footnote 1: Journals, 1649, April 18, Oct. 4; 1650, March 30; 1651, Sept. 2, Dec. 17; 1652, April 7.]

[Footnote 2: Journals, 1649, April 7, Aug. 1, Dec. 7; 1650, May 21, Nov. 26; 1651, April 15, Sept. 1, Dec. 19; 1652, Dec. 10; 1653, Nov. 24.]

good cause in which they had originally embarked. By the latter Lilburne was revered as an apostle and a martyr; they read with avidity the publications which repeatedly issued from his cell; and they condemned as persecutors and tyrants the men who had immured him and his companions in the Tower. Preparations had been made[a] to bring them to trial as the authors of the late mutiny; but, on more mature deliberation, the project was abandoned,[b] and an act was passed making it treason to assert that the government was tyrannical, usurped, or unlawful. No enactments, however, could check the hostility of Lilburne; and a new pamphlet from his pen,[c] in vindication of "The Legal Fundamental Liberties of the People," put to the test the resolution of his opponents. They shrunk from the struggle; it was judged more prudent to forgive, or more dignified to despise, his efforts; and, on his petition for leave to visit his sick family, he obtained his discharge.[1]

But this lenity made no impression on his mind. In the course of six weeks he published[d] two more offensive tracts, and distributed them among the soldiery. A new mutiny broke out at Oxford; its speedy suppression emboldened the council; the demagogue was reconducted[e] to his cell in the Tower; and Keble, with forty other commissioners, was appointed[f] to try him for his last offence on the recent statute of treasons. It may, perhaps, be deemed a weakness in Lilburne that he now offered[g] on certain conditions to transport himself to America; but he redeemed his character, as soon as he was placed at the bar. He repelled with scorn the charges of the

[Footnote 1: Journals, 1649, April 11, May 12, July 18. Council Book May 2.

Whitelock, 414.]

[Sidenote a: A.D. 1649. April 11.]

[Sidenote b: A.D. 1649. May 12.]

[Sidenote c: A.D. 1649. June 8.]

[Sidenote d: A.D. 1649. July 18.]

[Sidenote e: A.D. 1649. Sept. 6.]

[Sidenote f: A.D. 1649. Sept. 14.]

[Sidenote g: A.D. 1649. Oct. 24.]

prosecutors and the taunts of the court, electrified the audience by frequent appeals to Magna Charta and the liberties of Englishmen, and stoutly maintained the doctrine that the jury had a right to judge of the law as well as of the fact. It was in vain that the court pronounced this opinion "the most damnable heresy ever broached in the land," and that the government employed all its influence to win or intimidate the jurors; after a trial of three days, Lilburne, obtained a verdict of acquittal.[1]

Whether after his liberation[a] any secret compromise took place is uncertain. He subscribed the engagement, and, though he openly explained it in a sense conformable to his own principles, yet the parliament made to him out of the forfeited lands of the deans and chapters the grant[b] of a valuable estate, as a compensation for the cruel treatment which he had formerly suffered from the court of the Star-Chamber.[2] Their bounty, however, wrought no change in his character. He was still the indomitable denouncer of oppression wherever he found it, and before the end of the next year he drew upon himself the vengeance of the men in power, by the distribution[c] of a pamphlet which charged Sir Arthur Hazlerig and the commissioners at Haberdashers'-hall with injustice and tyranny. This by the house was voted a breach of privilege, and the offender was condemned[d] in a fine of seven thousand pounds with banishment for life. Probably the court of Star-chamber never pronounced a judgment in which the

punishment was more disproportionate to the offence. But his former enemies sought

[Footnote 1: Journals, 1649, Sept 11, Oct. 30. Whitelock, 424, 425. State Trials, ii. 151.]

[Footnote 2: Whitelock, 436. Journ. 1650, July 16, 30.]

[Sidenote a: A.D. 1649. Dec. 29.]

[Sidenote b: A.D. 1650. July 30.]

[Sidenote c: A.D. 1651. Dec. 22.]

[Sidenote d: A.D. 1652. Jan. 15.]

not justice on the culprit, but security to themselves. They seized the opportunity of freeing the government from the presence of a man whom they had so long feared; and, as he refused to kneel at the bar while judgment was pronounced, they embodied the vote in an act of parliament. To save his life, Lilburne submitted; but his residence on the continent was short: the reader will soon meet with him again in England.[1]

The Levellers had boldly avowed their object; the royalists worked in the dark and by stealth; yet the council by its vigilance and promptitude proved a match for the open hostility of the one and the secret machinations of the other. A doubt may, indeed, be raised of the policy of the "engagement," a promise of fidelity to the commonwealth without king or house of lords. As long as it was confined to those who held office under the government, it remained a mere question of choice; but when it was exacted from all Englishmen above seventeen years of age, under the penalty of incapacity to maintain an action in any court of law, it became to numbers a matter of necessity, and served rather to irritate than to produce security.[2] A more efficient measure was the permanent establishment of a high court of justice to inquire into offences against the state, to which was added the

organization of a system of espionage by Captain Bishop, under the direction of Scot, a member of the council. The friends of monarchy, encouraged by the clamour of the Levellers and the professions of the Scots, had begun to hold meetings,

[Footnote 1: Journals, 1651, Dec. 23; 1652, Jan. 15, 20, 30. Whitelock, 520. State Trials, v. 407-415.]

[Footnote 2: Leicester's Journal, 97-101.]

sometimes under the pretence of religious worship, sometimes under that of country amusements: in a short time they divided the kingdom into districts called associations, in each of which it was supposed that a certain number of armed men might be raised; and blank commissions with the royal signature were obtained, to be used in appointing colonels, captains, and lieutenants, for the command of these forces. Then followed an active correspondence both with Charles soon after his arrival in Scotland, and with the earl of Newcastle, the Lord Hopton, and a council of exiles; first at Utrecht, and afterwards at the Hague. By the plan ultimately adopted, it was proposed that Charles himself or Massey, leaving a sufficient force to occupy the English army in Scotland, should, with a strong corps of Cavalry, cross[a] the borders between the kingdoms; that at the same time the royalists in the several associations should rise in arms, and that the exiles in Holland, with five thousand English and German adventurers, should land in Kent, surprise Dover, and hasten to join their Presbyterian associates, in the capital.[1] But, to arrange and insure the co-operation of all the parties concerned required the employment of numerous agents, of whom, if several were actuated by principle, many were of doubtful faith and desperate fortunes. Some of these betrayed their trust; some undertook to serve both parties, and deceived each; and it is a curious fact that, while the letters of the agents for the royalists often passed through the hands of

Bishop himself, his secret papers belonging to the council of state were copied and forwarded to the king.[2] This consequence however followed,

[Footnote 1: Milton's State Papers, 35, 37, 39, 47, 49, 50. Baillie, ii. 5, 8. Carte's Letters, i. 414.]

[Footnote 2: State Trials, v. 4. Milton's State Papers, 39, 47, 50, 57. One of these agents employed by both parties was a Mrs. Walters, alias Hamlin, on whose services Bishop placed great reliance. She was to introduce herself to Cromwell by pronouncing the word "prosperity."—Ibid.]

[Sidenote a: A.D. 1650. December.]

that the plans of the royalists were always discovered, and by that means defeated by the precautions of the council. While the king was on his way to Scotland, a number of blank commissions had been seized in the possession of Dr. Lewen, a civilian, who suffered[a] the penalty of death. Soon afterwards Sir John Gell, Colonel Eusebius Andrews, and Captain Benson, were arraigned on the charge of conspiring the destruction of the government established by law. They opposed three objections to the jurisdiction of the court: it was contrary to Magna Charta, which gave to every freeman the right of being tried by his peers; contrary to the petition of right, by which courts-martial (and the present court was most certainly a court-martial) had been forbidden; and contrary to the many declarations of parliament, that the laws, the rights of the people, and the courts of justice, should be maintained. But the court repelled[b] the objections; Andrews and Benson suffered death, and Gell, who had not been an accomplice, but only cognizant of the plot, was condemned[c] to perpetual imprisonment, with the forfeiture of his property.[1]

These executions did not repress the eagerness of the royalists, nor relax the vigilance of the council. In the beginning of December the friends of

Charles took up arms[d] in Norfolk, but the rising was premature; a body of roundheads dispersed the insurgents; and twenty of the latter atoned for their temerity with their lives. Still the failure of one plot did not prevent

[Footnote 1: Whitelock, 464, 468, 473, 474. Heath, 269, 270. See mention of several discoveries in Carte's Letters, i. 443, 464, 472.]

[Sidenote a: A.D. 1652. July 13.]

[Sidenote b: A.D. 1652. August 22.]

[Sidenote c: A.D. 1652. Oct. 7.]

[Sidenote d: A.D. 1650. Dec. 2.]

the formation of another; as long as Charles Stuart was in Scotland, the ancient friends of his family secretly prepared for his reception in England; and many of the Presbyterians, through enmity to the principles of the Independents, devoted themselves to the interests of the prince.[1] This party the council resolved to attack in their chief bulwark, the city; and Love, one of the most celebrated of the ministers, was apprehended[a] with several of his associates. At his trial, he sought to save his life by an evasive protestation, which he uttered with the most imposing solemnity in the presence of the Almighty. But it was clearly proved against him that the meetings had been held in his house, the money collected for the royalists had been placed on his table, and the letters received, and the answers to be returned, had been read in his hearing. After judgment,[b] both he and his friends presented[c] petitions in his favour; respite after respite was obtained and the parliament, as if it had feared to decide without instructions, referred[d] the case to Cromwell in Scotland. That general was instantly assailed with letters from both the friends and the foes of Love; he was silent; a longer time was granted by the house; but he returned no answer, and the unfortunate minister lost his head[e] on Tower-hill with the

constancy and serenity of a martyr. Of his associates, only one, Gibbons, a citizen, shared his fate.[2]

[Footnote 1: "It is plaine unto mee that they doe not judge us a lawfull magistracy, nor esteeme anything treason that is acted by them to destroy us, in order to bring the king of Scots as heed of the covenant."—Vane to Cromwell, of "Love and his brethren." Milton's State Papers, 84.]

[Footnote 2: Milton's State Papers, 50, 54, 66, 75, 76. Whitelock, 492, 493, 495, 500. State Trials, v. 43-294. Heath, 288, 290. Leicester's Journal, 107, 115, 123. A report, probably unfounded, was spread that Cromwell granted him his life, but the despatch was waylaid, and detained, or destroyed by the Cavaliers, who bore in remembrance Love's former hostility to the royal cause.—Kennet, 185.]

[Sidenote a: A.D. 1651. May 7.]

[Sidenote b: A.D. 1651. June 5.]

[Sidenote c: A.D. 1651. June 11.]

[Sidenote d: A.D. 1651. July 15.]

[Sidenote e: A.D. 1651. August 22.]

2. To Charles it had been whispered by his secret advisers that the war between the parliament and the Scots would, by withdrawing the attention of the council from Ireland, allow the royal party to resume the ascendancy in that kingdom. But this hope quickly vanished. The resources of the commonwealth were seen to multiply with its wants; and its army in Ireland was daily augmented by recruits in the island, and by reinforcements from England. Ireton, to whom Cromwell, with the title of lord deputy, had left[a] the chief command, pursued with little interruption the career of his victorious predecessor. Sir Charles Coote met the men of Ulster at Letterkenny; after a long and sanguinary action they were defeated; and the

next day their leader, MacMahon, the warrior bishop of Clogher, was made prisoner by a fresh corps of troops from Inniskilling.[1] Lady Fitzgerald, a name as illustrious in the military annals of Ireland as that of Lady Derby in those of England, defended the fortress of Trecoghan, but neither the efforts of Sir Robert Talbot within, nor the gallant attempt of Lord Castlehaven without, could prevent its surrender.[2] Waterford, Carlow, and Charlemont accepted honourable conditions, and the garrison of Duncannon, reduced to a handful of men by the ravages of the plague, opened its gates[b] to the enemy.[3] Ormond, instead of facing

[Footnote 1: Though he had quarter given and life promised, Coote ordered him to be hanged. Yet it was by MacMahon's persuasion that O'Neil in the preceding year had saved Coote by raising the siege of Londonderry. —Clarendon, *Short View, &c.*, in vol. viii. 145-149. But Coote conducted the war like a savage. See several instances at the end of Lynch's *Cambresis Eversus*.]

[Footnote 2: See Castlehaven's *Memoirs*, 120-124; and Carte's *Ormond*, ii. 116.]

[Footnote 3: Heath, 267, 370. Whitelock, 457, 459, 463, 464, 469.]

[Sidenote a: A.D. 1650. June 18.]

[Sidenote a: A.D. 1650. June 25.]

the conquerors in the field, had been engaged in a long and irritating controversy with those of the Catholic leaders who distrusted his integrity, and with the townsmen of Limerick and Galway, who refused to admit his troops within their walls. Misfortune had put an end to his authority; his enemies remarked that whether he were a real friend or a secret foe, the cause of the confederates had never prospered under his guidance; and the bishops conjured him,[a] now that the very existence of the nation was at

stake, to adopt measures which might heal the public dissensions and unite all true Irishmen in the common defence. Since the loss of Munster by the defection of Inchiquin's forces, they had entertained an incurable distrust of their English allies; and to appease their jealousy, he dismissed the few Englishmen who yet remained in the service. Finding them rise in their demands, he called a general assembly at Loughrea, announced his intention, or pretended intention, of quitting the kingdom; and then, at the general request, and after some demur, consented to remain. Hitherto the Irish had cherished the expectation that the young monarch would, as he had repeatedly promised, come to Ireland, and take the reins of government into his hands; they now, to their disappointment, learned that he had accepted the invitation of the Scots, their sworn and inveterate enemies. In a short time, the conditions to which he had subscribed began to transpire; that he had engaged to annul the late pacification between Ormond and the Catholics, and had bound himself by oath,[b] not only not to permit the exercise of the Catholic worship, but to root out the Catholic religion wherever it existed in any of his dominions. A general gloom and despondency prevailed; ten bishops and

[Sidenote a: A.D. 1650. March 28.]

[Sidenote b: A.D. 1650. August 6.]

ten clergymen assembled at James-town, and their first resolve was to depute[a] two of their number to the lord lieutenant, to request that he would put in execution his former design of quitting the kingdom, and would leave his authority in the hands of a Catholic deputy possessing the confidence of the nation. Without, however, waiting for his answer, they proceeded to frame[b] a declaration, in which they charged Ormond with negligence, incapacity, and perfidy; protested that, though they were compelled by the great duty of self-preservation to withdraw from the government of the king's lieutenant, they had no intention to derogate from

the royal authority; and pronounced that, in the existing circumstances, the Irish people were no longer bound by the articles of the pacification, but by the oath under which they had formerly associated for their common protection. To this, the next day[c] they appended a form of excommunication equally affecting all persons who should abet either Ormond or Ireton, in opposition to the real interests of the Catholic confederacy.[1]

The lord lieutenant, however, found that he was supported by some of the prelates, and by most of the aristocracy. He replied[d] to the synod at James-town, that nothing short of necessity should induce him to quit Ireland without the order of the king; and the commissioners of trust expostulated[e] with the bishops on their imprudence and presumption. But at this moment arrived copies of the declaration which Charles had been compelled to publish at Dunfermling, in Scotland. The whole population was in a ferment. Their suspicions, they exclaimed, were now verified;

[Footnote 1: Ponce, *Vindiciae Eversae*, 236-257. Clarendon, viii. 151, 154, 156. *Hibernia Dominicana*, 691. Carte, ii. 118, 120, 123.]

[Sidenote a: A.D. 1650. August 10.]

[Sidenote b: A.D. 1650. August 11.]

[Sidenote c: A.D. 1650. August 12.]

[Sidenote d: A.D. 1650. August 31.]

[Sidenote e: A.D. 1650. Sept. 2.]

their fears and predictions accomplished. The king had pronounced them a race of "bloody rebels;" he had disowned them for his subjects, he had annulled the articles of pacification, and had declared[a] to the whole world that he would exterminate their religion. In this excited temper of mind, the committee appointed by the bishops published both the declaration and the excommunication. A single night intervened; their passions had leisure to

cool; they repented[b] of their precipitancy; and, by the advice of the prelates in the town of Galway, they published a third paper, suspending the effect of the other two.

Ormond's first expedient was to pronounce the Dunfermling declaration a forgery; for the king from Breda, previously to his voyage to Scotland, had solemnly assured him that he would never, for any earthly consideration, violate the pacification. A second message[c] informed him that it was genuine, but ought to be considered of no force, as far as it concerned Ireland, because it had been issued without the advice of the Irish privy council.[1] This communication encouraged

[Footnote 1: Carte's letters, i. 391. Charles's counsellors at Breda had instilled into him principles which he seems afterwards to have cherished through life: "that honour and conscience were bugbears, and that the king ought to govern himself rather by the rules of prudence and necessity."—Ibid. Nicholas to Ormond, 435. At first Charles agreed to find some way "how he might with honour and justice break the peace with the Irish, if a free parliament in Scotland should think it fitting" afterwards "to break it, but on condition that it should not be published till he had acquainted Ormond and his friends, secured them, and been instructed how with honour and justice he might break it in regard of the breach on their part" (p. 396, 397). Yet a little before he had resolutely declared that no consideration should induce him to violate the same peace (p. 374, 379). On his application afterwards for aid to the pope, he excused it, saying, "*fuisse vim manifestam: jam enim statuerant Scoti presbyterani personam suam parlamento Anglicano tradere, si illam declarationem ab ipsis factam non approbasset.*" Ex originali penes me.]

[Sidenote a: A.D. 1650. Sept. 15.]

[Sidenote b: A.D. 1650. Sept. 16.]

[Sidenote c: A.D. 1650. Oct. 15.]

the lord lieutenant to assume a bolder tone. He professed[a] himself ready to assert, that both the king and his officers on one part, and the Catholic population on the other, were bound by the provisions of the treaty; but he previously required that the commissioners of trust should condemn the proceedings of the synod at James-town, and join with him in punishing such of its members as should persist in their disobedience. They made proposals[b] to the prelates, and received for answer, that protection and obedience were correlative; and, therefore, since the king had publicly excluded them, under the designation of "bloody rebels," from his protection, they could not understand how any officer acting by his authority could lay claim to their obedience.[1]

This answer convinced Ormond that it was time for him to leave Ireland; but, before his departure, he called a general assembly, and selected the marquess of Clanricard, a Catholic nobleman, to command as his deputy. To Clanricard, whose health was infirm, and whose habits were domestic, nothing could be more unwelcome than such an appointment. Wherever he cast his eyes he was appalled by the prospect before him. He saw three-fourths of Ireland in the possession of a restless and victorious enemy; Connaught and Clare, which alone remained to the royalists, were depopulated by famine and pestilence; and political and religious dissension divided the leaders and their followers, while one party attributed the national disasters to the temerity of the men who presumed to govern under the curse of excommunication; and the other charged their opponents with concealing disloyal and interested views under the mantle of patriotism

[Footnote 1: Ponce, 257-261.]

[Sidenote a: A.D. 1650. Oct. 23.]

[Sidenote b: A.D. 1650. Oct. 29.]

and religion. Every prospect of successful resistance was gone; the Shannon, their present protection from the foe, would become fordable in the spring; and then the last asylum of Irish independence must be overrun. [1] Under such discouraging circumstances it required all the authority of Ormond and Castlehaven to induce him to accept an office which opened no prospect of emolument or glory, but promised a plentiful harvest of contradiction, hardship, and danger.

In the assembly which was held[a] at Loughrea, the majority of the members disapproved of the conduct of the synod, but sought rather to heal by conciliation than to perpetuate dissension. Ormond, having written[b] a vindication of his conduct, and received[c] an answer consoling, if not perfectly satisfactory to his feelings, sailed from Galway; but Clanricard obstinately refused to enter on the exercise of his office, till reparation had been made to the royal authority for the insult offered to it by the Jamestown declaration. He required an acknowledgment, that it was not in the power of any body of men to discharge the people from their obedience to the lord deputy, as long as the royal authority was vested in him; and at length obtained[d] a declaration to that effect, but with a protestation, that by it "the confederates did not waive their right to the faithful observance of the articles of pacification, nor bind themselves to obey every chief governor who might be unduly nominated by the king, during his unfree condition among the Scots." [2]

Aware of the benefit which the royalists in Scotland

[Footnote 1: See Clanricard's State of the Nation, in his Memoirs, part ii. p. 24.]

[Footnote 2: Carte, ii. 137-140. Walsh, App. 75-137. Belling in Poncium, 26.]

[Sidenote a: A.D. 1650. Nov. 25.]

[Sidenote b: A.D. 1650. Dec. 2.]

[Sidenote c: A.D. 1650. Dec. 7.]

[Sidenote d: A.D. 1650. Dec. 24.]

derived from the duration of hostilities in Ireland, the parliamentary leaders sought to put an end to the protracted and sanguinary struggle. Scarcely had Clanricard assumed[a] the government, when Grace and Bryan, two Catholic officers, presented themselves to the assembly with a message from Axtel, the governor of Kilkenny, the bearers of a proposal for a treaty of submission. By many the overture was hailed with transport. They maintained that nothing but a general negotiation could put an end to those private treaties which daily thinned their numbers, and exposed the more resolute to inevitable ruin; that the conditions held out were better than they had reason to expect *now*, infinitely better than they could expect hereafter. Let them put the sincerity of their enemies to the test. If the treaty should succeed, the nation would be saved; if it did not, the failure would unite all true Irishmen in the common cause, who, if they must fall, would not fall unrevenged. There was much force in this reasoning; and it was strengthened by the testimony of officers from several quarters, who represented that, to negotiate with the parliament was the only expedient for the preservation of the people. But Clanricard treated the proposal with contempt. To entertain it was an insult to him, an act of treason against the king; and he was seconded by the eloquence and authority of Castlehaven, who affected to despise the power of the enemy, and attributed his success to their own divisions. Had the assembly known the motives which really actuated these noblemen; that they had been secretly instructed by Charles to continue the contest at every risk, as the best means of enabling him to make head against Cromwell; that this, probably the last opportunity of saving the lives

[Sidenote a: A.D. 1651. Jan. 10.]

and properties of the confederates, was to be sacrificed to the mere chance of gaining a victory for the Scots, their bitter and implacable enemies,[1] many of the calamities which Ireland was yet doomed to suffer would, perhaps, have been averted. But the majority allowed themselves to be persuaded; the motion to negotiate with the parliament was rejected, and the penalties of treason were denounced by the assembly, the sentence of excommunication by the bishops, against all who should conclude any private treaty with the enemy. Limerick and Galway, the two bulwarks of the confederacy, disapproved of this vote, and obstinately refused to admit garrisons within their walls, that they might not be overawed by the military, but remain arbiters of their own fate.

The lord deputy was no sooner relieved from this difficulty, than he found himself entangled in a negotiation of unusual delicacy and perplexity. About the close of the last summer, Ormond had despatched the Lord Taaffe to Brussels, with instructions, both in his own name and the name of the supreme council,[2] to solicit the aid of the duke of Lorrain, a prince of the most restless and intriguing disposition, who was accustomed to sell at a high price the services of his army to the neighbouring powers. The duke received him graciously, made him a present of five thousand pounds, and promised an additional aid of men and money, but on condition that he should be declared protector royal of Ireland, with all the rights belonging to that office—rights as undefined as the office itself was hitherto unknown. Taaffe hesitated, but was

[Footnote 1: Castlehaven's Memoirs, 116, 119, 120.]

[Footnote 2: Compare the papers in the second part of Clanricard's Memoirs, 17, 18, 27 (folio, London, 1757), with Carte's Ormond, ii. 143.]

encouraged to proceed by the queen mother, the duke of York, and De Vic, the king's resident at Brussels. They argued[a] that, without aid to the Irish, the king must succumb in Scotland; that the duke of Lorrain was the only prince in Europe that could afford them succour; and that whatever might be his secret projects, they could never be so prejudicial to the royal interests as the subjugation of Ireland by the parliament.[1] Taaffe, however, took a middle way, and persuaded[b] the duke to send De Henin as his envoy to the supreme council, with powers to conclude the treaty in Ireland.

The assembly had just been dismissed[c] when this envoy arrived. By the people, the clergy, and the nobility, he was received as an angel sent from heaven. The supply of arms and ammunition which he brought, joined to his promise of more efficient succour in a short time, roused them from their despondency, and encouraged them to indulge the hope of making a stand against the pressure of the enemy. Clanricard, left without instructions, knew not how to act. He dared not refuse the aid so highly prized by the

[Footnote 1: Clanricard, 4, 5, 17, 27. Ormond was also of the same opinion. He writes to Taaffe that "nothing was done that were to be wished 'undone'"; that the supreme council were the best judges of their own condition; that they had received permission from the king, for their own preservation, "even to receive conditions from the enemy, which must be much more contrary to his interests, than to receive helps from any other to resist them, almost upon any terms."—Clanric. 33, 34. There is in the collection of letters by Carte, one from Ormond to Clanricard written after the battle of Worcester, in which that nobleman says that it will be without scruple his advice, that "fitting ministers be sent to the pope, and apt inducements proposed to him for his interposition, not only with all princes and states". The rest of the letter is lost, or Carte did not choose to publish it; but it is plain from the first part that he thought the only chance for the

restoration of the royal authority was in the aid to be obtained from the pope and the Catholic powers.—Carte's Letters, i. 461.]

[Sidenote a: A.D. 1650. November.]

[Sidenote b: A.D. 1650. Dec. 31.]

[Sidenote c: A.D. 1651. Feb. 25.]

people; he dared not accede to demands so prejudicial to the king's authority. But if the title of protector royal sounded ungratefully in his ears, it was heard with very different feelings by the confederates, who had reason to conclude that, if the contest between Cromwell and the Scots should terminate in favour of the latter, the Irish Catholics would still have need of a protector to preserve their religion from the exterminating fanaticism of the kirk. Clanricard, was, however, inexorable, and his resolution finally triumphed over the eagerness of his countrymen and the obstinacy of the envoy. From the latter he obtained[a] an additional sum of fifteen thousand pounds, on the easy condition of naming agents to conduct the negotiation at Brussels, according to such instructions as they should receive from the queen dowager, the duke of York, and the duke of Ormond. The lord deputy rejoiced that he had shifted the burthen from his shoulders. De Henin was satisfied, because he knew the secret sentiments of those to whose judgment the point in question had been referred.[1]

Taafe, having received his instructions in Paris (but verbal, not written instructions, as Clanricard had required), joined[b] his colleagues, Sir Nicholas Plunket, and Geoffrey Brown, in Brussels, and, after a long but ineffectual struggle, subscribed to the demands of the duke of Lorrain.[2] That prince, by the treaty, engaged[c] to furnish for the protection of Ireland, all such supplies of arms, money, ammunition, shipping, and provisions, as the necessity of the case might require; and in return the agents, in the name of the

[Footnote 1: Clanricard, 1-16.]

[Footnote 2: Id. 31, 58. It is certain from Clanricard's papers that the treaty was not concluded till after the return of Taafe from Paris (p. 58).]

[Sidenote a: A.D. 1651. March 27.]

[Sidenote b: A.D. 1651. July 11.]

[Sidenote c: A.D. 1651. July 27.]

people and kingdom of Ireland, conferred on him, his heirs and successors, the title of protector royal, together with the chief civil authority and the command of the forces, but under the obligation of restoring both, on the payment of his expenses, to Charles Stuart, the rightful sovereign.[1] There cannot be a doubt that each party sought to overreach the other.

Clanricard was surprised that he heard nothing from his agents, nothing from the queen or the duke of Ormond. After a silence of several months, a copy of the treaty[a] arrived. He read it with indignation; he asserted[b] that the envoys had transgressed their instructions; he threatened to declare them traitors by proclamation. But Charles had now arrived in Paris after the defeat at Worcester, and was made acquainted[c] with the whole intrigue. He praised the loyalty of the deputy, but sought to mitigate his displeasure against the three agents, exhorted him to receive them again into his confidence, and advised him to employ their services, as if the treaty had never existed. To the duke of Lorrain he despatched[d] the earl of Norwich, to object to the articles which bore most on the royal authority, and to recommence the negotiation.[2] But the unsuccessful termination of the Scottish war taught that prince to look upon the project as hopeless; while he hesitated, the court of Brussels obtained proofs that he was intriguing with the French minister; and, to the surprise of Europe, he was suddenly arrested in Brussels, and conducted a prisoner to Toledo in Spain.[3]

Clanricard, hostile as he was to the pretensions of the duke of Lorrain, had availed himself of the money

[Footnote 1: Clanricard, 34.]

[Footnote 2: Id. 36-41, 47, 50-54, 58. Also Ponce, 111-124.]

[Footnote 3: Thurloe, ii. 90, 115, 127, 136, 611.]

[Sidenote a: A.D. 1651. Oct. 12.]

[Sidenote b: A.D. 1651. Oct. 20.]

[Sidenote c: A.D. 1652. Feb. 10.]

[Sidenote d: A.D. 1652. March 23.]

received from that prince to organize a new force, and oppose every obstacle in his power to the progress of the enemy. Ireton, who anticipated nothing less than the entire reduction of the island, opened[a] the campaign with the siege of Limerick. The conditions which he offered were refused by the inhabitants, and, at their request, Hugh O'Neil, with three thousand men, undertook the defence of the city, but with an understanding that the keys of the gates and the government of the place should remain in the possession of the mayor. Both parties displayed a valour and obstinacy worthy of the prize for which they fought. Though Lord Broghill defeated Lord Muskerry, the Catholic commander in Munster; though Coote, in defiance of Clanricard, penetrated from the northern extremity of Connaught, as far as Athenree and Portumna; though Ireton, after several fruitless attempts, deceived the vigilance of Castlehaven, and established himself on the right bank of the Shannon; and though a party within the walls laboured to represent their parliamentary enemies as the advocates of universal toleration; nothing could shake the constancy of the citizens and the garrison. They harassed the besiegers by repeated sorties; they repelled every assault; and on one occasion[b] they destroyed the whole corps,

which had been landed on "the island." Even after the fatal battle of Worcester, to a second summons they returned a spirited refusal. But in October a reinforcement of three thousand men from England arrived in the camp; a battery was formed of the heavy cannon landed from the shipping in the harbour; and a wide breach in the wall admonished the inhabitants to prepare for an assault. In this moment of suspense, with the dreadful example of Drogheda and

[Sidenote a: A.D. 1651. June 11.]

[Sidenote b: A.D. 1651. July 15.]

Wexford before their eyes, they met at the town-hall. It was in vain that O'Neil remonstrated; that the bishops of Limerick and Emly entreated and threatened, Stretch, the mayor, gave[a] the keys to Colonel Fanning, who seized St. John's gate, turned the cannon on the city, and admitted two hundred of the besiegers. A treaty was now[b] concluded; and, if the garrison and inhabitants preserved their lives and property, it was by abandoning twenty-two individuals to the mercy of the conqueror. Of these some made their escape; Terence O'Brien, bishop of Emly, Wallis, a Franciscan friar, Major-General Purcell, Sir Godfrey Galway, Baron, a member of the council, Stretch, the mayor of the city, with Fanning himself, and Higgin, were immolated as an atonement for the obstinate resistance of the besiegers.[1] By Ireton O'Neil was also doomed to die, but the officers who formed the court, in admiration of his gallantry, sought to save his life. Twice they condemned him in obedience to the commander-in-chief, who pronounced his spirited defence of Clonmel an unpardonable crime against the state; but the third time the deputy was persuaded to leave them to the exercise of their own judgment; and they pronounced in favour of their brave but unfortunate captive. Ireton himself did not long survive. When he condemned[c] the bishop of Emly to die, that prelate had exclaimed, "I

appeal to the tribunal of God, and summon thee to meet me at that bar." By many these words were deemed prophetic; for in less than a month the

[Footnote 1: See the account of their execution in pp. 100, 101 of the *Descriptio Regni Hiberniae per Antonium Prodinum*, Romae, 1721, a work made up of extracts from the original work of Bruodin, *Propugnaculum Catholicae Veritatis*, Pragae, 1669. The extract referred to in this note is taken from 1. iv. c. xv. of the original work.]

[Sidenote a: A.D. 1651. Oct. 23.]

[Sidenote b: A.D. 1651. Oct. 27.]

[Sidenote c: A.D. 1651. Nov. 25.]

victorious general fell a victim to the pestilential disease which ravaged the west of Ireland. His death proved a severe loss to the commonwealth, not only on account of his abilities as an officer and a statesman, but because it removed the principal check to the inordinate ambition of Cromwell.[1]

During the next winter the confederates had leisure to reflect on their forlorn condition. Charles, indeed, a second time an exile, solicited[a] them to persevere;[2] but it was difficult to persuade men to hazard their lives and fortunes without the remotest prospect of benefit to themselves or to the royal cause; and in the month of March Colonel Fitzpatric, a celebrated chieftain in the county of Meath, laid down[b] his arms, and obtained in return the possession of his lands. The example alarmed the confederates; and Clanricard, in their name, proposed[c] a general capitulation: it was refused by the stern policy of Ludlow, who assumed the command on the death of Ireton; a succession of surrenders followed; and O'Dwyer, the town of Galway, Thurlogh O'Neil, and the earl of Westmeath, accepted the terms dictated by the enemy; which were safety for their persons and personal property, the restoration of part of their landed estates, according to the

qualifications to be determined by parliament, and permission to reside within the commonwealth, or to enter with a certain number of followers into the service of any foreign prince in amity with England. The benefit of these articles did not extend to persons who had taken

[Footnote 1: Ludlow, i. 293, 296, 298, 299, 300, 307, 310, 316-324. Heath, 304, 305. Ireton's letter, printed by Field, 1651. Carte, ii. 154. The parliament ordered Ireton's body to be interred at the public expense. It was conveyed from Ireland to Bristol, and thence to London, lay in state in Somerset House, and on February 6th was buried in Henry the Seventh's chapel.—Heath, 305.]

[Footnote 2: Clanricard, 51.]

[Sidenote a: A.D. 1652. Jan. 31.]

[Sidenote b: A.D. 1652. March 7.]

[Sidenote c: A.D. 1652. March 24.]

up arms in the first year of the contest, or had belonged to the first general assembly, or had committed murder, or had taken orders in the church of Rome. There were, however, several who, in obedience to the instructions received from Charles, resolved to continue hostilities to the last extremity. Lord Muskerry collected five thousand men on the borders of Cork and Kerry, but was obliged to retire before his opponents: his strong fortress of Ross opened[a] its gates; and, after some hesitation, he made his submission. In the north, Clanricard reduced Ballyshannon and Donnegal; but there his career ended; and Coote drove[b] him into the Isle of Carrick, where he was compelled to accept the usual conditions. The last chieftain of note who braved[c] the arms of the commonwealth was Colonel Richard Grace: he beat up the enemy's quarters; but was afterwards driven across the Shannon with the loss of eight hundred of his followers. Colonel Sanchey pursued[d] him to his favourite retreat; his castle of Inchlough

surrendered,[e] and Grace capitulated with twelve hundred and fifty men. [1] There still remained a few straggling parties on the mountains and amidst the morasses, under MacHugh, and Byrne, and O'Brian, and Cavanagh: these, however, were subdued in the course of the winter; the Isle of Inisbouffin received[f] a garrison, and a new force, which appeared in Ulster, under the Lord Iniskilling, obtained,[g] what was chiefly sought, the usual articles of transportation. The subjugation of Ireland was completed.[2]

[Footnote 1: On this gallant and honourable officer, who on several subsequent occasions displayed the most devoted attachment to the house of Stuart, see a very interesting article in Mr. Sheffield Grace's "Memoirs of the Family of Grace," p. 27.]

[Footnote 2: Ludlow, i. 341, 344, 347, 352, 354, 357, 359, 360. Heath, 310, 312, 324, 333, 344. Journals, April 8, 21, May 18, 25, Aug. 18.]

[Sidenote a: A.D. 1652. July 5.]

[Sidenote b: A.D. 1652. May 18.]

[Sidenote c: A.D. 1652. July.]

[Sidenote d: A.D. 1652. June 20.]

[Sidenote e: A.D. 1652. Aug. 1.]

[Sidenote f: A.D. 1652. January.]

[Sidenote g: A.D. 1652. May 18.]

3. Here, to prevent subsequent interruption, I may be allowed to describe the state of this unhappy country, while it remained under the sway of the commonwealth.

On the death of Ireton, Lambert had been appointed lord deputy; but by means of a female intrigue he was set aside in favour of Fleetwood, who

had married Ireton's widow.[1] To Fleetwood was assigned the command of the forces without a colleague; but in the civil administration were joined with him four other commissioners, Ludlow, Corbett, Jones, and Weaver. By their instructions they were commanded[a] and authorized to observe, as far as it was possible, the laws of England in the exercise of the government and the administration of justice; to "endeavour the promulgation of the gospel, and the power of true religion, and holiness;" to remove all disaffected or suspected persons from office; to allow no papist or delinquent to hold any place of trust, to practise as barrister or solicitor, or to keep school for

[Footnote 1: Journals, Jan. 30, June 15, July 9. Lambert's wife and Ireton's widow met in the park. The first, as her husband was in possession, claimed the precedency, and the latter complained of the grievance to Cromwell, her father, whose patent of lord lieutenant was on the point of expiring. He refused to have it renewed; and, as there could be no deputy where there was no principal, Lambert's appointment of deputy was in consequence revoked. But Mrs. Ireton was not content with this triumph over her rival. She married Fleetwood, obtained for him, through her father's interest, the chief command in place of Lambert, and returned with him to her former station in Ireland. Cromwell, however, paid for the gratification of his daughter's vanity. That he might not forfeit the friendship of Lambert, whose aid was necessary for his ulterior designs, he presented him with a considerable sum to defray the charges of the preparations which he had made for his intended voyage to Ireland,—Ludlow, i. 355, 360. Hutchinson, 196. Lambert, however, afterwards discovered that Cromwell had secretly instigated Vane and Hazlerig to oppose his going to Ireland, and, in revenge, joined with them to depose Richard Cromwell for the sin of his father.—Thurloe, vii. 660.]

[Sidenote a: A.D. 1652. August 24.]

the education of youth; to impose monthly assessments not exceeding forty thousand pounds in amount for the payment of the forces, and to imprison or discharge any person, or remove him from his dwelling into any other place or country, or permit him to return to his dwelling, as they should see cause for the advantage of the commonwealth.[1]

I. One of the first cares of the commissioners was to satisfy the claims of vengeance. In the year 1644 the Catholic nobility had petitioned the king that an inquiry might be made into the murders alleged to have been perpetrated on each side in Ireland, and that justice might be executed on the offenders without distinction of country or religion. To the conquerors it appeared more expedient to confine the inquiry to one party; and a high court of justice was established to try Catholics charged with having shed the blood of any Protestant out of battle since the commencement of the rebellion in 1641. Donnelan, a native, was appointed president, with commissary-general Reynolds, and Cook, who had acted as solicitor at the trial of Charles I., for his assessors. The court sat in great state at Kilkenny, and thence made its circuit through the island by Waterford, Cork, Dublin, and other places. Of the justice of its proceedings we have not the means of forming a satisfactory notion; but the cry for blood was too violent, the passions of men were too much excited, and the forms of proceeding too summary to allow the judges to weigh with cool and cautious discrimination the different cases which came before them. Lords Muskerry and Clanmalier, with Maccarthy Reagh, whether they owed it to their innocence or to the influence of

[Footnote 1: Journals, Aug. 34.]

friends, had the good fortune to be acquitted; the mother of Colonel Fitzpatric was burnt; Lord Mayo, colonels Tool, Bagnal, and about two hundred more, suffered death by the axe or by the halter. It was, however,

remarkable, that the greatest deficiency of proof occurred in the province where the principal massacres were said to have been committed. Of the men of Ulster, Sir Phelim O'Neil is the only one whose conviction, and execution, have been recorded.[1]

II. Cromwell had not been long in the island before he discovered that it was impossible to accomplish the original design of extirpating the Catholic population; and he therefore adopted the expedient of allowing their leaders to expatriate themselves with a portion of their countrymen, by entering into the service of foreign powers. This plan was followed by his successors in the war, and was perfected by an act of parliament, banishing all the Catholic officers. Each chieftain, when he surrendered, stipulated for a certain number of men: every facility was furnished him to complete his levy; and the exiles hastened to risk their lives in the service of the Catholic powers who hired them; many in that of Spain, others of France, others of Austria, and some of the republic of Venice. Thus the obnoxious population was reduced by the number of thirty, perhaps forty thousand able-bodied men; but it soon became a question how to dispose of their wives and families, of the wives and families of those who had perished by the ravages of disease and the casualties of war, and of the multitudes who, chased from their homes and employments, were reduced to a state of titter destitution. These at different times, to the amount of several

[Footnote 1: Ludlow, ii. 2, 5, 8-11. Heath, 332, 333.]

thousands, were collected in bodies, driven on shipboard, and conveyed to the West Indies.[1] Yet with all these drains on the one party, and the continual accession of English and Scottish colonists on the other, the Catholic was found to exceed the Protestant population in the proportion of eight to one.[2] Cromwell, when he had reached the zenith of his power, had recourse to a new expedient. He repeatedly solicited the fugitives, who,

in the reign of the late king, had settled in New England, to abandon their plantations and accept of lands in Ireland. On their refusal, he made the same offer to the Vaudois, the Protestants of Piedmont, but was equally unsuccessful. They preferred their native valleys, though

[Footnote 1: According to Petty (p. 187), six thousand boys and women were sent away. Lynch (*Cambrensis Eversus*, in fine) says that they were sold for slaves. Bruodin, in his *Propugnaculum* (Pragae, anno 1660) numbers the exiles at one hundred thousand. *Ultra centum millia omnis sexus et aetatis, e quibus aliquot millia in diversas Americae tabaccarias insulas relegata sunt* (p. 692). In a letter in my possession, written in 1656, it is said: *Catholicos pauperea plenis navibus mittunt in Barbados et insulas Americae. Credo jam sexaginta millia abivisse. Expulsis enim ab initio in Hispaniam et Belgium maritis, jam uxores et proles in Americam destinantur.*—After the conquest of Jamaica in 1655, the protector, that he might people it, resolved to transport a thousand Irish boys and a thousand Irish girls to the island. At first, the young women only were demanded to which it is replied: "Although we must use force in taking them up, yet, it being so much for their own good, and likely to be of so great advantage to the public, it is not in the least doubted that you may have such number of them as you shall think fit."—Thurloe, iv. 23. In the next letter II. Cromwell says: "I think it might be of like advantage to your affairs there, and ours here, if you should think fit to send one thousand five hundred or two thousand young boys of twelve or fourteen years of age to the place aforementioned. We could well spare them, and they would be of use to you; and who knows but it may be a means to make them Englishmen, I mean rather Christians?" (p. 40). Thurloe answers: "The committee of the council have voted one thousand girls, and as many youths, to be taken up for that purpose" (p. 75).]

[Footnote 2: Petty, *Polit. Arithmetic*, 29.]

under the government of a Catholic sovereign, whose enmity they had provoked, to the green fields of Erin, and all the benefits which they might derive from the fostering care and religions creed of the protector.[1]

III. By an act,[a] entitled an act for the settlement of Ireland, the parliament divided the royalists and Catholics into different classes, and allotted to each class an appropriate degree of punishment. Forfeiture of life and estate was pronounced against all the great proprietors of lands, banishment against those who had accepted commissions; the forfeiture of two-thirds of their estates against all who had borne arms under the confederates of the king's lieutenant, and the forfeiture of one-third against all persons whomsoever who had not been in the actual service of parliament, or had not displayed their constant good affection to the commonwealth of England. This was the doom of persons of property: to all others, whose estates, real and personal, did not amount to the value of ten pounds, a full and free pardon was graciously offered.[2]

Care, however, was taken that the third parts, which by this act were to be restored to the original proprietors, were not to be allotted to them out of their former estates, but "in such places as the parliament, for the more effectual settlement of the peace of the nation, should think fit to appoint." When the first plan of extermination had failed, another project was adopted of confining the Catholic landholders to Connaught and Clare, beyond the river Shannon, and of dividing the remainder of the island, Leinster, Munster, and Ulster, among Protestant colonists. This, it

[Footnote 1: Hutchinson, Hist. of Massachusetts, 190. Thurloe, iii. 459.]

[Footnote 2: Journals, Aug. 12, 1652. Scobell, ii. 197, Ludlow, i. 370. In the Appendix I have copied this act correctly from the original in the possession of Thomas Lloyd, Esq. See note (F).]

[Sidenote a: A.D. 1652. Aug. 12.]

was said, would prevent the quarrels which must otherwise arise between the new planters and the ancient owners; it would render rebellion more difficult and less formidable; and it would break the hereditary influence of the chiefs over their septs, and of the landlords over their tenants. Accordingly the little parliament, called by Cromwell and his officers, passed a second act,[a] which assigned to all persons, claiming under the qualifications described in the former, a proportionate quantity of land on the right bank of the Shannon; set aside the counties of Limerick, Tipperary, and Waterford in Munster, of King's County, Queen's County, West Meath, and East Meath in Leinster, and of Down, Antrim, and Armagh in Ulster, to satisfy in equal shares the English adventurers who had subscribed money in the beginning of the contest, and the arrears of the army that had served in Ireland since Cromwell took the command; reserved for the future disposal of the government the forfeitures in the counties of Dublin, Cork, Kildare, and Carlow; and charged those in the remaining counties with the deficiency, if there should be any in the first ten, with the liquidation of several public debts, and with the arrears of the Irish army contracted previously to the battle of Rathmines.

To carry this act into execution, the commissioners, by successive proclamations, ordered all persons who claimed under qualifications, and in addition, all who had borne arms against the parliament, to "remove and transplant" themselves into Connaught and Clare before the first of May, 1654.[1] How many

[Footnote 1: See on this question "The Great Subject of Transplantation in Ireland discussed," 1654. Laurence, "The Interest of England in the Irish

Transplantation stated," 1654; and the answer to Laurence by Vincent Gookin, the author of the first tract.]

[Sidenote: A.D. 1653. Sept. 26.]

were prevailed upon to obey, is unknown; but that they amounted to a considerable number is plain from the fact that the lands allotted to them in lieu of their third portions extended to more than eight hundred thousand English acres. Many, however, refused. Retiring into bogs and fastnesses, they formed bodies of armed men, and supported themselves and their followers by the depredations which they committed on the occupiers of their estates. They were called Raperees and Tories;^[1] and so formidable did they become to the new settlers, that in certain districts, the sum of two hundred pounds was offered for the head of the leader of the band, and that of forty pounds for the head of any one of the privates.^[2]

To maintain this system of spoliation, and to coerce the vindictive passions of the natives, it became necessary to establish martial law, and to enforce regulations the most arbitrary and oppressive. No Catholic was permitted to reside within any garrison or market town, or to remove more than one mile from his own dwelling without a passport describing his person, age, and occupation; every meeting of four persons besides the family was pronounced an illegal and treasonable assembly; to carry arms, or to have arms at home, was made a capital offence; and any transplanted Irishman, who was found on the left bank of the Shannon, might be put to death by the first person who met him, without the order of a magistrate. Seldom has any nation been reduced to a state of bondage more galling and oppressive. Under

[Footnote 1: This celebrated party name, "Tory," is derived from "toruighim," to pursue for the sake of plunder.—O'Connor, Bib. Stowensis, ii. 460.]

[Footnote 2: Burton's Diary, ii. 210.]

the pretence of the violation of these laws, their feelings were outraged, and their blood was shed with impunity. They held their property, their liberty, and their lives, at the will of the petty despots around them, foreign planters, and the commanders of military posts, who were stimulated by revenge and interest to depress and exterminate the native population.[1]

IV. The religion of the Irish proved an additional source of solicitude to their fanatical conquerors. By one of the articles concluded with Lord Westmeath, it was stipulated that all the inhabitants of Ireland should enjoy the benefit of an act lately passed in England "to relieve peaceable persons from the rigours of former acts in matters of religion;" and that no Irish recusant should be compelled to assist at any form of service contrary to his conscience. When the treaty was presented for ratification, this concession shocked and scandalized the piety of the saints. The first part was instantly negatived; and, if the second was carried by a small majority through the efforts of Marten and Vane, it was with a proviso that "the article should not give any the least allowance, or countenance, or toleration, to the exercise of the Catholic worship in any manner whatsoever." [2]

In the spirit of these votes, the civil commissioners ordered by proclamation[a] all Catholic clergymen to quit Ireland within twenty days, under the penalties of high treason, and forbade all other persons to harbour any such clergymen under the pain of death. Additional provisions tending to the same object followed in succession. Whoever knew of the concealment

[Footnote 1: Bruodin, 693. *Hibernia Dominicana*, 706.]

[Footnote 2: Journals, 1652, June 1.]

[Sidenote a: A.D. 1653. Jan. 6.]

of a priest, and did not reveal it to the proper authorities, was made liable to the punishment of a public whipping and the amputation of his ears; to be absent on a Sunday from the service at the parish church, subjected the offender to a fine of thirty pence; and the magistrates were authorized to take away the children of Catholics and send them to England for education, and to tender the oath of abjuration to all persons of the age of one and twenty years, the refusal of which subjected them to imprisonment during pleasure, and to the forfeiture of two-thirds of their estates real and personal.[1]

During this period the Catholic clergy were exposed to a persecution far more severe than had ever been previously experienced in the island. In former times the chief governors dared not execute with severity the laws against the Catholic priesthood, and the fugitives easily found security on the estates of the great landed proprietors. But now the Irish people lay prostrate at the feet of their conquerors; the military were distributed in small bodies over the country; their vigilance was sharpened by religious antipathy and the hope of reward; and the means of detection were facilitated by the prohibition of travelling without a license from the magistrates. Of the many priests who still remained in the country, several were discovered, and forfeited their lives on the gallows; those who escaped detection concealed themselves in the caverns of the mountains, or in lonely hovels raised in the midst of the morasses, whence they issued during the night to carry the consolations

[Footnote 1: *Hibernia Dominicana*, 707. Bruodin, 696. Porter, *Compendium Annalium Ecclesiasticorum* (Romae, 1690), p. 292.]

of religion to the huts of their oppressed and suffering countrymen.[1]

3. In Scotland the power of the commonwealth was as firmly established as in Ireland. When Cromwell hastened in pursuit of the king to Worcester, he left Monk with eight thousand men to complete the conquest of the kingdom. Monk invested Stirling; and the Highlanders who composed the garrison, alarmed by the explosion of the shells from the batteries, compelled[a] the governor to capitulate. The maiden castle, which had never been violated by the presence of a conqueror,[2] submitted to the English "sectaries;" and, what was still more humbling to the pride of the nation, the royal robes, part of the regalia, and the national records, were irreverently torn from their repositories, and sent to London as the trophies of victory. Thence the English general marched forward to Dundee, where he received a proud defiance from Lumsden, the governor. During the preparations for the assault, he learned that the Scottish lords, whom Charles had intrusted with the government in his absence, were holding a meeting on the moor at Ellet, in Angus. By his order, six hundred horse, under the colonels Alured and Morgan, aided, as it was believed, by treachery, surprised them at an early hour in the morning.[b] Three hundred prisoners were made, including the two committees of

[Footnote 1: MS. letters in my possession. Bruodin, 696. A proclamation was also issued ordering all nuns to marry or leave Ireland. They were successively transported to Belgium, France, and Spain, where they were hospitably received in the convents of their respective orders.]

[Footnote 2: "Haec nobis invicta tulerunt centum sex proavi, 1617," was the boasting inscription which King James had engraved on the wall.—Clarke's official account to the Speaker, in Cary, ii. 327. Echard, 697.]

[Sidenote a: A.D. 1651. Aug. 14.]

[Sidenote b: A.D. 1651. Aug. 28.]

the estates and the kirk, several peers, and all the gentry of the neighbourhood; and these, with such other individuals as the general deemed hostile and dangerous to the commonwealth, followed the regalia and records of their country to the English capital. At Dundee a breach was soon made in the wall: the defenders shrunk from the charge of the assailants; and the governor and garrison were massacred.[a] I must leave it to the imagination of the reader to supply the sufferings of the inhabitants from the violence, the lust, and the rapacity of their victorious enemy. In Dundee, on account of its superior strength, many had deposited their most valuable effects; and all these, with sixty ships and their cargoes in the harbour, became the reward of the conquerors.[1]

Warned by this awful example, St. Andrews, Aberdeen, and Montrose opened their gates; the earl of Huntley and Lord Balcarras submitted; the few remaining fortresses capitulated in succession; and if Argyle, in the midst of his clan, maintained a precarious and temporary independence, it was not that he cherished the expectation of evading the yoke, but that he sought to draw from the parliament the acknowledgment of a debt which he claimed of the English

[Footnote 1: Heath, 301, 302. Whitelock, 508. Journals, Aug. 27. Milton's S. Pap. 79. Balfour, iv. 314, 315. "Mounche commaundit all, of quhatsummeur sex, to be putt to the edge of the sword. Ther wer 800 inhabitants and souldiers killed, and about 200 women and children. The plounder and buttie they gatte in the toune, exceided 2 millions and a halffe" (about £200,000). That, however, the whole garrison was not put to the sword appears from the mention in the Journals (Sept. 12) of a list of officers made prisoners, and from Monk's letter to Cromwell. "There was killed of the enemy about 500, and 200 or thereabouts taken prisoners. The stubbornness of the people enforced the soldiers to plunder the town."—Cary's Memorials, ii. 351.]

[Sidenote a: A.D. 1651 Sept. 1.]

government.[1] To destroy the prospect, by showing the hopelessness of resistance, the army was successively augmented to the amount of twenty thousand men;[2] citadels were marked out to be built of stone at Ayr, Leith, Perth, and Inverness; and a long chain of military stations drawn across the Highlands served to curb, if it did not tame, the fierce and indignant spirit of the natives. The parliament declared the lands and goods of the crown public property, and confiscated the estates of all who had joined the king or the duke of Hamilton in their invasions of England, unless they were engaged in trade, and worth no more than five pounds, or not engaged in trade, and worth only one hundred pounds. All authority derived from any other source than the parliament of England was abolished[a] by proclamation; the different sheriffs, and civil officers of doubtful fidelity, were removed for others attached to the commonwealth; a yearly tax of one hundred and thirty thousand pounds was imposed in lieu of free quarters for the support of the army; and English judges, assisted by three or four natives, were appointed to go the circuits, and to supersede the courts of session.[3] It was with grief

[Footnote 1: Balfour, iv. 315. Heath, 304, 308, 310, 313. Whitelock, 514, 534, 543.]

[Footnote 2: Journals, Dec. 2, 1652.]

[Footnote 3: Ludlow, 345. Heath, 313, 326. Whitelock, 528, 542. Journals, Nov. 19. Leicester's Journal, 129. The English judges were astonished at the spirit of litigation and revenge which the Scots displayed during the circuit. More than one thousand individuals were accused before them of adultery, incest, and other offences, which they had been obliged to confess in the kirk during the last twenty or thirty years. When no other proof was brought, the charge was dismissed. In like manner sixty persons

were charged with witchcraft. These were also acquitted; for, though they had confessed the offence, the confession had been drawn from them by torture. It was usual to tie up the supposed witch by the thumbs, and to whip her till she confessed; or to put the flame of a candle to the soles of the feet, between the toes, or to parts of the head, or to make the accused wear a shirt of hair steeped in vinegar &c.—See Whitelock, 543, 544, 545, 547, 548.]

[Sidenote a: A.D. 1651. Jan. 22.]

and shame that the Scots yielded to these innovations; though they were attended with one redeeming benefit, the prevention of that anarchy and bloodshed which must have followed, had the Cavaliers and Covenanters, with forces nearly balanced, and passions equally excited, been left to wreck their vengeance on each other. But they were soon threatened with what in their eyes was a still greater evil. The parliament resolved to incorporate the two countries into one commonwealth, without kingly government or the aristocratical influence of a house of peers. This was thought to fill up the measure of Scottish misery. There is a pride in the independence of his country, of which even the peasant is conscious; but in this case not only national but religious feelings were outraged. With the civil consequences of an union which would degrade Scotland to the state of a province, the ministers in their ecclesiastical capacity had no concern; but they forbade[a] the people to give consent or support to the measure, because it was contrary to the covenant, and tended "to draw with it a subordination of the kirk to the state in the things of Christ." [1] The parliamentary commissioners (they were eight, with St. John and Vane at their head), secure of the power of the sword, derided the menaces of the kirk. They convened at Dalkeith the representatives of the counties and burghs, who were ordered to bring with them full powers to treat and conclude respecting the incorporation of the two countries. Twenty-eight

[Footnote 1: Whitelock, 521. Heath, 307.]

[Sidenote a: A.D. 1652. Jan. 21]

out of thirty shires, and forty-four out of fifty-eight burghs, gave their consent; and the result was a second meeting at Edinburgh, in which twenty-one deputies were chosen to arrange the conditions with the parliamentary commissioners at Westminster. There conferences were held, [a] and many articles discussed; but, before the plan could be amicably adjusted, the parliament itself, with all its projects, was overturned[b] by the successful ambition of Cromwell.[1]

4. From the conquest of Ireland and Scotland we may now turn to the transactions between the commonwealth and foreign powers. The king of Portugal was the first who provoked its anger, and felt its vengeance. At an early period in 1649, Prince Rupert, with the fleet which had revolted from the parliament to the late king, sailed[c] from the Texel, swept the Irish Channel, and inflicted severe injuries on the English commerce. Vane, to whose industry had been committed the care of the naval department, made every exertion to equip a formidable armament, the command of which was given to three military officers, Blake, Dean, and Popham. Rupert retired[d] before this superior force to the harbour of Kinsale; the batteries kept his enemies at bay; and the Irish supplied him with men and provisions. At length the victories of Cromwell by land admonished him to quit his asylum; and, with the loss of three ships, he burst[e] through the blockading squadron, sailed to the coast of Spain, and during the winter months sought shelter in the waters of the Tagus. In spring, Blake appeared[f] with eighteen men-of-war at the mouth of the river; to his request that he

[Footnote 1: Journals, 1652, March 16, 24, 26, April 2, May 14, Sept. 15, 29, Oct. 29, Nov. 23.]

[Sidenote a: A.D. 1651. Sept. 22.]

[Sidenote b: A.D. 1651. Oct. 12.]

[Sidenote c: A.D. 1649. March.]

[Sidenote d: A.D. 1649. May.]

[Sidenote e: A.D. 1649. October.]

[Sidenote f: A.D. 1650. March.]

might be allowed to attack the pirate at his anchorage, he received from the king of Portugal a peremptory refusal; and, in his attempt to force his way up the river he was driven back by the fire from the batteries. In obedience to his instructions, he revenged himself on the Portuguese trade, and Don John, by way of reprisal, arrested the English merchants, and took possession of their effects. Alarmed, however, by the losses of his subjects, he compelled[a] Rupert to quit the Tagus,[1] and despatched[b] an envoy, named Guimaraes, to solicit an accommodation. Every paper which passed between this minister and the commissioners was submitted to the parliament, and by it approved, or modified, or rejected. Guimaraes subscribed[c] to the preliminaries demanded by the council, that the English merchants arrested in Portugal should be set at liberty, that they should receive an indemnification for their losses, and that the king of Portugal should pay a sum of money towards the charges of the English fleet; but he protracted the negotiation, by disputing dates and details, and was haughtily commanded[d] to quit the territory of the commonwealth. Humbling as it was to Don John, he had no resource; the Conde de Camera was sent,[e] with the title of ambassador extraordinary; he assented to every

[Footnote 1: Thurloe, i. 134, 142, 155. Heath, 254, 256, 275. Whitelock, 406, 429, 449, 463, 475. Clarendon, iii. 338. Rupert sailed into the Mediterranean, and maintained himself by piracy, capturing not only English but Spanish and Genoese ships. All who did not favour him were considered as enemies. Driven from the Mediterranean by the English, he

sailed to the West Indies, where he inflicted greater losses on the Spanish than the English trade. Here his brother, Prince Maurice, perished in a storm; and Rupert, unable to oppose his enemies with any hope of success, returned to Europe, and anchored in the harbour of Nantes, in March, 1652. He sold his two men-of-war to Cardinal Mazarin.—Heath, 337. Whitelock, 552. Clarendon, iii. 513, 520.]

[Sidenote a: A.D. 1650. October.]

[Sidenote b: A.D. 1650. Dec. 17.]

[Sidenote c: A.D. 1651. April 22.]

[Sidenote d: A.D. 1651. May 16.]

[Sidenote e: A.D. 1652. July 7.]

demand; but the progress of the treaty was interrupted by the usurpation of Cromwell, and another year elapsed before it was[a] concluded. By it valuable privileges were granted to the English traders; four commissioners, —two English and two Portuguese, were appointed[b] to settle all claims against the Portuguese government; and it was agreed[c] that an English commissary should receive one-half of all the duties paid by the English merchants in the ports of Portugal, to provide a sufficient fund for the liquidation of the debt.[1]

5. To Charles I. (nor will it surprise us, if we recollect his treatment of the Infanta) the court of Spain had always behaved with coldness and reserve. The ambassador Cardenas continued to reside in London, even after the king's execution, and was the first foreign minister whom the parliament honoured with a public audience. He made it his chief object to cement the friendship between the commonwealth and his own country, fomented the hostility of the former against Portugal and the United Provinces, the ancient enemies of Spain, and procured the assent of his sovereign that an accredited minister from the parliament should be admitted by the court of

Madrid. The individual selected[d] for this office was Ascham, a man who, by his writings, had rendered himself peculiarly obnoxious to the royalists. He landed[e] near Cadiz, proceeded under an escort for his protection to Madrid, and repaired[f] to an inn, till a suitable residence could be procured. The next day,[g] while he was sitting at dinner with Riba, a renegado friar, his interpreter,

[Footnote 1: Journals, 1650, Dec. 17; 1651, April 4, 11, 22, May 7, 13, 16; 1652, Sept. 30, Dec. 15; 1653, Jan. 5. Whitelock, 486. Dumont, vi. p. ii. 82.]

[Sidenote a: A.D. 1653. Jan. 5.]

[Sidenote b: A.D. 1651. July 10.]

[Sidenote c: A.D. 1651. July 14.]

[Sidenote d: A.D. 1650. Jan. 31.]

[Sidenote e: A.D. 1650. April 3.]

[Sidenote e: A.D. 1650. May 26.]

[Sidenote g: A.D. 1650. May 27.]

six Englishmen entered the house; four remained below to watch; two burst into the room, exclaiming, "Welcome, gallants, welcome;" and in a moment both the ambassador and the interpreter lay on the floor weltering in their blood. Of the assassins, one, a servant to Cottington and Hyde, the envoys from Charles, fled to the house of the Venetian ambassador, and escaped; the other five took refuge in a neighbouring chapel, whence, by the king's order, they were conducted to the common goal. When the criminal process was ended, they all received judgment of death. The crime, it was acknowledged, could not be justified; yet the public feeling was in favour of the criminals: the people, the clergy, the foreign ambassadors, all sought to save them from punishment; and, though the right of sanctuary did not afford protection to murderers, the king was, but with difficulty,

persuaded to send them back to their former asylum. Here, while they remained within its precincts, they were safe; but the moment they left the sanctuary, their lives became forfeited to the law. The people supplied them with provisions, and offered the means of escape. They left Madrid; the police pursued; Sparkes, a native of Hampshire, was taken about three miles from the city; and the parliament, unable to obtain more, appeared to be content with the blood of this single victim.[1]

6. These negotiations ended peaceably; those between the commonwealth and the United Provinces, though commenced with friendly feelings, led to hostilities. It might have been expected that the Dutch, mindful of the glorious struggle for liberty maintained

[Footnote 1: Compare Clarendon, iii. 369, with the Papers in Thurloe, i. 148-153, 202, and Harleian Miscellany, iv. 280.]

by their fathers, and crowned with success by the treaty of Munster, would have viewed with exultation the triumph of the English republicans. But William the Second, prince of Orange, had married[a] a daughter of Charles I.; his views and interests were espoused by the military and the people; and his adherents possessed the ascendancy in the States General and in all the provincial states, excepting those of West Friesland and Holland. As long as he lived, no atonement could be obtained for the murder of Dorislaus, no audience for Strickland, the resident ambassador, though that favour was repeatedly granted to Boswell, the envoy of Charles. [1] However, in November the prince died[b] of the small-pox in his twenty-fourth year; and a few days later[c] his widow was delivered of a son, William III., the same who subsequently ascended the throne of England. The infancy of his successor emboldened the democratical party; they abolished the office of stadtholder, and recovered the ascendancy in the government. On the news of this revolution, the council advised that St.

John, the chief justice of the Common Pleas, and Strickland, the former envoy, should be appointed ambassadors extraordinary to the States General. St. John, with the fate of Ascham before his eyes, sought to escape this dangerous mission; he alleged[d] the infirmity of his health and the insalubrity of the climate; but the parliament derided his timidity, and his petition was dismissed on a division by a considerable majority.[2]

Among the numerous projects which the English leaders cherished under the intoxication of success, was that of forming, by the incorporation of the

[Footnote 1: Thurloe, i. 112, 113, 114, 124.]

[Footnote 2: Journals, 1651, Jan. 21, 23, 28.]

[Sidenote a: A.D. 1646. Dec. 8.]

[Sidenote b: A.D. 1650. Nov. 6.]

[Sidenote c: A.D. 1650. Nov. 14.]

[Sidenote d: A.D. 1651. Jan. 28.]

United Provinces with the commonwealth, a great and powerful republic, capable of striking terror into all the crowned heads of Europe. But so many difficulties were foreseen, so many objections raised, that the ambassadors received instructions to confine themselves to the more sober proposal of "a strict and intimate alliance and union, which might give to each a mutual and intrinsical interest" in the prosperity of the other. They made their public entry into the Hague[a] with a parade and retinue becoming the representatives of a powerful nation; but external splendour did not check the popular feeling, which expressed itself by groans and hisses, nor intimidate the royalists, who sought every occasion of insulting "the things called ambassadors." [1] The States had not forgotten the offensive delay of the parliament to answer their embassy of intercession for the life of Charles I.; nor did they brook the superiority which it now assumed, by

prescribing a certain term within which the negotiation should be concluded. Pride was met with equal pride; the ambassadors were compelled to solicit a prolongation of their powers,[b] and the treaty began to proceed with greater rapidity. The English proposed[c] a confederacy for the preservation of the liberties of each nation against all the enemies

[Footnote 1: Thus they are perpetually called in the correspondence of the royalists.—Carte's Letters, i. 447, 469; ii. 11. Strickland's servants were attacked at his door by six cavaliers with drawn swords; an attempt was made to break into St. John's bedchamber; Edward, son to the queen of Bohemia, publicly called the ambassadors rogues and dogs; and the young duke of York accidentally meeting St. John, who refused to give way to him, snatched the ambassador's hat off his head and threw it in his face, saying, "Learn, parricide, to respect the brother of your king." "I scorn," he replied, "to acknowledge either, you race of vagabonds." The duke drew his sword, but mischief was prevented by the interference of the spectators,—New Parl. Hist. iii. 1, 364.]

[Sidenote a: A.D. 1651. March 10.]

[Sidenote b: A.D. 1651. April 17.]

[Sidenote c: A.D. 1651. May 10.]

of either by sea and land, and a renewal of the whole treaty of 1495, with such modifications as might adapt it to existing times and circumstances. The States, having demanded in vain an explanation of the proposed confederacy,[a] presented a counter project;[b] but while the different articles remained under discussion, the period prefixed by the parliament expired, and the ambassadors departed. To whom the failure of the negotiation was owing became a subject of controversy. The Hollanders blamed the abrupt and supercilious carriage of St. John and his colleague; the ambassadors charged the States with having purposely created delay,

that they might not commit themselves by a treaty with the commonwealth, before they had seen the issue of the contest between the king of Scotland and Oliver Cromwell.[1]

In a short time that contest was decided in the battle of Worcester, and the States condescended to become petitioners in their turn. Their ambassadors arrived in England with the intention of resuming the negotiation where it had been interrupted by the departure of St. John and his colleague. But circumstances were now changed; success had enlarged the pretensions of the parliament; and the British, instead of shunning, courted a trial of strength with the Belgic lion. First, the Dutch merchantmen were visited under the pretext of searching for munitions of war, which they were carrying to the enemy; and then, at the representation of certain merchants, who conceived themselves to have been injured by the Dutch navy, letters of marque were granted to several individuals, and more than eighty prizes brought into

[Footnote 1: Thurloe, i. 179, 183, 188-195. Heath, 285-287. Carte's Letters, i. 464. Leicester's Journal, 107. Parl. History, xx. 496.]

[Sidenote a: A.D. 1651. June 14.]

[Sidenote b: A.D. 1651. June 20.]

the English ports.[1] In addition, the navigation act had been passed and carried into execution,[a] by which it was enacted that no goods, the produce of Africa, Asia, and America, should be imported into this country in ships which were not the property of England or its colonies; and that no produce or manufacture of any part of Europe should be imported, unless in ships the property of England or of the country of which such merchandise was the proper growth or manufacture.[2] Hitherto the Dutch had been the common carriers of Europe; by this act, the offspring of St. John's resentment, one great and lucrative branch of their commercial prosperity

was lopped off, and the first, but fruitless demand of the ambassadors was that, if not repealed, it should at least be suspended during the negotiation.

The Dutch merchants had solicited permission to indemnify themselves by reprisals; but the States ordered a numerous fleet to be equipped, and announced to all the neighbouring powers that their object was, not to make war, but to afford protection to their commerce. By the council of state, the communication was received as a menace; the English ships of war were ordered to exact in the narrow seas the same honour to the flag of the commonwealth as had been formerly paid to that of the king; and the

[Footnote 1: It seems probable that the letters of marque were granted not against the Dutch, but the French, as had been done for some time, and that the Dutch vessels were detained under pretence of their having French property on board. *Suivant les pretextes de reprisailles contre les François et autres.*—Dumont, vi. ii. 32.]

[Footnote 2: An exception was made in favour of commodities from the Levant seas, the West Indies, and the ports of Spain and Portugal, which might be imported from the usual places of trading, though they were not the growth of the said places. The penalty was the forfeiture of the ship and cargo, one moiety to the commonwealth, the other to the informer.—*New Parl. Hist.* iii. 1374.]

[Sidenote a: A.D. 1651. Oct. 9.]

ambassadors were reminded of the claim of indemnification for the losses sustained by the English in the East Indies, of a free trade from Middleburgh to Antwerp, and of the tenth herring which was due from the Dutch fishermen for the permission to exercise their trade in the British seas.

While the conferences were yet pending, Commodore Young met[a] a fleet of Dutch merchantmen under convoy in the Channel; and, after a sharp action, compelled the men-of-war to salute the English flag. A few days later[b] the celebrated Van Tromp appeared with two-and-forty sail in the Downs. He had been instructed to keep at a proper distance from the English coast, neither to provoke nor to shun hostility, and to salute or not according to his own discretion; but on no account to yield to the newly-claimed right of search.[1] To Bourne, the English, commander, he apologized for his arrival, which, he said, was not with any hostile design, but in consequence of the loss of several anchors and cables on the opposite coast. The next day[c] he met Blake off the harbour of Dover; an action took place between the rival commanders; and, when the fleets separated in the evening, the English cut off two ships of thirty guns, one of which they took, the other they abandoned, on account of the damage which it had received.

It was a question of some importance who was the aggressor. By Blake it was asserted that Van Tromp had gratuitously come to insult the English fleet in its own roads, and had provoked the engagement by firing the first broadside. The Dutchman replied that

[Footnote 1: Le Clerc, i. 315. The Dutch seem to have argued that the salute had formerly been rendered to the king, not to the nation.]

[Sidenote a: A.D. 1652. May 12.]

[Sidenote b: A.D. 1652. May 18.]

[Sidenote c: A.D. 1652. May 19.]

he was cruising for the protection of trade; that the weather had driven him on the English coast; that he had no thought of fighting till he received the fire of Blake's ship; and that, during the action, he had carefully kept on

the defensive, though he might with his great superiority of force have annihilated the assailants.[1]

The reader will probably think, that those who submitted to solicit the continuance of peace were not the first to seek the commencement of hostilities. Immediately after the action at sea, the council ordered the English commanders to pursue, attack, and destroy all vessels the property of the United Provinces; and, in the course of a month, more than seventy sail of merchantmen, besides several men-of-war, were captured, stranded, or burnt. The Dutch, on the contrary, abstained from reprisals; their ambassadors thrice assured the council that the battle had happened without the knowledge, and to the deep regret of the States;^[a] and on each occasion earnestly deprecated the adoption of hasty and violent measures, which might lead to consequences highly prejudicial to both nations. They received an answer,^[b] which, assuming it as proved that the States intended to usurp the rights of England on the sea, and to

[Footnote 1: The great argument of the parliament in their declaration is the following: Tromp came out of his way to meet the English fleet, and fired on Blake without provocation; the States did not punish him, but retained him in the command; therefore he acted by their orders, and the war was begun by them. Each of these assertions was denied on the other side. Tromp showed the reasons which led him into the track of the English fleet; and the States asserted, from the evidence before them, that Tromp had ordered his sails to be lowered, and was employed in getting ready his boat to compliment the English admiral at the time when he received a broadside from the impatience of Blake.—Dumont, vi. p. ii. 33. Le Clerc, i. 315, 317. Basnage, i. 254. Heath, 315-320.]

[Sidenote a: A.D. 1652. May 24, 27, June 3.]

[Sidenote b: A.D. 1652. June 5.]

destroy the navy, the bulwark of those rights, declared that it was the duty of parliament to seek reparation for the past, and security for the future.[1]

Soon afterwards Pauw, the grand pensionary, arrived.[a] He repeated with the most solemn asseverations from his own knowledge the statement of the ambassadors;[b] proposed that a court of inquiry, consisting of an equal number of commissioners from each nation, should be appointed, and exemplary punishment inflicted on the officer who should be found to have provoked the engagement; and demanded that hostilities should cease, and the negotiation be resumed. Receiving no other answer than had been already given to his colleagues, he asked[c] what was meant by "reparation and security;" and was told by order of parliament, that the English government expected full compensation for all the charges to which it had been put by the preparations and attempts of the States, and hoped to meet with security for the future in an alliance which should render the interests of both nations consistent with each other. These, it was evident, were conditions to which the pride of the States would refuse to stoop; Pauw demanded[d] an audience of leave of the parliament; and all hope of reconciliation vanished.[2]

If the Dutch had hitherto solicited peace, it was not that they feared the result of war. The sea was their native element; and the fact of their maritime superiority had long been openly or tacitly acknowledged by all the powers of Europe. But they wisely

[Footnote 1: Heath, 320, 321.]

[Footnote 2: Compare the declaration of parliament of July 9 with that of the States General of July 23, Aug. 2. See also Whitelock, 537; Heath, 315-322; the Journals, June 5, 11, 25, 30; and Le Clerc, i. 318-321.]

[Sidenote a: A.D. 1652. June 11.]

[Sidenote b: A.D. 1652. June 17.]

[Sidenote c: A.D. 1652. June 25.]

[Sidenote d: A.D. 1652. June 30.]

judged that no victory by sea could repay them for the losses which they must sustain from the extinction of their fishing trade, and the suspension of their commerce.[1] For the commonwealth, on the other hand, it was fortunate that the depredations of Prince Rupert had turned the attention of the leaders to naval concerns. Their fleet had been four years in commission: the officers and men were actuated by the same spirit of civil liberty and religious enthusiasm which distinguished the land army; Ayscue had just returned from the reduction of Barbadoes with a powerful squadron; and fifty additional ships were ordered to be equipped, an object easily accomplished at a time when any merchantman capable of carrying guns could, with a few alterations, be converted into a man-of-war.[2] Ayscue with the smaller division of the fleet remained at home to scour the Channel.[a] Blake sailed to the north, captured the squadron appointed to protect the Dutch fishing-vessels, exacted from the busses the duty of every tenth herring, and sent them home with a prohibition to fish again without a license from the English government. In the mean while Van Tromp sailed from the Texel with seventy men-of-war. It was expected in Holland that he would sweep the English navy from the face of the ocean. His first attempt was to surprise Ayscue, who was saved by a calm followed by a change of wind. He then sailed to the north in search of Blake. But

[Footnote 1: The fishery employed in various ways one hundred thousand persons.—Le Clerc, 321.]

[Footnote 2: From a list of hired merchantmen converted into men-of-war, it appears that a ship of nine hundred tons burthen made a man-of-war

of sixty guns; one of seven hundred tons, a man-of-war of forty-six; four hundred, of thirty-four; two hundred, of twenty; one hundred, of ten; sixty, of eight; and that about five or six men were allowed for each gun.— Journals, 1651, May 29.]

[Sidenote a: A.D. 1652. July 19.]

his fleet was dispersed by a storm; five of his frigates fell into the hands of the English; and on his return he was received with murmurs and reproaches by the populace. Indignant at a treatment which he had not deserved, he justified his conduct before the States, and then laid down his commission.[1]

De Ruyter, a name almost equally illustrious on the ocean, was appointed his successor. That officer sailed to the mouth of the Channel, took under his charge a fleet of merchantmen, and on his return was opposed by Ayscue with nearly an equal force. The English commander burst through the enemy, and was followed by nine sail; the rest of the fleet took no share in the action, and the convoy escaped. The blame rested not with Ayscue, but with his inferior officers; but the council took the opportunity to lay him aside, not that they doubted his courage or abilities, but because he was suspected of a secret leaning to the royal cause. To console him for his disgrace, he received a present of three hundred pounds, with a grant of land of the same annual rent in Ireland.[2]

De Witte now joined De Ruyter,[a] and took the command. Blake accepted the challenge of battle, and night alone separated the combatants. The next morning the Dutch fled, and were pursued as far as the Goree. Their ships were in general of smaller dimensions, and drew less water than those of their adversaries, who dared not follow among the numerous sand-banks with which the coast is studded.[3]

Blake, supposing that naval operations would be suspended during the winter, had detached several

[Footnote 1: Whitelock, 538, 539, 540, 541. Heath, 322. Le Clerc, i. 321.]

[Footnote 2: Heath, 323. Le Clerc, i. 322.]

[Footnote 3: Ibid. 326. Ludlow, i. 367. Whitelock, 545. Le Clerc, i. 324.]

[Sidenote a: A.D. 1652. Sept. 28.]

squadrons to different ports, and was riding in the Downs with thirty-seven sail, when he was surprised by the appearance[a] of a hostile fleet of double that number, under the command of Van Tromp, whose wounded pride had been appeased with a new commission. A mistaken sense of honour induced the English admiral to engage in the unequal contest. The battle[b] raged from eleven in the morning till night. The English, though they burnt a large ship and disabled two others, lost five sail either sunk or taken; and Blake, under cover of the darkness, ran up the river as far as Leigh. Van Tromp sought his enemy at Harwich and Yarmouth; returning, he insulted the coast as he passed; and continued to cruise backwards and forwards from the North Foreland to the Isle of Wight.[1]

The parliament made every exertion to wipe away this disgrace. The ships were speedily refitted; two regiments of infantry embarked to serve as marines; a bounty was offered for volunteers; the wages of the seamen were raised; provision was made for their families during their absence on service; a new rate for the division of prize-money was established; and, in aid of Blake, two officers, whose abilities had been already tried, Deane and Monk, received the joint command of the fleet. On the other hand, the Dutch were intoxicated with their success; they announced it to the world, in prints, poems, and publications; and Van Tromp affixed a broom to the

head of his mast as an emblem of his triumph. He had gone to the Isle of Rhée to take the homeward-bound trade under his charge, with orders to resume his station at the mouth of the Thames, and to prevent the egress of

[Footnote 1: Heath, 329. Ludlow, ii. 3. Neuville, iii. 68.]

[Sidenote a: A.D. 1652. Nov. 29.]

[Sidenote b: A.D. 1652. Nov. 30.]

the English. But Blake had already stationed himself with more than seventy sail across the Channel, opposite the Isle of Portland, to intercept the return of the enemy. On the 18th of February the Dutch fleet, equal in number, with three hundred merchantmen under convoy, was discovered[a] near Cape La Hogue, steering along the coast of France. The action was maintained with the most desperate obstinacy. The Dutch lost six sail, either sunk or taken, the English one, but several were disabled, and Blake himself was severely wounded.

The following morning[b] the enemy were seen opposite Weymouth, drawn up in the form of a crescent covering the merchantmen. Many attempts were made to break through the line; and so imminent did the danger appear to the Dutch admiral, that he made signal for the convoy to shift for themselves. The battle lasted at intervals through the night; it was renewed with greater vigour near Boulogne in the morning;[c] till Van Tromp, availing himself of the shallowness of the coast, pursued his course homeward unmolested by the pursuit of the enemy. The victory was decidedly with the English; the loss in men might be equal on both sides; but the Dutch themselves acknowledged that nine of their men-of-war and twenty-four of the merchant vessels had been either sunk or captured.[1]

This was the last naval victory achieved under the auspices of the parliament, which, though it wielded the powers of government with an

energy that surprised

[Footnote 1: Heath, 335. Whitelock, 551. Leicester's Journal, 138. Le Clerc, i. 328. Basnage, i. 298-301. By the English admirals the loss of the Dutch was estimated at eleven men-of-war and thirty merchantmen.]

[Sidenote a: A.D. 1653. Feb. 18.]

[Sidenote b: A.D. 1653. Feb. 19.]

[Sidenote c: A.D. 1653. Feb. 20.]

the several nations of Europe, was doomed to bend before the superior genius or ascendancy of Cromwell. When that adventurer first formed the design of seizing the supreme authority, is uncertain; it was not till after the victory at Worcester that he began gradually and cautiously to unfold his object. He saw himself crowned with the laurels of conquest; he held the command in chief of a numerous and devoted army; and he dwelt with his family in a palace formerly the residence of the English monarchs. His adversaries had long ago pronounced him, in all but name, "a king;" and his friends were accustomed to address him in language as adulatory as ever gratified the ears of the most absolute sovereign.[1] His importance was perpetually forced upon his notice by the praise of his dependants, by the foreign envoys who paid court to him, and by the royalists who craved his protection. In such circumstances, it cannot be surprising if the victorious general indulged the aspirings of ambition; if the stern republican, however he might hate to see the crown on the brows of another, felt no repugnance to place it upon his own.

The grandees of the army felt that they no longer possessed the chief sway in the government. War had called them away to their commands in Scotland and Ireland; and, during their absence, the conduct of affairs had devolved on those who, in contradistinction, were denominated the statesmen. Thus, by the course

[Footnote 1: The general officers conclude their despatches to him thus: "We humbly lay ourselves with these thoughts, in this emergency, at your excellency's feet."—Milton's State Papers, 71. The ministers of Newcastle make "their humble addresses to his godly wisdom," and present "their humble suits to God and his excellency" (ibid. 82); and the petitioners from different countries solicit him to mediate for them to the parliament, "because God has not put the sword in his hand in vain."—Whitelock, 517.]

of events, the servants had grown into masters, and the power of the senate had obtained the superiority over the power of the sword. Still the officers in their distant quarters jealously watched, and severely criticised the conduct of the men at Westminster. With want of vigour in directing the military and naval resources of the country, they could not be charged; but it was complained that they neglected the internal economy of government; that no one of the objects demanded in the "agreement of the people" had been accomplished; and that, while others sacrificed their health and their lives in the service of the commonwealth, all the emoluments and patronage were monopolized by the idle drones who remained in the capital.[1]

On the return of the lord-general, the council of officers had been re-established at Whitehall;[a] and their discontent was artfully employed by Cromwell in furtherance of his own elevation. When he resumed his seat in the house, he reminded the members of their indifference to two measures earnestly desired by the country, the act of amnesty and the termination of the present parliament. Bills for each of these objects had been introduced as far back as 1649; but, after some progress, both were suffered to sleep in the several committees; and this backwardness of the "statesmen" was attributed to their wish to enrich themselves by forfeitures, and to perpetuate their power by perpetuating the parliament. The influence of Cromwell revived both questions. An act of oblivion was obtained,[b] which, with some exceptions, pardoned all offences committed before the

battle of Worcester, and relieved the minds of the royalists from the apprehension

[Footnote 1: Whitelock, 549.]

[Sidenote a: A.D. 1651. Sept. 16.]

[Sidenote b: A.D. 1652. Feb. 24.]

of additional forfeitures. On the question of the expiration of parliament, after several warm debates, the period had been fixed[a] for the 3rd of November, 1654; a distance of three years, which, perhaps, was not the less pleasing to Cromwell, as it served to show how unwilling his adversaries were to resign their power. The interval was to be employed in determining the qualifications of the succeeding parliament.[1]

In the winter, the lord-general called a meeting of officers and members at the house of the speaker; and it must have excited their surprise, when he proposed to them to deliberate, whether it were better to establish a republic, or a mixed form of monarchical government. The officers in general pronounced in favour of a republic, as the best security for the liberties of the people; the lawyers pleaded unanimously for a limited monarchy, as better adapted to the laws, the habits, and the feelings of Englishmen. With the latter Cromwell agreed, and inquired whom in that case they would choose for king. It was replied, either Charles Stuart or the duke of York, provided they would comply with the demands of the parliament; if they would not, the young duke of Gloucester, who could not have imbibed the despotic notions of his elder brothers. This was not the answer which Cromwell sought: he heard it with uneasiness; and, as often as the subject was resumed, diverted the conversation to some other question. In conclusion, he gave his opinion, that, "somewhat of a monarchical government would be most effectual, if it could be established with safety to the liberties of the people,

[Footnote 1: Journals, 1651, Nov. 4, 14, 15, 18, 27; 1652, Feb. 24.]

[Sidenote a: A.D. 1652. Nov. 18.]

as Englishmen and Christians." [1] That the result of the meeting disappointed his expectations, is evident; but he derived from it this advantage, that he had ascertained the sentiments of many, whose aid he might subsequently require. None of the leaders from the opposite party appear to have been present. [1]

Jealous, however, of his designs, "the statesmen" had begun to fight him with his own weapons. As the commonwealth had no longer an enemy to contend with on the land, they proposed [a] a considerable reduction in the number of the forces, and [b] a proportionate reduction of the taxes raised for their support. The motion was too reasonable in itself, and too popular in the country, to be resisted with safety: one-fourth of the army was disbanded, [c] and the monthly assessment lowered from one hundred and twenty thousand pounds to ninety thousand pounds. Before the expiration of six months, the question of a further reduction was brought forward; [d] but the council of war took the alarm, and a letter from Cromwell to the speaker [e] induced the house to continue its last vote. In a short time [f] it was again mentioned; but the next day [g] six officers appeared at the bar of the house with a petition from the army, which, under pretence of praying for improvements, tacitly charged the members with the neglect of their duty. It directed their attention to the propagation of the gospel, the reform of the law, the removal from office of scandalous and disaffected persons, the abuses in the excise and the treasury, the arrears due to the army, the violation of articles granted to the enemy, and the qualifications of future and successive parliaments. Whitelock remonstrated with Cromwell on the danger

[Footnote 1: Whitelock, 516.]

[Sidenote a: A.D. 1651. Oct. 2.]

[Sidenote b: A.D. 1651. Oct. 7.]

[Sidenote c: A.D. 1651. Dec. 19.]

[Sidenote d: A.D. 1652. June 5.]

[Sidenote e: A.D. 1652. June 15.]

[Sidenote f: A.D. 1652. August 12.]

[Sidenote g: A.D. 1652. August 13.]

of permitting armed bodies to assembly and petition. He slighted the advice.[1]

Soon afterwards[a] the lord-general requested a private and confidential interview with that lawyer. So violent, he observed, was the discontent of the army, so imperious the conduct of the parliament, that it would be impossible to prevent a collision of interests, and the subsequent ruin of the good cause, unless there were established "some authority so full and so high" as to be able to check these exorbitances, and to restrain both the army and the parliament. Whitelock replied, that, for the army, his excellency had hitherto kept and would continue to keep it in due subordination; but with respect to the parliament, reliance must be placed on the good sense and virtue of the majority. To control the supreme power was legally impossible. All, even Cromwell himself, derived their authority from it. At these words the lord-general abruptly exclaimed, "What, if a man should take upon him to be king?" The commissioner answered that the title would confer no additional benefit on his excellency. By his command of the army, his ascendancy in the house, and his reputation, both at home and abroad, he already enjoyed, without the envy of the name, all the power of a king. When Cromwell insisted that the name would give security to his followers, and command the respect of the people, Whitelock rejoined, that it would change the state of the controversy between the parties, and convert a national into a personal quarrel. His friends had

cheerfully fought with him to establish a republican in place of monarchical government; would they equally

[Footnote 1: Whitelock, 541. Journals, 1651; Dec. 19; 1652, June 15, Aug. 12, 13.]

[Sidenote a: A.D. 1652. Nov. 8.]

fight with him in favour of the house of Cromwell against the house of Stuart?[1] In conclusion, Cromwell conjured him to give his advice without disguise or qualification, and received this answer, "Make a private treaty with the son of the late king, and place him on the throne, but on conditions which shall secure to the nation its rights, and to yourself the first place beneath the throne." The general coldly observed that a matter of such importance and difficulty deserved mature consideration. They separated; and Whitelock soon discovered that he had forfeited his confidence.[2]

At length Cromwell fixed on a plan to accomplish his purpose by procuring the dissolution of the parliament, and vesting for a time the sovereign authority in a council of forty persons, with himself at their head. It was his wish to effect this quietly by the votes of parliament—his resolution to effect it by open force, if such votes were refused. Several meetings were held by the officers and members at the lodgings of the lord-general in Whitehall. St. John and a few others gave their assent; the rest, under the guidance

[Footnote 1: Henry, duke of Gloucester, and the princess Elizabeth were in England at the last king's death. In 1650 the council proposed to send the one to his brother in Scotland, and the other to her sister in Holland, allowing to each one thousand pounds per annum, as long as they should behave inoffensively.—Journals, 1650, July 24, Sept. 11. But Elizabeth died

on Sept. 8 of the same year, and Henry remained under the charge of Mildmay, governor of Carisbrook Castle, till a short time after this conference, when Cromwell, as if he looked on the young prince as a rival, advised his tutor Lovell, to ask permission to convey him to his sister, the princess of Orange. It was granted, with the sum of five hundred pounds to defray the expense of the journey.—Leicester's Journal, 103. Heath, 331. Clarendon, iii. 525, 526.]

[Footnote 2: Whitelock, 548-551. Were the minutes of this conversation committed to paper immediately, or after the Restoration? The credit due to them depends on this circumstance.]

of Whitelock and Widdrington, declared that the dissolution would be dangerous, and the establishment of the proposed council unwarrantable. In the mean time, the house resumed the consideration of the new representative body, and several qualifications were voted; to all of which the officers raised objections, but chiefly to the "admission of neuters," a project to strengthen the government by the introduction of the Presbyterian interest.[1] "Never," said Cromwell, "shall any of that judgment, who have deserted the good cause, be admitted to power." On the last meeting,[a] held on the 19th of April, all these points were long and warmly debated. Some of the officers declared that the parliament must be dissolved "one way or other;" but the general checked their indiscretion and precipitancy; and the assembly broke up at midnight, with an understanding that the leading men on each side should resume the subject in the morning.[2]

At an early hour the conference was recommenced,[b] and after a short time interrupted, in consequence of the receipt of a notice by the general that it was the intention of the house to comply with the desires of the army. This was a mistake: the opposite party, led by Vane, who had discovered the object of Cromwell,

[Footnote 1: From Ludlow (ii. 435) it appears that by this bill the number of members for boroughs was reduced, of representatives of counties increased. The qualification of an elector was the possession for his own use of an estate real or personal of the value of two hundred pounds.—Journ. 30th March, 1653. It is however singular that though the house continued to sit till April 19th—the only entry on the journals respecting this bill occurs on the 13th—making it a qualification of the candidates that they should be "persons of known integrity, fearing God, and not scandalous in their conversation."—Journal, *ibid.*]

[Footnote 2: Compare Whitelock's narrative of this meeting (p. 554) with Cromwell's, in Milton's State Papers, 109.]

[Sidenote a: A.D. 1653 April 19.]

[Sidenote b: A.D. 1653 April 20.]

had indeed resolved to pass a bill of dissolution, not, however, the bill proposed by the officers, but their own bill, containing all the obnoxious provisions; and to pass it that very morning, that it might obtain the force of law before their adversaries could have time to appeal to the power of the sword.[1] While Harrison "most sweetly and humbly" conjured them to pause before they took so important a step, Ingoldsby hastened to inform the lord-general at Whitehall. His resolution was immediately formed, and a company of musketeers received orders to accompany him to the house.

At this eventful moment, big with the most important consequences both to himself and his country, whatever were the workings of Cromwell's mind, he had the art to conceal them from the eyes of the beholders. Leaving the military in the lobby, he entered the house, and composedly seated himself on one of the outer benches. His dress was a plain suit of black cloth, with grey worsted stockings. For a while he seemed to listen with interest to the debate; but, when the speaker was going to put the

question, he whispered to Harrison, "This is the time: I must do it;" and rising, put off his hat to address the house. At first his language was decorous and even laudatory. Gradually he became more warm and animated: at last he assumed all the vehemence of passion, and indulged in personal vituperation. He charged the members with self-seeking and profaneness; with the frequent denial of justice, and numerous

[Footnote 1: These particulars may be fairly collected from Whitelock, 554, compared with the declaration of the officers, and Cromwell's speech to his parliament. The intention to dissolve themselves is also asserted by Hazlerig.—Burton's Diary, iii. 98.]

acts of oppression; with idolizing the lawyers, the constant advocates of tyranny; with neglecting the men who had bled for them in the field, that they might gain the Presbyterians who had apostatized from the cause; and with doing all this in order to perpetuate their own power, and to replenish their own purses. But their time was come; the Lord had disowned them; he had chosen more worthy instruments to perform his work. Here the orator was interrupted by Sir Peter Wentworth, who declared that he never before heard language so unparliamentary, language, too, the more offensive, because it was addressed to them by their own servant, whom they had too fondly cherished, and whom, by their unprecedented bounty, they had made what he was. At these words Cromwell put on his hat, and, springing from his place, exclaimed, "Come, come, sir, I will put an end to your prating." For a few seconds, apparently in the most violent agitation, he paced forward and backward, and then, stamping on the floor, added, "You are no parliament. I say you are no parliament: bring them in, bring them in." Instantly the door opened, and Colonel Worseley entered, followed by more than twenty musketeers. "This," cried Sir Henry Vane, "is not honest. It is against morality and common honesty." "Sir Henry Vane," replied Cromwell, "O Sir Henry Vane! The Lord deliver me from Sir Henry Vane!

He might have prevented this. But he is a juggler, and has not common honesty himself." From Vane he directed his discourse to Whitelock, on whom he poured a torrent of abuse; then, pointing to Challoner, "There," he cried, "sits a drunkard;" next, to Marten and Wentworth, "There are two whoremasters:" and afterwards, selecting different members in succession, described them as dishonest and corrupt livers, a shame and a scandal to the profession of the gospel. Suddenly, however, checking himself, he turned to the guard, and ordered them to clear the house. At these words Colonel Harrison took the speaker by the hand, and led him from the chair; Algernon Sidney was next compelled to quit his seat; and the other members, eighty in number, on the approach of the military, rose and moved towards the door. Cromwell now resumed his discourse. "It is you," he exclaimed, "that have forced me to do this. I have sought the Lord both day and night, that he would rather slay me, than put me on the doing of this work." Alderman Allen took advantage of these words to observe, that it was not yet too late to undo what had been done; but Cromwell instantly charged him with peculation, and gave him into custody. When all were gone, fixing his eye on the mace, "What," said he, "shall we do with this fool's bauble? Here, carry it away." Then, taking the act of dissolution from the clerk, he ordered the doors to be locked, and, accompanied by the military, returned to Whitehall.

That afternoon the members of the council assembled in their usual place of meeting. Bradshaw had just taken the chair, when the lord-general entered, and told them, that if they were there as private individuals, they were welcome; but, if as the council of state, they must know that the parliament was dissolved, and with it also the council. "Sir," replied Bradshaw, with the spirit of an ancient Roman, "we have heard what you did at the house this morning, and before many hours all England will know it. But, sir, you are mistaken to think that the parliament is dissolved. No

power under heaven can dissolve them but themselves. Therefore take you notice of that." After this protest they withdrew.[1]

Thus, by the parricidal hands of its own children, perished the long parliament, which, under a variety of forms, had, for more than twelve years, defended and invaded the liberties of the nation. It fell without a struggle or a groan, unpitied and unregretted. The members slunk away to their homes, where they sought by submission to purchase the forbearance of their new master; and their partisans, if partisans they had, reserved themselves in silence for a day of retribution, which came not before Cromwell slept in his grave. The royalists congratulated each other on an event which they deemed a preparatory step to the restoration of the king; the army and navy, in numerous addresses, declared that they would live or die, stand or fall, with the lord-general, and in every part of the country the congregations of the saints magnified the arm of the Lord which had broken the mighty, that in lieu of the sway of mortal men, "the fifth monarchy, the reign of Christ, might be established upon earth." [2]

It would, however, be unjust to the memory of those who exercised the supreme power after the death of the king, not to acknowledge that there existed among them men capable of wielding with energy the destinies of a great empire. They governed only four years; yet, under their auspices, the conquests of Ireland and Scotland were achieved, and a navy was

[Footnote 1: See the several accounts in Whitelock, 554; Ludlow, ii. 19 23; Leicester's Journal, 139; Hutchinson, 332; Several Proceedings, No. 186, and Burton's Diary, iii. 98.]

[Footnote 2: Whitelock, 555-558. Milton's State Papers, 90-97. Ellis, Second Series, iii. 368.]

created, the rival of that of Holland and the terror of the rest of Europe. [1] But there existed an essential error in their form of government. Deliberative assemblies are always slow in their proceedings; yet the pleasure of parliament, as the supreme power, was to be taken on every subject connected with the foreign relations, or the internal administration of the country; and hence it happened that, among the immense variety of questions which came before it, those commanded immediate attention which were deemed of immediate necessity; while the others, though often of the highest importance to the national welfare, were first postponed, then neglected, and ultimately forgotten. To this habit of procrastination was perhaps owing the extinction of its authority. It disappointed the hopes of the country, and supplied Cromwell with the most plausible argument in defence of his conduct.

Of the parliamentary transactions up to this period, the principal have been noticed in the preceding pages. I shall add a few others which may be thought worthy the attention of the reader. 1. It was complained that, since the abolition of the spiritual tribunals, the sins of incest, adultery, and fornication had been multiplied, in consequence of the impunity with which they might be committed; and, at the prayer of the godly, they were made[a] criminal offences, cognizable by the criminal courts, and punishable, the two first with death, the last with three months' imprisonment.

[Footnote 1: "We intended," says Scot, "to have gone off with a good savour, but we stayed to end the Dutch war. We might have brought them to oneness with us. Their ambassadors did desire a coalition. This we might have done in four or five months. We never bid fairer for being masters of the whole world."—Burton's Diary, iii. 112.]

[Sidenote a: A.D. 1650. May 16.]

But it was predicted at the time, and experience verified the prediction, that the severity of the punishment would defeat the purpose of the law. 2. Scarcely a petition was presented, which did not, among other things, pray for the reformation of the courts of justice; and the house, after several long debates, acquiesced[a] in a measure, understood to be only the forerunner of several others,[b] that the law books should be written, and law proceedings be conducted in the English language.[1] 3. So enormous were the charges of the commonwealth, arising from incessant war by sea or land, that questions of finance continually engaged the attention of the house. There were four principal sources of revenue; the customs, the excise, the sale of fee-farm rents,[2] of the lands of the crown, and of those belonging to the bishops, deans, and chapters, and the sequestration and forfeiture of the estates of papists and delinquents. The ordinances for the latter had been passed as early as the year 1643, and in the course of the seven succeeding years, the harvest had been reaped and gathered. Still some gleanings might remain; and in 1650, an act was passed[c] for the better ordering and managing such estates; the former compositions were subjected to examination; defects and concealments were detected; and proportionate fines were in numerous cases exacted. In 1651, seventy individuals, most of them of high rank, all of opulent fortunes, who had imprudently displayed their attachment to the royal cause, were condemned[d] to forfeit their property,

[Footnote 1: Journals, May 10, Nov. 22. Whitelock, 478-483.]

[Footnote 2: The clear annual income from the fee-farm rents amounted to seventy-seven thousand pounds. In Jan. 1651, twenty-five thousand three hundred pounds of this income had been sold for two hundred and twenty-five thousand six hundred and fifty pounds.—Journals, Jan. 8.]

[Sidenote a: A.D. 1650. Nov. 8.]

[Sidenote b: A.D. 1650. Nov. 22.]

[Sidenote c: A.D. 1651. Jan. 22.]

[Sidenote d: A.D. 1651. July 16.]

both real and personal, for the benefit of the commonwealth. The fatal march of Charles to Worcester furnished grounds for a new proscription in 1652. First[a] nine-and-twenty, then[b] six hundred and eighty-two royalists were selected for punishment. It was enacted that those in the first class should forfeit their whole property; while to those in the second, the right of pre-emption was reserved at the rate of one-third part of the clear value, to be paid within four months.[1]

4. During the late reign, as long as the Presbyterians retained their ascendancy in parliament, they enforced with all their power uniformity of worship and doctrine. The clergy of the established church were ejected from their livings, and the professors of the Catholic faith were condemned to forfeit two-thirds of their property, or to abjure their religion. Nor was the proof of recusancy to depend, as formerly, on the slow process of presentation and conviction; bare suspicion was held a sufficient ground for the sequestrator to seize his prey; and the complainant was told that he had the remedy in his own hands, he might take the oath of abjuration. When the Independents succeeded to the exercise of the supreme power, both the persecuted parties indulged a hope of more lenient treatment, and both were disappointed. The Independents, indeed, proclaimed themselves the champions of religious liberty; they repealed the statutes imposing penalties for absence from church; and they declared

[Footnote 1: Journals, 1651, July 16; 1652, Aug. 4, Nov. 18. Scobell, 156, 210. If any of the last were papists, and afterwards disposed of their estates thus redeemed, they were ordered to banish themselves from their native

country, under the penalty of having the laws against popery executed against them with the utmost severity.—Addit. Act of Nov. 18, 1652.]

[Sidenote a: A.D. 1652. August 4.]

[Sidenote b: A.D. 1652. Nov. 18.]

that men were free to serve God according to the dictates of conscience. Yet their notions of toleration were very confined: they refused to extend it either to prelacy or popery, to the service of the church of England, or of the church of Rome. The ejected clergymen were still excluded from the pulpit, and the Catholics were still the victims of persecuting statutes. In 1650, an act was passed[a] offering to the discoverers of priests and Jesuits, or of their receivers and abettors, the same reward as had been granted to the apprehenders of highwaymen. Immediately officers and informers were employed in every direction; the houses of Catholics were broken open and searched at all hours of the day and night; many clergymen were apprehended, and several were tried, and received[b] judgment of death. Of these only one, Peter Wright, chaplain to the marquess of Winchester, suffered. The leaders shrank from the odium of such sanguinary exhibitions, and transported the rest of the prisoners to the continent.[1]

But if the zeal of the Independents was more sparing of blood than that of the Presbyterians, it was not inferior in point of rapacity. The ordinances for sequestration and forfeiture were executed with unrelenting severity.[2] It is difficult to say which suffered from them most cruelly—families with small fortunes who were thus reduced to a state of penury; or husbandmen, servants, and mechanics, who, on their refusal to take the oath of abjuration, were deprived

[Footnote 1: Challoner, ii 346. MS. papers in my possession. See note. (G).]

[Footnote 2: In 1650 the annual rents of Catholics in possession of the sequestrators were retained at sixty-two thousand and forty-eight pounds seventeen shillings and threepence three farthings. It should, however, be observed that thirteen counties were not included.—Journ. Dee. 17.]

[Sidenote a: A.D. 1650. Feb. 26.]

[Sidenote b: A.D. 1651. May. 19.]

of two-thirds of their scanty earnings, even of their household goods and wearing apparel.[1] The sufferers ventured to solicit[a] from parliament such indulgence as might be thought "consistent with the public peace and their comfortable subsistence in their native country." The petition was read: Sir Henry Vane spoke in its favour; but the house was deaf to the voice of reason and humanity, and the prayer for relief was indignantly rejected.[2]

[Footnote 1: In proof I may be allowed to mention one instance of a Catholic servant maid, an orphan, who, during a servitude of seventeen years, at seven nobles a year, had saved twenty pounds. The sequestrators, having discovered with whom she had deposited her money, took two-thirds, thirteen pounds six shillings and eightpence, for the use of the commonwealth, and left her the remainder, six pounds thirteen and fourpence. In March, 1652, she appealed to the commissioners at Haberdashers' Hall, who replied that they could afford her no relief, unless she took the oath of abjuration. See this and many other cases in the "Christian Moderator, or Persecution for Religion,

condemned by the Light of Nature, the Law of God, and Evidence of our own Principles," p. 77-84. London, 1652.]

[Footnote 2: Journals, 1652, June 30. The petition is in the Christian Moderator, p. 59.]

[Sidenote a: A.D. 1652. Jun. 30.]

CHAPTER VI.

THE PROTECTORATE.

Cromwell Calls The Little Parliament—Dissolves It—Makes Himself Protector—Subjugation Of The Scottish Royalists—Peace With The Dutch—New Parliament—Its Dissolution—Insurrection In England—Breach With Spain—Troubles In Piedmont—Treaty With France.

Whoever has studied the character of Cromwell will have remarked the anxiety with which he laboured to conceal his real designs from the notice of his adherents. If credit were due to his assertions, he cherished none of those aspiring thoughts which agitate the breasts of the ambitious; the consciousness of his weakness taught him to shrink from the responsibility of power; and at every step in his ascent to greatness, he affected to sacrifice his own feelings to the judgment and importunity of others. But in dissolving the late parliament he had deviated from this his ordinary course: he had been compelled to come boldly forward by the obstinacy or the policy of his opponents, who during twelve months had triumphed over his intrigues, and were preparing to pass an act which would place new obstacles in his path. Now, however, that he had forcibly taken into his own hands the reins of government, it remained for him to determine whether he should retain them in his grasp, or deliver them over to others. He preferred

the latter for the maturity of time was not yet come: he saw that, among the officers who blindly submitted to be the tools of his ambition, there were several who would abandon the idol of their worship, whenever they should suspect him of a design to subvert the public liberty. But if he parted with power for the moment, it was in such manner as to warrant the hope that it would shortly return to him under another form, not as won by the sword of the military, but as deposited in his hands by the judgment of parliament.

It could not escape the sagacity of the lord-general that the fanatics, with whose aid he had subverted the late government, were not the men to be intrusted with the destinies of the three kingdoms; yet he deemed it his interest to indulge them in their wild notions of civil and religious reformation, and to suffer himself for a while to be guided by their counsels. Their first measure was to publish a Vindication of their Proceedings.[1] The long parliament they pronounced[a] incapable "of answering those ends which God, his people, and the whole nation, expected." Had it been permitted to sit a day longer, it would "at one blow have laid in the dust the interest of all honest men and of their glorious cause." In its place the council of war would "call to the government persons of approved fidelity and honesty;" and therefore required "public officers and ministers to proceed in their respective places," and conjured "those who feared and loved the name of the Lord, to be instant with him day and night in their behalf." [2]

[Footnote 1: Printed by Henry Hills and Thomas Brewster, printers to the army, 1653.]

[Footnote 2: Ludlow, ii. 24. Thurloe, i. 289, 395. Sir H. Vane, after all the affronts which he had received, was offered a place in the council; but he replied that, though the reign of the saints was begun, he would defer his share in it till he should go to heaven.—Thurloe, i. 265.]

[Sidenote a: A.D. 1653. April 22.]

They next proceeded to establish[a] a council of state. Some proposed that it should consist of ten members, some of seventy, after the model of the Jewish Sanhedrim; and others of thirteen, in imitation of Christ and his twelve apostles. The last project was adopted as equally scriptural, and more convenient. With Cromwell, in the place of lord president, were joined four civilians and eight officers of high rank; so that the army still retained its ascendancy, and the council of state became in fact a military council.

From this moment for some months it would have embarrassed any man to determine where the supreme power resided. Some of the judges were superseded by others: new commissioners of the treasury and admiralty were appointed; even the monthly assessment of one hundred and twenty thousand pounds was continued for an additional half-year; and yet these and similar acts, all of them belonging to the highest authority in the state, appeared to emanate from different sources; these from the council of war, those from the council of state, and several from the lord-general himself, sometimes with the advice of one or other, sometimes without the advice of either of these councils.[1]

At the same time the public mind was agitated by the circulation of reports the most unfounded, and the advocacy of projects the most contradictory. This day it was rumoured that Cromwell had offered to recall

[Footnote 1: Whitelock, 556, 557, 559. Leicester's Journal, 142. Merc. Polit. No. 157.]

[Sidenote a: A.D. 1653. April 30.]

the royal family, on condition that Charles should marry one of his daughters; the next, that he intended to ascend the throne himself, and, for that purpose, had already prepared the insignia of royalty. Here, signatures were solicited to a petition for the re-establishment of the ancient constitution; there, for a government by successive parliaments. Some addresses declared the conviction of the subscribers that the late dissolution was necessary; others prayed that the members might be allowed to return to the house, for the sole purpose of legally dissolving themselves by their own authority. In the mean while, the lord-general continued to wear the mask of humility and godliness; he prayed and preached with more than his wonted fervour; and his piety was rewarded, according to the report of his confidants, with frequent communications from the Holy Spirit.[1] In the month of May he spent eight days in close consultation with his military divan; and the result was a determination to call a new parliament, but a parliament modelled on principles unknown to the history of this or of any other nation. It was to be a parliament of saints, of men who had not offered themselves as candidates, or been chosen by the people, but whose chief qualification consisted in holiness of life, and whose call to the office of legislators came from the choice of the council. With this view the ministers took the sense of the "congregational churches" in the several counties; the returns contained the names of the persons, "faithful, fearing God, and hating covetousness," who were deemed qualified for this high and important trust; and out of these the council in the presence of the lord-general selected one hundred and thirty-nine

[Footnote 1: Thurloe, i. 256, 289, 306.]

representatives for England, six for Wales, six for Ireland, and five for Scotland.[1] To each of them was sent[a] a writ of summons under the signature of Cromwell, requiring his personal attendance at Whitehall on a certain day, to take upon himself the trust, and to serve the office of member

for some particular place. Of the surprise with which the writs were received by many the reader may judge. Yet, out of the whole number, two only returned a refusal: by most the very extraordinary manner of their election was taken as a sufficient proof that the call was from heaven.[2]

On the appointed day, the 4th of July, one hundred and twenty of these faithful and godly men attended[b] in the council-chamber at Whitehall. They were seated on chairs round the table; and the lord-general took his station near the middle window, supported on each side by a numerous body of officers. He addressed the company standing, and it was believed by his admirers, perhaps by himself, "that the Spirit of God spoke in him and by him." Having vindicated in a long narrative the dissolution of the late parliament, he congratulated the persons present on the high office to which they had been called. It was not of their own seeking. It had come to them from God by the choice of the army, the usual channel through which in these latter days the Divine mercies had been dispensed to the nation. He would not

[Footnote 1: Thurloe, i. 395. Compare the list of the members in Heath, 350, with the letters in Milton's State Papers, 92, 94, 96.]

[Footnote 2: Thurloe, i. 274. Whitelock, 547. "It was a great satisfaction and encouragement to some that their names had been presented as to that service, by the churches and other godly persons."—Exact Relation of the Proceedings, &c. of the last parliament, 1654, p. 2.]

[Sidenote a: A.D. 1653. June 6.]

[Sidenote a: A.D. 1653. July 4.]

charge them, but he would pray that they might "exercise the judgment of mercy and truth," and might "be faithful with the saints," however those saints might differ respecting forms of worship. His enthusiasm kindled as

he proceeded; and the visions of futurity began to open to his imagination. It was, he exclaimed, marvellous in his eyes; they were called to war with the Lamb against his enemies; they were come to the threshold of the door, to the very edge of the promises and prophecies; God was about to bring his people out of the depths of the sea; perhaps to bring the Jews home to their station out of the isles of the sea. "God," he exclaimed, "shakes the mountains and they reel; God hath a high hill, too, and his hill is as the hill of Bashan; and the chariots of God are twenty thousand of angels; and God will dwell upon this hill for ever." At the conclusion "of this grave, Christian, and seasonable speech," he placed on the table an instrument under his own hand and seal, intrusting to them the supreme authority for the space of fifteen months from that day, then to be transmitted by them to another assembly, the members of which they should previously have chosen.[1]

The next day[a] was devoted by the new representatives to exercises of religion, not in any of the churches of the capital, but in the room where the late parliament was accustomed to sit. Thirteen of the most gifted among them successively prayed and preached, from eight in the morning till six in the evening; and several affirmed "that they had never enjoyed so much of the spirit and presence of Christ in any of the meetings

[Footnote 1: Proceedings, No. 197. Parl. Hist. xx. 153. Milton's State Papers, 106. This last appears to me a more faithful copy than that printed by authority.]

[Sidenote a: A.D. 1653. July 5.]

and exercises of religion in all their lives, as they did on that day." As it was solely to their reputation for superior godliness that the majority of the members owed their election, the lord-general probably expected from them little opposition to his measures; but they no sooner applied to business than

he saw reason to be alarmed at the promptitude and resolution which they displayed. Though not distinguished by their opulence, they were men of independent fortunes;^[1] during the late revolutions they had learned to think for themselves on the momentous questions which divided the nation; and their fanaticism, by converting their opinions into matters of conscience, had superadded an obstinacy of character not easily to be subdued. To Cromwell himself they always behaved with respect. They invited him with four of his officers to sit as a member among them; and they made him the offer of the palace of Hampton Court in exchange for his house of Newhall. But they believed and showed that they were the masters. They scorned to submit to the dictation of their servants; and, if they often followed the advice, they as often rejected the recommendations and amended the resolutions of the council of state.

One of the first subjects which engaged their attention was a contest, in which the lord-general, with all his power, was foiled by the boldness of a single individual.

[Footnote 1: They have been generally described as men in trade, and of no education; and because one of them, Praise-God Barebone, was a leather-dealer in Fleet-street, the assembly is generally known by the denomination of Barebone's parliament.—Heath, 350. It is, however, observed by one of them, that, "if all had not very bulky estates, yet they had free estates, and were not of broken fortunes, or such as owed great sums of money, and stood in need of privilege and protection as formerly."—Exact Relation, 19. See also Whitelock, 559.]

At the very moment when he hoped to reap the fruit of his dissimulation and intrigues, he found himself unexpectedly confronted by the same fearless and enterprising demagogue, who, at the birth of the commonwealth, had publicly denounced his ambition, and excited the

soldiery against him. Lilburne, on the dissolution of the long parliament, had requested permission of Cromwell to return from banishment. Receiving no answer, he came[a] over at his own risk,—a bold but imprudent step; for what indulgence could he expect from that powerful adventurer, whom he had so often denounced to the nation as "a thief, a robber, an usurper, and a murderer?" On the day after his arrival in the capital he was committed to Newgate. It seemed a case which might safely be intrusted to a jury. His return by the act of banishment had been made felony; and of his identity there could be no doubt. But his former partisans did not abandon him in his distress. Petitions with thousands of signatures were presented, praying for a respite of the trial till the meeting of the parliament; and Cromwell, willing, perhaps, to shift the odium from himself to that assembly, gave his consent. Lilburne petitioned the new parliament; his wife petitioned; his friends from the neighbouring counties petitioned; the apprentices in London did not only petition, they threatened. But the council laid before the house the depositions of spies and informers to prove that Lilburne, during his banishment, had intrigued with the royalists against the commonwealth;^[1] and the prisoner himself, by the intemperance

[Footnote 1: It appears from Clarendon's Letters at the time, that Lilburne was intimate with Buckingham, and that Buckingham professed to expect much from him in behalf of the royal cause; while, on the contrary, Clarendon believed that Lilburne would do nothing for it, and Buckingham not much more.—Clarendon Papers, iii. 75, 79, 98.]

[Sidenote: A.D. 1653. June 15.]

of his publications, contributed to irritate members. They refused to interfere; and he was arraigned[a] at the sessions, where, instead of pleading, he kept his prosecutors at bay during five successive days,

appealing to Magna Charta and the rights of Englishmen, producing exceptions against the indictment, and demanding hisoyer, or the specification of the act for his banishment, of the judgment on which the act was founded, and of the charge which led to that judgment. The court was perplexed. They knew not how to refuse; for he claimed it as his right, and necessary for his defence. On the other hand, they could not grant it, because no record of the charge or judgment was known to exist.

After an adjournment[b] to the next sessions, two days were spent in arguing the exceptions of the prisoner, and his right to theoyer. At length, on a threat that the court would proceed to judgment, he pleaded[c] not guilty. The trial lasted three days. His friends, to the amount of several thousands, constantly attended; some hundreds of them were said to be armed for the purpose of rescuing him, if he were condemned; and papers were circulated that, if Lilburne perished, twenty thousand individuals would perish with him. Cromwell, to encourage the court, posted two companies of soldiers in the immediate vicinity; quartered three regiments of infantry, and one of cavalry, in the city; and ordered a numerous force to march towards the metropolis. The particulars of the trial are lost. We only know that the prosecutors were content with showing[d] that Lilburne was the person named in the act; that the court directed the jury to speak only to

[Sidenote a: A.D. 1653. July 13.]

[Sidenote b: A.D. 1653. August 11.]

[Sidenote c: A.D. 1653. August 16.]

[Sidenote d: A.D. 1653. August 1.]

that fact; and that the prisoner made a long and vehement defence, denying the authority of the late parliament to banish him, because legally it had expired at the king's death, and because the House of Commons was not a court of justice; and, maintaining to the jury, that they were judges of

the law as well as of the fact; that, unless they believed him guilty of crime, they could not conscientiously return a verdict which would consign him to the gallows; and that an act of parliament, if it were evidently unjust, was essentially void, and no justification to men who pronounced according to their oaths. At a late hour at night the jury declared[a] him not guilty; and the shout of triumph, received and prolonged by his partisans, reached the ears of Cromwell at Whitehall.

It was not, however, the intention of the lord-general that his victim should escape. The examination[b] of the judges and jurymen before the council, with a certified copy of certain opprobrious expressions, used by Lilburne in his defence, was submitted[c] to the house, and an order was obtained that, notwithstanding his acquittal, he should be confined[d] in the Tower, and that no obedience should be paid to any writ of habeas corpus issued from the court of Upper Bench in his behalf. These measures gave great offence. It was complained, and with justice, that the men who pretended to take up arms against the king in support of the liberties of Englishmen, now made no scruple of trampling the same liberties under foot, whenever it suited their resentment or interest.[1]

[Footnote 1: See Thurloe, i. 324, 367, 368, 369, 429, 430, 435, 441, 442, 451, 453; Exact Relation, p. 5; Whitelock, 558, 560, 561, 563, 591; Journals, July 13, 14, Aug. 2, 22, 27, Nov. 26. In 1656 or 1657 this turbulent demagogue joined the society of Friends. He died Aug. 29, 1657, at Eltham, whence, on the 31st, the body of the meek Quaker was conveyed for sepulture to the new church-yard adjoining to Bedlam.—Cromwelliana, p. 168.]

[Sidenote a: A.D. 1653. August 20.]

[Sidenote b: A.D. 1653. August 22.]

[Sidenote c: A.D. 1653. August 27.]

[Sidenote d: A.D. 1653. Nov. 26.]

In the prosecution and punishment of Lilburne, the parliament was unanimous; on most other points it was divided into two parties distinctly marked; that of the Independents, who, inferior in number, superior in talents, adhered to the lord-general and the council, and that of the Anabaptists, who, guided by religious and political fanaticism, ranged themselves under the banner of Major-General Harrison as their leader. These "sectaries" anticipated the reign of Christ with his saints upon earth, they believed themselves called by God to prepare the way for this marvellous revolution; and they considered it their duty to commence by reforming all the abuses which they could discover either in church or state.

[1]

In their proceedings there was much to which no one, who had embarked with them in the same cause, could reasonably object. They established a system of the most rigid economy; the regulations of the excise were revised; the constitution of the treasury was simplified and improved; unnecessary offices were totally abolished, and the salaries of the others considerably reduced; the public accounts were subjected to the most rigorous scrutiny; new facilities were given to the sale of the lands now considered as national property. Provision was made for the future registration of marriages, births, and deaths.[2] But the fanaticism

[Footnote 1: Thurloe, i. 392, 396, 501, 515, 523.]

[Footnote 2: For the validity of marriage, if the parties were minors, was required the consent of the parents or guardians, and the age of sixteen in the male, of fourteen in the female; and in all cases that the names of the parties intending to be married should be given to the registrar of the parish,

whose duty it was to proclaim them, according to their wish, either in the church after the morning exercise on three successive Lord's days, or in the market-place on three successive market-days. Having received from him a certificate of the proclamations, containing any exceptions which might have been made, they were to exhibit it to a magistrate, and, before him, to pledge their faith to each other "in the presence of God, the searcher of hearts." The religious ceremony was optional, the civil necessary for the civil effects of marriage,—See the Journals for the month of August, and Scobell.]

of their language, and the extravagance of their notions, exposed them to ridicule; their zeal for reform, by interfering with the interests of several different bodies at the same time, multiplied their enemies; and, before the dissolution of the house, they had earned, justly or unjustly, the hatred of the army, of the lawyers, of the gentry, and of the clergy.

1. It was with visible reluctance that they voted the monthly tax of one hundred and twenty thousand pounds for the support of the military and naval establishments. They were, indeed, careful not to complain of the amount; their objections were pointed against the nature of the tax, and the inequality of the assessments;^[1] but this pretext could not hide their real object from the jealousy of their adversaries, and their leaders were openly charged with seeking to reduce the number of the army, that they might lessen the influence of the general.

2. From the collection of the taxes they proceeded to the administration of the law. In almost every petition presented of late years to the supreme authority of the nation, complaints had been made of the court of Chancery, of its dilatory proceedings, of the enormous expense which it entailed on its suitors, and of the suspicious nature of its decisions, so liable to be influenced by the personal partialities and interests of

[Footnote 1: In some places men paid but two; in others, ten or twelve shillings in the pound.—Exact Relation, 10. The assessments fell on the owners, not on the tenants.—Thurloe, i. 755.]

the judge.[1] The long parliament had not ventured to grapple with the subject; but this, the little parliament, went at once to the root of the evil, and voted that the whole system should be abolished. But then, came the appalling difficulty, how to dispose of the causes actually pending in the court, and how to substitute in its place a less objectionable tribunal. Three bills introduced for that purpose were rejected as inapplicable or insufficient: the committee prepared a fourth; it was read twice in one day, and committed, and would probably have passed, had not the subsequent proceedings been cut short by the dissolution of the parliament.[2]

3. But the reformers were not content with the abolition of a single court; they resolved to cleanse the whole of the Augean stable. What, they asked, made up the law? A voluminous collection of statutes, many of them almost unknown, and many inapplicable to existing circumstances; the dicta of judges, perhaps ignorant, frequently partial and interested; the reports of cases, but so contradictory that they were

[Footnote 1: "It was confidently reported by knowing gentlemen of worth, that there were depending in that court 23,000 (2 or 3,000?) causes; that some of them had been there depending five, some ten, some twenty, some thirty years; and that there had been spent in causes many hundreds, nay, thousands of pounds, to the utter undoing of many families."—Exact Relation, 12.]

[Footnote 2: Journals, Aug. 5, Oct. 17, 23, Nov. 3. Exact Relation, 12-15. The next year, however, Cromwell took the task into his own hands; and, in 1655, published an ordinance, consisting of sixty-seven articles, "for the better regulating and limiting the jurisdiction of the high court of

Chancery." Widdrington and Whitelock, the commissioners of the great seal, and Lenthall, master of the rolls, informed him by letter, that they had sought the Lord, but did not feel themselves free to act according to the ordinance. The protector took the seals from the two first, and gave them Fiennes and Lisle; Lenthall overcame his scruples, and remained in office. —See the ordinance in Scobell, 324; the objections to it in Whitelock, 621.]

regularly marshalled in hosts against each other; and the usages of particular districts, only to be ascertained through the treacherous memories of the most aged of the inhabitants. Englishmen had a right to know the laws by which they were to be governed; it was easy to collect from the present system all that was really useful; to improve it by necessary additions; and to comprise the whole within the small compass of a pocket volume. With this view, it was resolved to compose a new body of law; the task was assigned to a committee; and a commencement was made by a revision of the statutes respecting treason and murder.[1] But these votes and proceedings scattered alarm through the courts at Westminster, and hundreds of voices, and almost as many pens, were employed to protect from ruin the venerable fabric of English jurisprudence. They ridiculed the presumption of these ignorant and fanatical legislators, ascribed to them the design of substituting the law of Moses for the law of the land, and conjured the people to unite in defence of their own "birthright and inheritance," for the preservation of which so many miseries had been endured, so much blood had been shed.[2]

4. From men of professed sanctity much had been expected in favour of religion. The sincerity of their seal they proved by the most convincing test, —an act for the extirpation of popish priests and Jesuits, and the disposal of two-thirds of the real and personal

[Footnote 1: Journals, Aug. 18, 19, Oct. 20. Exact Relation, 15-18.]

[Footnote 2: The charge of wishing to introduce the law of God was frequently repeated by Cromwell. It owed its existence to this, that many would not allow of the punishment of death for theft, or of the distinction between manslaughter and murder, because no such things are to be found in the law of Moses.—Exact Relation, 17.]

estates of popish recusants.[1] After this preliminary skirmish with antichrist, they proceeded to attack Satan himself "in his stronghold" of advowsons. It was, they contended, contrary to reason, that any private individual should possess the power of imposing a spiritual guide upon his neighbours; and therefore they resolved that presentations should be abolished, and the choice of the minister be vested in the body of the parishioners; a vote which taught the patrons of livings to seek the protection of the lord-general against the oppression of the parliament. From advowsons, the next step was to tithes. At the commencement of the session, after a long debate, it was generally understood that tithes ought to be done away with, and in their place a compensation be made to the impropriators, and a decent maintenance be provided for the clergy. The great subject of dispute was, which question should have the precedence in point of time, the abolition of the impost, or the substitution of the equivalent. For five months the committee intrusted with the subject was silent; now, to prevent, as it was thought, the agitation of the question of advowsons, they presented a report respecting the method of ejecting scandalous, and settling godly, ministers; to which they appended their own opinion, that incumbents, rectors, and impropriators had a property in tithes. This report provoked a debate of five days. When the question was put on the first part, though the committee had mustered all the force of the Independents in its favour, it was rejected by a

[Footnote 1: To procure ready money for the treasury, it was proposed to allow recusants to redeem the two-thirds for their lives, at four years'

purchase. This amendment passed, but with great opposition, on the ground that it amounted to a toleration of idolatry.—Ibid, ii. Thurloe, i. 553.]

majority of two. The second part, respecting the property in tithes, was not put to the vote; its fate was supposed to be included in that of the former; and it was rumoured through the capital that the parliament had voted the abolition of tithes, and with them of the ministry, which derived its maintenance from tithes.[1]

Here it should be noticed that, on every Monday during the session, Feakes and Powell, two Anabaptist preachers, had delivered weekly lectures to numerous audiences at Blackfriars. They were eloquent enthusiasts, commissioned, as they fancied, by the Almighty, and fearless of any earthly tribunal. They introduced into their sermons most of the subjects discussed in parliament, and advocated the principles of their sect with a force and extravagance which alarmed Cromwell and the council. Their favourite topic was the Dutch war. God, they maintained, had given Holland into the hands of the English; it was to be the landing-place of the saints, whence they should proceed to pluck the w—— of Babylon from her chair and to establish the kingdom of Christ on the continent; and they threatened with every kind of temporal and everlasting woe the man who should advise peace on any other terms than the incorporation of the United Provinces with the commonwealth of England.[2] When it was known that Cromwell had receded from this demand, their indignation

[Footnote 1: Journals, July 15-19, Nov. 17, Dec. 1, 6-10. Exact Relation, 418-424.]

[Footnote 2: Beverning, one of the Dutch ambassadors, went to the meeting on one of these occasions. In a letter, he says:—"The scope and intention is to preach down governments, and to stir up the people against the united Netherlands. Being then in the assembly of the saints, I heard one

prayer, two sermons. But, good God! what cruel and abominable, and most horrid trumpets of fire, murder, and flame."—Thurloe, i. 442.]

stripped the pope of many of those titles with which he had so long been honoured by the Protestant churches, and the lord-general was publicly declared to be the beast in the Apocalypse, the old dragon, and the man of sin. Unwilling to invade the liberty of religious meetings, he for some time bore these insults with an air of magnanimity: at last he summoned[a] the two preachers before himself and the council. But the heralds of the Lord of Hosts quailed not before the servants of an earthly commonwealth: they returned rebuke for rebuke, charged Cromwell with an unjustifiable assumption of power, and departed from the conference unpunished and unabashed.[1]

By the public the sermons at Blackfriars were considered as explanatory of the views and principles of the Anabaptists in the house. The enemies of these reformers multiplied daily: ridicule and abuse were poured upon them from every quarter; and it became evident to all but themselves that the hour of their fall was rapidly approaching. Cromwell, their maker, had long ago determined to reduce them to their original nothing; and their last vote respecting the ministry appeared to furnish a favourable opportunity. The next day, the Sunday, he passed with his friends in secret consultation; on the Monday these friends mustered in considerable numbers, and at an early hour took their seats in the house. Colonel Sydenham rose. He reviewed[b] all the proceedings of the parliament, condemned them as calculated to injure almost every interest in the state, and, declaring that he would no longer sit in so useless an assembly, moved that the house should proceed to Whitehall, and deliver back the supreme power into the hands of him from whom

[Footnote 1: Thurloe, i. 442, 534, 545, 560, 591, 621.]

[Sidenote a: A.D. 1653. Dec. 6.]

[Sidenote b: A.D. 1653. Dec. 12.]

it was derived. The motion was seconded and opposed; but the Independents had come to act, not to debate. They immediately rose: the speaker, who was in the secret, left the chair; the sergeant and the clerk accompanied him, and near fifty members followed in a body. The reformers, only twenty-seven in number (for most of them had not yet arrived), gazed on each other with surprise; their first resource was to fall to prayer; and they were employed in that holy exercise, when Goff and White, two officers, entered, and requested them to withdraw. Being required to show their warrant, they called in a company of soldiers. No resistance was now offered; the military cleared the house, and the keys were left with the guard.[1]

In the mean while the speaker, preceded by the mace, and followed by Sydenham and his friends, walked through the street to Whitehall. In the way, and after his arrival, he was joined by several members, by some through curiosity, by others through fear. At Whitehall, a form of resignation of the supreme power was hastily engrossed by the clerk, subscribed by the speaker and his followers, and tendered by them to Cromwell. The lord-general put on an air of surprise; he was not prepared for such an offer, he would not load himself with so heavy a burthen. But his reluctance yielded to the remonstrances and entreaties of Lambert and the officers, and the instrument was laid in a chamber of the palace for the convenience of such members as had not yet the opportunity of subscribing their names.

[Footnote 1: Exact Relation, 25, 26. True Narrative, 3. Thurloe, i. 730. I adopt the number given by Mansel, as he could have no motive to diminish it.]

On the third day the signatures amounted to eighty, an absolute majority of the whole house; on the fourth, a new constitution was published, and Cromwell obtained the great object of his ambition,—the office and authority, though without the title, of king.[1]

On that day, about one in the afternoon, the lord-general repaired in his carriage from the palace to Westminster Hall,[a] through two lines of military, composed of five regiments of foot and three of horse. The procession formed at the door. Before him walked the aldermen, the judges, two commissioners of the great seal, and the lord mayor; behind him the two councils of state and of the army. They mounted to the court of Chancery, where a chair of state with a cushion had been placed on a rich carpet. Cromwell was dressed in a suit and cloak of black velvet, with long boots, and a broad gold band round his hat. He took his place before the chair, between the two commissioners; the judges stood in a half-circle behind it, and the civic officers ranged themselves on the right, the military on the left, side of the court.

[Footnote 1: Exact Relation, 26. True Narrative, 4. Ludlow, ii. 33. Clarendon, iii. 484. Thurloe, i. 754. The author of this new constitution is not known. Ludlow tells us that it was first communicated by Lambert to a council of field officers. When some objections were made, he replied, that the general was willing to consider any amendments which might be proposed, but would not depart from the project itself. Some, therefore, suggested that, after the death of the present lord-general, the civil and military government should be kept separate, and that no protector should be succeeded by any of his relatives. This gave so much offence, that, at a second meeting, Lambert, having informed them that the lord-general would take care of the civil administration, dismissed them to their respective commands.—Ludlow, ii. 37. It is to this, perhaps, that the Dutch ambassador alludes, when he says that Cromwell desisted from his project

of being declared king on account of the displeasure of the officers.—
Thurloe, i. 644.]

[Sidenote a: A.D. 1653. Dec. 16.]

Lambert now came forward to address the lord-general. He noticed the dissolution of the late parliament, observed that the exigency of the time required a strong and stable government, and prayed his excellency in the name of the army and of the three nations to accept the office of protector of the commonwealth. Cromwell, though it was impossible to conceal the purpose for which he had come thither, could not yet put off the habit of dissimulation; and if, after some demur, he expressed his consent, it was with an appearance of reluctance which no one present could believe to be real.

Jessop, one of the clerks of the council, was next ordered to read the "instrument of government," consisting of forty-two articles. 1. By it the legislative power was invested in a lord-protector and parliament, but with a provision that every act passed by the parliament should become law at the expiration of twenty days, even without the consent of the protector; unless he could persuade the house of the reasonableness of his objections. The parliament was not to be adjourned, prorogued, or dissolved, without its own consent, within the first five months after its meeting; and a new parliament was to be called within three years after the dissolution of the last. The number of the members was fixed according to the plan projected by Vane at the close of the long parliament, at four hundred for England, thirty for Scotland, and thirty for Ireland. Most of the boroughs were disfranchised, and the number of county members was increased. Every person possessed of real or personal property to the value of two hundred pounds had a right to vote,[1] unless he were a malignant or delinquent, or professor

[Footnote 1: During the long parliament this qualification had been adopted on the motion of Cromwell, in place of a clause recommended by the committee, which gave the elective franchise under different regulations to freeholders, copyholders, tenants for life, and leaseholders,—See Journals, 30th March, 1653.]

of the Catholic faith; and the disqualifications to which the electors were subject attached also to the persons elected. 2. The executive power was made to reside in the lord-protector acting with the advice of his council. He possessed, moreover, the power of treating with foreign states with the *advice*, and of making peace or war with the *consent*, of the council. To him also belonged the disposal of the military and naval power, and the appointment of the great officers of state, with the approbation of parliament, and, in the intervals of parliament, with that of the council, but subject to the subsequent approbation of the parliament. 3. Laws could not be made, nor taxes imposed, but by common consent in parliament. 4. The civil list was fixed at two hundred thousand pounds, and a yearly revenue ordered to be raised for the support of an army of thirty thousand men, two-thirds infantry, and one-third cavalry, with such a navy as the lord-protector should think necessary. 5. All who professed faith in God by Jesus Christ were to be protected in the exercise of their religion, with the exception of prelatists, papists, and those who taught licentiousness under the pretence of religion. 6. The lord-general Cromwell was named lord-protector; his successors were to be chosen by the council. The first parliament was to assemble on the 3rd of the following December; and till that time the lord-protector was vested with power to raise the moneys necessary for the public service, and to make ordinances which should have the force of law, till orders were taken in parliament respecting the same.

At the conclusion, Cromwell, raising his right hand and his eyes to heaven with great solemnity, swore to observe, and cause to be observed, all

the articles of the instrument; and Lambert, falling on his knees, offered to the protector a civic sword in the scabbard, which he accepted, laying aside his own, to denote that he meant to govern by constitutional, and not by military, authority. He then seated himself in the chair, put on his hat while the rest stood uncovered, received the seal from the commissioners, the sword from the lord mayor, delivered them back again to the same individuals, and, having exercised these acts of sovereign authority, returned in procession to his carriage, and repaired in state to Whitehall. The same day the establishment of the government by a lord-protector and triennial parliaments, and the acceptance of the protectorship by the lord-general, were announced to the public by proclamation, with all the ceremonies hitherto used on the accession of a new monarch.[1]

It cannot be supposed that this elevation of Cromwell to the supreme power was viewed with satisfaction by any other class of men than his brethren in arms, who considered his greatness their own work, and expected from his gratitude their merited reward. But the nation was surfeited with revolutions. Men had suffered so severely from the ravages of war and the oppression of the military; they had seen so many instances of punishment incurred by resistance to the actual possessors of power; they were divided and

[Footnote 1: Whitelock, 571-578. Thurloe, i. 639, 641. Ludlow, ii. 40. The alteration in the representation, which had been proposed in the long parliament, was generally considered an improvement,—Clar. Hist. iii. 495.]

subdivided into so many parties, jealous and hateful of each other; that they readily acquiesced in any change which promised the return of tranquillity in the place of solicitude, danger, and misery. The protector, however, did not neglect the means of consolidating his own authority.

Availing himself of the powers intrusted to him by the "instrument," he gave the chief commands in the army to men in whom he could confide; quartered the troops in the manner best calculated to put down any insurrection; and, among the multitude of ordinances which he published, was careful to repeal the acts enforcing the Engagement; to forbid all meetings on racecourses or at cockpits, to explain what offences should be deemed treason against his government; and to establish a high court of justice for the trial of those who might be charged with such offences.

He could not, however, be ignorant that, even among the former companions of his fortunes, the men who had fought and bled by his side, there were several who, much as they revered the general, looked on the protector with the most cordial abhorrence.[a] They were stubborn, unbending republicans, partly from political, partly from religious, principle. To them he affected to unbosom himself without reserve. He was still, he protested, the same humble individual whom they had formerly known him. Had he consulted his own feelings, "he would rather have taken the staff of a shepherd" than the dignity of protector. Necessity had imposed the office upon him; he had sacrificed his own happiness to preserve his countrymen from anarchy and ruin; and, as he now bore the burden with reluctance, he would lay it down with joy, the moment he could do so with safety to

[Sidenote a: A.D. 1654.]

the nation. But this language made few proselytes. They had too often already been the dupes of his hypocrisy, the victims of their own credulity; they scrupled not, both in public companies, and from the pulpit, to pronounce him "a dissembling perjured villain;" and they openly threatened him with "a worse fate than had befallen the last tyrant." If it was necessary to silence these declaimers, it was also dangerous to treat them with

severity. He proceeded with caution, and modified his displeasure by circumstances. Some he removed from their commissions in the army and their ministry in the church; others he did not permit to go at large, till they had given security for their subsequent behaviour; and those who proved less tractable, or appeared more dangerous, he incarcerated in the Tower. Among the last were Harrison, formerly his fellow-labourer in the dissolution of the long parliament, now his most implacable enemy; and Feakes and Powell, the Anabaptist preachers, who had braved his resentment during the last parliament.[a] Symson, their colleague, shared their imprisonment, but procured his liberty[b] by submission.[1]

To the royalists, as he feared them less, he showed less forbearance. Charles, who still resided in Paris, maintained a constant correspondence with the friends of his family in England, for the twofold purpose of preserving a party ready to take advantage of any revolution in his favour, and of deriving from their loyalty advances of money for his own support and that of his followers. Among the agents whom he employed, were men who betrayed his secrets, or pretended

[Footnote 1: Thurloe, i. 641, 642; ii. 67, 68. Whitelock, 580, 582, 596. Ludlow, ii. 47.]

[Sidenote a: A.D. 1654. Feb. 30.]

[Sidenote b: A.D. 1654. July 26.]

secrets, to his enemies,[1] or who seduced his adherents into imaginary plots, that by the discovery they might earn the gratitude of the protector. Of the latter class was an individual named Henshaw, who had repaired to Paris, and been refused what he solicited, admission to the royal presence. On his return, he detailed to certain royalists a plan by which the protector might be assassinated on his way to Hampton Court, the guards at Whitehall overpowered, the town surprised, and the royal exile proclaimed.

Men were found to listen to his suggestions; and when a sufficient number were entangled in the toil, forty were apprehended[a] and examined. Of these, many consented to give evidence; three were selected[b] for trial before the high court of justice. Fox, one of the three, pleaded guilty, and thus, by giving countenance to the evidence of Henshaw, deserved and obtained[c] his pardon. Vowell, a schoolmaster, and Gerard, a young gentleman two-and-twenty years of age, received[d] judgment of death. The first suffered on the gallows, glorying that he died a martyr in the cause of royalty. Gerard, before he was beheaded, protested in the strongest terms that, though he had heard, he had never approved of the design.[2] In the depositions, it was pretended that Charles had given his consent to the assassination of the protector.

[Footnote 1: Clarendon informs Nicholas (June 12), that in reality no one secret had been betrayed or discovered.—Clar. Papers, iii. 247. But this is doubtful; for Willis, one of the committee called "the sealed knot," who was imprisoned, but discharged in September (Perfect Account, No. 194), proved afterwards a traitor.]

[Footnote 2: State Trials, v. 517-540. Thurloe, ii. 416, 446, 447. Whitelock, 591, 593, 593. Henshaw was not produced on the trial. It was pretended that he had escaped. But we learn from Thurloe that he was safe in the Tower, and so Gerard suspected in his speech on the scaffold.]

[Sidenote a: A.D. 1654. May 24.]

[Sidenote b: A.D. 1654. June 30.]

[Sidenote c: A.D. 1654. July 6.]

[Sidenote d: A.D. 1654. July 10.]

Though Cromwell professed to disbelieve the charge, yet as a measure of self-defence he threatened the exiled prince that, if any such attempt were

encouraged, he should have recourse to retaliation, and, at the same time, intimated that it would be no difficult matter for him to execute his threat.
[1]

On the same scaffold, but an hour later, perished a foreign nobleman, only nineteen years old, Don Pantaleon Sa, brother to Guimaraes, the Portuguese ambassador. Six months before, he and Gerard, whose execution we have just noticed, had quarrelled[a] in the New Exchange. Pantaleon, the next evening,[b] repaired to the same place with a body of armed followers; a fray ensued; Greenway, a person unconcerned in the dispute, was killed by accident or mistake; and the Portuguese fled to the house of the ambassador, whence they were conducted to prison by the military. The people, taking up the affair as a national quarrel, loudly demanded the blood of the reputed murderers. On behalf of Pantaleon it was argued: 1. That he was an ambassador, and therefore answerable to no one but his master; 2. That he was a person attached to the embassy, and therefore covered by the privilege of his principal. But the

[Footnote 1: Cromwell did not give credit to the plots for murdering him.—Thurloe, ii. 512, 533. Clarendon writes thus on the subject to his friend Nicholas: "I do assure you upon my credit, I do not know, and upon my confidence, the king does not, of any such design. Many wild, foolish persons propose wild things to the king, which he civilly discountenances, and then they and their friends brag what they hear, or could do; and, no doubt, in some such noble rage that hath now fallen out which they talk so much of at London, and by which many honest men are in prison, of which whole matter the king knows no more than secretary Nicholas doth."—Clar. Papers, iii. 247. See, however, the account of Sexby's plot in the next chapter.]

[Sidenote a: A.D. 1653. Nov. 21.]

[Sidenote b: A.D. 1653. Nov. 22.]

instrument which he produced in proof of the first allegation was no more than a written promise that he should succeed his brother in-office; and in reply to the second, it was maintained[a] that the privilege of an ambassador, whatever it might be, was personal, and did not extend to the individuals in his suite. At the bar, after several refusals, he was induced by the threat of the *peine forte et dure* to plead not guilty; and his demand of counsel, on account of his ignorance of English law, was rejected, on the ground that the court was "of counsel equal to the prisoner and the commonwealth." He was found guilty, and condemned, with four of his associates. To three of these the protector granted a pardon; but no entreaties of the several ambassadors could prevail in favour of Pantaleon. He was sacrificed, if we believe one of them, to the clamour of the people, whose feelings were so excited, that when his head fell on the scaffold,[b] the spectators proclaimed their joy by the most savage yells of exultation. [1] It was the very day on which his brother, perhaps to propitiate the protector, had signed the treaty between the two nations.

These executions had been preceded by one of a very different description.

Colonel Worsley had apprehended a Catholic clergyman, of the name of Southworth, who, thirty-seven years before, had been convicted at Lancaster, and sent into banishment. The old man (he had passed his seventy-second year),

[Footnote 1: See in State Trials, v. 461-518, a numerous collection of authorities and opinions respecting this case. Also *ibid.* 536. That Pantaleon and his friends were armed, cannot be denied: was it for revenge? So it would appear from the relation in Somers's Tracts, iii. 65; Whitelock, 569;

and State Trials, v. 482. Was it solely for defence? Such is the evidence of Metham (Thurloe, ii. 222), and the assertion of Pantaleon at his death.—Whitelock, ii. 595.]

[Sidenote a: A.D. 1654. July 5.]

[Sidenote b: A.D. 1654. July 10.]

at his arraignment, pleaded that he had taken orders in the church of Rome, but was innocent of any treason. The recorder advised him to withdraw his plea, and gave him four hours for consideration. But Southworth still owned that he was a Catholic and in orders; judgment of death was pronounced; and the protector, notwithstanding the urgent solicitations of the French and Spanish ambassadors, resolved that he should suffer. It was not that Cromwell approved of sanguinary punishments in matters of religion, but that he had no objection to purchase the good-will of the godly by shedding the blood of a priest. The[a] fate of this venerable man[a] excited the sympathy of the higher classes. Two hundred carriages and a crowd of horsemen followed the hurdle on which he was drawn to the place of execution. On the scaffold, he spoke with satisfaction of the manner of his death, but at the same time pointed out the inconsistency of the men who pretended to have taken up arms for liberty of conscience, and yet shed the blood of those who differed from them in religious opinions. He suffered the usual punishment of traitors.[1]

The intelligence of the late revolution had been received by the military in Ireland and Scotland with open murmurs on the part of some, and a suspicious acquiescence on that of others. In Ireland, Fleetwood knew not how to reconcile the conduct of his father-in-law with his own principles, and expressed a wish to resign the government of the island; Ludlow and Jones, both stanch republicans, looked on the protector as a hypocrite and an apostate, and though the latter was more cautious in his language, the

[Footnote 1: Thurloe, ii. 406. Whitelock, 592. Challoner, ii. 354.
Knaresborough's Collections, MS.]

[Sidenote a: A.D. 1654 June 23.]

former openly refused to act as civil commissioner under the new constitution; and in most of the garrisons several of the principal officers made no secret of their dissatisfaction: in one case they even drew up a remonstrance against "the government by a single person." But Cromwell averted the storm which threatened him, by his prudence and firmness. He sent his son Henry on a visit to Fleetwood, that he might learn the true disposition of the military; the more formidable of his opponents were silently withdrawn to England; and several of the others found themselves suddenly but successively deprived of their commands. In most cases interest proved more powerful than principle; and it was observed that out of the numbers, who at first crowded to the Anabaptist conventicle at Dublin as a profession of their political creed, almost all who had any thing to lose, gradually abandoned it for the more courtly places of worship. Even the Anabaptists themselves learned to believe that the ambition of a private individual could not defeat the designs of the Lord, and that it was better for men to retain their situations under the protector, than, by abandoning them, to deprive themselves of the means of promoting the service of God, and of hastening the reign of Christ upon earth.[1]

In Scotland the spirit of disaffection equally prevailed among the superior officers; but their attention was averted from political feuds by military operations. In the preceding years, under the appearance of general tranquillity, the embers of war had continued to smoulder in the Highlands: they burst into a flame on the departure of Monk to take the command of the

[Footnote 1: Thurloe, ii. 149, 150, 162, 214.]

English fleet. To Charles in France, and his partisans in Scotland, it seemed a favourable moment; the earls of Glencairn and Balcarras, were successively joined by Angus, Montrose, Athol, Seaforth, Kenmure, and Lorne, the son of Argyle; and Wogan, an enterprising officer, landing at Dover,[a] raised a troop of royalists in London, and traversing England under the colours of the commonwealth, reached in safety the quarters of his Scottish friends. The number of the royalists amounted to some thousands: the nature of the country and the affections of the natives were in their favour; and their spirits were supported by the repeated, but fallacious, intelligence of the speedy arrival of Charles himself at the head of a considerable force. A petty, but most destructive, warfare ensued. Robert Lilburne, the English commander, ravaged the lands of all who favoured the royalists; the royalists, those of all who remained neuter, or aided their enemies. But in a short time, personal feuds distracted the councils of the insurgents; and, as the right of Glencairn to the chief command was disputed, Middleton arrived[b] with a royal commission, which all were required to obey. To Middleton the protector opposed Monk. [c] It was the policy of the former to avoid a battle, and exhaust the strength of his adversary by marches and counter-marches in a mountainous country, without the convenience of roads or quarters; but in an attempt to elude his pursuer, Middleton was surprised[d] at Loch Garry by the force under Morgan; his men, embarrassed in the defile, were slain or made prisoners; and his loss taught the royalist leaders to deserve mercy by the promptitude of their submission. The Earl of Tullibardine set the example;[e] Glencairn followed; they were imitated by their associates;

[Sidenote a: A.D. 1653. Nov. 22.]

[Sidenote b: A.D. 1654. Feb. 1.]

[Sidenote c: A.D. 1654. April 8.]

[Sidenote d: A.D. 1654. July 19.]

[Sidenote e: A.D. 1654. August 24.]

and the lenity of Monk contributed as much as the fortune of war to the total suppression of the insurgents.[1] Cromwell, however, did not wait for the issue of the contest. Before Monk had joined the army, he published[a] three ordinances, by which, of his supreme authority, he incorporated Scotland with England, absolved the natives from their allegiance to Charles Stuart, abolished the kingly office and the Scottish parliament, with all tenures and superiorities importing servitude and vassalage, erected courts-baron to supply the place of the jurisdictions which he had taken away, and granted a free pardon to the nation, with the exception of numerous individuals whom he subjected to different degrees of punishment. Thus the whole frame of the Scottish constitution was subverted: yet no one ventured to remonstrate or oppose. The spirit of the nation had been broken. The experience of the past, and the presence of the military, convinced the people that resistance was fruitless: of the nobility, many languished within the walls of their prisons in England; and the others were ground to the dust by the demands of their creditors, or the exactions of the sequestrators; and even the kirk, which had so often bearded kings on their thrones, was taught to feel that its authority, however it might boast of its celestial origin, was no match for the earthly power of the English commonwealth.[2] Soon after Cromwell had called his little parliament, the general assembly of the kirk met[b]

[Footnote 1: See the ratification of the surrenders of Tullibardine, Glencairn, Heriot, Forrester, Kenmure, Montrose, and Seaforth, dated at different times between Aug. 24 and Jan. 10, in the Council Book, 1655, Feb. 7.]

[Footnote 2: Scobell, 289, 293-295. Whitelock, 583, 597, 599. Burnet, i. 58-61. Baillie, ii. 377, 381. Milton, State Papers, 130, 131.]

[Sidenote a: A.D. 1654. April 1.]

[Sidenote a: A.D. 1654. July 20.]

at the usual place in Edinburgh; and Dickson, the moderator, had begun his prayer, when Colonel Cotterel, leaving two troops of horse and two companies of foot at the door, entered[a] the house, and inquired by what authority they sat there; Was it by authority of the parliament, or of the commander of the forces, or of the English judges in Scotland? The moderator meekly but firmly replied, that they formed a spiritual court, established by God, recognized by law, and supported by the solemn league and covenant. But this was a language which the soldier did not, or would not, understand. Mounting a bench, he declared that there existed no authority in Scotland which was not derived from the parliament of England; that it was his duty to put down every illegal assumption of power; and that they must immediately depart or suffer themselves to be dragged out by the military under his command. No one offered to resist: a protestation was hastily entered on the minutes; and the whole body was marched between two files of soldiers through the streets, to the surprise, and grief, and horror of the inhabitants. At the distance of a mile from the city, Cotterel discharged them with an admonition, that, if any of them were found in the capital after eight o'clock on the following morning, or should subsequently presume to meet in greater numbers than three persons at one time, they would be punished with imprisonment, as disturbers of the public peace. "Thus," exclaims Baillie, "our general assembly, the glory and strength of our church upon earth, is by your soldiery crushed and trode under foot. For this our hearts are sad, and our eyes run down with water."

[1]

[Footnote 1: Baillie, ii. 370.]

[Sidenote a: A.D. 1654. July 20.]

Yet after this they were permitted to meet in synods and presbyteries, an indulgence which they owed not to the moderation of their adversaries, but to the policy of Vane, who argued that it was better to furnish them with the opportunity of quarrelling among themselves, than, by establishing a compulsory tranquillity, allow them to combine against the commonwealth. For the ministers were still divided into resolutioners and protestors, and the virulence of this religious feud appeared to augment in proportion as the parties were deprived of real power. The resolutioners were the more numerous, and enjoyed a greater share of popular favour; but the protestors were enemies of Charles Stuart, and therefore sure of the protection of the government. Hence it happened that in every struggle for the possession of churches—and such struggles continually happened between the two parties—the protestors were invariably supported against the voice of the people by the swords of the military.[1]

By foreign powers the recent elevation of Cromwell was viewed without surprise. They were aware of his ambition, and had anticipated his success. All who had reason to hope from his friendship, or to fear from his enmity, offered their congratulations, and ambassadors and envoys from most of the princes of Europe crowded to the court of the protector. He

[Footnote 1: Baillie, 371-376, 360. Burnet, i. 62. Whilst Baillie weeps over the state of the kirk, Kirkton exults at the progress of the gospel. "I verily believe," he writes, "there were more souls converted unto Christ in that short period of time than in any season since the Reformation. Ministers were painful, people were diligent. At their solemn communions many congregations met in great multitudes, some dozen of ministers used to preach, and the people continued as it were in a sort of trance (so serious were they in spiritual exercises) for three days at least."—Kirkton 54, 55.]

received them with all the state of a sovereign. From his apartments in the Cockpit he had removed with his family to those which in former times had been appropriated to the king: they were newly furnished in the most costly and magnificent style; and in the banqueting-room was placed a chair of state on a platform, raised by three steps above the floor. Here the protector stood to receive the ambassadors. They were instructed to make three reverences, one at the entrance, the second in the midway, and the third at the lower step, to each of which Cromwell answered by a slight inclination of the head. When they had delivered their speeches, and received the reply of the protector, the same ceremonial was repeated at their departure. On one occasion he was requested to permit the gentlemen attached to the embassy to kiss his hand; but he advanced to the upper step, bowed to each in succession, waved his hand, and withdrew. On the conclusion of peace with the States, the ambassadors received from him an invitation to dinner. He sat alone on one side of the table, they, with some lords of the council, on the other. Their ladies were entertained by the lady protectress. After dinner, both parties joined in the drawing-room; pieces of music were performed, and a psalm was sung, a copy of which Cromwell gave to the ambassadors, observing that it was the best paper that had ever passed between them. The entertainment concluded with a walk in the gallery.[1]

This treaty with the United Provinces was the first which engaged the attention of the protector, and was

[Footnote 1: Clarendon Papers, iii. 240. Thurloe, i. 50, 69, 154, 257. It appears from the Council Book that the quarterly expense of the protector's family amounted to thirty-five thousand pounds. 1655, March 14.]

not concluded till repeated victories had proved the superiority of the English navy, and a protracted negotiation had exhausted the patience of the

States. In the preceding month of May the hostile fleets, each consisting of about one hundred sail, had put to sea, the English commanded by Monk, Dean, Penn, and Lawson; the Dutch by Van Tromp, De Ruyter, De Witte, and Evertsens. While Monk insulted the coast of Holland, Van Tromp cannonaded[a] the town of Dover. They afterwards met each other off the North Foreland, and the action continued the whole day. The enemy lost two sail; on the part of the English, Dean was killed by a chain-shot. He fell by the side of Monk, who instantly spread his cloak over the dead body, that the men might not be alarmed at the fete of their commander.

The battle was renewed the next morning.[b] Though Blake, with eighteen sail, had joined the English in the night, Van Tromp fought with the most determined courage; but a panic pervaded his fleet; his orders were disobeyed; several captains fled from the superior fire of the enemy; and, ultimately, the Dutch sought shelter within the Wielings, and along the shallow coast of Zeeland. They lost one-and-twenty sail; thirteen hundred men were made prisoners, and the number of killed and wounded was great in proportion.[1]

Cromwell received the news of this victory with transports of joy. Though he could claim no share in the merit (for the fleet owed its success to the exertions

[Footnote 1: Whitelock, 557. Ludlow, ii. 27. Heath, 344. Le Clerc, i. 333. Basnage, i. 307. It appears from the letters in Thurloe, that the English fought at the distance of half cannon-shot, till the enemy fell into confusion, and began to fly, when their disabled ships were surrounded, and captured by the English frigates.—Thurloe, i. 269, 270, 273, 277, 278.]

[Sidenote a: A.D. 1653. June 2.]

[Sidenote b: A.D. 1653. June 3.]

of the government which he had overturned), he was aware that it would shed a lustre over his own administration; and the people were publicly called upon to return thanks to the Almighty for so signal a favour. It was observed that on this occasion he did not command but invite; and the distinction was hailed by his admirers as a proof of the humility and single-mindedness of the lord-general.[1]

To the States, the defeat of their fleet proved a subject of the deepest regret. It was not the loss of men and ships that they deplored; such loss might soon be repaired; but it degraded them in the eyes of Europe, by placing them in the posture of suppliants deprecating the anger of a victorious enemy. In consequence of the importunate entreaties of the merchants, they had previously appointed ambassadors to make proposals of peace to the new government; but these ministers did not quit the coast of Holland till after the battle;^[a] and their arrival in England at this particular moment was universally attributed to a conviction of inferiority arising from the late defeat. They were introduced^[b] with due honour to his excellency and the council; but found them unwilling to recede from the high demands formerly made by the parliament. As to the claim of indemnification for the past, the ambassadors maintained that, if a balance were struck of their respective losses, the Dutch would be found the principal sufferers; and, to the demand of security for the future, they replied, that it might be obtained by the completion of that treaty, which had been interrupted by the sudden departure of St. John and Strickland from the Hague. The obstinacy of the council induced the ambassadors to demand^[c] passports

[Footnote 1: Whitelock, 558.]

[Sidenote a: A.D. 1653. May 26.]

[Sidenote b: A.D. 1653. June 22.]

[Sidenote c: A.D. 1653. July 19.]

for their return; but means were found to awaken in them new hopes, and to amuse them with new proposals. In the conferences, Cromwell generally bore the principal part. Sometimes he chided the ambassadors in no very courteous terms; sometimes he described with tears the misery occasioned by the war; but he was always careful to wrap up his meaning in such obscurity, that a full month elapsed before the Dutch could distinctly ascertain his real demands. They were then informed[a] that England would waive the claim of pecuniary compensation, provided Van Tromp were removed for a while from the command of their fleet, as an acknowledgment that he was the aggressor; but that, on the other hand, it was expected that the States should consent to the incorporation of the two countries into one great maritime power, to be equally under the same government, consisting of individuals chosen out of both. This was a subject on which the ambassadors had no power to treat; and it was agreed that two of their number should repair to the Hague for additional instructions.[1]

But, a few days before their departure, another battle had been fought[b] at sea, and another victory won by the English. For eight weeks Monk had blockaded the entrance of the Texel; but Van Tromp, the moment his fleet was repaired, put to sea, and sought to redeem the honour of the Belgic flag. Each admiral commanded about one hundred sail; and as long as Tromp lived, the victory hung in suspense; he had burst through the English line, and returned to his first station, when he fell by a musket-shot; then the

[Footnote 1: See on this subject a multitude of original papers in Thurloe, i. 268, 284, 302, 308, 315, 316, 340, 362, 370, 372, 381, 382, 394, 401.]

[Sidenote a: A.D. 1653. July 26.]

[Sidenote b: A.D. 1653. July 31.]

Dutch began to waver; in a short time they fled, and the pursuit continued till midnight. That which distinguished this from every preceding action was the order issued by Monk to make no prizes, but to sink or destroy the ships of the enemy. Hence the only trophies of victory were the prisoners, men who had been picked up after they had thrown themselves into the water, or had escaped in boats from the wrecks. Of these, more than a thousand were brought to England, a sufficient proof that, if the loss of the enemy did not amount to twenty sail, as stated by Monk, it exceeded nine small vessels, the utmost allowed by the States.[1]

During the absence of the other ambassadors, Cromwell sought several private interviews with the third who remained, Beverning, the deputy from the States of Holland; and the moderation with which he spoke of the questions in dispute, joined to the tears with which he lamented the enmity of two nations so similar in their political and religious principles, convinced the Dutchman that an accommodation might be easily and promptly attained. At his desire his colleagues returned; the conferences were resumed; the most cheering hopes were indulged; when suddenly the English commissioners presented seven-and-twenty articles, conceived in a tone of insulting superiority, and demanding sacrifices painful and degrading. A few days later the parliament was dissolved; and, as it was evident that the interests of the new protector required a peace, the ambassadors began to affect indifference on the subject, and demanded passports to depart. Cromwell, in his turn, thought proper to yield; some claims

[Footnote 1: Le Clerc, i. 335. Basnage, i. 313. Several Proceedings, No. 197. Perfect Diurnal, No. 187. Thurloe, i. 392, 420, 448.]

were abandoned; others were modified, and every question was adjusted, with the exception of this, whether the king of Denmark, the ally of the

Dutch, who, to gratify them, had seized and confiscated twenty-three English merchantmen in the Baltic,[1] should be comprehended or not in the treaty. The ambassadors were at Gravesend on their way home, when Cromwell proposed[a] a new expedient, which they approved. They proceeded, however, to Holland; obtained the approbation of the several states, and returned[b] to put an end to the treaty. But here again, to their surprise, new obstacles arose. Beverning had incautiously boasted of his dexterity; he had, so he pretended compelled the protector to lower his demands by threatening to break off the negotiation; and Cromwell now turned the tables upon him by playing a similar game. At the same time that he rose in some of his demands, he equipped a fleet of one hundred sail, and ordered several regiments to embark. The ambassadors, aware that the States had made no provision to oppose this formidable armament, reluctantly acquiesced[c] and on the 5th of April, after a negotiation of ten months, the peace was definitively signed.[2]

By this treaty the English cabinet silently abandoned those lofty pretensions which it had originally put forth. It made no mention of indemnity for the past, of security for the future, of the incorporation of the two states, of the claim of search, of the tenth herring, or of the exclusion of the prince of Orange

[Footnote 1: Basnage, i. 289.]

[Footnote 2: Thurloe, i. 570, 607, 616, 624, 643, 650; ii. 9, 19, 28, 36, 74, 75, 123, 137, 195, 197. Le Clerc. i, 340-343. During the whole negotiation, it appears from these papers that the despatches of, and to, the ambassadors were opened, and copies of almost all the resolutions taken by the States procured, by the council of state.—See particularly Thurloe, ii. 99, 153.]

[Sidenote a: A.D. 1654. Jan. 6.]

[Sidenote b: A.D. 1654. Feb. 28.]

[Sidenote c: A.D. 1654. April 5.]

from the office of stadtholder. To these humiliating conditions the pride of the States had refused to submit; and Cromwell was content to accept two other articles, which, while they appeared equally to affect the two nations, were in reality directed against the Stuart family and its adherents. It was stipulated that neither commonwealth should harbour or aid the enemies, rebels, or exiles of the other; but that either, being previously required, should order such enemies, rebels, or exiles to leave its territory, under the penalty of death, before the expiration of twenty-eight days. To the demand, that the same respect which had been paid to the flag of the king should be paid to that of the commonwealth, the Dutch did not object. The only questions which latterly retarded the conclusion of the treaty related to the compensation to be made to the merchants for the depredations on their trade in the East Indies before, and the detention of their ships by the king of Denmark during, the war. It was, however, agreed that arbitrators should be chosen out of both nations, and that each government should be bound by their award.[1] These determined[a] that the island of Polerone should be restored, and damages to the amount of one hundred and seventy thousand pounds should be paid to the English East India Company; that three thousand six hundred and fifteen pounds should be distributed among the heirs of those who suffered at Amboyna; and that a compensation of ninety-seven thousand nine hundred and seventy-three pounds should be made to the traders to the Baltic.[2]

[Footnote 1: Dumont, v. part ii. 74.]

[Footnote 2: See the award, *ibid.* 85, 88. By Sagredo, the Venetian ambassador, who resided during the war at Amsterdam, we are told that the Dutch acknowledged the loss of one thousand one hundred and twenty-two men-of-war and merchantmen; and that the expense of this war exceeded

that of their twenty years' hostilities with Spain. He states that their inferiority arose from three causes: that the English ships were of greater bulk; the English cannon were of brass, and of a larger calibre; and the number of prizes made by the English at the commencement crippled the maritime resources of their enemies.—Relazione, MS. Le Clerc states that the Dutch employed one hundred thousand men in the herring-fishery (i. 321).]

[Sidenote a: A.D. 1654. August 30.]

On one subject, in the protector's estimation of considerable importance, he was partially successful. Possessed of the supreme power himself, he considered Charles as a personal rival, and made it his policy to strip the exiled king of all hope of foreign support. From the prince of Orange, so nearly allied to the royal family, Cromwell had little to fear during his minority; and, to render him incapable of benefiting the royal cause in his more mature age, the protector attempted to exclude him by the treaty from succeeding to those high offices which might almost be considered hereditary in his family. The determined refusal of the States had induced him to withdraw the demand; but he intrigued, through the agency of Beverning, with the leaders of the Louvestein party;^[1] and obtained a secret article, by which the states of Holland and West Friesland promised never to elect the prince of Orange for their stadtholder, nor suffer him to have the chief command of the army and navy. But the secret transpired; the other states highly resented this clandestine negotiation; complaints and remonstrances were answered by apologies and vindications; an open schism was declared between the provinces, and every day added to the exasperation of the two parties. On the whole, however, the quarrel was favourable to the pretensions of the young prince,

[Footnote 1: The leaders of the republicans were so called, because they had been confined in the castle of Louvestein, whence they were discharged on the death of the late prince of Orange.]

from the dislike with which the people viewed the interference of a foreign potentate, or rather, as they termed him, of an usurper, in the internal arrangements of the republic.[1]

The war[a] in which the rival crowns of France and Spain had so long been engaged induced both Louis and Philip to pay their court to the new protector. Alonzo de Cardenas, the Spanish ambassador, had the advantage of being on the spot. He waited on Cromwell to present to him the congratulations of his sovereign, and to offer to him the support of the Spanish monarch, if he should feel desirous to rise a step higher, and assume the style and office of king. To so flattering a message, a most courteous answer was returned; and the ambassador proceeded to propose an alliance between the two powers, of which the great object should be to confine within reasonable bounds the ambition of France, which, for so many years, had disturbed the tranquillity of Europe. This was the sole advantage to which Philip looked; to Cromwell the benefit would be, that France might be compelled to refuse aid and harbour to Charles Stuart and his followers; and to contract the obligation of maintaining jointly with Spain the protector in the government of the three kingdoms. Cromwell listened, but gave no answer; he appointed commissioners to discuss the proposal, but forbade them to make any promise, or to hold out any hope of his acquiescence. When Don Alonzo communicated to them the draft of a treaty which he had all but concluded with the deputies appointed by the late parliament, he was

[Footnote 1: Dumont, 79. Thurloe, vol. ii. iii. Vaughan, i. 9, 11. La Déduction, or Defence of the States in Holland, in Le Clerc, i. 345, and

Basnage, i. 342.]

[Sidenote a: A.D. 1653.]

asked whether the king of Spain would consent to a free trade to the West Indies, would omit the clause respecting the Inquisition, reduce to an equality the duties on foreign merchandise, and give to the English merchant the pre-emption of the Spanish wool. He replied, that his master would as soon lose his eyes as suffer the interference of any foreign power on the two first questions; as to the others, satisfactory adjustments might easily be made; This was sufficient for the present. Cromwell affected to consider the treaty at an end; though the real fact was, that he meditated a very different project in his own mind, and was careful not to be precluded by premature arrangements.[1]

The French ambassador, though he commenced his negotiation under less propitious auspices, had the address or good fortune to conduct it to a more favourable issue. That the royal family of France, from its relationship to that of England, was ill-disposed towards the commonwealth, there could be no doubt; but its inclinations were controlled by the internal feuds which distracted, and the external war which demanded, the attention of the government. The first proof of hostility was supposed to be given before the death of the king, by a royal *arrêt*[a] prohibiting the importation into France of English woollens and silks; and this was afterwards met by an order of parliament[b] equally prohibiting the importation into England of French woollens, silks, and wines. The alleged infraction of these commercial

[Footnote 1: Thurloe, i. 705, 759, 760. Dumont, v. part ii. p. 106. The clause respecting the Inquisition was one which secured the English traders from being molested by that court, on condition that they gave no scandal, —modo ne dent scandalum. This condition Cromwell wished to be withdrawn.]

[Sidenote a: A.D. 1648. Oct. 21.]

[Sidenote b: A.D. 1649. August 23.]

regulations led to the arrest and subsequent condemnation of vessels belonging to both nations; each government issued letters-of-marque to the sufferers among its subjects; and the naval commanders received instructions to seek that compensation for the individuals aggrieved which the latter were unable to obtain of themselves.[1] Thus the maritime trade of both countries was exposed to the depredations of private and national cruisers, while their respective governments were considered as remaining at peace. But in 1651, when the Cardinal Mazarin had been banished from France, it was resolved by Cromwell, who had recently won the battle of Worcester, to tempt the fidelity of d'Estrades, the governor of Dunkirk and a dependant on the exiled minister. An officer of the lord-general's regiment made to d'Estrades the offer of a considerable sum, on condition that he would deliver the fortress into the hands of the English; or of the same sum, with the aid of a military force to the cardinal, if he preferred to treat in the name of his patron. The governor complained of the insult offered to his honour; but intimated[a] that, if the English wished to purchase Dunkirk, the proposal might be addressed to his sovereign. The hint was taken, and the offer was made, and debated in the royal council at Poitiers. The cardinal, who returned to France at the very time, urged its

[Footnote 1: See the instructions to Popham. "In respect that many of the English so spoiled are not able to undergo the charge of setting forth ships of their own to make seizures by such letters-of-marque; ... you shall, as in the way and execution of justice, seize, arrest, &c. such ships and vessels of the said French king, or any of his subjects, as you shall think fit,... and the same keep in your custody, till the parliament declare their further resolution concerning the same."—Thurloe, i. 144.]

[Sidenote a: A.D. 1652. Feb.]

acceptance;^[1] but the queen-mother and the other counsellors were so unwilling to give the English a footing in France, that he acquiesced in their opinion, and a refusal was returned. Cromwell did not fail to resent the disappointment. By the facility which he afforded to the Spanish levies in Ireland, their army in Flanders was enabled to reduce Gravelines, and, soon afterwards, to invest^[a] Dunkirk. That fortress was on the point of capitulating when a French flotilla of seven sail, carrying from twenty to thirty guns each, and laden with stores and provisions, was descried^[b] stealing along the shore to its relief. Blake, who had received secret orders from the council, gave chase; the whole squadron was captured, and the next day^[c] Dunkirk opened its gates.^[2] By the French court this action was pronounced an unprovoked and unjustifiable injury; but Mazarin coolly calculated the probable consequences of a war, and, after some time, sent^[d] over Bordeaux, under the pretence of claiming the captured ships, but in reality to oppose the intrigues of the agents of Spain, of the prince of Condé, and of the city of Bordeaux, who laboured to obtain the support of the commonwealth in opposition to the French court.^[3]

Bordeaux had been appointed^[e] ambassador to the parliament; after the inauguration of Cromwell, it became necessary to appoint him ambassador to his

[Footnote 1: Here Louis XIV., to whom we are indebted for this anecdote observes; that it was the cardinal's maxim de pourvoir, à quelque prix qu'il fût, aux affaires présentes, persuadé que les maux à venir, trouveroient leur remède dans l'avenir même.—Oeuvres de Louis XIV. i. 170.]

[Footnote 2: Ibid. 168-170. See also Heath, 325; Thurloe, i. 214; Whitelock, 543.]

[Footnote 3: Journals, 14 Dec. 1652. Clar. Pap. iii. 105, 123, 132.
Thurloe, i. 436.]

[Sidenote a: A.D. 1652. May 8.]

[Sidenote b: A.D. 1652. Sept. 5.]

[Sidenote c: A.D. 1652. Sept. 6.]

[Sidenote d: A.D. 1652. Dec. 10.]

[Sidenote e: A.D. 1653. Feb. 21.]

highness the protector. But in what style was Louis to address the usurper by letter? "Mon cousin" was offered and refused; "mon frère," which Cromwell sought, was offensive to the pride of the monarch; and, as a temperament between the two, "monsieur le protecteur" was given and accepted. Bordeaux proposed a treaty of amity, by which all letters-of-marque should be recalled, and the damages suffered by the merchants of the two nations be referred to foreign arbitrators. To thwart the efforts of his rival, Don Alonzo, abandoning his former project, brought forward the proposal of a new commercial treaty between England and Spain. Cromwell was in no haste to conclude with either. He was aware that the war between them was the true cause of these applications; that he held the balance in his hand, and that it was in his power at any moment to incline it in favour of either of the two crowns. His determination, indeed, had long been taken; but it was not his purpose to let it transpire; and when he was asked the object of the two great armaments preparing in the English ports, he refused to give any satisfactory explanation.[1]

In this state of the treaty, its further progress was for a while suspended by the meeting[a] of the protector's first parliament. He had summoned it for the 3rd of September, his fortunate day, as he perhaps believed himself, as he certainly wished it to be believed by others. But the 3rd happened in that year to fall on a Sunday; and, that the Sabbath might not be profaned

[Footnote 1: Thurloe, i. 760; ii. 61, 113, 228, 559, 587. An obstacle was opposed to the progress of the treaty by the conduct of Le Baas, a dependant on Mazarin, and sent to aid Bordeaux with his advice. After some time, it was discovered that this man (whether by order of the minister, or at the solicitation of the royalists, is uncertain) was intriguing with the malcontents. Cromwell compelled him to return to France.—Thurloe, ii. 309, 351, 412, 437.]

[Sidenote a: A.D. 1654. Sept. 3.]

by the agitation of worldly business, he requested the members to meet him at sermon in Westminster Abbey on the following morning.[a] At ten the procession set out from Whitehall. It was opened by two troops of life-guards; then rode some hundreds of gentlemen and officers, bareheaded, and in splendid apparel; immediately before the carriage walked the pages and lackeys of the protector in rich liveries, and on each side a captain of the guard; behind it came Claypole, master of the horse, leading a charger magnificently caparisoned, and Claypole was followed by the great officers of state and the members of the council. The personal appearance of the protector formed a striking contrast with the parade of the procession. He was dressed in a plain suit, after the fashion of a country gentleman, and was chiefly distinguished from his attendants by his superior simplicity, and the privilege of wearing his hat. After sermon, he placed himself in the chair of state in the Painted Chamber, while the members seated themselves, uncovered on benches ranged along the walls. The protector then rose, took off his hat, and addressed them in a speech which lasted three hours. It was, after his usual style, verbose, involved, and obscure, sprinkled with quotations from Scripture to refresh the piety of the saints, and seasoned with an affectation of modesty to disarm the enmity of the republicans. He described the state of the nation at the close of the last parliament. It was agitated by the principles of the Levellers, tending to reduce all to an

equality; by the doctrines of the Fifth-monarchy men, subversive of civil government; by religious theorists, the pretended champions of liberty of conscience, who condemned an established ministry as Babylonish and antichristian;

[Sidenote a: A.D. 1654. Sept. 4.]

and by swarms of Jesuits, who had settled in England an episcopal jurisdiction to pervert the people. At the same time the naval war with Holland absorbed all the pecuniary resources, while a commercial war with France and Portugal cramped the industry of the nation. He then bade them contrast this picture with the existing state of things. The taxes had been reduced; judges of talent and integrity had been placed upon the bench; the burthen of the commissioners of the great seal had been lightened by the removal of many descriptions of causes from the court of Chancery to the ordinary courts of law; and "a stop had been put to that heady way for every man, who pleased, to become a preacher." The war with Holland had terminated in an advantageous peace; treaties of commerce and amity had been concluded with Denmark and Sweden;^[1] a similar treaty, which would place the British trader beyond the reach of the Inquisition, had been signed with Portugal, and another was in progress with the ambassador of the French monarch. Thus had the government brought the three nations by hasty strides towards the land of promise; it was for the parliament to introduce them into it. The prospect was bright before them; let them not look

[Footnote 1: That with Sweden was negotiated by Whitelock, who had been sent on that mission against his will by the influence of Cromwell. The object was to detach Sweden from the interest of France, and engage it to maintain the liberty of trade in the Baltic, against Denmark, which was under the influence of Holland. It was concluded April 11. After the peace

with Holland, the Danish monarch hastened to appease the protector; the treaty which, though said by Cromwell to be already concluded, was not signed till eleven days afterwards, stipulated that the English traders should pay no other customs or dues than the Dutch. Thus they were enabled to import naval stores on the same terms, while before, on account of the heavy duties, they bought them at second hand of the Dutch.—See the treaties in Dumont. v. part ii. p. 80, 92.]

back to the onions and flesh-pots of Egypt. He spoke not as their lord, but their fellow-servant, a labourer with them in the same good work; and would therefore detain them no longer, but desire them to repair to their own house, and to choose their speaker.[1]

To procure a parliament favourable to his designs, all the power of the government had been employed to influence the elections; the returns had been examined by a committee of the council, under the pretext of seeing that the provisions of the "instrument" were observed; and the consequence was, that the Lord Grey of Groby, Major Wildman, and some other noted republicans, had been excluded by command of the protector. Still he found himself unable to mould the house to his wishes. By the court, Lenthall was put in nomination for the office of speaker; by the opposition, Bradshaw, the boldest and most able of the opposite party. After a short debate, Lenthall was chosen, by the one, because they knew him to be a timid and a time-serving character; by the other, because they thought that, to place him in the chair, was one step towards the revival of the long parliament, of which he had been speaker. But no one ventured to propose that he should be offered, according to ancient custom, to the acceptance of the supreme magistrate. This was thought to savour too much of royalty.[2]

[Footnote 1: Compare the official copy printed by G. Sawbridge, 1654, with the abstract by Whitelock (599, 600), and by Bordeaux (Thurloe, ii. 518). See also Journals, Sept. 3, 4.]

[Footnote 2: It appears from the Council Book (1654, Aug. 21), that, on that day, letters were despatched to the sheriffs, containing the names of the members who had been approved by the council, with orders to give them notice to attend. The letters to the more distant places were sent first, that they might all be received about the same time.]

It was not long before the relative strength of the parties was ascertained. After a sharp debate,[a] in which it was repeatedly asked why the members of the long parliament then present should not resume the authority of which they had been illegally deprived by force, and by what right, but that of the sword, one man presumed to "command his commanders," the question was put, that the house resolve itself into a committee, to determine whether or not the government shall be in a single person and a parliament; and, to the surprise and alarm of Cromwell, it was carried[b] against the court by a majority of five voices.[1] The leaders of the opposition were Bradshaw, Hazlerig, and Scot, who now contended in the committee that the existing government emanated from an incompetent authority, and stood in opposition to the solemn determination of a legitimate parliament; while the protectorists, with equal warmth, maintained that, since it had been approved by the people, the only real source of power, it could not be subject to revision by the representatives of the people. The debate lasted several days,[c] during which the commonwealth party gradually increased in number. That the executive power might be profitably delegated to a single individual, was not disputed; but it was contended that, of right, the legislative authority belonged exclusively to the parliament. The officers and courtiers, finding that the sense of the house was against them, dropped[d] the question of right, and fled to that of expediency; in the existing circumstances, the public safety required a

[Footnote 1: Journals, Sept. 8. Many of those who voted in the majority did not object to the authority of the protector, but to the source from which it emanated,—a written instrument, the author of which was unknown. They wished it to be settled on him by act of parliament.—Thurloe, ii. 606.]

[Sidenote a: A.D. 1654. Sept. 7.]

[Sidenote b: A.D. 1654. Sept. 8.]

[Sidenote c: A.D. 1654. Sept. 9.]

[Sidenote d: A.D. 1654. Sept. 11.]

check on the otherwise unbounded power of parliament; that check could be no other than a co-ordinate authority, possessing a negative voice; and that authority was the protector, who had been pointed out to them by Providence, acknowledged by the people in their addresses, and confirmed by the conditions expressed in the indentures of the members. It was replied, that the inconveniency of such a check had induced the nation to abolish the kingly government; that the addresses of the people expressed their joy for their deliverance from the incapacity of the little parliament, not their approbation of the new government; that Providence often permits what it disapproves; and that the indentures were an artifice of the court, which could not have force to bind the supreme power. To reconcile the disputants, a compromise between the parties had been planned; but Cromwell would not suffer the experiment to be tried.[1] Having ordered[b] Harrison, whose partisans were collecting signatures to a petition, to be taken into custody, he despatched three regiments to occupy the principal posts in the city, and commanded the attendance of the house in the Painted Chamber. There, laying aside that tone of modesty which he had hitherto assumed, he frankly told the members that his calling was from God, his testimony from the people; and that no one but God and the people should ever take his office from him. It was not of his seeking; God knew that it was his utmost ambition to lead the life of a country gentleman; but imperious circumstances had imposed it upon him. The long parliament brought their dissolution upon themselves by despotism, the little parliament

[Footnote 1: See introduction to Burton's Diary, xxiv.-xxxii.]

[Sidenote a: A.D. 1654. Sept. 12.]

by imbecility.[1] On each occasion he found himself invested with absolute power over the military, and, through the military, over the three nations. But on each occasion he was anxious to part with that power; and if, at last, he had acquiesced in the instrument of government, it was because it made the parliament a check on the protector, and the protector a check on the parliament. That he did not bring himself into his present situation, he had God for a witness above, his conscience for a witness within, and a cloud of witnesses without; he had the persons who attended when he took the oath of fidelity to "the instrument;" the officers of the army in the three nations, who testified their approbation by their signatures; the city of London, which feasted him, the counties, cities, and boroughs, that had sent him addresses; the judges, magistrates, and sheriffs, who acted by his commission; and the very men who now stood before him, for they came there in obedience to his writ, and under the express condition that "the persons so chosen should not

[Footnote 1: It is remarkable that, in noticing the despotism of the long parliament, he makes mention of the very same thing, which his enemy Lilburne urged against it: "by taking the judgment, both in capital and criminal things, to themselves, who in former times were not known to exercise such a judicature." He boldly maintains that they meant to perpetuate themselves by filling up vacancies as they occurred, and had made several applications to him to obtain his consent. He adds, "Poor men, under this arbitrary power, were driven like flocks of sheep by forty in a morning, to the confiscation of goods and estates, without any man being able to give a reason that two of them had deserved to forfeit a shilling. I tell you the truth; and my soul, and many persons whose faces I see in this place, were exceedingly grieved at these things, and knew not which way to help it, but by their mournings, and giving their negatives when the occasion served." I notice this passage, because since the discovery of the sequestrators' papers it has been thought, from the regularity with which

their books were kept, and the seeming equity of their proceedings, as they are entered, that little injustice was done.]

have power to change the government as settled in one single person and the parliament." He would, therefore, have them to know, that four things were fundamental: 1. That the supreme power should be vested in a single person and parliament; 2. that the parliament should be successive, and not perpetual; 3. that neither protector nor parliament alone should possess the uncontrolled command of the military force; and 4. that liberty of conscience should be fenced round with such barriers as might exclude both profaneness and persecution. The other articles of the instrument were less essential; they might be altered with circumstances; and he should always be ready to agree to what was reasonable. But he would not permit them to sit, and yet disown the authority by which they sat. For this purpose he had prepared a recognition which he required them to sign. Those who refused would be excluded the house; the rest would find admission, and might exercise their legislative power without control, for his negative remained in force no longer than twenty days. Let them limit his authority if they pleased. He would cheerfully submit, provided he thought it for the interest of the people.[1]

The members, on their return, found a guard of soldiers at the door of the house, and a parchment for signatures lying on a table in the lobby. It contained the recognition of which the protector had spoken; a pledge that the subscribers would neither propose nor consent to alter the government, as it was settled in one person and a parliament. It was immediately signed by Lenthall, the speaker; his example was followed by the court party; and in the course of a few

[Footnote 1: Printed by G. Sawbridge, 1654.]

days almost three hundred names were subscribed. The Stanch republicans refused; yet the sequel showed that their exclusion did not give to the court that ascendancy in the house which had been anticipated.[1]

About this time an extraordinary accident occurred. Among the presents which Cromwell had received from foreign princes, were six Friesland coach-horses from the duke of Oldenburg. One day,[a] after he had dined with Thurloe under the shade in the park, the fancy took him to try the mettle of the horses. The secretary was compelled to enter the carriage; the protector, forgetful of his station, mounted the box. The horses at first appeared obedient to the hand of the new coachman; but the too frequent application of the lash drove them into a gallop, and the protector was suddenly precipitated from his seat. At first, he lay suspended by the pole with his leg entangled in the harness; and the explosion of a loaded pistol in one of his pockets added to the fright and the rapidity of the horses; but a fortunate jerk extricated his foot from his shoe, and he fell under the body of the carriage without meeting with injury from the wheels. He was immediately taken up by his guards, who followed at full speed, and conveyed to Whitehall; Thurloe leaped from the door of the carriage, and escaped with a sprained ankle and some severe bruises. Both were confined to their chambers for a long time;

[Footnote 1: Thurloe, ii. 606. Whitelock, 605. Journals, Sept. 5-18. Fleetwood, from Dublin, asks Thurloe, "How cam it to passe, that this last teste was not at the first sitting of the house?" (ii. 620). See in Archæol. xxiv. 39, a letter showing that several, who refused to subscribe at first through motives of conscience, did so later. This was in consequence of a declaration that the recognition did not comprehend all the forty-two articles in "the instrument," but only what concerned the government by a single person and successive parliaments.—See Journals, Sept. 14.]

[Sidenote a: A.D. 1654. Sept. 24.]

but by many, their confinement was attributed as much to policy as to indisposition. The Cavaliers diverted themselves by prophesying that, as his first fall had been from a coach, the next would be from a cart: to the public, the explosion of the pistol revealed the secret terrors which haunted his mind, that sense of insecurity, those fears of assassination, which are the usual meed of inordinate and successful ambition.[1]

The force so lately put on the parliament, and the occasion of that force, had opened the eyes of the most devoted among his adherents. His protestations of disinterestedness, his solemn appeals to Heaven in testimony of his wish to lead the life of a private gentleman, were contrasted with his aspiring and arbitrary conduct; and the house, though deprived of one-fourth of its number, still contained a majority jealous of his designs and anxious to limit his authority. The accident which had placed his life in jeopardy naturally led to the consideration of the probable consequences of his death; and, to sound the disposition of the members, the question of the succession was repeatedly, though not formally, introduced. The remarks which it provoked afforded little encouragement to his hopes; yet, when the previous arrangements had been made, and all the dependants of the government had been mustered, Lambert, having in a long and studied speech detailed the evils of elective, the benefits of hereditary, succession, moved[a] that the office of protector should be limited to the family of Oliver Cromwell, according to the known law of inheritance. To the surprise and the mortification

[Footnote 1: Heath, 363. Thurloe, ii. 652, 653, 672. Ludlow, ii. 63. Vaughan, i. 69.]

[Sidenote a: A.D. 1654. Oct. 13.]

of the party, the motion was negatived by a division of two hundred against eighty voices; and it was resolved that, on the death of the protector, his successor should be chosen by the parliament if it were sitting, and by the council in the absence of parliament.[1]

This experiment had sufficiently proved the feelings of the majority. Aware, however, of their relative weakness, they were careful to give Cromwell no tangible cause of offence. If they appointed committees to revise the ordinances which he had published, they affected to consider them as merely provisional regulations, supplying the place of laws till the meeting of parliament. If they examined in detail the forty-two articles of "the instrument," rejecting some, and amending others, they still withheld their unhallowed hands from those subjects which *he* had pronounced sacred,—the four immovable pillars on which the new constitution was built. Cromwell, on his part, betrayed no symptom of impatience; but waited quietly for the moment when he had resolved

[Footnote 1: Thurloe, i. 668, 681, 685. Whitelock, 607. Journals, Nov. 30. Though the house was daily occupied with the important question of the government, it found leisure to inquire into the theological opinions of John Biddle, who may be styled the father of the English Unitarians. He had been thrice imprisoned by the long parliament, and was at last liberated by the act of oblivion in 1652. The republication of his opinions attracted the notice of the present parliament: to the questions put to him by the speaker, he replied, that he could nowhere find in Scripture that Christ or the Holy Ghost is called God; and it was resolved that he should be committed to the Gatehouse, and that a bill to punish him should be prepared. The dissolution saved his life; and by application to the Upper Bench, he recovered his liberty; but was again arrested in 1655, and sent to the isle of Scilly, to remain for life in the castle of St. Mary. Cromwell discharged him in 1658; but he was again sent to Newgate in 1662, where he died the same year.—

See Vita Bidelli, the short account; Journals, Dec. 12, 13, 1654; Wood, iii. 594; and Biog. Brit.]

to break the designs of his adversaries. They proceeded with the revision of "the instrument;" their labours were embodied in a bill,[a] and the bill was read a third time. During two days the courtiers prolonged the debate by moving a variety of amendments; on the third Cromwell summoned[b] the house to meet him in the Painted Chamber. Displeasure and contempt were marked on his countenance; and the high and criminatory tone which he assumed taught them to feel how inferior the representatives of the people were to the representative of the army.

They appeared there, he observed, with the speaker at their head, as a house of parliament. Yet, what had they done as a parliament? He never had played, he never would play, the orator; and therefore he would tell them frankly, they had done nothing. For five months they had passed no bill, had made no address, had held no communication with him. As far as concerned them, he had nothing to do but to pray that God would enlighten their minds and give a blessing to their labours. But had they then done nothing? Yes: they had encouraged the Cavaliers to plot against the commonwealth, and the Levellers to intrigue with the Cavaliers. By their dissension they had aided the fanatics to throw the nation into confusion, and by the slowness of their proceedings had compelled the soldiers to live at free quarters on the country. They supposed that he sought to make the protectorship hereditary in his family. It was not true; had they inserted such a provision in "the instrument," on that ground alone he would have rejected it. He spoke in the fear of the Lord, who would not be mocked, and with the satisfaction that his conscience did not belie his assertion. The

[Sidenote a: A.D. 1655. Jan. 19.]

[Sidenote b: A.D. 1655. Jan. 22.]

different revolutions which had happened were attributed to his cunning. How blind were men who would not see the hand of Providence in its merciful dispensations, who ridiculed as the visions of enthusiasm the observations "made by the quickening and teaching Spirit!" It was supposed that he would not be able to raise money without the aid of parliament. But "he had been inured to difficulties, and never found God failing when he trusted in him." The country would willingly pay on account of the necessity. But was not the necessity of his creation? No: it was of God; the consequence of God's providence. It was no marvel, if men who lived on their masses and service-books, their dead and carnal worship, were strangers to the works of God; but for those who had been instructed by the Spirit of God, to adopt the same language, and say that men were the cause of these things, when God had done them, this was more than the Lord would bear. But that he might trouble them no longer, it was his duty to tell them that their continuance was not for the benefit of the nation, and therefore he did then and there declare that he dissolved the parliament.[1]

This was a stroke for which his adversaries were unprepared. "The instrument" had provided that the parliament should continue to sit during five months, and it still wanted twelve days of the expiration of that term. But Cromwell chose to understand the clause not of calendar but of lunar months, the fifth of which had been completed on the preceding evening. Much might have been urged against such an interpretation; but a military force was ready to

[Footnote 1: Printed by Henry Hills, printer to his highness the lord-protector, 1654. Whitelock, 610-618. Journals, Jan. 19, 20, 22.]

support the opinion of the protector, and prudence taught the most reluctant of his enemies to submit.

The conspiracies to which he had alluded in his speech had been generated by the impatience of the two opposite parties, the republicans and the royalists. Of the republicans some cared little for religion, others were religious enthusiasts, but both were united in the same cause by one common interest. The first could not forgive the usurpation of Cromwell, who had reaped the fruit, and destroyed the object of their labours; the second asked each other how they could conscientiously sit quiet, and allow so much blood to have been spilt, and treasure expended, so many tears to have been shed, and vows offered in vain. If they "hoped to look with confidence the King of terrors in the face, if they sought to save themselves from the bottomless pit, it was necessary to espouse once more the cause of Him who had called them forth in their generation to assert the freedom of the people and the privileges of parliament."^[1] Under these different impressions, pamphlets were published exposing the hypocrisy and perjuries of the protector; letters and agitators passed from regiment to regiment; and projects were suggested and entertained for the surprisal of Cromwell's person, and the seizure^[a] of the castle of Edinburgh, of Hull, Portsmouth, and other places of strength. But it was not easy for the republicans to deceive the vigilance, or elude the grasp of their adversary. He dismissed all officers of doubtful fidelity from their commands in the army, and secured the obedience of the men by the substitution of others more devoted to his interest; by his order, Colonel Wildman was surprised in the very act of dictating

[Footnote 1: See Thurloe, iii. 29; and Milton's State Papers, 132.]

[Sidenote a: A.D. 1655. Feb. 10.]

to his secretary a declaration against the government, of the most offensive and inflammatory tendency; and Lord Grey of Groby, Colonels Alured, Overton, and others, were arrested, of whom some remained long in

confinement, others were permitted to go at large, on giving security for their peaceable behaviour.[1]

The other conspiracy, though more extensive in its ramifications, proved equally harmless in the result. Among the royalists, though many had resigned themselves to despair, there were still many whose enthusiasm discovered in each succeeding event a new motive for hope and exultation. They listened to every tale which flattered their wishes, and persuaded themselves, that on the first attempt against the usurper they would be joined by all who condemned his hypocrisy and ambition. It was in vain that Charles, from Cologne, where he had fixed his court, recommended caution; that he conjured his adherents not to stake his and their hopes on projects, by which, without being serviceable to him, they would compromise their own safety. They despised his warnings; they accused him of indolence and apathy; they formed associations, collected arms, and fixed the 14th of February for simultaneous risings in most counties of England.[2] The day was postponed to March 7; but Charles, at their request, proceeded in disguise to Middleburgh in Zeeland, that he might be in readiness to cross over to England; and Lord Wilmot, lately created earl of Rochester, with Sir Joseph Wagstaff, arrived to take the command of the insurgents,

[Footnote 1: Thurloe, iii. *passim*. Whitelock, 608-620. Bates, 290, 291.]

[Footnote 2: Clarendon (Hist. iii. 552) is made to assign the 18th of April for the day of rising; but all the documents, as well as his own narrative, prove this to be an error.]

the first in the northern, the second in the western counties. It was the intention of Wagstaff to surprise Winchester during the assizes; but the unexpected arrival[a] of a troop of cavalry deterred him from the attempt. He waited patiently till the judges proceeded to Salisbury; and, learning that

their guard had not accompanied them, entered that city with two hundred men at five o'clock in the morning of Monday.[b] The main body with their leader took possession of the market-place; while small detachments brought away the horses from the several inns, liberated the prisoners in the gaol, and surprised the sheriff and the two judges in their beds. At first Wagstaff gave orders that these three should be immediately hanged; for they were traitors acting under the authority of the usurper; then, pretending to relent, he discharged the judges on their parole, but detained the sheriff a prisoners because he had refused to proclaim Charles Stuart. At two in the afternoon he left Salisbury, but not before he had learned to doubt of the result. Scarcely a man had joined him of the crowd of gentlemen and yeomen whom the assizes had collected in the town; and the Hampshire royalists, about two hundred and fifty horse, had not arrived according to their promise. From Salisbury the insurgents marched through Dorsetshire into the county of Devon. Their hopes grew fainter every hour; the further they proceeded, their number diminished; and, on the evening of the third day,[c] they reached Southmolton in a state of exhaustion and despondency. At that moment, Captain Crook, who had followed them for several hours, charged into the town with a troop of cavalry. Hardly a show of resistance was made; Penruddock, Grove, and Jones, three of the leaders, with some fifty others, were made

[Sidenote a: A.D. 1655. March 7.]

[Sidenote b: A.D. 1655. March 11.]

[Sidenote c: A.D. 1655. March 14.]

prisoners; the rest, of whom Wagstaff had the good fortune to be one, aided by the darkness of the night, effected their escape.[1]

The Hampshire royalists had commenced their march for Salisbury, when, learning that Wagstaff had left that city, they immediately dispersed.

Other risings at the same time took place in the counties of Montgomery, Shropshire, Nottingham, York, and Northumberland, but everywhere with similar results. The republicans, ardently as they desired to see the protector humbled in the dust, were unwilling that his ruin should be effected by a party whose ascendancy appeared to them a still more grievous evil. The insurgents were ashamed and alarmed at the paucity of their numbers; prudence taught them to disband before they proceeded to acts of hostility; and they slunk away in secrecy to their homes, that they might escape the proof, if not the suspicion, of guilt. Even Rochester himself, sanguine as he was by disposition, renounced the attempt; and, with his usual good fortune, was able to thread back his way, through a thousand dangers, from the centre of Yorkshire to the court of the exiled sovereign at Cologne.[2]

Whether it was through a feeling of shame, or apprehension of the consequences, Cromwell, even under the provocations which he had received, ventured not to bring to trial any of the men who had formerly fought by his side, and now combined against him because he trampled on the liberties of the nation. With the royalists it was otherwise. He knew that their sufferings would excite little commiseration in those whose

[Footnote 1: Whitelock, 620. Thurloe, iii. 263, 295, 306. Heath, 367. Clarendon, iii. 551, 560. Ludlow, ii. 69. Vaughan, i. 149.]

[Footnote 2: Whitelock, 618, 620. Heath, 368. Clarendon, iii. 560.]

favour he sought; and he was anxious to intimidate the more eager by the punishment of their captive associates. Though they had surrendered[a] under articles, Penruddock and Grove were beheaded at Exeter; about fifteen others suffered in that city and in Salisbury; and the remainder were sent to be sold for slaves in Barbadoes.[1] To these executions succeeded certain measures of precaution. The protector forbade all ejected and sequestered clergymen of the church of England to teach as schoolmasters

or tutors, or to preach or use the church service as ministers either in public or private; ordered all priests belonging to the church of Rome to quit the kingdom under the pain of death; banished all Cavaliers and Catholics to the distance of twenty miles from the metropolis; prohibited the publication in print of any news or intelligence without permission from the secretary of state; and placed in confinement most of the nobility and principal gentry in England, till they could produce bail for their good behaviour and future appearance. In addition, an ordinance was published that "all who had ever borne arms for the king, or declared themselves to be of the royal party, should be decimated, that is, pay a tenth part of all the estate which they had left, to support the charge which the commonwealth was put to by the unquietness of their temper, and the just cause of jealousy which they had administered." It is difficult to conceive a more iniquitous imposition. It was subversive of the act of oblivion formerly procured by Cromwell himself, which pretended to abolish the memory of all past offences; contrary to natural justice, because it involved the innocent and guilty in the same punishment; and productive

[Footnote 1: State Trials, v. 767-790.]

[Sidenote a: A.D. 1655. May 16.]

of the most extensive extortions, because the commissioners included among the enemies of the commonwealth those who had remained neutral between the parties, or had not given satisfaction by the promptitude of their services, or the amount of their contributions. To put the climax to these tyrannical proceedings, he divided the country into eleven, and, at one period, into fourteen, military governments, under so many officers, with the name and rank of major-generals, giving them authority to raise a force within their respective jurisdictions, which should serve only on particular occasions; to levy the decimation and other public taxes; to suppress

tumults and insurrections; to disarm all papists and Cavaliers; to inquire into the conduct of ministers and schoolmasters; and to arrest, imprison, and bind over, all dangerous and suspected persons. Thus, this long and sanguinary struggle, originally undertaken to recover the liberties of the country, terminated in the establishment of a military despotism. The institutions which had acted as restraints on the power of preceding sovereigns were superseded or abolished; the legislative, as well as the executive authority, fell into the grasp of the same individual; and the best rights of the people were made to depend on the mere pleasure of an adventurer, who, under the mask of dissimulation, had seized, and by the power of the sword retained, the government of three kingdoms.[1]

[Footnote 1: Sagredo, who had lately arrived as ambassador extraordinary, thus describes the power of Cromwell:—"Non fa caro del nome, gli basta possedere l'autorità e la potenza, senza comparazione majore non solo di quanti re siano stati in Inghilterra, ma di quanti monarchi stringono presentamente alcun scetro nel mondo. Smentite le legge fondamentali del regno, egli è il solo legislatore: tutti i governi escono dalle sue mane, e quelli del consiglio, per entrarvi, devono essere nominati da sua altezza, ne possono divenir grandi, se non da lui inalzati. E perchè alcuno non abbia modo di guadagnar autorità sopra l'armata, tutti gli avanzamenti, senza passar per alcun mezzo, sono da lui direttamente conosciuti."—Sagredo, MS.]

From domestic occurrences, we may now turn to those abroad. During the last year, the two armaments which had so long engaged the attention of the European nations, had sailed from the English ports. Their real, but secret, destination was to invade the American colonies and surprise the Plate fleet of Spain, the most ancient and faithful ally of the commonwealth. To justify the measure, it was argued in the council that,

since America was not named in the treaties of 1604 and 1630, hostilities in America would be no infraction of those treaties; that the Spaniards had committed depredations on the English commerce in the West Indies, and were consequently liable to reprisals; that they had gained possession of these countries by force against the will of the natives, and might, therefore, be justly dispossessed by force; and, lastly, that the conquest of these transatlantic territories would contribute to spread the light of the gospel among the Indians and to cramp the resources of popery in Europe.[1] That such flimsy pretences should satisfy the judgment of the protector is improbable; his mind was swayed by very different motives—the prospect of reaping, at a small cost, an abundant harvest of wealth and glory, and the opportunity of

[Footnote 1: Thurloe, i. 760, 761; ii. 54, 154, 570. Ludlow, ii. 51, 105. The article of the treaty of 1630, on which Cromwell rested his claim of a free trade to the Indies, was the first, establishing peace between *all the subjects* of the two crowns (*subditos quoscumque*); that which, the Spaniards alleged, was the seventh, in which as the king of Spain, would not consent to a free trade to America, it was confined to those countries in which, such free trade had been exercised before the war between Elizabeth of England and Philip of Spain—words which excluded America as effectually as if it had been named.—See Dumont, iv. part ii. p. 621.]

engaging in foreign service the officers of whose fidelity at home he had good reason to be jealous.

The Spanish cabinet, arguing from circumstances, began to suspect his object, and, as a last effort, sent[a] the marquess of Leyda ambassador extraordinary to the court of London. He was graciously received, and treated with respect; but, in defiance of his most urgent solicitations, could not, during five months, obtain a positive answer to his proposals. He

represented to the protector the services which Spain had rendered to the commonwealth; adverted to the conduct of De Baas, as a proof of the insidious designs of Mazarin; maintained that the late insurrection had been partially instigated by the intrigues of France; and that French troops had been collected on the coast to accompany Charles Stuart to England, if his friends had not been so quickly suppressed; and concluded by offering to besiege Calais, and, on its reduction, to cede it to Cromwell, provided he, on his part, would aid the prince of Condé in his design of forcing his way into Bordeaux by sea. At length, wearied with delays, and esteeming a longer residence in England a disgrace to his sovereign, he demanded[b] passports, and was dismissed with many compliments by the protector.[1]

In the mean while, Blake, who commanded one of the expeditions, had sailed to the Straits of Gibraltar, where he received many civilities from the Spanish authorities. Thence he proceeded up the Mediterranean, capturing, under pretence of reprisals, the French vessels, whether merchantmen or men-of-war, and seeking, but in vain, the fleet under the duke of Guise. Returning to the south, he appeared before

[Footnote 1: Thurloe, i. 761; ii. 54, 154, 570. Dumont, v. part ii. 106.]

[Sidenote a: A.D. 1654. Jan.]

[Sidenote b: A.D. 1654. June 18.]

Algiers, and extorted from that government an illusory promise of respect to the English flag. From Algiers he proceeded[a] to Tunis. To his demands the dey replied: "There are Goletta, Porto Ferino, and my fleet; let him destroy them if he can." Blake departed,[b] returned unexpectedly to Porto Ferino, silenced the fire of the castle, entered the harbour, and burnt the whole flotilla of nine men-of-war. This exploit induced the dey of Tripoli to purchase the forbearance of the English by an apparent submission; his Tunisian brother deemed it prudent to follow his example; and the

chastisement of the pirates threw an additional lustre on the fame of the protector. There still remained, however, the great but concealed object of the expedition,—the capture of the Plate fleet laden with the treasures of the Indies; but Blake was compelled to remain so long before Cadiz that the Spaniards discovered his design; and Philip, though he professed to think the protector incapable of so dishonourable a project, permitted the merchants to arm in defence of their property. More than thirty ships were manned with volunteers: they sailed[c] from Cadiz under the command of Don Pablos de Contreras, and continued for some days in sight of the English fleet; but Pablos was careful to give no offence; and Blake, on the reperusal of his instructions, did not conceive himself authorized to begin the attack. After a long and tedious cruise, he received intelligence that the galleons, his destined prey, were detained in the harbour of Carthagen, and returned to England with a discontented mind and shattered constitution. In regard to the principal object, the expedition had failed; but this had never been avowed; and the people were taught to rejoice at the laurels won in the destruction

[Sidenote a: A.D. 1654. March 10.]

[Sidenote b: A.D. 1654. April 18.]

[Sidenote c: A.D. 1654. August 15.]

of the Tunisian fleet, and the lesson given to the piratical tribes on the northern coast of Africa.[1]

The other expedition consisted[a] of thirty sail and a military force of three thousand men, under the joint command of Penn, as admiral, and of Venables, as general. They spent several weeks among the English settlements in the West Indies, and by the promise of plunder allured to their standard many of the planters, and multitudes of the English, Scottish, and Irish royalists, who had been transported thither as prisoners of war.

When they reached Hispaniola, Venables numbered ten thousand men under his command; and, had the fleet boldly entered the harbour of St. Domingo, it was believed that the town, unprepared for resistance, must have immediately submitted. But the greater part of the army was landed[b] at a point about forty miles distant, the expectations of the men were disappointed by a proclamation, declaring that the plunder was to be considered the public property of the commonwealth; the length of the march, the heat of the climate, and the scarcity of water added to the general discontent, and almost a fortnight elapsed before the invaders were able to approach[c] the defences of the place. Their march lay through a thick and lofty wood; and the advance suddenly found itself in front of a battery which enfiladed the road to a considerable distance. On the first discharge, the men rushed back on a regiment of foot; that, partaking in the panic, on a squadron of

[Footnote 1: See in particular Blake's letters in Thurloe, iii. 232, 392, 541, 611, 620, 718; iv. 19. He complains bitterly of the bad state of the ships, and of the privations suffered by the men, from the neglect of the commissioners of the navy. The protector's instructions to him are in Thurloe, i. 724.]

[Sidenote a: A.D. 1654. Jan. 29.]

[Sidenote b: A.D. 1654. April.]

[Sidenote c: A.D. 1654. April 25.]

horse; and, while the infantry and cavalry were thus wedged together in inextricable confusion, the Spanish marksmen kept up a most destructive fire from behind the trees lining the road. After a long effort, the wood was cleared by a body of seamen who served among the infantry, and darkness put an end to the action, in which not fewer than a thousand men had fallen.

In the morning the English retired to their last encampment, about ten miles from the town.

Here Venables called a council of officers, who, having previously sought the Lord, determined[a] to "purge" the army. Some of the runaways were hanged; the officer who commanded the advance was broken, and sent on board the hospital ship to wait on the sick; the loose women who had followed the army were apprehended and punished; and a solemn fast was proclaimed and observed. But no fasting, praying, or purging could restore the spirits of men humbled by defeat, enfeebled by disease, and reduced to the necessity of feeding on the horses belonging to the cavalry. The attempt was abandoned;[b] but, on their return, the two commanders made a descent on the island of Jamaica. The Spanish settlers, about five hundred, fled to the mountains; a capitulation[c] followed; and the island was ceded to England. Could its flourishing condition in a subsequent period have been foreseen, this conquest might have consoled the nation for the loss at Hispaniola, and the disgrace of the attempt. But at that time Jamaica was deemed an inconsiderable acquisition; the failure of the expedition encouraged men to condemn the grounds on which it had been undertaken; and Cromwell, mortified and ashamed, vented his displeasure

[Sidenote a: A.D. 1654. April 28.]

[Sidenote b: A.D. 1654. May 3.]

[Sidenote c: A.D. 1654. May 10.]

on Penn and Venables, the two commanders, whom, on their arrival, he committed[a] to the Tower.[1]

To many it seemed a solecism in politics, that, when the protector determined to break with Spain, he did not attempt to sell his services to the great enemy of Spain, the king of France. For reasons which have never been explained, he took no advantage of this circumstance; instead of

urging, he seemed anxious to retard, the conclusion of the treaty with that power; after each concession he brought forward new and more provoking demands; and, as if he sought to prevail by intimidation, commissioned Blake to ruin the French commerce, and to attack the French fleet in the Mediterranean. By Louis these insults were keenly felt; but his pride yielded to his interest; expedients were found to satisfy all the claims of the protector; and at length the time for the signature of the treaty was fixed, when an event occurred to furnish new pretexts for delay, that event, which by Protestants has been called the massacre, by Catholics the rebellion, of the Vaudois.

About the middle of the thirteenth century the peculiar doctrines of the "poor men of Lyons" penetrated

[Footnote 1: Carte's Letters, ii. 46-52. Thurloe, iii. 504, 509, 689, 755; iv. 28. Bates, 367. Penn and Venables having resigned their commissions, were discharged.—Council Book, 1655, Oct. 26, 31. It appears from the papers in Thurloe that Cromwell paid great attention to the prosperity of the West Indian colonies, as affording facilities to future attempts on the American continent. To increase the population, he had, as the reader is already aware, forcibly taken up a thousand young girls in Ireland, and sent them to Jamaica; in 1656, while Sagredo was in London, he ordered all females of disorderly lives to be arrested and shipped for Barbadoes for the like purpose. Twelve hundred were sent in three ships. Ho veduto prima del mio partire piu squadre di soldati andar per Londra cercando donne di allegra vita, imbarcandone 1,200 sopra tre vascelli per tragittarle all' isola, a fine di far propagazione.—Sagredo, MS.]

[Sidenote a: A.D. 1654. August 31.]

into the valleys of Piedmont, where they were cherished in obscurity till the time of the Reformation, and were then exchanged in a great measure,

first for Lutheranism, and then for the creed publicly taught at Geneva. The duke of Savoy by successive grants confirmed to the natives the free exercise of their religion, on condition that they should confine themselves within their ancient limits;^[1] but complaints were made that several among the men of Angrogna had abused their privileges to form settlements and establish their worship in the plains; and the court of Turin, wearied with the conflicting statements of the opposite parties, referred^[a] the decision of the dispute to the civilian Andrea Gastaldo.^[2] After a long and patient hearing, he pronounced a definitive judgment, that Lucerna and some other places lay without the original boundaries, and that the intruders should withdraw under the penalties of forfeiture and death. At the same time, however, permission was given to them to sell for their own profit the lands which they had planted, though by law these lands had become the property of the sovereign.^[3]

The Vaudois were a race of hardy, stubborn, half-civilized mountaineers, whose passions were readily kindled, and whose resolves were as violent as they were sudden. At first they submitted sullenly to the

[Footnote 1: These were the four districts of Angrogna, Villaro, Bobbio, and Rorata.—Siri, del Mercurio, overo Historia de' Correnti Tempi Firenze, 1682, tom. xv. p. 827.]

[Footnote 2: Gilles, Pastore de la Terre, p. 72, Geneve, 1644; and Rorengo, Memorie Historiche, p. 8, 1649.]

[Footnote 3: The decree of Gastaldo is in Morland, History of the Evangelical Churches in the valleys of Piedmont, p. 303. The grounds of that decree are at p. 408, the objections to it at p. 423. See also Siri, xv. 827, 830; Chiesa, Corona Reale di Savoia, i. 150; Denina, iii. 324; Guichenon, iii. 139.]

[Sidenote a: A.D. 1655 June 19.]

judgment of Gastaldo, but sent deputies to Turin, to remonstrate; in a few days a solemn fast was proclaimed; the ministers excommunicated every individual who should sell his lands in the disputed territory; the natives of the valleys under the dominion of the king of France met those of the valleys belonging to the duke of Savoy; both bound themselves by oath to stand by each other in their common defence; and messengers were despatched to solicit aid and advice from the church of Geneva and the Protestant cantons of Switzerland. The intelligence alarmed the Marquess of Pianeze, the chief minister of the duke; who, to suppress the nascent confederacy, marched from Turin with an armed force, reduced La Torre, into which the insurgents had thrown a garrison of six hundred men, and, having made an offer of pardon to all who should submit, ordered his troops to fix their quarters in Bobbio, Villaro, and the lower part of Angrogna. It had previously been promised[a] that they should be peaceably received; but the inhabitants had already retired to the mountains with their cattle and provisions; and the soldiers found no other accommodation than the bare walls. Quarrels soon followed between the parties; one act of offence was retaliated with another; and the desire of vengeance provoked a war of extermination. But the military were in general successful; and the natives found themselves compelled to flee to the summits of the loftiest mountains, or to seek refuge in the valleys of Dauphiné, among a people of similar habits and religion.[1]

[Footnote 1: Siri, xv. 827-833. It would be a difficult task to determine by whom, after the reduction of La Torre, the first blood was wantonly drawn, or to which party the blame of superior cruelty really belongs. The authorities on each side are interested, and therefore suspicious; the provocations alleged by the one are as warmly denied by the other; and to the ravages of the military in Angrogna and Lucerna, are opposed the

massacres of the Catholics in Perousa and San Martino. In favour of the Vaudois may be consulted Leger, *Histoire Générale des Eglises Evangéliques*, &c. (he was a principal instigator of these troubles); Stouppe, *Collection of the several papers sent to his highness*, &c. London, 1655; *Sabaudiensis in Reformatam Religionem Persecutionis Brevis Narratio*, Londini, 1655; Morland, 326-384, and the papers in Thurloe, iii. 361, 384, 412, 416, 430, 444, 459, 538. Against them—A Short and Faithful Account of the late Commotions &c., with some reflections on Mr. Stouppe's Collected Papers, 1655; Morland, 387-404; Siri, xv. 827-843, and Thurloe, iii. 413, 464, 475, 490, 502, 535, 535, 617, 626, 656.]

[Sidenote a: A.D. 1656. April 7.]

Accounts of these transactions, but accounts teeming with exaggeration and improbabilities, were transmitted to the different Protestant states by the ministers at Geneva. They represented the duke of Savoy as a bigoted and intolerant prince; the Vaudois as an innocent race, whose only crime was their attachment to the reformed faith. They implored the Protestant powers to assume the defence of their persecuted brethren, and called for pecuniary contributions to save from destruction by famine the remnant which had escaped the edge of the sword.[1] In England the cause was advocated[a] by the press and from the pulpit; a solemn fast was kept, and the passions of the people were roused to enthusiasm. The ministers in a body waited on Cromwell to recommend the Vaudois to his protection; the armies in Scotland and Ireland presented addresses, expressive of their readiness to shed their blood in so sacred a cause; and all classes of men, from the highest to

[Footnote 1: The infidelity of these reports is acknowledged by Morland, the protector's agent, in a confidential letter to secretary Thurloe. "The greatest difficulty I meet with is in relation to the matter of fact in the

beginning of these troubles, and during the time of the war. For I find, upon diligent search, that many papers and books which have been put out in print on this subject, even by some ministers of the valleys, are lame in many particulars, and in many things not conformable to truth."—Thurloe, iv. 417.]

[Sidenote a: A.D. 1656. May.]

the lowest, hastened to contribute their money towards the support of the Piedmontese Protestants. It was observed that, among those who laboured to inflame the prejudices of the people, none were more active than the two ambassadors from Spain, and Stoupe, the minister of the French church in London.[1] Both had long laboured to prevent the conclusion of the treaty with France; and they now hoped to effect their purpose, because Savoy was the ally of France, and the principal barbarities were said to have been perpetrated by troops detached from the French army.[2]

These events opened a flattering prospect to the vanity of Cromwell. By his usurpation he had forfeited all claim to the title of the champion of civil liberty; he might still come forward, in the sight of Europe, in the more august character of the protector of the reformed faith. His first care was to make, through Stoupe, a promise to the Vaudois of his support, and an offer to transplant them to Ireland, and to settle them on the lands of the Irish Catholics; of which the first was accepted with expressions of gratitude, and the other respectfully declined.[3] He next solicited the king of France to join with him in mediating between the duke of Savoy and his subjects of the valleys; and received for answer, that

[Footnote 1: Thurloe, iii. 470, 680. Siri, xv. 468.]

[Footnote 2: Under Pianezze were some troops detached from the French army commanded by Prince Thomas of Savoy. It was reported that a

regiment of Irish Catholics formed a part of this detachment; and to them were attributed, of course, the most horrible barbarities.—Leger, iii. Stoupe, Preface. Thurloe, iii. 412, 459, 460. On inquiry, it was discovered that these supposed Irishmen were English. "The Irish regiment said to be there was the earl of Bristol's regiment, a small and weak one, most of them being English. I hear not such complaints of them as you set forth."—Thurloe, iii. 50.]

[Footnote 3: Thurloe, iii. 459.]

Louis had already interposed his good offices, and had reason to expect a favourable result. Lastly, he sent[a] Morland as ambassador to Turin, where he was honourably received, and entertained at the duke's expense. To his memorial in favour of the Vaudois, it was replied,[b] that out of compliment to Cromwell their rebellion, though unprovoked, should be forgiven; but his further interference was checked by the announcement that the particulars of the pacification had been wholly referred to Servien, the French ambassador.[1]

At home, Cromwell had signified his intention of postponing the signature of the treaty with France till he was acquainted with the opinion of Louis on the subject of the troubles in Piedmont. Bordeaux remonstrated[c] against this new pretext for delay; he maintained that the question bore no relation to the matter of the treaty; that the king of France would never interfere with the internal administration of an independent state; that the duke of Savoy had as good a right to make laws for his Protestant subjects, as the English government for the Catholics of the three kingdoms; and that the Vaudois were in reality rebels who had justly incurred the resentment of their sovereign. But Cromwell was not to be diverted[d] from his purpose. It was in vain that the ambassador asked for a final answer; that he demanded[e] an audience of leave preparatory to his

departure. At last he was relieved from his perplexity by an order[f] to announce that the duke, at the request of the king of France, had granted an amnesty to the Vaudois, and confirmed their ancient privileges; that the boon had been gratefully received by the insurgents; and that

[Footnote 1: Thurloe iii. 528, 608, 636, 656, 672. Siri, *ibid.* Vaugh. 248.]

[Sidenote a: A.D. 1656. May 22.]

[Sidenote b: A.D. 1656. June 21.]

[Sidenote c: A.D. 1656. May 24.]

[Sidenote d: A.D. 1656. June 18.]

[Sidenote e: A.D. 1656. June 21. [Sidenote f: A.D. 1656. August 20.]

the natives of the valleys, Protestants and Catholics had met, embraced each other with tears, and sworn to live in perpetual amity together. The unexpected intelligence was received by Cromwell with a coldness which betrayed his disappointment.[1] But, if the pacification broke the new projects which he meditated,[2] it served to raise his fame in the estimation of Europe; for it was evident that the Vaudois owed the favourable conditions which they obtained,[a] not so much to the good-will of Louis, as to his anxiety that no pretext should remain for the future interference of the protector.[3]

But though tranquillity was restored in Piedmont, Cromwell was still unwilling to conclude the treaty till he had ascertained what impression had been made on the king of Spain by the late attempt on Hispaniola. To Philip, already engaged in war with France, it was painful to add so powerful an adversary to the number

[Footnote 1: Thurloe, iii. 469, 470, 475, 535, 568, 706, 724, 742, 745. Siri, xv. 843.]

[Footnote 2: The Protestant cantons of Switzerland had sent Colonel Mey to England, offering to raise an army in aid of the Vaudois, if Cromwell would furnish a subsidy of ten thousand pounds per month.—Siri, Mercurio, xv. 472. In consequence Downing was despatched as envoy to these cantons; but the pacification was already concluded; and on his arrival at Geneva, he received orders, dated Aug. 30, to return immediately.—Thurloe, iii. 692, 694; iv. 31. Still the design was not abandoned, but intrusted to Morland, who remained at Geneva, to distribute the money from England. What were his secret instructions may be seen, *ibid.* p. 326.]

[Footnote 3: The conditions may be seen in Morland, 652; Dumont, vi. part ii. p. 114; and Leger, 216. The subscription for the Vaudois, of which two thousands pounds was given by the protector, amounted to thirty eight thousand two hundred and twenty-eight pounds four shillings and twopence. Of this sum twenty-five thousand eight hundred and twenty-eight pounds eight shillings and ninepence was sent at different times to the valleys; four hundred and sixty-three pounds seventeen shillings was charged for expenses; and about five hundred pounds was found to be clipt or counterfeit money.—Journals, 11 July, 1559.]

[Sidenote a: A.D. 1656. August 8.]

of his enemies; but the affront was so marked, so unjust, so unprovoked, that to submit to it in silence was to subscribe to his own degradation. He complained,[a] in dignified language, of the ingratitude and injustice of the English government; contrasted with its conduct his own most scrupulous adhesion both to the letter and the spirit of the treaties between the kingdoms; ordered that all ships, merchandize, and property belonging to the subjects of the commonwealth should be seized and secured in every part of his dominions, and instructed his ambassador in London to remonstrate and take his leave.[1] The day after the passport was delivered

to Don Alonzo, Cromwell consented[b] to the signature of the treaty with France. It provided that the maritime hostilities, which had so long harassed the trade of the two nations, should cease, that the relations of amity and commerce should be restored; and, by a separate, and therefore called a secret, article, that Barriere, agent for the prince of Condé, and nine other Frenchmen, equally obnoxious to the French ministry, should be perpetually excluded from the territory of the commonwealth; and that Charles Stuart, his brother the duke of York, Ormond, Hyde, and fifteen other adherents of the exiled prince, should, in the same manner, be excluded from the kingdom of France.[2] The protector had persuaded

[Footnote 1: Thurloe, iv. 19, 20, 21, 82, 91.]

[Footnote 2: Dumont, vi. part ii. p. 121. In the body of the treaty, neither the king nor the protector is named; all the articles are stipulated between the commonwealth of England and the kingdom of France. In the preamble, however, the king of France is mentioned, and in the first place, but not as if this arose from any claim of precedency; for it merely relates, that the most Christian king sent his ambassador to England, and the most serene lord, the protector, appointed commissioners to meet him. When the treaty was submitted to Bordeaux, previously to his signature, he discovered an alteration in the usual title of his sovereign, *Rex Gallorum* (the very title afterwards adopted by the National Assembly), instead of *Rex Galliarum*, and on that account refused to sign it. After a long contestation, he yielded to the arguments of the Dutch ambassador.—Thurloe, iv. 115.]

[Sidenote a: A.D. 1656. Sept. 1.]

[Sidenote b: A.D. 1656. Oct. 24.]

himself that, if the house of Stuart was to be restored, it must be through the aid of France; and he hoped, by the addition of this secret article, to create a bitter and lasting enmity between the two families. Nor was he

content with this. As soon as the ratifications had been exchanged, he proposed a more intimate alliance between England and France. Bordeaux was instructed to confine himself in his reply to general expressions of friendship. He might receive any communications which were offered; he was to make no advances on the part of his sovereign.

CHAPTER VII.

Poverty And Character Of Charles Stuart—War With Spain—Parliament—Exclusion Of Members—Punishment Of Naylor—Proposal To Make Cromwell King—His Hesitation And Refusal—New Constitution—Sindercomb—Sexby—Alliance With France—Parliament Of Two Houses—Opposition In The Commons—Dissolution—Reduction Of Dunkirk—Sickness Of The Protector—His Death And Character.

The reader is aware that the young king of Scots, after his escape from Worcester, had returned to Paris, defeated but not disgraced. The spirit and courage which he had displayed were taken as an earnest of future and more successful efforts; and the perilous adventures which he had encountered threw a romantic interest round the character of the royal exile. But in Paris he found himself without money or credit, followed by a crowd of faithful dependants, whose indigence condemned them to suffer the most painful privations. His mother, Henrietta, herself in no very opulent circumstances, received him into her house and to her table; after the lapse of six months, the French king settled on him a monthly allowance of six thousand francs; [1] and to this were added the casual supplies furnished by the loyalty of his adherents in England, and his share of the prizes made by the cruisers under his flag.[2] Yet, with all these aids, he

[Footnote 1: Clar. iii. 441. Thirteen francs were equivalent to an English pound.]

[Footnote 2: His claim was one-fifteenth, that of the duke of York, as admiral, one-tenth. See a collection of letters, almost exclusively on that subject, between Sir Edward Hyde and Sir Richard Browne.—Evelyn's Mem. v. 241, et seq.]

was scarcely able to satisfy the more importunate of his creditors, and to dole out an occasional pittance to his more immediate followers. From their private correspondence it appears that the most favoured among them were at a loss to procure food and clothing.[1]

Yet, poor as he was, Charles had been advised to keep up the name and appearance of a court. He had his lord-keeper, his chancellor of the exchequer, his privy councillors, and most of the officers allotted to a royal establishment; and the eagerness of pursuit, the competition of intrigue with which these nominal dignities were sought by the exiles, furnish scenes which cannot fail to excite the smile or the pity of an indifferent spectator. But we should remember that they were the only objects left open to the ambition of these men; that they offered scanty, yet desirable, salaries to their poverty; and that they held out the promise of more substantial benefits on the restoration of the king, an event which, however distant it might seem to the apprehension of others, was always near in the belief of the more ardent royalists.[2]

Among these competitors for place were two, who soon acquired, and long retained, the royal confidence,

[Footnote 1: Clarendon Pap. iii. 120, 124. "I do not know that any man is yet dead for want of bread; which really I wonder at. I am sure the king owes for all he hath eaten since April: and I am not acquainted with one

servant of his who hath a pistole in his pocket. Five or six of us eat together one meal a day for a pistole a week; but all of us owe for God knows how many weeks to the poor woman that feeds us."—Clarendon Papers, iii. 174. June 27, 1653. "I want shoes and shirts, and the marquess of Ormond is in no better condition. What help then can we give our friends?"—Ibid. 229, April 3, 1654. See also Carte's Letters, ii. 461.]

[Footnote 2: Clarendon Pap. iii. 83, 99, 106, 136, 162, 179, 187, et passim. Clarendon, History, iii. 434, 435, 453.]

the marquess of Ormond and Sir Edward Hyde. Ormond owed the distinction to the lustre of his family, the princely fortune which he had lost in the royal cause, his long though unsuccessful services in Ireland, and the high estimation in which he had been held by the late monarch. In talent and application Hyde was superior to any of his colleagues. Charles I. had appointed him chancellor of the exchequer, and counsellor to the young prince; and the son afterwards confirmed by his own choice the judgment of his father. Hyde had many enemies; whether it was that by his hasty and imperious temper he gave cause of offence, or that unsuccessful suitors, aware of his influence with the king, attributed to his counsels the failure of their petitions. But he was not wanting in his own defences; the intrigues set on foot to remove him from the royal ear were defeated by his address; and the charges brought against him of disaffection and treachery were so victoriously refuted, as to overwhelm the accuser with confusion and disgrace.[1]

The expectations, however, which Charles had raised by his conduct in England were soon disappointed. He seemed to lose sight of his three kingdoms amidst the gaities of Paris. His pleasures and amusements engrossed his attention; it was with difficulty that he could be drawn to the consideration of business; and, if he promised to devote a few hours on

each Friday to the writing of letters and the signature of despatches, he often discovered sufficient reasons to free himself from the burthen.[2] But that which chiefly distressed

[Footnote 1: Clarendon, iii. 138, 510, 515-520. Lansdowne's Works, ii. 236-241, quoted by Harris, iv. 153. Clarendon Papers, iii. 84, 92 138, 188, 200, 229.]

[Footnote 2: Clarendon Papers, iii. 159, 170.]

his advisers was the number and publicity of his amours; and, in particular, the utter worthlessness of one woman, who by her arts had won his affection, and by her impudence exercised the control over his easy temper. This was Lucy Walters, or Barlow, the mother of a child, afterwards the celebrated duke of Monmouth, of whom Charles believed himself to be the father.[1] Ormond and Hyde laboured to dissolve this disgraceful connection. They represented to the king the injury which it did to the royal cause in England, where the appearances at least of morality were so highly respected; and, after several temporary separations, they prevailed on Walters to accept[a] an annuity of four hundred pounds, and to repair with her child to her native country. But Cromwell sent her back to France; and she returned[b] to Paris, where by her lewdness she forfeited the royal favour, and shortened her own days. Her son was taken from her by the Lord Crofts, and placed under the care of the Oratoriens in Paris.[2]

But if Charles was incorrigible in the pursuit of pleasure, he proved a docile pupil on the subject of

[Footnote 1: She was previously the mistress of Colonel Robert Sydney; and her son bore so great a resemblance to that officer, that the duke of York always looked upon Sydney as the father.—Life of James, i. 491. James in his instructions to his son, says, "All the knowing world, as well as myself,

had many convincing reasons to think he was not the king's son, but Robert Sydney's."—Macpherson's Papers, i. 77. Evelyn calls Barlow "a browne, beautiful, bold, but insipid creature."—Diary, ii. 11.]

[Footnote 2: James, i. 492; Clarendon's Own Life, 205. Clarendon Papers, iii. 180. Thurloe, v. 169, 178; vii. 325. Charles, in the time of his exile, had also children by Catherine Peg and Elizabeth Killigrew.—See Sanford, 646, 647. In the account of Barlow's discharge from the Tower, by Whitelock, we are told that she called herself the wife of Charles (Whitelock, 649); in the Mercurius Politicus, she is styled "his wife or mistress."—Ellis, new series, iii. 352.]

[Sidenote a: A.D. 1656. Jan. 21.]

[Sidenote a: A.D. 1656. July 16.]

religion. On one hand, the Catholics, on the other, the Presbyterians, urged him by letters and messages to embrace their respective modes of worship. The former maintained that he could recover the crown only through the aid of the Catholic sovereigns, and had no reason to expect such aid while he professed himself a member of that church which had so long persecuted the English Catholics.[1] The others represented themselves as holding the destiny of the king in their hands; they were royalists at heart, but how could they declare in favour of a prince who had apostatized from the covenant which he had taken in Scotland, and whose restoration would probably re-establish the tyranny of the bishops?[2] The king's advisers repelled these attempts with warmth and indignation. They observed to him that, to become a Catholic was to arm all his Protestant subjects against him; to become a Presbyterian, was to alienate all who had been faithful to his father, both Protestants of the

[Footnote 1: Yet he made application in 1654 to the pope, through Goswin Nickel, general of the order of Jesuits, for a large sum of money,

which might enable him to contend for his kingdom at the head of an army of Irish Catholics; promising, in case of success, to grant the free exercise of the Catholic religion, and every other indulgence which could be reasonably asked. The reason alleged for this application was that the power of Cromwell was drawing to a close, and the most tempting offers had been made to Charles by the Presbyterians: but the Presbyterians were the most cruel enemies of the Catholics, and he would not owe his restoration to them, till he had sought and been refused the aid of the Catholic powers. From the original, dated at Cologne, 17th Nov. 1654, N.S., and subscribed by Peter Talbot, afterwards Catholic archbishop of Dublin, *ex mandato expresso Regis Britanniarum*. It was plainly a scheme on the part of Charles to procure money; and probably failed of success.]

[Footnote 2: Both these parties were equally desirous of having the young duke of Gloucester of their religion.—Clar. Pap. iii. 153, 155. The queen mother placed him under the care of Montague, her almoner at Pontoise; but Charles sent Ormond, who brought him away to Cologne.—Clar. Hist. iii. 545: Papers, iii. 256-260. Evelyn, v. 205, 208.]

church of England and Catholics. He faithfully followed their advice; to both parties he promised, indeed, every indulgence in point of religion which they could reasonably desire; but avowed, at the same time, his determination to live and die a member of that church in defence of which his father had fought and suffered. It is not, however, improbable that these applications, with the arguments by which they were supported, had a baneful influence on the mind of the king. They created in him an indifference to religious truth, a persuasion that men always model their belief according to their interest.[1]

As soon as Cardinal Mazarin began to negotiate with the protector, the friends of Charles persuaded him to quit the French territory. By the French

minister the proposal was gratefully received; he promised the royal fugitive the continuation of his pension, ordered the arrears to be immediately discharged, and paid him for the next half-year in advance.[2] Charles fixed[a] his residence at Cologne, where he remained for almost two years, till the rupture between England and Spain called him again into activity.[3] After some previous negotiation, he repaired

[Footnote 1: Clarendon Papers, iii. 163, 164, 256, 281, 298, 316; Hist. iii. 443]

[Footnote 2: Seven thousand two hundred pistoles for twelve months' arrears, and three thousand six hundred for six in advance.—Clar. Pap. iii. 293.]

[Footnote 3: While Charles was at Cologne, he was surrounded by spies, who supplied Cromwell with copious information, though it is probable that they knew little more than the public reports in the town. On one occasion the letters were opened at the post-office, and a despatch was found from a person named Manning to Thurloe. Being questioned before Charles, Manning confessed that he received an ample maintenance from the protector, but defended himself on the ground that he was careful to communicate nothing but what was false. That this plea was true, appeared from his despatch, which was filled with a detailed account of a fictitious debate in the council: but the falsehoods which he had sent to England had occasioned the arrest and imprisonment of several royalists, and Manning was shot as a traitor at Duynwald, in the territory of the duke of Neuburg.—Clar. iii. 563-569. Whitelock, 633. Thurloe, iv. 293.]

[Sidenote a: A.D. 1656. March 12.]

to the neighbourhood of Brussels, and offered himself as a valuable ally to the Spanish monarch. He had it in his power to call the English and Irish

regiments in the French service to his own standard; he possessed numerous adherents in the English navy; and, with the aid of money and ships, he should be able to contend once more for the crown of his fathers, and to meet the usurper on equal terms on English ground. By the Spanish ministers the proposal was entertained, but with their accustomed slowness. They had to consult the cabinet at Madrid; they were unwilling to commit themselves so far as to cut off all hope of reconciliation with the protector; and they had already accepted the offers of another enemy to Cromwell, whose aid, in the opinion of Don Alonzo, the late ambassador, was preferable to that of the exiled king.[1]

This enemy was Colonel Sexby. He had risen from the ranks to the office of adjutant-general in the parliamentary army; and his contempt of danger and enthusiasm for liberty had so far recommended him to the notice of Cromwell, that the adjutant was occasionally honoured with a place in the councils, and a share in the bed, of the lord-general. But Sexby had attached himself to the cause, not to the man; and his admiration, as soon as Cromwell apostatized from his former principles, was converted into the most deadly hatred. On the expulsion of the long parliament, he joined Wildman and the Levellers: Wildman was apprehended; but Sexby eluded the vigilance of the

[Footnote 1: Clar. Pap. iii. 275, 279, 286.]

pursuivants, and traversed the country in disguise, everywhere distributing pamphlets, and raising up enemies to the protector. In the month of May, 1655, he repaired to the court at Brussels. To the archduke and the count of Fuensaldagna, he revealed[a] the real object of the secret expedition under Venables and Penn; and offered the aid of the English Levellers for the destruction of a man, the common enemy of the liberties of his country and of the rights of Spain. They were a numerous and

determined band of patriots; they asked no other aid than money and the co-operation of the English and Irish troops in the Spanish service; and they were ready, for security, to deliver a strong maritime fortress into the hands of their allies. Fuensaldagna hesitated to give a positive answer before an actual rupture had taken place; and at his recommendation Sexby proceeded to Madrid. At first he was received with coldness; but the news from Hispaniola established his credit; the value of his information was now acknowledged; he obtained the sum of forty thousand crowns for the use of his party, and an assurance was given that, as soon as they should be in possession of the port which he had named, six thousand men should sail[b] from Flanders to their assistance. Sexby returned to Antwerp, transmitted several large sums to his adherents, and, though Cromwell at length obtained information of the intrigue, though the last remittance of eight hundred pounds had been seized, the intrepid Leveller crossed over[c] to England, made his arrangements with his associates, and returned[d] in safety to the continent.[1]

[Footnote 1: Clarend. Pap. iii. 271, 272, 274, 277, 281, 285. Thurloe, iv. 698; v. 37, 100, 319, 349; vi. 829-833. Carte's Letters, ii. 85, 103.]

[Sidenote a: A.D. 1655. June.]

[Sidenote b: A.D. 1656. Jan.]

[Sidenote c: A.D. 1656. June.]

[Sidenote d: A.D. 1656. August.]

It now became the object of the Spanish ministers, who had, at last, accepted[a] the offer of Charles, to effect an union between him and Sexby, that, by the co-operation of the Levellers with the royalists, the common enemy might more easily be subdued. Sexby declared[b] that he had no objection to a limited monarchy, provided it were settled by a free parliament. He believed that his friends would have none; but he advised

that, at the commencement of the attempt, the royalists should make no mention of the king, but put forth as their object the destruction of the usurper and the restoration of public liberty. Charles, on the other hand, was willing to make use of the services of Sexby; but he did not believe that his means were equal to his professions, and he saw reason to infer, from the advice which he had given, that his associates were enemies to royalty.[1]

The negotiation between the king and the Spanish ministers began to alarm both Cromwell and Mazarin. The cardinal anticipated the defection of the British and Irish regiments in the French service; the protector foresaw that they would probably be employed in a descent upon England. It was resolved to place the duke of York in opposition to his brother. That young prince had served with his regiment during four campaigns, under the Marshal Turenne; his pay as colonel, and his pension of six thousand pistoles, amply provided for his wants; and his bravery in the field had gained him the esteem of the general, and rendered him the idol of his countrymen. Instead of banishing him, according to the secret article, from France, Mazarin, with the concurrence of Cromwell, offered him the appointment of captain-general in the

[Footnote 1: Clar. Pap. iii. 303, 311, 313, 315-317.]

[Sidenote a: A.D. 1656. July 27.]

[Sidenote b: A.D. 1656. Dec. 14.]

army of Italy. By James it was accepted with gratitude and enthusiasm; but Charles commanded him to resign the office, and to repair immediately to Bruges. He obeyed; his departure[a] was followed by the resignation of most of the British and Irish officers in the French army; and, in many instances, the men followed the example of their leaders. Defeated in this instance, Cromwell and Mazarin had recourse to another intrigue, of which the secret springs are concealed from our sight. It was insinuated by some

pretended friend to Don Juan, the new governor of the Netherlands, that little reliance was to be placed on James, who was sincerely attached to France, and governed by Sir John Berkeley, the secret agent of the French court, and the known enemy of Hyde and his party. In consequence, the real command of the royal forces was given to Marsin, a foreigner; an oath of fidelity to Spain was, with the consent of Charles, exacted[b] from the officers and soldiers; and in a few days James was first requested and then commanded[c] by his brother to dismiss Berkeley. The young prince did not refuse; but he immediately followed[d] Berkeley into Holland with the intention of passing through Germany into France. His departure was hailed with joy by Cromwell, who wrote a congratulatory letter to Mazarin on the success of this intrigue; it was an object of dismay to Charles, who by messengers entreated and commanded[e] James to return. At Breda, the prince appeared to hesitate. He soon afterwards retraced his steps to Bruges, on a promise that the past should be forgotten; Berkeley followed; and the triumph of the fugitives was completed by the elevation of the obnoxious favourite to the peerage.[1]

[Footnote 1: Of the flight of James, Clarendon makes no mention in his History. He even seeks to persuade his reader that the duke was compelled to leave France in consequence of the secret article (iii. 610, 614; Papers, iii. Supplement, lxxix), though it is plain from the Memoirs of James, that he left unwillingly, in obedience to the absolute command of his brother.—James, i. 270. Clarendon makes the enmity between himself and Berkeley arise from his opposition to Berkeley's claim to the mastership of the Court of Wards (Hist. 440; Papers, Ibid.); James, from Clarendon's advice to Lady Morton to reject Berkeley's proposal of marriage.—James, i. 273. That the removal of Berkeley originated with Mazarin and was required by Fuensaldagna, who employed Lord Bristol and Bennet for that purpose, appears from Cromwell's letter to the cardinal (Thurloe, v. 736); Bristol's letter to the king (Clar. Papers, iii. 318), and Clarendon's account of

Berkeley (*ibid.* Supplement, lxxix). See also *ibid.* 317-324; and the *Memoirs of James*, i. 366-293.]

[Sidenote a: A.D. 1656. Sept. 1.]

[Sidenote b: A.D. 1656. Dec. 5.]

[Sidenote c: A.D. 1656. Dec. 13.]

[Sidenote d: A.D. 1656. Dec. 16.]

[Sidenote e: A.D. 1657. Jan. 13.]

We may now return to England, where the Spanish war had excited general discontent. By the friends of the commonwealth Spain was considered as their most ancient and faithful ally; the merchants complained that the trade with that country, one of the most lucrative branches of British commerce, was taken out of their hands and given to their rivals in Holland; and the saints believed that the failure of the expedition to Hispaniola was a sufficient proof that Heaven condemned this breach of the amity between the two states. It was to little purpose that Cromwell, to vindicate his conduct, published a manifesto, in which, having enumerated many real or pretended injuries and barbarities inflicted on Englishmen by the Spaniards in the West Indies, he contended that the war was just, and honourable, and necessary. His enemies, royalists, Levellers, Anabaptists, and republicans, of every description, did not suffer the clamour against him to subside; and, to his surprise, a request was made[a] by some of the captains of another fleet collected at Portsmouth, to be informed of the object of the expedition. If it were destined against Spain, their consciences would compel them to decline the

[Sidenote a: A.D. 1657. March 2.]

service. Spain was not the offending party; for the instances of aggression enumerated in the manifesto[a] were well known to have been no more than acts of self-defence against the depredations and encroachments of English

adventurers.[1] To suppress this dangerous spirit, Desborough hastened to Portsmouth: some of the officers resigned their commissions, others were superseded, and the fleet at length sailed[b] under the joint command of Blake and Montague, of whom the latter possessed the protector's confidence, and was probably employed as a spy on the conduct of his colleague. Their destination in the first place was Cadiz, to destroy the shipping in the harbour, and to make an attempt on that city, or the rock of Gibraltar. On their arrival,[c] they called a council of war; but no pilot could be found hardy or confident enough to guide the fleet through the winding channel of the Caraccas; and the defences of both Cadiz and Gibraltar presented too formidable an aspect to allow a hope of success without the co-operation of a military force.[2] Abandoning the attempt, the two admirals proceeded[d] to Lisbon, and extorted from the king of Portugal the ratification of the treaty formerly concluded by his ambassador, with the payment of the stipulated sum of fifty thousand pounds. Thence they returned[e] to Cadiz, passed the straits, insulted the Spaniards in Malaga, the Moors in Sallee, and after a fruitless cruise of more than two months, anchored[f] a second time in the Tagus.[3] It happened, that just after their arrival Captain Stayner, with a squadron of frigates, fell in[g] with a Spanish fleet of eight sail from America. Of

[Footnote 1: Thurloe, iv. 571. See also 582, 589, 594. Carte's Letters, ii. 87, 90, 92, 95.]

[Footnote 2: Thurloe, v. 67, 133.]

[Footnote 3: Ibid. i. 726-730; v. 68, 113, 257, 286. Vaughan, i. 446.]

[Sidenote a: A.D. 1657. March 5.]

[Sidenote b: A.D. 1657. March 15.]

[Sidenote c: A.D. 1657. April 15.]

[Sidenote d: A.D. 1657. May 29.]

[Sidenote e: A.D. 1657. June 10.]

[Sidenote f: A.D. 1657. July 10.]

[Sidenote g: A.D. 1657. Sept. 10.]

these he destroyed four, and captured two, one of which was laden, with treasure. Montague, who came home with the prize, valued it in his despatch at two hundred thousand pounds; the public prints at two millions of ducats; and the friends of Cromwell hailed the event "as a renewed testimony of God's presence, and some witness of his acceptance of the engagement against Spain." [1]

The equipment of this fleet had exhausted the treasury, and the protector dared not impose additional taxes on the country at a time when his right to levy the ordinary revenue was disputed in the courts of law. On the ground that the parliamentary grants were expired, Sir Peter Wentworth had refused to pay the assessment in the country, and Coney, a merchant, the duties on imports in London. The commissioners imposed fines, and distrained; the aggrieved brought actions against the collectors. Cromwell, indeed, was able to suppress these proceedings by imprisoning the counsel and intimidating their clients; but the example was dangerous; the want of money daily increased; and, by the advice of the council, he consented to call a parliament to meet on the 17th of September. [2]

[Footnote 1: Thurloe, 399, 433, 509, 524. Carte's Letters, ii. 114. It appears from a letter of Colonel White, that the silver in pigs weighed something more than forty thousand pounds, to which were to be added some chests of wrought plate.—Thurloe, 542. Thurloe himself says all was plundered to about two hundred and fifty thousand pounds, or three hundred thousand pounds sterling (557). The ducat was worth nine shillings.]

[Footnote 2: Carte's Letters, ii. 96, 103, 109. Ludlow, ii. 80-82. Clar. Hist. iii. 649. See also A Narrative of the Proceedings in the case of Mr. G. Coney, by S. Selwood, gent., 1655. The Jews had offered Cromwell a considerable sum for permission to settle and trade in England. Commissioners were appointed to confer with their agent Manasseh Ben Israel, and a council of divines was consulted respecting the lawfulness of the project. The opposition of the merchants and theologians induced him to pause; but Mr. Ellis has shown that he afterwards took them silently under his protection.—Council Book, 14th Nov., 1655. Thurloe, iv. 321, 388. Bates, 371. Ellis, iv. 2. Marten had made an ineffectual attempt in their favour at the commencement of the commonwealth.—Wood's Athen. Ox. iii. 1239.]

The result of the elections revealed to him the alarming secret, that the antipathy to his government was more deeply rooted, and more widely spread, than he had previously imagined. In Scotland and Ireland, indeed, the electors obsequiously chose the members recommended by the council; but these were conquered countries, bending under the yoke of military despotism. In England, the whole nation was in a ferment; pamphlets were clandestinely circulated,[a] calling on the electors to make a last struggle in defence of their liberties; and though Vane, Ludlow, and Rich were taken into custody;[1] though other republican leaders were excluded by criminal prosecutions, though the Cavaliers, the Catholics, and all who had neglected to aid the cause of the parliament, were disqualified from voting by "the instrument;" though a military force was employed in London to overawe the proceedings, and the whole influence of the government and of the army was openly exerted in the country, yet in several counties the court candidates were wholly, and in most, partially, rejected. But Cromwell was aware of the error which he had committed in the last parliament. He resolved that none of his avowed opponents should be allowed to take

possession of their seats. The returns were laid before the council; the majors-general received orders to inquire into the political and religious characters of the elected; the reports of these officers

[Footnote 1: The proceedings on these occasions may be seen in Ludlow, ii. 115-123; and State Trials, v. 791.]

[Sidenote a: A.D. 1657. August 20.]

were carefully examined; and a list was made of nearly one hundred persons to be excluded under the pretext of immorality or delinquency.[1]

On the appointed day,[a] the protector, after divine service, addressed the new "representatives" in the Painted Chamber. His real object was to procure money; and with this view he sought to excite their alarm, and to inflame their religious antipathies. He enumerated the enemies of the nation. The first was the Spaniard, the natural adversary of England, because he was the slave of the pope, a child of darkness, and consequently hostile to the light, blinded by superstition, and anxious to put down the things of God; one with whom it was impossible to be at peace, and to whom, in relation to this country, might be applied the words of Scripture, "I will put enmity between thy seed and her seed." There was also Charles Stuart, who, with the aid of the Spaniard and the duke of Neuburg, had raised a formidable army for the invasion of the island. There were the papists and Cavaliers, who had already risen, and were again ready to rise in favour of Charles Stuart. There were the Levellers, who had sent an agent to the court of Madrid, and the Fifth-monarchy-men, who sought an union with the Levellers against him, "a reconciliation between Herod and Pilate, that Christ might be put to death." The remedies—though in this part of his speech he digressed so frequently as to appear loth to come to the remedies—were, to prosecute the war abroad, and strengthen the hands of the government at home; to lose no time in questions of inferior moment, or

less urgent necessity, but to inquire into the state of the revenue, and to raise ample supplies.

[Footnote 1: Thurloe, v. 269, 317, 328, 329, 337, 341, 343, 349, 424.]

[Sidenote a: A.D. 1657. Sept 17.]

In conclusion, he explained the eighty-fifth psalm, exclaiming, "If pope and Spaniard, and devil, and all set themselves against us, though they should compass us about like bees, yet in the name of the Lord we shall destroy them. The Lord of Hosts is with us, the God of Jacob is our refuge."
[1]

From the Painted Chamber the members proceeded to the house. A military guard was stationed at the door, and a certificate from the council was required from each individual previously to his admission.[2] The excluded members complained by letter of this breach of parliamentary privilege. A strong feeling of disapprobation was manifested in several parts of the house; the clerk of the commonwealth in Chancery received orders to lay all the returns on the table; and the council was requested to state the grounds of this novel and partial proceeding. Fiennes, one of the commissioners of the great seal, replied, that the duty of inquiry into the qualifications of the members was, by the "instrument," vested in the lords of the council, who had discharged that trust according to the best of their judgment. An animated debate followed that such was the provision in "the instrument" could not be denied;[3] but that the council

[Footnote 1: Introduction to Burton's Diary, cxlviii-clxxix. Journals, Sept. 17. Thurloe, v. 427. That the king's army, which Cromwell exaggerated to the amount of eight thousand men, did not reach to more than one thousand, is twice asserted by Thurloe himself, 605, 672.]

[Footnote 2: The certificates which had been distributed to the favoured members were in this form:—"Sept. 17, 1656. County of ——. These are to certify that A.B. is returned by indenture one of the knights to serve in this parliament for the said county, and is approved by his highness's council. Nath. Taylor. clerk of the commonwealth in Chancery."]

[Footnote 3: In the draught of the "instrument," as it was amended in the last parliament, the jurisdiction of the council in this matter was confined to the charge of delinquency, and its decision was not final, but subject to the approbation of the house.—Journals, 1654, Nov. 29. But that draught had not received the protector's assent.]

should decide on secret information, and without the knowledge of the individuals who were interested, seemed contrary to the first principles of justice. The court, however, could now command the votes of the majority, and a motion that the house should pass to the business of the nation was carried by dint of numbers. Several members, to show their disapprobation, voluntarily seceded, and those, who had been excluded by force, published[a] in bold and indignant language an appeal to the justice of the people.[1]

Having weeded out his enemies, Cromwell had no reason to fear opposition to his pleasure. The house passed a resolution declaratory of the justice and policy of the war against Spain, and two acts, by one of which were annulled all claims of Charles Stuart and his family to the crown, by the other were provided additional safeguards for the person of the chief governor. With the same unanimity, a supply of four hundred thousand pounds was voted; but when the means of raising the money came under consideration, a great diversity of opinion prevailed. Some proposed to inquire into the conduct of the treasury, some to adopt improvements in the collection of the revenue, others recommended an augmentation of the

excise, and others a more economical system of expenditure. In the discussion of these questions and of private bills, week after week, month after month, was tediously

[Footnote 1: The nature of the charges against the members may be seen in *Thurloe, v.* 371, 383. In the Journals, seventy-nine names only are mentioned (Journals, 1656, Sept. 19), but ninety-eight are affixed to the appeal in *Whitelock*, 651-653. In both lists occur the names of Anthony Ashley Cooper, who afterwards became Cromwell's intimate adviser, and of several others who subsequently solicited and obtained certificates.]

[Sidenote a: A.D. 1657. Sept. 22.]

and fruitlessly consumed; though the time limited by the instrument was past, still the money bill had made no progress; and, to add to the impatience of Cromwell, a new subject was accidentally introduced, which, as it strongly interested the passions, absorbed for some time the attention of the house.[1]

At the age of nineteen, George Fox, the son of a weaver of Drayton, with a mind open to religious impressions, had accompanied some of his friends to a neighbouring fair. The noise, the revelry, and the dissipation which he witnessed, led him to thoughts of seriousness and self-reproach; and the enthusiast heard, or persuaded himself that he heard, an inward voice, calling on him to forsake his parents' house, and to make himself a stranger in his own country. Docile to the celestial admonition, he began to lead a solitary life, wandering from place to place, and clothed from head to foot in garments of leather. He read the Scriptures attentively, studied the mysterious visions in the Apocalypse, and was instructed in the real meaning by Christ and the Spirit. At first, doubts and fears haunted his mind, but, when the time of trial was past, he found himself inebriated with spiritual delights, and received an assurance that his name was written in

the Lamb's Book of Life. At the same time, he was forbidden by the Lord to employ the plural pronoun *you* in addressing a single person, to bid his neighbour good even or good-morrow, or to uncover the head, or scrape with the leg to any mortal being. At length, the Spirit moved him to

[Footnote 1: Journals, passim; Thurloe, v. 472, 494, 524, 584, 672, 694. See note (H).]

impart to others the heavenly doctrines which he had learned. In 1647, he preached for the first time at Duckenfield, not far from Manchester; but the most fruitful scene of his labours was at Swarthmoor, near Ulverston. His disciples followed his example; the word of the Spirit was given to women as well as men; and the preachers of both sexes, as well as many of their followers, attracted the notice and the censures of the civil magistrate. Their refusal to uncover before the bench was usually punished with a fine, on the ground of contempt; their religious objection to take an oath, or to pay tithes, exposed them to protracted periods of imprisonment; and they were often and severely whipped as vagrants, because, for the purpose of preaching, they were accustomed to wander through the country. To these sufferings, as is always the case with persecuted sects, calumny was added; and they were falsely charged with denying the Trinity, with disowning the authority of government, and with attempting to debauch the fidelity of the soldiers. Still, in defiance of punishment and calumny, the Quakers, so they were called, persevered in their profession; it was their duty, they maintained, to obey the influence of the Holy Spirit; and they submitted with the most edifying resignation to the consequences, however painful they might be to flesh and blood.[1]

Of the severities so wantonly exercised against these religionists it is difficult to speak with temper; yet it must be confessed that their doctrine of spiritual impulses was likely to lead its disciples of either sex, whose minds

were weak and imaginations active, to extravagances at the same time ludicrous and

[Footnote 1: Fox, Journal, i. 29, et seq.; Sewel, i. 24, 31, 34, passim.]

revolting.[1] Of this, James Naylor furnished a striking instance. He had served in the army, and had been quarter-master in Lambert's troop, from which office he was discharged on account of sickness.[2] He afterwards became a disciple of George Fox, and a leading preacher in the capital; but he "despised the power of God" in his master, by whom he was reprimanded, and listened to the delusive flattery of some among his female hearers, who were so captivated with his manner and appearance; as to persuade themselves that Christ was incorporated in the new apostle. It was not for him to gainsay what the Spirit had revealed to them. He believed himself to be set as a sign of the coming of Christ; and he accepted the worship which was paid to him, not as offered to James Naylor, but to Christ dwelling in James Naylor. Under this impression, during part of his progress to Bristol,[a] and at his entrance into that city, he rode on horseback with a man walking bareheaded before him; two females holding his bridle on each side, and others attending him, one of whom, Dorcas Erbury, maintained that he had raised her to life after she had

[Footnote 1: "William Simpson was moved of the Lord to go at several times, for three years, naked and barefoot before them, as a sign unto them in markets, courts, towns, cities, to priests' houses, and to great men's houses; so shall they all be stripped naked as he was stripped naked. And sometimes he was moved to put on hair sackcloth, and to besmear his face, and to tell them so would the Lord besmear all their religion, as he was besmeared. Great sufferings did that poor man undergo, sore whipping with horsewhips and coachwhips on his bare body, grievous stonings and

imprisonments in three years time before the king came in, that they might have taken warning, but they could not."—Fox; Journal, i. 572.]

[Footnote 2: Lambert spoke of him with kindness during the debate: "He was two years my quarter-master, and a very useful person. We parted with him with very great regret. He was a man of very unblameable life and conversation."—Burton's Diary, i. 33.]

[Sidenote a: A.D. 1656. October.]

been dead the space of two days. These occasionally threw scarfs and handkerchiefs before him, and sang, "Holy, holy, holy, is the Lord God of Hosts: Hosanna in the highest; holy, holy, holy, is the Lord God of Israel." They were apprehended by the mayor, and, sent[a] to London to be examined by a committee of the parliament. The house, having heard the report of the committee, voted that Naylor was guilty of blasphemy. The next consideration was his punishment; the more zealous moved that he should be put to death; but after a debate which continued during eleven days, the motion was lost[b] by a division of ninety-six to eighty-two. Yet the punishment to which he was doomed ought to have satisfied the most bigoted of his adversaries. He stood[c] with his neck in the pillory for two hours, and was whipped from Palace Yard to the Old Exchange, receiving three hundred and ten lashes in the way. Some days later[d] he was again placed in the pillory; and the letter B for blasphemer was burnt on his forehead, and his tongue was bored with a red-hot iron.[1] From London the house ordered him to be conducted[e] to Bristol, the place of his offence. He entered at Lamford's Gate, riding on the bare back of a horse with his face to the tail; dismounted at Rockley Gate, and was successively whipped[f] in five parts of the city. His admirers, however, were not ashamed of the martyr. On every

[Footnote 1: "This day I and B. went to see Naylor's tongue bored through, and him marked on the forehead. He put out his tongue very willingly, but shrinked a little when the iron came upon his forehead. He was pale when he came out of the pillory, but high-coloured after tongue-boring. He behaved himself very handsomely and patiently" (p. 266 in Burton's Diary, where the report of these debates on Naylor occupies one hundred and forty pages).]

[Sidenote a: A.D. 1656. Dec. 6.]

[Sidenote b: A.D. 1656. Dec. 16.]

[Sidenote c: A.D. 1656. Dec. 18.]

[Sidenote d: A.D. 1656. Dec. 27.]

[Sidenote e: A.D. 1657. Jan. 13.]

[Sidenote f: A.D. 1657. Jan. 17.]

occasion they attended him bareheaded; they kissed and sucked his wounds; and they chanted with him passages from the Scriptures. On his return to London[a] he was committed to solitary confinement, without pen, ink, or paper, or fire, or candle, and with no other sustenance than what he might earn by his own industry. Here the delusion under which he laboured gradually wore away; he acknowledged that his mind had been in darkness, the consequence and punishment of spiritual pride; and declared that, inasmuch as he had given advantage to the evil spirit, he took shame to himself. By "the rump parliament" he was afterwards discharged; and the society of Friends, by whom he had been disowned, admitted him again on proof of his repentance. But his sufferings had injured his health. In 1660 he was found in a dying state in a field in Huntingdonshire, and shortly afterwards expired.[1]

While the parliament thus spent its time in the prosecution of an offence which concerned it not, Cromwell anxiously revolved in his own mind a

secret project of the first importance to himself and the country. To his ambition, it was not sufficient that he actually possessed the supreme authority, and exercised it with more despotic sway than any of his legitimate predecessors; he still sought to mount a step higher, to encircle his brows with a diadem, and to be addressed with the title of majesty. It could not be, that vanity alone induced him to hazard the attachment of his friends for the sake of mere parade and empty sound. He had rendered the more modest title of protector as great and as formidable as that of

[Footnote 1: Journals, Dec. 5-17; 1659, Sept. 8. Sewel, 260-273, 283, 393.

State Trials, v. 810-842. Merc. Polit. No. 34.]

[Sidenote a: A.D. 1657. Feb. 22.]

king, and, though uncrowned, had treated on a footing of equality with the proudest of the crowned heads in Europe. It is more probable that he was led by considerations of interest. He knew that the nation was weary of change; he saw with what partiality men continued to cling to the old institutions; and he, perhaps, trusted that the establishment of an hereditary monarchy, with a house of peers, though under a new dynasty, and with various modifications, might secure the possession of the crown, not only to himself, but also to his posterity. However that may be, he now made the acquisition of the kingly dignity the object of his policy. For this purpose he consulted first with Thurloe, and afterwards[a] with St. John and Pierpoint; [1] and the manner in which he laboured to gratify his ambition strikingly displays that deep dissimulation and habitual hypocrisy, which form the distinguishing traits of his character.

The first opportunity of preparing the public mind for this important alteration was furnished by the recent proceedings against Naylor, which had provoked considerable discontent, not on account of the severity of the

punishment (for rigid notions of religion had subdued the common feelings of humanity), but on account of the judicial authority exercised by the house—an authority which appeared subversive of the national liberties. For of what use was the right of trial, if the parliament could set aside the ordinary courts of law at its pleasure, and inflict arbitrary punishment for any supposed offence without the usual forms of inquiry? As long as the question was before the house, Cromwell remained silent; but when the first part of the judgment had been executed

[Footnote 1: Thurloe, v. 694; vi. 20, 37.]

[Sidenote a: A.D. 1656. Dec. 9.]

on the unfortunate sufferer, he came forward in quality of guardian of the public rights, and concluded a letter to the speaker[a] with these words: "We, being intrusted in the present government on behalf of the people of these nations, and not knowing how far such proceedings (wholly without us) may extend in the consequences of it, do desire that the house will let us know the ground and reason whereupon they have proceeded." This message struck the members[b] with amazement. Few among them were willing to acknowledge] that they had exceeded their real authority; all dreaded to enter into a contest with the protector. The discussion lasted three days; every expedient that had been suggested was ultimately rejected; and the debate was adjourned to a future day,[c] when, with the secret connivance of Cromwell, no motion was made to resume it.[1] He had already obtained his object. The thoughts of men had been directed to the defects of the existing constitution, and to the necessity of establishing checks on the authority of the house, similar to those which existed under the ancient government.

In a few days[d] a bill was introduced which, under the pretence of providing money for the support of the militia, sought to confirm the past

proceedings of the majors-general, and to invest them with legal authority for the future. The protector was aware that the country longed to be emancipated from the control of these military governors; for the attainment of his great object it was his interest to stand well with all classes of people; and, therefore, though he was the author of this unpopular institution, though in his speech at the opening of the parliament he had been

[Footnote: Burton's Diary, i. 246-258, 260-264, 270-282, 296.]

[Sidenote a: A.D. 1656. Dec. 25.]

[Sidenote b: A.D. 1656. Dec. 26.]

[Sidenote c: A.D. 1657. Jan. 2.]

[Sidenote d: A.D. 1657. Jan. 7.]

eloquent in its praise, though he had declared that, after his experience of its utility, "if the thing were undone he would do it again;" he now not only abandoned the majors-general to their fate, he even instructed his dependants in the house to lead the opposition against them. As soon as the bill was read a first time, his son-in-law, Claypole, who seldom spoke, rose to express his dissent, and was followed by the Lord Broghill, known as the confidential counsellor of the protector. The decimation-tax was denounced as unjust, because it was a violation of the act of oblivion, and the conduct of the majors-general was compared to the tyranny of the Turkish bashaws. These officers defended themselves with spirit; their adversaries had recourse to personal crimination;^[1] and the debate, by successive adjournments, occupied the attention of the house during eleven days. In conclusion, the bill was rejected^[a] by a numerous majority and the majors-general, by the desertion of Cromwell, found themselves exposed to actions at law for the exercise of those powers which they had accepted in obedience to his commands.^[2]

While this question was still pending, it chanced that a plot against the protector's life, of which the

[Footnote 1: Among others, Harry Cromwell, the protector's nephew, said he was ready to name some among the majors-general who had acted oppressively. It was supposed that these words would bring him into disgrace at court. "But Harry," says a private letter, "goes last night to his highness, and stands to what he had said manfully and wisely; and, to make it appear he spake not without book, had his black book and papers ready to make good what he said. His highness answered him in raillery, and took a rich scarlet cloak from his back, and gloves from his hands, and gave them to Harry, who strutted with his new cloak and gloves into the house this day."—Thurloe, iv. 20.]

[Footnote 2: Journals, Jan. 7, 8, 12, 19, 20, 21, 28, 29. Burton's Diary, 310-320.]

[Sidenote a: A.D. 1657. Jan. 29.]

particulars will be subsequently noticed, was discovered and defeated. The circumstance furnished an opportunity favourable to his views; and the re-establishment of "kingship" was mentioned in the house, not as a project originating from him, but as the accidental and spontaneous suggestion of others. Goffe having expressed[a] a hope that parliament would provide for the preservation of the protector's person, Ashe, the member for Somersetshire, exclaimed, "*I* would add something more—that he would be pleased to take upon him the government according to the ancient constitution. That would put an end to these plots, and fix our liberties and his safety on an old and sure foundation." The house was taken by surprise: many reprehended the temerity of the speaker; by many his suggestion was applauded and approved. He had thrown it out to try the temper of his

colleagues; and the conversation which it provoked, served to point out to Cromwell the individuals from whom he might expect to meet with opposition.[1]

The detection of the conspiracy was followed[b] by an address of congratulation to the protector, who on his part gave to the members a princely entertainment at Whitehall. At their next meeting[c] the question was regularly brought before them by Alderman Pack, who boldly undertook a task which the timidity of Whitelock had declined. Rising in his place, he offered to the house a paper, of which he gave no other explanation than that it had been placed in his hands, and "tended to the settlement of the country." Its purport, however, was already known, or conjectured; several officers instantly started from their seats, and

[Footnote 1: Burton's Diary, 362-366.]

[Sidenote a: A.D. 1657. Jan. 19.]

[Sidenote b: A.D. 1657. Feb. 20.]

[Sidenote c: A.D. 1657. Feb. 23.]

Pack was violently borne down to the bar. But, on the restoration of order, he found himself supported by Broghill, Whitelock, and Glynn, and, with them, by the whole body of the lawyers, and the dependants of the court. The paper was read; it was entitled, "An humble Address and Remonstrance," protesting against the existing form of government, which depended for security on the odious institution of majors-general, and providing that the protector should assume a higher title, and govern, as had been done in times past, with the advice of two houses of parliament. The opposition (it consisted of the chief officers, the leading members in the council, and a few representatives of counties) threw every obstacle in the way of its supporters; but they were overpowered by numbers: the house debated each article in succession, and the whole project was finally

adopted,[a] but with the omission of the remonstrance, and under the amended title of the "Humble Petition and Advice."[1]

As long as the question was before parliament, Cromwell bore himself in public as if he were unconcerned in the result; but his mind was secretly harassed by the reproaches of his friends and by the misgivings of his conscience. He saw for the first time marshalled against him the men who had stood by him in his different fortunes, and whom he had bound to his interest by marriages and preferment. At their head was Lambert, the commander of the army in England, the idol of the military, and second only to himself in authority. Then came Desborough, his brother-in-law, the major-general in five counties, and Fleetwood, the husband of his daughter Bridget, and

[Footnote 1: Journals, Jan. 19, Feb. 21, 23, 24, 25. Thurloe, vi. 74, 78. Whitelock, 665, 666. Ludlow, ii. 128. Burton's Diary, iii. 160.]

[Sidenote a: A.D. 1657. March 25.] lord-deputy of Ireland.[1] Lambert, at a private meeting of officers, proposed to bring up five regiments of cavalry, and compel the house to confirm both the "instrument," and the establishment of majors-general. This bold counsel was approved; but the next morning his colleagues, having sought the Lord in prayer, resolved to postpone its execution till they had ascertained the real intention of the protector; and Lambert, warned by their indecision, took no longer any part in their meeting, but watched in silence the course of events.[2] The other two, on the contrary, persevered in the most active opposition; nor did they suffer themselves to be cajoled by the artifices of the protector, who talked in their hearing with contempt of the crown as a mere bauble, and of Pack and his supporters as children, whom it might be prudent to indulge with a "rattle." [3]

The marked opposition of these men had given energy to the proceedings of the inferior officers, who formed themselves into a permanent council under the very eyes of Cromwell, passed votes in disapprobation of the proposed alteration, and to the number of one hundred waited on him to acquaint him with their sentiments.[4] He replied,[a] that there was a time when they felt no objection to the title of king; for the army had offered it to him with the original instrument of government. He had rejected it then, and had no greater love for it now. He had always been

[Footnote 1: Desborough and Fleetwood passed from the inns of court to the army. The first married Anne, the protector's sister; the second, Bridget his daughter, and the widow of Ireton. Suspicious of his principles, Cromwell kept him in England, while Henry Cromwell, with the rank of major-general, held the government of Ireland.—Noble, i. 103; ii. 243, 336, 338.]

[Footnote 2: Clar. Pap. iii. 333.]

[Footnote 3: Ludlow, ii. 131.]

[Footnote 4: Thurloe, vi. 93, 94, 101, 219.]

[Sidenote a: A.D. 1657. Feb. 28.] the "drudge" of the officers, had done the work which they imposed on him, and had sacrificed his opinion to theirs. If the present parliament had been called, it was in opposition to his individual judgment; if the bill, which proved so injurious to the majors-general, had been brought into the house, it was contrary to his advice. But the officers had overrated their own strength: the country called for an end to all arbitrary proceedings; the punishment of Naylor proved the necessity of a check on the judicial proceedings of the parliament, and that check could only be procured by investing the protector with additional authority.

This answer made several proselytes; but the majority adhered pertinaciously to their former opinion.[1]

Nor was this spirit confined to the army; in all companies men were heard to maintain that, to set up monarchy again was to pronounce condemnation on themselves, to acknowledge themselves guilty of all the blood which had been shed to put it down. But nowhere did the proposal excite more cordial abhorrence than in the conventicles of the Fifth-monarchy-men. In their creed the protectorate was an impiety, kingship a sacrilegious assumption of the authority belonging to the only King, the Lord Jesus. They were his witnesses foretold in the Apocalypse; they had now slept their sleep of three years and a half; the time was come when it was their duty to rise and avenge the cause of the Lord. In the conventicles of the capital the lion of Judah was chosen for their military device; arms were prepared, and the day of rising was fixed. They amounted, indeed, to no more

[Footnote 1: For this extraordinary speech we are indebted to the industry of Mr. Rutt.—Burton's Diary, i. 382.] than eighty men; but they were the champions of Him who, "though they might be as a worm, would enable them to thrash mountains." The projects of these fanatics did not escape the penetrating eye of Thurloe, who, for more than a year, had watched all their motions, and was in possession of all their secrets. Their proceedings were regulated by five persons, each of whom presided in a separate conventicle, and kept his followers in ignorance of the names of the brethren associated under the four remaining leaders. A fruitless attempt was made to unite them with the Levellers. But the Levellers trusted too much to worldly wisdom; the fanatics wished to begin the strife, and to leave the issue to their Heavenly King. The appointed day[a] came: as they proceeded to the place of rendezvous, the soldiers of the Lord were met by the soldiers of the

protector; twenty were made prisoners; the rest escaped, with the loss of their horses and arms, which were seized in the dépôt.[1]

In the mean while the new form of government had received the sanction of the house. Cromwell, when it was laid before him, had recourse to his usual arts, openly refusing that for which he ardently longed, and secretly encouraging his friends to persist, that his subsequent acquiescence might appear to proceed from a sense of duty, and not from the lust of power. At first,[b] in reply to a long and tedious harangue from the speaker, he told them of "the consternation of his mind" at the very thought of the burden; requested time "to ask counsel of God and his own heart;" and, after a pause of three days,[c] replied that, inasmuch as the new constitution provided the best securities for

[Footnote 1: Whitelock, 655. Thurloe, vi. 163, 184-188.]

[Sidenote c: A.D. 1657. April 3.]

[Sidenote a: A.D. 1657. April 9.]

[Sidenote b: A.D. 1657. March 31.]

the civil and religious liberties of the people, it had his unqualified approbation; but, as far as regarded himself, "he did not find it in his duty to God and the country to undertake the charge under the new title which was given him." [1] His friends refused to be satisfied with this answer: the former vote was renewed,[a] and the house, waiting on him in a body, begged to remind him, that it was his duty to listen to the advice of the great council of the three nations. He meekly replied, that he still had his doubts on one point; and that, till such doubts were removed, his conscience forbade him to assent; but that he was willing to explain his reasons, and to hear theirs, and to hope that in a friendly conference the means might be discovered of reconciling their opposite opinions, and of determining on that which might be most beneficial to the country.[2]

In obedience to this intimation, a committee of the house was appointed to receive and solve the scruples of the protector. To their surprise, they found him in no haste to enter on the discussion. Sometimes he was indisposed, and could not admit them; often he was occupied with important business; on three occasions they obtained an interview. He wished to argue the question on the ground of expedience. If the power were the same under a protector, where, he asked, could be the use of a king? The title would offend men, who, by their former services, had earned the right to have even their prejudices respected. Neither was he sure that the re-establishment of royalty might not be a falling off from that cause in

[Footnote 1: Merc. Pol. No. 355. Mr. Rutt has discovered and inserted both speeches at length in Burton's Diary, i. 397-416.]

[Footnote 2: Thurloe, i. 751, 756. Parl. Hist. iii. 1493-1495. Burton's Diary, i. 417.]

[Sidenote a: A.D. 1657. April 8.]

which they had engaged, and from that Providence by which they had been so marvellously supported. It was true, that the Scripture sanctioned the dignity of king; but to the testimony of Scripture might be opposed "the visible hand of God," who, in the late contest, "had eradicated kingship." It was gravely replied, that Protector was a new, King an ancient, title; the first had no definite meaning, the latter was interwoven with all our laws and institutions; the powers of one were unknown and liable to alteration, those of the other ascertained and limited by the law of custom and the statute law. The abolition of royalty did not originally enter into the contemplation of parliament—the objection was to the person, not to the office—it was afterwards effected by a portion only of the representative body; whereas, its restoration was now sought by a greater authority—the whole parliament of the three kingdoms. The restoration was, indeed,

necessary, both for his security and theirs; as by law all the acts of a king in possession, but only of a king, are good and valid. Some there were who pretended that king and chief magistrate were synonymous; but no one had yet ventured to substitute one word for the other in the Scriptures, where so many covenants, promises, and precepts are annexed to the title of king. Neither could the "visible hand of God" be alleged in the present case; for the visible hand of God had eradicated the government by a single person as clearly as that by a king. Cromwell promised to give due attention to these arguments; to his confidential friends he owned that his objections were removed; and, at the same time, to enlighten the ignorance of the public, he ordered[a] a report of the conferences to be published.[1]

[Footnote 1: See Monarchy asserted to be the most Ancient and Legal Form of Government, &c. 1660; Walker, Researches, Historical and Antiquarian, i. 1-27; Burton's Diary, App. ii. 493; Thurloe, vi. 819; Whitelock, 565; Journals, April 9-21.]

[Sidenote a: A.D. 1657. April 20.]

The protector's, however, was not one of those minds that resolve quickly and execute promptly. He seldom went straight forwards to his object, but preferred a winding circuitous route. He was accustomed to view and review the question, in all its bearings and possible consequences, and to invent fresh causes of delay, till he occasionally incurred the suspicion of irresolution and timidity.[1] Instead of returning a plain and decisive answer, he sought to protract the time by requesting[a] the sense of the house on different passages in the petition, on the intended amount of the annual income, and on the ratification of the ordinances issued by himself, and of the acts passed by the little parliament. By this contrivance the respite of a fortnight was obtained, during which he frequently consulted

with Broghill, Pierpoint, Whitelock, Wolseley, and Thurloe.[2] At length it was whispered at court that the protector had resolved to accept the title; and immediately Lambert, Fleetwood, and Desborough made[b] to him, in their own names and those of several others, the unpleasant declaration, that they must resign their commissions, and sever themselves from his councils and service for ever. His irresolution returned: he had promised the house to give a final answer the next morning;[c] in the morning he postponed it to five in the evening, and at that hour to

[Footnote 1: "Every wise man out of doors wonders at the delay," Thurloe, vi. 243; also Claren. Papers, iii. 339.]

[Footnote 2: "In these meetings," says Whitelock, "laying aside his greatness, he would be exceedingly familiar with us, and, by way of diversion, would make verses with us, and every one must try his fancy. He commonly called for tobacco, pipes, and a candle, and would now and then take tobacco himself. Then he would fall again to his serious and great business" (656).]

[Sidenote a: A.D. 1657. April 22.]

[Sidenote b: A.D. 1657. May 6.]

[Sidenote c: A.D. 1657. May 7.]

the following day. The officers observed, and resolved to profit by, the impression which they had made; and early in the morning[a] Colonel Mason, with six-and-twenty companions, offered to the parliament a petition, in which they stated that the object of those with whom the measure originated was the ruin of the lord-general and of the best friends of the people, and conjured the house to support the good old cause in defence of which the petitioners were ready to sacrifice their lives. This bold step subdued the reluctance of the protector. He abandoned the lofty hopes to which he had so long, so pertinaciously clung, despatched

Fleetwood to the house to prevent a debate, and shortly afterwards summoned the members to meet him at Whitehall. Addressing them with more than his usual embarrassment, he said, that neither his own reflections nor the reasoning of the committee had convinced him that he ought to accept the title of king. If he were to accept it, it would be doubtingly; if he did it doubtingly, it would not be of faith; and if it were not of faith, it would be a sin. "Wherefore," he concluded, "I cannot undertake this government with that title of king, and this is mine answer to this great and weighty business." [1]

Thus ended the mighty farce which for more than two months held in suspense the hopes and fears of three nations. But the friends of Cromwell resumed the subject in parliament. It was observed that he had not refused to administer the government under any other title; the name of king was expunged for that of protector; and with this and a few more amendments, the "humble petition and advice" [b] received

[Footnote 1: Thurloe, vi. 261, 267, 281, 291. Journals, April 21-May 12. Parl. Hist. iii. 1498-1502. Ludlow, ii. 131. Clar. Papers, iii. 342.]

[Sidenote a: A.D. 1657. May 8.]

[Sidenote b: A.D. 1657. May 25.]

the sanction of the chief magistrate. The inauguration followed.[a] On the platform, raised at the upper end of Westminster Hall, and in front of a magnificent chair of state, stood the protector; while the speaker, with his assistants, invested him with a purple mantle lined with ermine, presented him with a Bible superbly gilt and embossed, girt a sword by his side, and placed a sceptre of massive gold in his hand. As soon as the oath had been administered, Manton, his chaplain, pronounced a long and fervent prayer for a blessing on the protector, the parliament, and the people. Rising from prayer, Cromwell seated himself in a chair: on the right, at some distance,

sat the French, on the left, the Dutch ambassador; on one side stood the earl of Warwick with the sword of the commonwealth, on the other, the lord mayor, with that of the city; and behind arranged themselves the members of the protector's family, the lords of the council, and Lisle, Whitelock, and Montague, each of the three bearing a drawn sword. At a signal given, the trumpets sounded; the heralds proclaimed the style of the new sovereign; and the spectators shouted, "Long live his highness; God save the lord-protector." He rose immediately, bowed to the ambassadors, and walked in state through the hall to his carriage.[1]

That which distinguished the present from the late form of government was the return which it made towards the more ancient institutions of the country.

[Footnote 1: Whitelock, 622. Merc. Polit. No. 369. Parl. Hist. iii. 1514, and Prestwick's Relation, App. to Burton's Diary, ii. 511. Most of the officers took the oath of fidelity to the protector. Lambert refused, and resigned his commissions, which brought him about six thousand pounds per annum. Cromwell, however, assigned to him a yearly pension of two thousand pounds.—Ludlow, ii. 136.]

[Sidenote a: A.D. 1657. June 26.]

That return, indeed, had wrung from Cromwell certain concessions repugnant to his feelings and ambition, but to which he probably was reconciled by the consideration that in the course of a few years they might be modified or repealed. The supreme authority was vested in the protector; but, instead of rendering it hereditary in his family, the most which he could obtain was the power of nominating his immediate successor. The two houses of parliament were restored; but, as if it were meant to allude to his past conduct, he was bound to leave to the House of Commons the right of

examining the qualifications and determining the claims of the several representatives. To him was given the power of nominating the members of the "other house" (he dared not yet term it the House of Lords); but, in the first instance, the persons so nominated were to be approved by the house of representatives, and afterwards by the other house itself. The privilege of voting by proxy was abolished, and the right of judicature restrained within reasonable limits. In the appointment of councillors, the great officers of state, and the commanders of the forces, many of the restrictions sought to be introduced by the long parliament were enforced. In point of religion, it was enacted that a confession of faith should be agreed upon between the protector and the two houses; but that dissenters from it should enjoy liberty of conscience, and the free exercise of their worship, unless they should reject the mystery of the Trinity, or the inspiration of the Scriptures, or profess prelatic, or popish, or blasphemous doctrines. The yearly revenue was fixed at one million three hundred thousand pounds, of which no part was to be raised by a land-tax; and of this sum one million was devoted to the support of the army and navy, and three hundred thousand pounds to the expenses of the civil list; but, on the remonstrance of the protector, that with so small a revenue it would be impossible to continue the war, an additional grant of six hundred thousand pounds was voted for the three following years. After the inauguration, the Commons adjourned during six months, that time might be allowed for the formation of the "other house." [1]

Having brought this important session of parliament to its conclusion, we may now revert to the miscellaneous occurrences of the year, 1. Had much credit been given to the tales of spies and informers, neither Cromwell nor his adversary, Charles Stuart, would have passed a day without the dread of assassination. But they knew that such persons are wont to invent and exaggerate, in order to enhance the value of their services; and each had, therefore, contented, himself with taking no other than ordinary precautions for his security. [2] Cromwell, however, was aware of the fierce, unrelenting

disposition of the Levellers; the moment he learned that they were negotiating with the exiled king and the Spaniards, he concluded that they had sworn his destruction; and to oppose their attempts on his life, he selected[a] one hundred and sixty brave and trusty men from the different regiments of cavalry, whom he divided into eight

[Footnote 1: Whitelock, 657, 663. Parl. Hist. iii. 1502-1511. In a catalogue printed at the time, the names were given of one hundred and eighty-two members of this parliament, who, it was pretended, "were sons, kinsmen, servants, and otherwise engaged unto, and had places of profit, offices, salaries, and advantages, under the protector," sharing annually among them out of the public money the incredible sum of one million sixteen thousand three hundred and seventeen pounds, sixteen shillings, and eightpence.]

[Footnote 2: Thurloe's voluminous papers abound with offers and warnings connected with this subject.]

[Sidenote a: A.D. 1657. Feb. 28.]

troops, directing that two of these troops in rotation should be always on duty near his person.[1] Before the end of the year, he learned[a] that a plot had actually been organized, that assassins had been engaged, and that his death was to be the signal for a simultaneous rising of the Levellers and royalists, and the sailing of a hostile expedition from the coast of Flanders. The author of this plan was Sexby; nor will it be too much to assert that it was not only known, but approved by the advisers of Charles at Bruges. They appointed an agent to accompany the chief of the conspirators; they prepared to take every advantage of the murder; they expressed an unfeigned sorrow for the failure of the attempt. Indeed, Clarendon, the chief minister (he had lately been made lord chancellor), was known to hold, that

the assassination of a successful rebel or usurper was an act of justifiable and meritorious loyalty.[2]

Sexby had found a fit instrument for his purpose in Syndercombe, a man of the most desperate courage,

[Footnote 1: Thurloe, iv. 567. Carte, Letters, ii. 81. Their pay was four and sixpence per day.—Ibid. In addition, if we may believe Clarendon, he had always several beds prepared in different chambers, so that no one knew in what particular room he would pass the night.—Hist. iii. 646.]

[Footnote 2: That both Charles and Clarendon knew of the design, and interested themselves in its execution, is plain from several letters.—Clar. Pap. iii. 311, 312, 315, 324, 327, 331, 335. Nor can there be a doubt that Clarendon approved of such murders. It is, indeed, true that, speaking of the murder of Ascham, when he was at Madrid, he says that he and his colleague, Lord Cottington, abhorred it.—Clar. Hist. iii. 351. Yet, from his private correspondence, it appears that he wrote papers in defence of the murderers (Clar. Pap. iii. 21, 23), recommended them as "brave fellows, and honest gentlemen" (ibid. 235, 236), and observed to Secretary Nicholas, that it was a sad and grievous thing that the princess royal had not supplied Middleton with money, "but a worse and baser thing that any man should appear in any part beyond sea under the character of an agent from the rebels, and not have his throat cut."—Ibid. 144, 1652, Feb. 20.]

[Sidenote a: A.D. 1657. Dec. 9.]

formerly a quarter-master in the army in Scotland, and dismissed on account of his political principles. Having admitted a man of the name of Cecil as his associate, he procured seven guns which would carry a number of balls, hired lodgings in places near which the protector was likely to pass, bribed Took, one of the life-guardsmen, to give information of his

motions, and bought the fleetest horses for the purpose of escape. Yet all his designs were frustrated, either by the multitude of the spectators, or the vigilance of the guards, or by some unforeseen and unlucky accident. At the persuasion of Wildman he changed his plan;^[a] and on the 9th of January, about six in the evening, entered Whitehall with his two accomplices; he unlocked the door of the chapel, deposited in a pew a basket filled with inflammable materials, and lighted a match, which, it was calculated, would burn six hours. His intention, was that the fire should break out about midnight; but Took had already revealed the secret to Cromwell, and all three were apprehended as they closed the door of the chapel. Took saved his life by the discovery, Cecil by the confession of all that he knew. But Syndercombe had wisely concealed from them the names of his associates and the particulars of the plan. They knew not that certain persons within the palace had undertaken to murder the protector during the confusion likely to be caused by the conflagration, and that such measures had been taken as to render his escape almost impossible. Syndercombe was tried; the judges held that the title of protector was in law synonymous with that of king; and he was condemned^[b] to suffer the penalties of high treason. His obstinate silence defeated the anxiety of the protector to procure further information respecting

[Sidenote a: A.D. 1657. Jan. 9.]

[Sidenote b: A.D. 1657. Feb. 9.]

the plot; and Syndercombe, whether he laid violent hands on himself, or was despatched by the order of government, was found dead^[a] in his bed, a few hours before the time appointed for his execution.^[1]

2. The failure of this conspiracy would not have prevented the intended invasion by the royal army from Flanders, had not Charles been disappointed in his expectations from another quarter. No reasoning, no

entreaty, could quicken the characteristic slowness of the Spanish ministers. Neither fleet nor money was ready; the expedition was postponed from month to month; the season passed away, and the design was deferred till the return of the long and darksome nights of winter. But Sexby's impatience refused to submit to these delays; his fierce and implacable spirit could not be satisfied without the life of the protector. A tract had been recently printed in Holland, entitled "Killing no Murder," which, from the powerful manner in which it was written, made a deeper impression on the public mind than any other literary production of the age. After an address to

[Footnote 1: See Thurloe, v. 774-777; vi. 7, 53; Merc. Polit. No. 345; Bates, Elen. 388; Clarendon Pap. iii. 324, 325, 327; Claren. Hist. iii. 646; and the several authorities copied in the State Trials, v. 842-871. The body was opened, and the surgeons declared that there existed no trace of poison in the stomach, but that the brain was inflamed and distended with blood in a greater degree than is usual in apoplexy, or any known disease. The jury, by the direction of the lord chief justice, returned a verdict that "he, the said Miles Syndercombe, a certain poisoned powder through the nose of him, the said Miles, into the head of him, the said Miles, feloniously, wilfully, and of malice aforethought, did snuff and draw; by reason of which snuffing and drawing so as aforesaid, into the head of him, the said Miles, he the said Miles, himself did mortally poison," &c.—Ibid. 859. The Levellers and royalists maintained that he was strangled by order of Cromwell.—Clar. iii. 647.]

[Sidenote a: A.D. 1657. Feb. 13.]

Cromwell, and another to the army, both conceived in a strain of the most poignant and sarcastic irony, it proceeds to discuss the three questions: Whether the lord-protector be a tyrant? Whether it be lawful to do justice on

him by killing him? and, Whether this, if it be lawful, will prove of benefit to the commonwealth? Having determined each question in the affirmative, it concludes with an eulogium on the bold and patriotic spirit of Syndercombe, the rival of Brutus and Cato, and a warning that "*longus illum sequitur ordo idem petentium decus*;" that the protector's own muster-roll contains the names of those who aspire to the honour of delivering their country; that his highness is not secure at his table, or in his bed; that death is at his heels wherever he moves, and that though his head reaches the clouds, he shall perish like his own dung, and they that have seen him shall exclaim, Where is he? Of this tract thousands of copies were sent by Sexby into England; and, though many were seized by the officers, yet many found their way into circulation.[1] Having obtained a sum of one thousand four hundred crowns, he followed the books to organize new plots against the life of the protector. But by this time he was too well known. All his steps in Holland were watched; his departure for England was announced; emissaries were despatched in every direction; and within a few weeks he was apprehended and incarcerated in the Tower. There he discovered, probably feigned, symptoms of insanity. To questions respecting himself[a] he answered with apparent frankness and truth, that he had intrigued with the Spanish court, that he had supplied Syndercombe with money, that he had written the

[Footnote 1: Thurloe, vi. 315.]

[Sidenote a: A.D. 1657. Oct. 10.]

tract, "Killing no Murder;" nor was there, he said, any thing unlawful in these things, for the protectorate had not then been established by any authority of parliament; but, whenever he was interrogated respecting the names and plans of his associates, his answers became wild and incoherent, more calculated to mislead than to inform, to create suspicion of the friends,

than to detect the machinations of the enemies, of the government. He was never brought to trial, but died, probably by violence, in the sixth month of his imprisonment.[1]

3. During the winter Blake continued to blockade Cadiz: in spring he learnt that the Plate fleet from Peru had sought an asylum in the harbour of Santa Cruz, in the Island of Teneriffe. There the merchantmen, ten in number, were moored close to the shore, in the form of a crescent; while the six galleons in their front formed a parallel line at anchor in deeper water. The entrance of the bay was commanded by the guns of the castle; seven batteries erected at intervals along the beach protected the rest of the harbour; and these were connected with each other by covered ways lined with musketry. So confident was the governor when he surveyed these preparations, that, in the pride of his heart, he desired a Dutch

[Footnote 1: Clarendon Papers, iii. 322, 338, 357. Merc. Pol. 39. Thurloe, vi. 33, 182, 315, 425, 560, 829. Clarendon assures us that Sexby was an illiterate person, which is a sufficient proof that he was not the real author of the tract, though he acknowledged it for his own in the Tower, probably to deceive the protector. The writer, whoever he was, kept his secret, at least at first; for Clarendon writes to Secretary Nicholas, that he cannot imagine who could write it.—Clar. Papers, iii. 343. By most historians it has been attributed to Captain Titus; nor shall we think this improbable, if we recollect that Titus was, in Holland, constantly in the company of Sexby, till the departure of the latter for England.—Ibid. 331, 335. Evelyn asserts it in his Diary, ii. 210, 8vo.]

captain to inform the English admiral that he was welcome to come whenever he durst. Blake came, examined the defences, and, according to custom, proclaimed a solemn fast. At eight the next morning[a] Stayner took the lead in a frigate; the admiral followed in the larger ships; and the

whole fleet availing itself of a favourable wind, entered the harbour under a tremendous shower of balls and shells. Each vessel immediately fell into its allotted station; and, while some engaged the shipping, the rest directed their fire against the batteries. The Spaniards, though fewer in number of ships, were superior in that of men; their hopes were supported by the aid which they received from the land; and during four hours they fought with the most determined bravery. Driven from the galleons, the crews retreated to the second line of merchantmen, and renewed the contest till they were finally compelled to save themselves on the shore. At two in the afternoon every Spanish ship was in possession of the English, and in flames. Still there remained the difficulty of working the fleet out of the harbour in the teeth of the gale. About sunset they were out of reach of the guns from the forts; the wind, by miracle, as Blake persuaded himself, veered to the southwest, and the conquerors proceeded triumphantly out to sea. This gallant action, though it failed of securing the treasure which the protector chiefly sought, raised the reputation of Blake in every part of Europe. Unfortunately the hero himself lived not to receive the congratulations of his country. He had been during a great part of three years at sea; the scurvy and dropsy wasted his constitution; and he expired[b] in his fifty-ninth year,

[Sidenote a: A.D. 1657. April 20.]

[Sidenote b: A.D. 1657. August 7.]

as his ship, the St. George, entered the harbour of Plymouth.[1]

Blake had served with distinction in the army during the civil war; and the knowledge of his talents and integrity induced the parliamentary leaders to entrust him with the command of the fleet. For maritime tactics he relied on the experience of others; his plans and his daring were exclusively his own. He may claim the peculiar praise of having dispelled an illusion which had hitherto cramped the operations of the British navy—a persuasion that

it was little short of madness to expose a ship at sea to the fire from a battery on shore. The victories of Blake at Tunis and Santa Cruz served to establish the contrary doctrine; and the seamen learned from his example to despise the danger which had hitherto been deemed so formidable. Though Cromwell prized his services, he doubted his attachment; and a suspicion existed that the protector did not regret the death of one who professed to fight for his country, not for the government. But he rendered that justice to the dead, which he might perhaps have refused to the living, hero. He publicly acknowledged his merit, honouring his bones with a funeral at the national expense, and ordering them to be interred at Westminster, in Henry the Seventh's chapel. In the next reign the coffin was taken from the vault, and deposited in the church yard.

4. The reader is aware of Cromwell's anxiety to form a more intimate alliance with Louis XIV. For this purpose Lockhart, one of the Scottish judges, who

[Footnote 1: Vaughan, ii. 176. Heath, 391, 402. Echard, 725. Journals, May 28, 29.]

had married his niece, and received knighthood at his hand, proceeded to France. After some discussion, a treaty, to last twelve months, was concluded;^{[1][a]} and Sir John Reynolds landed at Calais^[b] with an auxiliary force of six thousand men, one half in the pay of the king, the other half in that of the protector. But as an associate in the war, Cromwell demanded a share in the spoil, and that share was nothing less than the possession of Mardyke and Dunkirk, as soon as they could be reduced by the allies. To this proposal the strongest opposition had been made in the French cabinet. Louis was reminded of the injuries which the English, the natural enemies of France, had inflicted on the country in the reigns of his predecessors. Dunkirk would prove a second Calais; it would open to a

foreign foe the way into the heart of his dominions. But he yielded to the superior wisdom or ascendancy of Mazarin, who replied that, if France refused the offers it would be accepted with a similar sacrifice by Spain; that, supposing the English to be established on that coast at all, it was better that they should be there as friends than as enemies; and that their present co-operation would enable him either to drive the Spaniards out of the Netherlands, or to dictate to them the terms of peace.[2] The combined force

[Footnote 1: Thurloe, vi. 63, 86, 115, 124. To avoid disputes, the treaty was written in the Latin language, and the precedence was given to Louis in one copy, to Cromwell in the other. In the diplomatic collection of Dumont, vi. part ii. 178, is published a second treaty, said to have been signed on May 9th, N.S. If it were genuine, it would disclose gigantic projects of aggrandizement on the part of the two powers. But it is clearly a forgery. We have despatches from Lockhart dated on the day of the pretended signature, and other despatches for a year afterward; yet none of them make the remotest allusion to this treaty; several contain particulars inconsistent with it.]

[Footnote 2: Oeuvres de Louis XIV. i. 171.]

[Sidenote a: A.D. 1657. March 13, May 15.]

[Sidenote b: A.D. 1657. May 15.]

was placed under the command of the celebrated Turenne, who was opposed by the Spaniards under Don Juan, with the British exiles, commanded by the duke of York, and the French exiles, by the prince of Condé. The English auxiliaries, composed of veteran regiments, supported the reputation of their country by their martial appearance and exemplary discipline; but they had few opportunities of displaying their valour; and the summer was spent in a tedious succession of marches and countermarches,

accompanied with no brilliant action nor important result. Cromwell viewed the operations of the army with distrust and impatience. The French ministry seemed in no haste to redeem their pledge with respect to the reduction of Dunkirk, and to his multiplied remonstrances uniformly opposed this unanswerable objection, that, in the opinion of Turenne, the best judge, the attempt in the existing circumstances must prove ruinous to the allies. At last he would brook no longer delay; the army marched into the neighbourhood of the town, and the fort of Mardyke capitulated[a] after a siege of three days. But the Spaniards lay strongly intrenched behind the canal of Bergues, between Mardyke and Dunkirk; and by common consent the design was abandoned, and the siege of Gravelines substituted in its place. Scarcely, however, had the combined army taken[b] a position before it, when the sluices were opened, the country was inundated, and Turenne dismissed his forces into winter quarters. Mardyke received a garrison, partly of English, and partly of French, under the command of Sir John Reynolds; but that officer in a short time incurred the suspicion of the protector. The duke of York, from his former service in the French army, was well known

[Sidenote a: A.D. 1657. Sept. 23.]

[Sidenote b: A.D. 1657. Sept. 27.]

to some of the French officers. They occasionally met and exchanged compliments in their rides, he from Dunkirk, they from Mardyke. By one of them Reynolds solicited permission to pay his respects to the young prince. He was accompanied by Crew, another officer; and, though he pretended that it was an accidental civility, found the opportunity of whispering an implied offer of his services in the ear of the duke. Within a few days he received an order to wait on the protector in London in company with Colonel White, who had secretly accused him; but both were lost[a] on the Goodwin Sands, through the ignorance or the stupidity of the captain.[1]

At home the public attention was absorbed by a new and most interesting spectacle. The parliament met on the day to which it had been adjourned, but it was now divided according to the ancient form into two houses. Sixty-two individuals had been summoned^[b] to the upper house, and the writs, as they were copies of those formerly issued by the sovereign, were held to confer in like manner the privileges of an hereditary peerage, subject to certain exceptions specified in the "petition and advice."^[2] The Commons, at the call of the usher of the black rod, proceeded to the House of Lords, where they found his highness seated under a canopy of state. His speech began with the ancient address: "My lords and gentlemen of the House of Commons." It was short, but its brevity was compensated by its piety, and after an exposition of the eighty-fifth psalm, he referred his two houses for other particulars to Fiennes, the lord-keeper, who, in a long and tedious

[Footnote 1: Thurloe, vi. 231, 287, 426, 512, 538, 542, 580, 637, 665, 676, 731. Memoirs of James, i. 317-328.]

[Footnote 2: Thurloe, vi. 752.]

[Sidenote a: A.D. 1657. Dec. 5.]

[Sidenote b: A.D. 1658. Jan. 20.]

harangue, praised and defended the new institutions. After the departure of the Commons, the Lords spent their time in inquiries into the privileges of their house. Cromwell had summoned his two sons, Richard and Henry, seven peers of royal creation, several members of his council, some gentlemen of fortune and family, with a due proportion of lawyers and officers, and a scanty sprinkling of persons known to be disaffected to his government. Of the ancient peers two only attended, the lords Eure and Falconberg, of whom the latter had recently^[a] married Mary, the protector's daughter; and of the other members, nine were absent through business or

disinclination. As their journals have not been preserved, we have little knowledge of their proceedings.[1]

In the lower house, the interest of the government had declined by the impolitic removal of the leading members to the House of Lords, and by the introduction of those who, having formerly been excluded by order of Cromwell, now took their seats in virtue of the article which reserved to the house the right of inquiry into the qualifications of its members. The opposition was led by two men of considerable influence and undaunted resolution, Hazlerig and Scot. Both had been excluded at the first meeting of this parliament, and both remembered the affront. To remove Hazlerig

[Footnote 1: Journals, Jan. 7, 20. Whitelock, 666, 668. The speech of Fiennes is reported in the Journals, Jan. 25. See the names and characters of those who attended, in "A Second Narrative of the late Parliament (so called), &c., printed in the fifth year of England's Slavery under its new Monarchy, 1658." "They spent their time in little matters, such as choosing of committees; and among other things, to consider of the privileges and jurisdiction of their house, (good wise souls!) before they knew what their house was, or should be called."—Ibid. 7. The peers who refused to attend, were the earls of Mulgrave, Warwick, and Manchester, the Viscount Say and Sele, and the Lord Wharton.]

[Sidenote a: A.D. 1657. Nov. 19.]

from a place where his experience and eloquence rendered him a formidable adversary, Cromwell had called him to the upper house; but he refused to obey the writ, and took his seat among the Commons.[1] That a new house was to be called according to the articles of the "petition and advice," no one denied; but who, it was asked, made its members lords? who gave them the privileges of the ancient peerage? who empowered them to negative the acts of that house to which they owed their existence? Was it

to be borne that the children should assume the superiority over their parents; that the nominees of the protector should control the representatives of the people, the depositaries of the supreme power of the nation? It was answered that the protector had called them lords; that it was the object of "the petition and advice" to re-establish the "second estate;" and that, if any doubt remained, it were best to amend the "instrument" by giving to the members of the other house the title of lords, and to the protector that of king.[a] Cromwell sought to soothe these angry spirits. He read to them lectures on the benefit, the necessity, of unanimity. Let them look abroad. The papists threatened to swallow up all the Protestants of Europe. England was the only stay, the last hope of religion. Let them look at home: the Cavaliers and the Levellers were combined to overthrow the constitution; Charles Stuart was preparing an invasion; and the Dutch had ungratefully sold him certain vessels for that purpose. Dissension would inevitably draw down ruin on themselves,

[Footnote 1: Hazlerig made no objection to the oath which bound him to be faithful to the protector. But the sense which he attached to it is singular: "I will be faithful," said he, "to the lord-protector's person. I will murder no man."—Burton's Diary, ii. 347.]

[Sidenote a: A.D. 1658. Jan. 25.]

their liberties, and their religion. For himself. he called God, angels, and men, to witness that he sought not the office which he held. It was forced upon him; but he had sworn to execute its duties, and he would perform what he had sworn, by preserving to every class of men their just rights, whether civil or religious.[1] But his advice, and entreaties, and menaces were useless.[a] The judges repeatedly brought messages from "the Lords to the Commons," and as often were told that "that house would return an answer by messengers of their own." [b] Instead, however, of returning

answers, they spent their whole time in debating what title and what rights ought to belong to the other house.[2]

Never, perhaps, during his extraordinary career, was Cromwell involved in difficulties equal to those which surrounded him at this moment. He could raise no money without the consent of parliament, and the pay of the army in England was five, and of that in Ireland seven, months in arrear; the exiled king threatened a descent from the coast of Flanders, and the royalists throughout the

[Footnote 1: Mr. Rutt has added this speech to Burton's Diary, ii. 351-371. I may remark that, 1. The protector now addressed the members by the ambiguous style of "my lords and gentlemen of the two houses of parliament." 2. That he failed in proving the danger which, as he pretended, menaced Protestantism. If, in the north, the two Protestant states of Sweden and Denmark were at war with each other, more to the south the Catholic states of France and Spain were in the same situation. 3. That the vessels sold by the Dutch were six flutes which the English cruisers afterwards destroyed. 4. That from this moment he was constantly asserting with oaths that he sought not his present office. How could he justify such oaths in his own mind? Was it on the fallacious ground that what he in reality sought was the office of king, not of protector?]

[Footnote 2: Journals, Jan. 25, 29, Feb. 1, 3. Burton's Diary, ii. 371-464. Thurloe, i. 766; vi. 767.]

[Sidenote a: A.D. 1658. Jan. 22.]

[Sidenote b: A.D. 1658. Feb. 3.]

kingdom were preparing to join his standard; the leaders of opposition in parliament had combined with several officers in the army to re-establish the commonwealth, "without a single person or house of lords;" and a

preparatory petition for the purpose of collecting signatures was circulated through the city. Cromwell consulted his most trusty advisers, of whom some suggested a dissolution, others objected the want of money, and the danger of irritating the people. Perhaps he had already taken his resolution, though he kept it a secret within his own breast; perhaps it might be the result of some sudden and momentary impulse;^[1] but one morning^[a] he unexpectedly threw himself into a carriage with two horses standing at the gates of Whitehall; and, beckoning to six of his guards to follow, ordered the coachman to drive to the parliament house. There he revealed his purpose to Fleetwood, and, when that officer ventured to remonstrate, declared, by the living God that he would dissolve the parliament. Sending for the Commons, he addressed them in an angry and expostulating tone. "They," he said, "had placed him in the high situation in which he stood; he sought it not; there was neither man nor woman treading on English ground who could say he did. God knew that he would rather have lived under a wood side, and have tended a flock of sheep, than have undertaken the government. But, having undertaken it at their request, he had a right to look to them for aid and support. Yet some among them, God was his witness, in violation of their oaths, were attempting to establish a commonwealth

[Footnote 1: "Something happening that morning that put the protector into a rage and passion near unto madness, as those at Whitehall can witness."—Second Narrative, p. 8.]

[Sidenote a: A.D. 1658. Feb. 4.]

interest in the army; some had received commissions to enlist men for Charles Stuart; and both had their emissaries at that moment seeking to raise a tumult, or rather a rebellion, in the city. But he was bound before God to prevent such disasters; and, therefore," he concluded, "I think it high

time that an end be put to your sitting; and I do dissolve this parliament; and let God judge between me and you." "Amen, amen," responded several voices from the ranks of the opposition.[1]

This was the fourth parliament that Cromwell had broken. The republicans indulged their resentment in murmurs, and complaints, and menaces; but the protector, secure of the fidelity of the army, despised the feeble efforts of their vengeance, and encouraged by his vigour the timidity of his counsellors. Strong patrols of infantry and cavalry paraded the streets, dispersing every assemblage of people in the open air, in private houses, and even in conventicles and churches, for the purpose, or under the pretext, of devotion. The colonel-major and several captains of his own regiment were cashiered;[2] many of the Levellers and royalists were arrested and imprisoned, or discharged upon bail; and the lord-mayor, aldermen, and common-council received from Cromwell

[Footnote 1: Journ. Feb. 4. Thurloe, vi. 778, 779, 781, 788. Parl. Hist. iii. 1525. By the oath, which Cromwell reproaches them with violating, they had sworn "to be true and faithful to the lord-protector as chief magistrate, and not to contrive, design, or attempt any thing against his person or lawful authority."]

[Footnote 2: "I," says Hacker, "that had served him fourteen years, and had commanded a regiment seven years, without any trial or appeal, with the breath of his nostrils I was outed, and lost not only my place but a dear friend to boot. Five captains under my command were outed with me, because they could not say that was a house of lords."—Burton's Diary, iii. 166.]

himself an account of the danger which threatened them from the invasion meditated by Charles Stuart, and a charge to watch the haunts of the discontented, and to preserve the tranquillity of the city. At the same

time his agents were busy in procuring loyal and affectionate addresses from the army, the counties, and the principal towns; and these, published in the newspapers, served to overawe his enemies, and to display the stability of his power.[1]

The apprehension of invasion, to which Cromwell so frequently alluded, was not entirely groundless. On the return of the winter, the royalists had reminded Charles of his promise in the preceding spring; the king of Spain furnished an aid of one hundred and fifty thousand crowns; the harbour of Ostend was selected for the place of embarkation; and arms, ammunition, and transports were purchased in Holland. The prince himself, mastering for a while his habits of indolence and dissipation, appeared eager to redeem his pledge;^[2] but the more prudent of his advisers conjured him not to risk his life on general assurances of support; and the marquess of Ormond, with the most chivalrous loyalty, offered to ascertain on the spot the real objects and resources of his adherents. Pretending to proceed on a mission to the court of the duke of Neuburg, that nobleman, accompanied by O'Neil, crossed the sea,^[a] landed in disguise at Westmarch on the coast of Essex, and

[Footnote 1: Thurloe, vi. 778, 781, 788; vii. 4, 21, 32, 49, 71. Parl. Hist. iii. 1528.]

[Footnote 2: Still Ormond says to Hyde, "I fear his immoderate delight in empty, effeminate, and vulgar conversations is become an irresistible part of his nature, and will never suffer him to animate his own designs, and others' actions, with that spirit which is requisite for his quality, and much more to his fortune."—27, Jan. 7, 1658. Clar. iii. 387.]

[Sidenote a: A.D. 1658. End of January.]

hastened to London. There, continually changing his dress and lodgings, he contrived to elude the suspicion of the spies of government, and had opportunities of conversing with men of different parties; with the royalists, who sought the restoration of the ancient monarchy; with the Levellers, who were willing that the claims of the king and the subject should be adjusted in a free parliament; with the moderate Presbyterians, who, guided by the earls of Manchester and Denbigh, with Rossiter and Sir William Waller, offered to rely on the royal promises; and the more rigid among the same religionists, who, with the lords Say and Robarts at their head, demanded the confirmation of the articles to which the late king had assented in the Isle of Wight. But from none could he procure any satisfactory assurances of support. They were unable to perform what they had promised by their agents. They had not the means, nor the courage, nor the abilities, necessary for the undertaking. The majority refused to declare themselves, till Charles should have actually landed with a respectable force; and the most sanguine required a pledge that he would be ready to sail the moment he heard of their rising, because there was no probability of their being able, without foreign aid, to make head against the protector beyond the short space of a fortnight.[1]

In these conferences Ormond frequently came in contact with Sir Richard Willis, one of the sealed knot, and standing high in the confidence of Charles.[2]

[Footnote 1: Carte's Letters, ii. 118, 124, 130. Clar. iii. 388, 392, 395. Thurloe, i. 718.]

[Footnote 2: The knot consisted of Willis, Colonel Russell, Sir William Compton, Edward Villiers, and Mr. Broderick, according to several letters in Clarendon; according to the duke of York, of the four first, Lord Belasyse, and Lord Loughborough.—James, i. 370.]

Willis uniformly disapproved of the attempt. The king's enemies, he observed, were now ready to unsheath their swords against each other; but let the royal banner be once unfurled, and they would suspend their present quarrel, to combine their efforts against the common enemy. Yet the author of this prudent advice was, if we may believe Clarendon, a traitor, though a traitor of a very singular description. He is said to have contracted with Cromwell, in consideration of an annual stipend, to reveal to him the projects of the king and the royalists; but on condition that he should have no personal communication with the protector, that he should never be compelled to mention any individual whose name he wished to keep secret, and that he should not be called upon to give evidence, or to furnish documents, for the conviction of any prisoner.[1] It is believed that for several years he faithfully complied with this engagement; and when he thought that Ormond had been long enough in London, he informed Cromwell of the presence of the marquess in the capital, but at the same moment conveyed advice to the marquess that orders had been issued for his apprehension. This admonition had its desired effect. Ormond stole away[b] to Shoreham in Sussex, crossed over to Dieppe, concealed himself two months in Paris, and then, travelling

[Footnote 1: This is Clarendon's account. In Thurloe, i. 757, is a paper signed John Foster, supposed to be the original offer made to Thurloe by Willis. He there demands that no one but the protector should be acquainted with his employment; that he should never be brought forward as a witness; that the pardon of one dear friend should be granted to him; and that he should receive fifty pounds with the answer, five hundred pounds on his first interview with Thurloe, and five hundred pounds when he put into their hands any of the conspirators against Cromwell's person.]

[Sidenote a: A.D. 1658. Feb. 15.]

in disguise through France to Geneva, that he might escape the notice of Lockhart and Mazarin, returned along the Rhine to join his master in Flanders.[1]

There was little in the report of Ormond to give encouragement to Charles; his last hopes were soon afterwards extinguished by the vigilance of Cromwell. The moment the thaw opened the ports of Holland, a squadron of English frigates swept the coast,[a] captured three and drove on shore two flutes destined for the expedition, and closely blockaded the harbour of Ostend.[2] The design was again postponed till the winter;[b] and the king resolved to solicit in person a supply of money at the court of the Spanish monarch. But from this journey he was dissuaded both by Hyde and by the Cardinal de Retz, who pointed out to him the superior advantage of his residence in Flanders, where he was in readiness to seize the first propitious moment which fortune should offer. In the mean time the cardinal, through his agent in Rome, solicited from the pope pecuniary aid for the king, on condition that in the event of his ascending the throne of his fathers, he should release the Catholics of his three kingdoms from the intolerable pressure of the penal laws.[3]

The transactions of this winter, the attempt of Syndercombe, the ascendancy of the opposition in parliament,

[Footnote 1: Clar. Hist. iii. 614-618, 667. Clarendon's narrative is so frequently inaccurate, that it is unsafe to give credit to any charge on his authority alone; but in the present instance he relates the discovery of the treachery of Willis with such circumstantial minuteness, that it requires a considerable share of incredulity to doubt of its being substantially true; and his narrative is confirmed by James II. (Mem. i. 370), and other documents to be noticed hereafter.]

[Footnote 2: Carte's Letters, ii. 126, 135. Clar. Papers, iii. 396.]

[Footnote 3: Carte's Letters, ii. 136-142, 145. Clar. Pap. iii. 401.]

[Sidenote a: A.D. 1658. March 15.]

[Sidenote b: A.D. 1658. April 14.]

and the preparations of the royalists to receive the exiled king, added to habitual indisposition, had soured and irritated the temper of Cromwell. He saw that to bring to trial the men who had been his associates in the cause might prove a dangerous experiment; but there was nothing to deter him from wreaking his vengeance on the royalists, and convincing them of the danger of trespassing any more on his patience by their annual projects of insurrection. In every county all who had been denounced, all who were even suspected, were put under arrest; a new high court of justice was established according to the act of 1656; and Sir Henry Slingsby, Dr. Hewet, and Mr. Mordaunt, were selected for the three first victims. Slingsby, a Catholic gentleman and a prisoner at Hull, had endeavoured to corrupt the fidelity of the officers in the garrison; who, by direction of the governor, amused the credulity of the old man, till he had the imprudence to deliver[a] to them a commission from Charles Stuart.[1] Dr. Hewet was an episcopalian divine, permitted to preach at St. Gregory's, and had long been one of the most active and useful of the royal agents in the vicinity of the capital. Mordaunt, a younger brother of the earl of Peterborough, had also displayed his zeal for the king, by maintaining a constant correspondence with the marquess of Ormond, and distributing royal commissions to those who offered to raise men in favour of Charles. Of the truth of the charges brought against them, there could be no doubt; and, aware of their danger, they strongly protested against the legality of the court, demanded a trial by jury, and appealed to Magna Charta and several acts of parliament. Slingsby at last pleaded, and was condemned; Hewet, under the

[Footnote 1: Thurloe, vi. 777, 780, 786, 870; vii. 46, 47, 98.]

[Sidenote a: A.D. 1658. April 2.]

pretence that to plead was to betray the liberties of Englishmen, stood mute; and his silence, according to a recent act, was taken for a confession of guilt. Mordaunt was more fortunate. Stapeley, who, to save his own life, swore against him, proved an unwilling witness; and Mallory, who was to have supported the evidence of Stapeley, had four days before been bribed to abscond. This deficiency was gladly laid hold of by the majority of the judges, who gave their opinion[a] that his guilt was not proved; and, for similar reasons, some days later acquitted two other conspirators, Sir Humphrey Bennet and Captain Woodcock. The fact is, they were weary of an office which exposed them to the censure of the public; for the court was viewed with hatred by the people. It abolished the trial by jury; it admitted no inquest or presentment by the oaths of good and faithful men; it deprived the accused of the benefit of challenge; and its proceedings were contrary to the law of treason, the petition of right, and the very oath of government taken by the protector. Cromwell, dissatisfied with these acquittals, yielded to the advice of the council, and sent the rest of the prisoners before the usual courts of law, where several were found guilty, and condemned to suffer the penalties of treason.[1]

Great exertions were made to save the lives of Slingsby and Hewet. In favour of the first, it was urged that he had never been suffered to compound, had never submitted to the commonwealth, and had

[Footnote 1: Whitelock, 673, 674. Thurloe, vii. 159, 164. State Trials, v. 871, 883, 907. These trials are more interesting in Clarendon, but much of his narrative is certainly, and more of it probably, fictitious. It is not true that Slingsby's offence was committed two years before, nor that Hewet was accused of visiting the king in Flanders, nor that Mallory escaped out

of the hall on the morning of the trial (See Claren. Hist. iii. 619-624.) Mallory's own account of his escape is in Thurloe, vii. 194-220.]

[Sidenote a: A.D. 1658. June 9.]

been for years deprived both of his property and liberty, so that his conduct should be rather considered as the attempt of a prisoner of war to regain his freedom, than of a subject to overturn the government. This reasoning was urged[a] by his nephew, Lord Falconberg, who, by his recent marriage with Mary Cromwell, was believed to possess considerable influence with her father. The interest of Dr. Hewet was espoused by a more powerful advocate—by Elizabeth, the best-beloved of Cromwell's daughters, who at the same time was in a delicate and precarious state of health. But it was in vain that she interceded for the man whose spiritual ministry she employed; Cromwell was inexorable. He resolved[b] that blood should be shed, and that the royalists should learn to fear his resentment, since they had not been won by his forbearance. Both suffered death by decapitation.[1]

During the winter, the gains and losses of the hostile armies in Flanders had been nearly balanced. If, on the one hand, the duke of York was repulsed with loss in his attempt to storm by night the works at Mardyke; on the other, the Marshal D'Aumont was made prisoner with fifteen hundred men by the Spanish governor of Ostend, who, under the pretence of delivering up the place, had decoyed him within the fortifications. In February, the offensive treaty

[Footnote 1: Ludlow, ii. 149. I think there is some reason to question those sentiments of loyalty to the house of Stuart, and that affliction and displeasure on account of the execution of Hewet, which writers attribute to Elizabeth Claypole. In a letter written by her to her sister-in-law, the wife of H. Cromwell, and dated only four days after the death of Hewet, she calls

on her to return thanks to God for their deliverence from Hewet's conspiracy: "for sertainly not ondy his (Cromwell's) famely would have bin ruined, but in all probabillity the hol nation would have his invold in blod."—June 13. Thurloe, vii. 171.]

[Sidenote a: A.D. 1657. Nov. 19.]

[Sidenote b: A.D. 1658. June 8.]

between France and England was renewed for another year; three thousand men, drafted from different regiments, were sent by the protector to supply the deficiency in the number of his forces; and the combined army opened the campaign with the siege of Dunkirk. By the Spaniards the intelligence was received with surprise and apprehension. Deceived by false information, they had employed all their efforts to provide for the safety of Cambray. The repeated warnings given by Charles had been neglected; the extensive works at Dunkirk remained in an unfinished state; and the defence of the place had been left to its ordinary garrison of no more than one thousand men, and these but scantily supplied with stores and provisions. To repair his error, Don Juan, with the consent of his mentor, the Marquess Caracena, resolved to hazard a battle; and, collecting a force of six thousand infantry and four thousand cavalry, encamped between the village of Zudcote and the lines of the besiegers. But Turenne, aware of the defective organization of the Spanish armies, resolved to prevent the threatened attack; and the very next morning, before the Spanish cannon and ammunition had reached the camp, the allied force was seen advancing in battle array. Don Juan hastily placed his men along a ridge of sand-hills which extended from the sea coast to the canal, giving the command of the right wing to the duke of York, of the left to the prince of Condé, and reserving the centre to himself. The battle was begun by the English, who found themselves opposed to their countryman, the duke of York. They were led by Major-General Morgan; for Lockhart, who acted both as

ambassador and commander-in-chief, was confined by indisposition to his carriage. Their ardour to distinguish themselves in the presence of the two rival nations carried them considerably in advance of their allies; but, having halted to gain breath at the foot of the opposite sand-hill, they mounted with impetuosity, received the fire of the enemy, and, at the point of the pike, drove them from their position. The duke immediately charged at the head of the Spanish cavalry; but one half of his men were mowed down by a well-directed fire of musketry; and James himself owed the preservation of his life to the temper of his armour. The advantage, however, was dearly purchased: in Lockhart's regiment scarcely an officer remained to take the command.

By this time the action had commenced on the left, where the prince of Condé, after some sharp fighting, was compelled to retreat by the bank of the canal. The centre was never engaged; for the regiment, on its extreme left, seeing itself flanked by the French in pursuit of Condé, precipitately abandoned its position, and the example was successively imitated by the whole line. But, in the meanwhile, the duke of York had rallied his broken infantry, and while they faced the English, he charged the latter in flank at the head of his company of horse-guards. Though thrown into disorder, they continued to fight, employing the butt-ends of their muskets against the swords of their adversaries, and in a few minutes several squadrons of French cavalry arrived to their aid. James was surrounded; and, in despair of saving himself by flight, he boldly assumed the character of a French officer; rode at the head of twenty troopers toward the right of their army; and, carefully threading the different corps, arrived without exciting suspicion at the bank of the canal, by which he speedily effected his escape to Furnes.[1] The victory on the part of the allies was complete. The Spanish cavalry made no effort to protect the retreat of their infantry; every regiment of which was successively surrounded by the pursuers, and compelled to surrender. By Turenne and his officers the chief merit of this

brilliant success was cheerfully allotted to the courage and steadiness of the English regiments; at Whitehall it was attributed to the prayers of the lord-protector, who, on that very day, observed with his council a solemn fast to implore the blessing of heaven on the operations of the allied army.[2]

Unable to oppose their enemies in the field, the Spanish generals proposed to retard their progress by the most obstinate defence of the different fortresses. The prince de Ligne undertook that of Ipres; the care of Newport, Bruges, and Ostend was committed to the duke of York; and Don Juan returned to Brussels to hasten new levies from the different provinces. Within a fortnight Dunkirk capitulated,[a] and the king of France, having taken possession, delivered the keys with his own hand to the English ambassador. Gravelines was soon afterwards reduced;[b] the prince de Ligne suffered himself to be surprised by the

[Footnote 1: See the account of this battle by James himself, in his *Memoirs*, i. 338-358; also *Thurloe*, vii. 155, 156, 159.]

[Footnote 2: "Truly," says *Thurloe*, "I never was present at any such exercise, where I saw a greater spirit of faith and prayer poured forth."—*Ibid.* 158. "The Lord," says *Fleetwood*, "did draw forth his highness's heart, to set apart that day to seek the Lord; and indeed there was a very good spirit appearing. Whilst we were praying, they were fighting; and the Lord hath given a signal answer. And the Lord hath not only owned us in our work there, but in our waiting upon him in our way of prayer, which is indeed our old experienced approved way in all our straits and difficulties."—*Ibid.* 159.]

[Sidenote a: A.D. 1658. June 17.]

[Sidenote b: A.D. 1658. August 20.]

superior activity of Turenne; Ipres opened its gates, and all the towns on the banks of the Lys successively submitted to the conquerors. Seldom, perhaps, had there occurred a campaign more disastrous to the Spanish arms.[1]

In the eyes of the superficial observer, Cromwell might now appear to have reached the zenith of power and greatness. At home he had discovered, defeated, and punished all the conspiracies against him; abroad, his army had gained laurels in the field; his fleets swept the seas; his friendship was sought by every power; and his mediation was employed in settling the differences between both Portugal and Holland, and the king of Sweden and the elector of Brandenburg. He had recently sent Lord Falconberg to compliment Louis XIV. on his arrival at Calais; and in a few days, was visited by the duke of Crequi, who brought him a magnificent sword as a present from that prince, and by Mancini, with another present of tapestry from his uncle, the Cardinal Mazarin. But, above all, he was now in possession of Dunkirk, the great object of his foreign policy for the last two years, the opening through which he was to accomplish the designs of Providence on the continent. The real fact, however, was that his authority in England never rested on a more precarious footing than at the present moment; while, on the other hand, the cares and anxieties of government, joined to his apprehensions of personal violence, and the pressure of domestic affliction, were

[Footnote 1: James, *Memoirs*, i. 359. Thurloe, vii. 169, 176, 215. If we may believe Temple (ii. 545), Cromwell now saw his error in aiding the French, and made an offer of uniting his forces with those of Spain, provided the siege of Calais were made the first attempt of the combined army.]

rapidly undermining his constitution, and hurrying him from the gay and glittering visions of ambition to the darkness and silence of the tomb.

1. Cromwell was now reduced to that situation which, to the late unfortunate monarch, had proved the source of so many calamities. His expenditure far outran his income. Though the last parliament had made provision, ample provision, as it was then thought, for the splendour of his establishment, and for all the charges of the war, he had already contracted enormous debts; his exchequer was frequently drained to the last shilling; and his ministers were compelled to go a-begging—such is the expression of the secretary of state—for the temporary loan of a few thousand pounds, with the cheerless anticipation of a refusal.[1] He looked on the army, the greater part of which he had quartered in the neighbourhood of the metropolis, as his chief—his only support against his enemies; and while the soldiers were comfortably clothed and fed, he might with confidence rely on their attachment; but now that their pay was in arrear, he had reason to apprehend that discontent might induce them to listen to the suggestions of those officers who sought to subvert his power. On former occasions, indeed, he had relieved himself from similar embarrassments by the imposition of taxes by his own authority; but this practice was so strongly reprobated in the petition and advice, and he had recently abjured it with so much solemnity, that he dared not repeat the experiment. He attempted to raise a loan among the merchants and capitalists in the city; but his credit and popularity were gone; he had, by plunging into

[Footnote 1: Thurloe, vii. 99, 100, 144, 295.]

war with Spain, cut off one of the most plentiful sources of profit, the Spanish trade; and the number of prizes made by the enemy, amounting to more than a thousand,[1] had ruined many opulent houses. The application was eluded by a demand of security on the landed property belonging to

country gentlemen. There remained a third expedient,—an application to parliament. But Cromwell, like the first Charles, had learned to dread the very name of a parliament. Three of these assemblies he had moulded according to his own plan, and yet not one of them could he render obsequious to his will. Urged, however, by the ceaseless importunities of Thurloe, he appointed[a] nine councillors to inquire into the means of defeating the intrigues of the republicans in a future parliament; the manner of raising a permanent revenue from the estates of the royalists; and the best method of determining the succession to the protectorate. But among the nine were two who, aware of his increasing infirmities, began to cherish projects of their own aggrandizement, and who, therefore, made it their care to perplex and to prolong the deliberations. The committee sat three weeks. On the two first questions they came to no conclusion; with respect to the third, they voted, on a division, that the choice between an elective and an hereditary succession was a matter of indifference. Suspicious of their motives, Cromwell dissolved[b] the committee.[2] But he substituted no

[Footnote 1: Thurloe, vii. 662.]

[Footnote 2: Ibid. 146, 176, 192, 269. The committee consisted, in Thurloe's words, of Lord Fiennes, Lord Fleetwood, Lord Desborow, Lord Chamberlayne, Lord Whalley, Mr. Comptroller, Lord Goffe, Lord Cooper, and himself (p. 192). On this selection Henry Cromwell observes: "The wise men were but seven; it seems you have made them nine. And having heard their names, I think myself better able to guess what they'll do than a much wiser man; for no very wise man can ever imagine it" (p. 217).]

[Sidenote a: A.D. 1658 June 16.]

[Sidenote b: A.D. 1658 July 8.]

council in its place; things were allowed to take their course; the embarrassment of the treasury increased; and the irresolution of the

protector, joined to the dangers which threatened the government, shook the confidence of Thurloe himself. It was only when he looked up to heaven that he discovered a gleam of hope, in the persuasion that the God who had befriended Cromwell through life, would not desert him at the close of his career.[1][a]

2. To the cares of government must be added his constant dread of assassination. It is certainly extraordinary that, while so many conspiracies are said to have been formed, no attempt was actually made against his person; but the fact that such designs had existed, and the knowledge that his death was of the first importance to his enemies, convinced him that he could never be secure from danger. He multiplied his precautions. We are told that he wore defensive armour under his clothes; carried loaded pistols in his pockets; sought to remain in privacy; and, when he found it necessary to give audience, sternly watched the eyes and gestures of those who addressed him. He was careful that his own motions should not be known beforehand. His carriage was filled with attendants; a numerous escort accompanied him; and he proceeded at full speed, frequently diverging from the road to the right or left, and generally returning by a different route. In his palace he often inspected the nightly watch, changed his bed-chamber, and was careful that, besides the principal door, there should be some other egress, for the facility

[Footnote 1: Ibid. 153, 282, 295.]

[Sidenote a: A.D. 1658. July 27.]

of escape. He had often faced death without flinching in the field; but his spirit broke under the continual fear of unknown and invisible foes. He passed the nights in a state of feverish anxiety; sleep fled from his pillow; and for more than a year before his death we always find the absence of rest

assigned as either the cause which produced, or a circumstance which aggravated, his numerous ailments.[1]

3. The selfishness of ambition does not exclude the more kindly feelings of domestic affection. Cromwell was sincerely attached to his children; but, among them, he gave the preference to his daughter Elizabeth Claypole. The meek disposition of the young woman possessed singular charms for the overbearing spirit of her father; and her timid piety readily received lessons on mystical theology from the superior experience of the lord-general.[2] But she was now dying of a most painful and internal complaint, imperfectly understood by her physicians; and her grief for the loss of her infant child added to the poignancy of her sufferings. Cromwell abandoned the business of state that he might hasten to Hampton Court, to

[Footnote 1: So says Clarendon (iii. 646), Bates (Elench. 343), and Welwood (p. 94); but their testimony can prove nothing more than that such reports were current, and obtained credit, among the royalists.]

[Footnote 2: The following passage from one of Cromwell's letters to his daughter Ireton, will perhaps surprise the reader. "Your sister Claypole is (I trust in mercye) exercised with some perplexed thoughts, shee sees her owne vanitye and carnal minde, bewailinge itt, shee seeks after (as I hope alsoe) that w'ch will satisfie, and thus to bee a seeker, is to be of the best sect next a finder, and such an one shall every faythfull humble seeker bee at the end. Happie seeker; happie finder. Who ever tasted that the Lord is gracious, without some sense of self-vanitye and badness? Who ever tasted that graciousnesse of his, and could goe lesse in desier, and lesse than pressinge after full enjoyment? Deere hart presse on: lett not husband, lett not anythinge coole thy affections after Christ," &c. &c. &c.—Harris, iii. App. 515, edit. 1814.]

console his favourite daughter. He frequently visited her, remained long in her apartment, and, whenever he quitted it, seemed to be absorbed in the deepest melancholy. It is not probable that the subject of their private conversation was exposed to the profane ears of strangers. We are, however, told that she expressed to him her doubts of the justice of the good old cause, that she exhorted him to restore the sovereign authority to the rightful owner, and that, occasionally, when her mind was wandering, she alarmed him by uttering cries of "blood," and predictions of vengeance.[1]

4. Elizabeth died.[a] The protector was already confined to his bed with the gout, and, though he had anticipated the event, some days elapsed before he recovered from the shock. A slow fever still remained, which was pronounced a bastard tertian.[b] One of his physicians whispered to another, that his pulse was intermittent;[c] the words caught the ears of the sick man; he turned pale, a cold perspiration covered his face; and, requesting to be placed in bed, he executed his private will. The next morning he had recovered his usual composure; and when he received the visit of his physician,[d] ordering all his attendants to quit the room but his wife, whom he held by the hand, he said to him: "Do not think that I shall die; I am sure of the contrary." Observing the surprise which these words excited, he continued: "Say not that I have lost my reason: I tell you the truth. I know it from better authority than any which you can have from Galen or Hippocrates. It is the answer of God himself to our prayers; not to mine alone, but to those of others who have a more intimate

[Footnote 1: Clar. Hist. iii. 647. Bulstrode, 205. Heath, 408.]

[Sidenote a: A.D. 1658. August 6.]

[Sidenote b: A.D. 1658. August 17.]

[Sidenote c: A.D. 1658. August 24.]

[Sidenote d: A.D. 1658. August 25.]

interest in him than I have."[1] The same communication was made to Thurloe, and to the different members of the protector's family; nor did it fail to obtain credit among men who believed that "in other instances he had been favoured with similar assurances, and that they had never deceived him."[2] Hence his chaplain Goodwin exclaimed, "O Lord, we pray not for his recovery; that thou hast granted already; what we now beg is his *speedy* recovery."[3]

In a few days, however, their confidence was shaken. For change of air he had removed to Whitehall, till the palace of St. James's should be ready for his reception. There his fever became[a] a double tertian, and his strength rapidly wasted away. Who, it was asked, was to succeed him? On the day of his inauguration he had written the name of his successor within a cover sealed with the protectorial arms; but that paper had been lost, or purloined, or destroyed. Thurloe undertook to suggest to him a second nomination; but the condition of the protector, who, if we believe him, was always insensible or delirious, afforded no opportunity. A suspicion, however, existed, that he had private reasons for declining to interfere in so delicate a business.[4]

The 30th of August was a tempestuous day: during the night the violence of the wind increased till it blew a hurricane. Trees were torn from their roots in the park, and houses unroofed in the city. This extraordinary occurrence at a moment when it was thought that the protector was dying, could not fail

[Footnote 1: Thurloe, vii. 321, 340, 354, 355. Bates, Elench. 413.]

[Footnote 2: Thurloe, vii. 355, 367, 376.]

[Footnote 3: Ludlow, ii. 151.]

[Footnote 4: Thurloe, 355, 365, 366.]

[Sidenote a: A.D. 1658 August 28.]

of exciting remarks in a superstitious age; and, though the storm reached to the coasts of the Mediterranean, in England it was universally referred to the death-bed of the protector. His friends asserted that God would not remove so great a man from this world without previously warning the nation of its approaching loss; the Cavaliers more maliciously maintained that the devils, "the princes of the air," were congregating over Whitehall, that they might pounce on the protector's soul.[1]

On the third night afterwards,[a] Cromwell had a lucid interval of considerable duration. It might have been expected that a man of his religious disposition would have felt some compunctious visitings, when from the bed of death he looked back on the strange eventful career of his past life. But he had adopted a doctrine admirably calculated to lull and tranquillize the misgivings of conscience. "Tell me," said he to Sterry, one of his chaplains, "Is it possible to fall from grace?" "It is not possible," replied the minister. "Then," exclaimed the dying man, "I am safe; for I know that I was once in grace." Under this impression he prayed, not for himself, but for God's people. "Lord," he said, "though a miserable and wretched creature, I am in covenant with thee through thy grace, and may and will come to thee for thy people. Thou hast made me a mean instrument to do them some good, and thee service. Many of them set too high a value upon me, though others would be glad of my death. Lord, however thou disposest of me, continue, and go on to do good for them. Teach those who look too much upon thy instruments, to depend more upon thyself,

[Footnote 1: Clar. 646. Bulstrode, 207. Heath, 408. Noble, i. 147, note.]

[Sidenote a: A.D. 1658. Sept. 2.]

and pardon such as desire to trample upon the dust of a poor worm, for they are thy people too."[1]

Early in the following morning,[a] he relapsed into a state of insensibility. It was his fortunate day, the 3rd of September, a circumstance from which his sorrowing relatives derived a new source of consolation. It was, they observed, on the 3rd of September that he overcame the Scots at Dunbar; on that day, he also overcame the royalists at Worcester; and on the same day, he was destined to overcome his spiritual enemies, and to receive the crown of victory in heaven. About four in the afternoon he breathed his last, amidst the tears and lamentations of his attendants. "Cease to weep," exclaimed the fanatical Sterry, "you have more reason to rejoice. He was your protector here; he will prove a still more powerful protector, now that he is with Christ at the right hand of the Father." With a similar confidence in Cromwell's sanctity, though in a somewhat lower tone of enthusiasm, the grave and cautious Thurloe announced the event by letter to the deputy of Ireland. "He is gone to heaven, embalmed with the tears of his people, and upon the wings of the prayers of the saints."[2]

Till the commencement of the present century, when that wonderful man arose, who, by the splendour of his victories and the extent of his empire, cast all preceding adventurers into the shade, the name of Cromwell stood without a parallel in the history of civilized Europe. Men looked with a feeling of awe on the

[Footnote 1: Collection of Passages concerning his late Highness in Time of his Sickness, p. 12. The author was Underwood, groom of the bed-chamber. See also a letter of H. Cromwell, Thurloe, vii. 454; Ludlow, ii. 153.]

[Footnote 2: Ludlow, ii. 153. Thurloe, vii. 373.]

[Sidenote a: A.D. 1658. Sept. 3.]

fortunate individual who, without the aid of birth, or wealth, or connections, was able to seize the government of three powerful kingdoms, and to impose the yoke of servitude on the necks of the very men who had fought in his company to emancipate themselves from the less arbitrary sway of their hereditary sovereign. That he who accomplished this was no ordinary personage, all must admit; and yet, on close investigation, we shall discover little that was sublime or dazzling in his character. Cromwell was not the meteor which surprises and astounds by the rapidity and brilliancy of its course. Cool, cautious, calculating, he stole on with slow and measured pace; and, while with secret pleasure he toiled up the ascent to greatness, laboured to persuade the spectators that he was reluctantly borne forward by an exterior and resistless force, by the march of events, the necessities of the state, the will of the army, and even the decree of the Almighty. He seems to have looked upon dissimulation as the perfection of human wisdom, and to have made it the key-stone of the arch on which he built his fortunes.[1] The aspirations of his ambition were concealed under the pretence of attachment to "the good old cause;" and his secret workings to acquire the sovereignty for himself and his family were represented as endeavours to secure for his former brethren in arms the blessings of civil and religious freedom, the two great objects which originally called them into the field. Thus his whole conduct was made up of artifice and deceit. He laid his plans long beforehand; he studied the views and dispositions of all from whose influence he had any thing to hope or fear; and he

[Footnote 1: See proofs of his dissimulation in Harris, iii. 93-103; Hutchinson, 313.]

employed every expedient to win their affections, to make them the blind unconscious tools of his policy. For this purpose he asked questions, or

threw out insinuations in their hearing; now kept them aloof with an air of reserve and dignity; now put them off their guard by condescension, perhaps by buffoonery;[1] at one time, addressed himself to their vanity or avarice; at another, exposed to them with tears (for tears he had at will), the calamities of the nation; and then, when he found them moulded to his purpose, instead of assenting to the advice which he had himself suggested, feigned reluctance, urged objections, and pleaded scruples of conscience. At length he yielded; but it was not till he had acquired by his resistance the praise of moderation, and the right of attributing his acquiescence to the importunity of others instead of his own ambition.[2]

Exposed as he was to the continued machinations of the royalists and Levellers, both equally eager to precipitate him from the height to which he had attained, Cromwell made it his great object to secure to himself the attachment of the army. To it he owed the acquisition, through it alone could he insure the permanence, of his power. Now, fortunately for this purpose, that army, composed as never was army before or since, revered in the lord-protector what it valued mostly in itself, the cant and practice of religious enthusiasm. The superior officers, the subalterns, the privates, all held themselves forth as professors of godliness. Among them every public breach of morality was severely punished; the exercises of religious worship

[Footnote 1: See instances in Bates, Elenc. 344; Cowley, 95; Ludlow, i. 207; Whitelock, 656; State Trials, v. 1131, 1199.]

[Footnote 2: See Ludlow, i. 272; ii. 13, 14, 17.]

were of as frequent recurrence as those of military duty;[1] in council, the officers always opened the proceedings with extemporaneous prayer; and to implore with due solemnity the protection of the Lord of Hosts, was held an indispensable part of the preparation for battle. Their cause they considered

the cause of God; if they fought, it was for his glory; if they conquered, it was by the might of his arm. Among these enthusiasts, Cromwell, as he held the first place in rank, was also pre-eminent in spiritual gifts.[2] The fervour with which he prayed, the unction with which he preached, excited their admiration and tears. They looked on him as the favourite of God, under the special guidance of the Holy Spirit, and honoured with communications from heaven; and he, on his part, was careful, by the piety of his language, by the strict decorum of his court, and by his zeal for the diffusion of godliness, to preserve and strengthen such impressions. In minds thus disposed, it was not difficult to create a persuasion that the final triumph of "their cause" depended on the authority of the general under whom they had conquered; while the full enjoyment of that religious freedom which they so highly prized rendered them less jealous of the arbitrary power which he occasionally

[Footnote 1: "The discipline of the army was such that a man would not be suffered to remain there, of whom we could take notice he was guilty of such practices."—Cromwell's speech to parliament in 1654. It surprised strangers.—*Certa singulis diebus tum fundendis Deo precibus, tum audiendis Dei praeconiis erant assignata tempora.*—*Parallelum Olivae* apud Harris, iii. 12. *E certo ad ogni modo, che le Truppe vivono con tanta esatezza, come se fossero fraterie de' religiosi.*—Sagredo, MS.]

[Footnote 2: Religioso al estremo nell' esteriore, predica con eloquenza ai soldati, li persuade a vivere secondo le legge d' Iddio, e per render più efficace la persuasione, si serve ben spesso delle lagrime, piangendo più li peccati altrui, che li proprii.—*Ibid.* See also Ludlow, iii. 111.]

assumed. In his public speeches, he perpetually reminded them that, if religion was not the original cause of the late civil war, yet, God "soon brought it to that issue;" that amidst the strife of battle, and the difficulties

and dangers of war, the reward to which they looked was freedom of conscience; that this freedom to its full extent they enjoyed under his government, though they could never obtain it till they had placed the supreme authority in his hands.[1] The merit which he thus arrogated to himself was admitted to be his due by the great body of the saints; it became the spell by which he rendered them blind to his ambition and obedient to his will; the engine with which he raised, and afterwards secured, the fabric of his greatness.

On the subject of civil freedom, the protector could not assume so bold a tone. He acknowledged, indeed, its importance; it was second only to religious freedom; but if second, then, in the event of competition, it ought to yield to the first. He contended that, under his government, every provision had been made for the preservation of the rights of individuals, so far as was consistent with the safety of the whole nation. He had reformed the Chancery, he had laboured to abolish the abuses of the law, he had placed learned and upright judges on the bench, and he had been careful in all ordinary cases that impartial justice should be administered between the parties. This indeed was true; but it was also true that by his orders men were arrested and committed without lawful cause; that juries were packed; that prisoners, acquitted at their trial, were sent into confinement beyond the

[Footnote 1: See in particular his speech to his second parliament, printed by Henry Hills, 1654.]

jurisdiction of the courts; that taxes had been raised without the authority of parliament; that a most unconstitutional tribunal, the high court of justice, had been established; and that the majors-general had been invested with powers the most arbitrary and oppressive.[1] These acts of despotism put him on his defence; and in apology he pleaded, as every despot will plead, reasons of state, the necessity of sacrificing a part to preserve the

whole, and his conviction, that a "people blessed by God, the regenerated ones of several judgments forming the flock and lambs of Christ, would prefer their safety to their passions, and their real security to forms." Nor was this reasoning addressed in vain to men who had surrendered their judgments into his keeping, and who felt little for the wrongs of others, as long as such wrongs were represented necessary for their own welfare.

Some writers have maintained that Cromwell dissembled in religion as well as in politics; and that, when he condescended to act the part of the saint, he assumed for interested purposes a character which he otherwise despised. But this supposition is contradicted by the uniform tenor of his life. Long before he turned his attention to the disputes between the king and the parliament, religious enthusiasm had made a deep impression on his mind;^[2] it continually manifested itself during his long career, both in the senate and the field; and it was strikingly displayed in his speeches and prayers on the last evening of his

[Footnote 1: "Judge Rolles," says Challoner, "was shuffled out of his place. Three worthy lawyers were sent to the Tower. It cost them fifty pounds a-piece for pleading a client's cause. One Portman was imprisoned two or three years without cause. Several persons were taken out of their beds, and carried none knows whither."—Burton's Diary, iv. 47.]

[Footnote 2: Warwick, 249.]

life. It should, however, be observed, that he made his religion harmonize with his ambition. If he believed that the cause in which he had embarked was the cause of God, he also believed that God had chosen him to be the successful champion of that cause. Thus the honour of God was identified with his own advancement, and the arts, which his policy suggested, were sanctified in his eyes by the ulterior object at which he aimed—the

diffusion of godliness, and the establishment of the reign of Christ among mankind.[1]

[Footnote 1: The Venetian ambassador observes that during the protectorate London wore the appearance of a garrison town, where nothing was to be seen but the marching of soldiers, nothing to be heard but the sound of drums and trumpets. Il decoro et grandezza di Londra ha molto cangiato di faccia, la nobiltà, che la rendeva conspicua, sta divisa per la campagna, et la delectatezza della corte la più sontuosa et la più allegre del mondo, frequentata da principali dame, et abundante nelli più scelti trattenimenti, e cangiata al presente in una perpetua marchia et contramarchia, in un incessante strepito di tamburri, e di trembe, et in stuioio numerosi di soldati et ufficiali diversi ai posti.—Sagredo. See also an intercepted letter in Thurloe, ii. 670.]

CHAPTER VIII.

Richard Cromwell Protector—Parliament Called—Dissolved—Military Government—Long Parliament Restored—Expelled Again—Reinstated—Monk In London—Re-Admission Of Secluded Members—Long Parliament Dissolved—The Convention Parliament—Restoration Of Charles II.

By his wife, Elizabeth Bourchier, Cromwell left two sons, Richard and Henry. There was a remarkable contrast in the opening career of these young men. During the civil war, Richard lived in the Temple, frequented the company of the Cavaliers, and spent his time in gaiety and debauchery. Henry repaired to his father's quarters, and so rapid was his promotion, that at the age of twenty he held the commission of captain in the regiment of guards belonging to Fairfax, the lord-general. After the establishment of the commonwealth, Richard married, and, retiring to the house of his father-in-law, at Hursley in Hampshire, devoted himself to the usual pursuits of a country gentleman. Henry accompanied his father in the reduction of Ireland, which country he afterwards governed, first with the rank of major-general, afterwards with that of lord-deputy. It was not till the second year of the protectorate that Cromwell seemed to recollect that he had an elder son. He made him a lord of trade, then chancellor of the university of Oxford, and lastly a member of the new house of peers. As these honours

were far inferior to those which he lavished on other persons connected with his family, it was inferred that he entertained a mean opinion of Richard's abilities. A more probable conclusion is, that he feared to alarm the jealousy of his officers, and carefully abstained from doing that which might confirm the general suspicion, that he designed to make the protectorship hereditary in his family.[1]

The moment he expired, the council assembled, and the result of their deliberation was an order to proclaim Richard Cromwell protector, on the ground that he had been declared by his late highness his successor in that dignity.[2] Not a murmur of opposition was heard; the ceremony was performed in all places after the usual manner of announcing the accession of a new sovereign; and addresses of condolence and congratulation poured in from the army and

[Footnote 1: "The Lord knows my desire was for Harry and his brother to have lived private lives in the country, and Harry knows this very well; and how difficultly I was persuaded to give him his commission for Ireland."—Letter to Fleetwood, 22nd June, 1655.]

[Footnote 2: There appears good reason to doubt this assertion. Thurloe indeed (vii. 372) informs Henry Cromwell that his father named Richard to succeed on the preceding Monday. But his letter was written after the proclamation of Richard, and its contents are irreconcilable with the letters written before it. We have one from Lord Falconberg, dated on Monday, saying that no nomination had been made, and that Thurloe had promised to suggest it, but probably would not perform his promise (ibid. 365); and another from Thurloe himself to Henry Cromwell, stating the same thing as to the nomination.—Ibid. 364. It may perhaps be said that Richard was named on the Monday after the letters were written; but there is a second letter from Thurloe, dated on the Tuesday, stating that the protector was still

incapable of public business, and that matters would, he feared, remain till the death of his highness in the same state as he described them in his letter of Monday.—Ibid. 366. It was afterwards said that the nomination took place on the night before the protector's death, in the presence of four of the council (Falconberg in Thurloe, 375, and Barwick, *ibid.* 415); but the latter adds that many doubt whether it ever took place at all.]

navy, from one hundred congregational churches, and from the boroughs, cities, and counties. It seemed as if free-born Britons had been converted into a nation of slaves. These compositions were drawn up in the highest strain of adulation, adorned with forced allusions from Scripture, and with all the extravagance of Oriental hyperbole. "Their sun was set, but no night had followed. They had lost the nursing father, by whose hand the yoke of bondage had been broken from the necks and consciences of the godly. Providence by one sad stroke had taken away the breath from their nostrils, and smitten the head from their shoulders; but had given them in return the noblest branch of that renowned stock, a prince distinguished by the lovely composition of his person, but still more by the eminent qualities of his mind. The late protector had been a Moses to lead God's people out of the land of Egypt; his son would be a Joshua to conduct them into a more full possession of truth and righteousness. Elijah had been taken into heaven: Elisha remained on earth, the inheritor of his mantle and his spirit!"[1]

The royalists, who had persuaded themselves that the whole fabric of the protectorial power would fall in pieces on the death of Cromwell, beheld with amazement the general acquiescence in the succession, of Richard; and the foreign princes, who had deemed it prudent to solicit the friendship of the father, now

[Footnote 1: The Scottish ministers in Edinburgh, instead of joining in these addresses, prayed on the following Sunday, "that the Lord would be

merciful to the exiled, and those that were in captivity, and cause them to return with sheaves of joy; that he would deliver all his people from the yoke of Pharaoh, and task-masters of Egypt, and that he would cut off their oppressors, and hasten the time of their deliverance."—Thurloe, vii. 416.]

hastened to offer their congratulations to his son. Yet, fair and tranquil as the prospect appeared, an experienced eye might easily detect the elements of an approaching storm. Meetings were clandestinely held by the officers; [a] doubts were whispered of the nomination of Richard by his father; and an opinion was encouraged among the military that, as the commonwealth was the work of the army, so the chief office in the commonwealth belonged to the commander of the army. On this account the protectorship had been bestowed on Cromwell; but his son was one who had never drawn his sword in the cause; and to suffer the supreme power to devolve on him was to disgrace, to disinherit, the men who had suffered so severely, and bled so profusely, in the contest.

These complaints had probably been suggested, they were certainly fomented, by Fleetwood and his friends, the colonels Cooper, Berry, and Sydenham. Fleetwood was brave in the field, but irresolute in council; eager for the acquisition of power, but continually checked by scruples of conscience; attached by principle to republicanism, but ready to acquiesce in every change, under the pretence of submission to the decrees of Providence. Cromwell, who knew the man, had raised him to the second command in the army, and fed his ambition with distant and delusive hopes of succeeding to the supreme magistracy. The protector died, and Fleetwood, instead of acting, hesitated, prayed, and consulted; the propitious moment was suffered to pass by; he assented to the opinion of the council in favour of Richard; and then, repenting of his weakness, sought to indemnify himself for the loss by confining the

[Sidenote a: A.D. 1658. Sept. 14.]

authority of the protector to the civil administration, and procuring for himself the sole, uncontrolled command of the army. Under the late government, the meetings of military officers had been discountenanced and forbidden; now they were encouraged to meet and consult; and, in a body of more than two hundred individuals, they presented to Richard a petition, by which they demanded that no officer should be deprived, but by sentence of a court-martial, and that the chief command of the forces, and the disposal of commissions, should be conferred on some person whose past services had proved his attachment to the cause. There were not wanting those who advised the protector to extinguish the hopes of the factious at once by arresting and imprisoning the chiefs; but more moderate counsels prevailed, and in a firm but conciliatory speech,[a] the composition of Secretary Thurloe, he replied that, to gratify their wishes, he had appointed his relative, Fleetwood, lieutenant-general of all the forces; but that to divest himself of the chief command, and of the right of giving or resuming commissions, would be to act in defiance of the "petition and advice," the instrument by which he held the supreme authority. For a short time they appeared satisfied; but the chief officers continued to hold meetings in the chapel at St. James's, ostensibly for the purpose of prayer, but in reality for the convenience of deliberation. Fresh jealousies were excited; it was said that another commander (Henry Cromwell was meant) would be placed above Fleetwood; Thurloe, Pierrepont, and St. John were denounced as evil counsellors; and it became evident to all attentive observers that the two parties must soon come into collision. The protector could depend on the armies

[Sidenote a: A.D. 1658. Oct. 14.]

in Ireland and Scotland. In Ireland, his brother Henry governed without an opponent; in Scotland, Monk, by his judicious separation of the troops, and his vigilance in the enforcement of discipline, had deprived the discontented of the means of holding meetings and of corresponding with each other. In England he was assured of the services of eight colonels, and therefore, as it was erroneously supposed, of their respective regiments, forming one half of the regular force. But his opponents were masters of the other half, constituted the majority in the council, and daily augmented their numbers by the accession of men who secretly leaned to republican principles, or sought to make an interest in that party which they considered the more likely to prevail in the approaching struggle.[1]

From the notice of these intrigues the public attention was withdrawn by the obsequies of the late protector. It was resolved that they should exceed in magnificence those of any former sovereign, and with that view they were conducted according to the ceremonial observed at the interment of Philip II. of Spain. Somerset House was selected for the first part of the exhibition. The spectators, having passed through three rooms hung with black cloth, were admitted[a] into the funereal chamber; where, surrounded with wax-lights, was seen an effigy of Cromwell clothed in royal robes, and lying on a bed of state,

[Footnote 1: For these particulars, see the letters in Thurloe, vii. 386, 406, 413, 415, 424, 426, 427, 428, 447. 450, 452, 453, 454, 463, 490, 491, 492, 493, 495, 496, 497, 498, 500, 510, 511. So great was the jealousy between the parties, that Richard and his brother Henry dared not correspond by letter. "I doubt not all the letters will be opened, which come either to or from your highness, which can be suspected to contain business" (454). For the principle now professed by the Levellers, see note (I).]

[Sidenote b: A.D. 1658. Sept. 26.]

which covered, or was supposed to cover, the coffin. On each side lay different parts of his armour: in one hand was placed the sceptre, in the other the globe; and behind the head an imperial crown rested on a cushion in a chair of state. But, in defiance of every precaution it became necessary to inter the body before the appointed day; and the coffin was secretly deposited at night in a vault at the west end of the middle aisle of Westminster Abbey, under a gorgeous cenotaph which had recently been erected. The effigy was now removed to a more spacious chamber; it rose from a recumbent to an erect posture; and stood before the spectators not only with the emblems of royalty in its hands, but with the crown upon its head. For eight weeks this pageant was exhibited to the public. As the day appointed for the funeral obsequies approached, rumours of an intended insurrection during the ceremony were circulated; but guards from the most trusty regiments lined the streets; the procession consisting of the principal persons in the city and army, the officers of state, the foreign ambassadors, and the members of the protector's family, passed[a] along without interruption; and the effigy, which in lieu of the corpse was borne on a car, was placed, with due solemnity, in the cenotaph already mentioned. Thus did fortune sport with the ambitious prospects of Cromwell. The honours of royalty which she refused to him during his life, she lavished on his remains after death; and then, in the course of a few months, resuming her gifts, exchanged the crown for a halter, and the royal monument in the abbey for an ignominious grave at Tyburn.[1]

[Footnote 1: Thurloe, vi. 528, 529. Carrington apud Noble, i. 360-369. The charge for black cloth alone on this occasion was six thousand nine hundred and twenty-nine pounds, six shillings, and fivepence,—Biblioth. Stow. ii. 448. I do not notice the childish stories about stealing of the protector's body.]

[Sidenote a: A.D. 1658. Nov. 23.]

Before the reader proceeds to the more important transactions at home, he may take a rapid view of the relations existing between England and foreign states. The war which had so long raged between the rival crowns of France and Spain was hastening to its termination; to Louis the aid of England appeared no longer a matter of consequence; and the auxiliary treaty between the two countries, which had been renewed from year to year, was suffered to expire at the appointed[a] time. But in the north of Europe there was much to claim the attention of the new protector; for the king of Sweden, after a short peace, had again unsheathed the sword against his enemy, the king of Denmark. The commercial interests of the maritime states were deeply involved in the issue of this contest; both England and Holland prepared to aid their respective allies; and a Dutch squadron joined the Danish, while an English division, under the command of Ayscue, sailed to the assistance of the Swedish monarch. The severity of the winter forced Ayscue to return; but as soon as the navigation of the Sound was open, two powerful fleets were despatched to the Baltic, one by the protector, the other by the States; and to Montague, the English admiral, was intrusted the delicate and difficult commission, not only of watching the proceedings of the Dutch, but also of compelling them to observe peace towards the Swedes, without giving them occasion to commence hostilities against himself. In this he was successful; but no offer of mediation could reconcile the contending

[Sidenote a: A.D. 1658. August.]

monarchs; and we shall find Montague still cruising in the Baltic at the time when Richard, from whom he derived his commission, will be forced to abdicate the protectorial dignity.[1]

In a few days after the funeral of his father, to the surprise of the public, the protector summoned[a] a parliament. How, it was asked, could Richard

hope to control such an assembly, when the genius and authority of Oliver had proved unequal to the attempt? The difficulty was acknowledged; but the arrears of the army, the exhaustion of the treasury, and the necessity of seeking support against the designs of the officers, compelled him to hazard the experiment, and he flattered himself with the hope of success, by avoiding the rock on which, in the opinion of his advisers, the policy of his father had split. Oliver had adopted the plan of representation prepared by the long parliament before its dissolution, a plan which, by disfranchising the lesser boroughs, and multiplying the members of the counties, had rendered the elections more independent of the government: Richard, under the pretence of a boon to the nation, reverted to the ancient system; and, if we may credit the calculation of his opponents, no fewer than one hundred and sixty members were returned from the boroughs by the interest of the court and its supporters. But to adopt the same plan in the conquered countries of Scotland and Ireland would have been dangerous; thirty representatives were therefore summoned from each; and, as the elections were conducted under the eyes of the

[Footnote 1: Burton's Diary, iii. 576. Thurloe, vol. vii. passim. Carte's Letters, ii. 157-182, Londorp, viii. 635, 708. Dumont, vi. 244, 252, 260.]

[Sidenote a: A.D. 1658. Nov. 30.]

commanders of the forces, the members, with one solitary exception, proved themselves the obsequious servants of government.[1]

It was, however, taken as no favourable omen, that when the protector, at the opening of parliament, commanded the attendance of the Commons in the House of Lords, nearly one-half of the members refused[a] to obey. They were unwilling to sanction by their presence the existence of an authority, the legality of which they intended to dispute; or to admit the superior rank of the new peers, the representatives of the protector, over

themselves, the representatives of the people. As soon as the lower house was constituted, it divided itself into three distinct parties. 1. The protectorists formed about one-half of the members. They had received instructions to adhere inviolably to the provisions of the "humble petition and advice," and to consider the government by a single person, with the aid of two houses, as the unalterable basis of the constitution. 2. The republicans, who did not amount to fifty, but compensated for deficiency in number by their energy and eloquence. Vane, Hazlerig, Lambert, Ludlow, Nevil, Bradshaw, and Scot, were ready debaters, skilled in the forms of the house, and always on the watch to take advantage of the want of knowledge or of experience on the part of their adversaries. With them voted Fairfax, who, after a long retirement, appeared once more on the stage. He constantly sat by the side, and echoed the opinions of Hazlerig; and, so artfully did he act his part, so firmly did he attach their confidence, that, though a royalist at heart, he was designed by them

[Footnote 1: Thurloe, vii. 541, 550. Ludlow, ii. 170. Bethel, Brief Narrative, 340. England's Confusion (p. 4), London, 1659.]

[Sidenote a: A.D. 1659. Jan. 27]

for the office of lord-general, in the event of the expulsion or the abdication of Richard. 3. The "moderates or neuters" held in number the medium between the protectorists and republicans. Of these, some wavered between the two parties; but many were concealed Cavaliers, who, in obedience to the command of Charles, had obtained seats in the house, or young men who, without any fixed political principles, suffered themselves to be guided by the suggestions of the Cavaliers. To the latter, Hyde had sent instructions that they should embarrass the plans of the protector, by denouncing to the house the illegal acts committed under the late administration; by impeaching Thurloe and the principal officers of state;

by fomenting the dissension between the courtiers and the republicans; and by throwing their weight into the scale, sometimes in favour of one, sometimes of the other party, as might appear most conducive to the interests of the royal exile.[1]

The Lords, aware of the insecure footing on which they stood, were careful not to provoke the hostility of the Commons. They sent no messages; they passed no bills; but exchanging matters of state for questions of religion, contrived to spend their time in discussing the form of a national catechism, the sinfulness of theatrical entertainments, and the papal corruptions supposed to exist in the Book of Common

[Footnote 1: Thurloe, i. 766; vii. 562, 604, 605, 609, 615, 616. Clarend. Pap. iii. 423, 424, 425, 428, 432, 434, 436. There were forty-seven republicans; from one hundred to one hundred and forty counterfeit republicans and neuters, seventy-two lawyers, and above one hundred placemen.—Ibid. 440. They began with a day of fasting and humiliation within the house, and four ministers, with praying and preaching, occupied them from nine till six.—Burton's Diary and Journals, Feb. 4.]

Prayer.[1] In the lower house, the first subject which called forth the strength of the different parties was a bill which, under the pretence of recognizing Richard Cromwell for the rightful successor to his father, would have pledged the parliament to an acquiescence in the existing form of government.[a] The men of republican principles instantly took the alarm. To Richard personally they made no objection; they respected his private character, and wished well to the prosperity of his family; but where, they asked, was the proof that the provisions of the "humble petition and advice" had been observed? where the deed of nomination by his father? where the witnesses to the signature?—Then what was the "humble petition and advice" itself? An instrument of no force in a matter of such

high concernment, and passed by a very small majority in a house, out of which one hundred members lawfully chosen, had been unlawfully excluded. Lastly, what right had the Commons to admit a negative voice, either in another house or in a single person? Such a voice was destructive of the sovereignty of the people exercised by their representatives. The people had sent them to parliament with power to make laws for the national welfare, but not to annihilate the first and most valuable right of their constituents. Each day the debate grew more animated and personal; charges were made and recriminations followed: the republicans enumerated the acts of misrule and oppression under the government of the late protector; the courtiers balanced the account with similar instances from the proceedings of their adversaries during the sway of the long parliament; the orators, amidst the

[Footnote 1: Thurloe, 559, 609, 615.]

[Sidenote a: A.D. 1659. Feb. 1.]

multitude of subjects incidentally introduced, lost sight of the original question; and the speaker, after a debate of eight days, declared that he was bewildered in a labyrinth of confusion, out of which he could discover no issue. Weariness at last induced the combatants to listen to a compromise, [a] that the recognition of Richard as protector should form part of a future bill, but that at the same time, his prerogative should be so limited as to secure the liberties of the people. Each party expressed its satisfaction. The republicans had still the field open for the advocacy of their favourite doctrines; the protectorists had advanced a step, and trusted that it would lead them to the acquisition of greater advantages.[1]

From the office of protector, the members proceeded to inquire into the constitution and powers of the other house; and this question, as it was intimately connected with the former, was debated with equal warmth and

pertinacity. The opposition appealed to the "engagement," which many of the members had subscribed; contended that the right of calling a second house had been personal to the late protector, and did not descend to his successors; urged the folly of yielding a negative voice on their proceedings to a body of counsellors of their own creation; and pretended to foretel that a protector with a yearly income of one million three hundred thousand pounds, and a house of lords selected by himself, must inevitably become, in the course of a few years, master of the liberties of the people. When, at the end of nine days, the speaker was going to put the question, Sir

[Footnote 1: Journals, Feb. 1, 14. Thurloe, 603, 609, 610, 615, 617. Clar. Pap. iii. 424, 426, 429. In Burton's Diary the debate occupies almost two hundred pages (iii. 87-287).]

[Sidenote a: A.D. 1659. Feb 14.]

Richard Temple, a concealed royalist, demanded that the sixty members from Scotland and Ireland, all in the interest of the court, should withdraw. [a] It was, he said, doubtful, from the illegality of their election, whether they had any right to sit at all; it was certain that, as the representatives of other nations, they could not claim to vote on a question of such high importance to the people of England. Thus another bone of contention was thrown between the parties; eleven days were consumed before the Scottish and Irish members could obtain permission to vote,[b] and then five more expired before the question respecting the other house was determined.[c] The new lords had little reason to be gratified with the result. They were acknowledged, indeed, as a house of parliament for the present; but there was no admission of their claim of the peerage, or of a negative voice, or of a right to sit in subsequent parliaments. The Commons consented "to transact business with them" (a new phrase of undefined meaning), pending the parliament, but with a saving of the rights of the ancient peers, who had

been faithful to the cause; and, in addition, a few days later,[d] they resolved that, in the transaction of business, no superiority should be admitted in the other house, nor message received from it, unless brought by the members themselves.[1]

In these instances, the recognition of the protector, and of the two houses, the royalists, with some exceptions, had voted in favour of the court, under the impression that such a form of government was

[Footnote 1: Journals, Feb. 18, March 28, April 5, 6, 8. Thurloe, 615, 626, 633, 636, 640, 647, Clar. Pap. iii. 429, 432. Burton's Diary, iii. 317-369, 403-424, 510-594; iv. 7-41, 46-147, 163-243, 293, 351, 375.]

[Sidenote a: A.D. 1659. March 10.]

[Sidenote b: A.D. 1659. March 23.]

[Sidenote c: A.D. 1659. March 28.]

[Sidenote d: A.D. 1659. April 8.]

one step towards the restoration of the king. But on all other questions, whenever there was a prospect of throwing impediments in the way of the ministry, or of inflaming the discontent of the people, they zealously lent their aid to the republican party. It was proved that, while the revenue had been doubled, the expenditure had grown in a greater proportion; complaints were made of oppression, waste, embezzlement, and tyranny in the collection of the excise: the inhumanity of selling obnoxious individuals for slaves to the West India planters was severely reprobated;[1] instances of extortion were daily announced to the house by the committee of grievances; an impeachment was ordered against Boteler, accused of oppression in his office of major-general; and another threatened against Thurloe for illegal conduct in his capacity of secretary of state. But, while these proceedings awakened the hopes and gratified the resentments of the people, they at the same time spread alarm through the army; every man

conscious of having abused the power of the sword began to tremble for his own safety; and an unusual ferment, the sure presage of military violence, was observable at the head-quarters of the several regiments.

[Footnote 1: Clar. Pap. iii. 429, 432. Thurloe, 647. Burton's Diary, iii. 448; iv. 255, 263, 301, 403, 429. One petition stated that seventy persons who had been apprehended on account of the Salisbury rising, after a year's imprisonment, had been sold at Barbadoes for "1550 pounds' weight of sugar a-piece, more or less, according to their working faculties." Among them were divines, officers, and gentlemen, who were represented as "grinding at the mills, attending at the furnaces, and digging in that scorching island, being bought and sold still from one planter to another, or attached as horses or beasts for the debts of their masters, being whipped at the whipping-posts as rogues at their masters' pleasure, and sleeping in sties worse than hogs in England."—Ibid. 256. See also Thurloe, i. 745.]

Hitherto the general officers had been divided between Whitehall and Wallingford House, the residences of Richard and of Fleetwood. At Whitehall, the Lord Falconberg, brother-in-law to the protector, Charles Howard, whom Oliver had created a viscount,[1] Ingoldsby, Whalley, Goffe, and a few others, formed a military council for the purpose of maintaining the ascendancy of Richard in the army. At Wallingford House, Fleetwood and his friends consulted how they might deprive him of the command, and reduce him to the situation of a civil magistrate; but now a third and more numerous council appeared at St. James's, consisting of most of the inferior officers, and guided by the secret intrigues of Lambert, who, holding no commission himself, abstained from sitting among them, and by the open influence of Desborough, a bold and reckless man, who began to despise the weak and wavering conduct of Fleetwood. Here originated the plan of a general council of officers,[a] which was followed by the adoption

of "the humble representation and petition," an instrument composed in language too moderate to give reasonable cause of offence, but intended to suggest much more than it was thought prudent to express. It made no allusion to the disputed claim of the protector, or the subjects of strife between the two houses; but it complained bitterly of the contempt into which the good old cause had sunk, of the threats held out, and the prosecutions instituted, against the patriots who had distinguished themselves in its support, and of the privations to which the military were reduced

[Footnote 1: Viscount Howard, of Morpeth, July 20, 1657, afterwards created

Baron Dacre, Viscount Howard of Morpeth and earl of Carlisle, by Charles II., 30 April, 1661.]

[Sidenote a: A.D. 1659. April 6.]

by a system that kept their pay so many months in arrear. In conclusion, it prayed for the redress of these grievances, and stated the attachment of the subscribers to the cause for which they had bled, and their readiness to stand by the protector and parliament in its defence.[1] This paper, with six hundred signatures, was presented to Richard, who received it with an air of cheerfulness, and forwarded it to the lower house. There it was read, laid on the table, and scornfully neglected. But the military leaders treated the house with equal scorn; having obtained the consent of the protector, they established a permanent council of general officers; and then, instead of fulfilling the expectations with which they had lulled his jealousy, successively voted, that the common cause was in danger, that the command of the army ought to be vested in a person possessing its confidence, and that every officer should be called upon to testify his approbation of the death of Charles I., and of the subsequent proceedings of

the military; a measure levelled against the meeting at Whitehall, of which the members were charged with a secret leaning to the cause of royalty.[2] This was sufficiently alarming; but, in addition, the officers of the trained bands signified their adhesion to the "representation" of the army; and more than six hundred privates of the regiment formerly commanded by Colonel Pride published their determination to stand by their officers in the maintenance "of the old cause." [3] The

[Footnote 1: "The Humble Representation and Petition, printed by H. Hills, 1659."—Thurloe, 659.]

[Footnote 2: Thurloe, 662. Ludlow, ii. 174.]

[Footnote 3: The Humble Representation and Petition of Field Officers, &c. of the Trained Bands. London, 1659. Burton's Diary, iv. 388, note.]

friends of the protector saw that it was time to act with energy; and, by their influence in the lower house, carried the following votes:[a] that no military meetings should be held without the joint consent of the protector and the parliament, and that every officer should forfeit his commission who would not promise, under his signature, never to disturb the sitting, or infringe the freedom of parliament. These votes met, indeed, with a violent opposition in the "other house," in which many of the members had been chosen from the military; but the courtiers, anxious to secure the victory, proposed another and declaratory vote in the Commons,[b] that the command of the army was vested in the three estates, to be exercised by the protector. By the officers this motion was considered as an open declaration of war: they instantly met; and Desborough, in their name, informed Richard that the crisis was at last come; the parliament must be dissolved, either by the civil authority, or by the power of the sword. He might make his election. If he chose the first, the army would provide for his dignity and

support; if he did not, he would be abandoned to his fate, and fall friendless and unpitied.[1]

The protector called a council of his confidential advisers. Whitelock opposed the dissolution, on the ground that a grant of money might yet appease the discontent of the military. Thurloe, Broghill, Fiennes, and Wolseley maintained, on the contrary, that the dissension between the parliament and the army was irreconcilable; and that on the first shock between them, the Cavaliers would rise simultaneously in the

[Footnote 1: Thurloe, 555, 557, 558, 662. Burton's Diary, iv. 448-463, 472-480. Ludlow ii. 176, 178.]

[Sidenote a: A.D. 1659. April 18.]

[Sidenote b: A.D. 1659. April 21.]

cause of Charles Stuart. A commission was accordingly signed by Richard, and the usher of the black rod repeatedly summoned the Commons to attend in the other house.[a] But true to their former vote of receiving no message brought by inferior officers, they refused to obey; some members proposed to declare it treason to put force on the representatives of the nation, others to pronounce all proceedings void whenever a portion of the members should be excluded by violence; at last they adjourned for three days, and accompanied the speaker to his carriage in the face of the soldiery assembled at the door. These proceedings, however, did not prevent Fiennes, the head commissioner, from dissolving the parliament; and the important intelligence was communicated to the three nations by proclamation in the same afternoon.[1]

Whether the consequences of this measure, so fatal to the interests of Richard, were foreseen by his advisers, may be doubted. It appears that Thurloe had for several days been negotiating both with the republican and

the military leaders. He had tempted some of the former with the offer of place and emolument, to strengthen the party of the protector; to the latter he had proposed that Richard, in imitation of his father on one occasion, should raise money for the payment of the army by the power of the sword, and without the aid of parliament.[2] But these intrigues were now at an end; by the dissolution Richard had signed his own deposition; though he continued to reside at Whitehall, the government fell into abeyance; even the officers, who had hitherto frequented

[Footnote 1: Whitelock, 677. England's Confusion, 9. Clarendon Papers, 451, 456. Ludlow, ii. 174. Merc. Pol. 564.]

[Footnote 2: Thurloe, 659, 661.]

[Sidenote a: A.D. 1659. April 22.]

his court, abandoned him, some to appease, by their attendance at Wallingford House, the resentment of their adversaries, the others, to provide, by their absence, for their own safety. If the supreme authority resided any where, it was with Fleetwood, who now held the nominal command of the army; but he and his associates were controlled both by the meeting of officers at St. James's, and by the consultations of the republican party in the city; and therefore contented themselves with depriving the friends of Richard of their commissions, and with giving their regiments to the men who had been cashiered by his father.[1] Unable to agree on any form of government among themselves, they sought to come to an understanding with the republican leaders. These demanded the restoration of the long parliament, on the ground that, as its interruption by Cromwell had been illegal, it was still the supreme authority in the nation; and the officers, unwilling to forfeit the privileges of their new peerage, insisted on the reproduction of the other house, as a co-ordinate authority, under the less objectionable name of a senate. But the country was now in a state of

anarchy; the intentions of the armies in Scotland and Ireland remained uncertain; and the royalists, both Presbyterians and Cavaliers, were exerting themselves to improve the general confusion to the advantage of the exiled king. As a last resource, the officers, by an instrument in which they regretted their past errors and backsliding, invited[a] the members of the long parliament to resume the trust of

[Footnote 1: See the Humble Remonstrance from four hundred Non-commissioned Officers and Privates of Major-general Goffe's Regiment (so called) of Foot. London, 1659.]

[Sidenote a: A.D. 1659. May 6.]

which they had been unrighteously deprived. With some difficulty, two-and-forty were privately collected in the Painted Chamber; Lenthall, the former speaker, after much entreaty, put himself at their head,[a] and the whole body passed into the house through two lines of officers, some of whom were the very individuals by whom, six years before, they had been ignominiously expelled.[1]

The reader will recollect that, on a former occasion, in the year 1648, the Presbyterian members of the long parliament had been excluded by the army. Of these, one hundred and ninety-four were still alive, eighty of whom actually resided in the capital. That they had as good a right to resume their seats as the members who had been expelled by Cromwell could hardly be doubted; but they were royalists, still adhering to the principles which they professed during the treaty in the Isle of Wight, and from their number, had they been admitted, would have instantly outvoted the advocates of republicanism. They assembled in Westminster Hall;[b] and a deputation of fourteen, with Sir George Booth, Prynne, and Annesley at their head, proceeded to the house. The doors were closed in their faces; a

company of soldiers, the keepers, as they were sarcastically called, of the liberties of England, filled the lobby; and a resolution was passed that no former member, who had not subscribed the engagement, should sit till further order of parliament.[c] The attempt, however, though it failed of success, produced its effect. It served to countenance a belief that the sitting members were mere tools of the military, and supplied the royalists with the means of masking their

[Footnote 1: Ludlow, 179-186. Whitelock, 677. England's Confusion, 9.]

[Sidenote a: A.D. 1659. May 7.]

[Sidenote b: A.D. 1659. May 7.]

[Sidenote c: A.D. 1659. May 9.]

real designs under the popular pretence of vindicating the freedom of parliament.[1]

By gradual additions, the house at last amounted to seventy members, who, while they were ridiculed by their adversaries with the appellation of the "Rump," constituted themselves the supreme authority in the three kingdoms. They appointed, first, a committee of safety, and then a council of state, notified to the foreign ministers their restoration to power, and, to satisfy the people, promised by a printed declaration[a] to establish a form of government, which should secure civil and religious liberty without a single person, or kingship, or house of lords. The farce of addresses was renewed; the "children of Zion," the asserters of the good old cause, clamorously displayed their joy; and Heaven was fatigued with prayers for the prosperity and permanence of the new government.[2]

That government at first depended for its existence on the good-will of the military in the neighbourhood of London; gradually it obtained[b] promises of support from the forces at a distance. 1. Monk, with his

[Footnote 1: Journ. May 9. Loyalty Banished, 3. England's Confusion, 12. On the 9th, Prynne found his way into the house, and maintained his right against his opponents till dinner-time. After dinner he returned, but was excluded by the military. He was careful, however, to inform the public of the particulars, and moreover undertook to prove that the long parliament expired at the death of the king; 1. On the authority of the doctrine laid down in the law books; 2. Because all writs of summons abate by the king's death in parliament; 3. Because the parliament is called by a king regnant, and is *his*, the king regnant's, parliament, and deliberates on *his* business; 4. Because the parliament is a corporation, consisting of king, lords, and commons, and if one of the three be extinct, the body corporate no longer exists.—See Loyalty Banished, and a true and perfect Narrative of what was done and spoken by and between Mr. Prynne, &c., 1650.]

[Footnote 2: See the Declarations of the Army and the Parliament in the Journals, May 7.]

[Sidenote a: A.D. 1659. May 13.]

[Sidenote b: A.D. 1659. May 17.]

officers, wrote to the speaker, congratulating him and his colleagues on their restoration to power, and hypocritically thanking them for their condescension in taking up so heavy a burthen; but, at the same time, reminding them of the services of Oliver Cromwell, and of the debt of gratitude which the nation owed to his family.[1] 2. Lockhart hastened to tender the services of the regiments in Flanders, and received in return a renewal of his credentials as ambassador, with a commission to attend the conferences between the ministers of France and Spain at Fuentarabia. 3. Montague followed with a letter from the fleet; but his professions of attachment were received with distrust. To balance his influence with the seamen, Lawson received the command of a squadron destined to cruise in

the Channel; and, to watch his conduct in the Baltic, three commissioners, with Algernon Sydney at their head, were joined with him in his mission to the two northern courts.[2] 4. There still remained the army in Ireland. From Henry Cromwell, a soldier possessing the affections of the military, and believed to inherit the abilities of his father, an obstinate, and perhaps successful, resistance was anticipated. But he wanted decision. Three parties had presented themselves to his choice; to earn, by the promptitude of his acquiescence, the gratitude of the new government; or to maintain by arms the right of his deposed brother; or to declare, as he was strongly solicited to declare, in favour of Charles Stuart. Much time was lost in consultation; at length the thirst of resentment, with the lure of reward, determined him

[Footnote 1: Whitelock, 678.]

[Footnote 2: Thurloe, 669, 670. Ludlow, ii. 199. Journals, May 7, 9, 18, 26, 31.]

to unfurl the royal standard;[1] then the arrival of letters from England threw him back into his former state of irresolution; and, while he thus wavered from project to project, some of his officers ventured to profess their attachment to the commonwealth, the privates betrayed a disinclination to separate their cause from that of their comrades in England, and Sir Hardress Waller, in the interest of the parliament, surprised the castle of Dublin.[a] The last stroke reduced Henry at once to the condition of a suppliant; he signified his submission by a letter to the speaker, obeyed the commands of the house to appear before the council,[b] and, having explained to them the state of Ireland, was graciously permitted to retire into the obscurity of private life. The civil administration of the island devolved on five commissioners, and the command of the army was given to Ludlow,[c] with the rank of lieutenant-general of the horse.[2]

But the republican leaders soon discovered that they had not been called to repose on a bed of roses.[d] The officers at Wallingford House began to dictate to the men whom they had made their nominal masters, and forwarded to them fifteen demands, under the modest title of "the things which they had on their minds," when they restored the long parliament.[3] The house took them successively into consideration. A committee was appointed to report the form of government the best calculated to secure the liberties of the people; the duration of the existing parliament was

[Footnote 1: Carte's Letters, ii. 242. Clar. Pap. 500, 501, 516.]

[Footnote 2: Thurloe, vii. 683, 684. Journals, June 14, 27, July 4, 17. Henry Cromwell resided on his estate of Swinney Abbey, near Soham, in Cambridgeshire, till his death in 1674.—Noble, i. 227.]

[Footnote 3: See the Humble Petition and Address of the Officers, printed by Henry Hills, 1659.]

[Sidenote a: A.D. 1659. June 15.]

[Sidenote b: A.D. 1659. July 6.]

[Sidenote c: A.D. 1659. July 18.]

[Sidenote d: A.D. 1659. May 15.]

limited to twelve months; freedom of worship was extended to all believers in the Scriptures and the doctrine of the Trinity, with the usual exception of prelatists and papists; and an act of oblivion, after many debates, was passed, but so encumbered with provisoes and exceptions, that it served rather to irritate than appease.[1] The officers had requested[a] that lands of inheritance, to the annual value of ten thousand pounds, should be settled on Richard Cromwell, and a yearly pension of eight thousand pounds on her "highness dowager," his mother. But it was observed in the house that, though Richard exercised no authority, he continued to occupy

the state apartments at Whitehall; and a suspicion existed that he was kept there as an object of terror, to intimate to the members that the same power could again set him up, which had so recently brought him down. By repeated messages, he was ordered to retire; and, on his promise to obey, the parliament granted him the privilege of freedom from arrest during six months; transferred his private debts, amounting to twenty-nine thousand six hundred and forty pounds, to the account of the nation, gave him two thousand pounds as a relief to his present necessities, and voted that a yearly income of ten thousand pounds should be settled on him and his heirs, a grant easily made on paper, but never carried into execution.[2]

[Footnote 1: Declaration of General Council of Officers, 27th of October, p. 5. For the different forms of government suggested by different projectors, see Ludlow, ii. 206.]

[Footnote 2: Journals, May 16, 25, July 4, 12, 16.—Ludlow (ii. 198) makes the present twenty thousand pounds; but the sum of two thousand pounds is written at length in the Journals; May 25. While he was at Whitehall, he entertained proposals from the royalists, consented to accept a title and twenty thousand pounds a year, and designed to escape to the fleet under Montague, but was too strictly watched to effect his purpose.—Clar. Pap. iii. 475, 477, 478.]

[Sidenote: A.D. 1659. July 12.]

But the principal source of disquietude still remained. Among the fifteen articles presented to the house, the twelfth appeared, not in the shape of a request, but of a declaration, that the officers unanimously owned Fleetwood as "commander-in-chief of the land forces in England." It was the point for which they had contended under Richard; and Ludlow, Vane, and Salloway earnestly implored their colleagues to connive at what it was evidently dangerous to oppose. But the lessons of prudence were thrown

away on the rigid republicanism of Hazlerig, Sydney, Neville, and their associates, who contended that to be silent was to acknowledge in the council of officers an authority independent of the parliament. They undertook to remodel the constitution of the army. The office of lord-general was abolished; no intermediate rank between the lieutenant-general and the colonels was admitted; Fleetwood was named lieutenant-general, with the chief command in England and Scotland, but limited in its duration to a short period, revocable at pleasure, and deprived of several of those powers which had hitherto been annexed to it. All military commissions were revoked, and an order was made that a committee of nine members should recommend the persons to be officers in each regiment; that their respective merits should be canvassed in the house; and that those who had passed this ordeal should receive their commissions at the table from the hand of the speaker. The object of this arrangement was plain: to make void the declaration of the military, to weed out men of doubtful fidelity, and to render the others dependent for their situations on the pleasure of the house. Fleetwood, with his adherents, resolved never to submit to the degradation, while the privates amused themselves with ridiculing the age and infirmities of him whom they called their new lord-general, the speaker Lenthall; but Hazlerig prevailed on Colonel Hacker, with his officers, to conform; their example gradually drew others; and, at length, the most discontented, though with shame and reluctance, condescended to go through this humbling ceremony. The republicans congratulated each other on their victory; they had only accelerated their defeat.[1]

Ever since the death of Oliver, the exiled king had watched with intense interest the course of events in England; and each day added a new stimulus to his hopes of a favourable issue. The unsettled state of the nation, the dissensions among his enemies, the flattering representations of his friends, and the offers of co-operation from men who had hitherto opposed his claims, persuaded him that the day of his restoration was at hand. That the

opportunity might not be forfeited by his own backwardness, he announced[a] to the leaders of the royalists his intention of coming to England, and of hazarding his life in the company of his faithful subjects. There was scarcely a county in which the majority of the nobility and gentry did not engage to rally round his standard; the first day of August was fixed for the general rising; and it was determined[b] in the council at Brussels that Charles should repair in disguise to the coast of Bretagne, where he might procure a passage into Wales or Cornwall; that the duke of York, with six hundred veterans furnished by the prince of Condé, should attempt to land from Boulogne on the coast of Kent; and that the duke of Gloucester should follow

[Footnote 1: Journals, passim. Ludlow, ii. 197. Declaration of Officers, 6. Thurloe, 679. Clarend. Hist. iii. 665.]

[Sidenote a: A.D. 1659. June 4.]

[Sidenote b: A.D. 1659. July.]

from Ostend with the royal army of four thousand men under the Marshal Marsin. Unfortunately his concerns in England had been hitherto conducted by a council called "the Knot," at the head of which was Sir Richard Willis. Willis, the reader is aware, was a traitor; but it was only of late that the eyes of Charles had been opened to his perfidy by Morland, the secretary of Thurloe, who, to make his own peace, sent to the court at Bruges some of the original communications in the writing of Willis. This discovery astonished and perplexed the king. To make public the conduct of the traitor was to provoke him to farther disclosures: to conceal it, was to connive at the destruction of his friends, and the ruin of his own prospects. He first instructed his correspondents to be reserved in their communications with "the Knot;"[a] he then ordered Willis to meet him on a certain day at Calais;

[b] and, when this order was disregarded, openly forbade the royalists to give to the traitor information, or to follow his advice.[1]

But these precautions came too late. After the deposition of the protector, Willis had continued to communicate with Thurloe, who with the intelligence

[Footnote 1: Clar. Pap. iii. 514, 517, 518, 520, 524, 526, 529, 531, 535, 536. Willis maintained his innocence, and found many to believe him. Echard (p. 729) has published a letter with Morland's signature, in which he is made to say that he never sent any of the letters of Willis to the king, nor even so much as knew his name; whence Harris (ii. 215) infers that the whole charge is false. That, however, it was true, no one can doubt who will examine the proofs in the Clarendon Papers (iii. 518, 526, 529, 533, 535, 536, 542, 549, 556, 558, 562, 563, 574, 583, 585), and in Carte's Collection of Letters (ii. 220, 256, 284). Indeed, the letter from Willis of the 9th of May, 1660, soliciting the king's pardon, leaves no room for doubt.—Clar. Pap. 643. That Morland was the informer, and, consequently, the letter in Echard is a forgery, is also evident from the reward which he received at the restoration, and from his own admission to Pepys.—See Pepys, i. 79, 82, 133, 8vo. See also "Life of James II." 370.]

[Sidenote a: A.D. 1659. July 18.]

[Sidenote b: A.D. 1659. August 7.]

which he thus obtained, was enabled to purchase the forbearance of his former opponents. At an early period in July, the council was in possession of the plan of the royalists. Reinforcements were immediately demanded from the armies in Flanders and Ireland; directions were issued for a levy of fourteen regiments of one thousand men each;[a] measures were taken for calling out the militia; numerous arrests were made in the city and every part of the country; and the known Cavaliers were compelled to leave the

metropolis, and to produce security for their peaceable behaviour. These proceedings seemed to justify Willis in representing the attempt as hopeless; and, at his persuasion, "the Knot" by circular letters forbade the rising, two days before the appointed time.[b] The royalists were thus thrown into irremediable confusion. Many remained quiet at their homes; many assembled in arms, and dispersed on account of the absence of their associates; in some counties the leaders were intercepted in their way to the place of rendezvous; in others as soon as they met, they were surrounded or charged by a superior force. In Cheshire alone was the royal standard successfully unfurled by Sir George Booth, a person of considerable influence in the county, and a recent convert to the cause of the Stuarts. In the letter which he circulated, he was careful to make no mention of the king, but called on the people to defend their rights against the tyranny of an insolent soldiery and a pretended parliament.[c] "Let the nation freely choose its representatives, and those representatives as freely sit without awe or force of soldiery." This was all that he sought: in the determination of such an assembly, whatever that determination might be, both he and

[Sidenote a: A.D. 1659. August 13.]

[Sidenote b: A.D. 1659. August 29.]

[Sidenote c: A.D. 1659. August 2.]

his friends would cheerfully acquiesce.[1] It was in effect a rising on the Presbyterian interest; and the proceedings were in a great measure controlled by a committee of minister, who scornfully rejected the aid of the Catholics, and received with jealousy Sir Thomas Middleton, though a known Presbyterian, because he openly avowed himself a royalist.

At Chester, the parliamentary garrison retired into the castle, and the insurgents took possession of the city. Each day brought to them a new accession of strength; and their apparent success taught them to augur

equally well of the expected attempts of their confederates throughout the kingdom. But the unwelcome truth could not long be concealed; and when they learned that they stood alone, that every other rising had been either prevented or instantly suppressed, and that Lambert was hastening against them with four regiments of cavalry and three of foot, their confidence was exchanged for despair; every gentleman who had risked his life in the attempt claimed a right to give his advice; and their counsels, from fear, inexperience, and misinformation, became fluctuating and contradictory.[a] After much hesitation, they resolved to proceed to Nantwich and defend the passage of the Weever; but so rapid had been the march of the enemy, who sent forward part of the infantry on horseback, that the advance was already arrived in the neighbourhood; and, while the royalists lay unsuspecting of danger in the town, Lambert forced the passage of the river at Winnington. [b] In haste, they filed out of Nantwich into the nearest fields; but here they found that most of their ammunition was still at Chester;[c] and, on the suggestion that the position was

[Footnote 1: Parl. Hist. xxiii. 107.]

[Sidenote a: A.D. 1659. August 16.]

[Sidenote b: A.D. 1659. August 18.]

[Sidenote c: A.D. 1659. August 19.]

unfavourable, hastened to take possession of a neighbouring eminence. Colonel Morgan, with his troop, attempted to keep the enemy in check; he fell, with thirty men; and the rest of the insurgents, at the approach of their adversaries, turned their backs and fled. Three hundred were made prisoners in the pursuit, and few of the leaders had the good fortune to escape. The earl of Derby, who had raised men in Lancashire to join the royalists, was taken in the disguise of a servant. Booth, dressed as a female, and riding on a pillion, took[a] the direct road for London, but betrayed himself at

Newton Pagnell by his awkwardness in alighting from the horse. Middleton, who was eighty years old, fled to Chirk Castle; and, after a defence of a few days, capitulated,[b] on condition that he should have two months to make his peace with the parliament.[1]

The news of this disaster reached the duke of York at Boulogne, fortunately on the very evening on which he was to have embarked with his men. Charles received it at Rochelle, whither he had been compelled to proceed in search of a vessel to convey him to Wales. Abandoning the hopeless project, he instantly continued his journey to the congress at Fuentarabia, with the delusive expectation that, on the conclusion of peace between the two crowns, he should obtain a supply of money, and perhaps still more substantial aid, from a personal interview with the ministers, Cardinal Mazarin and Don Louis de Haro.[2] Montague, who had but recently become a proselyte to the royal cause,

[Footnote 1: Clar. Hist. iii. 672-675. Clar. Pap. iii. 673, 674. Ludlow, ii. 223. Whitelock, 683. Carte's Letters, 194, 202. Lambert's Letter, printed for Thomas Neucombe, 1659.]

[Footnote 2: Both promised to aid him secretly, but not in such manner as to give offence to the ruling party in England.—Clar. Pap. iii. 642.]

[Sidenote a: A.D. 1659. August.]

[Sidenote b: A.D. 1659. August 24.]

was drawn by his zeal into the most imminent danger. As soon as he heard of the insurrection, he brought back the fleet from the Sound, in defiance of his brother commissioners, with the intention of blockading the mouth of the Thames, and of facilitating the transportation of troops. On his arrival he learned the failure of his hopes; but boldly faced the danger, appeared before the council, and assigned the want of provisions as the

cause of his return. They heard him with distrust; but it was deemed prudent to dissemble, and he received permission to withdraw.[1]

To reward Lambert for this complete, though almost bloodless, victory, the parliament[a] voted him the sum of one thousand pounds, which he immediately distributed among his officers. But while they recompensed his services, they were not the less jealous of his ambition. They remembered how instrumental he had been in raising Cromwell to the protectorate; they knew his influence in the army; and they feared his control over the timid, wavering mind of Fleetwood, whom he appeared to govern in the same manner as Cromwell had governed Fairfax. It had been hoped that his absence on the late expedition would afford them leisure to gain the officers remaining in the capital; but the unexpected rapidity of his success had defeated their policy; and, in a short time, the intrigue which had been interrupted by the insurrection was resumed. While Lambert hastened back to the capital, his army followed by slow marches; and at Derby the officers subscribed[b] a petition, which had been clandestinely forwarded to them from Wallingford House. In it they complained that adequate rewards were not conferred on the deserving; and

[Footnote 1: Journals, Sept. 16. Clar. Pap. iii. 551. Carte's Letters, ii. 210, 236. Pepys' Memoirs, i. 157.]

[Sidenote a: A.D. 1659. August 22.]

[Sidenote b: A.D. 1659. Sept. 14.]

demanding that the office of commander-in-chief should be given to Fleetwood without limitation of time, and the rank of major-general to their victorious leader; that no officer should be deprived of his commission without the judgment of a court-martial; and that the government should be settled in a house of representatives and a permanent senate. Hazlerig, a man of stern republican principles, and of a temper hasty, morose, and

ungovernable, obtained a sight of this paper, denounced[a] it as an attempt to subvert the parliament, and moved that Lambert, its author, should be sent to the Tower; but his violence was checked by the declaration of Fleetwood, that Lambert knew nothing of its origin; and the house contented itself with ordering all copies of the obnoxious petition to be delivered up, and with resolving[b] that "to augment the number of general officers was needless, chargeable, and dangerous."[1] From that moment a breach was inevitable. The house, to gratify the soldiers, had advanced their daily pay; and with the view of discharging their arrears, had raised[c] the monthly assessment from thirty-five thousand pounds to one hundred thousand pounds.[2] But the military leaders were not to be diverted from their purpose. Meetings were daily and nightly held at Wallingford House; and another petition with two hundred and thirty signatures was presented by Desborough, accompanied by all the field-officers in the metropolis; In most points it was similar to the former; but it contained a demand that, whosoever should afterwards "groundlessly and causelessly inform the house against their servants, thereby creating jealousies, and casting scandalous imputations upon them, should be

[Footnote 1: Journ., Aug. 23, Sept. 22, 23. Ludlow, ii. 223, 227, 233, 244.]

[Footnote 2: Ibid., May 31, Aug. 18, Sept. 1]

[Sidenote a: A.D. 1659. Sept. 22.]

[Sidenote b: A.D. 1659. Sept. 23.]

[Sidenote c: A.D. 1659. Oct. 5.]

brought to examination, justice, and condign punishment." This was a sufficient intimation to Hazlerig and his party to provide for their own safety. Three regiments, through the medium of their officers, had already made the tender of their services for the protection of the house; Monk,

from Scotland, and Ludlow, from Ireland, wrote that their respective armies were animated with similar sentiments; and a vote was passed and ordered to be published,[a] declaring it to be treason to levy money on the people without the previous consent of parliament, a measure which, as all the existing taxes were to expire on the first day of the ensuing year, made the military dependent for their future subsistence on the pleasure of the party. Hazlerig, thus fortified, deemed himself a match for his adversaries; the next morning he boldly threw down the gauntlet;[b] by one vote, Lambert, Desborough, six colonels, and one major, were deprived of their Commissions for having subscribed the copy of the petition sent to Colonel Okey; and, by a second, Fleetwood was dismissed from his office of commander-in-chief, and made president of a board of seven members established for the government of the army. Aware, however, that he might expect resistance, the republican chieftain called his friends around him during the night; and, at the dawn of day, it was discovered that he had taken military possession of King-street and the Palace-yard with two regiments of foot and four troops of horse, who protested aloud that they would live and die with the parliament.[1][c]

[Footnote 1: Journals, Sept. 28, Oct. 5, 10, 11, 12. Ludlow, ii. 229, 247. Carte's Letters, ii, 246. Thurloe, vii. 755. Declaration of General Council of Officers, 9-16. True Narrative of the Proceedings in Parliament, Council of State, &c., published by special order, 1659. Printed by John Redmayne.]

[Sidenote a: A.D. 1659. Oct 11.]

[Sidenote b: A.D. 1659. Oct 12.]

[Sidenote c: A.D. 1659. Oct 13.]

Lambert mustered about three thousand men. His first care was to intercept the access of members to the house, and to prevent the egress of the militia from the city. He then marched to Westminster. Meeting the

speaker, who was attended by his guard, he ordered the officer on duty to dismount, gave the command to Major Creed, one of those who had been deprived of their commissions by the preceding vote, and scornfully directed him to conduct the "lord-general" to Whitehall, whence he was permitted to return to his own house. In Westminster, the two parties faced each other; but the ardour of the privates did not correspond with that of the leaders; and, having so often fought in the same ranks, they showed no disposition to imbrue their hands in each other's blood. In the mean time the council of state assembled: on the one side Lambert and Desborough, on the other Hazlerig and Morley, appeared to support their pretensions; much time was spent in complaint and recrimination, much in hopeless attempts to reconcile the parties; but the cause of the military continued to make converts; the advocates of the "rump," aware that to resist was fruitless, consented to yield; and it was stipulated that the house should cease to sit, that the council of officers should provide for the public peace, arrange a new form of government, and submit it to the approbation of a new parliament. An order, that the forces on both sides should retire to their respective quarters, was gladly obeyed; the men mixed together as friends and brothers, and reciprocally promised never more to draw the sword against each other.[1]

[Footnote 1: Whitelock, 685. Journals, Oct. 13. Clar. Pap. iii. 581, 590. Ludlow, ii. 247-251. Ludlow's account differs considerably from that by Whitelock. But the former was in Ireland, the latter present at the council.]

Thus a second time the supreme authority devolved on the meeting of officers at Wallingford House. They immediately established their favourite plan for the government of the army. The office of commander-in-chief, in its plenitude of power, was restored to Fleetwood; the rank of major-general of the forces in Great Britain was given to Lambert; and all those officers

who refused to subscribe a new engagement, were removed from their commands. At the same time they annulled by their supreme authority all proceedings in parliament on the 10th, 11th, and 12th of October, vindicated their own conduct in a publication with the title of "The Army's Plea,"[1] vested the provisional exercise of the civil authority in a committee of safety of twenty-three members, and denounced the penalties of treason against all who should refuse to obey its orders, or should venture to levy forces without its permission. An attempt was even made to replace Richard Cromwell in the protectorial dignity;[a] for this purpose he came from Hampshire to London, escorted by three troops of horse; but his supporters in the meeting were out-voted by a small majority, and he retired to Hampton Court.[2]

[Footnote 1: See Declaration of the General Council of Officers, 17. The Army's Plea for its Present Practice, printed by Henry Hills, printer to the army, 1659, is in many parts powerfully written. The principal argument is, that as the parliament, though bound by the solemn league and covenant to defend the king's person, honour, and dignity, did not afterwards scruple to arraign, condemn, and execute him because he had broken his trust; so the army, though they had engaged to be true and faithful to the parliament, might lawfully rise against it, when they found that it did not preserve the just rights and liberties of the people. This condition was implied in the engagement; otherwise the making of the engagement would have been a sin, and the keeping thereof would have been a sin also, and so an adding of sin to sin.]

[Footnote 2: Whitelock, 685, 686. Ludlow, ii. 250, 286, 287. Clar. Pap. 591. At the restoration, Richard, to escape from his creditors, fled to the continent; and, after an expatriation of almost twenty years, returned to England to the neighbourhood of Cheshunt, where he died in 1713, at the age of eighty-six.—Noble, i. 228.]

[Sidenote a: A.D. 1659. Oct 26.]

Of all the changes which had surprised and perplexed the nation since the death of the last king, none had been received with such general disapprobation as the present. It was not that men lamented the removal of the Rump; but they feared the capricious and arbitrary rule of the army; and, when they contrasted their unsettled state with the tranquillity formerly enjoyed under the monarchy, many were not backward in the expression of their wishes for the restoration of the ancient line of their princes. The royalists laboured to improve this favourable disposition; yet their efforts might have been fruitless, had the military been united among themselves. But among the officers there were several who had already made their peace with Charles by the promise of their services, and many who secretly retained a strong attachment to Hazlerig and his party in opposition to Lambert. In Ireland, Barrow, who had been sent as their representative from Wallingford House, found the army so divided and wavering, that each faction alternately obtained a short and precarious superiority; and in Scotland, Cobbet, who arrived there on a similar mission, was, with seventeen other officers who approved of his proposals, imprisoned by order of Monk.[1]

From this moment the conduct of Monk will claim a considerable share of the reader's attention. Ever since the march of Cromwell in pursuit of the king to Worcester he had commanded in Scotland; where, instead of concerning himself with the intrigues and parties in England, he appeared to have no other occupation

[Footnote 1: Ludlow, ii. 237, 252, 259, 262, 300. Clar. Pap. iii. 591. Carte's Letters, 266.]

than the duties of his place, to preserve the discipline of his army, and enforce the obedience of the Scots. His despatches to Cromwell from

Scotland form a striking contrast with those from the other officers of the time. There is in them no parade of piety, no flattery of the protector, no solicitation for favours. They are short, dry, and uninteresting, confined entirely to matters of business, and those only of indispensable necessity. In effect, the distinctive characteristic of the man was an impenetrable secrecy. [1] Whatever were his predilections or opinions, his wishes or designs, he kept them locked up within his own breast. He had no confidant, nor did he ever permit himself to be surprised into an unguarded avowal. Hence all parties, royalists, protectorists, and republicans, claimed him for their own, though that claim was grounded on *their* hopes, not on *his* conduct. Charles had been induced to make to him repeatedly the most tempting offers, which were supported by the solicitations of his wife and his domestic chaplain; Monk listened to them without displeasure, though he never unbosomed himself to the agents or to his chaplain so far as to put himself in their power. Cromwell had obtained some information of these intrigues; but, unable to discover any real ground of suspicion, he contented himself with putting Monk on his guard by a bantering postscript to one of his letters. "Tis said," he added, "there is a cunning fellow in Scotland,

[Footnote 1: "His natural taciturnity was such, that most of his friends, who thought they knew him best, looked upon George Monk to have no other craft in him than that of a plain soldier, who would obey the parliament's orders, and see that his own were obeyed."—Price, *Mystery and Method of his Majesty's happy Restoration*, in *Select Tracts relating to the Civil Wars in England*, published by Baron Maseres, ii. 700.]

called George Monk, who lies in wait there to serve Charles Stuart; pray use your diligence to take him and send him up to me." [1] After the fall of the protector Richard, he became an object of greater distrust. To undermine his power, Fleetwood ordered two regiments of horse attached to the Scottish army to return to England; and the republicans, when the military

commissions were issued by the speaker, removed a great number of his officers, and supplied their places with creatures of their own. Monk felt these affronts: discontent urged him to seek revenge; and, when he understood that Booth was at the head of a considerable force, he dictated a letter to the speaker, complaining of the proceedings of parliament, and declaring that, as they had abandoned the real principles of the old cause, they must not expect the support of his army. His object was to animate the insurgents and embarrass their adversaries; but, on the very morning on which the letter was to be submitted for signature to his principal officers, the news of Lambert's victory arrived;^[a] the dangerous instrument was instantly destroyed, and the secret most religiously kept by the few who had been privy to the intention of the general.^[2]

To this abortive attempt Monk, notwithstanding his wariness, had been stimulated by his brother, a clergyman of Cornwall, who visited him with a message from Sir John Grenville by commission from Charles Stuart. After the failure of Booth, the general dismissed him with a letter of congratulation to the parliament, but without any answer to Grenville, and under an oath to keep secret whatever he had learnt

[Footnote 1: Price, 712.]

[Footnote 2: Id. 711, 716, 721.]

[Sidenote a: A.D. 1659. August 23.]

respecting the past, or the intended projects of his brother.^[1] But the moment that Monk heard of the expulsion of the members,^[a] and of the superior rank conferred on Lambert, he determined to appear openly as the patron of the vanquished, under the alluring, though ambiguous, title of "asserter of the ancient laws and liberties of the country." Accordingly, he secured with trusty garrisons the castle of Edinburgh and the citadel of

Leith,[b] sent a strong detachment to occupy Berwick, and took the necessary measures to raise and discipline a numerous force of cavalry. At Leith was held a general council of officers; they approved of his object, engaged to stand by him, and announced their determination, by letters directed to Lenthall, the speaker, to the council at Wallingford House, and to the commanders of the fleet in the Downs, and of the army in Ireland. It excited, however, no small surprise, that the general, while he thus professed to espouse the defence of the parliament, cashiered all the officers introduced by the parliament into his army, and restored all those who had been expelled. The more discerning began to suspect his real intentions;[2] but Hazlerig and his party were too

[Footnote 1: All that Grenville could learn from the messenger was, that his brother regretted the failure of Booth, and would oppose the arbitrary attempts of the military in England; an answer which, though favourable as far as it went, still left the king in uncertainty as to his real intentions.—Clar. Pap. iii. 618.]

[Footnote 2: Ludlow, ii. 269. Whitelock, 686, 689, 691. Price, 736, 743. Skinner, 106-109. Monk loudly asserted the contrary. "I do call God to witness," he says in the letter to the speaker, Oct. 20, "that the asserting of a commonwealth is the only intent of my heart."—True Narrative, 28. When Price remonstrated with him, he replied: "You see who are about me and write these things. I must not show any dislike of them. I perceive they are jealous enough of me already."—Price, 746. The fact probably was, that Monk was neither royalist nor republican: that he sought only his own interest, and had determined to watch every turn of affairs, and to declare at last in favour of that party which appeared most likely to obtain the superiority.]

[Sidenote a: A.D. 1659. Oct. 17.]

[Sidenote b: A.D. 1659. Oct. 18.]

elated to dwell on the circumstance, and, under the promise of his support, began to organize the means of resistance against their military oppressors.

Monk soon discovered that he was embarked in a most hazardous undertaking. The answers to his letters disapproved of his conduct; and the knowledge of these answers kindled among his followers a spirit of disaffection which led to numerous desertions. From the general of an army obedient to his commands, he had dwindled into the leader of a volunteer force, which it was necessary to coax and persuade. Two councils were formed, one of the colonels of the longest standing, the other of all the commissioned officers. The first perused the public despatches received by the general, and wrote the answers, which were signed by him as the chairman; the other was consulted on all measures respecting the conduct of the army, and confirmed or rejected the opinion of the colonels by the majority of voices. But if Monk was controlled by this arrangement, it served to screen him from suspicion. The measures adopted were taken as the result of the general will.

To the men at Wallingford House it became of the first importance to win by intimidation, or to reduce by force, this formidable opponent. Lambert marched against him from London at the head of seven thousand men; but the mind of the major-general was distracted by doubts and suspicions; and, before his departure, he exacted a solemn promise from Fleetwood to agree to no accommodation, either with the king, or with Hazlerig, till he had previously received the advice and concurrence of Lambert himself.[1] To Monk delay was as necessary as expedition was desirable to his opponents. In point of numbers and experience the force under his command was no

match for that led by Lambert, but his magazines and treasury were amply supplied, while his adversary possessed not money enough to keep his army together for more than a few weeks. Before the major-general reached Newcastle, he met three deputies from Monk on their way to treat with the council in the capital. As no arguments could induce them to open the negotiation with him, he allowed them to proceed, and impatiently awaited the result. After much discussion, an agreement was concluded in London; but Monk, instead of ratifying it with his signature, discovered,[a] or pretended to discover, in it much that was obscure or ambiguous, or contrary to the instructions received by the deputies; his council agreed with him in opinion; and a second negotiation was opened with Lambert at Newcastle, to obtain from him an explanation of the meaning of the officers in the metropolis. Thus delay was added to delay; and Monk improved the time to dismiss even the privates whose sentiments were suspected, and to fill up the vacancies in the regiments of infantry by levies among the Scots. At the same time he called a convention of the Scottish estates at Berwick, of two representatives from each county and one from each borough, recommended to them the peace of the country during his absence, and obtained from them the grant of a year's arrears of their taxes, amounting to sixty thousand pounds, in

[Footnote 1: See the Conferences of Ludlow and Whitelock with Fleetwood, Ludlow, ii. 277; Whitelock, 690.]

[Sidenote a: A.D. 1659. Nov. 19.]

addition to the excise and customs. He then fixed his head-quarters at Coldstream.[1]

In the mean while the detention of Lambert in the north by the artifices of Monk had given occasion to many important events in the south. Within the

city several encounters had taken place between the military and the apprentices;^[2] a free parliament had become the general cry; and the citizens exhorted each other to pay no taxes imposed by any other authority. Lawson, though he wavered at first, declared against the army, and advanced with his squadron up the river as far as Gravesend. Hazlerig and Morley were admitted into Portsmouth by the governor, were joined by the force sent against them by Fleetwood, and marched towards London, that they might open a communication with the fleet in the river. Alarm produced in the committee of safety the most contradictory councils. A voice ventured to suggest the restoration of Charles Stuart; but it was replied that their offences against the family of Stuart were of too black a dye to be forgiven; that the king might be lavish of promises now that he stood in need of their services; but that the vengeance of parliament would absolve him from the obligation, when the monarchy should once be established. The final resolution was to call a new parliament against the 24th of January, and to appoint twenty-one conservators of the public peace during the interval. But they

[Footnote 1: Price, 741-744. Whitelock, 688, 699. Ludlow, 269, 271, 273. Skinner, 161, 164.]

[Footnote 2: The posts occupied by the army within the city were, "St. Paul's Church, the Royall Exchange, Peeter-house in Aldersgate-street, and Bernet's Castle, Gresham Coledge, Sion Coledge. Without London, were the Musses, Sumersett-house, Whitehall, St. James's, Scotland-yard."—MS. Diary by Thomas Rugge.]

[Sidenote a: A.D. 1659. Dec. 8.]

[Sidenote b: A.D. 1659. Dec. 17.]

reckoned on an authority which they no longer possessed. The fidelity of the common soldiers had been shaken by the letters of Monk, and the declaration of Lawson. Putting themselves under the command of the officers who had been lately dismissed, they mustered[a] in Lincoln's Inn Fields, marched before the house of Lenthall in Chancery Lane, and saluted him with three volleys of musketry as the representative of the parliament and lord-general of the army. Desborough, abandoned by his regiment, fled in despair towards Lambert; and Fleetwood, who for some days had done nothing but weep and pray, and complain that "the Lord had spit in his face," tamely endeavoured to disarm by submission the resentment of his adversaries. He sought the speaker, fell on his knees before him, and surrendered his commission.[1]

Thus the Rump was again triumphant. The members, with Lenthall at their head, resumed[b] possession of the house amidst the loud acclamations of the soldiery. Their first care was to establish a committee for the government of the army, and to order the regiments in the north to separate and march to their respective quarters. Of those among their colleagues who had supported the late committee of safety, they excused some, and punished others by suspension, or exclusion, or imprisonment: orders were sent to Lambert, and the most active of his associates, to withdraw from the army to their homes, and then instructions were given to the magistrates to take them into custody. A council of state was appointed, and into the oath to be taken by the

[Footnote 1: Ludlow, 268, 276, 282, 287, 289, 290, 296, 298. Whitelock, 689, 690, 691. Clar. Pap. 625, 629, 636, 641, 647.]

[Sidenote a: A.D. 1659. Dec. 24.]

[Sidenote b: A.D. 1659. Dec. 26.]

members was introduced a new and most comprehensive abjuration of kingship and the family of Stuart. All officers commissioned during the interruption by any other authority than that of Monk were broken; the army was entirely remodelled; and the time of the house was daily occupied by the continued introduction of officers to receive their commissions in person from the hand of the speaker.[1]

In the mean while, Monk, to subdue or disperse the army of Lambert, had raised up a new and formidable enemy in his rear. Lord Fairfax was become a convert to the cause of monarchy; to him the numerous royalists in Yorkshire looked up as leader; and he, on the solemn assurance of Monk that he would join him within twelve days or perish in the attempt, undertook to call together his friends, and to surprise the city of York. On the first day of the new year,[a] each performed his promise. The gates of York were thrown open to Fairfax by the Cavaliers confined within its walls;[2] and Monk, with his army, crossed the Tweed on his march against the advanced posts of the enemy. Thus the flame of civil war was again kindled in the north; within two days it was extinguished. The messenger from parliament ordered Lambert's forces to withdraw to their respective quarters. Dispirited by the defection of the military in the south, they dared not disobey: at Northallerton the officers bade adieu with tears to their general; and Lambert retired in privacy to a house which he possessed in the county. Still, though the weather was

[Footnote 1: Journals, Dec. 26, Jan. 31.]

[Footnote 2: That the rising under Fairfax was in reality a rising of royalists, and prompted by the promises of Monk, is plain from the narrative of Monkton, in the Lansdowne MSS. No. 988, f. 320, 334. See also Price, 748.]

[Sidenote a: A.D. 1660. Jan. 1.]

severe, though the roads were deeply covered with snow, Monk continued[a] his march; and, at York, spent five days in consultation with Fairfax; but to the advice of that nobleman, that he should remain there, assume the command of their united forces, and proclaim the king, he replied that, in the present temper of his officers, it would prove a dangerous, a pernicious, experiment. On the arrival of what he had long expected, an invitation to Westminster, he resumed his march, and Fairfax, having received the thanks of the parliament, disbanded[b] his insurrectionary force.[1]

At York, the general had caned[c] an officer who charged him with the design of restoring the kingly government; at Nottingham, he prevented with difficulty the officers from signing an engagement to obey the parliament in all things "except the bringing in of Charles Stuart;" and at Leicester, he was compelled to suffer[d] a letter to be written in his name to the petitioners from Devonshire, stating his opinion that the monarchy could not be re-established, representing the danger of recalling the members excluded in 1648, and inculcating the duty of obedience to the parliament as it was then constituted.[2] Here he was met by two of the most active members, Scot and Robinson, who had been commissioned to accompany him during his journey, under the pretence of doing him honour, but, in reality, to sound his disposition, and to act as spies on his conduct. He received them with respect as the representatives of the sovereign authority; and so flattered were they by his attentions, so duped by his wariness, that they could not see through the veil which he spread over his intentions.

[Footnote 1: Price, 749-753. Skinner, 196, 200, 205. Journals, Jan. 6.]

[Footnote 2: Ibid. 754. Kennet's Register, 32.]

[Sidenote a: A.D. 1660. Jan. 12.]

[Sidenote b: A.D. 1660. Jan. 16.]

[Sidenote c: A.D. 1660. Jan. 19.]

[Sidenote d: A.D. 1660. Jan. 23.]

As he advanced, he received at every stage addresses from boroughs, cities, and counties, praying him to restore the excluded members, and to procure a free and a full parliament. With much affectation of humility, Monk referred the deputies to the two delegates of the supreme power, who haughtily rebuked them for their officiousness, while the friends of Monk laboured to keep alive their hopes by remote hints and obscure predictions.
[1]

To lull the jealousy of the parliament, Monk had taken with him from York no more than five thousand men, a force considerably inferior to that which was quartered in London and Westminster. But from St. Alban's he wrote[a] to the speaker, requesting that five of the regiments in the capital might be removed before his arrival, alleging the danger of quarrels and seduction, if his troops were allowed to mix with those who had been so recently engaged in rebellion. The order was instantly made; but the men refused[b] to obey. Why, they asked, were they to leave their quarters for the accommodation of strangers? Why were they to be sent from the capital, while their pay was several weeks in arrear? The royalists laboured to inflame the mutineers, and Lambert was on the watch, prepared to place himself at their head; but the distribution of a sum of money appeased their murmurs; they consented to march; and the next morning[c] the general entered at the head of his army, and proceeded to the quarters assigned to him at Whitehall.[2]

Soon after his arrival, he was invited to attend and

[Footnote 1: Price, 754. Merc. Polit. No. 604. Philips, 595. Journals, Jan. 16.]

[Footnote 2: Price, 755, 757, 758. Jour. Jan. 30. Skinner, 219-221. Philips, 594, 595, 596. Clar. Pap. iii. 666, 668. Pepys, i. 19, 21.]

[Sidenote a: A.D. 1660. Jan. 28.]

[Sidenote b: A.D. 1660. Feb. 2.]

[Sidenote c: A.D. 1660. Feb. 3.]

receive the thanks of the house. A chair had been placed for him within the bar: he stood uncovered behind it; and, in reply[a] to the speaker, extenuated his own services, related the answers which he had given to the addresses, warned the parliament against a multiplicity of oaths and engagements, prayed them not to give any share of power to the Cavaliers or fanatics, and recommended to their care the settlement of Ireland and the administration of justice in Scotland. If there was much in this speech to please, there was also much that gave offence. Scot observed that the servant had already learned to give directions to his masters.[1]

As a member of the council of state, he was summoned to abjure the house of Stuart, according to the late order of parliament. He demurred. Seven of the counsellors, he observed, had not yet abjured, and he wished to know their reasons, for the satisfaction of his own conscience. Experience had shown that such oaths were violated as easily as they were taken, and to him it appeared an offence against Providence to swear never to acquiesce in that which Providence might possibly ordain. He had given the strongest proofs of his devotion to parliament: if these were not sufficient, let them try him again; he was ready to give more.[2]

[Footnote 1: Journals, Feb. 6. New Parl. Hist. iii. 1575. Philips, 597. Price, 759. The Lord-general Monk, his Speech. Printed by J. Macock,

1660.]

[Footnote 2: Gumble, 228. Price, 759, 760. Philips, 595. About this time, a parcel of letters to the king, written by different persons in different ciphers, and intrusted to the care of a Mr. Leonard, was intercepted by Lockhart at Dunkirk, and sent by him to the council. When the writers were first told that the letters had been deciphered, they laughed at the information as of a thing impracticable; but were soon undeceived by the decipherer, who sent to them by the son of the bishop of Ely copies of their letters in cipher, with a correct interlineary explanation of each. They were astonished and alarmed; and, to save themselves from the consequences of the discovery, purchased of him two of the original letters at the price of three hundred pounds.—Compare Barwick's Life, 171, and App. 402, 412, 415, 422, with the correspondence on the subject in the Clarendon Papers, iii. 668, 681, 696, 700, 715. After this, all letters of importance were conveyed through the hands of Mrs. Mary Knatchbull, the abbess of the English convent in Gand.]

[Sidenote a: A.D. 1660. Feb. 6.]

The sincerity of this declaration was soon put to the test. The loyal party in the city, especially among the moderate Presbyterians, had long been on the increase. At the last elections the common council had been filled with members of a new character; and the declaration which they issued demanded "a full and free parliament, according to the ancient and fundamental laws of the land." Of the assembly sitting in Westminster, as it contained no representative from the city, no notice was taken; the taxes which it had imposed were not paid; and the common council, as if it had been an independent authority, received and answered addresses from the neighbouring counties. This contumacy, in the opinion of the parliamentary leaders, called for prompt and exemplary punishment; and it was artfully

suggested that, by making Monk the minister of their vengeance, they would open a wide breach between him and their opponents. Two hours after midnight he received[a] an order to march into the city, to arrest eleven of the principal citizens, to remove the posts and chains which had lately been fixed in the streets, and to destroy the portcullises and the gates. After a moment's hesitation, he resolved to obey, rather than hazard the loss of his commission. The citizens received him with groans and hisses; the soldiers murmured; the officers tendered their resignations. He merely replied that his orders left nothing to his discretion; but the reply was made with a sternness of

[Sidenote a: A.D. 1660. Feb. 9.]

tone, and a gloominess of countenance, which showed, and probably was intended to show, that he acted with reluctance and with self-reproach.[1]

As soon as the posts and chains were removed, Monk suggested, in a letter to the speaker, that enough had been done to subdue the refractory spirit of the citizens. But the parliamentary leaders were not satisfied: they voted that he should execute his former orders; and the demolition of the gates and portcullises was effected. The soldiers loudly proclaimed their discontent: the general, mortified and ashamed, though he had been instructed to quarter them in the city, led them back to Whitehall.[2] There, on the review of these proceedings, he thought that he discovered proofs of a design, first to commit him with the citizens, and then to discard him entirely. For the house, while he was so ungraciously employed, had received, with a show of favour, a petition from the celebrated Praise-God Barebone, praying that no man might sit in parliament, or hold any public office, who refused to abjure the pretensions of Charles Stuart, or of any other single person. Now this was the very case of the general, and his suspicions were confirmed by the reasoning of his confidential advisers.

With their aid, a letter to the speaker was prepared[a] the same evening, and approved the next morning by the council of officers. In it the latter were made to complain that they had been rendered the instruments of personal resentment against the citizens, and to require that by the following Friday every vacancy in the house should be filled up, preparatory to its

[Footnote 1: Journ. Feb. 9. Price, 761. Ludlow, ii. 336. Clar. Pap. iii. 674, 691. Gumble, 236. Skinner, 231-237.]

[Footnote 2: Journ. Feb. 9. Philips, 599.]

[Sidenote a: A.D. 1660. Feb. 10.]

subsequent dissolution and the calling of a new parliament. Without waiting for an answer, Monk marched back into Finsbury Fields: at his request, a common council (that body had recently been dissolved by a vote of the parliament) was summoned; and the citizens heard from the mouth of the general that he, who yesterday had come among them as an enemy by the orders of others, was come that day as a friend by his own choice; and that his object was to unite his fortune with theirs, and by their assistance to obtain a full and free parliament for the nation. This speech was received with the loudest acclamations. The bells were tolled; the soldiers were feasted; bonfires were lighted; and among the frolics of the night was "the roasting of the rump," a practical joke which long lived in the traditions of the city. Scot and Robinson, who had been sent to lead back the general to Whitehall, slunk away in secrecy, that they might escape the indignation of the populace.[1]

At Westminster, the parliamentary leaders affected a calmness and intrepidity which they did not feel. Of the insult offered to their authority they took no notice; but, as an admonition to Monk, they brought in a bill[a] to appoint his rival, Fleetwood, commander-in-chief in England and

Scotland. The intervention of the Sunday allowed more sober counsels to prevail.

[Footnote 1: Price, 765-768. Clar. Pap. iii. 681, 692, 714. Ludlow, 337. Gumble, 249. Skinner, 237-243. Old Parl. Hist. xxii. 94. Pepys, i. 24, 25. "At Strand-bridge I could at one time tell thirty-one fires; in King-street, seven or eight, and all along burning, and roasting, and drinking for rumps; there being rumps tied upon sticks, and carried up and down. The butchers at the May-pole in the Strand rang a peal with their knives, when they were going to sacrifice their rump. On Ludgate-hill there was one turning of the spit that had a rump tied to it, and another basting of it. Indeed it was past imagination."—Ibid. 28.]

[Sidenote a: A.D. 1660. Feb. 11.]

They solicited the general to return to Whitehall; they completed the bill for the qualifications of candidates and electors; and, on the day fixed by the letter of the officers, ordered[a] writs to be issued for the filling up of the vacancies in the representation. This measure had been forced upon them; yet they had the ingenuity to make it subservient to their own interest, by inserting a provision in the act, that no man should choose or be chosen, who had not already bound himself to support a republican form of government. But immediately the members excluded in 1648 brought forward their claim to sit, and Monk assumed the appearance of the most perfect indifference between the parties. At his invitation, nine of the leaders on each side argued the question before him and his officers; and the result was, that the latter expressed their willingness to support the secluded members, on condition that they should pledge themselves to settle the government of the army, to raise money to pay the arrears, to issue writs for a new parliament to sit on the 20th of April, and to dissolve themselves before that period. The general returned[b] to Whitehall; the

secluded members attended his summons; and, after a long speech, declaratory of his persuasion that a republican form of government and a moderate presbyterian kirk were necessary to secure and perpetuate the tranquillity of the nation, he advised them to go and resume their seats. Accompanied by a great number of officers, they walked to the house; the guard, under the command of Sir Anthony Ashley Cooper, opened to let them pass; and no opposition was made by the speaker or the members.[1] Hazlerig, however, and the

[Footnote 1: Journals, Feb. 11, 13, 15, 17, 21. Price, 768-773. Ludlow, ii. 345, 351, 353. Skinner, 256-264. Clar. Pap. 663, 682, 688. Gumble, 260, 263. Philips, 600. The number of secluded members then living was one hundred and ninety-four, of members sitting or allowed to sit by the orders of the house, eighty-nine.—"A Declaration of the True State of the Matter of Fact," 57.]

[Sideline a: A.D. 1660. Feb. 17.]

[Sideline b: A.D. 1660. Feb. 21.]

more devoted of his adherents, rose and withdrew—a fortunate secession for the royalists; otherwise, with the addition of those among the restored members who adhered to a commonwealth, the republicans might on many questions have still commanded a majority.[1]

To the Cavaliers, the conduct of Monk on this occasion proved a source of the most distressing perplexity. On the one hand, by introducing the secluded members he had greatly advanced the cause of royalty. For though Holles, Pierpoint, Popham, and their friends still professed the doctrines which they had maintained during the treaty in the Isle of Wight, though they manifested the same hatred of popery and prelacy, though they still inculcated the necessity of limiting the prerogative in the choice of the officers of state and in the command of the army, yet they were royalists by

principle, and had, several of them, made the most solemn promises to the exiled king of labouring strenuously for his restoration. On the other hand, that Monk at the very time when he gave the law without control, should declare so loudly in favour of a republican government and a presbyterian kirk, could not fail to alarm both Charles and his abettors.[2] Neither was this the only instance: to all, Cavaliers or republicans, who approached him to discover his intentions, he uniformly professed the same sentiments, occasionally confirming his professions with oaths and imprecations. To explain this inconsistency between

[Footnote 1: Hutchinson, 362.]

[Footnote 2: Clar. Hist. iii. 720, 721, 723, 724; Papers, ii. 698.]

the tendency of his actions and the purport of his language, we are told by those whom he admitted to his private counsels, that it was forced upon him by the necessity of his situation; that, without it, he must have forfeited the confidence of the army, which believed its safety and interest to be intimately linked with the existence of the commonwealth. According to Ludlow, the best soldier and statesman in the opposite party, Monk had in view an additional object, to deceive the suspicions and divert the vigilance of his adversaries; and so successfully had he imposed on the credulity of many (Hazlerig himself was of the number), that, in defiance of every warning, they blindly trusted to his sincerity, till their eyes were opened by the introduction of the secluded members.[1]

In parliament the Presbyterian party now ruled without opposition. They annulled[a] all votes relative to their own expulsion from the house in 1648; they selected a new council of state, in which the most influential members were royalists; they appointed Monk commander-in-chief of the forces in the three kingdoms, and joint commander of the fleet with Admiral Montague; they granted him the sum of twenty thousand pounds in lieu of

the palace at Hampton Court, settled on him by the republican party; they discharged[b] from confinement, and freed from the penalty of sequestration, Sir George Booth and his associates, a great number of Cavaliers, and the Scottish lords taken after the battle at Worcester; they restored the common council, borrowed sixty thousand pounds for the immediate pay of the army,

[Footnote 1: Price, 773. Ludlow, 349, 355. Clar. Pap. iii. 678, 697, 703, 711.]

[Sidenote a: A.D. 1660. Feb. 21.]

[Sidenote b: A.D. 1660. March.]

declared the Presbyterian confession of faith to be that of the church of England, ordered copies of the solemn league and covenant to be hung up in all churches, offered rewards for the apprehension of Catholic priests, urged the execution of the laws against Catholic recusants, and fixed the 15th of March for their own dissolution, the 25th of April for the meeting of a new parliament.[1]

Here, however, a serious difficulty arose. The House of Commons (according to the doctrine of the secluded members, it could be nothing more) was but a single branch of the legislature. By what right could it pretend to summon a parliament? Ought not the House of Lords, the peers who had been excluded in 1649, to concur? Or rather, to proceed according to law, ought not the king either to appoint a commission to hold a parliament, as was usually done in Ireland, or to name a guardian invested with such power, as was the practice formerly, when our monarchs occasionally resided in France? But, on this point, Monk was inflexible. He placed guards at the door of the House of Lords to prevent the entrance of the peers; and he refused to listen to any expedient which might imply an acknowledgment of the royal authority. To the arguments urged by others,

he replied,[a] that the parliament according to law determined by the death of Charles I.; that the present house could justify its sitting on no other ground but that of necessity, which did not apply to the House of Lords; and that it was in vain to expect the submission of the army to a parliament called by royal authority. The military had, with reluctance, consented to the restoration of

[Footnote 1: Journals, passim.]

[Sidenote a: A.D. 1660. March 3.]

the secluded members; and to ask more of them at present was to hazard all the advantages which had hitherto been obtained.[1]

Encouraged by the downfall of the republicans, the royalists throughout the country expressed their sentiments without restraint. In some places Charles was proclaimed by the populace; several ministers openly prayed for him in the churches: the common council, in their address, declared themselves not averse to his restoration; and the house itself was induced to repeal[a] the celebrated engagement in favour of a commonwealth, without a single person or a house of peers, and to embody under trusty officers the militia of the city and the counties, as a counterpoise to the republican interest in the army. The judges of the late king, and the purchasers of forfeited property, began to tremble. They first tempted the ambition of the lord-general with the offer of the sovereign authority.[2] Rejected by him, they appealed to the military; they represented the loss of their arrears,

[Footnote 1: Clar. Pap. iii. 704. Ludlow, 364, 365. Price, 773.]

[Footnote 2: Gumble, 270. Two offers of assistance were made to the general, on the supposition that he might aspire to the supreme power; one from the republicans, which I have mentioned, another from Bordeaux, the

French ambassador, in the name of Cardinal Mazarin. On one of these offers he was questioned by Sir Anthony Ashley Cooper in the council of state. If we may believe Clarges, one of his secret advisers, it was respecting the former which Clarges mentioned to Cooper. With respect to the offer from Bordeaux, he tells us that it was made through Clarges himself, and scornfully rejected by Monk, who nevertheless consented to receive a visit from Bordeaux, on condition that the subject should not be mentioned.—Philips, 602, 604. Locke, on the contrary, asserts that Monk accepted the offer of the French minister; that his wife, through loyalty to the king, betrayed the secret; and that Cooper put to the general such searching questions that he was confused, and, in proof of his fidelity, took away the commissions of several officers of whom the council was jealous.—Memoirs of Shaftesbury, in Kennet's Register, 86. Locke, ix, 279. See note (K).]

[Sidenote a: A.D. 1660. March 10.]

and of the property which they had acquired, as the infallible consequences of the restoration of the royal exile; and they so far wrought on the fears of the officers, that an engagement to oppose all attempts to set up a single person was presented[a] to Monk for his signature, with a request that he would solicit the concurrence of the parliament. A second council of officers was held the next morning;[b] the general urged the inexpediency of troubling the house with new questions, when it was on the point of dissolving itself; and by the address and influence of his friends, though with considerable difficulty, he procured the suppression of the obnoxious paper. In a short time he ordered the several officers to join their respective regiments, appointed a commission to inspect and reform the different corps, expelled all the officers whose sentiments he had reason to distrust, and then demanded and obtained from the army an engagement to

abstain from all interference in matters of state, and to submit all things to the authority of the new parliament.[1]

Nineteen years and a half had now elapsed since the long parliament first assembled—years of revolution and bloodshed, during which the nation had made the trial of almost every form of government, to return at last to that form from which it had previously departed. On the 16th of March, one day later than was originally fixed, its existence, which had been illegally prolonged since the death of Charles I., was terminated[c] by its own act.[2] The reader is already acquainted with its history. For the glorious stand

[Footnote 1: Philips, 603, 606. Price, 781. Kennet's Reg. 113. Thurloe, vii. 852, 859, 870. Pepys, i. 43. Skinner, 279-284.]

[Footnote 2: Journals, March 16.]

[Sidenote a: A.D. 1660. March 14.]

[Sidenote b: A.D. 1660. March 15.]

[Sidenote c: A.D. 1660. March 16.]

which it made against the encroachments of the crown, it deserves both admiration and gratitude; its subsequent proceedings assumed a more ambiguous character; ultimately they led to anarchy and military despotism. But, whatever were its merits or demerits, of both posterity has reaped the benefit. To the first, we are indebted for many of the rights which we now enjoy; by the second, we are warned of the evils which result from political changes effected by violence, and in opposition to the habits and predilections of the people.

Monk had now spent more than two months in England, and still his intentions were covered with a veil of mystery, which no ingenuity, either of the royalists or of the republicans, could penetrate. Sir John Grenville, with

whom the reader is already acquainted, paid frequent visits to him at St. James's; but the object of the Cavalier was suspected, and his attempts[a] to obtain a private interview were defeated by the caution of the general. After the dissolution, Morrice, the confidential friend of both, brought them together, and Grenville delivered to Monk a most flattering letter from the king. He received and perused it with respect. This was, he observed, the first occasion on which he could express with safety his devotion to the royal cause; but he was still surrounded with men of hostile or doubtful sentiments; the most profound secrecy was still necessary; Grenville might confer in private with Morrice, and must consent to be himself the bearer of the general's answer. The heads of that answer were reduced to writing. In it Monk prayed the king to send him a conciliatory letter, which, at the proper season, he might lay before the parliament; for himself he asked

[Sidenote a: A.D. 1660. March 10.]

nothing; he would not name, as he was desired, his reward; it was not for him to strike a bargain with his sovereign; but, if he might express his opinion, he advised Charles to promise a general or nearly general pardon, liberty of conscience, the confirmation of the national sales, and the payment of the arrears due to the army. As soon as this paper had been read, he threw it into the fire, and bade Grenville rely on his memory for its contents.[1]

By Charles at Brussels the messenger was received as an angel from heaven. The doubts which had so long tormented his mind were suddenly removed; the crown, contrary to expectation, was offered[a] without previous conditions; and nothing more was required than that he should aid with his pen the efforts of the general; but when he communicated the glad tidings to Ormond, Hyde, and Nicholas, these counsellors discovered that the advice, suggested by Monk, was derogatory to the interests of the throne

and the personal character of the monarch, and composed a royal declaration which, while it professed to make to the nation the promises recommended by Monk, in reality neutralized their effect, by subjecting them to such limitations as might afterwards be imposed by the wisdom of parliament. This paper was enclosed[b] within a letter to the speaker of the House of Commons; another letter was addressed to the House of Lords; a third to Monk and the army; a fourth to Montague and the navy; and a fifth to the lord mayor and the city. To the general, open copies were transmitted, that he might deliver or destroy the originals

[Footnote 1: Clar. Hist. iii. 734-736. Price, 785. Philips, 605. Clar. Pap. iii. 706, 711. From the last authorities it is plain that Mordaunt was intrusted with the secret as well as Grenville—also a Mr. Herne, probably a fictitious name.]

[Sidenote a: A.D. 1660. March 26.] [Sidenote b: A.D. 1660. April 2.]

as he thought fit. Notwithstanding the alterations made at Brussels, he professed himself satisfied with the declaration, and ordered[a] Grenville to keep the papers in his custody, till the proper season should arrive.[1]

In the mean while, the writs for the new parliament had been issued; and, as there was no court to influence, no interference of the military to control the elections, the result may be fairly taken to express the sense of the country. The republicans, the Cavaliers, the Presbyterians, all made every effort in their power to procure the return of members of congenial sentiments. Of the three parties, the last was beyond comparison the most powerful, had not division paralyzed its influence. The more rigid Presbyterians, though they opposed the advocates of the commonwealth because they were sectaries, equally deprecated the return of the king, because they feared the restoration of episcopacy. A much greater number, who still adhered with constancy to the solemn league and covenant,

deemed themselves bound by it to replace the king on the throne, but under the limitations proposed during the treaty in the Isle of Wight. Others, and these the most active and influential, saw no danger to be feared from a moderate episcopacy; and, anxious to obtain honours and preferment, laboured

[Footnote 1: Clar. iii. 737-740, 742-751. Price, 790. Monk had been assured, probably by the French ambassador, that the Spaniards intended to detain the king at Brussels as a hostage for the restoration of Jamaica and Dunkirk. On this account he insisted that the king should leave the Spanish territory, and Charles, having informed the governor of his intention to visit Breda, left Brussels about two hours, if Clarendon be correct, before an order was issued for his detention. The several letters, though written and signed at Brussels, were dated from Breda, and given to Grenville the moment the king placed his foot on the Dutch territory.—Clar. 740.]

[Sidenote a: A.D. 1660. April 10.]

by the fervour of their present loyalty to deserve the forgiveness of their past transgressions. These joined with the Cavaliers; their united efforts bore down all opposition; and, in most places, their adversaries either shrunk from the contest, or were rejected by overwhelming majorities.[1]

But the republicans sought for aid in another direction. Their emissaries penetrated into the quarters of the military, where they lamented the approaching ruin of the good old cause, regretted that so many sacrifices had been made, so much blood had been shed in vain, and again insinuated to the officers, that they would forfeit the lands which they had purchased, to the privates, that they would be disbanded and lose their arrears.[2] A spirit of discontent began to spread through several corps, and a great number of officers repaired to the metropolis. But Monk, though he still professed himself a friend to republican government, now ventured to

assume a bolder tone. The militia of the city, amounting to fourteen thousand men, was already embodied under his command; he had in his pocket a commission from Charles, appointing him lord-general over all the military in the three kingdoms; and he had resolved, should circumstances compel him to throw off the mask, to proclaim the king, and to summon every faithful subject to repair to the royal standard. He first ordered[a] the officers to return to their posts; he then directed the promise of submission to the new parliament to be tendered to

[Footnote 1: Thurloe, vii, 866, 887. Price, 787. Carte's Letters, ii. 326. Clar. Pap. iii. 705, 714, 726, 730, 731, 733. It appears that many of the royalists were much too active. "When the complaint was made to Monk, he turned it off with a jest, that as there is a fanatic party on the one side, so there is a frantic party on the other" (721, 722).]

[Footnote 2: Thurloe, vii. 870.]

[Sidenote a: A.D. 1660. April 9.]

the privates, and every man who refused to make it was immediately discharged.[1] At the same time, the friends of the commonwealth resolved to oppose Lambert, once the idol of the soldiery, to Monk. Lambert, indeed, was a prisoner in the Tower, confined by order of the council, because he had refused to give security for his peaceable behaviour; but, with the aid of a rope, he descended[a] from the window of his bed-chamber, was received by eight watermen in a barge, and found a secure asylum in the city. The citizens, however, were too loyal to listen to the suggestions of the party; he left his concealment, hastened[b] into Warwickshire, solicited, but in vain, the co-operation of Ludlow, collected from the discontented regiments six troops of horse and some companies of foot, and expected in a few days to see himself at the head of a formidable force. But Ingoldsby, who, of a regicide, was become a royalist, met him[c] near Daventry with an equal

number; a troop of Lambert's men under the command of the younger Hazlerig, passed over to his opponents; and the others, when he gave the word to charge, pointed their pistols to the ground. The unfortunate commander immediately turned and fled; Ingoldsby followed; the ploughed land gave the advantage to the stronger horse; the fugitive was overtaken, and, after an ineffectual effort to awaken the pity of his former comrade, submitted to his fate. He was conducted[d] back to the Tower, at the time when the trained bands, the volunteers, and the auxiliaries raised in the city, passed in review before the general in Hyde Park. The auxiliaries drank the king's health on their knees; Lambert was at the moment driven under Tyburn

[Footnote 1: Clar. Pap. iii. 715.]

[Sidenote a: A.D. 1660. April 11.]

[Sidenote b: A.D. 1660. April 13.]

[Sidenote c: A.D. 1660. April 21.]

[Sidenote d: A.D. 1660. April 24.]

and the spectators hailed with shouts and exclamations the disgrace of the prisoner.[1]

The Convention parliament (so it was called, because it had not been legally summoned) met[a] on the appointed day, the 25th of April. The Presbyterians, by artful management, placed Sir Harbottle Grimstone, one of their party, in the chair; but the Cavaliers, with their adherents, formed a powerful majority, and the new speaker, instead of undertaking to stem, had the prudence to go along with, the stream. Monk sat as representative of Devonshire, his native county.

To neutralize the influence of the Cavaliers among the Commons, the Presbyterian peers who sat in 1648, assembled in the House of Lords, and

chose the earl of Manchester for their speaker. But what right had they exclusively to constitute a house of parliament? They had not been summoned in the usual manner by writ; they could not sit as a part of the long parliament, which was now at least defunct; and, if they founded their pretensions on their birthright, as *consilarii nati*, other peers were in possession of the same privilege. The question was propounded to the lord-general, who replied that he had no authority to determine the claims of any individual. Encouraged by this answer, a few of the excluded peers attempted to take their seats, and met with no opposition; the example was imitated by others, and in a few days the Presbyterian lords did not amount to more than one-fifth of the house. Still, however, to avoid cavil, the peers who sat in the king's parliament at Oxford, as well as those whose patents bore date after the

[Footnote 1: Kennet's Reg. 120. Price, 792, 794. Ludlow, 379. Philips, 607.

Clar. Pap. iii. 735.]

[Sidenote a: A.D. 1660. April 25.]

commencement of the civil war, abstained for the present from demanding admission.[1]

Monk continued to dissemble. By his direction Grenville applied to a member, who was entering the council-chamber, for an opportunity of speaking to the lord-general. Monk came to the door, received from him a letter, and, recognizing on the seal the royal arms, commanded the guards to take care that the bearer did not depart. In a few minutes Grenville was called in, interrogated by the president as to the manner in which he became possessed of the letter, and ordered to be taken into custody. "That is unnecessary," said Monk; "I find that he is my near kinsman, and I will be security for his appearance."

The ice was now[a] broken. Grenville was treated not as a prisoner, but a confidential servant of the sovereign. He delivered to the two houses the letters addressed to them, and received in return a vote of thanks, with a present of five hundred pounds. The letter for the army was read by Monk to his officers, that for the navy by Montague to the captains under his command, and that for the city by the lord mayor to the common council in the Guildhall. Each of these bodies voted an address of thanks and congratulation to the king.

The paper which accompanied the letters to the two houses,—1. granted a free and general pardon to all persons, excepting such as might afterwards be excepted by parliament; ordaining that every division of party should cease, and inviting all who were the subjects of the same sovereign to live in union and harmony; 2. it declared a liberty to tender consciences, and that no man should be disquieted or called in

[Footnote 1: Lords' Journ. xi. 4, 5, 6.]

[Sidenote a: A.D. 1660. May 1.]

question for differences of opinion in matters of religion which did not disturb the peace of the kingdom, and promised moreover the royal assent to such acts of parliament as should be offered for the full granting of that indulgence: 3. it alluded to the actions at law to which the actual possessors of estates purchased by them or granted to them during the revolution might be liable, and purposed to leave the settlement of all such differences to the wisdom of parliament, which could best provide for the just satisfaction of the parties concerned: lastly, it promised to liquidate the arrears of the army under General Monk, and to retain the officers and men in the royal service upon the same pay and conditions which they actually enjoyed. This was the celebrated declaration from Breda, the royal charter on the faith of which Charles was permitted to ascend the throne of his fathers.[1]

Encouraged by the bursts of loyalty with which the king's letters and declaration had been received, his agents made it their great object to procure his return to England before limitations could be put on the prerogative. From the Lords, so numerous were the Cavaliers in the upper house, no opposition could be feared; and the temper already displayed by the Commons was calculated to satisfy the wishes of the most ardent champions of royalty. The two houses voted, that by the ancient and fundamental laws of the realm the government was and ought to be by king, lords, and commons; they invited Charles to come and receive the crown to which he was born; and, to relieve his more urgent necessities, they sent him a present of fifty thousand pounds, with ten thousand pounds for his brother the duke of York, and five

[Footnote 1: Lords' Journ. xi. 7, 10.]

thousand pounds for the duke of Gloucester. They ordered the arms and symbols of the commonwealth to be effaced, the name of the king to be introduced into the public worship, and his succession to be proclaimed as having commenced from the day of his father's death.[1] Hale, the celebrated lawyer, ventured, with Prynne, to call[a] upon the House of Commons to pause in their enthusiasm, and attend to the interests of the nation. The first moved the appointment of a committee to inquire what propositions had been offered by the long parliament, and what concessions had been made by the last king in 1648; the latter urged the favourable opportunity of coming to a mutual and permanent understanding on all those claims which had been hitherto subjects of controversy between the two houses and the crown. But Monk rose, and strongly objected to an inquiry which might revive the fears and jealousies, the animosities and bloodshed, of the years that were past. Let the king return while all was peace and harmony. He would come alone; he could bring no army with him; he would be as much at their mercy in Westminster as in Breda.

Limitations, if limitations were necessary, might be prepared in the interval, and offered to him after his arrival. At the conclusion of this speech, the house resounded with the acclamations of the Cavaliers; and the advocates of the inquiry, awed by the authority of the general and the clamour of their opponents, deemed it prudent to desist.[2]

Charles was as eager to accept, as the houses had been to vote, the address of invitation. From Breda he had gone to the Hague, where the States, anxious to atone for their former neglect, entertained him with

[Footnote 1: Journals of both houses.]

[Footnote 2: Burnet, i. 88. Ludlow, iii. 8, 9.]

[Sidenote a: A.D. 1660. May 7.]

unusual magnificence. The fleet, under Montague,[1] had anchored in the Bay of Scheveling; and Charles, as soon as the weather permitted, set sail[a] for Dover, where Monk, at the head of the nobility and gentry from the neighbouring counties, waited to receive the new sovereign. Every eye was fixed on their meeting;[b] and the cheerful, though dignified, condescension of the king, and the dutiful, respectful homage of the general, provoked the applause of the spectators. Charles embraced him as his benefactor, bade him walk by his side, and took him into the royal carriage. From Dover to the capital the king's progress bore the appearance of a triumphal procession. The roads were covered with crowds of people anxious to testify their loyalty, while they gratified their curiosity. On Blackheath he was received[c] by the army in battle array, and greeted with acclamations as he passed through the ranks; in St. George's Fields the lord mayor and aldermen invited him to partake of a splendid collation in a tent prepared for the purpose; from London Bridge to Whitehall the houses were hung with tapestry, and the streets lined by the trained bands, the regulars,

and the officers who had served under Charles I. The king was preceded by troops of horsemen, to the amount of three thousand persons, in splendid dresses, attended by trumpeters and footmen; then came the lord mayor, carrying the naked sword, after him the lord-general and the duke of Buckingham, and lastly the king himself, riding between his two brothers. The cavalcade was closed by the general's life-guard, five regiments

[Footnote 1: Montague had long been in correspondence with the king, and disapproved of the dissimulation of Monk, so far as to call him in private a "thick-sculled fool;" but thought it necessary to flatter him, as he could hinder the business.—Pepys, i. 69.]

[Sidenote a: A.D. 1660. May 23.]

[Sidenote b: A.D. 1660. May 25.]

[Sidenote c: A.D. 1660. May 29.]

of horse, and two troops of noblemen and gentlemen. At Whitehall Charles dismissed the lord mayor, and received in succession the two houses, whose speakers addressed him in strains of the most impassioned loyalty, and were answered by him with protestations of attachment to the interests and liberties of his subjects. It was late in the evening before the ceremonies of this important day were concluded; when Charles observed to some of his confidants "It must sorely have been my fault that I did not come before; for I have met with no one to-day who did not protest that he always wished for my restoration." [1]

That the re-establishment of royalty was a blessing to the country will hardly be denied. It presented the best, perhaps the only, means of restoring public tranquillity amidst the confusion and distrust, the animosities and hatreds, the parties and interests, which had been generated by the events of the civil war, and by a rapid succession of opposite and ephemeral governments. To Monk belongs the merit of having, by his foresight and

caution, effected this desirable object without bloodshed or violence; but to his dispraise it must also be recorded, that he effected it without any previous stipulation on the part of the exiled monarch. Never had so fair an opportunity been offered of establishing a compact between the sovereign and the people, of determining, by mutual consent, the legal rights of the crown, and of securing from future encroachment the freedom of the people. That Charles would have consented to such conditions,

[Footnote 1: Whitelock, 702. Kennet's Reg. 163. Clarendon's Hist. iii. 772. Clarendon's Life by Himself, Continuation, p. 7, 8. Evelyn's Diary, ii. 148.]

we have sufficient evidence; but, when the measure was proposed, the lord-general declared himself its most determined opponent. It may have been, that his cautious mind figured to itself danger in delay; it is more probable that he sought to give additional value to his services in the eyes of the new sovereign. But, whatever were the motives of his conduct, the result was, that the king ascended the throne unfettered with conditions, and thence inferred that he was entitled to all the powers claimed by his father at the commencement of the civil war. In a few years the consequence became manifest. It was found that, by the negligence or perfidy of Monk, a door had been left open to the recurrence of dissension between the crown and the people; and that very circumstance which Charles had hailed as the consummation of his good fortune, served only to prepare the way for a second revolution, which ended in the permanent exclusion of his family from the government of these kingdoms.

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APPENDIX.

NOTE A, p. 117.

Nothing more clearly shows the readiness of Charles to engage in intrigue, and the subtleties and falsehood to which he could occasionally descend, than the history of Glamorgan's mission to Ireland. In this note I purpose to lay before the reader the substance of the several documents relating to the transaction.

On the 1st of April, 1644, the king gave to him, by the name of Edward Somerset, alias Plantagenet, Lord Herbert, Baron Beaufort, &c., a commission under the great seal, appointing him commander-in-chief of three armies of Englishmen, Irishmen, and foreigners; authorizing him to raise moneys on the securities of the royal wardships, customs, woods, &c.; furnishing him with patents of nobility from the title of marquis to that of baronet, to be filled up with names at his discretion; promising to give the Princess Elizabeth to his son Plantagenet in marriage with a dower of three hundred thousand pounds, a sum which did not much exceed what Herbert and his father had already spent in the king's service, and in addition to confer on Herbert himself the title of duke of Somerset, with the George and blue ribbon.—From the Nuncio's Memoirs in Birch's Inquiry, p. 22.

This commission was granted in consequence of an understanding with the deputies from the confederate Catholics, who were then at Oxford, and its object is fully explained by Herbert himself in a letter to Clarendon, to be laid before Charles II., and dated June 11, 1660. "For his majesty's better information, through your favour, and by the channel of your lordship's understanding things rightly, give me leave to acquaint you with one chief key, wherewith to open the secret passages between his late majesty and myself, in order to his service; which was no other than a real exposing of myself to any expense or difficulty, rather than his just design should not take place; or, in taking effect, that his honour should suffer; an effect, you

may justly say, relishing more of a passionate and blind affection to his majesty's service, than of discretion and care of myself. This made me take a resolution that he should have seemed angry with me at my return out of Ireland, until I had brought him into a posture and power to own his commands, to make good his instructions, and to reward my faithfulness and zeal therein.

"Your lordship may well wonder, and the king too, at the amplitude of my commission. But when you have understood the height of his majesty's design, you will soon be satisfied that nothing less could have made me capable to effect it; being that one army of ten thousand men was to have come out of Ireland through North Wales; another of a like number, at least, under my command in chief, have expected my return in South Wales, which Sir Henry Gage was to have commanded as lieutenant-general; and a third should have consisted of a matter of six thousand men, two thousand of which were to have been Liegeois, commanded by Sir Francis Edmonds, two thousand Lorrainers, to have been commanded by Colonel Browne, and two thousand of such French, English, Scots, and Irish, as could be drawn out of Flanders and Holland. And the six thousand were to have been, by the prince of Orange's assistance, in the associated counties; and the governor of Lyne, cousin german to Major Bacon, major of my own regiment, was to have delivered the town unto them.

"The maintenance of this army of foreigners was to have come from the pope, and such Catholick princes as he, should have drawn into it, having engaged to afford and procure thirty thousand pounds a month; out of which the foreign army was first to be provided for, and the remainder to be divided among the other armies. And for this purpose had I power to treat with the pope and Catholick princes with particular advantages promised to Catholicks for the quiet enjoying their religion, without the penalties which the statutes in force had power to inflict upon them. And my instructions for

this purpose, and my powers to treat and conclude thereupon, were signed by the king under his pocket signet, with blanks for me to put in the names of pope or princes, to the end the king might have a starting-hole to deny the having given me such commissions, if excepted against by his own subjects; leaving me as it were at stake, who for his majesty's sake was willing to undergo it, trusting to his word alone."—Clarendon Papers, ii. 201, 202.

But his departure was delayed by Ormond's objections to the conditions of peace; and the king, to relieve himself from the difficulty, proposed to Herbert to proceed to Ireland, and grant privately to the Catholics those concessions which the lord-lieutenant hesitated to make, on condition of receiving in return an army of ten thousand men for the royal service. In consequence, on the 27th of December, Charles announced to Ormond that Herbert was going to Ireland under an engagement to further the peace.—Carte, ii. App. p. 5.

1645, January 2nd. Glamorgan (he was now honoured with the title of earl of Glamorgan) received these instructions. "First you may ingage y'r estate, interest and credit that we will most really and punctually performe any our promises to the Irish, and as it is necessary to conclude a peace suddainely, soe whatsoever shall be consented unto by our lieutenant the marquis of Ormond. We will dye a thousand deaths rather than disannull or break it; and if vpon necessity any thing to be condescended unto, and yet the lord marquis not willing to be seene therein, as not fitt for us at the present publickely to owne, doe you endeavour to supply the same."—Century of Inventions by Mr. Partington, original letters and official papers, xxxv. Then follows a promise to perform any promise made by him to Ormond or others, &c.

January 6. He received a commission to levy any number of men in Ireland and other parts beyond the sea, with power to appoint officers, receive the king's rents, &c.—Birch, p. 18, from the Nuncio's Memoirs, fol. 713.

January 12. He received another warrant of a most extraordinary description, which I shall transcribe from a MS. copy in my possession, attested with the earl's signature, and probably the very same which he gave to Ormond after his arrest and imprisonment.

"CHARLES REX

"Charles by the grace of God king of England Scotland France and Ireland Defender of the Fayth, &c. To our Right trusty and Right well beloved Cossin Edward Earle of Glamorgan greetinge. Whereas wee haue had sufficient and ample testimony of y'r approued wisdom and fideliti. Soe great is the confidence we repose in yo'w as that whatsoeuer yo'w shall perform as warranted only under our signe manuall pockett signett or private marke or even by woorde of mouthe w'thout further cerimonii, wee doo in the worde of a kinge and a cristian promis to make good to all intents and purposes as effectually as if your authoriti from us had binne under our great seale of England w'th this advantage that wee shall esteem our self farr the moore obliged to yo'w for y'r gallantry in not standing upon such nice tearms to doe us service w'h we shall God willing rewarde. And althoughe yo'w exceed what law can warrant or any power of ours reach unto, as not knowinge what yo'w may have need of, yet it being for our service, wee oblige ourself not only to give yo'w our pardon, but to mantayne the same w'th all our might and power, and though, either by accident yo'w loose or by any other occasion yo'w shall deem necessary to deposit any of our warrants and so wante them at yo'r returne, wee

faythfully promise to make them good at your returne, and to supply any thinge wheerin they shall be founde defective, it not being convenient for us at this time to dispute upon them, for of what wee haue heer sett downe yo'w may rest confident, if theer be fayth or truth in man; proceed theerfor cheerfully, spedelj, and bouldly, and for your so doinge this shal be yo'r sufficient warrant. Given at our Court at Oxford under our signe manuall and privat signet this 12 of January 1644.

"GLAMORGAN.

"To our Right trustj and Right well beloved cosin
Edward Earle of Glamorgan."

Indorsed, "The Earle of Glamorgan's further authoritj."

Feb. 12. Glamorgan had left Oxford, and was raising money in Wales, when Charles sent him other despatches, and with them a letter desiring him to hasten to Ireland. In it he acknowledges the danger of the undertaking, that Glamorgan had already spent above a million of crowns in his service, and that he was bound in gratitude to take care of him next to his own wife and children. "What I can further thinke at this point is to send y'w the blue ribben, and a warrant for the title of duke of Somerset, both w'ch accept and make vse of at your discretion, and if you should deferre y'e publishing of either for a whyle to avoyde envye, and my being importuned by others, yet I promise yo'r antiquitie for y'e one and your pattent for the other shall bear date with the warrants."—*Century of Inventions*, p. xxxiv. On the 18th of August, 1660, the marquess of Hertford complained that this patent was injurious to him, as he claimed the tide of Somerset. Glamorgan, then marquess of Worcester, readily surrendered it on the 3rd of September, and his son was created duke of Beaufort.

On March 12, the king wrote to him the following letter:—

"HERBERT,

"I wonder you are not yet gone for Ireland; but since you have stayed all this time, I hope these will ouertake you, whereby you will the more see the great trust and confidence I repose in your integrity, of which I have had soe long and so good experience; commanding yow to deale with all ingenuity and freedome with our lieutenant of Ireland the marquess of Ormond, and on the word of a king and a Christian I will make good any thing which our lieutenant shall be induced unto upon your persuasion; and if you find it fitting, you may privately shew him these, which I intend not as obligatory to him, but to myselfe, and for both your encouragements and warrantise, in whom I repose my cheefest hopes, not having in all my kingdomes two such subjects; whose endeauours joining, I am confident to be soone drawn out of the mire I am now enforced to wallow in."—Century of Inventions, xxxviii.

What were the writings meant by the word "*these*" which Glamorgan might show to Ormond if he thought fitting? Probably the following warranty dated at Oxford on the same day.

"CHARLES R.

"Charles by the Grace of God King of England Scotland France and Ireland Defender of the Fayth &c. To our right trusty and right welbeloved Cosin Edward earle of Glamorgan Greeting. We reposing great and espitiall trust, and confidence in y'r approved wisdom, and fidelity doe by these (as firmly as under our great seale to all intents and purposes) Authorise and give you power to treat and conclude w'th the Confederat Romaine Catholikes in our Kingdom of Ireland, if vpon necessity any thing be to be condescended vnto wherein our Lieutenant can not so well be seene in as not fitt for vs at the present publikely to owne, and therefore we charge you to proceede according to this our warrant w'th all possible secresie, and for

whatsoever you shall engage your selfe, vpon such valuable considerations as you in y'r iudgement shall deeme fitt, we promise in the word of a King and a Christian to ratifie and performe the same, that shall be graunted by you, and vnder your hand and seale, the sayd confederat Catholikes having by theyr supplies testified theyre zeale to our service, and this shall be in eache particular to you a sufficient warrant. Given at our Court at Oxford, under our signett and Royall signature the twelfe day of Marche in the twentieth year of our Raigne 1644.

To our Right Trusty and right welbeloved Cosin,

Edward Earle of Glamorgan."

Some writers have attempted to dispute the authenticity of this warrant, because though it was inserted verbatim in Glamorgan's treaty with the confederates, he did not produce it at the requisition of the council at Dublin, under the excuse that he had deposited it with the Catholics at Kilkenny. But that this was the truth, appears from the Nuncio's Memoirs: "a sua majestate mandatum habuit, cujus originate regiâ manu subscriptum Glamorganae comes deposuit apud confoederatos Catholicos," (fol. 1292, apud Birch, 215); and if better authority be required, I have in my possession the original warrant itself, with the king's signature and private seal, bearing the arms of the three kingdoms, a crown above, and C.R. on the sides, and indorsed in the same handwriting with the body of the warrant, "The Earle of Glamorgan's espetiall warrant for Ireland." Of this original the above is a correct copy.

April 30. The king having heard that Rinuccini had been appointed nuncio, and was on his way to Ireland, sent to Glamorgan a letter for that prelate and another for the pope. The contents of the second are unknown; the first is copied in the Nuncio's Memoirs, "Nous ne doubtons point, que les choses n'yront bien, et que les bonnes intentions commencés par effect

du dernier pape ne s'accompliront par celuys icy, et par vos moyens, en notre royaume d'Irlande et de Angleterre."—Birch 28. He then requests the nuncio to join with Glamorgan, and promises to accomplish on the return of the latter, whatever they shall have resolved together.—Ibid.

The king, on his return to Oxford, after the disastrous campaign of 1645, still placed his principal reliance on the mission of Glamorgan; and, to induce the court of Rome to listen to the proposals of that envoy, wrote, with his own hand, the two following letters, of which the originals still exist in the Archivio Vaticano, one to the pope himself, the other to Cardinal Spada, requesting of both to give credit to Glamorgan or his messenger, and engaging the royal word to fulfil whatever should be agreed upon by Glamorgan, in the name of his sovereign:—

"**BEATISSIME PATER,**

"Tot tantaque testimonia fidelitatis et affectus consanguinei nostri comitis Glamorganiae jamdudum accepimus, eamque in illo fiduciam merito reponimus, ut Sanctitas Vestra ei fidem merito praebere possit in quacumque re, de qua per se vel per alium nostro nomine cum Sanctitate Vestra tractaturus sit. Quaecumque vero ab ipso certo statuta fuerint, ea munire et confirmare pollicemur. In cujus testimonium brevissimas has scripsimus, manu et sigillo nostro munitas, qui nihil (potius) habemus in votis, quam ut fevore vestro in eum statum redigamur, quo palam profiteamur nos.

"Sanctitatis Vestrae

"Humilimum et obedientissimum servum,

"Apud Curiam nostram, CHARLES R.
Oxoniae, Oct. 20, 1645."

Superscription—

"Beatissimo Patri Innocentio decimo Pontifici Maximo."

"Eminentissime Domine, Pauca scripsimus Beatissimo Patri, de fide adhibenda consanguineo nostro comiti Glamorganiae, et cuilibet ab eo delegato, quem ut Eminentia vestra pariter omni favore prosequatur, rogamus; certoque credat nos ratum habituros quicquid a praedictae comite, vel suo delegato, cum Sanctissimo Patre vel Eminentia vestra transactum fuerit.

"Eminentiae Vestrae,

"Apud Curiam nostram, Fidelissimus Amicus,
Oxoniae, Oct. 20, 1645." CHARLES R.

Superscription—

"Eminentissimo Domino et Consanguineo nostro, Dño Cardinali Spada."

After the discovery of the whole proceeding, the king, on January 29th, 1646, sent a message to the two houses in England, in which he declares (with what truth the reader may judge) that Glamorgan had a commission to raise men, and "to that purpose only;" that he had no commission to treat of any thing else without the privity and directions of Ormond; that he had never sent any information of his having made any treaty with the Catholics, and that he (the king) disavowed him in his proceedings, and had ordered the Irish council to proceed against him by due course of law.—Charles's Works, 555.

Two days later, January 31, having acknowledged to the council at Dublin that he had informed Glamorgan of the secret instructions given to Ormond, and desired him to use his influence with the Catholics to

persuade them to moderate their demands, he proceeds: "To this end (and with the strictest limitations that we could enjoin him, merely to those particulars concerning which we had given you secret instructions, as also even in that to do nothing but by your especial directions) it is possible we might have thought fit to have given unto the said earl of Glamorgan such a credential as might give him credit with the Roman Catholics, in case you should find occasion to make use of him, either as a farther assurance unto them of what you should privately promise, or in case you should judge it necessary to manage those matters for their greater confidence apart by him, of whom, in regard of his religion and interest, they might be less jealous. This is all, and the very bottom of what we might have possibly entrusted unto the said earl of Glamorgan in this affair."—Carte's Ormond, iii. 446. How this declaration is to be reconciled with the last, I know not.

With this letter to the council he sent two others. One was addressed to Ormond, asserting on the word of a Christian that he never intended Glamorgan to treat of any thing without Ormond's knowledge and approbation, as he was always diffident of the earl's judgment, but at the same time commanding him to suspend the execution of any sentence which might be pronounced against that nobleman.—Carte, ii. App. p. 12. The second, dated Feb. 3, was to Glamorgan himself, in these words:—

"GLAMORGAN,

I must clearly tell you, both you and I have been abused in this business; for you have been drawn to consent to conditions much beyond your instructions, and your treaty had been divulged to all the world. If you had advised with my lord lieutenant, as you promised me, all this had been helped. But we must look forward. Wherefore, in a word, I have commanded as much favour to be shewn to you as may possibly stand with my service or safety; and if you will yet trust my advice—which I have

commanded Digby to give you freely—I will bring you so off that you may still be useful to me, and I shall be able to recompence you for your affection; if not, I cannot tell what to say. But I will not doubt your compliance in this, since it so highly concerns the good of all my crowns, my own particular, and to make me have still means to shew myself

Your most assured Friend,

CHARLES R. Oxford, Feb. 3, 1645-6." *Warner*, 360.

In this letter Charles, in his own defence, pretends to blame Glamorgan; probably as a blind to Ormond and Digby, through whom it was sent. Soon afterwards, on February 28th, he despatched Sir J. Winter to him with full instructions, and the following consolatory epistle:—

"HERBERT,

I am confident that this honest trusty bearer will give you good satisfaction why I have not in euerie thing done as you desired, the want of confidence in you being so farre from being y'e cause thereof, that I am euery day more and more confirmed in the trust that I have of you, for beleeeve me, it is not in the power of any to make you suffer in my opinion by ill offices; but of this and diuers other things I have given so full instructions that I will saye no more, but that I am

Yor most assured constant Friend,

CHARLES R."

Century of Inventions, xxxix.

April 5th he wrote to him again.

"GLAMORGAN,

I have no time, nor do you expect that I shall make unnecessary repetitions to you. Wherefore, referring you to Digby for business, this is only to give you assurance of my constant friendship to you: which, considering the general defection of common honesty, is in a sort requisite. Howbeit, I know you cannot but be confident of my making good all instructions and promises to you and the nuncio.

Your most assured constant Friend,

CHARLES R."

Warner, 373.

On the following day the king sent him another short letter.

"HERBERT,

As I doubt not but you have too much courage to be dismayed or discouraged at the usage you have had, so I assure you that my estimation of you is nothing diminished by it, but rather begets in me a desire of revenge and reparation to us both; for in this I hold myself equally interested with you. Wherefore, not doubting of your accustomed care and industry in my service, I assure you of the continuance of my favour and protection to you, and that in deeds more than words, I shall shew myself to be

Your most assured constant Friend,

CHARLES R."

Warner, 374.

If after the perusal of these documents any doubt can remain of the authenticity of Glamorgan's commission, it must be done away by the following passage from Clarendon's correspondence with secretary Nicholas. Speaking of his intended history, he says, "I must tell you, I care not how little I say in that business of Ireland, since those strange powers and instructions given to your favourite Glamorgan, which appears to me so inexcusable to justice, piety, and prudence. And I fear there is very much in that transaction of Ireland, both before and since, that you and I were never thought wise enough to be advised with in. Oh, Mr. Secretary, those stratagems have given me more sad hours than all the misfortunes in war which have befallen the king, and look like the effects of God's anger towards us."—Clarendon Papers, ii. 337.

It appears that the king, even after he had been delivered by the Scots to the parliament, still hoped to derive benefit from the exertions of Glamorgan. About the beginning of June, 1647, Sir John Somerset, the brother of that nobleman, arrived in Rome with a letter from Charles to Innocent X. The letter is not probably in existence; but the answer of the pontiff shows that the king had solicited pecuniary assistance, and, as an inducement, had held out some hint of a disposition on his part to admit the papal supremacy and the Catholic creed. Less than this cannot be inferred from the language of Innocent. *Litterae illae praecipuam tuam alacritatem ac propensionem ad obediendum Deo in nobis, qui ejus vices gerimus, luculenter declarant ... a majestate tua enixe poscimus, ut quod velle coepit, mox et facto perficiat ... ut aliquo id aggrediaris argumento, quo te te ad Catholicam fidem recepisse intelligamus.* Undoubtedly Charles was making the same experiment with the pontiff which he had just made with his Presbyterian subjects; and as, to propitiate them, he had undertaken to study the Presbyterian doctrines, so he hoped to draw money from Innocent by professing an inclination in favour of the Catholic creed. But the attempt failed. The answer was, indeed, complimentary: it expressed the joy of the

pontiff at the perusal of his letter, and exhorted him to persevere in the inquiry till he should come to the discovery of the truth; but it disposed of his request, as Urban had previously disposed of a similar request, by stating that it was inconsistent with the duty of the pope to spend the treasures of his church in the support of any but Catholic princes. This answer is dated 29th June, 1647.

NOTE B, p. 136.

1. The ordinances had distinguished two classes of delinquents, the one religious, the other political. The first comprised all Catholic recusants, all persons whomsoever, who, having attained the age of twenty-one, should refuse to abjure upon oath the doctrines peculiar to the Catholic creed. These were reputed papists, and had been made to forfeit two-thirds of their real and personal estates, which were seized for the benefit of the kingdom by the commissioners of sequestration appointed in each particular county. The second comprehended all persons who were known to have fought against the parliament, or to have aided the royal party with money, men, provisions, advice, or information; and of these the whole estates, both real and personal, had been sequestrated, with the sole exception of one-fifth allotted for the support of their wives and children, if the latter were educated in the Protestant religion.—Elsynge's Ordinances. 3, 22, et seq.

2. These sequestrated estates not only furnished a yearly income, but also a ready supply on every sudden emergency. Thus when Colonel Harvey refused to march till his regiment had received the arrears of its pay, amounting to three thousand pounds, an ordinance was immediately passed to raise the money by the sale of woods belonging to Lord Petre, in the county of Essex.—Journals, vi, 519. When a complaint was made of a scarcity of timber for the repairs of the navy, the two houses authorized certain shipwrights to fell two thousand five hundred oak trees on the

estates of delinquents in Kent and Essex.—Ibid, 520. When the Scots demanded a month's pay for their army, the committee at Goldsmiths' Hall procured the money by offering for sale such property of delinquents as they judged expedient, the lands at eight, the houses at six years' purchase.—Journals of Commons, June 10, 24, 1644.

3. But the difficulty of procuring ready money by sales induced the commissioners to look out for some other expedient; and when the sum of fifteen thousand pounds was wanted to put the army of Fairfax in motion, it was raised without delay by offering to delinquents the restoration of their sequestrated estates, on the immediate payment of a certain fine.—Commons' Journals, Sept. 13, 1644. The success of this experiment encouraged them to hold out a similar indulgence to such persons as were willing to quit the royal party, provided they were not Catholics, and would take the oath of abjuration of the Catholic doctrine.—Ibid. March 6, August 12, 1645; May 4, June 26, Sept. 3, 1646. Afterwards, on the termination of the war, the great majority of the royalists were admitted to make their compositions with the committee. Of the fines required, the greater number amounted to one-tenth, many to one-sixth, and a few to one-third of the whole property, both real and personal, of the delinquents.—(See the Journals of both houses for the years 1647, 1648.)

NOTE C, p. 241.

On the day after the king's execution appeared a work, entitled [Greek: EIKON BASILIKAE], or the Portraicture of his Sacred Majesty in "his Solitude and Sufferings." It professed to be written by Charles himself; a faithful exposition of his own thoughts on the principal events of his reign, accompanied with such pious effusions as the recollection suggested to his mind. It was calculated to create a deep sensation in favour of the royal sufferer, and is said to have passed through fifty editions in the course of the

first year. During the commonwealth, Milton made a feeble attempt to disprove the king's claim to the composition of the book: after the restoration, Dr. Gauden, a clergyman of Bocking, in Essex, came forward and declared himself the real author. But he advanced his pretensions with secrecy, and received as the price of his silence, first the bishopric of Exeter, and afterwards, when he complained of the poverty of that see, the richer bishopric of Worcester.

After the death of Gauden his pretensions began to transpire, and became the subject of an interesting controversy between his friends and the admirers of Charles. But many documents have been published since, which were then unknown, particularly the letters of

Gauden to the earl of Clarendon (Clarendon Papers, iii. App. xxvi.-xxxi., xcv.), and others from him to the earl of Bristol (Maty's Review, ii. 253. Clarendon Papers, iii. App. xcvi.; and Mr. Todd, *Memoirs of Bishop Walton*, i. 138). These have so firmly established Gauden's claim, that, whoever denies it must be prepared to pronounce that prelate an impostor, to believe that the bishops Morley and Duppa gave false evidence in his favour, and, to explain how it happened, that those, the most interested to maintain the right of the king, namely Charles II., his brother the duke of York, and the two earls of Clarendon and Bristol, yielded to the deception. These difficulties, however, have not appalled Dr. Wordsworth, who in a recent publication of more than four hundred pages, entitled, "Who wrote[Greek: EIKON BASILIKAE]" has collected with patient industry every particle of evidence which can bear upon the subject; and after a most minute and laborious investigation, has concluded by adjudging the work to the king, and pronouncing the bishop an impudent impostor. Still my incredulity is not subdued. There is much in the[Greek: EIKON BASILIKAE] itself which forbids me to believe that Charles was the real author, though the latter, whoever he were, may have occasionally

consulted and copied the royal papers; and the claim of Gauden appears too firmly established to be shaken by the imperfect and conjectural improbabilities which have hitherto been produced against it.

NOTE D, p. 276.

The Massacres at Drogheda and Wexford.

I. Drogheda was taken by storm on the 11th of September, 1649. Cromwell, on his return to Dublin, despatched two official accounts of his success, one to Bradshaw, president of the council of state; a second to Lenthall, the speaker of parliament. They were dated on the 16th and 17th of September; which probably ought to have been the 17th and 18th, for he repeatedly makes such mistakes in numbering the days of that month. These two documents on several accounts deserve the attention of the reader.

I. Both mention a massacre, but with this difference, that whereas the earlier seems to confine it to the men in arms against the commonwealth, the second towards the end notices, incidentally as it were, the additional slaughter of a thousand of the townspeople in the church of St. Peter. In the first, Cromwell, as if he doubted how the shedding of so much blood would be taken, appears to shift the origin of the massacre from himself to the soldiery, who considered the refusal of quarter as a matter of course, after the summons which had been sent into the town on the preceding day; but in the next despatch he assumes a bolder tone, and takes upon himself all the blame or merit of the proceeding. "Our men were ordered *by me* to put them all to the sword."—"I forbade them to spare any that were in arms." In the first, to reconcile the council to the slaughter, he pronounces it a "marvellous great mercy;" for the enemy had lost by it their best officers and prime soldiers: in the next he openly betrays his own misgivings,

acknowledging that "such actions cannot but work remorse and regret without sufficient grounds," and alleging as sufficient grounds in the present case—1. that it was a righteous judgment of God on barbarous wretches who had imbued their hands in so much innocent blood; and 2. that it would tend to prevent the effusion of blood for the future.

2. Now the insinuation conveyed in the first of these reasons, that the major part of the garrison had been engaged in the outbreak of the rebellion and its accompanying horrors, was in all probability a falsehood; for the major part of the garrison was not composed of native soldiers, but of Englishmen serving under the marquess of Ormond, the king's lord lieutenant. This is plain from the evidence of persons who cannot be supposed ignorant of the fact; the evidence of the royalist Clarendon (*History*, vol. iii. part i. p. 323), and of the republican Ludlow, who soon afterwards was made general of the horse, and became Cromwell's deputy in the government of the island (*Ludlow, Memoirs*, i. 301). But, however groundless the insinuation might be, it served Cromwell's purpose; it would array in his favour the fanaticism of the more godly of his party.

For the massacre of the townspeople in the church he offers a similar apology, equally calculated to interest the feelings of the saints. "They had had the insolence on the last Lord's day to thrust out the Protestants, and to have the mass said there." Now this remark plainly includes a paralogism. The persons who had ordered the mass to be said there on the 9th of September were undoubtedly the civil or military authorities in the town. Theirs was the guilt, if guilt it were, and theirs should have been the punishment. Yet his argument supposes that the unarmed individuals whose blood was shed there on the 12th, were the very persons who had set up the mass on the 9th.

3. We know not how far this second massacre was originated or encouraged by Cromwell. It is well known that in the sack of towns it is not always in the power of the commander to restrain the fury of the assailants, who abuse the license of victory to gratify the most brutal of their passions. But here we have no reason to suppose that Cromwell made any effort to save the lives of the unarmed and the innocent. Both the commander and his men had a common religious duty to perform. They were come, in his own language, "to ask an account of the innocent blood which had been shed,"—to "do execution on the enemies of God's cause." Hence, in the case of a resisting city, they included the old man, the female, and the child in the same category with the armed combatant, and consigned all to the same fate.

4. Of the proceedings of the victors during that night we are ignorant; but it does not suggest a very favourable notion of their forbearance, that in the following morning the great church of St. Peter's was filled with crowds of townspeople of both sexes, and of every age and condition. The majority of the women and children sought protection within the body of the church; a select party of females, belonging to the first families in the town, procured access to the crypts under the choir, which seemed to offer more favourable chances of concealment and safety. But the sacred edifice afforded no asylum to either. The carnage began within the church at an early hour; and, when it was completed, the bloodhounds tracked their prey into the vaults beneath the pavement. Among the men who thus descended into these subterranean recesses, was Thomas Wood, at that time a subaltern, afterwards a captain in Ingoldsby's regiment. He found there, according to his own narrative, "the flower and choicest of the women and ladies belonging to the town, amongst whom a most handsome virgin, arrayed in costly and gorgeous apparel, kneeled down to him with tears and prayers to save her life; and being stricken with a profound pitie, he took her under his arme, and went with her out of the church with intentions to put her over

the works to shift for herself; but a soldier perceiving his intention, he ran his sword up her belly or fundament. Whereupon Mr. Wood, seeing her gasping, took away her money, jewels, &c., and flung her down over the works." (See the Life of Anthony a Wood, p. xx., in the edition by Bliss, of 1813. Thomas was the brother of Anthony, the Oxford historian.) "He told them also that 3,000 at least, besides some women and children, were, after the assailants had *taken part, and afterwards all the towne*, put to the sword on the 11th and 12th of September, 1649. He told them that when they were to make their way up to the lofts and galleries of the church, and up to the tower, where the enemy had fled, each of the assailants would take up a child, and use as a buckler of defence, when they ascended the steps, to keep themselves from being shot or brained."—Wood, *ibid.* These anecdotes, from the mouth of one who was an eyewitness of, probably a participator in, the horrors of that day, will enable the reader to form an adequate notion of the thirst for blood which stimulated the soldiery, and of the cruelties which they exercised on their defenceless victims.

5. The terms of indignation, and abhorrence in which the sack of Drogheda was described by the royalists of that period are well known. I shall add here another testimony; not that it affords more important information, but because I am not aware that it has ever met the eye of more recent historians; the testimony of Bruodin, an Irish friar, of great eminence and authority in the Franciscan order. "Quinque diebus continuis haec laniena (qua, nullo habito locorum, sexus, religionis aut aetatis discrimine, juvenes et virgines lactantes aequae ac senio confecti barbarorum gladiis ubique trucidati sunt) duravit. Quatuor milia Catholicorum virorum (ut de infinita multitudine religiosorum, foeminarum, puerorum, puellarum et infantium nihil dicam) in civitate gladius impiorum rebellium illa expugnatione devoravit."—*Propugnaculum Cathol. Veritatis*, lib. iv. c. 14, p. 678.

6. Here another question occurs. How did Cromwell obtain possession of Drogheda? for there appears in his despatches a studied evasion of the particulars necessary to give a clear view of the transaction. The narrative is so confused that it provokes a suspicion of cunning and concealment on the part of the writer. The royalists affirmed that the place was won through promises of quarter which were afterwards perfidiously violated, and their assertion is supported by the testimony of Ormond in an official letter written from the neighbourhood to Lord Byron. "Cromwell," he says, "having been twice beaten from the breach, carried it the third time, all his officers and soldiers promising quarter to such as would lay down their arms, and performing it as long as any place held out, which encouraged others to yield; but when they had all once in their power, and feared no hurt that could be done them, then the word no quarter went round, and the soldiers were, many of them, forced against their wills to kill their prisoners. The governor and all his officers were killed in cold blood, except some few of least consideration that escaped by miracle."—Sept. 29, Carte's Letters, ii. 412. It is possible, though not very probable, that Ormond suffered himself to be misled by false information. It should, however, be observed, that there is nothing in his account positively contradicted by Cromwell's despatch. Cromwell had, not forbidden the granting of quarter before the storm. It was afterwards, "in the heat of the action," that he issued this order. But at what part of the action? On what account? What had happened to provoke him to issue it? He tells us that within the breach the garrison had thrown up three entrenchments; two of which were soon carried, but the third, that on the Mill-Mount, was exceedingly strong, having a good graft, and strongly palisaded. For additional particulars we must have recourse to other authority, from which we learn that within this work was posted a body of picked soldiers with every thing requisite for a vigorous defence, so that it could not have been taken by force without the loss of some hundreds of men on the part of the

assailants. It so happened, however, that the latter entered it without opposition, and "Colonel Axtell, with some twelve of his men, went up to the top of the mount, and demanded of the governor the surrender of it, who was very stubborn, speaking very big words, but at length was persuaded to go into the windmill at the top of the mount, and as many more of the chieftest of them as it could contain, *where they were disarmed, and afterwards all slain.*"—Perfect Diurnal from Oct. 1 to Oct. 8. Now Cromwell in his despatch says "The governor, Sir Arthur Ashton, and divers considerable officers, being there (on the Mill-Mount), our men, getting up to them, were ordered by me to put them all to the sword." In my opinion this passage affords a strong corroboration of the charge made by Ormond. If the reader compare it with the passage already quoted from the Diurnal, he will find it difficult to suppress a suspicion that Axtell and his men had obtained a footing on the Mill-Mount through the offer of quarter; and that this was the reason why Cromwell, when he knew that they had obtained possession, issued an order forbidding the granting of quarter on any account. The consequence was, that the governor and his officers went into the mill, and were there disarmed, and afterwards all slain. The other prisoners were treated in the same manner as their officers.

7. Ormond adds, in the same letter, that the sack of the town lasted during five days, meaning, probably, from September 11 to September 15, or 16, inclusively. The same is asserted by most of the royalists. But how could that be, when the storm began on the 11th, and the army marched from Drogheda on the 15th? The question may perhaps be solved by a circumstance accidentally mentioned by Dr. Bates, that on the departure of the army, several individuals who had hitherto succeeded in concealing themselves, crept out of their hiding-places, but did not elude the vigilance of the garrison, by whom they were put to the sword.—Bates's Rise and Progress, part ii. p. 27.

II. 1. It did not require many days to transmit intelligence from Dublin to the government; for the admiralty had contracted with a Captain Rich, that for the monthly sum of twenty-two pounds he should constantly have two swift-sailing vessels, stationed, one at Holyhead, the other at Dublin, ready to put to sea on the arrival of despatches for the service of the state.—Lords' Journ. ix. 617. From an accidental entry in Whitelock, it would appear that the letters from Cromwell reached London on the 27th of September; on the 28th, parliament, without any cause assigned in the Journals, was adjourned to October 2nd, and on that day the official account of the massacre at Drogheda was made public. At the same time an order was obtained from the parliament, that "a letter should be written to the lord lieutenant of Ireland, to be communicated to the officers there, that the house doth approve of the execution done at Drogheda both as an act of justice to them and mercy to others, who may be warned by it" (Journals, vi. 301), which are the very reasons alleged by Cromwell in his despatch. His conduct was now sanctioned by the highest authority; and from that moment the saints in the army rejoiced to indulge the yearnings of their zeal for the cause of God, by shedding the blood of the Irish enemy. Nor had they long to wait for the opportunity. On the 1st of October he arrived in the neighbourhood of Wexford; on the 9th he opened a cannonade on the castle, which completely commanded the town. On the 11th, Synnot, the military governor, offered to capitulate; four commissioners, one of whom was Stafford, the captain of the castle, waited on Cromwell to arrange the terms. He was dissatisfied with their demands, pronounced them "abominable," and detained them till he had prepared his answer. By that answer he granted life and liberty to the soldiers; life, but not liberty, to the commissioned officers, and freedom from pillage to the inhabitants, subject, however, to the decision of parliament with respect to their real property. He required an immediate acceptance of these terms, and the delivery to him of six hostages within an hour.—(Compare the letter of October 16 in

the King's Pamphlets, No. 442, with the document published by Mr. Carlyle, ii. 79, which appears to me nothing more than a rough and incorrect draft of an intended answer.) But Stafford was a traitor. In the interval, being "fairly treated," he accepted, without communication with the governor, the terms granted by Cromwell, and opened the gates of the fortress to the enemy. From the castle they scaled an undefended wall in the vicinity, and poured into the town. A paper containing the terms was now delivered to the other three commissioners; but "their commissioners this while not having hearts to put themselves into the town again with out offer."—Ibid. Letter of October 16. Thus Synnot and the other authorities remained in ignorance of Cromwell's decision.

2. At the first alarm the garrison and burghers assembled in the market-place, to which they were accompanied or followed by crowds of old men, women, and children. For a while the progress of the enemy was retarded by barricades of cables. At the entrance of the market-place they met with a "stiff resistance," as it is called by Cromwell. The action lasted about an hour; but the assailants receiving continual reinforcements, obtained at last full possession of the place, and put to the sword every human being found upon it. The governor and the mayor perished with the rest.

3. But how could these bloody proceedings be reconciled with the terms of capitulation which had been already granted? If we may believe Cromwell's official account, a matchless specimen of craft and mystification, *he* was not to blame that they had been broken. He was perfectly innocent of all that had happened. Could he not then have ordered his men to keep within the castle, or have recalled them when they forced an entrance into the town? Undoubtedly he might; but the pious man was unwilling to put himself in opposition to God. "His study had been to preserve the place from plunder, that it might be of more use to the commonwealth and the army." But he saw "that God would not have have it

so." The events which so quickly followed each other, were to him a proof that God in his righteous judgment had doomed the town and its defendants to destruction; on which account he "thought it not good, nor just, to restrain off the soldiers from their right of pillage, nor from doing of execution on the enemy."—Letter of 16th of October. He concludes his despatch to the government with these words:—"Thus it has pleased God to give into your hands this other mercy, for which, as for all, we pray God may have all the glory. Indeed, your instruments are poor and weak. and can do nothing but through believing, and that is the gift of God also."—Cary's Memorials, ii. 180. Did then the fanatic believe that perfidy and cruelty were gifts of God? for at Wexford he could not plead, as at Drogheda, that his summons had been contemptuously rejected. It had been accepted, and he had himself dictated the terms of capitulation. Was he not obliged to carry them into execution, even if, as was pretended in defiance of all probability, his men had taken possession of the castle, and forced an entrance into the town without his knowledge or connivance? Would any honest man have released himself from such obligation under the flimsy pretext that it would be acting against the will of God to recall the soldiers and prevent them from doing execution on the enemy?

4. Cromwell's ministers of the divine will performed their part at Wexford, as they had done at Drogheda, doing execution, not on the armed combatants only, but on the women and children also. Of these helpless victims many had congregated round the great cross. It was a natural consequence in such an emergency. Hitherto they had been accustomed to kneel at the foot of that cross in prayer, now, with life itself at stake, they would instinctively press towards it to escape from the swords of the enemy. But, as far as regards the atrocity of the thing, it makes little difference on what particular spot they were murdered. You cannot relieve the memory of Cromwell from the odium of such murder, but by proving,

what it is impossible to prove, that at Wexford the women and children were specially excepted out of the general massacre.

5. I have already copied Bruodin's description of the sack of Drogheda; here I may transcribe his account of the sack of Wexford. "Ipse strategus regicidarum terrestri itinere Dublinium praetergressus, Wexfordiam (modicam quidem, et maritimam, munitam et opulentam civitatem) versus castra movet, occupatoque insperate, proditione cujusdam perfidi ducis castro, quod moenibus imminebat, in civitatem irruit: opposuere se viriliter aggressori praesidiarii simul cum civibus, pugnatumque est ardentissime per unius horae spatium inter partes in foro, sed impari congressu, nam cives fere omnes una cum militibus, sine status, sexus, aut aetatis discrimine, Cromweli gladius absumpsit."—Bruodin, Propag. 1. iv. c. 14, p. 679. The following is a more valuable document, from the "humble petition of the ancient natives of the town of Wexford," to Charles II., July 4, 1660. "Yet soe it is, may it please your Majestie, that after all the resistance they could make, the said usurper, having a great armie by sea and land before the said toune, did on the 9th of October, 1649, soe powerfully assault them, that he entered the toune, and put man, woman, and child, to a very few, to the sword, where among the rest the governor lost his life, and others of the soldiers and inhabitants to the number of 1,500 persons."—Gale's Corporation System in Ireland, App. p. cxxvi.

6. My object in these remarks has been to enable the reader to form a correct notion of the manner in which Cromwell conducted the war in Ireland. They will give little satisfaction to the worshippers of the hero. But his character is not a mere matter of taste or sympathy. It is a question of historic inquiry. Much indeed has been written to vindicate him from the imputation of cruelty at Drogheda and Wexford; but of the arguments hitherto adduced in his defence, it will be no presumption to affirm that

there is not one among them which can bear the test of dispassionate investigation.

NOTE E, p. 338.

The following pensions were afterwards granted to different persons instrumental in facilitating the king's escape. Unless it be mentioned otherwise, the pension is for life:—

£.

To Jane Lane (Lady Fisher)	1000
Thomas Lane, the father	500
Charles Gifford, Esq.	300
Francis Mansell, Esq.	200
Thomas Whitgrave, Esq.	200
Catharine Gunter, for 21 years	200
Joan Harford	50
Eleanor Sampson	50
Francis Reynolds	200
John and Anne Rogers, and heirs male . .	100
Anne Bird	30
Sir Thomas Wyndham, and heirs, for ever .	600
William Ellesdun, during pleasure	100
Robert Swan, during the king's life . . .	80
Lady Anne Wyadham	400
Juliana Hest	30

Clarendon Corres. i. 656.

NOTE F, p. 358.

The Act for the Settlement of Ireland.

Whereas the parliament of England after expense of much blood and treasure for suppression of the horrid rebellion in Ireland have by the good hand of God vpon their vndertakings brought that affaire to such an issue as that a totall reducm't and settlement of that nation may with Gods blessing be speedily effected. To the end therefore that the people of that nation may knowe that it is not the intention of the Parliament to extirpat that wholl nation, but that mercie and pardon both as to life and estate may bee extended to all husbandmen, plowmen, labourers, artificers, and others of the inferior sort, in manner as is heereafter declared, they submitting themselves to the Parliament of the Commonwealth of England and living peaceably and obediently vnder their government, and that others alsoe of a higher ranke and quality may knowe the Parliament's intention concerning them according to the respective demerits and considerations under which they fall, Bee it enacted and declared by this present Parliament and by the authority of the same, That all and every person and persons of the Irish nation comprehended in any of the following Qualifications shal bee lyable vnto the penalties and forfeitures herein mentioned and contained or bee made capable of the mercy and pardon therein extended respectively according as is heereafter expressed and declared, that is to saye,

1. That all and every person and persons who at any time before the tenth day of November, 1642, being the time of the sitting of the first generall assembly at Kilkenny in Ireland have contrived, advised, counselled, or promoted the Rebellion, murthers, massacres, done or committed in Ireland w'ch began in the year 1641, or have at any time before the said tenth day of November 1642 by bearing armes or contributing men, armes, horses, plate, money, victuall or other furniture or habilliments of warre (other then such w'ch they shall make to appeare to haue been taken from them by meere

force & violence) ayded, assisted, promoted, prosecuted or abetted the said rebellion murthers or massacres, be excepted from pardon of life and estate.

2. That all and every person & persons who at any time before the first day of May 1643, did sitt or vote, in the said first generall

assembly, or in the first pretended counsell comonly called the supreame counsell of the confederate Catholiques in Ireland or were imployed as secretaries or cheife clearke, to be exempted from pardon for life and estate.

3. That all and every Jesuitt preist and other person or persons who have receaved orders from the Pope or Sea of Rome, or any authoritie from the same, that have any wayes contrived, advised, counselled, promoted, continued, countenanced, ayded, assisted or abetted, or at any time hereafter shall any wayes contriue, advise, counsell, promote, continue, countenance, ayde, assist or abett the Rebellion or warre in Ireland, or any the murthers, or massacres, robberies, or violences, comitted against ye Protestants, English, or others there, be excepted from pardon for life and estate.

4. That James Butler earl of Ormond, James Talbot earl of Castelhaven, Ullick Bourke earl of Clanricarde, Christopher Plunket earl of Fingal, James Dillon earl of Roscommon, Richard Nugent earl of Westmeath, Moragh O'Brian baron of Inchiquin, Donogh M'Carthy viscount Muskerry, Richard Butler viscount Mountgarrett, Theobald Taaffe viscount Taaffe of Corren, Rock viscount Fermoy, Montgomery viscount Montgomery of Ards, Magennis viscount of Iveagh, Fleming baron of Slane, Dempsey viscount Glanmaleere, Birmingham baron of Athenry, Oliver Plunket baron of Lowth, Robert Barnwell baron of Trymletstoune, Myles Bourke viscount Mayo, Connor Magwyre baron of Enniskillen, Nicholas Preston viscount Gormanstowne, Nicholas Nettervill, viscount Nettervill of Lowth, John Bramhall late Bishop of Derry, (with eighty-one baronets, knights and gentlemen mentioned by name) be excepted from pardon of life and estate.

5. That all and every person & persons (both principalls and accessories) who since the first day of October 1641 have or shall kill, slay or otherwise destroy any person or persons in Ireland w'ch at ye time of their being soe killed, slaine or destroyed were not publicquely entertained, and mainteyned in armes as officers or private souldiers for and on behalfe of the English against ye Irish, and all and every person and persons (both principals and accessories) who since the said first day of October 1641 have killed slayne or otherwise destroyed any person or persons entertained and mainteyned as officers or private souldiers for and on behalfe of the English, against the Irish (the said persons soe killing, slaying or otherwise destroying, not being then publicquely enterteyned and mainteyned in armes as officer or private souldier vnder the comand and pay of ye Irish against the English) be excepted from pardon for life and estate.

6. That all and every person & persons in Ireland that are in armes or otherwise in hostilitie against ye Parliam't of ye Commonwealth of England, and shall not wthin eight and twenty dayes after publicacon hereof by ye deputy gen'll of Ireland, and ye comission'rs for the Parliam't, lay downs armes & submitt to ye power and authoritie of ye said Parliam't & commonwealth as ye same is now established, be excepted from pardon for life and estate.

7. That all other person & persons (not being comprehended in any of ye former Qualifications,) who have borne comaund in the warre of Ireland against the Parliam't of England or their forces, as generall, leift'ts generall, major gen'll, commissary generall, colonell, Gouerno'rs of any garrison, Castle or Forte, or who have been imployed as receaver gen'll or Treasurer of the whole Nation, or any prouince thereof, Comissarie gen'll of musters, or prouissions, Marshall generall or marshall of any province, advocate to ye army, secretary to ye councill of warre, or to any generall of the army, or of any the seuerall prouinces, in order to the carrying on the warre, against

the parliam't or their forces, be banished dureing the pleasure of the parliam't of ye Com'wealth of England, and their estates forfeited & disposed of as followeth, (viz.) That two third partes of their respective estates, be had taken & disposed of for the vse & benefitt of the said Com'wealth, and that ye other third parte of their said respective estates, or other lands to ye proporcon & value thereof (to bee assigned in such places in Ireland as the Parliam't in order to ye more effectual settlem' of ye peace of this Nation shall thinke fitt to appoint for that purpose,) be respectiuey had taken and enioyed by ye wifes and children of the said persons respectively.

8. That ye deputy gen'll and comission'rs of parliam't have power to declare, That such person or persons as they shall judge capeable of ye parliam'ts mercie (not being comprehended in any of ye former qualifications) who have borne armes against the Parliam't of England or their forces, and have layd downe armes, or within eight & twenty dayes after publicacon hereof by ye deputy gen'll of Ireland and ye Comissioners for ye parliam't, shall lay downe armes & submit to ye power & authoritie of ye said parliam't & com'wealth as ye same is now established, (by promising & ingaging to be true to ye same) shal be pardoned for their liues, but shall forfeit their estates, to the said comonwealth to be disposed of as followeth (viz.) Two third partes thereof (in three equall partes to bee diuided) for the vse benefitt & aduantage of ye said ComOnwealth, and ye other third parte of the said respective states, or other lands to ye proporcon or value thereof) to bee assigned in such places in Ireland as the parliam't in order to ye more effectual settlement of the peace of the Nation shall thinke fitt to appoint for that purpose (bee enioyed by ye said persons their heires or assigns respectively) provided, That in case the deputy gen'll Comission'rs or either of them, shall see cause to give any shorter time than twenty-eight dayes, vnto any person or persons in armes, or any Guarrison, Castle, or Forte, in hostilitie against the Parliam't & shall giue notice to

such person or persons in armes or in any Guarrison, Castle or Forte, That all and every such person & persons who shall not wthin such time as shall be sett downe in such notice surrender such Guarrison, Castle, or Forte to ye parliam't, and lay downe armes, shall haue noe advantage of ye time formerly limited in this Qualificacon.

9. That all and every person & persons who have recided in Ireland at any time from the first day of October 1641, to ye first of March 1650, and haue not beene in actuall service of ye parliam't at any time from ye first of August 1649, to the said first of March 1650, or have not otherwise manifested their constant good affections to the interest of ye Comonwealth of England (the said Persons not being comprehended in any of the former Qualificacons) shall forfeit their estates in Ireland to the said Comonwealth to be disposed of as followeth, (viz.), one third parte thereof for the vse, benefitt, and advantage of the said Comonwealth, and the other two third partes of their respective estates, or other lands to the proporcon or value thereof (to bee assigned in such places in Ireland, as ye Parliam't for ye more effectual settlement of ye peace of the Nation shall thinke fitt to appoint for that purpose) bee enjoyed by such person or persons their heires or assigns respectively.

10. That all and every person & persons (haueing noe reall estate in Ireland nor personall Estate to the value of ten pounds,) that shall lay downe armes, and submitt to the power and Authoritie of the Parliament by the time limited in the former Qualificacon, & shall take & subscribe the engagem't to be true and faithfull to the Comonwealth of England as the same is now established, within such time and in such manner, as the deputy Generall & commission'rs for the Parliam't shall appoint and direct, such persons (not being excepted from pardon nor adiuged for banishm't by any of the former Qualificacons) shall be pardoned for life & estate, for any act or thing by them done in prosecution of the warre.

11. That all estates declared by the Qualificacons concerning rebels or delinquents in Ireland to be forfeited shal be construed, adiuged & taken to all intents and purposes to extend to ye forfeitures of all estates tayle, and also of all rights & titles thereunto which since the fiue and twentieth of March 1639, have beene or shal be in such rebels or delinquents, or any other in trust for them or any of them, or their or any of their vses, w'th all reversions & remainders thereupon in any other person or persons whatsoever.

And also to the forfeiture of all estates limitted, appointed, conveyed, settled, or vested in any person or persons declared by the said Qualificacons to be rebels or delinquents with all reversions or remainders of such estates, conueyed, uested, limitted, declared or appointed to any the heires, children, issues, or others of the blood, name, or kindred of such rebels or delinquents, w'ch estate or estates remainders or reuersions since the 25th of March 1639 have beene or shal be in such rebels or delinquents, or in any their heires, children, issues or others of the blood, name, or kindred of such rebels or delinquents.

And to all estates graunted, limitted, appointed or conueyed by any such rebels or delinquents vnto any their heires, children, issue, w'th all the reversions and remainders thereupon, in any other person of the name, blood or kindred of such rebels or delinquents, provided that this shall not extend to make voyd the estates of any English Protestants, who haue constantly adhered to the parliam't w'ch were by them purchased for valuable consideracon before ye 23rd of October 1641, or vpon like valuable consideracon mortgaged to them before ye tyme or to any person or persons in trust for them for satisfaction of debts owing to them.

I have not been able to ascertain the number of Catholic clergymen who were executed or banished for their religion under Charles I., and under the commonwealth. But I possess an original document, authenticated by the signatures of the parties concerned, which contains the names and fate of such Catholic priests as were apprehended and prosecuted in London between the end of 1640 and the summer of 1651 by four individuals, who had formed themselves into a kind of joint-stock company for that laudable purpose, and who solicited from the council some reward for their services. It should, however, be remembered that there were many others engaged in the same pursuit, and consequently many other victims besides those who are here enumerated.

"The names of such Jesuits and Romish priests as have been apprehended and prosecuted by Capt James Wadsworth, Francis Newton, Thomas Mayo, and Robert de Luke, messengers, at our proper charge; whereof some have been condemned; some executed, and some reprieved since the beginning of the parliament (3 Nov. 1640); the like having not been done by any others since the reformation of religion in this nation:—

William Waller, als. Slaughter, als. Walker, executed at Tyburne.

Cuthbert Clapton, condemned, reprieved and pardoned.

Bartholomew Row, executed at Tyburne.

Thomas Reynolds, executed at Tyburne.

Edward Morgan, executed at Tyburne.

Thomas Sanderson, als. Hammond, executed at Tyburne.

Henry Heath, alias Pall Magdalen, executed at Tyburne.

Francis Quashet, dyed in Newgate after judgment.

Arthur Bell, executed at Tyburne.

Ralph Corbey, executed at Tyburne.

John Duchet, executed at Tyburne.

John Hamond, als. Jackson, condemned, reprieved by the king, and died in Newgate.

Walter Coleman, condemned and died in Newgate,

Edmond Cannon, condemned and died in Newgate.

John Wigmore, als. Turner, condemned, reprieved by the king, and is in custodie in Newgate.

Andrew Ffryer, alias Herne, als. Richmond, condemned and died in Newgate.

Augustian Abbot, als. Rivers, condemned, reprieved by the king, and died in Newgate.

John Goodman, condemned and died in Newgate.

Peter Welford, condemned and died in Newgate.

Thomas Bullaker, executed at Tyburne.

Robert Robinson, indicted and proved, and made an escape out of the King's

Bench.

James Brown, condemned and died in Newgate.

Henry Morse, executed at Tyburne.

Thomas Worseley, alias Harvey, indicted and proved, and reprieved by the
Spanish ambassador and others.

Charles Chanie (Cheney) als. Tomson, indicted and proved, and begged by the Spanish ambassador, and since taken by command of the councell of state, and is now in Newgate.

Andrew White, indicted, proved, reprieved before judgment, and banished.

Richard Copley, condemned and banished.

Richard Worthington, found guiltie and banished.

Edmond Cole, Peter Wright, and William Morgan, indicted, proved, and sent beyond sea.

Philip Morgan, executed at Tyburne.

Edmond Ensher, als. Arrow, indicted, condemned, reprieved by the parliament and banished.

Thomas Budd, als. Peto, als. Gray, condemned, reprieved by the lord mayor of London, and others, justices, and since retaken by order of the councell of state, and is now in Newgate.

George Baker, als. Macham, indicted, proved guiltie, and now in Newgate.

Peter Beale, als. Wright, executed at Tyburne.

George Sage, indicted by us, and found guiltie, and since is dead.

James Wadsworth.

Francis Newton.

Thomas Mayo.

Robert de Luke."

This catalogue tells a fearful but instructive tale; inasmuch as it shows how wantonly men can sport with the lives of their fellow-men, if it suit the purpose of a great political party. The patriots, to enlist in their favour the religious prejudices of the people, represented the king as the patron of popery, because he sent the priests into banishment, instead of delivering them to the knife of the executioner. Hence, when they became lords of the ascendant, they were bound to make proof of their orthodoxy; and almost every execution mentioned above took place by their order in 1642, or 1643. After that time they began to listen to the voice of humanity, and adopted the very expedient which they had so clamorously condemned. They banished, instead of hanging and quartering.

NOTE H, p. 493.

Revenue of the Protector.

When the parliament, in 1654, undertook to settle an annual sum on the protector, Oliver Cromwell, the following, according to the statement of the

sub-committee, was the amount of the revenue in the three kingdoms:—

Excise and customs in England	£80,000
Excise and customs in Scotland	10,000
Excise and customs in Ireland	20,000
Monthly assessments in England (at 60,000l.) . . .	720,000
Monthly assessments in Ireland (at 8,000l.) . . .	96,000
Monthly assessments in Scotland (at 8,000l.) . . .	96,000
Crown revenue in Guernsey and Jersey	2,000
Crown revenue in Scotland	9,000
Estates of papists and delinquents in England . . .	60,000
Estates of papists and delinquents in Scotland . .	30,000
Rent of houses belonging to the crown	1,250
Post-office	10,000
Exchequer revenue	20,000
Probate of wills	10,000
Coinage of tin	2,000
Wine licenses	10,000
Forest of Dean	4,000
Fines on alienations	20,000
£1,200,000	

[From the original report in the collection of Thomas Lloyd, Esq.]

NOTE I, p. 558.

Principles of the Levellers.

The following statement of the principles maintained by the Levellers is extracted from one of their publications, which appeared soon after the

death of Cromwell, entitled "The Leveller; or, The Principles and Maxims concerning Government and Religion, which are asserted by those that are commonly called Levellers, 1659."

Principles of Government.

1. The government of England ought to be by laws, and not by men; that is, the laws ought to judge of all offences and offenders, and all punishments and penalties to be inflicted upon criminals; nor ought the pleasure of his highness and his council to make whom they please offenders, and punish and imprison whom they please, and during pleasure.

2. All laws, levies of moneys, war and peace, ought be made by the people's deputies in parliament, to be chosen by them successively at certain periods. Therefore there should be no negative of a monarch, because he will frequently by that means consult his own interest or that of his family, to the prejudice of the people. But it would be well if the deputies of the people were divided into two bodies, one of which should propose the laws, and the other adopt or reject them.

3. All persons, without a single exception, should be subject to the law.

4. The people ought to be formed into such a military posture by and under the parliament, that they may be able to compel every man to obey the law, and defend the country from foreigners. A mercenary (standing) army is dangerous to liberty, and therefore should not be admitted.

Principles of Religion.

1. The assent of the understanding cannot be compelled. Therefore no man can compel another to be of the true religion.

2. Worship follows from the doctrines admitted by the understanding. No man therefore can bind another to adopt any particular form of worship.

3. Works of righteousness and mercy are part of the worship of God, and so far fall under the civil magistrate, that he ought to restrain men from irreligion, that is, injustice, faith-breaking, oppression, and all other evil works that are plainly evil.

4. Nothing is more destructive to true religion than quarrels about religion, and the use of punishments to compel one man to believe as another.

NOTE K, p. 608.

That Sir Anthony Ashley Cooper was deeply engaged in the intrigues of this busy time is sufficiently manifest. He appears to have held himself out to every party as a friend, and to have finally attached himself to the royalists, when he saw that the royal cause was likely to triumph. Charles acknowledged his services in the patent by which he was created Lord Ashley, mentioning in particular "his prudent and seasonable advice with General Monk in order to the king's restoration."—Dugd. ii. 481. From this passage we may infer that Cooper was one of Monk's confidential advisers; but his admirers have gone much farther, attributing to him the whole merit of the restoration, and representing the lord-general as a mere puppet in the hands of their hero. In proof they refer to the story told by Locke (iii. 471),—a story which cannot easily be reconciled with the more credible and unpretending narrative of Clarges, in Baker's Chronicle, p. 602, edit. 1730. But that the reader may form his own judgment, I shall subjoin the chief heads of each in parallel columns.

CLARGES

1. Scot, Hazlerig, and others sought and obtained a private interview with Monk at Whitehall; and Clarges, from their previous conversation with himself, had no doubt that their object was to offer the government of the kingdom to the general.

2. The council of state was sitting in another room; and Clarges, sending for Sir A.A. Cooper, communicated his suspicion to him.

3. After some consultation it was agreed that, as soon as Monk, having dismissed Scot and Hazlerig, should enter the council-room, Cooper should move that the clerks be ordered to withdraw.

4. When this was done, Cooper said that he had received notice of a dangerous design; that some seditious persons had made "indecent proposals" to the general; and of such proposals he desired that the council might have a full discovery.

5. Monk, unwilling to expose them, replied that there was very little danger in the case; that some persons had, indeed, been with him to be resolved in scruples respecting the present transactions in parliament; but that he had sent them away well satisfied (p. 602).

6. Bordeaux offered to Monk through Clarges the aid of Mazarin, whether it were his object to restore the king, or to assume the government himself. Monk refused; but consented to receive a visit of civility from the ambassador, on condition that politics should not be introduced (p. 604).

LOCKE

1. Bordeaux, the French ambassador, visited Monk one evening, and Mrs. Monk, who had secreted herself behind the hangings, heard him offer the

aid of Mazarin to her husband, if he was willing to take the government on himself, which offer the general accepted.

2. Mrs. Monk sent her brother Clarges to communicate the discovery of her husband's ambitious design to Sir A.A. Cooper.

3. Cooper caused a council to be called, and, when they were met, moved that the clerks should withdraw, because he had matter of consequence to communicate.

4. He then charged Monk, "not openly, but by insinuation, that he was playing false with them, so that the rest of the council perceived there was something in it, though they knew not what was meant."

5. Monk replied that he was willing to satisfy them that he was true to his principles. Then, said Ashley, replace certain officers of suspicious character by others of known fidelity. This was done on the spot; the command of the army by the change was virtually taken from Monk; and he was compelled to declare for Charles Stuart

It may be thought that Locke's narrative derives confirmation from another version of the same story in the *Life of Lord Shaftesbury*, lately edited by Mr. Cooke, with the following variations. Bordeaux is made to accompany the republicans; the greater part of the night is spent in consultation, and Monk not only consents to assume the government, but resolves to arrest in the morning Cooper and several other influential individuals (p. 233-235). But that life cannot be considered as an authority; for the documents from which it is said to have been compiled are neither quoted nor described by its author, nor have ever been seen by its present editor.

END OF VOL. VIII.

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